BP 1100 The Antelope Valley Community College District

Reference:

Education Code Section 72000(b)

The District has been named the Antelope Valley Community College District.

The name is the property of the District. No person shall, without the permission of the Board of Trustees, use this name or the name(s) of any college(s) or other facilities of the District, or any abbreviation of them, to imply, indicate or otherwise suggest that an organization, product or service is connected or affiliated with, or is endorsed, favored, supported, or opposed by, the District.

The District consists of Antelope Valley College.

Adopted: 7/5/05
Reviewed: 6/13/16
Revised: 9/9/19
Reviewed: 3/14/22

BP 1200 District Mission

Reference:

Accreditation Standard I.A

Antelope Valley Community College District, a public institution of higher education, provides a quality, comprehensive education to a diverse population of learners. We are committed to student success, offering value and opportunity, in service to our community.

Antelope Valley College offers in alignment with the California Community College District Board of Governors Vision for Success (Not included in the District's Mission Statement):

- ***Associate Degree Programs***
  Associate degree programs comprised of general education courses, proficiency requirements, designated courses in a specific major or area of emphasis. Associate degrees provide students with "the ability to think and to communicate clearly and effectively both orally and in writing; to use mathematics; to understand the modes of inquiry of the major disciplines; to be aware of other cultures and times; to achieve insights gained through experience in thinking about ethical problems; and to develop the capacity for self-understanding."

- ***Baccalaureate Degree Program***
  The Baccalaureate Degree Program in Airframe Manufacturing Technology is designed to respond to the growing demand in the aerospace and associated industries with a curriculum that addresses airframe manufacturing, aircraft fabrication (structures and composites), avionics, and electronics, as well as upper division general education courses. This degree provides students with the ability to understand, perform, and serve as first-line leads in the major processes of manufacturing the structural components of aircraft for civilian and military specifications and other related industries.

- ***Career Technical Programs***
  Certificate and degree programs comprised of "essential career technical instruction" in a variety of business, technical, and occupational courses designed to enhance students' knowledge and skills leading to employment, career advancement, certification, and state or federal licensure. We award both Chancellor's Office approved Certificates of Achievement and locally approved Certificates of Proficiency.

- ***Transfer/General Education Courses***
  Transfer/general education courses in communication and critical thinking, the physical and biological sciences, arts and humanities, social and behavioral sciences, and

technical education. Completion of these courses allows students to fulfill degree requirements or enroll in upper division courses and programs at accredited four-year institutions through our articulation agreements.

- ***Basic Skills Courses***
  Basic skills courses in reading, writing, mathematics, English as a Second Language, and learning and study skills. These courses offer students essential foundation skills that are necessary for success in college-level degree applicable courses.

- ***Student Support and Instructional Support***
  A variety of services in academic, career, and personal counseling, in library instruction and course support, in learning assistance. These services support the needs of students in pursuing and achieving their educational goals.

- ***Workforce Preparation and Economic Development***
  Workforce programs, job preparation courses (non-degree applicable) and a variety of services that contribute to the educational and economic well-being of the community.

- ***Personal Enrichment and Professional Development***
  Community service offerings, non-credit, not-for-credit classes and services that develop the knowledge, skills and attitudes necessary for students to be effective members of the community. These classes enhance the community's social, cultural, and economic well-being. Non-credit course offerings may lead to a Certificate of Completion and/or Certificate of Competency.

The Antelope Valley Community College District is committed to fulfilling its mission in accord with the following philosophy:

Antelope Valley Community College District is a comprehensive community college district in the California Community College System dedicated to providing services to a broad range of students with a variety of educational goals. The District is dedicated to providing educational programs and services as expressed in the California Master Plan for Higher Education. Likewise, the District is committed to equal educational opportunity and reinforces that commitment through a program of active affirmation of diversity.

Antelope Valley Community College District is dedicated to meeting the dynamic needs of a changing community. The District addresses the educational needs of a diverse and evolving population. The District recognizes that it is uniquely capable of respondingto the requirements of regional business, industry, and public service, as well as the social and cultural needs of the Antelope Valley.

Antelope Valley Community College District affirms the rights of the individual and respects human dignity. The programs and activities offered foster the individual's ability to think

clearly, critically, and independently to meet the demands of an increasingly complex society. The student is the primary concern of the Community College District. The curriculum, activities, and services are designed to help students understand their physical, cultural, ethnic, and social environment. The preservation of academic freedom provides an environment in which students and faculty can examine ideas freely. Academic freedom in the pursuit and dissemination of knowledge in an educational environment shall be ensured and maintained. Such freedom shall be recognized as a right of all members of the faculty, whether of tenure or non-tenure rank, of all administrative officers, and of all students.

This philosophy is reflected in the curriculum, the student-faculty relationships, the services and resources, and the policies of the Antelope Valley Community College District.

The mission statement review will be initiated by the Strategic Planning Committee (SPC). The mission is evaluated and revised on a regular basis.

Adopted: 7/5/05
Revised: 10/9/06
Revised: 5/12/08
Revised: 7/13/09
Revised: 8/13/12
Revised: 11/10/14
Revised: 5/9/16
Revised: 9/9/19
Reviewed: 3/14/22

AP 2015 Student Trustee

Reference:

Education Code Section 72023.5

The student trustee shall:

- Attend meetings of the Board of Trustees (absences not to exceed two (2) regular board meetings).
- Attend at least two (2) regular meetings of the Associated Student Organization (ASO) per month, unless there is a class schedule conflict, and maintain communication with the ASO as needed.
- Meet with the Superintendent/President of the college as needed.
- Represent the Board as well as the college at meetings and special events whenever possible.
- May attend state and other related conferences for Board of Trustee members.
- Meet with the advisor to the Student Trustee and the Dean of Student Life & Services when necessary.

Also see BP 2015 Student Trustee and BP/AP 2105 Election of Student Trustee.

Approved: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19
Reviewed: 3/14/22

AP 2100 Board Elections

References:

Education Code Sections 5000 et seq.

I. Eligibility

Any person who is 18 years of age or older, a citizen of the state, a resident of the community college district, a registered voter, and who is not disqualified by the Constitution or laws of the state from holding a civil office, is eligible to be elected or appointed a member of the Board of Trustees without further qualifications.

II. Number of Trustees and Term of Office

A. The Board of Trustees consists of five members elected by District for terms of four years.

B. Terms of two members expire on the second Friday in December in one even-numbered year and those of the other three members in the next succeeding even-numbered year (statewide general election).

C. Terms of office commence on the second Friday in December following the election in November in even-numbered years.

III. Elections

Notice of elections shall be posted and the election held on the same day as the statewide general election in November.

IV. Vacancies

A. If a vacancy occurs or a resignation is filed with the County Superintendent of Schools containing a deferred effective date, the Board of Trustees shall within 60 days of the vacancy or filing of deferred resignation call an election or make a provisional appointment to fill the vacancy. The Board member may not defer the effective date of his/her resignation for more than 60 days after he or she files the resignation. In the event the Board fails to make a provisional appointment or call an election within the 60 day period, the county superintendent of schools shall order an election to fill the vacancy. No special election or appointment to fill a vacancy shall take place if the vacancy occurs within four months of the end of the term of that position.

B. If the vacancy occurs or a resignation is filed with the County Superintendent of Schools containing a deferred date within six months of, but not more than 130 days

before a regularly scheduled election and the position is not scheduled to be filled at such election, the vacancy must be filled at a special election consolidated with the regularly scheduled Board election.

Also see BP/AP 2015 Student Trustee, AP 2100 Board Elections, and BP/AP 2105 Election of Student Trustee.

Approved: 11/12/19
Reviewed: 3/14/22

AP 2105 Election of Student Trustee

Reference:
Education Code Section 72023.5

The student member shall be elected by a plurality vote of those voting in a regular election of the student body. All members of the student body may vote. Normally, the election will be conducted during the spring semester and will be completed in time for the student member to take office at the May meeting of the Board of Trustees.

The following procedures govern the conduct of the election of the Student Trustee to the Board of Trustees.

1. **Supervision**
   The election will be conducted under the supervision of the Associate Dean of Student Life and/or designee who will prepare the Election Code.

2. **Election Rules and Procedures**
   All candidates must conform to the requirements set forth in BP 2015 Student Trustee and BP 2105 Election of Student Trustee and all city, county, state, and federal laws. The Associate Dean of Student Life and/or designee whose decision on such matters shall be final will arbitrate all election procedures not covered by the policy and this procedure.

   a. Each potential candidate must meet with the Associate Dean of Student Life and/or designee prior to filing a declaration of intent to run for office. At this meeting, the Associate Dean of Student Life and/or designee will review the Election Code with the candidate and the candidate will sign a statement of acknowledgment.

   b. The Associate Dean of Student Life and/or designee will determine the voting site(s).

   c. AVC student identification will be requested of all students desiring to vote.

Special Election
Upon notice to the Superintendent/President that a vacancy has occurred for any reason, including recall, the Associate Dean of Student and/or designee shall, within thirty (30) days, call for a special election.

The special election shall provide for:

- Notice communicated to the student body of the result of the recall election, if the vacancy has occurred as the result of a recall election, and arrangements for a special election;
- An application period for students to submit an application to become a candidate for the open position that will be open for at least 5 days on which classes are regularly held;
- Following such application period, a period of time no less than 5 days upon which classes are regularly held for campaigning, and;
- Voting for the special election to be concluded within 30 days following the date upon which the position became vacant.

No special election will be called if the vacancy occurs within thirty (30) days of a regularly scheduled election for the Student Trustee. The office shall become vacant if the student member becomes ineligible for the office, fails to fulfill responsibilities as listed in AP 2015 Student Trustee, resigns, is recalled or dies.

Any AVC student can recall the Student Trustee with a petition signed by 20% of the total number of enrolled students at the time of filing the petition and submitted to the Associate Dean of Student Life and/or designee. The election will be conducted in the same manner as a special election.

If the Student Trustee fails to fulfill his/her/their responsibilities, he/she/they may appeal the decision within ten (10) days to the Superintendent/President. The appeal must be in writing explaining why the Student Trustee believes he/she/they should remain in office. The decision of the Superintendent/President is final.

Also see BP/AP 2015 Student Member, BP/AP 2100 Board Elections, and BP 2105 Election of Student Member.

Approved: 7/5/05
Revised: 11/12/19
Revised: 4/10/23

AP 2110 Vacancies on the Board

References:

Education Code Sections 5090 et seq.;
Government Code Sections 1770 and 6061

When the Board of Trustees determines to fill the vacancy by appointment, the Superintendent/President shall assure that there is ample publicity to and information for prospective candidates. Publicity shall include posting in three (3) public places in the District and publication in a newspaper of general circulation.

*(**Note:** This publication, which is required by Government Code Section 6061, is only required to be published once. If there is no newspaper of general circulation published in the District, notice need not be published.)*

The posted notice of vacancy shall include directions regarding applications or nominations of legally qualified candidates. Persons applying or nominated must meet the qualifications required by law for members of the Board of Trustees.

Persons applying for appointment to the Board of Trustees shall receive a letter from the Superintendent/President containing information about the District and the Board of Trustees and including a candidate application to be completed and returned by a specific date.

The Board of Trustees may request personal interviews with candidates. Interviews will be conducted in a public hearing scheduled for that purpose.

Each Board member will review all candidate applications with final selection made by a majority vote of the Board members at a public meeting called for that purpose.

Whenever a provisional appointment is made, the Board of Trustees shall, within ten (10) days of the provisional appointment, post notices of both the actual vacancy or the filing of a deferred resignation and the provisional appointment in three (3) public places in the District. It shall also publish a notice in a newspaper of general circulation.

*(**Note:** This publication, which is required by Government Code Section 6061, is only required to be published once. If there is no newspaper of general circulation published in the District, notice need not be published.)*

The notice shall state the fact of the vacancy or resignation and the date of the occurrence of the vacancy or the date of the filing of, and the effective date of, the resignation. It shall also contain the full name of the provisional appointee to the

board, the date of appointment, and a statement that unless a petition calling for a

special election, containing a sufficient number of signatures, is filed in the office of county superintendent of schools within thirty (30) days of the date of the provisional appointment, it shall become an effective appointment.

A provisional appointment confers all powers and duties of a governing board member upon the appointee immediately following his/her/their appointment.

A person appointed to fill a vacancy shall hold office only until the next regularly scheduled election for governing board members. An election shall be held to fill the vacancy for the remainder of the unexpired term. A person elected at an election to fill the vacancy shall hold office for the remainder of the term in which the vacancy occurs or will occur.

Approved: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19
Reviewed: 11/14/22

AP 2205 Internal Audit

References:

Education Code Section 84040
ACCJC Accreditation Standard III D.5,8
Board of Governors Standards for Approval of District Applications for Independent Warrant Authority

ANTELOPE VALLEY COMMUNITY COLLEGE DISTRICT
INTERNAL AUDIT SERVICES CHARTER

Purpose

Internal Audit Services' mission is to strengthen and protect the District's value by providing independent, objective appraisals, advice and insight to reduce risk and improve operations. Internal Audit Services supports the District in the achievement of its objectives by promoting pro-active risk assessments and providing independent examinations of procedures and processes to evaluate the extent to which:

- Internal controls are consistently and effectively applied;
- Financial, property and informational assets are safeguarded;
- Resources are utilized in a prudent, efficient and cost effective manner;
- Reported information is timely, accurate and reliable;
- Policies, plans, procedures, laws and regulations are followed;
- Operational and program results achieved are consistent with the District's objectives.

Authority & Responsibility

The Internal Auditor will serve the District in a manner consistent with the mandatory guidance prescribed by the Institute of Internal Auditors (IIA), including the Standards for Professional Practice of Internal Auditors, its Core Principles, Code of Ethics and definition of Internal Auditing.

The Internal Auditor reports functionally to the Board of Trustees and administratively to the Superintendent/President. This reporting relationship provides independence from operations and promotes comprehensive consideration of audit areas.

In fulfilling its responsibilities the Internal Auditor's activities will include:

- Assisting management in pro-active risk assessment;
- Developing and implementing flexible risk-based audit plans and programs;

- Providing reports and memoranda to communicate audit results and cost effective recommendations;
- Suggesting policies and procedures where appropriate;
- Assisting management in the coordination of external audits, serving as a liaison to external auditors;
- Facilitating the resolution of audit issues with administrators who have the most direct involvement and accountability;
- Providing training to help educate District staff on fraud prevention and internal controls;
- Investigating allegations involving theft or misuse of District's assets;
- Maintaining a quality and assurance improvement program, consistent with IIA's Standards, to ensure the effectiveness and quality of the internal audit effort.

To effectively carry out its duties, the Internal Auditor is authorized full and complete access to all District records, properties and personnel relevant to the performance of reviews and investigations. The responsibility of the Internal Auditor is to handle documents and information obtained during a review in the same prudent manner required of those employees normally responsible for them.

To maintain objectivity, the Internal Auditor should have no direct authority or responsibility over the activities under review and his or her review shall not relieve others of their responsibilities. Furthermore, in order to avoid compromising independence, the Internal Auditor should not develop or implement policies or procedures, prepare records or engage in activities that would normally be reviewed as part of the audit function.

The Internal Auditor's role in various District meetings and committees should be limited to rendering advice and staying abreast of strategic, governance, and risk issues.

Also see BP 2205 Internal Audit and BP/AP 6400 Audits.

Approved: 10/12/20

AP 2320 Special and Emergency Meetings

References:

Education Code Sections 72023.5 and 72129;
Government Code Sections 54956 and 54956.5

Whenever a special meeting of the Board of Trustees is called, the Superintendent/President shall cause the call and notice to be posted at least twenty-four (24) hours prior to the meeting in a location freely accessible to the public. The Superintendent/President shall also ensure that the following notices of the meeting are delivered either personally or by other means:

Written notice to each member of the Board of Trustees, including any student trustee(s).

Written notice to each local newspaper of general circulation, and each radio or television station that has previously requested in writing to be provided notice of special meetings.

The written notice must be received at least twenty-four (24) hours before the time of the meeting as set out in the notice. The notice shall specify the time and place of the special meeting and the business to be transacted or discussed. The notice may be waived by members of the governing board in writing either prior to or at the time of the meeting.

Whenever an emergency meeting of the Board of Trustees is called, the Superintendent/President shall cause notice to be provided by telephone at least one (1) hour prior to the meeting to each local newspaper of general circulation and each radio or television station that has requested notice of special meetings. If telephone services are not functioning, the Superintendent/President shall provide the newspapers, radio stations and television stations with information regarding the purpose of the meeting and any action taken at the meeting as soon after the meeting as possible.

Approved: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

AP 2340 Agendas

Reference:

Education Code Section 72121

The agenda for Board meetings is compiled by the Superintendent/President. Included in the agenda are: business, educational, operational and professional matters requiring board approval, policy issues, and informational items. The agenda is developed by the Friday before the First Monday of each month. It is distributed to the Board members for their review and preparation, on the first Monday of the month. It is made public to the news media, staff, and general public by posting on the website of the college and in the public area outside the Board Meeting Room the Thursday seventy-two (72 hours) before a regularly scheduled meeting.

Also see BP 2310 Regular Meetings of the Board, BP/AP 2320 Special and Emergency Meetings, BP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP 2350 Speakers, BP/AP 2360 Minutes, BP/AP 2365 Recording, and BP/AP 3300 Public Records.

Approved: 7/5/05
Revised: 10/10/16
Revised: 9/9/19

AP 2345 Public Participation at Board Meetings

References:

Education Code Section 72121.5;
Government Code Section 54954.2

Members of the public have the right to place matters directly related to community college district business on the agenda of board meetings.

The District encourages citizens to attend board meetings and welcomes their view on pertinent subjects. In order to afford this opportunity to the public, the following procedures to address the Board of Trustees have been adopted to insure the proper functioning of Board meetings:

- Any person or group desiring to address the Board of Trustees is requested to make a written request to the Superintendent/President's Office at least three weeks prior to the meeting, summarizing the remarks to be made, so that the Board of Trustees may have knowledge of the subject in advance of the meeting. The written request will include the name and address of the responsible person.
- Any person who has submitted a request to be heard will be called on at the appropriate time.
- No member of the public may speak without being recognized by the President of the Board of Trustees.
- Each speaker will be allowed a maximum of five (5) minutes and in the case of multiple speakers, a total of thirty (30) minutes per topic. At the discretion of a majority of the Board of Trustees, these limits may be extended.
- Members of the Board of Trustees and the Superintendent/President may interrogate a speaker in order to clarify the discussion.
- Undue interruption or other interference with the orderly conduct of the Board business cannot be allowed. Defamatory or abusive remarks are always out of order. The President of the Board of Trustees may terminate the speakers' privilege of address if after being called to order he/she persists in improper conduct or remarks.

Also see BP/AP 2340 Agendas, BP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, and BP 2355 Decorum.

Approved: 11/12/19

AP 2360 Minutes

Reference:
Education Code Section 72121(a)

The President's Office is responsible for maintaining minutes of Board meetings according to current law and the provisions of the Brown Act.

The meeting minutes shall contain, at minimum, the following information:

- Meeting details, such as date, time, location, and meeting type
- Accounting of Board members present and absent
- The nature of all motions including the names of Board members making and seconding such motions and disposition
- Name and subject of public speakers
- Time of adjournment

Public comments will be summarized in the Board meeting minutes. Upon request by a speaker who is addressing the Board, a “for-the-record” statement shall be included in the Board Meeting Minutes, with the understanding that the speaker will provide a written copy of the statement at the time it is presented.

After approval by the Governing Board (normally at the following Board meeting), the approved minutes shall be maintained in the President’s office and posted on the District’s website.

Also see BP 2220 Committees of the Board, BP 2310 Regular Meetings of the Board, BP/AP 2320 Special and Emergency Meetings, BP/AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, BP 2360 Minutes, BP/AP 2365 Recording, and BP/AP 3300 Public Records.

Adopted: 11/12/19
Revised: 6/8//20
Revised: 12/13/24

AP 2365 Recording

Reference:

Government Code Section 54953.5

The Superintendent/President's office is responsible for maintaining audio recordings of Board meetings, excluding closed sessions, for a minimum of 180 days following the meeting.

The audio recordings shall be made available to the public and the news media in accordance with the California Public Records Act, Government Code Section 6250.

The agenda for each meeting shall state, in a prominent place, that the meetings are being recorded electronically.

Also see BP 2310 Regular Meetings of the Board, BP/AP 2320 Special and Emergency Meetings, BP/AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, BP/AP 2360 Minutes, BP 2365 Recording, and BP/AP 3300 Public Records.

Approved: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

AP 2410 Board Policies and Administrative Procedures

References:

Education Code Section 70902;
Accreditation Standards I.B.7, I.C.5, and IV.C.7

1. A recommendation for a change in, or new, board policy or administrative procedure from a campus-wide participatory governance committee, recognized campus constituent group, or administrator will be distributed to all faculty, Associated Student Organization (ASO), classified staff and administrators for feedback at least 30 days prior to making a recommendation to the College Coordinating Council (CCC) and Superintendent/President. The campus-wide committee, recognized constituent group, or administrator initiating the recommendation must review the feedback from the campus constituent groups prior to forwarding a final recommendation to the CCC and the Superintendent/President.

2. The CCC will review recommendations only for the purpose of determining if any part of the recommendation involves an academic and professional matter or a collective bargaining issue. Academic and professional matters and collective bargaining issues will be forwarded to the Superintendent/President and either the Academic Senate or Collective Bargaining Agent as appropriate. The Superintendent/President and the appropriate Collective Bargaining Agent or the Academic Senate will determine the most appropriate process for resolution of the issue.

3. If the recommendation does not involve an academic and professional matter or a collective bargaining issue, the Superintendent/President will either send the recommendation on to the Board or implement it. If the Superintendent/President rejects all or part of the recommendation, the Superintendent/President will communicate to the appropriate committee and the CCC the reason for the rejection in a written statement. The CCC Chair will communicate the final recommendation to all campus constituent groups.

4. When the Community College League of California (CCLC) recommends new board policies or administrative procedures, or recommends modifications to existing policies or procedures, the CCC will review the CCLC recommendations. If the recommendation is addressing an academic and professional matter or a collective bargaining issue, the Superintendent/President and the appropriate Collective Bargaining Agent or the Academic Senate will recommend adoption or modification of the proposed CCLC board policies and administrative procedures to the Board of Trustees.

5. If the board policies and administrative procedures affect all campus constituencies, the CCC will forward the CCLC board policies and administrative procedures to all

campus constituent groups and relevant committees for review and feedback along with a recommendation to adopt, modify, or reject the board policies or administrative procedures and the reasoning for the recommendation. Feedback must be solicited at least 30 days prior to making a final recommendation and the CCC must review the feedback prior to forwarding a final recommendation to the College Superintendent/President.

Approved: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

AP 2430 Delegation of Authority to the Superintendent/ President

References:

Education Code Section 70902;
Accreditation Standards IV.B.5 and IV.C.12

Duties of the Superintendent/President Related to the Board of Trustees

(a) As Chief Executive to the Board of Trustees, direct, administer, and supervise all divisions and units of the college system, with authority to delegate as may be appropriate.
(b) As Secretary to the Board of Trustees, prepare and handle the agenda and minutes for all Board meetings.
(c) Secure legal interpretations on all issues pertaining to the District.
(d) Attend meetings of the Board of Trustees or any committee meeting thereof, as deemed necessary, except when his/her own salary or employment status is being considered.
(e) Serve as an agent of the Board of Trustees in communicating board policies to District employees and the community, and to serve as liaison between District employees and the Board of Trustees.
(f) Conduct correspondence on behalf of the District.
(g) Act as advisor to the Board on all matters pertaining to the welfare of the college.
(h) Organize material, analyze relevant information, compile facts, and make recommendations on matters to be considered by the Board of Trustees at regular or special meetings.
(i) Implement and interpret board policies.
(j) Formulate all reports required by local, county, state, and federal agencies.

Duties Related to Personnel

(a) In consultation with the Vice Presidents, nominate and recommend academic and classified personnel to the Board of Trustees for employment in the District.
(b) Make temporary emergency appointments to fill existing vacancies and authorize employment of short-term, classified, and confidential/management/supervisory personnel, subject to Board ratification.
(c) Assign, subject to Board approval, employees—both classified and academic—with clear definition of duties.
(d) Recommend to the Board of Trustees, promotions, transfers, and dismissals as circumstances warrant.
(e) Promote professional study and improvement, and other forms of in-service professional growth among academic employees.
(f) Provide for continuous evaluation of academic and classified personnel.
(g) Evaluate District-level administrators under his/her supervisory jurisdiction.

Duties Related to the Public

(a) Represent the District in the community by interpreting the educational system and all college activities to organizations, the press, and other civic agencies.
(b) Coordinate and supervise activities of personnel responsible for release of information concerning college activities to the public.
(c) Coordinate the endeavors of advisory committees as needed.
(d) Serve on regional and state committees and participate in conferences for the development of appropriate county, state, or national educational policies.
(e) Serve on community-based committees, service clubs, and various community organizations.

Duties Related to Administration and Supervision

(a) Be responsible for the general organization and administration of the college.
(b) Define and delegate to administrative and supervisory personnel specific duties and assignments.
(c) Supervise the Institutional Advancement and Foundation Office and its personnel in the development of an effective community relations, alumni relations, and development program.
(d) In consultation with the Executive Director of Business Services, advise the Executive Director of Facilities Planning in developing new plant facilities, and in the rehabilitation of existing structures, and the supervision, maintenance, and operation of the facilities and grounds.
(e) Supervise the preparation of the college budget.
(f) Provide for the supervision of instruction and curriculum development.
(g) Directly supervise the three Vice Presidents, the Executive Assistant,
(h) (Superintendent/President's Office), the Executive Director of Business Services, Executive Director of Information Technology Services, Executive Director of Facilities Planning, Dean of Institutional Effectiveness, Research & Planning, Executive Director of Marketing & Public Information and the Executive Director of Foundation.

Miscellaneous Duties

(a) In case of emergency or disaster, act in accordance with the gravity of the situation and circumstances created by such emergency, assemble an emergency action team, and submit a report of action taken to the Board of Trustees.
(b) Delegate to subordinates any of the authority and duties entrusted to him/her by the Board of Trustees but retain responsibility for the execution of authority and powers so delegated.
(c) Perform other duties characteristically assigned to the chief executive and administrative official of the District and exercise discretionary authority over all matters, within legal limits, not covered by board policy.
(d) Assure the implementation of statutes, regulations, and governing board policies and assures that institutional practices are consistent with institutional mission and

policies, including effective control of budget and expenditures.

Approved: 7/5/05
Revised: 2/12/07
Reviewed: 8/8/16
Revised: 9/9/19

AP 2431 Superintendent/President Selection

References:

Title 5 Sections 53000 et seq.
Accreditation Standards IV.B and IV.C.3

The Board of Trustees shall select a Superintendent/President for a term not to exceed four (4) years. The remuneration and conditions of employment shall be established by contractual provisions with the Board of Trustees. The search process shall include the following.

A District employee will be appointed, or a consultant will be hired, by the Board of Trustees to coordinate the search process. The presidential search coordinator, or a search committee member if a consultant is hired as the coordinator, will be designated by the Board of Trustees to chair the Search Committee.

The search committee will consist of at least one member from each campus constituent group. Each constituent group will select the person(s) that will represent them on the committee. The College Coordinating Council will determine the number of additional search committee members, if any, from each constituent group.

In consultation with the Assistant Superintendent/Vice President of Human Resources and Employee Relations, the Search Committee Chair will be responsible for developing a job announcement, timeline, and recruitment process, as well as the scheduling of search committee meetings, interviews, candidate open forums, and all other aspects of the search process.

The search committee will recommend a minimum of three candidates to the Board of Trustees for consideration.

Approved: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

AP 2435 Evaluation of the Superintendent/President

Reference:

Education Code Section 87663;
Accreditation Standards IV.B and IV.C.3

The Board of Trustees and the Superintendent/President shall meet annually by June 30th, to establish the Superintendent/President's performance goals and objectives for the academic year. These performance goals and objectives shall be reduced to writing and shall be based on the duties and responsibilities set forth in statute, board policy, and the employment contract and any other criteria identified by the Board of Trustees. These performance goals and objectives shall be the basis for evaluation of the Superintendent/ President as provided in this section.

The Board of Trustees shall annually devote a portion of at least one (1) meeting during the month of June, unless a different time is mutually agreed to by the parties to this Agreement, to a discussion and evaluation of the performance and working relationships between the Superintendent/President and the Board of Trustees.

Also see BP 2435 Evaluation of the Superintendent/President and AP 7150 Evaluation of Employees.

Approved: 7/5/05
Revised: 9/12/16
Revised: 9/9/19
Revised: 2/8/21

AP 2510 Participation in Local Decision-Making

Reference:

Education Code Section 70902(b)(7); Title 5, Sections 53200 et seq; 51023.5; 51023.7
Accreditation Standard IV.A.2, IV.A.5

ADMINISTRATIVE PROCEDURES RELATED TO PARTICIPATORY GOVERNANCE

The faculty, students, staff, and administration of Antelope Valley Community College District have developed the following procedures to fulfill the statutory requirements of Title 5 related to Participatory Governance.

Procedures for Participatory Governance Committees and Academic and Professional Matters:

A. Procedures related to participatory governance committees:

1. All collegewide participatory governance committees will abide by the "Participatory Governance Committee Operating Procedures" in Appendix I. Academic Senate committees will operate in accord with Senate guidelines.
2. To insure "effective participation," collegewide participatory governance committees shall include representatives from constituencies directly affected by the recommendation and representatives who also have expertise related to the role and purpose of the committee, whenever possible.
3. The College Coordinating Council (CCC) will determine the role and function of collegewide participatory governance committees and specify the membership and terms of those committees. In addition, the CCC will review the role, function and membership of all collegewide participatory governance committees at least every three years and modify as needed. Participatory governance committees may request that the CCC review their role, function, or membership at any time for possible modification.
4. Each constituent group represented on the College Coordinating Council will determine the process by which it appoints representatives to collegewide participatory governance committees.
5. Each collegewide standing committee will determine if any part of an item or issue before it is related to an academic and professional matter, or a collective bargaining issue, using the guidelines listed in Appendix II, and refer that part to the College Superintendent/President and the Academic Senate or Collective Bargaining Agent, as appropriate, for consideration.

B. Procedures for reaching agreement on Academic and Professional Matters:

1. Recommendations related to Academic and Professional Matters, where the Board relies primarily on the Academic Senate, will be submitted to the Board of Trustees for consideration, via the Superintendent/President. If the recommendations of the Academic Senate are not accepted, the Board will communicate the "compelling reasons or legal liability" to the Academic Senate in a written statement.
2. For those Academic and Professional Matters that require mutual agreement, the Mutual Agreement Council will solicit feedback from the Board of Trustees and the Academic Senate, and may solicit feedback from other college constituent groups if needed. The Mutual Agreement Council will deliberate until mutual agreement is reached between the Board of Trustees, or their designees, and the Academic Senate.

3. If mutual agreement is reached, the Board will put the new policy into effect unless legal liability or substantial fiscal hardship can be demonstrated. If mutual agreement cannot be reached and a policy currently exists, the current policy remains in effect, unless legal liability or substantial fiscal hardship can be demonstrated. Both the Board of Trustees, or their designees, and the Academic Senate will communicate in a joint statement the reasons that agreement cannot be reached.
4. Mutual agreements between the Academic Senate and the Board of Trustees, or their designees, will be placed on the next scheduled Board Agenda as an informative report. Mutual agreements requiring Board approval will be submitted at a subsequent meeting as a communication for approval.
5. The Mutual Agreement Council will also serve as a forum for the President's Executive Council and Senate Executive Committee to share information and discuss concerns about academic and professional matters.

<u>AVCCD Governance Councils and Committees</u>:

A. College Coordinating Council
B. Mutual Agreement Council
C. Strategic Planning & Budget Council
D. Collegewide Participatory Governance Committees
    1. Staff Development Committee
    2. Information Technology Committee
    3. Matriculation Committee
    4. Equal Employment Opportunity Advisory Committee
    5. Campus Safety Committee
    6. Calendar Committee
    7. Legislative Committee
    8. Enrollment Management Committee
E. Academic Senate Standing Committees
    1. Academic Policies & Procedures Committee
    2. Faculty Professional Development Committee
    3. Honors Program Committee
    4. Distance Education Committee
    5. Student Learning Outcomes Committee
    6. Equivalency Committee
    7. Senate Grant Program Committee

<u>Membership and Functions of Governance Councils</u>:

A. College Coordinating Council

    (Membership)

1. Superintendent/President and/or Vice Presidents (one vote) Representing the Board of Trustees
2. Academic Senate President
3. Administrative Council Representative
4. President of Faculty Exclusive Bargaining Unit
5. President of Classified Exclusive Bargaining Unit
6. Confidential/Management/Supervisory Unit Representative
7. Associated Student Organization Representative

(Function)

a) The College Coordinating Council will serve as the coordinating body for governance issues at Antelope Valley College, except academic and professional matters and collective bargaining issues. The Council will have four main functions: issue management, providing a communication network for distributing information to all college constituent groups, determining the decision-making and recommending authority of collegewide participatory governance committees, and submitting recommendations to the President in areas of "effective participation".

b) Issue management means the Council will determine the appropriate governance committee or process to address any new issue or task that is not already assigned to an existing committee or process. When the Council assigns an issue or task to an existing or a newly created committee, the Council will specify in writing the nature and scope of the assignment, if the committee has decision-making or recommending authority, the appropriate reporting process, and a timeline for completion of the assignment.

c) If an issue before the Council involves an academic and professional matter, it will be referred to the Academic Senate and the President's Executive Council for consideration. If an issue before the Council involves collective bargaining matters, it will be referred to the affected Collective Bargaining Unit and the Superintendent/President for deliberation.

d) When a collegewide participatory governance committee makes a recommendation that only requires "effective participation" of faculty, staff and students, the College Coordinating Council will consider the recommendation and communicate the committee's recommendation to all college constituent groups.

e) The Council may address an issue itself, when a recommendation cannot be made in a timely manner by another committee or process, or the Council determines that **not** taking action will expose the district to legal liability or cause substantial fiscal hardship. The Council may also make a recommendation to the Superintendent/President when no existing or new committee or process is deemed appropriate for handling the issue, or a committee or constituent group requests a recommendation from the Council regarding an issue.

f) The Council shall seek consensus as the basis for making decisions. However, when consensus cannot be reached, the Council may take action if six out of seven Council members are in agreement. When a resolution before the Council does not have the required "6 out of 7" members in favor, the status quo remains in effect until such time as a mutually acceptable resolution can be negotiated and agreed to by 6 of the 7 members of the Council. The Council will determine, by consensus, criteria and a process for emergency and fast-track decision-making to be used when waiting until the next regular Council meeting would not be in the best interest of the district. All Council members have a single vote and the meetings of the Council shall be open.

g) The Council will review the purpose/function and scope of decision-making/recommending authority of each college standing committee every three years. Any recommendation for change in purpose or scope of a committee, including the dissolution of the committee, will be presented to college constituent groups for feedback. All feedback will be shared with the affected committee. The Council and the affected committee will discuss the recommendation and the feedback from constituent groups with the goal of reaching consensus. If consensus is reached, the purpose/function and/or decision-making/recommending authority will be changed. If consensus cannot be reached, the Council may still make changes in these areas if six of seven Council members are in agreement with the change.

h) If a proposed change in purpose/function involves an academic and professional matter, the recommendation and feedback from constituent groups will be forwarded to the Mutual Agreement Council (MAC) for deliberation. If mutual agreement is reached by the MAC, the purpose will be changed. If mutual agreement cannot be reached, the purpose/function of the committee remains the same in accord with the provisions of Title 5.

B. Mutual Agreement Council

(Membership)

1. President's Executive Council
2. Senate Executive Committee

(Function)

The Mutual Agreement Council consists of the President's Executive Council and the Senate Executive Committee and its purpose is to consult and deliberate with the intention of reaching mutual agreement between the Academic Senate and the Board of Trustees on academic and professional matters 6, 7, 9, 10 and 11 of Section 53200 in Title 5. "The governing board, or its designees, and the academic senate shall reach mutual agreement by written resolution, regulation, or policy of the governing board effectuating such recommendations."

C. Strategic Planning & Budget Council

(Membership)

1. Superintendent/President - Ex-Officio
2. Academic Senate President (Co-chair)
3. Dean of Institutional Effectiveness, Research and Planning (Co-chair)
4. College Vice Presidents (4)
5. Faculty Union Representative (1)
6. Student Representatives (2)
7. Faculty Representatives (5 – 1 transfer, 1 student services, 1 instructional resources, 1 vocational, 1 adjunct)
8. Classified Representatives (5)
9. Confidential/Management/Supervisory Representative (1)
10. Deans/Directors Representatives (2)
11. Director of Facilities Planning and Campus Development
12. Director of Information Technology Services

13. Executive Director of Institutional Advancement and Foundation

14. Director of Public and Governmental Relations

15. Enrollment Management Committee Co-chair

(Function)

The Strategic Planning & Budget Council (SPBC) is a shared governance council that provides oversight and monitoring of the various planning documents within the institution in order to accomplish the mission and goals of the district. SPBC utilizes the Educational Master Plan, which is the district's strategic plan, to review the mission, vision, values, and practices of the institution and to monitor and modify the Strategic Goals and the Institutional Learning Outcomes.

The council reviews the annual budget requests brought forward by the Budget Subcommittee and makes a recommendation to the Superintendent/President to fund those requests that utilize institutional resources most efficiently in accomplishing the district's strategic goals and improving the Institutional Learning Outcomes. SPBC works collegially with the Superintendent/President to recommend budget priorities in a timely fashion. The Superintendent/President may recommend budget expenditures to the Board of Trustees without consensus of the SPBC in those instances of legal and fiscal responsibility, as cited in both Education Code and Title 5. The Superintendent/President submits budget recommendations to the Board of Trustees for approval.

In order to function most efficiently and to support and execute the Educational Master Plan, members of the SPBC are assigned to the following subgroups/subcommittee:

- Facilities: Based on the findings of the Educational Master Plan, responsible for developing and evaluating the effectiveness of the Facilities Master Plan, which oversees the district's long-range infrastructure, building, and parking needs.
- Human Resources: Responsible for creating a Human Resources Plan that includes a long-range Staffing Plan to support the program needs identified in the Educational Master Plan.
- Finance: Responsible for developing a Finance Plan to analyze and determine the financial impact and necessary resources to implement the Facilities, Human Resources, Technology, and Enrollment Management plans.
- Communications: Responsible for developing, implementing, and evaluating a marketing and communications plan with strategies to increase communications with our internal and external constituents. Responsible for disseminating information to the campus and general community through e-mail, the website, myAVC, and the SPBC Annual Review.
- Educational Master Plan: Responsible for annually reviewing the Educational Master Plan to ensure that the District's ongoing needs are met.
- Budget Subcommittee: Responsible for evaluating and prioritizing the annual budget requests to most efficiently utilize institutional resources and present those recommendations to the SPBC.

APPENDIX I

"Participatory Governance Committee Operating Procedures"

Each committee will have a statement of purpose/function in accord with the district mission and a membership list, along with the minimum number and frequency of meetings that will be held during the academic year. In addition, each committee will have a statement of reporting responsibilities to

individuals, committees or constituent groups and publish this information to all district employees. Committees will make decisions or recommendations through consensus.

Each committee will also circulate a "Call for Agenda Items" five working days prior to a meeting and distribute to members and post an agenda two working days prior to a meeting. Each committee will also distribute to members and post a draft of unapproved minutes within ten working days after a meeting. Minutes will include a brief summary of discussion regarding actions taken, including motions made, seconded, passed or defeated. On an annual basis, each committee will review its activities and submit a year-end report to whichever reporting body it is accountable. In most instances, reports would be made to the College Coordinating Council, Superintendent/President, or appropriate administrator. The year-end report will include accomplishments, preview issues for the coming year, and make recommendations for change in membership or function.

APPENDIX II

"Criteria for Committees to Use in Determining if an Item is an Academic and Professional Matter or a Collective Bargaining Issue"

In doing their work, committees, particularly the chair(s), must recognize which items/issues under discussion are subjects of collective bargaining (CB) or are academic and professional matters (APM). Unless specifically asked to handle a CB item or an APM, the committee should not. In addition, each participatory governance committee should assure effective participation of all parties, as well as effective communication with the College Coordinating Council (CCC). As committees forge recommendations, the committee chair is responsible for assuring the following steps have been completed:

❑ Verify that the topic is not CB or APM (unless the CB/APM has been assigned to the committee)

❑ Develop recommendation/policy with input from all representatives

---if representatives are not attending, committee chair notifies constituency president

---ask regularly if representatives have consulted with their constituency

---consult with CCC if stuck, hit controversy or need clarification

❑ Disseminate to campus via mailbox or email prior to completing last draft of recommendation/policy and give the campus 2 weeks to respond to any issues

❑ Consider campus input, complete and send to the Superintendent/President and the CCC

❑ If CB, send to presidents of college and union (s); if APM, send to presidents of college and senate

COLLECTIVE BARGAINING

salaries--steps, columns, merit pay, rate of pay for stipends, bonuses, reassigned time, overtime,

placement & advancement benefits

leaves, vacations, holidays

union & district rights

grievance, arbitration & evaluations

discipline procedures.

academic freedom

committees that deal with CB items, such as calendar, classified: as it relates to work hours and calendar year for classified, certificated: as it relates to academic year and work hours

discrimination—sex, race, religion etc

job assignments, reclassification & reassignment

seniority, promotions, retirement

office space & parking

graduation attendance

preparation time

tools/equipment: access to computer, telephone and equipment necessary for the job

training (impact on wages/hours, such as sabbaticals, staff development, flex) & travel

contracting out of bargaining unit work

work load/class size/work hours/work days

ACADEMIC AND PROFESSIONAL MATTERS

curriculum, including establishing prerequisities

degree and certificate requirements

grading policies

education program development

standards or policies regarding student preparation and success

district and college governance structures as related to faculty roles

faculty roles and involvement in accreditation

policies for faculty professional development activities---(staff development, flex,

sabbaticals, faculty academy, senate grant program)

processes for program review

processes for planning and budget

APPENDIX III

Other Statutory Requirements related to Participation in Local Decision-making

- Ed Code 66450: *Distribution of academic presentations*

Pursuant to Ed. Code Section 66450-66452, anyone (other than the instructor of record) making a recording in any medium of a classroom presentation cannot use the recording for financial or economic gain. Students who are found to be in violation of this section will be subject to disciplinary measures. All persons found to be in violation of this section may be subject to legal action. Distribution of classroom information or materials requires prior permission from the instructor of record.

Students will be informed of this regulation through posting in the college catalog and the Antelope Valley College website.

See Board Policy #5500

- Ed Code 87458: *Administrative retreat rights*

The process by which the board of trustees determines retreat rights of administrators shall be developed and agreed upon jointly by representatives of the board and the academic senate, and the board relies primarily upon the advice and judgment of the academic senate to determine that the administrator possesses the minimum qualifications for employment as a faculty member.
See Administrative Procedure #7250

- Ed Code 87359: *Equivalencies to minimum qualifications*

The process and criteria used to determine that individual faculty members who do not meet the applicable minimum qualifications specified in Ed. Code 87356 shall be developed and agreed upon jointly by representatives of the board of trustees and the academic senate. The board shall rely primarily upon the advice and judgment of the academic senate to determine that faculty members possess qualifications that are at least equivalent to the applicable minimum qualifications.

Equivalencies for each discipline will be determined by full-time faculty from the respective disciplines and submitted to the Academic Senate for approval. Equivalencies must be approved by the Academic Senate and available to the Human Resources Office prior to screening of applicants.

See Administrative Procedure #7211

- Ed Code 87360: *Faculty hiring*

Hiring criteria, policies, and procedures for new faculty members shall be developed and agreed upon jointly by representatives of the board of trustees and the academic senate.
See Administrative Procedure #7120

- Ed Code 87610.1: *Faculty tenure*

  The faculty's exclusive representative shall consult with the academic senate prior to engaging in collective bargaining on procedures related to tenure evaluation procedures.

See Administrative Procedure #7210

- Ed Code 87663: *Faculty evaluation*

The board of trustees, in consultation with the faculty, shall adopt rules and regulations establishing the specific procedures for the evaluation of its contract and regular employees on an individual basis and setting forth reasonable but specific standards which it expects its faculty to meet in the performance of their duties. Such procedures and standards shall be uniform for all contract employees with similar duties and all regular employees with similar duties.

See Administrative Procedure #7150

- Ed Code 87743.2: *Faculty service areas*

The faculty's exclusive representative shall consult with the academic senate in developing its proposals for establishing faculty service areas.
See Administrative Procedure #7211

- Title 5 55022: *Curriculum committee*

Curriculum Committee. The college and/or district curriculum committee (Academic Policies and Procedures Committee) recommending the course shall be established by the mutual agreement of the college and/or district administration and the academic senate. The committee shall be either a committee of the academic senate or a committee that includes faculty and is otherwise comprised

in a way that is mutually agreeable to the college and/or district administration and the academic senate.

In order to fulfill the mandate of Title 5, Section 55022, the Board of Trustees and the Academic Senate mutually agree to establish a curriculum committee, referred to as the Academic Policies and Procedures Committee, comprised of members from each faculty division and co-chaired by a full-time faculty member and the vice president of academic affairs.

- Title 5 53204: *Academic senate/union agreements*

Nothing in these administrative procedures shall be construed to impinge upon the due process rights of faculty, nor detract from any negotiated agreements between collective bargaining representatives and district governing boards. It is the intent of the Board of Governors to respect agreements between academic senates and collective bargaining representatives as to how they will consult, collaborate, share, or delegate among themselves the responsibilities that are or may be delegated to academic senates pursuant to these regulations.

Glossary of Terms

1. Academic Senate

   An organization representing faculty, whose primary function is to consult collegially with the governing board of a district and/or the administration of a college as their representative. The role of the academic Senate constitutes a delegation of authority; by regulation local governing boards are required to consult collegially with the academic Senate on academic and professional matters. (Title 5 §53200-53201) (Ed Code §70901)

2. Ad-Hoc

   A group of individuals working on a one-time task

3. College Coordinating Council (CCC)

   The College Coordinating council is a governance group of district constituent leaders, established to respond to changing conditions in the institution within a participatory governance framework.

4. Collegewide Participatory Governance Committee

   A committee that functions under the operating guidelines of the College Coordinating Council.

5. Consensus

   A decision-making process used to resolve conflict creatively and with general agreement. Complete unanimity is not the goal. Each individual should accept the group's decision on the basis of logic and feasibility.

6. Constituent

   Individual members of any represented group.

7. Effective Participation of Faculty Outside of Academic and Professional Matters

   Faculty shall be provided with opportunities to participate on matters affecting them. (Title 5 §51023)

8. Effective Participation of Staff

   a) Staff shall be provided with opportunities to participate in the formulation and development of district and college policies and procedures. Governing boards should solicit input of staff on matters affecting them. Delegation of authority does not extend to staff. The policies and

procedures of the governing board shall ensure that the recommendations and opinions of staff are given every reasonable consideration. (Title 5 §51023.5)

b) Except in unforeseeable, emergency situations, the governing board shall not take action on a matter having a significant effect on staff until it has provided staff with an opportunity to participate in the formulation of the policy or procedure or the joint development of recommendations regarding the action.

Governing board procedures shall ensure that at the district and college levels, recommendations and positions developed by staff are given every reasonable consideration. (Title 5 §51023.5)

9. Effective Participation of Students

a) Students shall be provided an opportunity to participate in the formulation and development of district and college policies and procedures that have or will have a significant effect on students. This right includes the opportunity to participate in processes for jointly developing recommendations to the governing board regarding such policies and procedures. Delegation of authority does not extend to students.

b) Except in unforeseeable, emergency situations, the governing board shall not take action on a matter having a significant effect on students until it has provided students with an opportunity to participate in the formulation of the policy or procedure or the joint development of recommendations regarding the action.

Governing board procedures shall ensure that at the district and college levels, recommendations and positions developed by students are given every reasonable consideration. (Title 5 §51023.7)

10. Exceptional Circumstances

The regulations do not define the terms “exceptional circumstances” and “compelling reasons,” and these terms are not intended to have a legal definition. These terms mean that Boards must usually accept Senate recommendations in relation to academic and professional matters. In instances where a recommendation is not accepted, the Board’s decision must be in writing, based on a clear and substantive rationale which puts the explanation for the decision in an accurate, appropriate, and relevant context. (Title 5 §53203 - d.2).

11. Participatory Governance

Effective participatory governance includes collectively sharing ideas and formulating good recommendations to present to Boards of Trustees or their designee. It is the responsibility of the Board to focus on the needs and best interests of the district as a whole.

Participatory governance is not effective when the participating entities interpret their roles to include final approval of policies, procedures or budgets. (May 19, 1999 Report to the Consultation Council on the Effectiveness of Faculty, Staff and Student Participation in College and District Governance.)

12. Recommendations

Committee makes a “decision” of what to recommend to appropriate bodies (i.e., Academic Senate, Superintendent/President, or Board of Trustees). (Title 5 §53203(d).)

13. Senate Standing Committee

A committee formed by the Academic Senate on academic and professional matters assigned to it.

14. Taskforce

A group carrying out a specific task.

15. Title 5

The California Code of Regulations specific to education. (California Code of Regulation 1/99 Update).

16. Subgroup

A group of individuals assigned by the Strategic Planning and Budget Council to formulate recommendations relating to a designated institutional function or interest including Human Resources, Facilities, Communication, Educational Master Plan, Budget Subcommittee, and Finance.

7/5/05
Revised: 4/14/08
Revised: 12/14/09
Revised: 4/9/12

AP 2610 Presentation of Initial Collective Bargaining Proposals

Reference:

Government Code Section 3547

Whenever an initial collective bargaining proposal is received from an exclusive representative of District employees, or whenever the District's own negotiator presents an initial proposal, the following actions must be taken at public meetings of the Board of Trustees:

- The exclusive representative or the District must present the initial collective bargaining proposal orally or in writing to the Board of Trustees at a public meeting.

- The public shall have an opportunity to respond to the exclusive representative's or District's initial proposal at a subsequent public Board of Trustees meeting. The opportunity for public response shall appear on the Board of Trustees' regular agenda. Public response shall be taken in accordance with the Board of Trustees policies regarding speakers. It is the intention of the Board of Trustees to provide sufficient notice such that successor agreements can be reached prior to expiration of enforce agreements.

- After the public has an opportunity of at least 30 days to respond to an initial proposal presented by the District, the Board of Trustees shall, at the same meeting or a subsequent meeting, adopt the District's initial proposal. The adoption shall be indicated as a separate action item on the Board of Trustees agenda. There shall be no amendment of the District's initial proposal unless the public is again afforded a responsible opportunity to respond to the proposed amendment at a public meeting.

- If new subjects of meeting and negotiating arise after the presentation of initial proposals, the following procedure shall be followed: all new subjects of meeting and negotiating, whether proposed by the exclusive representative or the District, shall be posted by the District in the same public place as it posts its agendas within twenty-four (24) hours after their presentation in negotiations.

- When a request to reopen a collective bargaining agreement, as required by the agreement, is received from an exclusive representative or is made by the District, the public notice procedure outlined in this procedure shall be followed.

- When the District and the exclusive representative agree to amend an executed collective bargaining agreement in accordance with the agreement, the following procedure shall be followed:

The amendment shall appear on the agenda as a notice item, for action at a subsequent Board of Trustees meeting.

The public shall have an opportunity to respond to the amendment at a subsequent Board of Trustees meeting. The public response shall be indicated on the agenda.

Also see BP 2610 Presentation of Initial Collective Bargaining Proposals as well as BP 7140 Collective Bargaining.

Approved: 7/5/05
Reviewed: 9/12/16
Revised: 3/14/22

AP 2710 Conflict of Interest

References:

Government Code Sections 87105 and 87200-87210;
Title 2 Sections 18700 et seq.
2 Code of Federal Regulations Part 200.318(c) (1); and
other citations as listed below.

Incompatible Activities (Government Code Sections 1126 and 1099)
Board members and employees shall not engage in any employment or activity that is inconsistent with, incompatible with, in conflict with or inimical to the Board member's duties as an officer of the District. A board member shall not simultaneously hold two public offices that are incompatible. When two offices are incompatible, a board member shall be deemed to have forfeited the first office upon acceding to the second.

Financial Interest (Government Code Sections 1090 et seq.)
Board members and employees shall not be financially interested in any contract made by the Board of Trustees or in any contract they make in their capacity as members of the Board of Trustees or as employees.

A board member shall not be considered to be financially interested in a contract if his/her/their interest meets the definitions contained in applicable law (Government Code Section 1091.5).

A board member shall not be deemed to be financially interested in a contract if he~~/~~she/they has only a remote interest in the contract and if the remote interest is disclosed during a board meeting and noted in the official board minutes. The affected board member shall not vote or debate on the matter or attempt to influence any other member of the Board of Trustees to enter into the contract. Remote interests are specified in Government Code Section 1091 subdivision (b); they include, but are not limited to, the interest of a parent in the earnings of his/ ~~or~~ her minor child.

No Employment Allowed (Education Code Section 72103 subdivision (b))

An employee of the District may not be sworn in as an elected or appointed member of the governing board unless and until he/she/they resigns as an employee. If the employee does not resign, the employment will automatically terminate upon being sworn into office. This provision does not apply to an individual who is usually employed in an occupation other than teaching and who also is, at the time of election to the Board of Trustees, employed part time by the District to teach no more than one course per semester or quarter in the subject matter of that individual's occupation (Education Code Section 72103 subdivision (b)).

Financial Interest in a Decision (Government Code Sections 87100 et seq.)
If a board member or employee determines that he/ ~~or~~ she has a financial interest in a decision, as described in Government Code Section 87103, this determination shall be disclosed and made part of the Board's official minutes. In the case of an employee, this announcement shall be made in writing and submitted to the Board of Trustees. A board member, upon identifying a conflict of interest, or a potential conflict of interest, shall do all of the following prior to consideration of the matter.

- Publicly identify the financial interest in detail sufficient to be understood by the public;
- Recuse himself/herself/oneself from discussing and voting on the matter;
- Leave the room until after the discussion, vote, and any other disposition of the matter is concluded unless the matter is placed on the agenda reserved for uncontested matters. A board member may, however, discuss the issue during the time the public speaks on the issue.

Gifts (Government Code Section 89503)
Board members and any employees who manage public investments shall not accept from any single source in any calendar year any gifts more than the prevailing gift limitation specified in law.

Designated employees shall not accept from any single source in any calendar year any gifts more than the prevailing gift limitation specified in law if the employee would be required to report the receipt of income or gifts from that source on his/her statement of economic interests.

The above limitations on gifts do not apply to wedding gifts and gifts exchanged between individuals on birthdays, holidays**,** and other similar occasions, provided that the gifts exchanged are not substantially disproportionate in value.

Gifts of travel and related lodging and subsistence shall be subject to the above limitations except as described in Government Code Section 89506.

A gift of travel does not include travel provided by the District for board members and designated employees.

Board members and any employees who manage public investments shall not accept any honorarium, which is defined as any payment made in consideration for any speech given, article published, or attendance at any public or private gathering (Government Code Sections 89501and 89502).

Designated employees shall not accept any honorarium that is defined as any payment made in consideration for any speech given, article published, or attendance at any public or private gathering, if the employee would be required to report the receipt of income or

gifts from that source on his/her statement of economic interests. The term "honorarium" does not include:

- Earned income for personal services customarily provided in connection with a bona fide business, trade, or profession unless the sole or predominant activity of the business, trade or profession is making speeches.
- Any honorarium that is not used and, within thirty (30) days after receipt, is either returned to the donor or delivered to the District for donation into the general fund without being claimed as a deduction from income tax purposes.

Representation (Government Code 87406.3)
Elected officials and the Superintendent/President shall not, for a period of one year after leaving their position, act as an agent or attorney for, or otherwise represent for compensation, any person appearing before that local government agency.

Contracts Supported by Federal Funds (2 Code of Federal regulations Part 200.318 subdivision (c) (1))
No employee, board member, or agent of the District may participate in the selection, award, or administration of a contract supported by a federal award if he/she has a real or apparent conflict of interest. Such a conflict of interest would arise when the employee, board member, or agent, any member of his/her/their immediate family, his/her partner, or an organization which employs or is about to employ any of the parties indicated herein, has a financial or other interest in or a tangible personal benefit from a firm considered for a contract. The board members, employees, and agents of the District may neither solicit nor accept gratuities, favors, or anything of monetary value from contractors or parties to subcontracts. Disciplinary action will be taken for violations of such standards by board members, employees, or agents of the District.

Review of Conflict of Interest Policy
During the beginning of each fiscal year, there will be an annual electronic distribution of the Conflict of Interest Policy, to each employee identified in AP 2712.

Also see BP 2200 Board Duties and Responsibilities, AP 2710 Conflict of Interest, BP 2712 Conflict of Interest Code, BP 2715 Code of Ethics/Standards of Practice, BP 2716 Board Political Activity, and BP 2717 Personal Use of Public Resources – Board, and AP 3050 Institutional Code of Ethics

Approved: 7/5/05
Revised: 5/8/06
Revised: 6/13/11
Revised: 4/11/16
Revised: 12/12/16
Revised: 9/9/19
Revised: 11/14/22

AP 2712 Conflict of Interest Code

References:

Government Code Sections 87103 subdivision (e), 87300-87302, 89501, 89502 and 89503*Title 2 Section 18730*

Pursuant to Section 18730 of Title 2 of the California Code of Regulations, incorporation by reference of the terms of this regulation along with the designation of employees and the formulation of disclosure categories in Section 13 below constitute the adoption and promulgation of a conflict of interest code within the meaning of Government Code Section 87300 or the amendment of a conflict of interest code within the meaning of Government Code Section 87306 if the terms of this regulation are substituted for terms of a conflict of interest code already in effect. A code so amended or adopted and promulgated requires the reporting of reportable items in a manner substantially equivalent to the requirements of article 2 of chapter 7 of the Political Reform Act, Government Code Section s 81000 et seq. The requirements of a conflict of interest code are in addition to other requirements of the Political Reform Act, such as the general prohibition against conflicts of interest contained in Government Code Section 87100, and to other state or local laws pertaining to conflicts of interest.

Section 1. Definitions

The definitions contained in the Political Reform Act of 1974, regulations of the Fair Political Practices Commission (2 Cal. Code of Regs. sections 18100, et seq.), and any amendments to the Act or regulations, are incorporated by reference into this conflict of interest code.

Section 2. Designated Employees

The persons holding positions listed in Section 13 are designated employees. It has been determined that these persons make or participate in the making of decisions which may foreseeably have a material effect on economic interests.

Section 3. Disclosure Categories

This code does not establish any disclosure obligation for those designated employees who are also specified in Government Code Section 87200 if they are designated in this code in that same capacity or if the geographical jurisdiction of this agency is the same as or is wholly included within the jurisdiction in which those persons must report their economic interests pursuant to article 2 of chapter 7 of the Political Reform Act, Government Code Sections 87200 et seq. In addition, this code does not establish any disclosure obligation for any designated employees who are designated in a conflict of interest code for another agency, if all of the following apply:

(A) The geographical jurisdiction of this agency is the same as or is wholly included within the jurisdiction of the other agency;

(B) The disclosure assigned in the code of the other agency is the same as that required under article 2 of chapter 7 of the Political Reform Act, Government Code Section 87200; and

(C) The filing officer is the same for both agencies.[1] Such persons are covered by this code for disqualification purposes only. With respect to all other designated employees, the disclosure categories set forth in Section 13 specify which kinds of economic interests are reportable. Such a designated employee shall disclose in his/her statement of economic interests those economic interests he/she/they has which are of the kind described in the disclosure categories to which he/she/they is assigned in Section 13. It has been determined that the economic interests set forth in a designated employee's disclosure categories are the kinds of economic interests which he/she/they foreseeably can affect materially through the conduct of his/ her office.

Section 4. Statements of Economic Interests

Place of Filing. The code reviewing body shall instruct all designated employees within its code to file statements of economic interests with the agency or with the code reviewing body, as provided by the code reviewing body in the agency's conflict of interest code.[2]

Section 5. Statements of Economic

Interests Time of Filing.

(A) Initial Statements. All designated employees employed by the agency on the effective date of this code, as originally adopted, promulgated, and approved by the code reviewing body, shall file statements within 30 days after the effective date of this code. Thereafter, each person already in a position when it is designated by an amendment to this code shall file an initial statement within 30 days after the effective date of the amendment.

(B) Assuming Office Statements. All persons assuming designated positions after the effective date of this code shall file statements within 30 days after assuming the designated positions, or if subject to State Senate confirmation, 30 days after being nominated or appointed.

(C) Annual Statements. All designated employees shall file statements no later than April

[1] Designated employees who are required to file statements of economic interests under any other agency's conflict of interest code, or under article 2 for a different jurisdiction, may expand their statement of economic interests to cover reportable interests in both jurisdictions, and file copies of this expanded statement with both entities in lieu of filing separate and distinct statements, provided that each copy of such expanded statement filed in place of an original is signed and verified by the designated employee as if it were an original. See Government Code Section 81004.

[2] See Government Code Section 81010 and Title 2 Section 18115 for the duties of filing officers and persons

in agencies who make and retain copies of statements and forward the originals to the filing officer.

1.

(D) Leaving Office Statements. All persons who leave designated positions shall file statements within 30 days after leaving office.

Section 5.5. Statements for Persons Who Resign Prior to Assuming Office

Any person who resigns within 12 months of initial appointment, or within 30 days of the date of notice provided by the filing officer to file an assuming office statement, is not deemed to have assumed office or left office, provided he/she/they did not make or participate in the making of, or use his/her position to influence any decision and did not receive or become entitled to receive any form of payment as a result of his/her appointment. Such persons shall not file either an assuming or leaving office statement.

(A) Any person who resigns a position within 30 days of the date of a notice from the filing officer shall do both of the following:

(1) File a written resignation with the appointing power; and

(2) File a written statement with the filing officer declaring under penalty of perjury that during the period between appointment and resignation he/she/they did not make, participate in the making, or use the position to influence any decision of the agency or receive, or become entitled to receive, any form of payment by virtue of being appointed to the position.

Section 6. Contents of and Period Covered by Statements of Economic Interests:

(A) **Contents of Initial Statements.** Initial statements shall disclose any reportable investments, interests in real property and business positions held on the effective date of the code and income received during the 12 months prior to the effective date of the code.

(B) **Contents of Assuming Office Statements.** Assuming office statements shall disclose any reportable investments, interests in real property and business positions held on the date of assuming office or, if subject to State Senate confirmation or appointment, on the date of nomination, and income received during the 12 months prior to the date of assuming office or the date of being appointed or nominated, respectively.

(C) **Contents of Annual Statements.** Annual statements shall disclose any reportable investments, interests in real property, income and business positions held or received during the previous calendar year provided, however, that the period covered by an employee's first annual statement shall begin on the effective date of the code or the date of assuming office whichever is later.

(D) **Contents of Leaving Office Statements**. Leaving office statements shall disclose reportable investments, interests in real property, income and business positions held or received during the period between the closing date of the last statement filed and the date of leaving office.

Section 7. Manner of Reporting
Statements of economic interests shall be made on forms prescribed by the Fair Political Practices Commission and supplied by the agency, and shall contain the following information:

(A) **Investments and Real Property Disclosure**. When an investment or an interest in real property[3] is required to be reported,[4] the statement shall contain the following:

1. A statement of the nature of the investment or interest;
2. The name of the business entity in which each investment is held, and a general description of the business activity in which the business entity is engaged;
3. The address or other precise location of the real property;
4. A statement whether the fair market value of the investment or interest in real property exceeds two thousand dollars ($2,000), exceeds ten thousand dollars ($10,000), exceeds one hundred thousand dollars ($100,000), or exceeds one million dollars ($1,000,000).

(B) **Personal Income Disclosure**. When personal income is required to be reported,[5] the statement shall contain:

1. The name and address of each source of income aggregating five hundred dollars ($500) or more in value, or fifty dollars ($50) or more in value if the income was a gift, and a general description of the business activity, if any, of each source;
2. A statement whether the aggregate value of income from each source, or in the case of a loan, the highest amount owed to each source, was one thousand dollars ($1,000) or less, greater than one thousand dollars ($1,000), greater than ten thousand dollars ($10,000), or greater than one hundred thousand dollars ($100,000);
3. A description of the consideration, if any, for which the income was received;
4. In the case of a gift, the name, address and business activity of the donor and any intermediary through which the gift was made; a description of the gift; the amount or value of the gift; and the date on which the gift was received;
5. In the case of a loan, the annual interest rate, and the security, if any, given for the

[3] For the purpose of disclosure only (not disqualification), an interest in real property does not include the principal residence of the filer.
[4] Investments and interests in real property which have a fair market value of less than $2,000 are not investments and interests in real property within the meaning of the Political Reform Act. However, investments or interests in real property of an individual include those held by the individual's spouse and dependent children as well as a pro rata share of any investment or interest in real property of any business entity or trust in which the individual, spouse and dependent children own, in the aggregate, a direct, indirect or beneficial interest of 10 percent or greater.
[5] A designated employee's income includes his/ ~~or~~ her community property interest in the income of his/ ~~or~~ her spouse but does not include salary or reimbursement for expenses received from a state, local or federal government agency.

loan and the term of the loan.

(C) **Business Entity Income Disclosure**. When income of a business entity, including income of a sole proprietorship, is required to be reported,[6] the statement shall contain:

1. The name, address, and a general description of the business activity of the business entity;
2. The name of every person from whom the business entity received payments if the filer's pro rata share of gross receipts from such person was equal to or greater than ten thousand dollars ($10,000).

(D) Business Position Disclosure. When business positions are required to be reported, a designated employee shall list the name and address of each business entity in which he/ ~~or~~ she is a director, officer, partner, trustee, employee, or in which he/ ~~or~~ she holds any position of management, a description of the business activity in which the business entity is engaged, and the designated employee's position with the business entity.

(E) Acquisition or Disposal During Reporting Period. In the case of an annual or leaving office statement, if an investment or an interest in real property was partially or wholly acquired or disposed of during the period covered by the statement, the statement shall contain the date of acquisition or disposal.

Section 8. Prohibition on Receipt of Honoraria

(A) No member of a state board or commission, and no designated employee of a state or local government agency, shall accept any honorarium from any source, if the member or employee would be required to report the receipt of income or gifts from that source on his/ ~~or~~ her statement of economic interests. This section shall not apply to any part-time member of the governing board of any public institution of higher education, unless the member is also an elected official. Subdivisions (a), (b), and (c) of Government Code Section 89501 shall apply to the prohibitions in this section.

This section shall not limit or prohibit payments, advances, or reimbursements for travel and related lodging and subsistence authorized by Government Code Section 89506.

Section 8.1 Prohibition on Receipt of Gifts in Excess of $470

(A) No member of a state board or commission, and no designated employee of a state

[6] Income of a business entity is reportable if the direct, indirect or beneficial interest of the filer and the filer's spouse in the business entity aggregates a 10 percent or greater interest. In addition, the disclosure of persons who are clients or customers of a business entity is required only if the clients or customers are within one of the disclosure categories of the filer.

or local government agency, shall accept gifts with a total value of more than $470 in a calendar year from any single source, if the member or employee would be required to report the receipt of income or gifts from that source on his/her statement of economic interests. This section shall not apply to any part-time member of the governing board of any public institution of higher education, unless the member is also an elected official.

Subdivisions (e), (f), and (g) of Government Code Section 89503 shall apply to the prohibitions in this section.

Section 8.2. Loans to Public Officials

(A) No elected officer of a state or local government agency shall, from the date of his/ ~~or~~ her election to office through the date that he/ ~~or~~ she vacates office, receive a personal loan from any officer, employee, member, or consultant of the state or local government agency in which the elected officer holds office or over which the elected officer's agency has direction and control.

(B) No public official who is exempt from the state civil service system pursuant to subdivisions (c), (d), (e), (f), and (g) of Section 4 of Article VII of the Constitution shall, while he/ ~~or~~ she holds office, receive a personal loan from any officer, employee, member, or consultant of the state or local government agency in which the public official holds office or over which the public official's agency has direction and control. This subdivision shall not apply to loans made to a public official whose duties are solely secretarial, clerical, or manual.

(C) No elected officer of a state or local government agency shall, from the date of his/ ~~or~~ election to office through the date that he/ ~~or~~ she vacates office, receive a personal loan from any person who has a contract with the state or local government agency to which that elected officer has been elected or over which that elected officer's agency has direction and control. This subdivision shall not apply to loans made by banks or other financial institutions or to any indebtedness created as part of a retail installment or credit card transaction if the loan is made or the indebtedness created in the lender's regular course of business on terms available to members of the public without regard to the elected officer's official status.

(D) No public official who is exempt from the state civil service system pursuant to subdivisions (c), (d), (e), (f), and (g) of Section 4 of Article VII of the Constitution shall, while he/ ~~or~~ she holds office, receive a personal loan from any person who has a contract with the state or local government agency to which that elected officer has been elected or over which that elected officer's agency has direction and control. This subdivision shall not apply to loans made by banks or other financial institutions or to any indebtedness created as part of a retail installment or credit card transaction, if the loan is made or the indebtedness created in the lender's regular course of business on terms available to members of the public without regard to the elected officer's official

status. This subdivision shall not apply to loans made to a public official whose duties are solely secretarial, clerical, or manual.

(E) This section shall not apply to the following:

1. Loans made to the campaign committee of an elected officer or candidate for elective office.
2. Loans made by a public official's spouse, child, parent, grandparent, grandchild, brother, sister, parent-in-law, brother-in-law, sister-in-law, nephew, niece, aunt, uncle, or first cousin, or the spouse of any such persons, provided that the person making the loan is not acting as an agent or intermediary for any person not otherwise exempted under this section.
3. Loans from a person which, in the aggregate, do not exceed five hundred dollars ($500) at any given time.
4. Loans made, or offered in writing, before January 1, 1998.

Section 8.3. Loan Terms

(A) Except as set forth in subdivision (B), no elected officer of a state or local government agency shall, from the date of his/her election to office through the date he/ ~~or~~ she vacates office, receive a

personal loan of five hundred dollars ($500) or more, except when the loan is in writing and clearly states the terms of the loan, including the parties to the loan agreement, date of the loan, amount of the loan, term of the loan, date or dates when payments shall be due on the loan and the amount of the payments, and the rate of interest paid on the loan.

(B) This section shall not apply to the following types of loans:

1. Loans made to the campaign committee of the elected officer.
2. Loans made to the elected officer by his/ ~~or~~ her spouse, child, parent, grandparent, grandchild, brother, sister, parent-in-law, brother-in-law, sister-in-law, nephew, niece, aunt, uncle, or first cousin, or the spouse of any such person, provided that the person making the loan is not acting as an agent or intermediary for any person not otherwise exempted under this section.
3. Loans made, or offered in writing, before January 1, 1998.

(C) Nothing in this section shall exempt any person from any other provision of Title 9 of the Government Code.

Section 8.4. Personal Loans

(A) Except as set forth in subdivision (B), a personal loan received by any designated

employee shall become a gift to the designated employee for the purposes of this section in the following circumstances:

1. If the loan has a defined date or dates for repayment, when the statute of limitations for filing an action for default has expired.
2. If the loan has no defined date or dates for repayment, when one year has elapsed from the later of the following:
    a. The date the loan was made.
    b. The date the last payment of one hundred dollars ($100) or more was made on the loan.
    c. The date upon which the debtor has made payments on the loan aggregating to less than two hundred fifty dollars ($250) during the previous 12 months.

(B) This section shall not apply to the following types of loans:

1. A loan made to the campaign committee of an elected officer or a candidate for elective office.
2. A loan that would otherwise not be a gift as defined in this title.
3. A loan that would otherwise be a gift as set forth under subdivision (A), but on which the creditor has taken reasonable action to collect the balance due.
4. A loan that would otherwise be a gift as set forth under subdivision (A), but on which the creditor, based on reasonable business considerations, has not undertaken collection action. Except in a criminal action, a creditor who claims that a loan is not a gift on the basis of this paragraph has the burden of proving that the decision for not taking collection action was based on reasonable business considerations.
5. A loan made to a debtor who has filed for bankruptcy and the loan is ultimately discharged in bankruptcy.

(C) Nothing in this section shall exempt any person from any other provisions of Title 9 of the Government Code.

Section 9. Disqualification

No designated employee shall make, participate in making, or in any way attempt to use his/her official position to influence the making of any governmental decision which he/ she knows or has reason to know will have a reasonably foreseeable material financial effect, distinguishable from its effect on the public generally, on the official or a member of his/ ~~or~~ her immediate family or on:

(A) Any business entity in which the designated employee has a direct or indirect investment worth two thousand dollars ($2,000) or more;

(B) Any real property in which the designated employee has a direct or indirect interest

worth two thousand dollars ($2,000) or more;

(C) Any source of income, other than gifts and other than loans by a commercial lending institution in the regular course of business on terms available to the public without regard to official status, aggregating five hundred dollars ($500) or more in value provided to, received by or promised to the designated employee within 12 months prior to the time when the decision is made;

(D) Any business entity in which the designated employee is a director, officer, partner, trustee, employee, or holds any position of management; or

(E) Any donor of, or any intermediary or agent for a donor of, a gift or gifts aggregating $470 or more provided to; received by, or promised to the designated employee within twelve (12) months prior to the time when the decision is made.

Section 9.3. Legally Required Participation

No designated employee shall be prevented from making or participating in the making of any decision to the extent his/her participation is legally required for the decision to be made. The fact that the vote of a designated employee who is on a voting body is needed to break a tie does not make his/ ~~or~~ her participation legally required for purposes of this section.

Section 9.5. Disqualification of State Officers and Employees

In addition to the general disqualification provisions of section 9, no state administrative official shall make, participate in making, or use his/her official position to influence any governmental decision directly relating to any contract where the state administrative official knows or has reason to know that any party to the contract is a person with whom the state administrative official, or any member of his/ ~~or~~ her immediate family has, within 12 months prior to the time when the official action is to be taken:

(A) Engaged in a business transaction or transactions on terms not available to members of the public, regarding any investment or interest in real property; or

(B) Engaged in a business transaction or transactions on terms not available to members of the public regarding the rendering of goods or services totaling in value one thousand dollars ($1,000) or more.

Section 10. Disclosure of Disqualifying Interest

When a designated employee determines that he/ ~~or~~ she should not make a governmental decision because he/ ~~or~~ she has a disqualifying interest in it, the determination not to act may be accompanied by disclosure of the disqualifying interest.

Section 11. Assistance of the Commission and Counsel
Any designated employee who is unsure of his/ ~~or~~ her duties under this code may request assistance from the Fair Political Practices Commission pursuant to Government Code Section 83114 or from the attorney for his/ ~~or~~ her agency, provided that nothing in this section requires the attorney for the agency to issue any formal or informal opinion.

Section 12. Violations
This code has the force and effect of law. Designated employees violating any provision of this code are subject to the administrative, criminal and civil sanctions provided in the Political Reform Act, Government Code Sections 81000 - 91015. In addition, a decision in relation to which a violation of the disqualification provisions of this code or of Government Code Section 87100 or 87450 has occurred may be set aside as void pursuant to Government Code Section 91003.

Section 13. Designated Positions and Disclosure Requirements

Disclosure Categories

Category 1
A designated employee assigned to this category shall disclose:

a. Interests in real property within the boundaries of the District as well as real property within two miles of the property used or the potential site.

b. Investments and business positions in business entities and income (including receipt of gifts, loans, and travel payments) from sources of the type that engage in the acquisition or disposal of real property or are engaged in building construction or design for school districts.

Category 2
A designated employee assigned to this category shall disclose investments and business positions in business entities and income from sources which manufacture or sell food items, supplies, books, machinery or equipment of the type utilized by the administrative unit for which the designated employee is Manager, Director, Supervisor, or responsible.

Category 3
A designated employee assigned to this category shall disclose investments and business positions in business entities and income from sources which are contractors or subcontractors engaged in the performance of work or services of the type utilized by the administrative unit for which the designated employee is Manager, Director, Supervisor, or responsible.

Designated Employees	Disclosure Categories
Vice President Academic Affairs	1, 2
Vice President Student Services	1,2
Vice President Human Resources and Employee Relations	1,2
Vice President of Administrative Services	1,2
General Counsel	1,2
Executive Director of Facilities	1,2
Executive Director of Financial & Fiscal Services	1,2
Executive Director of the Foundation	1,2
Executive Director of Information Technology Services	3
Executive Director of Marketing & Public Information	2
Deans	3
Associate Dean	3

Consultants/New Positions *

*Consultants/new positions are included in the list of designated positions and shall disclose pursuant to the broadest disclosure requirements in this conflict of interest code subject to the following limitation:

The Superintendent/President may determine in writing that a particular consultant/new position, although a "designated position," is hired to perform a range of duties that are limited in scope and thus not required to fully comply with the disclosure requirements in this section. Such written determination shall include a description of the consultant's or new position's duties and based upon that description, a statement of the extent of disclosure requirements. The Superintendent/President's determination is a public record and shall be retained for public inspection in the same manner and location as this conflict of interest code.

Officials Who Manage Public Investments

It has been determined that the positions listed below manage public investments and will file a statement of economic interests pursuant to Government Code Section 87200.

- Board of Trustees
- Vice President of Administrative Services
- Superintendent/President

An individual holding one of the above listed positions may contact the Fair Political Practices Commission for assistance or written advice regarding their filing obligations if they believe that their position has been incorrectly categorized. The Fair Political Practices Commission makes the final determination whether a position is covered by Government Code Section 87200.

Also see BP 2200 Board Duties and Responsibilities, BP/AP 2710 Conflict of Interest, BP 2715 Code of Ethics/Standards of Practice, BP 2716 Board Political Activity, and BP 2717 Personal Use of Public Resources – Board.

Approved: 7/5/05
Revised: 5/8/06
Revised: 9/10/07
Revised: 6/13/11
Revised: 3/10/14
Revised: 9/12/16
Revised: 2/12/18
Revised: 11/12/19
Revised: 5/8/23

AP 2714 Distribution of Tickets or Passes

Reference:

Title 2 Section 18944.1

From time to time, the District receives tickets or passes to community facilities, events, shows, or performances for an entertainment, amusement, recreational, or similar purpose. The District will distribute these tickets or passes when attendance at the event will further the District's mission or will significantly contribute to the professional development of an employee or a member of the Board of Trustees.

The District will distribute the ticket or pass to the person who will benefit most directly or whose regular role in the District most directly relates to the facility, event, show, or performance. If more than one person would benefit equally or their role relates equally to the facility, event, show, or performance, the District will select one person to receive the ticket or pass by lot or rotation. The person receiving a ticket or pass pursuant to this procedure may not transfer the ticket or pass to any other person.

When the District provides a ticket or pass to an official of the District, the ticket or pass is not subject to the gift reporting provisions of AP 2710 Conflict of Interest, so long as the official treats the ticket or pass as income consistent with applicable state and federal income tax laws and the District reports the distribution of the ticket or pass as income to the official and on its website as set forth below.

For each ticket or pass distributed, including those which the recipient treats the ticket or pass as income consistent with applicable state and federal income tax laws according to the paragraph above, the District will complete the California Fair Political Practices Commission (FPPC) Form 802. The District will post these completed forms on its website.

Also see BP/AP 2710 Conflict of Interest and AP 2712 Conflict of Interest Code.

Approved: 6/13/11
Reviewed: 10/10/16
Revised: 9/9/19

AP 2735 Board Member Travel

References:

Education Code Section 72423;
Government Code Section 11139.8

Board members are required to comply with board policies and administrative procedures established for District employees (see BP/AP 7400 Employee Travel), including completion of travel and conference request forms. On request, the President's Office staff will assist Board members with travel arrangements and the completion of appropriate forms.

Also see BP 2735 Board Member Travel, BP/AP 6540 Insurance, and BP/AP 7400 Employee Travel.

Approved: 9/9/19

AP 2740 Board Education

Reference:

Accreditation Standard IV.C.9

All new trustees elected/appointed to the Board of Trustees of the Antelope Valley College Community College District may elect to receive an orientation packet of materials that includes:

1. A copy of the Community College League of California (CCLC) publication *Local Trustee Orientation and Education.*

2. A list of the following important documents that trustees are strongly encouraged to read and which are readily available for review:

   - Ralph M. Brown Act;
   - College's most recent accreditation self-study report and report(s) of the evaluation team (available on college's website www.avc.edu);
   - District's current adopted budget and most recent audit report (available on college's website www.avc.edu);
   - District's Educational Master Plan, Finance Plan, Facilities Plan, and Human Resources/Staffing Plan (available on college's website www.avc.edu);
   - College catalogs, class schedules, and other major District publications (available on college's website www.avc.edu);
   - Summary of the roles and responsibilities of the District and Academic Senate and the District's participatory governance process located in BP/AP 2510 Participation in Local Decision Making and the Faculty Handbook (available on college's website www.avc.edu);
   - District's collective bargaining agreements with the Antelope Valley College Federation of Teachers (AVCFT) and the Antelope Valley College Federation of Classified Employees (AVCFCE) (available on college's website www.avc.edu);
   - Summary of the interest-based bargaining process;
   - An index of adopted board policies and correlating administrative procedures (available on college's website www.avc.edu);
   - Current year Campus Goals Led by the Superintendent/President and previous year list of accomplishments related to goals;
   - College Coordinating Council procedures, which are delineated in AP 2510 Participation in Local Decision-Making (available on college's website www.avc.edu);
   - List of all college-wide and participatory governance committees;
   - List of student clubs and organizations; and

- Current Fact Book, which displays enrollment reports reflecting student demographics and enrollment patterns.

In addition to reviewing available printed and/or electronic materials, the new trustee orientation process may include the opportunity to:

1. Meet prior to taking office officially with the Superintendent/President or designee to receive materials pertinent to board meetings.
2. Meet with the Executive Director of Business Services to review the District's adopted budget.
3. Meet with the Superintendent/President and other administrative personnel to discuss roles and responsibilities.
4. Meet with the Executive Director of Institutional Advancement and Foundation and the Antelope Valley College Foundation President.

The new trustee orientation process shall include:

1. Review and signing of the conflict of interest statement.
2. Review and signing of the closed session confidentiality acknowledgement form.
3. Participation in the Community College League of California's Effective Trusteeship Workshop.
4. Participation in a retreat with the Board of Trustees, or as an alternative, an in-depth study session with the Board President.
5. Meetings with constituent groups (Academic Senate, faculty and classified unions, confidential/management/supervisory employees, deans and directors, and Associated Student Organization).

Trustees are encouraged to attend professional organization conferences as well as local and campus events.

Approved: 11/14/11
Revised: 10/10/16
Revised: 9/9/19

BP 2010 Board Membership

References:

Education Code Sections 72023, 72103, and 72104;
ACCJC Accreditation Standard IV.C.6

The Board of Trustees shall consist of five members elected by the qualified voters of the District. Members shall be elected by trustee area as defined in BP 2100 Board Elections.

Any person who meets the criteria contained in law is eligible to be elected or appointed a member of the Board of Trustees.

An employee of the District may not be sworn into office as an elected or appointed member of the Board of Trustees unless and until he/she resigns as an employee.

No member of the Board of Trustees shall, during the term for which he/she is elected, hold an incompatible office.

No member of the Board of Trustees shall, during the term for which he/she was elected, be eligible to serve on the governing board of a high school district whose boundaries are coterminous with those of the community college district.

Also see BP 2015 Student Trustee, BP 2100 Board Elections, and BP 2105 Election of Student Trustee.

Adopted: 7/5/05
Revised: 5/9/16
Revised: 9/9/19
Reviewed: 3/14/22

BP 2015 Student Trustee

Reference:

Education Code Section 72023.5

The Board of Trustees shall include one non-voting student member. The term of office shall be one year commencing on May 15.

The student member shall be enrolled in and maintain a minimum of five (5) semester units in the District, shall be in good standing in the District at the time of nomination and throughout the term of service. The student member is not required to give up employment with the District. No student shall hold the office of Student Trustee for more than two terms.

The student member shall be seated with the Board of Trustees and shall be recognized as full member of the Board of Trustees at meetings. The student member is entitled to participate in discussion of issues and receive all materials presented to members of the Board of Trustees (except for closed session). The student member shall be entitled to any mileage allowance necessary to attend board meetings to the same extent as publicly elected trustees.

On or before May 15 of each year, the Board of Trustees shall consider whether to afford the student member any of the following privileges:

- The privilege to make and second motions.
- The privilege to attend closed sessions, other than closed sessions on personnel or collective bargaining matters; at the discretion of the Board of Trustees.
- The privilege to receive compensation for meeting attendance at a level of $200.
- The privilege to serve a one-year term commencing on May 15.
- The privilege to cast an advisory vote, although the vote shall not be included in determining the vote required to carry any measure before the Board of Trustees.

Also see AP 2015 Student Trustee and BP/AP 2105 Election of Student Trustee.

Adopted: 7/5/05
Revised: 9/10/07
Revised: 7/14/08
Reviewed: 8/8/16
Revised: 9/9/19
Reviewed: 3/14/22

BP 2100 Board Elections

References:

Education Code Sections 5000 et seq. and 72036

The term of office of each trustee shall be four years, commencing on the day of the regular Board meeting in December following the election. (**NOTE:** Pursuant to Education Code Section 5017, the date shall be the second Friday in December following the general election in November.) Elections shall be held every two years, in even numbered years. Terms of trustees are staggered so that, as nearly as practical, one-half of the trustees shall be elected at each trustee election.

The Board of Trustees has provided for the election of trustees by trustee areas. Effective November 2018 election, the trustee areas are:

Area 1 – Generally encompassing west Los Angeles County, South of Palmdale, and some of the West Palmdale South of West Avenue N.

Area 2 – Generally Kern County, northern and central Lancaster.

Area 3 – Generally southwestern and eastern Lancaster south of E Avenue I.

Area 4 – Generally western and some of central Palmdale.

Area 5 – Generally some of central and eastern Palmdale, with northeastern Los Angeles County.

The election of a Board member residing in and registered to vote in the trustee area he/she seeks to represent shall be only by the registered voters of the same trustee areas.

The Superintendent/President shall submit recommendations to the Board of Trustees regarding adjustments to be made to the boundaries of each trustee area, if any adjustment is necessary, after each decennial federal census. The Superintendent/President shall submit the recommendation in time for the Board of Trustees to act as required by law.

Also see BP 2010 Board Membership.

Adopted: 7/5/05
Revised: 8/13/12
Revised: 6/12/17
Revised: 12/9/19
Reviewed: 3/14/22

BP 2105 Election of Student Trustee

References:

Education Code Sections 72023.5, and 72103

The Student Trustee shall be chosen by the students enrolled in the District as follows:

The Student Trustee shall be elected by popular vote of the student body in a general election. Normally, an election will be held in the spring semester so that the office is filled no later than the last day of the spring semester. The student member may be recalled by all the students of the student body in an election held for that purpose in accordance with AP 2105 Election of Student Trustee.

A special election shall be held if the office becomes vacant for any reason such as resignation, recall, or disqualification of an elected Student Trustee, after notice of the vacancy comes to the attention of the Superintendent/President. Special elections shall be held within 30 days after notice of the vacancy comes to the attention of the Superintendent/President. The special election will be held to fulfill the remainder of the term, unless the regular election is within thirty (30) days.

Candidates for the position may nominate themselves or be nominated by others by the filing of an application certifying that the candidate is eligible for service under the criteria set forth in California law and these policies. The election will be conducted in accordance with AP 2105 Election of Student Trustee.

Also see BP/AP 2015 Student Trustee and BP/AP 2105 Election of Student Trustee.

Adopted: 7/5/05
Revised: 1/8/07
Reviewed: 8/8/16
Revised: 12/9/19
Revised: 5/8/23

BP 2110 Vacancies on the Board

References:

Education Code Sections 5090 et seq.;
Government Code 1770

Vacancies on the Board of Trustees may be caused by any of the events specified in Government Code Section 1770 or any applicable provision in the Elections Code, or by a failure to elect. Resignations from the Board of Trustees shall be governed by Education Code Section 5090.

Within sixty (60) days of the vacancy or filing of a deferred resignation, the Board of Trustees shall either order an election or make a provisional appointment to fill the vacancy.

If an election is ordered, it shall be held on the next regular election date not less than one hundred thirty (130) days after the occurrence of the vacancy.

If a provisional appointment is made, it shall be subject to the conditions in Education Code Section 5091. The person appointed to the position shall hold office only until the next regularly scheduled election for district governing board members, when the election shall be held to fill the vacancy for the remainder of the unexpired term.

The provisional appointment will be made by a majority public vote of the board members at a public meeting.

The Superintendent/President shall establish administrative procedures to solicit applications that assure ample publicity to and information for prospective candidates. The Board of Trustees will determine the schedule and appointment process, which may include interviews at a public meeting.

Also see BP 2010 Board Membership, AP 2110 Vacancies on the Board, and BP 2750 Board Member Absence from the State.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19
Reviewed: 12/9/22

BP 2200 Board Duties and Responsibilities

Reference:

Accreditation Standard IV

The Board of Trustees governs on behalf of the citizens of the Antelope Valley Community College District in accordance with the authority granted and duties defined in Education Code Section 70902.

The Board of Trustees is committed to fulfilling its responsibilities to:

- Represent the public interest
- Assure the Board operates in an open, accessible, welcoming spirit, and maintains an anti-racist culture, at all times
- Establish policies that ensure the District operates in an anti-racist manner, define the institutional mission and set prudent, ethical, legal standards for college operations
- Hire and evaluate the Superintendent/President
- Delegate power and authority to the chief executive to effectively lead the District
- Assure fiscal health and stability
- Monitor institutional performance and educational quality
- Advocate and protect the District

Also see BP 2715 Board Code of Ethics/Standards of Practice.

Adopted: 12/11/06
Reviewed: 8/8/16
Revised: 9/9/19
Revised: 5/8/23

BP 2205 Internal Audit

References:

Education Code Section 84040; 85237.5,85266.5
ACCJC Accreditation Standard III D.5,8
Board of Governors Standards for Approval of District Applications for Independent Warrant Authority

To protect the District's value to its community, it is the commitment of the Board of Trustees to foster proactive improvement and accountability in the effectiveness, efficiency and integrity of operations.

In support of this effort and the District's fiscal independence, the Board of Trustees shall establish an Internal Audit Department to provide independent, objective appraisals, advice and insight to reduce risk and improve operations. The Internal Auditor shall report functionally to the Board of Trustees and administratively to the Superintendent/President.

Also see AP 2205 Internal Audit and BP/AP 6400 Audits.

Adopted: 11/9/20

BP 2210 Officers

Reference:
Education Code Section 72000

At the annual organizational meeting, the Board of Trustees shall elect from among its members a President, Vice President, and Clerk of the Board. The Superintendent/President shall serve as Secretary to the Board of Trustees.

The terms of officers shall be for one year.

The duties of the **President** of the Board of Trustees are:

- Preside over all meetings of the Board of Trustees;
- Call emergency and special meetings of the Board of Trustees as required by law;
- Consult with the Superintendent/President on board meeting agendas;
- Communicate with individual board members about their responsibilities;
- Participate in the orientation process for new board members;
- Assure Board of Trustees compliance with policies on board education, self-evaluation and Superintendent/President evaluation;
- Represent the Board of Trustees at official events or ensure board representation;
- Sign such documents on behalf of the Board of Trustees as may require his/her signature, and represent the District in its relations with other boards and organizations;
- Have the same rights as other members of the Board of Trustees in voting, introducing motions and resolutions, and in discussion.

The duties of the **Secretary** (Superintendent/President) to the Board of Trustees are:

- Notify members of the Board of Trustees of regular, special, emergency and adjourned meetings;
- Prepare and post board meeting agendas;
- Have prepared for adoption minutes of board meetings;

- Attend all board meetings and closed sessions, unless excused, and in such cases to assign a designee;

- Conduct the official correspondence of the Board of Trustees;

- Certify as legally required all board actions;

- Sign, when authorized by law or by board action, any documents that would otherwise require the signature of the Secretary or the Clerk of the Board of Trustees.

The duties of the **Vice President** of the Board are:

- Act as President of the Board of Trustees in the absence of the Board President;

- Perform all duties of the office of Board President in the absence of the President of the Board of Trustees.

The duties of the **Clerk** of the Board of Trustees are:

- Preside at all meetings of the Board of Trustees when the President and Vice President are absent;

- Sign the minutes of the meetings following their approval, sign such documents as may be directed by the Board of Trustees on behalf of the District, sign election notices, contracts, and all other items which require the signature of the Clerk.

The Board of Trustees does not have an official system of rotation of officers; it elects the officers each year from among all its members.

Also see BP 2305 Annual Organizational Meeting as well as BP 2740 Board Education.

Adopted: 7/5/05
Revised: 9/12/16
Revised: 9/9/19

BP 2220 Committees of the Board

Reference:

Government Code Section 54952

The Board of Trustees may by action establish committees that it determines are necessary to assist the Board of Trustees in its responsibilities. Any committee established by Board action shall comply with the requirements of the Brown Act and with these policies regarding open meetings.

Board committees that are composed solely of less than a quorum of members of the Board of Trustees, that are advisory, are not required to comply with the Brown Act, or with policies regarding open meetings, unless they are standing committees.

Board committees that are only advisory have no authority or power to act on behalf of the Board of Trustees. Findings or recommendations shall be reported to the Board of Trustees for consideration.

Adopted: 10/14/19

BP 2305 Annual Organizational Meeting

Reference:

Education Code Section 72000(c)(2)(A)

The annual organizational meeting of the Board of Trustees will be held during the month of December, not later than the 15th day of the month. The purpose of the annual organizational meeting is to elect a president, vice president, clerk, and a secretary, and conduct any other business as required by law or determined by the Board of Trustees.

Also see BP 2210 Officers.

Adopted: 7/5/05
Reviewed: 8/8/2016
Revised: 9/9/19

BP 2310 Regular Meetings of the Board

References:

Education Code Section 5017, 35143, 72000(d)
Government Code Sections 54952.2, 54953 et seq. and 54961

Regular meetings of the Board of Trustees shall be held monthly, on the second Monday of each month, except for year-end organizing meeting, which is held on the second Friday of December. Exceptions will be determined by the Board of Trustees as needed. Regular meetings of the Board of Trustees shall normally be held at Antelope Valley College, 3041 W. Avenue K, Lancaster, CA 93536, or 2301 East Palmdale Blvd., Palmdale, CA 93550.

A notice identifying the location, date, and time of each regular meeting of the Board of Trustees shall be posted at least ten (10) days prior to the meeting and shall remain posted until the day and time of the meeting. All regular meetings of the Board of Trustees shall be held within the boundaries of the District except in cases where the Board of Trustees is meeting with another local agency or is meeting with its attorney to discuss pending litigation if the attorney's office is outside the District.

All regular and special meetings of the Board of Trustees shall be open to the public, be accessible to persons with disabilities, and otherwise comply with Brown Act provisions, except as required or permitted by law.

The Board of Trustees may, by a majority vote, adjourn any meeting at any stage in the agenda, providing arrangements are made to complete the items of business on the agenda at a future meeting.

Pursuant to Government Code Section 54955, the Board of Trustees may order a meeting adjourned, providing that notice of adjournment, contained in Board minutes, is posted within 24 hours after the close of the regular meeting. Such a notice shall be posted on or near the door of the room where the regular meeting was held.

Meetings During Proclaimed States of Emergency

Prior to January 1,2024, the Board may hold a regular meeting, or special or emergency meetings as defined in BP 2320 Special and Emergency Meetings, virtually through voice or video teleconferencing services during a proclaimed state of emergency under the provisions of the Brown Act.

In order for the Board to meet virtually during a proclaimed state of emergency under the relaxed teleconference rules in the Brown Act, the Board will make findings by majority vote, as required by the Brown Act by way of a Board resolution.

If the Board elects to meet virtually during a proclaimed state of emergency, the District will comply with relevant provisions of the Brown Act regarding the posting of agendas, public access to meetings through call-in or internet-based service options, public participation,

and limits on Board action in the event of a meeting disruption due to interruption of teleconferencing services.

During proclaimed states of emergency, the Board is not required to provide a physical location from which members of the public may attend or provide public comment.

Also see BP 2315 Closed Sessions, BP/AP 2320 Special and Emergency Meetings, BP 2330 Quorum and Voting, BP/AP 2340 Agendas, and BP/AP 2360 Minutes.

Adopted: 7/5/05
Revised: 2/6/06
Reviewed: 8/8/16
Revised: 9/9/19
Revised: 3/14/22
Revised: 3/13/23

BP 2315 Closed Sessions

References:

Education Code Section 72122;
Government Code Sections 54956.8, 54956.9, 54957, 54957.1, 54957.6 and 11125.4

Closed sessions of the Board of Trustees shall only be held as permitted by applicable legal provisions including but not limited to the Brown Act, California Government Code and California Education Code. Matters discussed in closed session may include:

- the appointment, employment, evaluation of performance, discipline, or dismissal of a public employee;
- charges or complaints brought against a public employee by another person or employee, unless the accused public employee requests that the complaints or charges be heard in an open session. The employee shall be given at least twenty-four (24) hours written notice of the closed session.
- advice of counsel on pending litigation, as defined by law;
- consideration of tort liability claims as part of the District's membership in any joint powers agency formed for purposes of insurance pooling;
- real property transactions;
- threats to public security;
- review of the District's position regarding labor negotiations and giving instructions to the District's designated negotiator;
- discussion of student disciplinary action, with final action taken in public;
- conferring of honorary degrees;
- consideration of gifts from a donor who wishes to remain anonymous;
- to consider its response to a confidential final draft audit report from the Bureau of State Audits.

The agenda for each regular or special meeting shall contain information regarding whether a closed session will be held and shall identify the topics to be discussed in any closed session in the manner required by law.

After any closed session, the Board of Trustees shall reconvene in open session before adjourning and shall announce any actions taken in closed session and the vote of every member present.

All matters discussed or disclosed during a lawfully held closed session and all notes, minutes, records, or recordings made of such a closed session are confidential and shall remain confidential unless and until required to be disclosed by action of the Board of Trustees or by law.

If any person requests an opportunity to present complaints to the Board of Trustees about a specific employee, such complaints shall first be presented to the Superintendent/ President. Notice shall be given to the employee against whom the charges or complaints are directed. If the complaint is not resolved at the administrative level, the matter shall be scheduled for a closed session of the Board of Trustees. The employee shall be given at least twenty-four (24) hours written notice of the closed session and shall be given the opportunity to request that the complaints be heard in an open meeting of the Board of Trustees.

Also see BP 2310 Regular Meetings of the Board.

Adopted: 7/5/05
Revised: 9/12/16
Revised: 9/9/19

BP 2320 Special and Emergency Meetings

References:

Education Code Section 72129;
Government Code Sections 54956, 54956.5, and 54957;

Special meetings may from time to time be called by the President of the Board of Trustees or by a majority of the members of the Board of Trustees. Notice of such meetings shall be posted at least 24 hours before the time of the meeting, and shall be noticed in accordance with Brown Act. No business other than that included in the notice may be transacted or discussed.

Emergency meetings may be called by the President of the Board of Trustees when prompt action is needed because of actual or threatened disruption of public facilities under such circumstances as are permitted by the Brown Act, including work stoppage, crippling disasters, and other activity that severely impairs public health or safety.

No closed session shall be conducted during an emergency meeting, except as provided for in the Brown Act to discuss a dire emergency.

The Superintendent/President shall be responsible to ensure that notice of such meetings is provided to the local news media as required by law.

Also see AP 2320 Special and Emergency Meetings.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

BP 2330 Quorum and Voting

References:

Education Code Sections 15266, 72000 subdivision (d) (3), 81310 et seq., 81365, 81511, and 81432;
Government Code Sections 53094 and 54950 et seq.;
Code of Civil Procedure Section 1245.240;
California Constitution Article XIII A, Section 1, subdivision (b), paragraph (3) and Article XVI, Section 18, subdivision (b)

A quorum of the Board of Trustees shall consist of a simple majority, three (3) members.

The Board of Trustees shall act by majority vote of all of the membership of the Board of Trustees, except as noted below. No action shall be taken by secret ballot.

The Board of Trustees will publicly report any action taken in open session and the vote or abstention of each individual member present.

The following actions require a two-thirds (2/3) majority of all members of the Board of Trustees:

- Resolution of intention to sell or lease real property (except where a unanimous vote is required);
- Resolution of intention to dedicate or convey an easement;
- Resolution authorizing and directing the execution and delivery of a deed;
- Action to declare the District exempt from the approval requirements of a planning commission or other local land use body;
- Appropriation of funds from an undistributed reserve;
- Resolution to condemn real property;
- Resolution to pursue the authorization and issuance of bonds pursuant to paragraph (3) of subdivision (b) of Section 1 of Article XIII A of the California Constitution and subdivision (b) of Section 18 of Article XVI of the California Constitution.

The following actions require a unanimous vote of all members of the Board of Trustees:

- Resolution authorizing a sale or lease of District real property to the state, any county, city, or to any other school or community college district;
- Resolution authorizing lease of District property under a lease for the production of gas.

Also see BP 2310 Regular Meetings of the Board.

Adopted: 7/5/05

Reviewed: 8/8/16
Revised: 5/13/19
Revised: 9/9/19

BP 2340 Agendas

References:

Education Code Sections 72121 and 72121.5
Government Code Sections 6250 et seq. and 54954 et seq.

An agenda shall be posted adjacent to the place of meeting as well as on the District's Internet website at least 72 hours prior to the meeting time for regular meetings. The agenda shall include a brief description of each item of business to be transacted or discussed at the meeting. If requested, the agenda shall be provided in appropriate alternative formats so as to be accessible to persons with a disability.

No business may be acted on or discussed which is not on the agenda, except when one or more of the following apply:

- a majority decides there is an "emergency situation" as defined for emergency meetings;
- two-thirds (2/3) of the members (or all members if less than two-thirds (2/3) are present) determine there is a need for immediate action and the need to take action came to the attention of the Board of Trustees subsequent to the agenda being posted;
- an item appeared on the agenda of and was continued from a meeting held not more than five (5) days earlier.

The order of business may be changed by consent of the Board of Trustees.

The Superintendent/President shall establish administrative procedures that provide for public access to agenda information and reasonable annual fees for the service.

Members of the public may place matters directly related to the business of the District on an agenda for a board meeting by submitting a written summary of the item to the Superintendent/President. The written summary must be signed by the initiator. The Board of Trustees reserves the right to consider and take action in closed session on items submitted by members of the public as permitted or required by law.

Agendas shall be developed by the Superintendent/President in consultation with the Board President.

Agenda items submitted by members of the public must be received by the office of the Superintendent/President ten (10) days prior to the regularly scheduled board meeting.

Agenda items initiated by members of the public shall be placed on the Board's agenda

following the items of business initiated by the Board of Trustees and by staff. Any agenda item submitted by a member of the public and heard at a public meeting cannot be resubmitted before the expiration of a ninety (90) day period following the initial submission.

Also see BP 2310 Regular Meetings of the Board, BP/AP 2320 Special and Emergency Meetings, AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, BP/AP 2360 Minutes, BP/AP 2365 Recording, and BP/AP 3300 Public Records.

Adopted: 7/5/05
Reviewed: 10/10/16
Revised: 9/9/19

BP 2345 Public Participation at Board Meetings

References:

Education Code Section 72121.5
Government Code Sections 54954.3, and 54957.5

The Board of Trustees shall provide opportunities for members of the general public, including District employees, to participate in the business of the Board of Trustees.

Members of the public may bring matters directly related to the business of the District to the attention of the Board of Trustees in one of two ways:

The District places a limit on the amount of time allocated for each individual speaker; however, the District provides at least twice the allotted time to a member of the public who utilizes a translator to ensure the speakers receive the same opportunity to directly address the legislative body, unless simultaneous translation equipment is used to allow the body to hear the translated public testimony simultaneously.

1. There will be a time at each regularly scheduled board meeting for the general public to discuss items not on the agenda.

   Members wishing to present such items shall submit a written request at the beginning of the meeting to the President of the Board of Trustees that summarizes the item and provides his/her name and organizational affiliation, if any. No action may be taken by the Board of Trustees on such items.

2. Members of the public may place items on the prepared agenda in accordance with BP 2340 Agendas.

   A written summary of the item must be submitted to the Superintendent/President at least 10 days prior to the board meeting. The summary must be signed by the initiator, contain his/or her residence or business address, and organizational affiliation, if any. Items will be placed on the agenda at the discretion of the Superintendent/President.

Members of the public also may submit written communications to the Board of Trustees on items on the agenda and/or speak to agenda items at the board meeting. All such written communications shall be dated and signed by the author and shall contain the residence or business address of the author and the author's organizational affiliation, if any.

If requested, writings that are public records shall be made available in appropriate alternative formats so as to be accessible to persons with a disability.

Claims for damages are not considered communications to the Board of Trustees under this rule but shall be submitted to the District.

Also see BP/AP 2340 Agendas, AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, and BP 2355 Decorum.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 12/9/19
Revised: 11/8/21

BP 2350 Speakers

References:

Education Code Section 72121.5
Government Code Sections 54950 et seq.

Persons may speak to the Board of Trustees either on an agenda item or on other matters of interest to the public that are within the subject matter jurisdiction of the Board of Trustees.

Persons wishing to speak to matters not on the agenda shall do so at the time designated at the meeting for public comment. Pursuant to Education Code Section 72121.5, members of the public may address the Board of Trustees regarding items on the agenda as such items are taken up.

Oral presentations relating to a matter on the agenda, including those on the consent agenda, shall be heard before a vote is called on the item.

Those wishing to speak to the Board of Trustees are subject to the following:

- The President of the Board of Trustees may rule members of the public out of order if their remarks do not pertain to matters that are within the subject matter jurisdiction of the Board of Trustees or if their remarks are unduly repetitive.
- Non-scheduled substitutes may not speak in place of scheduled speakers unless alternates have been submitted on the original request.
- Employees who are members of a bargaining unit represented by an exclusive bargaining agent may address the Board of Trustees under this policy but may not attempt to negotiate terms and conditions of their employment. This policy does not prohibit any employee from addressing a collective bargaining proposal pursuant to the public notice requirements of Government Code Section 3547 and the policies of this Board implementing that section.
- Each speaker shall complete a written request (https://www.avc.edu/sites/default/files/administration/board/Public_Comment_Card.pdf) to address the Board of Trustees, which shall be presented to the Board President at the beginning of Open Session.
- The request shall include the person's name and name of the organization or group represented, if any, and a statement noting the agenda item or topic to be addressed.

- No member of the public may speak without being recognized by the President of the Board of Trustees.
- Each speaker will be allowed a maximum of three (3) minutes per topic. Thirty (30) minutes shall be the maximum time allotment for public speakers on any one subject regardless of the number of speakers at any one board meeting. At the discretion of a majority of the Board of Trustees, these time limits may be extended. A speaker utilizing a translator shall be provided at least twice the allotted time to a member of the public who utilizes a translator to ensure the speakers receive the same opportunity to directly address the legislative body, unless simultaneous translation equipment is used to allow the body to hear the translated public testimony simultaneously.
- Each speaker coming before the Board of Trustees is limited to one presentation per specific agenda item before the Board of Trustees and to one presentation per meeting on non-agenda matters.

Also see BP/AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, AP 2350 Speakers, and BP 2355 Decorum.

Adopted: 7/5/05
Revised: 11/23/09
Revised: 10/10/16
Revised: 9/9/19
Revised: 12/10/21

BP 2355 Decorum

References:

Education Code Section 72121.5;
Government Code Section 54954.3 subdivision (b)

The following will be ruled out of order by the presiding officer.

- Disrupting, disturbing, or otherwise impeding the orderly conduct of the meeting.
- Physical violence or threats of physical violence directed toward any person or property.

In the event that any meeting is willfully interrupted by the actions of one or more persons so as to render the orderly conduct of the meeting unfeasible, the person(s) may be removed from the meeting room.

Speakers who engage in such conduct may be removed from the podium and denied the opportunity to speak to the Board of Trustees for the duration of the meeting.

Before removal, a warning and a request that the person(s) curtail the disruptive activity will be made by the President of the Board of Trustees. If the behavior continues, the person(s) may be removed by a vote of the Board of Trustees, based on a finding that the person is violating this policy, and that such activity is intentional and has substantially impaired the conduct of the meeting.

If order cannot be restored by the removal in accordance with these rules of individuals who are willfully interrupting the meeting, the Board of Trustees may order the meeting room cleared and may continue in session. The Board of Trustees shall only consider matters appearing on the agenda. Representatives of the press or other news media, except those participating in the disturbance, shall be allowed to attend any session held pursuant to this rule.

Also see BP/AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, and AP 2355 Decorum and Debate Protocol.

Adopted 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19
Revised: 11/9/20

BP 2360 Minutes

References:

Education Code Section 72121(a);
Government Code Section 54957.5

The Superintendent/President shall cause minutes to be taken of all meetings of the Board of Trustees. The minutes shall record all actions taken by the Board of Trustees. The minutes shall be public records and shall be available to the public. If requested, the minutes shall be made available in appropriate alternative formats so as to be accessible to persons with a disability.

The Superintendent/President, acting in his/her/their capacity as Secretary to the Board of Trustees, shall be responsible for archiving minutes of all meetings of the Board of Trustees.

The minutes shall also record motions or resolutions as having passed or failed. Individual votes shall be recorded All matters transacted by the Board of Trustees shall be recorded in the official minutes in the form of a complete resolution, together with the accompanying vote. Minutes are to be concise, clear, and accurate.

Also see BP 2310 Regular Meetings of the Board, BP/AP 2320 Special and Emergency Meetings, BP/AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, AP 2360 Minutes, BP/AP 2365 Recording, and BP/AP 3300 Public Records.

Adopted: 7/5/05
Revised: 11/7/05
Reviewed: 8/8/16
Revised: 7/13/20
Revised: 1/13/25

BP 2365 Recording

References:

Education Code Section 72121(a);
Government Code Sections 54953.5 and 54953.6;

Any audio or video recording of an open and public Board meeting made by or at the direction of the Board of Trustees shall be subject to inspection by members of the public in accordance with the California Public Records Act, Government Code Sections 6250 et seq. The Superintendent/President is directed to enact administrative procedures to ensure that any such recordings are maintained for at least thirty (30) days following the taping or recording.

Persons attending an open and public meeting of the Board of Trustees may, at their own expense, record the proceedings with an audio or video tape recording or a still or motion picture camera or may broadcast the proceedings. However, if the Board of Trustees finds by a majority vote that the recording or broadcast cannot continue without noise, illumination, or obstruction of view that constitutes or would constitute a persistent disruption of the proceedings, any such person shall be directed by the President of the Board of Trustees to stop.

Also see BP 2310 Regular Meetings of the Board, BP/AP 2320 Special and Emergency Meetings, BP/AP 2340 Agendas, BP/AP 2345 Public Participation at Board Meetings, BP/AP 2350 Speakers, BP/AP 2360 Minutes, AP 2365 Recording, and BP/AP 3300 Public Records.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

BP 2410 Board Policies and Administrative Procedures

References:

Education Code Section 70902;
Accreditation Standards I.B.7, I.C.5, and IV.C.7

The Board of Trustees may adopt such policies as are authorized by law or determined by the Board of Trustees to be necessary for the efficient operation of the District. Board policies are intended to be statements of intent by the Board of Trustees on a specific issue within its subject matter jurisdiction.

The policies have been written to be consistent with provisions of law, but do not encompass all laws relating to District activities. All District employees are expected to know of and observe all provisions of law pertinent to their job responsibilities.

Policies of the Board of Trustees may be adopted, revised, added to, or amended at any regular board meeting by a majority vote. Proposed changes or additions shall be introduced not less than one regular meeting prior to the meeting at which action is recommended. The Board of Trustees shall regularly assess its policies for effectiveness in fulfilling the District's mission.

Administrative procedures are to be issued by the Superintendent/President as statements of method to be used in implementing board policy. Such administrative procedures shall be consistent with the intent of board policy. Administrative procedures may be revised as deemed necessary by the Superintendent/President.

The Superintendent/President shall provide each member of the Board of Trustees with revisions to existing administrative procedures at any time, and biennially with new administrative procedures from CCLC within sixty (60) days of receipt of the recommended updates. The Board of Trustees reserves the right to direct revisions of the administrative procedures should they, in the Board's judgment, be inconsistent with the Board's own policies.

Copies of all board policies and administrative procedures shall be readily available to District employees through the Superintendent/President and on the AVC website.

Also see AP 2410 Board Policies and Administrative Procedures.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

BP 2430 Delegation of Authority to the Superintendent/ President

References:

Education Code Sections 70902 subdivision (d) and 72400;
Accreditation Standards IV.B.5 and IV.C.12

The Board of Trustees delegates to the Superintendent/President the executive responsibility for administering the policies adopted by the Board of Trustees and executing all decisions of the Board of Trustees requiring administrative action.

The Superintendent/President may delegate any powers and duties entrusted to him/ ~~or~~ her by the Board of Trustees but will be specifically responsible to the Board of Trustees for the execution of such delegated powers and duties.

The Superintendent/President is empowered to reasonably interpret board policy. In situations where there is no board policy direction, the Superintendent/President shall have the power to act, but such decisions shall be subject to review by the Board of Trustees. It is the duty of the Superintendent/President to inform the Board of Trustees of such action and to recommend written board policy if one is required.

The Superintendent/President is expected to perform the duties contained in the Superintendent/President job description and fulfill other responsibilities as may be determined in annual goal-setting or evaluation sessions. The Board of Trustees, in consultation with the Superintendent/President, shall develop the job description, goals, and objectives for performance.

The Superintendent/President shall ensure that all relevant laws and regulations are complied with, and that required reports are submitted in timely fashion.

The Superintendent/President shall make available any information or give any report requested by the Board of Trustees as a whole. Individual trustee requests for information shall be met if, in the opinion of the Superintendent/President, they are not unduly burdensome or disruptive to District operations. Information provided to any trustee shall be provided to all trustees.

The Superintendent/President shall act as the professional advisor to the Board of Trustees in policy formation.

Also see AP 2430 Delegation of Authority to the Superintendent/President.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

BP 2431 Superintendent/President Selection

References:

Title 5 Sections 53000 et seq.
Accreditation Standards IV.B and IV.C.3

In the case of a Superintendent/President vacancy, the Board of Trustees shall establish a search process to fill the vacancy. The process shall be fair and open and comply with relevant regulations.

Also see AP 2431 Superintendent/President Selection.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

BP 2432 Superintendent/President Succession

References:

Education Code Sections 70902 subdivision (d) and 72400;
Title 5 Section 53021 subdivision (b)

The Board of Trustees delegates authority to the Superintendent/President to appoint an acting Superintendent/President to serve in his/~~or~~ her absence for short periods of time. The Superintendent/President will determine the succession of acting Superintendent/Presidents annually.

The Board of Trustees shall appoint an acting Superintendent/President when the Board of Trustees has determined that the Superintendent/President is unable to perform his/her duties.

Adopted: 7/5/05
Reviewed: 8/8/16
Revised: 9/9/19

BP 2435 Evaluation of the Superintendent/President

Reference:

Education Code Section 87663;
Accreditation Standard IV.C.3

The Board of Trustees shall conduct an evaluation of Superintendent/President at least annually. Such evaluation shall comply with any requirements set forth in the contract of employment with the Superintendent/President as well as this policy.

The Board of Trustees shall evaluate the Superintendent/President using an evaluation process developed and jointly agreed to by the Board of Trustees and the Superintendent/President.

The criteria for evaluation shall be based on board policy, the Superintendent/President job description, and performance goals and objectives developed in accordance with BP 2430 Delegation of Authority to the Superintendent/President.

Also see AP 2435 Evaluation of the Superintendent/ President.

Adopted: 7/5/05
Reviewed: 9/12/16
Revised: 9/9/19
Revised: 3/8/21

BP 2510 Participation in Local Decision Making

Reference:

Education Code Section 70902(b)(7); Title 5, Sections 53200 et seq., (Academic Senate), 51023.5 (staff), 51023.7 (students); Accreditation Standard IV.A

The Board is the ultimate decision-maker in those areas assigned to it by state and federal laws and regulations. In executing that responsibility, the Board is committed to its obligation to ensure that appropriate members of the District participate in developing recommended policies for board action and administrative procedures for Superintendent/President action under which the District is governed and administered. Data, both qualitative and quantitative, will be used to drive district planning and decision making.

This policy affirms the commitment to participatory governance by the faculty, students, staff, administration and Board of Trustees of Antelope Valley College. The policy also explains which constituent bodies have authority in the various decisions made in managing the college.

According to Educational Code, and AB 1725, participatory governance provides each constituency the opportunity to participate effectively in formulating the college policies and procedures that affect them. Furthermore**,** some constituencies are given rights and authority beyond that afforded by effective participation. Title 5 gives the Academic Senate the right of collegial consultation on Academic and Professional matters and Educational Code requires that the governing board and the academic senate jointly agree on policies and procedures for faculty hiring, determining equivalences to minimum qualifications of faculty, and administrative retreat rights.

In addition, Collective Bargaining Agents have the right to bargain on all matters that are mandatory subjects of bargaining and nothing in the participatory governance process shall infringe upon the rights and responsibilities of employees under collective bargaining agreements.

Each of the following shall participate as required by law in the decision-making processes of the district:

Faculty, Staff and Students---Education Code, Section 70902, (7)

This section mandates that the governing board of each community college district do all of the following:

> (7) "Establish procedures not inconsistent with minimum standards established by the board of governors to ensure faculty, staff, and students the opportunity to express their opinions at the campus level and to ensure that these opinions are given every reasonable consideration, and the right to participate effectively in district and college governance, and the right of academic senates to assume primary responsibility for making recommendations in the areas of curriculum and academic standards."
>
> In addition, Title 5, Section 51023.5 and 51023.7, related to Policies and Procedures of Staff and Student Participation in District and College Governance respectively, mandates that:
>
> "Except in unforeseeable, emergency situations, the governing board shall not take action on matters significantly affecting staff and students until it has provided staff and students an opportunity to participate in the formulation and development of those matters through appropriate structures and procedures as determined by the governing board in accordance with the provisions of this Section."

Student Participation---Title 5, Section 51023.7. Student Participation in District and College Governance.

> "District and college policies and procedures that have or will have a significant effect on students includes the following:
>
> a) Grading policies;
> b) Codes of student conduct;
> c) Academic disciplinary policies;
> d) Curriculum development;
> e) Courses or programs which should be initiated or discontinued;
> f) Processes for institutional planning and budget development;
> g) Standards and policies regarding student preparation and success;
> h) Student services planning and development;
> i) Student fees within the authority of the district to adopt; and
> (j) Any other district and college policy, procedure, or related matter that the district governing board determines will have a significant effect on students."

Constituent Groups

> "Definitions or categories of positions or groups of positions other than faculty that compose the staff of the district and its college(s) that, for the purposes of this Section, the governing board is required by law to recognize or chooses to recognize pursuant to legal authority. In addition, for the purposes of this Section, management and non-management positions or groups of positions shall be separately defined or categorized."

In addition to the Academic Senate, the groups that are recognized by the Board of Trustees at Antelope Valley College are:

a) Associated Student Organization
b) Classified Staff Collective Bargaining Agent
c) Confidential/Management/Supervisory Group
d) Faculty Collective Bargaining Agent

Academic Senate

1. *Powers,* Title 5, Section 53203.

> "The governing board of a community college district shall adopt policies for appropriate delegation of authority and responsibility to its college and/or district academic senate. Among other matters, said policies, at a minimum, shall provide that the governing board or its designees will consult collegially with the academic senate when adopting policies and procedures on academic and professional matters."
>
> "While in the process of consulting collegially, the academic senate shall retain the right to meet with or appear before the governing board with respect to the views, recommendations, or proposals of the senate. In addition, after consultation with the administration of the college and/or district, the academic senate may present its views and recommendations to the governing board."

2. *Agreements on Academic and Professional Matters*, as listed in Section 53203, Title 5, require participation of the Academic Senate, an organization whose primary function is to make recommendations with respect to academic and professional matters, and the Board of Trustees through a process of "collegial consultation", which requires either or both of the following:

(a) Rely primarily upon the advice and judgment of the Academic Senate, OR

(b) The Governing Board, or its designees, and the Academic Senate shall reach mutual agreement by written resolution, regulation, or policy of the governing board effectuating such recommendations.

3. *Rely Primarily*---The Board of Trustees of Antelope Valley College will rely primarily on the advice of the Academic Senate for policies and procedures related to the following Academic and Professional Matters:

(1) Curriculum, including establishing prerequisites.
(2) Degree and certificate requirements.
(3) Grading policies.
(4) Education program development.
(5) Standards or policies regarding student preparation and success.
(8) Policies for faculty professional development activities.

The Governing Board is also required to rely primarily on the advice and judgment of the Academic Senate in establishing policies and procedures for Faculty Hiring Criteria (Ed. Code 87360 (b) and (c), Equivalencies to Minimum Qualifications (Ed. Code 87359 (b) and Administrative Retreat Rights (Ed. Code 87458 (a). These areas may also have collective bargaining aspects.

4. *Mutual Agreement*---The Board of Trustees will come to mutual agreement with the Academic Senate for policies and procedures related to the following Academic and Professional Matters:

(6) District and college governance structures, as related to faculty roles.
(7) Faculty roles and involvement in accreditation processes, including self-study and annual reports.
(9) Processes for program review.
(10) Processes for institutional planning and budget development.
(11) Other academic and professional matters as mutually agreed upon.

5. No Mutual Agreement---When a mutually agreeable solution to an academic and professional matter cannot be reached, existing policy shall remain in effect until such time as a mutually acceptable resolution can be worked out and agreed upon. The only exception to this principle shall be those powers granted to the Board of Trustees in law (i.e., "such policy exposes the district to legal liability or causes substantial fiscal hardship"). The law also provides that "the governing board may act, after a good faith effort to reach agreement, only for compelling legal, fiscal, or organization reasons". The Board may also act when there is no existing policy, or legal liability or fiscal hardship requires existing policy to be changed.

<u>*Collective Bargaining*</u>

1 *Authority and Scope*---Government Code, Sections 3540-49.3, Chapter 10.7, Division 4, Title 1. "Collective Bargaining in community colleges is governed by the Education Employment Relations Act. The scope of representation shall be limited to matters relating to wages, hours of employment, and other terms and conditions of employment, including health and welfare benefits, leave, transfer and reassignment policies, safety, class size, evaluation procedures, processing of grievances, layoff, disciplinary action, and suspension."

2. *Areas of Joint Responsibility*

The Academic Senate and the Faculty Collective Bargaining agent recognize several areas of overlapping authority or concern. The Faculty Collective Bargaining Agent is specifically required to consult with the Academic Senate before engaging in collective bargaining on Tenure (Ed. Code 87610.1 (a), Evaluation (Ed. Code 87663 (f), and Faculty Service Areas (Ed.

Code 87743.2). Other mandatory collective bargaining items, such as the Academic Calendar, also have a direct impact on academic programs.

In instances where overlapping authority or concern exist, the Faculty Collective Bargaining Agent may delegate matters within the scope of bargaining to the Academic Senate and the Academic Senate may delegate matters within its jurisdiction to the Faculty Collective Bargaining Agent.

Likewise, the resolution of issues that are subject to collective bargaining may be assigned to a participatory governance body**,** for deliberation and recommendation only, with the consent of the affected Collective Bargaining Agent and the Board of Trustees or designee. And although every effort will be made to resolve issues in the assigned committee, both the District and the Collective Bargaining Agent have the right to return issues to the collective bargaining process. Items assigned to a committee process shall be returned to the parties for final ratification or approval unless stipulated otherwise when the item was assigned to the committee.

See Administrative Procedure #2510

Adopted: 7/5/05
Revised: 5/12/08

BP 2610 Presentation of Initial Collective Bargaining Proposals

Reference:

Government Code Section 3547

The Superintendent/President is directed to enact administrative procedures that assure compliance with the requirements of Government Code Section 3547 regarding the presentation to the Board of Trustees of initial proposals for collective bargaining.

Collective bargaining begins when either an exclusive representative or the District itself presents an initial proposal for consideration.

All initial proposals of exclusive representatives and of public school employers, which relate to matters within the scope of representation, shall be presented at a public meeting of the public school employer and thereafter shall be public records.

Meeting and negotiating shall not take place on any proposal until a reasonable time has elapsed after the submission of the proposal to enable the public to become informed and the public has the opportunity to express itself regarding the proposal at a meeting of the public school employer.

The Board of Trustees may adopt regulations for the purpose of implementing this section, which are consistent with the intent of the section; namely that the public be informed of the issues that are being negotiated upon and have full opportunity to express their views on the issues to the public school employer, and to know of the positions of their elected representatives.

Also see AP 2610 Presentation of Initial Collective Bargaining Proposals as well as BP 7140 Collective Bargaining.

Adopted: 7/5/05
Reviewed: 9/12/16
Revised: 4/11/22

BP 2710 Conflict of Interest

References:

Government Code Sections 1090 et seq., 1126 and 87200 et seq.;
Title 2 Sections 18730 et seq.

Board members and employees shall not be financially interested in any contract made by them in their official capacity or in any body or board of which they are members.

A board member shall not be considered to be financially interested in a contract if his/her/their interest is limited to those interests defined as remote under Government Code Section 1091 or is limited to interests defined by Government Code Section 1091.5.

A board member who has a remote interest in any contract considered by the Board of Trustees shall disclose his/her/their interest during a board meeting and have the disclosure noted in the official board minutes. The board member shall not vote or debate on the matter or attempt to influence any other board member to enter into the contract.

A board member shall not engage in any employment or activity that is inconsistent with, incompatible with, in conflict with or inimical to his/her/their duties as an officer of the District. Pursuant to Government Code Section 1099, a board member shall not simultaneously hold two public offices that are incompatible.

Pursuant to Government Code Section 87406.3, upon leaving the Board of Trustees, former members shall not, for a period of one year, act as an attorney, agent, or otherwise represent for compensation others appearing before the Board of Trustees. In compliance with law and regulation, the Superintendent/President shall establish Administrative Procedures to provide for disclosure of assets of income of board members who may be affected by their official actions and prevent members from making or participating in the making of board decisions which may foreseeably have a material effect on their financial interest.

Board members shall file statements of economic interest with the filing officer identified by the Administrative Procedures.

Board members are encouraged to seek counsel from the District's legal advisor in every case where any question arises.

Also see BP 2200 Board Duties and Responsibilities, AP 2710 Conflict of Interest, AP 2712 Conflict of Interest Code, BP 2715 Code of Ethics/Standards of Practice, BP 2716 Board Political Activity, and BP 2717 Personal Use of Public Resources – Board, and AP 3050 Institutional Code of Ethics.

Adopted: 7/5/05
Revised: 5/8/06
Revised: 9/9/19
Revised: 12/9/22

BP 2715 Board Code of Ethics/Standards of Practice

Reference:

Accreditation Standard IV.C.11

The Board of Trustees maintains high standards of ethical conduct for its members. Members of the Board of Trustees are responsible for:

- Acting only in the best interests of the entire community.
- Ensuring public input into board deliberations; adhering to the law and spirit of the open meeting laws and regulations.
- Preventing conflicts of interest and the perception of conflicts of interest.
- Exercising authority only as a board.
- Using appropriate channels of communication.
- Respecting others; acting with civility.
- Being informed about the District, educational issues, and responsibilities of trusteeship.
- Devoting adequate time to board work.
- Maintaining confidentiality of closed sessions.

If a trustee violates or thinks he/ ~~or~~ she has violated any provision of the Code of Ethics/Standards of Practice, or if a trustee observes, learns of, or in good faith believes it is possible that another trustee has violated any such provision, that trustee must immediately report the actual or suspected violation to the Board of Trustees as a whole. The Board of Trustees has an obligation to investigate and address within a mutually agreed upon time frame all reported violations of this Code of Ethics/Standards of Practice.

Also see BP 2200 Board Duties and Responsibilities, BP 2310 Regular Meetings of the Board, BP 2315 Closed Sessions, BP/AP 2710 Board Conflict of Interest, AP 2712 Conflict of Interest Code, BP 2716 Board Political Activity, BP 2717 Personal Use of Public Resources – Board, BP 2740 Board Education, AP 3050 Institutional Code of Ethics, BP/AP 3410 Nondiscrimination and BP/AP 7700 Whistleblower.

Adopted: 7/5/05
Revised: 11/7/05
Reviewed: 9/12/16
Revised: 9/9/19

BP 2716 Board Political Activity

References:

Education Code Sections 7054, 7054.1, and 7056;
Government Code Section 8314

Members of the Board of Trustees shall not use District funds, services, supplies, or equipment, or electronic media, to urge the passage or defeat of any ballot measure or candidate, including, but not limited to, any candidate for election to the Board of Trustees.

Initiative or referendum measures may be drafted on an area of legitimate interest to the District. The Board of Trustees may by resolution express the board's position on ballot measures. Public resources may be used only for informational efforts regarding ballot measures.

Also see BP/AP 7370 Political Activity.

Adopted: 7/5/05
Reviewed: 9/12/16
Revised: 9/9/19

BP 2717 Personal Use of Public Resources – Board of Trustees

References:

Government Code Section 8314;
Penal Code Section 424

No trustee shall use or permit others to use public resources, except that which is incidental and minimal, for personal purposes or any other purpose not authorized by law.

Also see AP 7371 Personal Use of Public Resources.

Adopted: 7/5/05
Reviewed: 10/10/16
Revised: 9/9/19

BP 2720 Communications Among Board Members

Reference:

Government Code Section 54952.2 subdivision b

A majority of the members of the Board of Trustees shall not, outside a regularly scheduled meeting, use a series of communications of any kind, directly or through intermediaries, to discuss, deliberate, or take action on any item of business that is within the subject matter jurisdiction of the Board of Trustees.

This policy shall not be construed as preventing an employee or official of the District from engaging in separate conversations or communications with members of the Board of Trustees outside of a meeting in order to answer questions or provide information regarding a matter that is within the subject matter jurisdiction of the Board of Trustees, if that person does not communicate to members of the Board of Trustees the comments or position of any other member or members of the Board of Trustees.

Adopted: 7/5/05
Revised: 10/11/10
Reviewed: 10/10/16
Revised: 5/13/19
Revised: 9/9/19

BP 2725 Board Member Compensation

Reference:

Education Code Section 72024

Members of the Board of Trustees who attend all board meetings shall receive an amount per month based on Education Code requirements and the student member will receive one-half that amount. A member of the Board of Trustees who does not attend all meetings held by the Board of Trustees in any month shall receive, as compensation, an amount not greater than the pro rata share of the number of meetings actually attended.

A member of the Board of Trustees may be paid for a meeting when absent if the Board of Trustees, by resolution, finds that at the time of the meeting the member is performing services outside the meeting for the community college district, is ill, on jury duty, or the absence is due to a hardship deemed acceptable by the Board of Trustees.

The Board of Trustees may, on an annual basis, increase the compensation of the Board members in an amount not to exceed five (5%) percent. However, any increase is subject to rejection in a referendum by a majority of the voters in the District.

Adopted: 7/5/05
Revised: 1/8/07
Revised: 1/10/11
Revised: 11/14/16
Revised: 12/9/19

BP 2730 Board Member Health Benefits

References:

Government Code Section 53201 and 53208.5

Members of the Board of Trustees shall be permitted to participate in the District's health benefit programs. Participation shall be on such terms as the Board of Trustees itself shall from time to time determine. The benefits of members of the Board of Trustees through the District's health benefit programs shall not be greater than the most generous schedule of benefits being received by any category of non-safety employee of the District.

Former m~~M~~embers of the Board of Trustees may continue to participate in the District's health benefits programs upon leaving the Board of Trustees if the following criteria are met: the member must have begun service on the Board of Trustees after January 1, 1981; the member must have been first elected to the Board of Trustees before January 1, 1995; and the member must have served at least twelve (12) years. Board members meeting this criteria shall be entitled to continue participation in the District's health benefits programs upon leaving the Board of Trustees on the same terms as applied to them at the time of leaving the Board of Trustees.

All other former Board members may continue to participate in the District's health benefits programs on a self-pay basis.

Adopted: 7/5/05
Revised: 9/10/07
Revised: 8/13/12
Reviewed: 10/10/16
Revised: 12/9/19

BP 2735 Board Member Travel

References:

Education Code Section 72423; Government Code Section 11139.8

Members of the Board of Trustees shall have travel expenses paid whenever they travel as representatives of and perform services directed by the Board of Trustees. The Board of Trustees will determine limitations on travel annually.

The actual expenses of members selected to attend meetings or conventions and other related college activities shall be allowed and paid out of District funds.

The Board of Trustees may authorize an advance of funds to cover such expenses, with the advance to be repaid or adjusted upon filing of a regular claim for the actual expenses incurred.

The Board of Trustees may pay, out of District funds, actual and necessary expenditures required to pay memberships in educational organizations mentioned above.

Also see AP 2735 Board Member Travel, BP/AP 6540 Insurance, and BP/AP 7400 Employee Travel.

Adopted: 7/5/05
Reviewed: 10/10/16
Revised: 9/9/19

BP 2740 Board Education

Reference:

Accreditation Standard IV.C.9

The Board of Trustees is committed to its ongoing development as a board and to a trustee education program that includes new trustee orientation.

To that end, the Board of Trustees will engage in study sessions, provide access to reading materials, and support conference attendance and other activities that foster trustee education.

Adopted: 7/5/05
Reviewed: 10/10/16
Revised: 9/9/19

BP 2745 Board Self-Evaluation

Reference:

Accreditation Standard IV.C.10

The Board of Trustees is committed to assessing its own performance as a board in order to identify its strengths and areas in which it may improve its functioning.

To that end, the Board of Trustees has established the following processes:

Annual Evaluation

The five (5) publicly elected members of the Board of Trustees shall accomplish an annual evaluation of the Board of Trustees using an acceptable self-evaluation method. It is preferred that the evaluation be conducted during the spring semester.

Objectives

(a) Recognize the strengths and weaknesses of board operation.
(b) Formulate ways for improving board operation.

In reaching the above objectives, each trustee/participant shall be expected to refrain from defaming or ridiculing a fellow trustee. Suggestions for improvement shall be kept on a positive professional basis, and the suggestions shall be noted in a subsequent evaluation.

Evaluation Chairperson

The President of the Board of Trustees may serve as chairperson of the evaluation meeting(s) or may assign the chair responsibilities to another trustee.

A summary of the evaluations will be presented and discussed at a public board meeting.

Adopted: 7/5/05
Reviewed: 10/10/16
Revised: 9/9/19

BP 2750 Board Member Absence from the State

Reference:

Government Code Section 1064

No member of the Board of Trustees shall be absent from the state for more than sixty (60) days, except in any of the following situations:

- Upon business of the community college district with the approval of the Board of Trustees.

- With the consent of the Board of Trustees for an additional period not to exceed a total absence of ninety (90) days. In the case of illness or other urgent necessity, and upon a proper showing thereof, the time limited for absence from the state may be extended by the Board of Trustees.

- For federal military deployment, not to exceed an absence of a total of six (6) months, as a member of the Armed Forces of the United States or the California National Guard. If the absence of a member of the Board of Trustees pursuant to this subdivision exceeds six (6) months, the Board of Trustees may approve an additional six-month absence upon a showing that there is a reasonable expectation that the member will return within the second six-month period, and the Board of Trustees may appoint an interim member to serve in his/her absence. If two or more members of the Board of Trustees are absent by reason of the circumstances described in this subdivision and those absences result in the inability to establish a quorum at a regular meeting, the Board of Trustees may immediately appoint one or more interim members as necessary to enable the Board of Trustees to conduct business and discharge its responsibilities.

- The term of an interim member of the Board of Trustees appointed and set forth above may not extend beyond the return of the absent member, nor may it extend beyond the next regularly scheduled election for that office.

Adopted: 8/13/12
Reviewed: 10/10/16
Revised: 9/9/19

AP 3550 Drug-Free Environment and Drug Prevention Program

References:

Education Code Section 67384;
Drug Free Schools and Communities Act Amendment of 1989;
20 U.S. Code Section 1011i;
34 Code of Federal Regulations Parts 86.1 et seq.;
Federal Drug-Free Workplace Act of 1988;
41 U.S. Code Section 8103

The District is committed to providing its employees and students with a drug-free workplace and campus environment. It emphasizes prevention and intervention through education.

Antelope Valley College Police Department may make recommendations to the District Attorney's office for a "Drug Diversion" program for any offender of the District's "Drug Free" policy.

The following are summaries of the major health risks of and common symptoms associated with alcohol and other drug use and abuse. This is not a complete listing but an overview. Each individual will experience the effects of alcohol and other drugs in a slightly different way given his/ her tolerance, body size, family history, gender, and other physical and psychological factors. Abuse of alcohol and other drugs can lead to chemical dependency and can be harmful during pregnancy.

Alcohol

Health Risks: Alcohol in moderate amounts causes dizziness, dulling of the senses, impairment of coordination, reflexes, memory and judgment. Increased amounts of alcohol produce staggering, slurred speech, double vision, mood changes and, possibly, unconsciousness. Larger amounts result in death. Alcohol causes damage to the liver,

heart and pancreas. It also may lead to malnutrition, stomach irritation, lowered resistance to disease and irreversible brain or nervous system damage.

Symptoms: Glazed eyes, obvious odor, pale and dry skin, broken blood vessels in facial area, slowed motor coordination and enlarged stomach.

Marijuana

Health Risks: Marijuana use leads to a substantial increase in heart rate. It impairs or reduces short-term memory and comprehension, and motivation and cognition are altered. With extended use it can produce paranoia and psychosis. Smoking marijuana damages the lungs and pulmonary system. Marijuana contains more cancer-causing agents than tobacco. It also lowers male sex hormones, suppresses ovulation, and causes changes in the menstrual cycle and possibly causes birth defects.

Symptoms: Someone who uses marijuana may laugh inappropriately and have bloodshot eyes, dry mouth and throat, and a tell-tale odor of the drug, a poor sense of timing and increased appetite.

Cocaine and Crack

Health Risks: Cocaine and its derivative crack produce dilated pupils and elevated blood pressure, heart rate, respiratory rate and body temperature. They may also cause insomnia, loss of appetite, tactile hallucinations, paranoia, seizure and death.

Symptoms: Someone using cocaine may experience muscle twitching, panic reactions, anxiety, numbness in hands and feet, loss of weight, a period of hyperactivity followed by a depression, a running or bleeding nose and sustained depression.

Barbiturates

Health Risks: In small doses, barbiturates produce calmness, relaxed muscles and lowered anxiety. Larger doses cause slurred speech, staggering gait and altered perception. Very large doses taken in combination with other central nervous system depressants (e.g., alcohol) cause respiratory depression, coma and sometimes death.

Symptoms: A person who uses barbiturates may have poor muscle control, appear drowsy or drunk, become confused, irritable, inattentive or have slowed reactions.

Amphetamines

Health Risks: Amphetamine use causes increased heart and respiratory rates, elevated blood pressure, and dilated pupils. Larger doses cause rapid or irregular heartbeat,

tremors and physical collapse. An amphetamine injection creates a sudden increase in blood pressure that can result in stroke, high fever and heart failure.

Symptoms: An individual using amphetamines might begin to lose weight, have periods of excessive sweating, and appear restless, anxious, moody and unable to focus. Extended use may produce psychosis, including hallucinations, delusions and paranoia.

Hallucinogens (including PCP, LSD, Mescaline, Peyote, Psilocybin)

Health Risks: PCP, or angel dust, interrupts the part of the brain that controls the intellect and impulsive behavior. PCP blocks pain receptors. Violent episodes, including self-inflicted injuries, are not uncommon. Chronic users report memory loss and speech difficulty. Very large doses produce convulsions, coma, heart and lung failure, or ruptured blood vessels in the brain. LSD, mescaline, peyote, etc. cause dilated pupils, elevated body temperature, increased heart rate and blood pressure, and tremors.

Symptoms: Someone using PCP might appear moody, aggressive or violent. Such an individual may become paranoid and experience hallucinations and have time and body movements slowed. LSD users may experience loss of appetite, sleeplessness, confusion, anxiety, and panic. Flashbacks may also occur.

Narcotics (including Heroin, Codeine, Morphine, Opium, Percodan)

Health Risks: Because these narcotics are generally injected, the use of contaminated needles may result in AIDS and hepatitis. Symptoms of overdose include shallow breathing, clammy skin, and convulsions. An overdose may result in a coma or even death.

Symptoms: Some signs of narcotic use are euphoria, drowsiness, constricted pupils and nausea. Other symptoms include itchy skin, needle or "track" marks on the arms and legs, nodding, loss of sex drive and appetite. When withdrawing from the drug, sweating, cramps and nausea occur.

Opioid Overdose

The District shall provide, as part of established campus orientations, educational and preventive information provided by the State Department of Public Health about opioid overdose and the use and location of opioid overdose reversal medication to students at all campuses. Each campus health center shall apply to distribute dosages of a federally approved opioid overdose reversal medication and participate in the Naloxone Distribution Project administered by the State Department of Health Care Services.

Prohibition of Drugs
The unlawful manufacture, distribution, dispensing, possession or use of alcohol or any controlled substance is prohibited on District property, during District-sponsored field trips, activities or workshops, and in any facility or vehicle operated by the District.

Violation of this prohibition will result in appropriate action up to and including termination of employment, expulsion, and referral for prosecution, or, as permitted by law, may require satisfactory participation in an alcohol or drug abuse assistance or rehabilitation program.

As a condition of employment, employees must notify the District within five (5) days of any conviction for violating a criminal drug statute while in the workplace. The District is required to inform any agencies that require this drug-free policy within ten (10) days after receiving notice of a workplace drug conviction.

Also see BP 3550 Drug-Free Environment and Drug Prevention Program, BP/AP 3560 Alcoholic Beverages, and AP 6950 Drug and Alcohol Testing (U.S. Department of Transportation).

Approved: 11/7/05
Revised: 12/14/09
Revised: 4/11/16
Revised: 12/9/19
Revised: 2/7/25

AP 3560 Alcoholic Beverages

References:

Business and Professions Code Sections 24045.4, 24045.6, 25608, 25658, and 25668;
34 Code of Federal Regulations Part 668.46 subdivision

The possession, sale or the furnishing of alcohol on campus is governed by California state law and these procedures. The possession, sale, consumption or furnishing of alcohol is controlled by the California Department of Alcohol and Beverage Control. However, the enforcement of alcohol laws on campus is the primary responsibility of the Antelope Valley College Campus Sheriff's Office. The campus has been designated "Drug free" and only under certain circumstances is the consumption of alcohol permitted. The possession, sale, manufacture, or distribution of any controlled substance is illegal under both state and federal laws. Such laws are strictly enforced by Antelope Valley College Campus Sheriff's Office. Violators are subject to disciplinary action, criminal prosecution, fine, and imprisonment. It is unlawful to sell, furnish, or provide alcohol to a person under the age of twenty-one (21). The possession of alcohol by anyone under twenty-one (21) years of age in a public place or a place open to the public is illegal. It is also a violation of this procedure for anyone to consume or possess alcohol in any public or private area of campus without prior District approval. Organizations or groups violating alcohol or substance policies or laws may be subject to sanctions by the District.

Alcoholic beverages on campus are permitted if:

• The alcoholic beverage is beer or wine for use in connection with a course of instruction, sponsored dinner, or meal demonstration given as part of a culinary arts program at a community college campus, and the instructor or individual has been authorized to acquire, possess, use, sell, or consume it by the Superintendent/President or designee.

• The alcoholic beverage is for use during a non-college event at a performing arts facility built on District property and leased to a nonprofit public benefit corporation.

• The alcoholic beverage is possessed, consumed, or sold, pursuant to a license or permit obtained for special events held at the facilities of a public community college during the special event. "Special event" means events that are held with the permission

of the governing board of the community college district that are festivals, shows, private parties, concerts, theatrical productions, and other events held on the premises of the public community college and for which the principal attendees are members of the general public or invited guests and not students of the public community college.

• The alcoholic beverage is for use during a fundraiser held to benefit the Antelope Valley Community College Foundation that has obtained a license under the Business and Professions Code to do so provided that no alcoholic beverage can be acquired, possessed, or used at a football game or other athletic contest sponsored by the District.

• The alcoholic beverage is acquired, possessed, or consumed pursuant to a license or permit obtained for special events held at facilities of a community college district at a time when pupils are not on the grounds. “Facilities” includes, but are not limited to, office complexes, conference centers, or retreat facilities.

Also see BP 3560 Alcoholic Beverages, BP/AP 3550 Drug-Free Environment and Drug Prevention Program, and AP 6950 Drug and Alcohol Testing (U.S. Department of Transportation).

Approved: 11/7/05
Revised: 4/9/07
Revised: 9/10/07
Revised: 4/14/08
Revised: 5/14/12
Revised: 7/9/12
Revised: 4/11/16
Revised: 12/12/16
Revised: 4/13/20
Revised: 2/7/25

AP 3050 Institutional Code of Ethics

Reference:

Accreditation Standard III.A.13

The employees of Antelope Valley Community College District are committed to providing a high quality learning environment to help our students successfully achieve their educational goals and objectives. To support this commitment, college employees adhere to the following standards of ethical and professional behavior related to their duties.

Antelope Valley Community College District employees:

- Are honest and accountable in all actions and activities.
- Demonstrate personal and professional integrity in supporting the mission of the college.
- Are fair and respectful in all interactions with colleagues, students, and the public.
- Avoid conflicts of interest, or its appearance, between their obligations to the District and private business or personal commitments and relationships.
- Address issues and work with people without prejudice.
- Act within applicable laws, codes, regulations, and District policies and procedures.
- Respect the personal values, beliefs, and behaviors of others.
- Maintain confidentiality regarding information about students or staff obtained in the course of their duties.
- Protect District assets.
- Maintain a working and learning environment free from harassment as defined by District policies.
- Maintain and enhance job effectiveness and competency through professional development.
- Respect the integrity and professionalism of administrators, faculty, staff, and students.
- Make every reasonable effort to create an equal-access learning environment that will help students succeed.

Also see BP 2715 Board Code of Ethics/Standards of Practice.

Approved: 7/10/06
Reviewed: 11/14/16
Revised: 10/14/19

AP 3100 Organizational Structure

References:

Education Code Section 72400;
Title 5, Section 53200

The District's organizational structure shall be:

3100.1 ORGANIZATIONAL DIVISIONS, DEPARTMENTS AND OFFICES

(See Appendix I – Organizational Charts)

3100.2 President's Executive Council-Level Administration

President's Executive Council-level administration consists of those officials and functions that control the organization and operation of the college system, or employees whose responsibilities extend over a major administrative division of the college.

In the Antelope Valley Community College District, President's Executive Council-level administration shall consist of the President; Vice President Academic Affairs; Vice President Student Services; Vice President of Human Resources and Employee Relations; Vice President of Administrative Services; General Counsel; Executive Director of Fiscal and Financial Services; Executive Director of General Services, Executive Director of Information Technology Services~~,~~; Executive Director of Facilities; Dean of Institutional Effectiveness, Research and Planning; Executive Director of Marketing and Public Information, Executive Director of the Foundation; and Internal Auditor.

3100.3 Line of Responsibility (Education Code Section 70902)

Each District employee shall be responsible to the Board of Trustees through the Superintendent/President. Supervision of District employees shall be exercised by personnel to whom such responsibility has been specifically delegated.

District personnel shall refer matters requiring administration action to the administrative officer having immediate responsibility of the area in which the problem arises.

Administrative officers shall refer such matters to the next higher authority if circumstances warrant.

All District employees have the right to appeal any decision made by an administrative officer to the next higher authority and, through appropriate successive steps, to the Board of Trustees.

3100.4 President's Executive Council

Purpose
It is the desire of the Board of Trustees that democratic working relationships be maintained among the personnel of the administrative staff, and to maintain a free flow of communications involving College Administration and District employees.

Meetings
Regular meetings shall be held at periodic intervals as determined by the Superintendent/President. The Superintendent/President may also call special meetings as conditions may warrant.

Responsibilities
The President's Executive Council shall function in an advisory capacity to the Superintendent/President on matters related to District policies, administrative problems, collective bargaining issues or any issue related to the District's education program or school operation.

The President's Executive Council shall also serve as a channel of communication in the administrative organization of the District.

3100.6 Administrative Council

In an endeavor to promote communications with middle management and supervisory officials, the Superintendent/President may establish an Administrative Council whose membership shall consist of management personnel.

The responsibilities of the Administrative Council shall be communication and operation.

Meetings shall be held at the discretion of the Superintendent/President.

PROCEDURE FOR CHANGING THE ORGANIZATIONAL STRUCTURE OF THE COLLEGE

This procedure describes the organizational units at Antelope Valley College, which persons or groups can initiate a review of the current organizational structure, the steps for reaching recommendations for proposed changes, and who has the authority to

implement proposed changes. The goal of such reviews shall be to improve efficiency and/or cost effectiveness of services, programs, learning outcomes or operational outcomes:

A. Organizational Units: Antelope Valley College is organized into five (5) structural levels.

1. **College**
2. **Offices:** Superintendent/President; Academic Affairs; Student Services; Human Resources and Employee Relations; Administrative Services; General Counsel; Information Technology Services; Facilities; Institutional Effectiveness; Marketing & Public Information; AVC Foundation; and Internal Audit.
3. **Areas/Divisions:** (these synonymous terms for subdivisions of offices are used for instructional divisions and non-instructional areas, e.g. Health Sciences Division.
4. **Departments** (subdivisions of areas/divisions).

B. Initiation of a review

1. The Superintendent/President may initiate a review of any of the organizational units.
2. The College Coordinating Council (CCC) and Strategic Planning Committee may request a review of any organizational unit by sending a request for a review to the Superintendent/President.
3. The administrative head of any office, area/division, or department may request a review for his/her own organizational unit by sending a request for a review to the Superintendent/President through the administrative structure.
4. All requests for a review must be in writing and state the rationale and provide data that support the goals of such reviews.
5. The Superintendent/President will inform the President's Executive Council and CCC of any requests for a review.
6. The Superintendent/President has the final authority to initiate a review of an organizational unit.
7. The Superintendent/President will initiate a review by sending a memo to notify all constituencies that a review is being implemented. This memo will appoint an administrator to oversee the review, set forth the rationale and data that justify the review, and establish a timeline for the formulation of proposed changes.

C. Process for proposing organizational changes

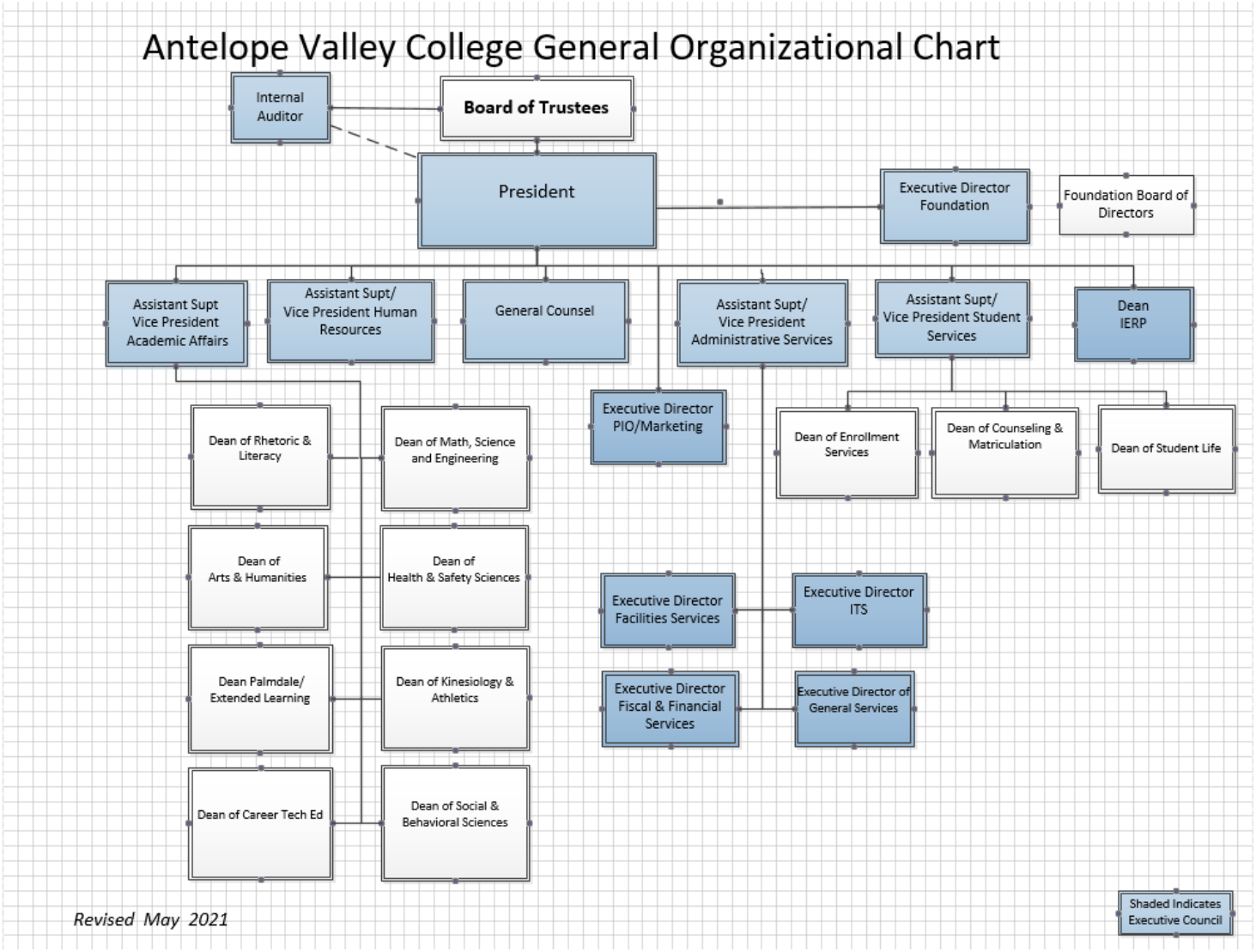
Intra-divisional changes

Intra-divisional Academic department re-organization will be completed within the division, with approval of the majority of the faculty in the division, the division dean, and the Vice President overseeing the division. Information of the change and the rationalization will be provided to the Academic Senate for information only.

Other organizational changes

1. The administrator in charge of the review will solicit input from all employees in the organizational unit(s) affected by the review, including any not identified in the initial review that might be impacted as a result of proposed changes.
2. Based on this input, the administrator will formulate proposed changes through dialogue/discussion with the affected organizational units.
3. A written summary of the proposed changes will go out to the entire campus allowing two (2) weeks for discussion. During that period, administrators and employees should evaluate any adverse impact that might arise from the proposed change.
4. The campus community will give input/feedback to the administrator overseeing the review.
5. The administrator overseeing the review will present the proposed changes and a summary of campus feedback to CCC for discussion.
6. The Superintendent/President will make the final decision on proposed changes based on feedback from the campus community and the discussion at CCC.
7. This final version of the proposed changes will go out to the entire campus for discussion/feedback for at least one (1) week.
8. The Superintendent/President will take the final changes to the Board of Trustees for information.
9. The Superintendent/President will communicate the final changes to the appropriate vice presidents, deans, directors, and employees and follow up with implementation.

Approved: 11/7/05
Revised: 10/9/06
Revised: 4/9/07
Revised: 6/11/07
Revised: 6/14/10
Revised: 11/14/16
Revised: 5/8/17
Revised: 12/9/19
Revised: 5/10/21


Antelope Valley College General Organizational Chart
Internal Auditor
Board of Trustees
President
Executive Director Foundation
Foundation Board of Directors
Assistant Supt Vice President Academic Affairs
Assistant Supt/ Vice President Human Resources
General Counsel
Assistant Supt/ Vice President Administrative Services
Assistant Supt/ Vice President Student Services
Dean IERP
Executive Director PIO/Marketing
Dean of Enrollment Services
Dean of Counseling & Matriculation
Dean of Student Life
Dean of Rhetoric & Literacy
Dean of Math, Science and Engineering
Dean of Arts & Humanities
Dean of Health & Safety Sciences
Executive Director Facilities Services
Executive Director ITS
Dean Palmdale/ Extended Learning
Dean of Kinesiology & Athletics
Executive Director Fiscal & Financial Services
Executive Director of General Services
Dean of Career Tech Ed
Dean of Social & Behavioral Sciences
Revised May 2021
Shaded Indicates Executive Council

AP 3200 Accreditation

References:

Title 5 Section 51016;
Accreditation Eligibility Requirement 21,
Accreditation Standards I.C.12 and 13

Organizational Process for the Institutional Self-Evaluation (Self Study)

AVC Statement of Philosophy for the Institutional Self-Evaluation (Self Study) Process:

The Accreditation Committee consists of constituents from across the campus and collaborates to produce the Institutional Self-Evaluation Report and subsequent reports required by the Accrediting Commission for Community and Junior Colleges/Western Association of Schools and Colleges (ACCJC), as needed. The committee brings together a wide array of talent, skills, and knowledge from across the college to write the reports and collect the evidence, which demonstrate that the college continually reflects on its practices and follows the accreditation standards on a sustainable level.

Accreditation Committee Structure:

The superintendent/president shall appoint an Accreditation Liaison Officer (ALO) and the Academic Senate shall recruit a Faculty Accreditation Coordinator (FAC). The two shall serve as co-chairs of the Accreditation Committee. The committee consists of four sub-committees; one for each of the four standards.

Each standard committee will have a Team Leader. Each team has Experts, recruited based upon their expertise and knowledge of a particular sub-standard area. The Expert is the person with the most knowledge possible on campus to write to the particular standard. Each team also has a group of Collaborators who represent a broad spectrum of knowledge and skills across the campus. They will read, give feedback, and otherwise support and assist the experts and team leader.

The Accreditation Committee shall include members of the faculty, administration, classified staff, students, the Board of Trustees, the Academic Senate president, the Student Body president, community members, and the Dean of Institutional Research and Effectiveness (IERP). Committee team leaders, experts, and collaborators shall be recruited by campus-wide calls as well as personal contacts. The ALO and FAC work together to ensure that the committees are well balanced with a variety of representatives from across the campus, as well as members who have specific expertise in the standard areas.

The FAC will serve a term of three (3) years beginning after the Institutional Self-Evaluation and the college will provide adequate administrative support and release time. For one (1) year, the new FAC will "shadow" the current FAC to oversee the follow up report, at which time the new FAC's term begins. Applicants must submit a letter of interest to the Executive Council of the Academic Senate, who interviews the candidate and makes the appointment.

Documenting Practices in the Institutional Self-Evaluation ~~Self Study~~

Writing the Institutional Self-Evaluation is a process of discovery for the college. It documents and makes visible the college's success stories as well as its continual improvements, and at times its struggles. It is important that honesty prevails and claims are supported by concrete evidence. The Institutional Self-Evaluation is data driven, both quantitatively and qualitatively. When gaps or problems are revealed, the teams communicate with the appropriate parties and constituencies, and all work together to resolve issues to meet the standards. In this sense, accreditation is a vehicle for recognizing AVC's many accomplishments and the processes in place to make improvements.

Campus Communication

The FAC, ALO, and DIERP will give workshops, conduct forums, and send out communications to keep the campus informed about the process and the progress of the accreditation reports as they develop and are finalized. Issues of concern will be addressed openly for the campus to give input and feedback. The FAC will report regularly to the Board of Trustees, the Academic Senate, the College Coordinating Council, and the Mutual Agreement Council to keep them informed. The ALO and the DIERP will assist the FAC with the information needed for communications to the campus. Team leaders, experts, and collaborators will also assist as needed in communicating matters of importance to the campus.

Visiting Team Findings

The findings of the visiting team, including recommendations, are viewed as an opportunity for growth and improvement. They will be posted on the AVC website publicly, and reviewed by all appropriate committees and constituents, including the Board of Trustees, the Academic Senate, the Administrative Council, and others. The FAC will work with the ALO, DIERP, and the Team Leaders to assure that the improvement plans and findings of the team are monitored and implemented in a timely manner.

Also see BP 3200 Accreditation.

Approved: 11/7/05
Revised: 7/9/12

Revised: 3/9/15
Reviewed: 11/14/16
Revised: 10/14/19

AP 3225 Institutional Effectiveness

References:

Education Code Sections 78210 et seq. and 84754.6;
Accreditation Standards I.B.5 - 9

The Superintendent/President or designee shall develop, adopt, and publicly post goals that address all of the following: (1) accreditation status; (2) fiscal viability; (3) student performance and outcomes; and (4) programmatic compliance with state and federal guidelines, and alignment with the Vision for Success Goals of the California Community College Board of Governors.

The goals should be challenging and quantifiable, address achievement gaps for underrepresented populations, and align the educational attainment of California's adult population to the workforce and economic needs of the state.

Also see BP 3225 Institutional Effectiveness.

Approved: 7/10/17
Revised: 10/14/19

AP 3250 Institutional Planning

References:

Accreditation Standards I.B.9, III.B.4, III.C.2, III.D.2, IV.B.3, and IV.D.5;
Title 5 Sections 51008, 51010, 51027, 53003, 54220, 55080, 55190, 55510, 56270 et seq.

The Strategic Planning Council (SP) is a shared governance council that provides oversight and monitoring of the various planning documents within the institution in order to accomplish the mission and goals of the District. SP utilizes the Educational Master Plan, which is the District's strategic plan, to review the mission, vision, values, and practices of the institution and to monitor and modify the Strategic Goals and the Institutional Learning Outcomes (ILOs). The Council reviews the annual budget requests brought forward by the Budget Subcommittee and makes a recommendation to the Superintendent/President to fund those requests that utilize institutional resources most efficiently in accomplishing the District's strategic goals and improving the institutional learning outcomes (ILOs). SP works collegially with the Superintendent/President to recommend budget priorities in a timely fashion. The Superintendent/President may recommend budget expenditures to the Board of Trustees without consensus of the SP in those instances of legal and fiscal responsibility, as cited in both Education Code and Title 5. The Superintendent/President submits budget recommendations to the Board of Trustees for approval.

SP obtains feedback from both the community and campus in identifying educational program needs, ensuring that what is considered aligns with the mission of the college. The mission of the college is reflected in the ILOs that encompass diverse perspectives, application of lifelong learning skills, breadth of knowledge using oral and written communication, good citizenship, and career opportunities for economic well-being. The college mission and ILOs direct the development and revisions to the Educational Master Plan. The Educational Master Plan drives the instructional programs, services to students, and the college operations.

The Finance Plan, Facilities Plan, Human Resources Plan, Computer and Information Technology Plan, and Enrollment Management Plan all ensure that the Educational Master Plan is supported and accomplished. Subcommittees or subgroups of the SP are responsible for the development of each plan and a Communication Subcommittee is responsible for disseminating information to the entire campus and general community on the process and outcomes for budget decisions that meet the mission of the college.

Program Review, Student Equity and Achievement Plan, Accreditation Self Study, transfer rates, and input from the vocational program advisory groups provide data, both qualitative and quantitative, for the assessment and development of each plan and

provide continual input into the overall planning, assessment, and evaluation of the Educational Master Plan.

The Educational Master Plan, along with each supporting plan, contains Student Learning Outcomes and/or Operational Outcomes. These outcomes are then measured against a set of effectiveness criteria that assesses their effectiveness. The evaluations of these outcomes are then used to determine the most appropriate goals to improve student learning outcomes. The data is then used to prioritize budget requests. Resources are then allocated and outcomes are assessed annually to determine and verify that the Institutional Learning Outcomes (ILOs) have been met.

The Educational Master Plan and the College Mission are annually reviewed for revision and modification based on the final assessments of the ILOs. Major revisions to the Educational Master Plan will occur on a three-year cycle.

The District submits required planning documents to the California Community Colleges Chancellor's Office in accordance with the Title 5 regulations.

Also see BP 3250 Institutional Planning.

Approved: 5/8/06
Revised: 12/10/07
Revised: 7/14/08
Revised: 10/14/19

AP 3280 Grants

Reference:

Education Code Section 70902

Prior to applying for any grant, the grant submission initiator must prepare a Grant Application Form describing the problem or need that the grant would address; a description of the project; the mission and goals of the project; how the grant supports the District mission; the funding source and whether it is federal, state, local, or private; the amount being requested; matching funds and resource requirements and source; performance period; name of Project Director; name of Project Administrator; and any other relevant characteristics or requirements that may impact the decision to submit the grant application. The Grant Application Form must be submitted to the President's Executive Council.

Following approval by the President's Executive Council, within one (1) month, the grant application is to be forwarded to the appropriate Vice-President. Once completed, the grant application shall be submitted to the funding agency.

When notification of a grant award is received, the appropriate Vice-President shall prepare a board agenda item requesting acceptance of funding. The agenda item must include background information in support of the grant, a detailed activity budget, project management and evaluation budget, and a Board resolution establishing the grant budgets from District funding sources, as applicable.

Adopted: 4/13/20

AP 3300 Public Records

References:

Government Code Section 6250 et seq.

Members of the public may request to inspect or copy public records. A request by a member of the public may be delivered by mail or in person to the Office of the Superintendent/President or designee.

Any request shall identify with reasonable specificity the records that are sought. If additional information is needed, the Superintendent/President or designee may request it be provided in writing.

Any request to inspect records shall be made sufficiently in advance of the date of inspection to allow staff time to assemble the records and identify any records that may be exempt from disclosure.

Records that are exempt from disclosure under the Public Records Act or any other provision of law may not be inspected or copied by members of the public. Social security numbers must be redacted from records before they are disclosed to the public.

Members of the public shall be assisted in identifying records or information that may respond to their request. Assistance that will be provided includes: the information technology and physical location in which the records exist; practical suggestions for overcoming denial of access to the records or information; and the estimated date and time when the records will be made available.

Within ten days, the Superintendent/President or designee will determine whether or not the records can be produced and will communicate the determination to the member of the public requesting the record(s).

The most common exemptions for community colleges include:

- Student records (Education Code Section 76243)
- Preliminary drafts, notes, or interagency or intra-agency memoranda that are not retained by the public agency in the ordinary course of business, provided that the public interest in withholding the records clearly outweighs the public interest in disclosure. (Government Code Section 6254(a))
- Records pertaining to pending litigation …or to claims…until the pending litigation or claim has been finally adjudicated or otherwise settled. (Government Code Section 6254(b))
- Personnel, medical or similar files, the disclosure of which would constitute an unwarranted invasion of personal privacy (Government Code Section 6254(c))
- Test questions, scoring keys, and other examination data used to administer a licensing examination, examination for employment, or academic examination [except for standardized tests provided for by Education Code Sections 99150 et seq.]. (Government Code Section 6254(g).)
- The contents of real estate appraisals or engineering or feasibility estimates and evaluations…relative to the acquisition of property, or to prospective public supply and construction contracts, until all of the property has been acquired or all of the contract agreement obtained. (Government Code Section 6254(h)).
- Internet posting of home address or telephone numbers of local elected officials (Government Code Section 6254.21)
- Home addresses and home telephone number of employees of a school District or county office of education (other than to an agent or family member of the employee, to an officer of another

school District when necessary, to an employee organization, or to an agency or employee of a health benefit plan.) (Government Code Section 6254.3)

- Records regarding alternative investments (i.e. an investment in a private equity fund, venture fund, hedge fund, or absolute return fund; limited partnership, limited liability company or similar legal structure) involving public investment funds, unless already publicly released by the keeper of the information.
- Information security records, if disclosure of these records would reveal vulnerabilities to, or otherwise increase the potential for an attack on, the District's information technology system.

The Public Records Guidelines can be viewed at:
https://www.avc.edu/sites/default/files/information/Guidelines_Record_Request.pdf

11/7/05
Revised: 5/8/06
Revised: 5/12/08
Revised: 10/10/11
Revised: 12/12/16

AP 3310 Records Retention and Destruction

References:

Title 5 Sections 59020 et seq.;
Federal Rules of Civil Procedure, Rules 16, 26, 33, 34, 37, 45

"Records" means all records, maps, books, papers, data processing output, and documents of the District required by Title 5 to be retained, including but not limited to records created originally by computer and "electronically stored information" ("ESI"), as that term is defined by the Federal Rules of Civil Procedure.

The Superintendent/President or designee shall supervise the classification and destruction of records and ESI. The District must preserve ESI and ESI that is relevant to actual or potential litigation pursuant to the Federal Rules of Civil Procedure. The District shall comply with the Federal Rules of Civil Procedure and produce relevant ESI in the form in which it is ordinarily maintained or readily usable. An annual report shall be made to the Board of Trustees regarding the classification and destruction of records and ESI.

Records shall be classified as required by Title 5 and other applicable statutes, federal and state regulations.

Records shall annually be reviewed to determine whether they should be classified as Class 1 – Permanent, Class 2 – Optional, or Class 3 – Disposable (as defined in Title 5).

Class 3 – disposable records shall be maintained for the period required by applicable law or regulation, but in any event shall be retained for at least three college years after the year in which they were originally created.

Destruction is by any method that assures the record is permanently destroyed, e.g. shredding, burning, pulping.

Also see BP 3310 Records Retention and Destruction and BP/AP 3300 Public Records.

Approved: 11/7/05
Revised: 9/10/07
Revised: 5/12/08
Reviewed: 12/12/16
Revised: 12/9/19

AP 3410 Nondiscrimination

Nondiscrimination References for Education Programs:

Education Code Sections 200 et seq 66250 et seq. and 72010 et seq.;
Penal Code Section 422.55 et seq.;
Title 5 Section 59300 et seq.,
ACCJC Accreditation Eligibility Requirement 20 and ACCJC Accreditation Standard Catalog Requirements

Education Programs

The District shall provide access to its services, classes and programs without regard to national origin, religion, age, gender, gender identity, gender expression, race or ethnicity, color, medical condition, genetic information, ancestry, sexual orientation, marital status, physical or mental disability, pregnancy, military and veteran status, or because he/she/they is perceived to have one or more of the foregoing characteristics, or based on association with a person or group with one or more of these actual or perceived characteristics.

All courses, including noncredit classes, shall be conducted without regard to the gender of the student enrolled in the classes. As defined in the Penal Code, "gender" means sex, and includes a person's gender identity and gender expression. "Gender expression" means a person's gender-related appearance and behavior whether or not stereotypically associated with the person's assigned sex at birth.

The District shall not prohibit any student from enrolling in any class or course on the basis of gender.

Academic staff, including but not limited to counselors, instructors and administrators shall not offer program guidance to students which differs on the basis of gender.

Insofar as practicable, the District shall offer opportunities for participation in athletics equally to male and female students.

Nondiscrimination References for Employment:

Education Code Sections 87100 et seq.,
Title 5 Sections 53000 et seq.;
Government Code Sections 11135 et seq. and 12940 et seq.
Title 2 Sections 10500 et seq.;
Labor Code Section 1197.5

Employment

The District shall provide equal employment opportunities to all applicants and employees regardless of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, immigration status, or military and veteran status.

All employment decisions, including but not limited to hiring, retention, assignment, transfer, evaluation, dismissal, compensation, and advancement for all position classifications shall be based on job-related criteria as well as be responsive to the District's needs.

The District shall from time to time as necessary provide professional and staff development activities and training to promote understanding of diversity.

It is unlawful to discriminate against a person who serves in an unpaid internship or any other limited-duration program to provide unpaid work experience in the selection, termination, training, or other terms and treatment of that person on any basis of their race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, immigration status, or military and veteran status.

Also see BP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3430 Prohibition of Harassment, AP 3435 Discrimination and Harassment Complaints and Investigations, BP 4030 Academic Freedom, and BP/AP 5140 Disabled Student Programs and Services.

Approved: 11/7/05
Revised: 5/8/06
Revised: 1/8/07
Revised: 1/12/09
Revised: 7/9/12
Revised: 3/10/14
Reviewed: 9/12/16
Revised: 8/13/18
Revised 4/13/20
Revised 6/12/23

AP 3415 Immigration Enforcement Activities

References:
Education Code Sections 66093 and 66093.3

Responding to Requests for Access for Immigration Enforcement Activities
District personnel shall provide guidance and offer to campus employees training addressing law enforcement access to campus buildings and student residences. This guide shall include the following required topics:

- Campus police contact information to report concerns about the presence of officers engaged in immigration enforcement on any campus property.
- Samples of warrant and subpoena documents that could be used for access onto campus property, or to seize or arrest students or other individuals on campus.
- Sample responses for building personnel to use in response to officers seeking access for immigration enforcement purposes that avoids classroom interruptions, and that preserves the peaceful conduct of the school's activities.

District personnel shall advise all students, faculty, and staff to immediately notify the office of the Superintendent/President, or his/her designee, if he/she is advised that an officer engaged in immigration enforcement is expected to enter, will enter, or has entered the campus for immigration enforcement purposes. Campus police should also be notified as soon as possible.

No personnel may consent to entry of District facilities or portions thereof.

District personnel shall advise all students, faculty, and staff responding to or having contact with an officer engaged in immigration enforcement executing an immigration order, to refer the entity or individual to the office of the Superintendent/President, or his/her designee, for purposes of verifying the legality of any warrant, court order, or subpoena.

If the officer declares that exigent circumstances exist and demands immediate access to the campus, District personnel should not refuse the officer's orders and immediately contact the **Superintendent/President's Office**.

The office or designee of the Superintendent/President's Office shall determine what type of authorization is being provided to support the officer's request for access:

- **A U.S. Immigrations and Customs Enforcement (ICE) "warrant."** Immediate compliance is not required. District personnel shall inform the officer that he/she cannot consent to any request without first consulting with the **Superintendent/President's Office**. Provide copy of the warrant

to the designated administrator (where possible, in consultation with legal counsel) as soon as possible.

- **A federal judicial warrant (search-and-seizure warrant or arrest warrant)**: Prompt compliance with such a warrant is usually legally required, but where feasible, consult with the **Superintendent/President's Office** before responding.
- **A subpoena for production of documents or other evidence**: Immediate compliance is not required. Inform the officer that the District cannot respond to the subpoena until after it has been reviewed by a designated administrator. Provide a copy of the subpoena to a designated administrator or legal counsel as soon as possible.
- **A notice to appear**: This document is not directed at the District. District personnel are under no obligation to deliver or facilitate service of this document to the person named in the document. If a copy of the document is received, it must be given to a designated administrator as soon as possible.

District personnel should not attempt to physically interfere with an officer, even if the officer appears to be acting without consent or exceeding the authorization given under a warrant or other document. If an officer enters the premises without consent, District personnel shall make a record of the contact and forward the information to the Office of the President or Chancellor.

In making record of the contact with an immigration enforcement officer, District personnel shall provide the following information:

- Name of the officer, and, if available, the officer's credentials and contact information;
- Identity of all school personnel who communicated with the officer;
- Details of the officer's request;
- Whether the officer presented a warrant, subpoena, or court order to accompany his/her request, what was requested in the warrant/subpoena/court order, and whether the warrant/subpoena/court order was signed by a judge;
- District personnel's response to the officer's request;
- Any further action taken by the immigration officer; and
- Photo or copy of any documents presented by the agent.

District personnel shall provide a copy of those notes, and associated documents collected from the officer, to the **Superintendent/President's Office** .

In turn, the **Superintendent/President's Office** shall submit a timely report to the District's governing board and the campus public safety office regarding the officer's requests and actions and the District's response(s).

Responding to Immigration Acts against Students or Family Members

If there is reason to suspect that a student, faculty member, or staff person has been taken into custody as the result of an immigration action, District personnel shall notify the person's emergency contact that the person may have been taken into custody.

District personnel shall designate a staff person as a point of contact for any student, faculty member, or staff person who may or could be subject to an immigration order or inquiry.

District personnel shall not discuss the personal information, including immigration status information, of any student, faculty member, or staff person with anyone, or reveal the personal information to anyone, unless disclosing this information is permitted by federal and state law.

District personnel shall maintain a contact list of legal service providers who provide legal immigration representation and provide this list free of charge to any student who requests it. At minimum, the list shall include the legal service provider's name and contact number, e-mail address, and office address.

If a student is detained or deported, or is unable to attend to his/her academic requirements because of an immigration order, District shall make all reasonable efforts to assist the student in retaining any eligibility for financial aid, fellowship stipends, exemption from nonresident tuition fees, funding for research or other educational projects, housing stipends or services, or other benefits the student has been awarded or received subject to and in compliance with its policy.

District personnel shall permit a student who is subject to an immigration order to reenroll if and when the student is able to return to the District, subject to and in compliance with its policy and will make reasonable and good-faith efforts to provide for a seamless transition in the student's reenrollment and reacquisition of campus services and support.

District personnel shall be available to assist any student, faculty, and staff who may be subject to an immigration order or inquiry, or who may face similar issues, and whose education or employment is at risk because of immigration enforcement actions.

Adopted 5/13/19

AP 3420 Equal Employment Opportunity

References:

Education Code Sections 87100 et seq.;
Title 5 Sections 53000 et seq. and 59300 et seq.
Accreditation Standard III.A.12
20 U.S. Code Sections 1681 et seq.;

The Equal Employment Opportunity (EEO) Plan shall be a District-wide, written plan that implements the District's EEO program, includes the definitions contained in Title 5 Section 53001 and addresses the following:

- Submission of plans and revisions to the California Community Colleges Chancellor's Office for review and approval as required
- The designation of the District employee or employees who have been delegated responsibility and authority for implementing the Plan and assuring compliance with the requirements of this procedure;
- The procedure for filing complaints and the person with whom such complaints are to be filed;
- A process for notifying all District employees of the provisions of the Plan and the policy statement required;
- A process for ensuring that District employees who are to participate on screening or selection committees receive, prior to their participation, training on the requirements of the applicable Title 5 regulations and of state and federal nondiscrimination laws, the educational benefits of workforce diversity, the elimination of bias in hiring decisions, and best practices in serving on a screening or selection committee;
- A process for providing annual written notice to appropriate community-based and professional organizations concerning the District's Plan and the need for assistance from such organizations in identifying qualified applicants for openings within the District;
- An analysis of the number of persons from "monitored groups", as defined by Title 5 Section 53001 subdivision (i), who are employed in the District's work force and those who have applied for employment in each of the job categories listed below
- An analysis of the degree to which monitored groups are underrepresented in comparison to the numbers of persons from such groups whom the California Community Colleges Chancellor's Office determines to be available and qualified to perform the work required for each such job category and whether or not the under-representation is significant;
- The steps the District will take to promote diversity in its work force;
- Methods for addressing any discrimination that is detected in the District's hiring practices, and;

- Additional steps to address any significant under-representation of monitored groups identified in the Plan.
- The Plan shall be a public record.

The District shall make a continuous good faith effort to comply with the requirements of the Plan.

Annual Evaluation

The Office of Human Resources will annually survey the District's workforce composition and shall monitor applicants for employment on an ongoing basis to evaluate the District's progress in implementing the EEO Plan, to provide data needed for the reports required by the Plan and to determine whether any monitored group is underrepresented. The Ddistrict will annually report to the California Community Colleges Chancellor the results of its annual survey of employees. At least every three (3) years the Plan will be reviewed and, if necessary, revised based on an analysis of the ethnic group identification, gender, and disability composition of existing staff and of those who have applied for employment in each of the following identified job categories:

- executive/administrative/managerial
- faculty and other instructional staff
- professional non-faculty
- secretarial/clerical
- technical and paraprofessional
- skilled crafts; and
- service and maintenance.

For purposes of the survey and report, each applicant or employee will be afforded the opportunity to voluntarily identify her/ his gender, ethnic group identification and, if applicable, her/ his disability. Persons may designate as many ethnicities as they identify with, but shall be counted in only one ethnic group for reporting purposes. This information will be kept confidential and will be separated from the applications that are forwarded to the screening/selection committee and hiring administrator(s).

The District shall review the annually collected demographic data to determine if significant underrepresentation of a monitored group may be the result of non-job-related factors in the employment process. For the purposes of this subdivision, the phases of the employment process include but are not limited to recruitment, hiring, retention, and promotion. The information to be reviewed shall include, but need not be limited to:

- longitudinal analysis of data regarding job applicants to identify whether over multiple job searches, a monitored group is disproportionately failing to move from the initial applicant pool, to the qualified applicant pool; and analysis of data regarding potential job applicants, to the extent provided by the Chancellor of the

California Community Colleges, which may indicate significant underrepresentation of a monitored group.

EEO Advisory Committee

The District has established an Equal Employment Opportunity Advisory Committee to assist the District in implementing its EEO Plan. The committee may also assist in promoting an understanding and support of equal opportunity and nondiscrimination policies and procedures. The committee may sponsor events, training, or other activities that promote equal employment opportunity, nondiscrimination, retention and diversity. The committee shall include a diverse membership whenever possible. The committee will be composed of the EEO Officer, Human Resources Director, two (2) members from the Academic Senate, one administrative council member, two (2) ASO representatives, two (2) classified union representatives, one member of the confidential/ management/supervisory unit, one (1) member from the Office of Students with Disabilities, and one (1) member from the faculty union. Ex-officio members shall include the Human Resources Vice President and the EEO Officer, if different from the Human Resources Vice President. The Equal Employment Opportunity Advisory Committee shall hold a minimum of four (4) meetings per fiscal year, with additional meetings if needed to review EEO and diversity efforts, programs, policies, and progress. When appropriate, the advisory committee shall make recommendations to the Board of Trustees, the Superintendent/President, and EEO Officer. The advisory committee shall receive training in all the following: applicable Title 5 regulations and of state and federal nondiscrimination laws; the educational benefits of workforce diversity, the identification and elimination of bias in hiring decisions; and the role of the advisory committee in carrying out of the District's EEO Plan.

Employment Procedures

Job Analysis and Validation: The Assistant Superintendent/Vice President of Human Resources or designee shall assure that a proper job analysis is performed for every job filled by the District to determine and validate the knowledge, skills, abilities and characteristics an employee must possess to perform the job satisfactorily.

A statement of bona fide essential functions and minimum qualifications shall be developed for all positions.

Job Description: Every job description shall provide a general statement of job duties and responsibilities.

Job specifications shall include functions and tasks; knowledge; skills; ability; and job-related personal characteristics, including but not limited to sensitivity to and understanding of the diverse academic, socioeconomic, cultural, linguistic, disability, and ethnic backgrounds of community college students.

Recruitment

- Recruitment must be conducted actively within and outside of the District work force.
- Open recruitment is mandated for all new full-time and part-time positions, except under limited circumstances.
- Recruitment must utilize outreach strategies designed to ensure that all qualified individuals, from all monitored groups, are provided the opportunity to seek employment with the District.
- Recruitment for administrative and faculty positions (full and part-time) may include advertisement in appropriate professional journals, job registries and newspapers of general circulation; distribution of job announcements to the EEO Registry, K-12 districts, two and four year colleges, and graduate schools where appropriate candidates might be enrolled; recruitment at conferences, fairs, and professional meetings; notices to institutions and professional organizations that primarily serve members of monitored groups that are underrepresented in the District.
- Recruitment for classified positions shall include notice to all District personnel; notice to Employment Development Department; and advertising in area newspapers of general circulation.

Applicant Pools

- The application for employment shall afford each applicant an opportunity to identify himself/ herself voluntarily as to gender, ethnicity and, if applicable, his/ her disability. This information shall be maintained in confidence and shall be used only for research, validation, monitoring, evaluation of the effectiveness of the Plan, or as authorized by law.
- After the application deadline has passed, the initial applicant pool shall be analyzed to determine whether the projected representation has been achieved for monitored groups. If these projections have not been met, the District shall immediately determine whether the failure to meet the projected representation of monitored groups in the initial pool was due to discriminatory practices. If not, the hiring process may continue to the next level. If, however, the District determines that discriminatory practices caused the under-representation, the District may immediately, and before the selection process continues, consult with legal counsel to determine what, if any, corrective action is required by law.
- Once the qualified pool is formed, the pool must again be analyzed. If this analysis reveals adverse impact against any monitored group, the District may immediately, and before the selection process continues, consult with legal counsel to determine what, if any, corrective action is required by law.

Screening and Selection
Screening, selecting and interviewing candidates for all positions shall include thorough and fair procedures that are sensitive to issues of diversity. Procedures to be used must address or include that:

- Hiring procedures will be provided to the California Community Colleges Chancellor's Office on request.
- All tests conform to generally applicable legal standards for uniformity.
- A reasonable number of candidates are identified for interview.
- Screening and selection committees are developed that are representative of the District community and campus; include a diverse membership when possible; and exclude applicants, persons who have written letters of recommendation, family members, and relatives.
- Every screening and selection committee includes an EEO representative trained to monitor conformance with EEO requirements. The Vice President of Human Resources assures that the screening and selection process conforms to accepted principles and practices, including preparation of job-related questions in advance; maintains records of screening checklists and rating scales, which shall be signed and kept on file; maintains notes for all interviews and records relevant factual reasons stating why a candidate was not hired or was not invited to interview; and monitors the hiring process for adverse impact.
- Selection shall be based solely on the stated job criteria.
- For faculty and administrative positions, candidates shall be required to demonstrate sensitivity to diversity in ways relevant to the specific position.

If the District determines that a particular monitored group is significantly underrepresented with respect to one or more job categories, the District shall take the following additional steps:

- review its recruitment procedures;
- consult with counsel to determine whether there are other, additional measures that may be undertaken that are required and/or permitted by law;
- consider various other means of reducing the under-representation which do not involve taking monitored group status into account and implement any such techniques that are feasible;
- If significant under-representation persists:

    - monitor on an on-going basis;
    - review each locally-established job qualification to determine if it is job related and consistent with business necessity;
    - discontinue the use of any non-job-related local qualification;
    - and continue using job-related local qualifications only if no alternative standard is reasonably available.

- Consider the implementation of additional measures designed to promote diversity.

Delegation of Authority
The Board of Trustees delegates to the Assistant Superintendent/Vice President of Human Resources the responsibility for ongoing implementation of the Plan and for providing leadership in supporting the District's equal employment opportunity policies and procedures. The Vice President of Human Resources shall also serve as the Equal Employment Opportunity Officer who is responsible for the day-to-day implementation of the Plan. If a complaint involves the Equal Employment Opportunity Officer, the complaint may be filed with the Superintendent/President.

Complaint Procedure
The process for filing a complaint alleging that the equal employment opportunity regulations have been violated is outlined in the EEO Plan. In addition, the District has adopted procedures for complaints alleging unlawful discrimination or harassment. The District's discrimination and sexual harassment complaint procedures are attached to the EEO Plan.

The District must identify to the public and to the California Community Colleges Chancellor's Office an individual described in Title 5 as the "responsible District officer," responsible for receiving complaints. Informal charges of unlawful discrimination should be brought to the attention of the responsible District officer. The responsible District officer shall oversee the informal resolution process. The actual investigation of complaints may be assigned to other staff or to outside persons or organizations under contract. An outside investigator must be used when the responsible District officer is named in the complaint or implicated by the allegations in the complaint.

When a person brings charges of unlawful discrimination the officer must:
- Undertake efforts to resolve the charge informally;
- Advise the complainant that he/she need not participate in an informal resolution of the complaint;
- Notify the complainant of the procedures for filing a formal complaint;
- Notify the complainant that he/she may file a complaint with the Office of Civil Rights of the U.S. Department of Education.
- If the complainant, a student or an employee, files a formal complaint, the responsible District officer must also forward a copy of the complaint to the California Community Colleges Chancellor's Office.

A formal complaint not involving employment, must be processed if it is filed within one (1) year of the date of the alleged unlawful discrimination or within one year of the date on which the complainant knew or should have known of the facts underlying the allegation.

A formal complaint alleging discrimination in employment must be filed within one hundred-eighty (180) days of the date of the alleged unlawful discrimination, unless the complainant first obtained knowledge of the facts of the alleged violation after the expiration of the initial one hundred-eighty (180) days.

The complaint must be filed by someone who alleges that he/she has personally suffered unlawful discrimination, or by someone who has learned about unlawful discrimination in his/her official capacity.

When a proper complaint is received, the District will begin an impartial fact-finding investigation, and notify the complainant and the California Community Colleges Chancellor's Office that it is doing so.

When the investigation is done, the results must be set forth in a written report. The written report must include a description of the circumstances giving rise to the complaint, a summary of the testimony of each witness, an analysis of any relevant data or other evidence collected during the investigation, a specific finding as to whether discrimination did or did not occur with respect to each allegation in the complaint, and any other appropriate information.

In any case that does not involve employment discrimination, the District must provide the California Community Colleges Chancellor's Office with a copy of the investigative report within ninety (90) days from the date the District received the complaint. The District must also provide the complainant with a copy or summary of the investigative report within ninety (90) days from the date the District received the complaint. The California Community Colleges Chancellor's Office and the complainant must also be provided with a written notice setting forth the determination of the Assistant Superintendent/Vice-President of Human Resources as to whether discrimination did or did not occur with respect to each allegation in the complaint; a description of action taken, if any, to prevent similar problems from occurring in the future; the proposed resolution of the complaint; and notice of the complainant's right to appeal to the District's Board of Trustees and the California Community Colleges Chancellor's Office.

In any case that involves employment discrimination, the District must provide the complainant with a copy or summary of the report, and with written notice setting forth the determination of the Assistant Superintendent/Vice-President of Human Resources as to whether discrimination did or did not occur with respect to each allegation in the complaint; a description of action taken, if any, to prevent similar problems from occurring in the future; the proposed resolution of the complaint; and the complainant's right to appeal to the District's Board of Trustee and to file a complaint with the Department of Fair Employment and Housing (DFEH).

If the complainant is not satisfied with the results of the administrative determination, the complainant must be given the opportunity to submit a written appeal to the Board of

Trustees within fifteen (15) days from the date of the notice of the administrative determination. The Board of Trustees must review the original complaint, the investigative report, the administrative determination, and the appeal and must issue a final District decision within forty-five (45) days of receiving the appeal.

In any case not involving employment discrimination, a copy of the final District decision must be promptly forwarded to the complainant and the California Community Colleges Chancellor's Office. The complainant must be notified of his/her right to appeal. In any case involving employment discrimination, a copy of the final District decision must be promptly forwarded to the complainant. The complainant must be notified of his/her to right to file a complaint with the DFEH.

Where the Board does not act within forty-five (45) days the administrative determination must be deemed approved and must become the final District decision. The District shall promptly notify the complainant and in cases not involving employment discrimination, the California Community Colleges Chancellor's Office, that the Board of Trustees took no action and the administrative determination becomes the final District decision. In cases not involving employment discrimination, the complainant must be informed of his/her right to appeal the District's decision to the California Community Colleges Chancellor's Office. In cases involving employment discrimination, the complainant shall be notified of his/her right to file a complaint with the DFEH.

In cases not involving employment discrimination, the complainant must be given the right to file a written appeal with the California Community Colleges Chancellor's Office within thirty (30) days after the Board of Trustees issues the final District decision, permits the administrative decision to become final or from the date that notice of the District's final decision was provided to the complainant pursuant to Title 5 Section 59338 subdivisions (b) or (d), whichever is later.

The District should retain and make available the original complaint, and copies of the final decision or a statement indicating the date on which the administrative determination became final, the notice given to complainant, the complainant's appeal of the District's administrative determination, the investigative report and any other information the California Community Colleges Chancellor's Office may require.

Job Announcements

All job announcements shall contain a statement in substantially the following form: The District is an equal opportunity employer. The policy of the District is to encourage applications from ethnic and racial minorities, women, persons with disabilities, and ~~Vietnam-era~~ active military and veterans. No person shall be denied employment because of ethnicity or race, color, sex or gender, gender identity, age, religion, marital status, disability, sexual orientation, national origin, medical conditions, status as a ~~Vietnam-era~~ active military and veterans, ancestry, or political or organizational affiliation.

Dissemination and Revision of the Plan
The EEO Plan and subsequent revisions will be distributed to the Board of Trustees, the President, administrators, the Academic Senate President, faculty and classified union presidents, and members of the District Equal Employment Opportunity Advisory Committee. The Plan will be available on the District's website, and when appropriate, may be distributed by e-mail.

Statements of nondiscrimination shall be posted at locations where applications for employment are distributed.

Such plans shall be reviewed at least every three (3) years and, if necessary, revised and submitted to the California Community Colleges Chancellor's Office within ninety (90) days of the effective date of the revision or amendment(s). If the California Community Colleges Chancellor's Office determines that the District's policies are not in compliance with Title 5 Sections 59300 et seq., the California Community Colleges Chancellor's Office may require the District to modify its policies.

Accountability and Corrective Action
The District shall certify annually to the California Community Colleges Chancellor that they have timely:

- Recorded, reviewed and reported the data required regarding qualified applicant pools;
- Reviewed and updated, as needed, the Strategies Component of the District's EEO Plan; and
- Investigated and appropriately responded to formal harassment or discrimination complaints filed pursuant to subchapter 5 (commencing with section 59300) of chapter 10 of this division.

Also see BP 3420 Equal Employment Opportunity, BP/AP 3410 Nondiscrimination, and BP/AP 7100 Commitment to Diversity.

Approved: 4/14/08
Revised: 5/9/16
Revised: 4/13/20

AP 3430 Prohibition of Harassment

References:

Education Code Sections 212.5, 44100 and 66281.5, and 66281.8;
Government Code Sections 12940 and 12923
Civil Code Section 51.9;
Title 2 Sections 10500 et seq.;
Title 5 Sections 59320 et seq.;
Title VII of the Civil Rights Act of 1964
42 U.S. Code Annotated Section 2000e

The District is committed to providing an academic and work environment free of unlawful harassment. This procedure defines sexual harassment and other forms of harassment on campus and sets forth a procedure for the investigation and resolution of complaints of harassment by or against any staff or faculty member or student within the District.

This procedure and the related policy protects students, employees, unpaid interns and volunteers in connection with all the academic, educational, extracurricular, athletic, and other programs of the District, whether those programs take place in the District's facilities, District bus, or at a class or training program sponsored by the District at another location.

Definitions

General Harassment. Harassment based on race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation of any person, military and veteran status, or the perception that a person has one or more of these characteristics is illegal and violates District policy. Harassment shall be found where a reasonable person with the same characteristics as the victim of the harassing conduct would be adversely affected to a degree that interferes with his/ her/their ability to participate in or to realize the intended benefits of an institutional activity, employment, or resource.

For sexual harassment under Title IX, Complainants must proceed under BP 3433 Prohibition of Sexual Harassment under Title IX, AP 3433 Prohibition of Sexual Harassment under Title IX, and AP 3434 Responding to Harassment Based on Sex under Title IX. For other forms of sexual harassment or gender-based harassment, Complainants should use this procedure.

Gender-based harassment does not necessarily involve conduct that is sexual. Any hostile or offensive conduct based on gender can constitute prohibited harassment if it meets the definition above. For example, repeated derisive comments about a person's competency to do the job, when based on that person's gender, could constitute gender-based harassment. Harassment comes in many forms, including but not limited to the following

conduct that could, depending on the circumstances, meet the definition above, or could contribute to a set of circumstances that meets the definition:

- **Verbal:** Inappropriate or offensive remarks, slurs, jokes or innuendoes based on a person's race, gender, sexual orientation, or other protected status. This may include, but is not limited to, inappropriate comments regarding an individual's body, physical appearance, attire, sexual prowess, marital status or sexual orientation; unwelcome flirting or propositions; demands for sexual favors; verbal abuse, threats or intimidation; or sexist, patronizing or ridiculing statements that convey derogatory attitudes based on gender, race, nationality, sexual orientation or other protected status.

- **Physical:** Inappropriate or offensive touching, assault, or physical interference with free movement. This may include, but is not limited to, kissing, patting, lingering or intimate touches, grabbing, pinching, leering, staring, unnecessarily brushing against or blocking another person, whistling or sexual gestures. It also includes any physical assault or intimidation directed at an individual due to that person's gender, race, national origin, sexual orientation or other protected status. Physical sexual harassment includes acts of sexual violence, such as rape, sexual assault, sexual battery, and sexual coercion. Sexual violence refers to physical sexual acts perpetrated against a person's will or where a person is incapable of giving consent due to the victim's use of drugs or alcohol. An individual also may be unable to give consent due to an intellectual or other disability.

- **Visual or Written:** The display or circulation of visual or written material that degrades an individual or group based on gender, race, nationality, sexual orientation or other protected status. This may include, but is not limited to, posters, cartoons, drawings, graffiti, reading materials, computer graphics or electronic media transmissions.

- **Environmental:** A hostile academic or work environment may exist where it is permeated by sexual innuendo; insults or abusive comments directed at an individual or group based on gender, race, nationality, sexual orientation or other protected status; or gratuitous comments regarding gender, race, sexual orientation, or other protected status that are not relevant to the subject matter of the class or activities on the job. A hostile environment can arise from an unwarranted focus on sexual topics or sexually suggestive statements in the classroom or work environment. It can also be created by an unwarranted focus on, or stereotyping of, particular racial or ethnic groups, sexual orientations, genders or other protected statuses. An environment may also be hostile toward anyone who merely witnesses unlawful harassment in his/her/their immediate surroundings, although the conduct is directed at others. The determination of whether an environment is hostile is based on the totality of the circumstances, including such factors as the frequency of the conduct, the severity of the conduct, whether the conduct is humiliating or physically threatening, and whether the conduct unreasonably interferes with an individual's learning or work.

Sexual Harassment. In addition to the above, sexual harassment consists of unwelcome sexual advances, requests for sexual favors, and other verbal, visual, or physical conduct of a sexual nature made by someone from, or in, the work or educational setting when:

- submission to the conduct is explicitly or implicitly made a term or condition of an individual's employment, academic status, progress, internship, or volunteer activity;

- submission to, or rejection of, the conduct by the individual is used as a basis of employment or academic decisions affecting the individual;

- the conduct has the purpose or effect of having a negative impact upon the individual's work or academic performance, or of creating an intimidating, hostile or offensive work or educational environment (as more fully described below); or

- submission to, or rejection of, the conduct by the individual is used as the basis for any decision affecting the individual regarding benefits and services, honors, programs, or activities available at or through the community college.

This definition encompasses two (2) kinds of sexual harassment:

- **"Quid pro quo"** sexual harassment occurs when a person in a position of authority makes educational or employment benefits conditional upon an individual's willingness to engage in or tolerate unwanted sexual conduct.

- **"Hostile environment"** sexual harassment occurs when unwelcome conduct based on a person's gender alters the conditions of an individual's learning or work environment, unreasonably interfere with an individual's academic or work performance, or creates an intimidating, hostile, or abusive learning or work environment. The victim must subjectively perceive the environment as hostile, and the harassment must be such that a reasonable person of the same gender would perceive the environment as hostile. A single or isolated incident of sexual harassment may be sufficient to create a hostile environment if it unreasonably interfered with the person's academic or work performance or created an intimidating, hostile, or offensive learning or working environment.

Sexually harassing conduct can occur between people of the same or different genders. The standard for determining whether conduct constitutes sexual harassment is whether a reasonable person of the same gender as the victim would perceive the conduct as harassment based on sex.

Consensual Relationships

Romantic or sexual relationships between supervisors and employees, or between administrators, faculty members or staff members and students are discouraged. There is an inherent imbalance of power and potential for exploitation in such relationships. A

conflict of interest may arise if the administrator, faculty members, or staff member must evaluate the student's or employee's work or make decisions affecting the employee or student. The relationship may create an appearance of impropriety and lead to charges of favoritism by other students or employees. A consensual sexual relationship may change, with the result that sexual conduct that was once welcome becomes unwelcome and harassing. In the event that such relationships do occur, the District has the authority to transfer any involved employee, to eliminate or attenuate the supervisory authority of one over the other, or of a teacher over a student. Such action by the District is a proactive and preventive measure to avoid possible charges of harassment and does not constitute discipline against any affected employee.

Academic Freedom

No provision of this administrative procedure shall be interpreted to prohibit conduct that is legitimately related to the course content, teaching methods, scholarship, or public commentary of an individual faculty member or the educational, political, artistic, or literary expression of students in classrooms and public forums. Freedom of speech and academic freedom are, however, not limitless and this procedure will not protect speech or expressive conduct that violates federal or California antidiscrimination laws.

Also see BP 3430 Prohibition of Harassment, BP/AP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3433 Prohibition of Sexual Harassment Under Title IX, AP 3434 Responding to Harassment Based on Sex Under Title IX, and AP 3435 Discrimination and Harassment Complaints and Investigations.

Approved: 11/7/05
Revised: 8/13/12
Revised: 5/9/16
Revised: 5/13/19
Revised: 11/12/19
Revised: 6/12/23

AP 3433 Prohibition of Sexual Harassment under Title IX

References:

Title 5 Sections 59320 et seq.;
Title VII of the Civil Rights Act of 1964, 42 U.S. Code Annotated Section 2000e;
Title IX Education Amendments of 1972

The District is committed to providing an academic and work environment free of unlawful sex harassment under Title IX. This procedure defines sexual harassment on campus.

This procedure and the related policy protects students, employees, in connection with all the academic, educational, extracurricular, athletic, and other programs of the District, whether those programs take place in the District's facilities, a District bus, or at a class or training program sponsored by the District at another location.

Definitions

Sexual Harassment under Title IX: Conduct that satisfies one or more of the following:

- A District employee conditions the provision of an aid, benefit, or service of the District on an individual's participation in unwelcome sexual conduct (*quid pro quo* harassment);
- Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the District's education program or activity;
- Sexual assault, including the following:
    - **Sex Offenses**. Any sexual act directed against another person, without the consent of the victim, including instances where the victim is incapable of giving consent.
    - **Rape** (except Statutory Rape). The carnal knowledge of a person, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their age or because of his/her/their temporary or permanent mental or physical incapacity. There is carnal knowledge if there is the slightest penetration of the genital or anal opening of the body of another person.
    - **Sodomy**. Oral or anal sexual intercourse with another person, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their age or because of his/her/their temporary or permanent mental or physical incapacity.
    - **Sexual Assault with an Object**. To use an object or instrument to unlawfully penetrate, however slightly, the genital or anal opening of the body of another person, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their age or because of his/her/their

temporary or permanent mental or physical incapacity. An "object" or "instrument" is anything the offender uses other than the offender's genitalia, e.g., a finger, bottle, handgun, stick.

- **Fondling**. The touching of the private body parts of another person for the purpose of sexual gratification, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their age or because of his/her/their temporary or permanent mental or physical incapacity.
- **Sex Offenses, Non-Forcible Unlawful, Non-Forcible Sexual Intercourse**.
  - **Incest**. Non-Forcible sexual intercourse between persons who are related to each other within the degrees wherein marriage is prohibited by law.
  - **Statutory Rape** – Non-Forcible. Sexual intercourse with a person who is under the statutory age of consent. There is no force or coercion used in Statutory Rape; the act is not an attack.
- **Dating violence**. Violence against a person who is or has been in a social relationship of a romantic or intimate nature with the victim. The existence of a relationship will be determined based on a consideration of the following factors: the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.
- **Domestic Violence**. Violence committed:
  - By a current or former spouse or intimate partner of the victim;
  - By a person with whom the victim shares a child in common;
  - By a person who is cohabitating with, or has cohabitated with, the victim as a spouse or intimate partner;
  - By a person similarly situated to a spouse of the victim under the domestic or family violence laws of California; or
  - By any other person against an adult or youth victim protected from that person's acts under the domestic or family violence laws of California.
- **Stalking**. Engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his/her/their safety or the safety of others or suffer substantial emotional distress.

For non-Title IX matters, also see BP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3430 Prohibition of Harassment, AP 3435 Discrimination and Harassment Complaints and Investigations.

Adopted 6/12/23

AP 3434 Responding to Harassment Based on Sex under Title IX

References:

Education Code Sections 67380 et seq.;
34 Code of Federal Regulations Parts 106.1 et seq.;
20 U.S. Code Sections 1681 et seq.

Introduction

The District encourages members of the District community to report sexual harassment. This procedure only applies to conduct defined as sexual harassment under Title IX and applicable federal regulations and that meets Title IX jurisdictional requirements. The District will respond to sexual harassment and sexual misconduct that falls outside that definition and outside the jurisdiction of the Title IX federal regulations using California law and applicable District policies and procedures. In implementing these procedures discussed below, the District will also provide supportive measures, training, and resources in compliance with California law, unless they are preempted by the Title IX regulations.

Title IX Coordinator

Questions concerning Title IX may be referred to the District Title IX Coordinator whose contact information is below.

The District's Title IX Coordinator are the:

Assistant Superintendent/Vice President Human Resources, or designee - staff
3041 West Avenue K
Lancaster, CA 93536
661/722-6300
contacthr@avc.edu

Assistant Superintendent/Vice President Student Services, or designee – students
3041 West Avenue K
Lancaster, CA 93536
661/722-6300
StudentTitleIX@avc.edu,

The Title IX Coordinator is required to respond to reports of sexual harassment or misconduct. The Title IX Coordinator will handle information received with the utmost discretion and will share information with others on a need-to-know basis. For example, the Title IX Coordinator may need to address public safety concerns on campus, comply with state and federal legal requirements, or share information to implement supportive measures.

A report of sexual harassment to the Title IX Coordinator does not necessarily lead to a full investigation, as discussed more fully below. However, the Title IX Coordinator will make an assessment to determine if there is a safety risk to the campus. If the Title IX Coordinator finds there is a continued risk, the Title IX Coordinator will file the formal complaint without the Complainant's consent or cooperation.

Title IX Harassment Complaints, Investigations, and Hearings
These Title IX sexual harassment procedures and the related policy protect students, employees, applicants for employment, and applicants for admission.

The investigation and adjudication of alleged sexual harassment under this procedure is not an adversarial process between the Complainant, the Respondent, and the witnesses, but rather a process for the District to comply with its obligations under existing law. The Complainant does not have the burden to prove, nor does the Respondent have the burden to disprove, the underlying allegation or allegations of misconduct.

Jurisdictional Requirements – Application of Procedures
These procedures apply if the conduct meets the following three jurisdictional requirements:

- The conduct took place in the United States.
- The conduct took place in a District "education program or activity." This includes locations, events, or circumstances over which the District exercised substantial control over both the Respondent and the context in which the harassment occurred, including on-campus and off-campus property and buildings the District owns or controls or student organizations officially recognized by the District own or control.
- The conduct meets the definition of Title IX "sexual harassment."

Definitions

Advisor: Throughout the grievance process, both the Complainant and Respondent have a right to an Advisor of their choice. If a Party does not have an Advisor at the time of the hearing, the District must provide the Party an Advisor of the District's choice, free of charge. The District may establish restrictions regarding the extent to which the Advisor may participate in the proceedings as long as the restrictions apply equally to both Parties.

Parties have the right to consult with an attorney, at his/her/their own expense, at any stage of the Complaint process if he/she/they wishes to do so. An attorney may serve as an advisor.

Complainant: A Complainant is an individual who alleges he/she/they is the victim of conduct that could constitute sexual harassment.

Consent: Consent means affirmative, conscious, and voluntary agreement to engage in sexual activity. Both Parties must give affirmative consent to sexual activity. It is the

responsibility of each person involved in the sexual activity to ensure that he/she/they has the affirmative consent of the other or others to engage in the sexual activity. Lack of protest, lack of resistance, or silence does not indicate consent. Affirmative consent must be ongoing throughout a sexual activity and one can revoke his/her/their consent at any time. The existence of a dating relationship between the persons involved, or the fact of past sexual relations between them, is not an indicator of consent.

The Respondent's belief that the Complainant consented will not provide a valid defense unless the belief was actual and reasonable, based on the facts and circumstances the Respondent knew, or reasonably should have known, at the time of the incident. A Respondent's belief is not a valid defense where:

- The Respondent's belief arose from the Respondent's own intoxication or recklessness;
- The Respondent did not take reasonable steps to ascertain whether the Complainant affirmatively consented; or
- The Respondent knew or a reasonable person should have known that the Complainant was unable to consent because the Complainant was incapacitated, in that the Complainant was:
    - asleep or unconscious;
    - unable to understand the fact, nature, or extent of the sexual activity due to the influence of drugs, alcohol, or medication; or
    - unable to communicate due to a mental or physical condition.

Decision-Maker: Designees from student services, academic affairs and/or human resources will oversee the live hearing and make a determination of responsibility. The Decision-Maker cannot be the Title IX Coordinator or the investigator.

Formal Complaint: A written complaint signed by the Complainant or Title IX Coordinator, alleging sexual harassment and requesting an investigation. If the Title IX Coordinator signs the formal complaint, he/she/they will not become a Party to the complaint.

Parties: As used in this procedure, this means the Complainant and Respondent.

Respondent: A Respondent is an individual reported to be the perpetrator of conduct that could constitute sexual harassment.

Sexual Harassment under Title IX: Conduct that satisfies one or more of the following:

- A District employee conditions the provision of an aid, benefit, or service of the District on an individual's participation in unwelcome sexual conduct (*quid pro quo* harassment);

- Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the District's education program or activity;
- Sexual assault, including the following:
    - **Sex Offenses**: Any sexual act directed against another person, without the consent of the victim, including instances where the victim is incapable of giving consent.
    - **Rape** (except Statutory Rape): The carnal knowledge of a person, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their temporary or permanent mental or physical incapacity. There is carnal knowledge if there is the slightest penetration of the genital or anal opening of the body of another person.
    - **Sexual Assault with an Object**: To use an object or instrument to unlawfully penetrate, however slightly, the genital or anal opening of the body of another person, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their age or because of his/her/their temporary or permanent mental or physical incapacity. An "object" or "instrument" is anything the offender uses other than the offender's genitalia, e.g., a finger, bottle, handgun, stick.
    - **Fondling**: The touching of the private body parts of another person for the purpose of sexual gratification, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her/their age or because of his/her/their temporary or permanent mental or physical incapacity.
    - **Sex Offenses, Non-Forcible Unlawful, Non-Forcible Sexual Intercourse**:
        - **Incest**: Non-Forcible sexual intercourse between persons who are related to each other within the degrees wherein marriage is prohibited by law.
        - **Statutory Rape** – Non-Forcible: Sexual intercourse with a person who is under the statutory age of consent. There is no force or coercion used in Statutory Rape; the act is not an attack.
    - **Dating violence**: Violence against a person who is or has been in a social relationship of a romantic or intimate nature with the victim. The existence of a relationship will be determined based on a consideration of the following factors: the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.
    - **Domestic Violence**: Violence committed:
        - By a current or former spouse or intimate partner of the victim;
        - By a person with whom the victim shares a child in common;
        - By a person who is cohabitating with, or has cohabitated with, the victim as a spouse or intimate partner;
        - By a person similarly situated to a spouse of the victim under the domestic or family violence laws of California; or

- By any other person against an adult or youth victim protected from that person's acts under the domestic or family violence laws of California.

- **Stalking**: Engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his/her/their safety or the safety of others or suffer substantial emotional distress.

Reporting Options
Any individual may report sexual harassment to the District's Title IX Coordinator.

The District strongly encourages prompt reporting of sexual harassment. Prompt reporting allows for the collection and preservation of evidence, including physical evidence, digital media, and witness statements. A delay may limit the District's ability to effectively investigate and respond.

Because individuals may be deterred from reporting incidents of sexual harassment if alcohol, drugs, or other violations of District or campus rules were involved, the District will inform individuals that the primary concern is for student and employee safety and that use of alcohol or drugs never makes a Complainant at fault for sexual harassment. An individual who participates as a Complainant or witness in an investigation of sexual assault, domestic violence, dating violence, or stalking will not be subject to disciplinary sanctions for a violation of the District's student conduct policy at or near the time of the incident, unless the District determines that the violation was egregious, including, but not limited to, an action that places the health or safety of any other person at risk or involves plagiarism, cheating, or academic dishonesty.

Individuals have the opportunity to decide whether they want to pursue a formal Title IX complaint. Reporting sexual harassment to the Title IX Coordinator does not automatically initiate an investigation under these procedures. A report allows the District to provide a wide variety of support and resources to impacted individuals and to prevent the reoccurrence of the conduct. A Complainant or the Title IX Coordinator filing a formal complaint will initiate an investigation.

If there are parallel criminal and Title IX investigations, the District will cooperate with the external law enforcement agency and will coordinate to ensure that the Title IX process does not hinder legal process or proceedings.

The District will document reports of sexual harassment in compliance with the Clery Act, a federal law requiring data collection of crime within the campus geography. Under the Clery Act, the District does not document personal information; the District reports the type of conduct, and the time, date, and location. (Also see BP/AP 3540 Sexual and Other Assaults on Campus.)

District Employees and Officials with Authority
District Officials with Authority are not confidential resources and are required to report allegations of sexual harassment to the Title IX Coordinator promptly. All other

employees are encouraged to report allegations to the Title IX Coordinator but are not required to do so.

The District has designated the following employees as Officials with Authority:

President
General Counsel
Vice Presidents
Deans
Associate Deans
Executive Directors
Directors
Managers
Supervisors
Coaches

Officials with Authority are required to report all relevant information they know about sexual harassment including the name of the Respondent, the Complainant, any other witnesses, and the date, time, and location of the alleged incident.

Intake and Processing of Report

Receipt of Report
After receiving a report of sexual harassment, the Title IX Officer will contact the Complainant and reporting party to explain rights under this policy and procedure and invite the Complainant to an in-person meeting. The Title IX Officer will discuss supportive measures with the Parties.

Timeframe for Reporting
To promote timely and effective review, the District strongly encourages individuals to report sexual harassment as soon possible because a delay in reporting may affect the ability to collect relevant evidence and may affect remedies the District can offer.

Supportive Measures
Supportive measures are non-disciplinary, non-punitive individualized services offered free of charge to the Complainant or the Respondent regardless of whether a formal complaint has been filed. The District will provide the Complainant and Respondent with written notice of options for, available assistance in, and how to request available supportive measures. The District will provide such measures to Complainant and Respondent as appropriate and as reasonably available to restore or preserve equal access to the District's education program or activities. These measures are designed to protect the safety of all Parties, protect the District's educational environment, or deter sexual harassment. The District will provide supportive measures on a confidential basis and will not disclose that the District is providing supportive measures except to those with a need to know to enable the District to provide the service. Supportive measures may include changes to academic, living, transportation, and working situation or

protective measures such as counseling, extensions of deadlines, other course-related adjustments, modifications of work or class schedules, campus escort services, mutual restrictions on contact between the Parties, changes in work or housing locations, leaves of absence, increased security and monitoring of certain areas of the campus, and other similar measures.

When requested by a Complainant or otherwise determined to be appropriate, the District shall issue a no-contact directive prohibiting the Respondent from contacting the Complainant during the pendency of the investigation. The District shall not issue a mutual no-contact directive automatically, but instead shall consider the specific circumstances of each report of sexual harassment to determine whether a mutual no-contact directive is necessary or justifiable to protect a Party's safety or well-being, or to respond to interference with an investigation. If the District issues any no-contact directive, the District shall provide the Parties with an explanation of the terms of the directive, including the circumstances, if any, under which violation could be subject to disciplinary action. If the District issues a mutual no-contact directive, the District shall also provide the Parties with a written justification for the directive.

Removal of Respondent Pending Final Determination
Upon receiving a report regarding sexual harassment, the Title IX Coordinator will make an immediate assessment concerning the health and safety of the Complainant and campus community as a whole. The District has the right to order emergency removal of a Respondent, or if the Respondent is an employee, place the employee on administrative leave.

Emergency Removal
The District may remove a non-employee Respondent from the District's education program or activity on an emergency basis after it conducts an individualized safety and risk analysis and determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal.

The District may not use emergency removal to address a Respondent's threat of obstructing the sexual harassment investigation or destroying relevant evidence. Emergency removal is only available to address health or safety risks against individuals arising out of sexual harassment allegations, not to address other forms of misconduct that a Respondent might commit pending the processing of a complaint.

The District's Title IX Coordinator or designee will conduct the individualized safety and risk analysis.

If the Title IX Coordinator determines emergency removal is appropriate, he/she/they or designee will provide the person the District is removing from campus on an emergency basis with a notice and opportunity to attend a meeting and challenge the basis of his/her/their removal. The Title IX Coordinator or designee will determine whether the

emergency removal from campus order is warranted after considering information provided by the Respondent challenging the emergency removal.

Administrative Leave
The District may place a non-student employee Respondent on administrative leave during the pendency of a grievance process described in the formal complaint process below. The District will follow any relevant policies, procedures, collective bargaining agreements, or state law in placing an employee on administrative leave.

Formal Complaint Grievance Process

Notice to Parties
Upon receipt of a formal complaint, the Title IX Coordinator will provide the following notice in writing, to the Parties:

- Notice of the District's Title IX grievance process;
- Notice of the allegations of alleged sexual harassment with sufficient details known at the time and with sufficient time to prepare a response before any initial interview;
- Statement that the Respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process;
- Notice that the Parties may have Advisor of their choice, who may be, but is not required to be, an attorney;
- Notice that the Parties may inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint, including the evidence upon which the District does not intend to rely in reaching a determination regarding responsibility, and inculpatory or exculpatory evidence whether obtained from a Party or other source;
- Inform the Parties of any provision in the District's code of conduct that prohibits knowingly making false statements or knowingly submitting false information during the grievance process; and
- For student Parties, notice regarding appropriate counseling resources the District has developed and maintains.

If, in the course of an investigation, the District decides to investigate allegations about the Complainant or Respondent that are not included in the notice provided above, the Title IX Coordinator will provide notice in writing of the additional allegations to the Parties.

Dismissal of Formal Complaint
The District must investigate the allegations in a formal complaint. However, the District must dismiss the formal complaint and will not process the complaint under these procedures if any of the following three circumstances exist:

- If the conduct alleged in the formal complaint would not constitute Title IX sexual harassment as defined in this procedure;

- If the conduct alleged did not occur in the District's education program or activity;
- If the conduct alleged did not occur against a person in the United States.

The District has discretion to dismiss a formal complaint or any allegation under the following circumstances:

- If at any time during the investigation or hearing: a Complainant notifies the Title IX Coordinator in writing that the Complainant would like to withdraw the formal complaint or any allegations;
- If the Respondent is no longer enrolled or employed by the District; or
- If there are specific circumstances that prevent the District from gathering evidence sufficient to reach a determination regarding responsibility as to the formal complaint or allegations.

If the District dismissed the formal complaint or any allegations, the Title IX Coordinator shall simultaneously provide the Parties with written notice of the dismissal and reason. The District will also notify the Parties of their right to appeal.

The District may commence proceedings under other policies and procedures after dismissing a formal complaint.

Consolidation of Formal Complaints
The District may, but is not required to, consolidate formal complaints as to allegations of sexual harassment against more than one Respondent, or by more than one Complainant against one or more Respondents, or by one Party against the other Party, where the allegations of sexual harassment arise out of the same facts or circumstances.

Equitable Treatment of the Parties
The District's determination of responsibility is a neutral, fact-finding process. The District will treat Complainants and Respondents equitably. The procedures will apply equally to both Parties. The District will not discipline a Respondent unless it determines the Respondent was responsible for sexual harassment at the conclusion of the grievance process.

Statement of Presumption of Non-Responsibility
The investigation is a neutral, fact-finding process. The District presumes all reports are in good faith. Further, the District presumes the Respondent is not responsible for the alleged conduct. The District makes its determination regarding responsibility at the conclusion of the grievance process.

Bias or Conflict of Interest
The District's Title IX Coordinator, investigator, Decision-Maker, or any person designated by the District to facilitate an informal resolution process, will not have potential or actual bias or conflict of interest in the investigatory, hearing, sanctioning, or appeal process or bias for or against Complainants or Respondents generally. Actual bias is an articulated prejudice in favor of or against one Party or position; it is not generalized concern about

the personal or professional backgrounds, positions, beliefs, or interests of the Decision-Maker in the process. The District will ensure that the Title IX Coordinator, investigator, Decision-Maker, and facilitator receive training on:

- The definition of sexual harassment in this procedure;
- The scope of the District's education program or activity;
- How to conduct an investigation;
- The grievance process including conducting hearings, appeals, and informal resolution processes; and
- How to serve impartially, including avoiding: prejudgment of the facts at issue, conflicts of interest, and bias.

Timeline for Completion

The District will undertake its grievance process promptly and as swiftly as possible. The District will complete the investigation and its determination regarding responsibility or the informal resolution process within 240 calendar days.

When appropriate, the Title IX Coordinator may determine that good cause exists to extend the 240 calendar day period to conduct a fair and complete investigation, to accommodate an investigation by law enforcement, to accommodate the unavailability of witnesses or delays by the Parties, to account for District breaks or vacations, or due to the complexity of the investigation. The District will provide notice of this extension to the Complainant and Respondent in writing and include the reason for the delay and anticipated timing of completion.

A Party may request an extension from the Title IX Coordinator in writing by explaining the reason for the delay and the length of the continuance requested. The Title IX Coordinator will notify the Parties and document the grant or denial of a request for extension or delay as part of the case recordkeeping. The District shall grant a student Party's reasonable request for an extension of a deadline related to a Complaint during periods of examinations or school closures.

Role of Advisor

The role of the Advisor is to provide support and assistance in understanding and navigating the investigation process.

The Advisor may not testify in or obstruct an interview or disrupt the process. The Title IX Coordinator has the right to determine what constitutes appropriate behavior of an Advisor and take reasonable steps to ensure compliance with this procedure.

A Party does not have a right to self-representation at the hearing; an Advisor must conduct any cross-examination. The District must provide an Advisor of its choice, free of charge to any Party without an Advisor in order to conduct cross-examination. If an Advisor fails to appear at the hearing, the District will provide an Advisor to appear on behalf of the non-appearing Advisor. To limit the number of individuals with confidential information about the issues, each Party may identify one Advisor.

Confidentiality Agreements
To protect the privacy of those involved, the Parties and Advisors are required to sign a confidentiality agreement prior to attending an interview or otherwise participating in the District's grievance process. The confidentiality agreement restricts dissemination of any of the evidence subject to inspection and review or use of this evidence for any purpose unrelated to the Title IX grievance process. The confidentiality agreement will not restrict the ability of either Party to discuss the allegations under investigation.

Use of Privileged Information
The District's formal complaint procedure does not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally-recognized privilege (e.g., attorney-client privilege, doctor-patient privilege, spousal privilege, etc.), unless the person holding the privilege provides voluntary, written consent to waive the privilege.

Student Complainant Requests for Confidentiality
If a student Complainant requests confidentiality when reporting sexual harassment, which could preclude a meaningful investigation or potential discipline of the Respondent, if found responsible, or that no investigation or disciplinary action be pursued to address alleged sexual harassment, the District shall take the request seriously, while at the same time considering its responsibility to provide a safe and nondiscriminatory environment for all students, including for the Complainant. The District shall normally grant the request when possible. In determining whether to disclose a Complainant's identity or proceed to an investigation over the objection of the Complainant, the District may consider whether any of the following apply:

- There are multiple or prior reports of sexual misconduct against the Respondent;
- The Respondent reportedly used a weapon, physical restraints, or engaged in battery;
- The Respondent is a faculty or staff member with oversight of students;
- There is a power imbalance between the Complainant and Respondent;
- The Complainant believes that the Complainant will be less safe if the Complainant's name is disclosed or an investigation is conducted; and
- The District is able to conduct a thorough investigation and obtain relevant evidence in the absence of the Complainant's cooperation.

If the District determines that it can honor the student-Complainant's request for confidentiality, it shall still take reasonable steps to respond to the Complaint, consistent with the request, to limit the effects of the alleged sexual harassment and prevent its recurrence without initiating an investigation or revealing the identity of the Complainant. The District shall also take immediate steps to provide for the safety of the Complainant while keeping the Complainant's identity confidential as appropriate. The District shall notify the Complainant that the request for confidentiality will limit the steps the District will take to respond to the report of sexual harassment.

If the District determines that it must disclose the student-Complainant's identity to the Respondent or proceed with a Formal Complaint, it shall inform the Complainant prior to making this disclosure or initiating the investigation. The District shall also take immediate steps to provide for the safety of the Complainant where appropriate. In the event the Complainant requests that the District inform the Respondent that the Complainant asked the District not to investigate or seek discipline, the District shall honor this request.

Investigations
The Title IX Coordinator is responsible to oversee investigations to ensure timely resolution and compliance with Title IX and this procedure.

Both Parties have the right to have an Advisor present at every meeting described in this section.

Trained Investigators
The District will investigate Title IX formal complaints fairly and objectively. Individuals serving as investigators under this procedure will have adequate training on what constitutes sexual harassment, how the District's grievance procedures operate, and trauma-informed investigation techniques. The District will also ensure that investigators receive training on issues of relevance to create an investigative report that fairly summarizes relevant evidence and complies with this procedure.

Burden of Gathering Evidence
The District, not the Parties, has the responsibility to gather information and interview witnesses. As part of the District's burden of gathering evidence, the District's investigator will create an investigative report that fairly summarizes relevant evidence, whether it is inculpatory or exculpatory. The investigator shall not make findings or determinations of law or fact.

Student Complainants should be aware that any evidence available but not disclosed during the investigation might not be considered at a subsequent hearing, if a hearing is required under this procedure. Written evidence submitted by a Party is limited to *20* pages or *5,000* words.

Evidence of Past Sexual History
An investigator or Decision-Maker shall not consider the past sexual history of the Complainant except in the limited circumstances described below:

- The investigator or Decision-Maker shall not consider the Complainant's prior sexual history unless such questions or evidence is offered to prove that someone other than the Respondent committed the alleged conduct; or
- The investigator or Decision-Maker shall not consider the Complainant's prior sexual behavior unless the questions or evidence concern specific incidents of the Complaint's prior sexual behavior with respect to the Respondent and are offered to prove consent.

- Where the investigator or Decision-Maker allows consideration of questions or evidence about a dating relationship or prior or subsequent consensual sexual relations between the Complainant and the Respondent pursuant to this circumstance, the mere fact that the Complainant and Respondent engaged in other consensual sexual relations with one another is never sufficient, by itself, to establish that the conduct in question was consensual.

Before allowing the consideration of any evidence proffered pursuant to this section, the investigator or Decision-Maker shall provide a written explanation to the Parties as to why consideration of the evidence is consistent with this procedure.

Notice of Investigative Interview
The District will provide written notice of the date, time, location, participants, and purpose of all investigative interviews to a Party whose participation is invited or expected, with sufficient time for the Party to prepare to participate.

Evidence Review
Both Parties have an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint, including the evidence upon which the District does not intend to rely in reaching a determination regarding responsibility and inculpatory or exculpatory evidence whether obtained from a Party or other source.

Prior to the investigator preparing an investigative report, the District will make available to each Party and the Party's Advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy. The Parties will have at least ten days to submit a written response. The investigator must consider this written response prior to completing the investigative report.

Investigative Report

The results of the investigation of a formal complaint will be set forth in a written report that will include at least all of the following information:

- A description of the circumstances giving rise to the formal complaint;
- A description of the procedural steps taken during the investigation, including all individuals contacted and interviewed;
- A summary of the testimony of each witness the investigator interviewed;
- An analysis of relevant evidence collected during the investigation, including a list of relevant documents;
- A table of contents if the report exceeds ten pages; and
- Any other information deemed appropriate by the District.

The investigator will not make a determination regarding responsibility.

The investigator may redact information not directly related to the allegations or privileged information. However, the investigator will keep a log of information he/she/they does not produce to the Parties. The investigator will provide this log only to the Title IX Coordinator. The Title IX Coordinator will not disclose the log to the Parties but will maintain the log in the Title IX Coordinator's file, in the event it later becomes relevant.

At least ten days prior to a hearing, the District will send the investigative report to each Party and their Advisors, if any, the investigative report in an electronic format or a hard copy, for review and written response. The Parties will have at least ten days to submit a written response.

Hearing
After completing an investigation and prior to completing a determination regarding responsibility, the District will hold a live hearing to provide the Complainant and Respondent an opportunity to respond to the evidence gathered before a Decision-Maker. Neither Party may choose to waive the right to a live hearing, but the Parties can choose whether to participate in the hearing or answer some or all cross-examination questions.

Notice
If the District proceeds to a hearing, the District will provide all Parties written notice of the date, time, location, participants, and purpose of the hearing with sufficient time for the Party to prepare to participate.

Hearing Format
The District may provide a live hearing with all Parties physically present in the same geographic location or, at the District's discretion if either Party or a witness requests, the District may provide any or all Parties, witnesses, and other participants the ability to appear at the live hearing virtually, with technology enabling participants simultaneously to see and hear each other in real time.

The District will make the information reviewed during the Evidence Review available at the hearing for reference and consultation. The District will not restrict the ability of either Party to discuss the allegations under investigation or to gather and present relevant evidence.

The District will create an audio or audiovisual recording, or transcript, of any live hearing and make it available to the Parties for inspection and review.

The Decision-Maker shall provide an explanation of the meaning of the preponderance of the evidence standard, and affirm that it shall apply to adjudications under this procedure. The preponderance of the evidence standard is met if the District determines that it is more likely than not that the alleged misconduct occurred, based on the facts available at the time of the decision.

Decision-Maker

The Decision-Maker will be free from conflict of interest or bias, including bias for or against Complainants or Respondents.

The Decision-Maker may ask the Parties and the witnesses questions during the hearing. The Decision-Maker must objectively evaluate all relevant evidence both inculpatory and exculpatory and must independently reach a determination regarding responsibility without giving deference to the investigative report. The Decision-Maker must receive training on issues of relevance, how to apply the rape-shield protections for Complainants, and any technology to be used at the hearing.

Presenting Witnesses

The District will provide the Complainant and Respondent an equal opportunity to present witnesses, including fact and expert witnesses, and other inculpatory and exculpatory evidence. Witnesses, like Parties, are not required to participate in the live hearing process.

Only relevant evidence will be admissible during the hearing. Relevant evidence means evidence, including evidence relevant to the credibility of a Party or witness, having any tendency in reason to prove or disprove any disputed fact material to the allegations under investigation.

Generally, the Parties may not introduce evidence, including witness testimony, at the hearing that the Party did not identify during the investigation and that was available at the time of the investigation. However, the Decision-Maker has discretion to accept for good cause, or exclude, such new evidence offered at the hearing.

Cross-Examination

The District shall permit each Party's Advisor to ask the other Party and any witness relevant questions, including questions challenging credibility. The Party's Advisor must conduct cross-examination directly, orally, and in real time. A Party may never personally conduct cross-examination. The other Party shall have an opportunity to object to a question posed. The District may limit such objections to written form, and neither the Decision-Maker nor the District are obligated to respond, other than to include any objection in the record. The Decision-Maker shall have the authority and obligation to discard or rephrase any question that the Decision-Maker deems to be irrelevant. In making these determinations, the Decision-Maker is not bound by, but may take guidance from, the formal rules of evidence.

Before a Complainant, Respondent, or witness answers a question, the Decision-Maker must first determine whether the question is relevant and explain any decision to exclude a question as not relevant. The Decision-Maker need not provide a lengthy or complicated explanation in support of a relevance determination.

If a Party or witness disagrees with a relevance determination, that individual has the choice of either (1) abiding by the Decision-Maker's determination and answering the question or (2) refusing to answer the question.

If a Party or witness does not submit to cross-examination at the live hearing, the Decision-Maker may admit any statement of that Party or witness in reaching a determination regarding responsibility. The Decision-Maker will give the statements whatever weight the Decision-Maker determines appropriate, bearing in mind that the statements have not been tested by cross-examination. In doing so, the Decision-Maker should consider, and if possible determine, whether the witness or Party made the statement and what the statement proves.

The Decision-Maker cannot draw an inference about the determination of responsibility based solely on a Party's or witness's absence from the live hearing or refusal to submit to cross-examination or to answer any question.

The Decision-Maker may also ask any Party or witness questions. If a Party or witness refuses to respond to a Decision-Maker's questions, the Decision-Maker is not precluded from relying on that Party or witness' statements.

Determinations of Responsibility
When the Decision-Maker makes a determination of responsibility or non-responsibility, the Decision-Maker will issue a written determination regarding responsibility, no later than 45 business days after the date that the hearing ends.

When making a determination regarding responsibility, a Decision-Maker will objectively evaluate all relevant evidence, including both inculpatory and exculpatory evidence. A Decision-Maker may not make credibility determinations based on an individual's status as a Complainant, Respondent, or witness. In evaluating the evidence, the Decision-Maker will use the preponderance of the evidence standard. Thus, after considering all the evidence it has gathered, the District will decide whether it is more likely than not that sexual harassment occurred.

The written determination will include:

- Identification of the allegations potentially constituting Title IX sexual harassment as defined in these procedures;
- A description of the procedural steps taken from the receipt of the formal complaint through the determination, including who conducted the investigation and gave notifications to the Parties. The determination will also state when, where, and the date the investigator interviewed the Parties and witnesses, conducted site visits, the methods used to gather other evidence. The procedural section should also discuss the dates and how the Parties were provided the opportunity to review and inspect evidence and the date of any hearings held and who attended the hearing;
- Findings of fact supporting the determination. In making these findings, the Decision-Maker will focus on analyzing the findings of fact that support the determination of responsibility or non-responsibility;
- Conclusions regarding the application of the District's code of conduct to the facts;

- A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility;
- A statement of, and rationale for, any disciplinary sanctions the District imposes on the Respondent;
- A statement of whether the District will provide the Complainant with remedies designed to restore or preserve equal access to the District's education program or activity;
- The District need not disclose to the Respondent remedies that do not affect him/her/them as part of the written determination. The District can inform the Respondent that it will provide remedies to the Complainant. However, the District will inform the Complainant of the sanctions against the Respondent;
- The District's procedures and permissible bases for the Complainant and Respondent to appeal.

The District will provide the written determination to the Parties simultaneously. The determination regarding responsibility becomes final either on the date that the District provides the Parties with the written determination of the result of the appeal, if the Parties file an appeal, or if the Parties do not file an appeal, the date on which an appeal would no longer be timely.

Disciplinary Sanctions and Remedies

The District must have completed the grievance procedures (investigation, hearing, and any appeal, if applicable) before the imposing disciplinary sanctions or any other actions that are not supportive measures against a Respondent. If the Decision-Maker determines the Respondent was responsible for conduct that constitutes sexual harassment, the District will take disciplinary action against the Respondent and any other remedial action it determines to be appropriate. The action will be prompt, effective, and commensurate with the severity of the offense.

Remedies for the Complainant might include, but are not limited to:

- Providing an escort to ensure that the Complainant can move safely between classes and activities;
- Ensuring that the Complainant and Respondent do not attend the same classes or work in the same work area;
- Providing counseling services or a referral to counseling services;
- Providing medical services or a referral to medical services;
- Providing academic support services, such as tutoring;
- Arranging for a Complainant, if a student, to re-take a course or withdraw from a class without penalty, including ensuring that any changes do not adversely affect the Complainant's academic record; and
- Reviewing any disciplinary actions taken against the Complainant to see if there is a causal connection between the harassment and the misconduct that may have resulted in the Complainant's discipline.

Possible disciplinary sanctions for student Respondents include written or verbal reprimand, required training or counseling, non-academic probation, suspension, and expulsion. Possible disciplinary sanctions for employee Respondents include written or verbal reprimand, required training or counseling, reduction in pay, demotion, suspension, or discharge.

Appeal of Dismissal of a Formal Complaint or of the Determination of Responsibility

A Complainant or Respondent may appeal the District's determination regarding responsibility or the dismissal of a formal complaint or any allegations. A Complainant or Respondent must submit a written appeal within 10 business days from the date of the notice of determination regarding responsibility or from the date of the District's notice of dismissal of a formal complaint or any allegations.

Grounds for Appeal

The Superintendent/President or designee will serve as the Decision-Maker on Appeal. In filing an appeal of the District's determination regarding responsibility or the District's dismissal of a formal complaint, the Party must state the grounds for appeal and a statement of facts supporting those grounds. The grounds for appeal are as follows:

- A procedural irregularity affected the outcome;
- New evidence was not reasonably available at the time the District's determination regarding responsibility or dismissal was made, and this new evidence could affect the outcome; or
- The District's Title IX Coordinator, investigator, or Decision-Maker had a conflict of interest or bias for or against Complainants or Respondents generally or the individual Complainant or Respondent that affected the outcome.

Appeal Procedure

If the Complainant or Respondent submit an appeal to the District, the District will:

- Notify the other Party in writing within 10 business days days of receiving a Party's appeal;
- Allow the non-appealing Parties at least 15 business days days from the date of receipt of the appeal to submit a written statement in support of, or challenging, the outcome;

The appeal Decision-Maker will issue a written decision on whether to grant or deny the appeal, and the rationale for the decision, within 45 business days after the Decision-Maker on appeal receives the response to the appeal or the last day to provide a response. The District will provide the written decision simultaneously to both Parties.

The Decision-Maker on appeal may extend or otherwise modify the deadlines provided above. Either Party may seek an extension by submitting a written request to the appeal Decision-Maker explaining the need for the extension and the proposed length of the

extension. The Decision-Maker will respond to the request within 48 hours in writing and will inform the Parties simultaneously whether the extension is granted.

Informal Resolution
If the District determines that a formal complaint is appropriate for informal resolution, it may provide the Parties with the opportunity to participate in an informal resolution process, including mediation, at any time prior to reaching a determination regarding responsibility.

The District will provide the Complainant and Respondent written disclosure of the allegations, the requirements of the informal resolution process including the circumstances under which it precludes the Parties from resuming a formal complaint arising from the same allegations, and any consequences resulting from participating in the informal resolution process, including the records that will be maintained or could be shared.

The District must obtain the Parties' voluntary, written consent to the informal resolution process. If the Parties reach an agreement, the District does not have to complete a full investigation and adjudication of a report of sexual harassment. At any time prior to agreeing to a resolution, any Party has the right to withdraw from the informal resolution process and resume the grievance process with respect to the formal complaint.

The informal resolution process is not available to resolve allegations that an employee sexually harassed a student or any allegations of sexual assault.

Retaliation Prohibited
The District prohibits any intimidation, threats, coercion, or discrimination against any individual who made a report or complaint of sexual harassment, testified, assisted, or participated or refused to participate in any manner in a Title IX investigation, proceeding, or hearing. Individuals who experience retaliation may file a complaint using the formal complaint process described above.

Dissemination of Policy and Procedures
The District will provide its policy and procedures related to Title IX on its website and in each handbook or catalog provided to applicants for admission and employment, students, employees, and all unions or professional organizations holding collective bargaining with the District. The District will also provide its policy and procedures related to Title IX to all volunteers who will regularly interact with students and each individual or entity under contract with the District to perform any service involving regular interaction with students.

When hired, employees are required to sign acknowledging that they have received the policy and procedures. The District will place the signed acknowledgment of receipt in each employee's personnel file.

Training

The District will provide a comprehensive trauma-informed training program to Title IX Coordinators, investigators, Decision-Makers, and any individual who facilitates an informal resolution process, on the definition of sexual harassment, the scope of the District's education program or activities, best practices for assessment of a sexual harassment complaint, how to conduct an investigation and grievance process including hearings, appeals, and informal resolution processes, as applicable, how to serve impartially, including avoiding prejudgment of the facts at issue, conflicts of interest, bias, and implicit bias and racial inequities, both broadly and in school disciplinary processes. Any materials used to train the District's Title IX Coordinator, investigators, Decision-Makers, and any person who facilitates an informal resolution process, will not rely on sex stereotypes and must promote impartial investigations and adjudications of formal complaints of sexual harassment. Materials for this training must include statistics on the prevalence of sexual harassment and sexual violence in the educational setting, and the differing rates at which students experience sexual harassment and sexual assault in the educational setting based on their race, sexual orientation, disability, gender, and gender identity.

The District will provide Officials with Authority with training regarding his/her/their obligation to report sexual harassment and instruction on how to report sexual harassment to the Title IX Coordinator.

File Retention

The District will retain on file for a period of at least seven years after closing the case copies of:

- The original report or complaint;
- Any actions taken in response to the complaint, including supportive measures;
- The investigative report including all evidence gathered and any responses from the Parties;
- The District's determination regarding responsibility;
- Audio or audiovisual recording or transcript from a hearing;
- Records of any disciplinary sanctions imposed on the Respondent;
- Records of any remedies provided to the Complainant;
- Any appeal and the result;
- Any informal resolution and the result; and
- All materials used to train Title IX Coordinators, investigators, Decision-Makers, and any person who facilitates an informal resolution process. The District will make these training materials publicly available on its website.

The District will make these documents available to the U.S. Department of Education Office for Civil Rights upon request.

For non-Title IX matters, also see BP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3430 Prohibition of Harassment, AP 3435 Discrimination and Harassment Complaints and Investigations.

Adopted 6/12/23

AP 3435 Discrimination and Harassment Complaints and Investigations

References:

Education Code Sections 212.5, 231.5, 66281.5, and 67386;
Government Code Section 12950.1; Title 5, Sections 59320, 59324, 59326, 59328, and 59300 et seq.; Title 2 Sections 11023 and 11024
20 U.S. Code Sections 1681 et seq. 34 Code of Federal Regulations Part 106.8 subdivision (b)~~;~~

ANTELOPE VALLEY COLLEGE
COMPLAINT PROCEDURE FOR
ALLEGATION OF DISCRIMINATION* OR SEXUAL HARASSMENT

Complaints
The law prohibits coworkers, supervisors, managers, and third parties with whom an employee comes into contact from engaging in harassment, discrimination, or retaliation. Any person who has suffered harassment, discrimination, or retaliation may file a formal or informal complaint of harassment, discrimination, or retaliation.

A formal complaint is a written and signed statement filed with the District or the ~~State~~ California Community Colleges Chancellor's Office that alleges harassment, discrimination, or retaliation in violation of the District's board policies, administrative procedures or in violation of state or federal law. An informal complaint is any of the following: (1) An unwritten allegation of harassment, discrimination, or retaliation; (2) a written allegation of harassment, discrimination, or retaliation that falls outside the timelines for a formal complaint; or (3) a written complaint alleging harassment, discrimination, or retaliation filed by an individual who expressly indicates that he/she does not want to file a formal complaint.

Informal Complaint
Any person may submit an informal complaint to the Assistant Superintendent/Vice President of Human Resources or any other District or college administrator. Administrators receiving an informal complaint shall immediately notify the Vice President of Human Resources in writing of all pertinent information and facts alleged in the informal complaint.

Upon receipt of an informal complaint, the Assistant Superintendent/Vice President of Human Resources or designee will notify the person bringing the informal complaint of his/her right to file a formal complaint, if the incident falls within the timeline for a formal complaint, and explain the procedure for doing so. The complainant may later decide to file a formal complaint, if within the timelines to do so. If the individual chooses not to file a formal complaint, or if the alleged conduct falls outside the timeline to file a formal complaint,

the Assistant Superintendent/Vice President of Human Resources or designee shall consider the allegations contained in the informal complaint and determine the appropriate course of action. This may include efforts to informally resolve the matter, or a fact-finding investigation.

Investigation of an informal complaint will be appropriate if the Assistant Superintendent/Vice President of Human Resources or designee determines that the allegation(s), if proven true, would constitute a violation of the District policy prohibiting harassment, discrimination, or retaliation. The Assistant Superintendent/Vice President of Human Resources or designee will explain to any individual bringing an informal complaint that the Assistant Superintendent/Vice President of Human Resources or designee may decide to initiate an investigation, even if the individual does not wish the Vice President of Human Resources or designee to do so. The Assistant Superintendent/Vice President of Human Resources or designee shall not disregard any allegations of harassment, discrimination, or retaliation solely on the basis that the alleged conduct falls outside the deadline to file a formal complaint.

Formal Complaints

Formal Complaints must be filed with the ~~State~~ Chancellor of the California Community Colleges or the Assistant Superintendent/Vice President of Human Resources or designee unless the party submitting the Formal Complaint alleges discrimination, harassment, or retaliation against the responsible District officer, in which case it should be submitted directly to the Superintendent/President or the ~~State~~ Chancellor of the California Community Colleges.

Formal Complaints should be submitted on the form prescribed by the Chancellor of the California Community Colleges. A copy of the form will be available at the Human Resources Office and on the college's/district's website.

If any party submits a written allegation of harassment, discrimination, or retaliation not on the form described above, the District will seek to have the individual complete and submit the form. However, if the individual chooses not to do so, the District will attach the written allegation(s) to the form and treat it as a Formal Complaint. In no instance will the District reject a written allegation of harassment, discrimination, or retaliation on the basis that it was not submitted on the proper form.

A Formal Complaint must meet each of the following criteria:

- It must allege facts with enough specificity to show that the allegations, if true, would constitute a violation of District policies or procedures prohibiting discrimination, harassment, or retaliation;

- The complainant must sign and date the Formal Complaint;

- The complainant must file any Formal Complaint not involving employment within one year of the date of the alleged discriminatory, harassing, or retaliatory conduct or within one year of the date on which the complainant knew or should have known of the facts underlying the allegation(s) of discrimination, harassment, or retaliation.

- The complainant must file any Formal Complaint alleging discrimination, harassment, or retaliation in employment within one hundred eighty (180) days of the date of the alleged discriminatory, harassing, or retaliatory conduct, except that this period shall extended by no more than ninety (90) days following the expiration of the one hundred eighty (180) days if the complainant first obtained knowledge of the facts of the alleged violation after the expiration of the one hundred eighty (180) days.

If the Formal Complaint does not meet the requirements set forth above, the Assistant Superintendent/Vice President of Human Resources or designee will promptly return it to the complainant and specify the defect. If the sole defect is that the Formal Complaint was filed outside the applicable proscribed timeline, the Assistant Superintendent/Vice President of Human Resources or designee will handle the matter as an informal complaint.

Oversight of Complaint Procedure
The Assistant Superintendent/Vice President of Human Resources is the "responsible District officer" charged with receiving complaints of discrimination or harassment, and coordinating their investigation.

The actual investigation of complaints may be assigned by the Assistant Superintendent/Vice President of Human Resources to other staff or to outside persons or organizations under contract with the District. This shall occur whenever the Assistant Superintendent/Vice President of Human Resources is named in the complaint or implicated by the allegations in the complaint or if it is deemed more appropriate to have an outside investigator involved.

Who May File a Complaint
Any student, employee, or third party who believes he/she has been discriminated against or harassed by a student, employee, or third party in violation of this procedure and the related policy.

A student, employee, or third party who believes he/she has been discriminated against or harassed in violation of these policy and procedures may make a complaint orally or in writing.

Where to File a Complaint
If a complainant decides to file a formal written unlawful discrimination or harassment complaint against the District, he/she must file the complaint on a form prescribed by the

California Community Colleges Chancellor's Office. These approved forms are available from the Human Resources Office and at the California Community Colleges Chancellor's Office website.

The completed form must be filed with any of the following:

- The Assistant Superintendent/Vice President of Human Resources or designee;
- The Assistant Superintendent/Vice President of Student Services
- Superintendent/President
- The California Community Colleges Chancellor's Office.

Employment-Related Complaints

Complainants filing employment-related complaints shall be notified that they may file employment discrimination complaints with the U.S. Equal Employment Opportunity Commission (EEOC) or the Department of Fair Employment and Housing (DFEH).

Complaints filed with the EEOC or the DFEH should be forwarded to the California Community Colleges Chancellor's Office.

Any District employee who receives a harassment or discrimination complaint shall notify the Assistant Superintendent/Vice President of Human Resources immediately.

Filing a Timely Complaint

Since failure to report harassment and discrimination impedes the District's ability to stop the behavior, the District strongly encourages anyone who believes they are being harassed or discriminated against, to file a complaint. The District also strongly encourages the filing of such complaints within thirty (30) days of the alleged incident. While all complaints are taken seriously and will be investigated promptly, delay in filing impedes the District's ability to investigate and remediate.

All supervisors and managers have a mandatory duty to report incidents of harassment and discrimination; the existence of a hostile, offensive or intimidating work environment, and acts of retaliation.

The District will investigate complaints involving acts that occur off campus if they are related to an academic or work activity or if the harassing conduct interferes with or limits a student's or employee's ability to participate in or benefit from the school's programs or activities.

Communicating that the Conduct is Unwelcome

Although it is not required, the District encourages students and staff to let the offending person know immediately and firmly that the conduct or behavior is unwelcome, offensive, in poor taste or inappropriate.

Intake and Processing of the Complaint

Upon receiving notification of a harassment or discrimination complaint, the Assistant Superintendent/Vice President of Human Resources or designee shall:

- Undertake efforts to informally resolve the charges, including but not limited to mediation, rearrangement of work/academic schedules; obtaining apologies; providing informal counseling, training, etc.

- Advise the complainant that he/she need not participate in an informal resolution of the complaint, as described above, and has the right to end the informal resolution process at any time. Mediation in all cases is permitted as long as all parties agree.

- Advise a student complainant that he/she may file a complaint with the Office of Civil Rights of the U.S. Department of Education and employee complainants may file a complaint with the Department of Fair Employment and Housing. All complainants should be advised that they have a right to file a complaint with local law enforcement, if the act complained of is also a criminal act. The District must investigate even if the complainant files a complaint with local law enforcement. In addition, the District should ensure that complainants are aware of any available resources, such as counseling, health, and mental health services. The Assistant Superintendent/Vice President of Human Resources or designee shall also notify the California Community Colleges Chancellor's Office of the complaint.

- Take interim steps to protect a complainant from coming into contact with an accused individual, especially if the complainant is a victim of sexual violence. The Assistant Superintendent/Vice President of Human Resources should notify the complainant of his/her options to avoid contact with the accused individual and allow students to change academic situations as appropriate. For instance, the District may prohibit the accused individual from having any contact with the complainant pending the results of the investigation. When taking steps to separate the complainant and accused individual, the District shall minimize the burden on the complainant. For example, it is not appropriate to remove complainants from classes or housing while allowing accused individuals to remain.

Investigation

The Assistant Superintendent/Vice President of Human Resources shall:

- Authorize the investigation of the complaint, and supervise or conduct a thorough, prompt and impartial investigation of the complaint, as set forth below. Where complainants opt for informal resolution, the designated officer will determine whether further investigation is necessary to ensure resolution of the matter and utilize the investigation process outlined below as appropriate. In the case of a formal complaint, the investigation will include interviews with the complainant, the accused,

and any other persons who may have relevant knowledge concerning the complaint. This may include victims of similar conduct.

- Review the factual information gathered through the investigation to determine whether the alleged conduct constitutes harassment, or other unlawful discriminatory conduct, giving consideration to all factual information and the totality of the circumstances, including the nature of the verbal, physical, visual or sexual conduct, and the context in which the alleged incidents occurred.

Investigation of the Complaint
The District shall promptly investigate every complaint and claim of harassment or discrimination. No claim of workplace or academic harassment or discrimination shall remain unexamined. This includes complaints involving activities that occur off campus and in connection with all the academic, educational, extracurricular, athletic, and other programs of the District, whether those programs take place in the District's facilities, on a District bus, or at a class or training program sponsored by the District at another location. The District shall promptly investigate complaints of harassment or discrimination that occur off campus if the alleged conduct creates a hostile environment on campus.

As set forth above, where the complainant opts for an informal resolution, the Assistant Superintendent/ Vice President of Human Resources or designee may limit the scope of the investigation, as appropriate. The District will keep the investigation confidential to the extent possible, but cannot guarantee absolute confidentiality because release of some information on a "need-to-know-basis" is essential to a thorough investigation. When determining whether to maintain confidentiality, the District may weigh the request for confidentiality against the following factors: the seriousness of the alleged harassment; the complainant's age; whether there have been other harassment complaints about the same individual; and the accused individual's rights to receive information about the allegations if the information is maintained by the District as an "education record" under the Family Educational Rights and Privacy Act (FERPA), 20 U.S. Code Section 1232g; 34 Code Federal Regulations Part 99.15. The District will inform the complainant if it cannot maintain confidentiality.

Investigation Steps
The District will fairly and objectively investigate harassment and discrimination complaints. Employees designated to serve as investigators under this policy shall have adequate training on what constitutes sexual harassment, including sexual violence, and that they understand how the District's grievance procedures operate. The investigator may not have any real or perceived conflicts of interest and must be able to investigate the allegations impartially.

Investigators will use the following steps:

- Interview the complainant(s).
- Interview the accused individual(s).
- Identify and interview witnesses and evidence identified by each party.
- Identify and interview any other witnesses.
- If needed; remind all individuals interviewed of the District's no-retaliation policy.
- Consider whether any involved person should be removed from the campus pending completion of the investigation.
- Review personnel/academic files of all involved parties as warranted.
- Reach a conclusion as to the allegations and any appropriate disciplinary and remedial action; and see that all recommended action is carried out in a timely fashion.
- When the District evaluates the complaint, it shall do so using a preponderance of the evidence standard. Thus, after considering all the evidence it has gathered, the District will decide whether it is more likely than not that discrimination or harassment has occurred.

Timeline for Completion
The District will undertake its investigation promptly and swiftly as possible. To that end, the investigator shall complete the above steps, and prepare a written report within ninety (90) days of the District receiving the complaint.

Cooperation Encouraged
All employees are expected to cooperate with a District investigation into allegations of harassment or discrimination. Lack of cooperation impedes the ability of the District to investigate thoroughly and respond effectively. However, lack of cooperation by a complainant or witnesses does not relieve the District of its obligation to investigate. The District will conduct an investigation if it is discovered that harassment is, or may be occurring, with or without the cooperation of the alleged victim(s) and regardless of whether a complaint is filed. No employee will be retaliated against as a result of lodging a complaint or participating in any workplace investigation.

Written Report
The results of the investigation of a complaint shall be set forth in a written report that will include at least **all of the following information**:

- A description of the circumstances giving rise to the Formal Complaint;
- A summary of the testimony provided by each witness interviewed by the investigator;
- An analysis of relevant evidence collected during the course of the investigation;
- A specific finding as to whether there is probable cause to believe that discrimination, harassment, or retaliation occurred with respect to each allegation in the complaint; and
- Any other information deemed appropriate by the District.

Confidentiality of the Process
Investigations are best conducted within a confidential climate. Therefore, the District does not reveal information about ongoing investigations except as necessary to fulfill its legal obligations. The District will keep the investigation confidential to the extent possible, but it cannot guarantee absolute confidentiality because release of some information on a "need-to-know-basis" is essential to a thorough investigation and to protect the rights of Accused students and employees during the investigation process and any ensuing discipline.

Administrative Determination
- In any case not involving employment discrimination, within ninety (90) days of receiving a formal complaint, the District shall complete its investigation and forward a copy of the investigative report to the Chancellor of the California Community Colleges, a copy or summary of the report to the complainant, and written notice setting forth all of the following to both the complainant and the Chancellor of the California Community Colleges:
    - The determination of the Assistant Superintendent/Vice President of Human Resources or designee as to whether there is probable cause to believe discrimination occurred with respect to each allegation in the complaint;
    - A description of actions taken, if any, to prevent similar problems from occurring in the future;
    - The proposed resolution of the complaint; and
    - The complainant's right to appeal to the District Board of Trustees and the Chancellor of the California Community Colleges.

- In any case involving employment discrimination, within ninety (90) days of receiving a formal complaint, the District shall complete its investigation and forward a copy or summary of the report to the complainant, and written notice setting forth all the following to the complainant:
    - The determination of the Assistant Superintendent/Vice President of Human Resources or designee as to whether there is probable cause to believe discrimination occurred with respect to each allegation in the complaint;
    - A description of actions taken, if any, to prevent similar problems from occurring in the future;
    - The proposed resolution of the complaint; and
    - The complainant's right to appeal to the District Board of Trustees and to file a complaint with Department of Fair Employment and Housing or the U.S Equal Employment Opportunity Commission.

Discipline and Corrective Action

If harassment, discrimination or retaliation occurred in violation of the policy or procedure, the District shall take disciplinary action against the accused and any other remedial action it determines to be appropriate. The action will be prompt, effective, and commensurate with the severity of the offense. Remedies for the complainant might include, but are not limited to:

- Providing an escort to ensure that the complainant can move safely between classes and activities;
- Ensuring that the complainant and alleged perpetrator do not attend the same classes or work in the same work area;
- Preventing offending third parties from entering campus;
- Providing counseling services or a referral to counseling services;
- Providing medical services or a referral to medical services;
- Providing academic support services, such as tutoring;
- Arranging for a student-complainant to re-take a course or withdraw from a class without penalty, including ensuring that any changes do not adversely affect the complainant’s academic record; and

- Reviewing any disciplinary actions taken against the complainant to see if there is a causal connection between the harassment and the misconduct that may have resulted in the complainant being disciplined.

If the District imposes discipline, the nature of the discipline will not be communicated to the complainant. However, the District may disclose information about the sanction imposed on an individual who was found to have engaged in harassment when the sanction directly relates to the complainant; for example, the District may inform the complainant that the harasser must stay away from the complainant.

Disciplinary actions against faculty, staff, and students will conform to all relevant statutes, regulations, personnel policies and procedures, including the provisions of any applicable collective bargaining agreement.

The District shall also take reasonable steps to protect the complainant from further harassment, or discrimination, and to protect the complainant and witnesses from retaliation as a result of communicating the complaint or assisting in the investigation. The District will ensure that complainants and witnesses know how to report any subsequent problems, and should follow-up with complainants to determine whether any retaliation or new incidents of harassment have occurred. The District shall take reasonable steps to ensure the confidentiality of the investigation and to protect the privacy of all parties to the extent possible without impeding the District's ability to investigate and respond effectively to the complaint.

If the District cannot take disciplinary action against the accused individual because the complainant refuses to participate in the investigation, it should pursue other steps to limit the effects of the alleged harassment and prevent its recurrence.

Appeals and District Final Decision

If the District imposes discipline against a student or employee as a result of the findings in its investigation, the student or employee may appeal the decision using the procedure for appealing a disciplinary decision.

If the complainant is not satisfied with the results of the administrative determination, the complainant may, within fifteen (15) days, submit a written appeal to the District Board of Trustees. The Board of Trustees shall review the original complaint, the investigative report, the administrative determination, and the appeal and issue a final District decision in the matter within forty-five (45) days after receiving the appeal. A copy of the final District decision rendered by the Board of Trustees shall be forwarded to the complainant and to the Chancellor of the California Community Colleges. The complainant shall also be notified of his/her right to appeal this decision.

If the Board of Trustees does not act within forty-five (45) days, the administrative determination shall be deemed approved and shall become the final District decision in the matter.

In any case not involving employment discrimination, harassment, or retaliation, the complainant shall have the right to file a written appeal with the Chancellor of the California Community Colleges within thirty (30) days after the Board of Trustees issues the final District decision or permits the administrative determination to become final. Such appeals shall be processed pursuant to the provision of Title 5 Section 59350.

In any case involving an allegation of discrimination on the basis of race, color, national origin, sex, disability or age, in the provision of programs and services provided by the college, a complainant may also file a complaint with U.S. Department of Education. Complaints may also be filed with the Equal Employment Opportunity Commission or the Department of Fair Employment and Housing (addresses listed below):

Equal Employment Opportunity Commission
Roybal Federal Building
255 E. Temple Street, 4th Floor
Los Angeles, CA 90012
http://www.eeoc.gov

Office for Civil Rights (OCR)
United States Department of Education
50 Beale Street, Suite 7200
San Francisco, CA 94105
http://www.ed.go.gov/offices/OCR

Department of Fair Employment and Housing (DFEH)
611 West Sixth Street, Suite 1500
Los Angeles, CA 90017
http://www.dfeh.ca.gov/default.asp

Extension of Time
Within one hundred fifty (150) days of receiving a complaint, the District will forward the following to the Chancellor of the California Community Colleges:

- The original complaint;
- The report describing the nature and extent of the investigation conducted by the District;
- A copy of the notice sent to the complainant (pursuant to Government Code Section 59336);
- A copy of the final District decision rendered by the Board of Trustees or a statement indicating the date on which the administrative decision became final

- A copy of the notice to the complainant (pursuant to Government Code Section 59338);
- Such other information as the Chancellor of the California Community Colleges may require.

Extensions; Failure to Comply
If a District, for reasons beyond its control, is unable to comply with the one hundred fifty (150)-day deadline specified for submission of materials to the Chancellor of the California Community Colleges, the District may file a written request that the Chancellor of the California Community Colleges grant an extension of the deadline. The request shall be submitted no later than ten (10) days prior to the expiration of the deadline established and shall set the reasons for the request and the date by which the District expects to be able to submit the required materials.

A copy of the request for an extension shall be sent to the complainant who may file written objections with the Chancellor of the California Community Colleges within five (5) days of receipt.

The Chancellor of the California Community Colleges may grant the request unless delay would be prejudicial to the complainant.

If a District fails to comply with the requirements by the required deadline, including any extension granted, the Chancellor of the California Community Colleges may proceed to review the case based on the original complaint and any other relevant information then available.

File Retention
The District will retain on file for a period of at least three (3) years after closing the case copies of:

- The original complaint;
- The investigatory report;
- The summary of the report if one is prepared;
- The notice provided to the complainant, of the District's administrative determination and his/her right to appeal;
- Any appeal; and
- The District's final decision.

The District will make such documents available to the Chancellor of the California Community Colleges upon request.

Where the complaint allegation consists of Sexual Misconduct, as defined by Title IX, the following applies:

- **Sexual Misconduct**
  Sexual misconduct includes sexual harassment and sexual violence.

  - Sexual harassment may include unwelcome sexual advances, requests for sexual favors, and other verbal, visual, or physical conduct of a sexual nature, made by someone from or in the work or education setting.
  - Sexual violence refers to physical sexual acts perpetrated against a person's will or when a person is incapable of giving consent due to the victim's use of drugs or alcohol or due to an intellectual or other disability. Sexual violence includes rape, sexual assault, sexual battery, and sexual coercion.
  - Affirmative consent means an affirmative, conscious, and voluntary agreement to engage in sexual activity.

  Sexual misconduct creates a hostile environment if the conduct is sufficiently serious that it interferes with or limits a student's ability to participate in or benefit from the District's program. A single or isolated incident may create a hostile environment if the incident is sufficiently severe.

Complaint Procedure
Where the complaint involves a minor, the District will comply with California mandated reporting requirements.

All responsible employees are required to report all actual or suspected sexual misconduct to the Title IX Coordinator immediately. A responsible employee is any employee who has the authority to take action to redress sexual misconduct, who has been given the duty of reporting incidents of sexual misconduct to the Title IX Coordinator or Assistant Superintendent/Vice President of Human Resources or designee, or whom a student or employee could reasonable believe has this authority or duty. The District is on notice if a responsible employee knew, or in the exercise of reasonable care should have known, about the sexual misconduct.

Any person may make a complaint by contacting the Title IX Coordinator directly. The District's Title IX Coordinator is the Assistant Superintendent/Vice President of Human Resources. The Title IX Coordinator will receive all relevant details about the alleged sexual misconduct reported to the District responsible employee in order to determine what occurred and how to resolve the situation. This includes the names of alleged victim and alleged perpetrator (if known), and the date, time, and location of the alleged sexual misconduct.

Privileged or Confidential Reporting
A responsible District employee should, whenever possible, before a student or employee reveals information that he/she may wish to keep confidential, ensure that the person

making the report understands the employees obligations to report to the Title IX Coordinator, the victims option to request confidentiality, which the District will take into consideration, and the victims ability to share the information confidentially with designated District employees.

Professional, licensed, mental health counselors, and pastoral counselors, who provide mental-health counseling to members of the District community, or interns, graduate students, and others supervised by professional licensed counselors, are not required to report any information to the title IX Coordinator.

Non-professional counselors who work or volunteer in health center, victim advocacy office, women's center, etc., including front desk personnel and student employees in the course of their duties, may maintain confidentiality. They are not required to report actual or suspected sexual misconduct to the Title IX Coordinator in a way that identifies the student without the victim's consent.

Authority over Parties
The District has authority over students, employees, and third parties for alleged violations of this policy that occur on District property. The District has authority over District employees and students for alleged violations of this policy that occur at District activities or events. The District may exercise authority over events that occur off-campus to determine if the conduct occurred in the context of an education program or activity or had continuing effects on campus or in an off-campus education program or activity.

Standard of Proof
The District will use a "preponderance of the evidence" standard of proof in determining whether there has been a violation of this policy. This standard of proof is also known as "more likely than not" standard.

Upon Receiving the Complaint – Health and Safety
The Title IX Coordinator or designee, will make an immediate assessment concerning the health and safety of the victim and campus community as a whole. The District will provide the reporting party and responding party with immediate, interim measures necessary to protect his/her health and safety. These immediate interim measures may include:

- Providing an escort
- Ensuring that the victim and perpetrator do not attend the same classes or work in the same area
- Preventing offending third parties from entering campus
- Providing counseling services or a referral to counseling services
- Providing academic support services

Where the District determines that there is a substantial threat to the campus community, it will issue a timely warning. The District will issue the warning according to District

administrative procedures. The District will not to disclose the victim's name or other identifying information when issuing the warning.

Communicating that the Conduct is Unwelcome
The employee or student may, but is not required to let the offending person know immediately and firmly that the conduct or behavior is unwelcome, offensive, in poor taste, or inappropriate.

Intake and Processing of the Complaint
If the District determines that a sexual misconduct complaint is appropriate for informal resolution, it may permit an informal resolution, including mediation. All parties, including the complainant and respondent, must receive full disclosure of the allegations and information about options for formal resolution before voluntarily agreeing to participate in an informal resolution. If parties agree to an informal resolution, the District does not have to complete a full investigation and adjudication of a report of sexual misconduct.

Confidentiality
Where the victim requests confidentiality regarding a reportable incident the District will take all reasonable steps to comply with the victim's request or inform the victim when it cannot ensure confidentiality. The District will not disclose the name of the victim unless the victim provides written consent after being informed of his/her right to have the information withheld. Where the victim insists that the District not disclose his/her name or other identifiable information to the alleged perpetrator, the District will inform the victim that its ability to respond will be limited. The District will evaluate this request in the context of its responsibility to provide a safe and nondiscriminatory environment for all employees and students. When weighing a request for confidentiality against the seriousness of the alleged harassment, the Title IX Coordinator will take the factors listed above into consideration.

Fact-Finding Investigation
Where the victim has filed a criminal complaint with local law enforcement, the District will consider what information the District is able to share, pursuant to state and federal law, to ensure that victims are not unnecessarily required to give multiple statements about a traumatic event. The District will continue to conduct its own thorough, reliable, prompt, and impartial investigation. The District will normally complete its sexual misconduct investigation within ninety (90) days of receiving the complaint, unless extended by the Title IX Coordinator for good cause. The Title IX Coordinator will notify the victim and accused in writing of the reason for the extension and the projected new timeline.

The victim and accused will have equal opportunity to present relevant witnesses and other evidence to the District investigator. The District will provide the same opportunities to the victim and accused, for example if the District permits the victim or accused to have a lawyer or other advisor present, it must do so for the other party. Any District imposed restrictions

on the ability of a lawyer or other advisor to speak or participate in the interview must also apply equally.

The results of the fact-finding investigation will be set out in a formal investigative report which will include the requirements listed above and a credibility determination of the victim, accused, and witnesses.

Reporting to ~~State~~ California Community Colleges Chancellor's Office
The District considers all sexual misconduct complaints to be formal complaints. The Assistant Superintendent/Vice President of Human Resources or designee must notify the California Community Colleges Chancellor's Office of any sexual misconduct complaints. Upon completing the investigation, the District shall forward to the California Community Colleges Chancellor's Office a copy of the investigative report and administrative determination and to the complainant a copy or summary of the investigative report and administrative determination.

Dissemination of Policy and Procedures
District Policy and Procedures related to harassment will include information that specifically addresses sexual violence. District policy and procedures will be provided to all students, faculty members, members of the administrative staff and members of the support staff, and will be posted on campus and on the District's website.

When hired, employees are required to sign that they have received the policy and procedures, and the signed acknowledgment of receipt is placed in each employee's personnel file. In addition, these policies and procedures are incorporated into the District's course catalogs and orientation materials for new students.

Supervisory Employee Training
By January 1, 2020, the District shall provide at least two (2) hours of classroom or other effective interactive training and education regarding sexual harassment to all supervisory employees and at least one (1) hour of classroom or other effective interactive training and education regarding sexual harassment to all nonsupervisory employees. All new employees must be provided with the training and education within six months of their assumption of his/her position. After January 1, 2020, the District shall provide sexual harassment training and education to each employee once every two (2) years.

The training and education required by this procedure shall include information and practical guidance regarding the federal and state statutory provisions concerning the prohibition against and the prevention and correction of sexual harassment and the remedies available to victims of sexual harassment in employment, a review of "abusive conduct," and harassment based on gender identify, gender expression, and sexual orientation. The training and education shall also include practical examples aimed at instructing supervisors in the prevention of harassment, discrimination, and retaliation, and shall be presented by

trainers or educators with knowledge and expertise in the prevention of harassment, discrimination, and retaliation.

Supervisor's harassment training must also address potential exposure and liability for employers and individuals, supervisor's obligation to report sexual harassment, discrimination, and retaliation when they become aware of it, appropriate remedial measures to correct harassing behavior.

The District will maintain appropriate records of the training provided, including the names of the supervisory employees trained, the date of training, sign in sheets, copies of all certificates of attendance or completion issued, the type of training provided, a copy of all written or recorded training materials, and the name of the training provider. If the training is provided by webinar, the District will maintain a copy of the webinar, all written materials used by the training and all written questions submitted during the webinar, and document all written response or guidance the trainer provided during the webinar. The District will retain these records for at least three (3) years.

Staff Training
The District will also provide training to students who lead student organizations. The District should provide copies of the sexual harassment policies and training to all District law enforcement unit employees regarding the grievance procedures and any other procedures used for investigating reports of sexual violence.

In years in which a substantive policy or procedural change has occurred, all District employees will attend a training update and/or receive a copy of the revised policies and procedures.

Participants in training programs will be required to sign a statement that they have either understood the policies and procedures, their responsibilities, and their own and the District's potential liability, or that they did not understand the policy and desire further training.

Education and Prevention for Students
In order to take proactive measures to prevent sexual harassment and violence toward students, the District will provide preventive education programs and make victim resources, including comprehensive victim services, available. The District will include such programs in their orientation programs for new students, and in training for student athletes and coaches. These programs will include discussion of what constitutes sexual harassment and sexual violence, the District's policies and disciplinary procedures, and the consequences of violating these policies. A training program or informational services will be made available to all students at least once annually.

The education programs will also include information aimed at encouraging students to report incidents of sexual violence to the appropriate District and law enforcement authorities. Since victims or third parties may be deterred from reporting incidents if alcohol, drugs, or other violations of District or campus rules were involved, the District will inform students that the primary concern is for student safety and that use of alcohol or drugs never makes the victim at fault for sexual violence. If other rules are violated, the District will address such violations separately from an allegation of sexual violence.

Also see BP/AP 3410 Nondiscrimination, BP/AP 3430 Prohibition of Harassment, and BP/AP 3420 Equal Employment Opportunity.

Approved: 4/14/08
Revised: 10/12/09
Revised: 3/10/14
Revised: 11/14/16
Revised: 5/14/18
Revised: 5/13/19
Revised: 12/9/19

AP 3440 Service Animals

References:

Civil Code Sections 54 et seq.;
Penal Code Section 365.5;
The Americans with Disabilities Act of 1990 -- 42 United States Code Sections 12101 et seq.; 28 Code of Federal Regulations Part 35;
28 Code of Federal Regulations Part 36; 34 Code of Federal Regulations Part 104.44 subdivision (b)

The District will allow an individual with a disability to use a service animal in District facilities and on District campuses in compliance with state and federal law.

The District will allow an individual with a disability to use a miniature horse as a service animal in District facilities and on District campuses if the miniature horse has been individually trained to do work or perform tasks for the benefit of the individual with a disability and the District has determined, based on the assessment factors provided in this procedure, that a reasonable accommodation can be made.

The District will allow an individual with a disability to be accompanied by his/her/their service animal in all areas of the District's facilities where members of the public, invitees, clients, customers, patrons, or participants in services, programs or activities, as relevant, are allowed to go.

These procedures shall also be applicable to an individual who is training a service animal.

Service Animal Defined

A "service animal" or emotional support animal for purposes of this procedure means any dog (or miniature horse, as provided herein) that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability.

Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition.

The work or tasks performed by a service animal must be directly related to the handler's disability. The crime deterrent effects of an animal's presence and the provision of emotional support, well-being, comfort, or companionship do not constitute work or tasks for the purposes of this definition.

Exceptions
The District may ask an individual with a disability to remove a service animal from the premises if:

- The animal is out of control and the animal's handler does not take effective action to control it; or
- The animal is not housebroken.

If a service animal is excluded under one of these exceptions, the District will give the individual with a disability the opportunity to obtain goods, services, and accommodations or to participate in the service, program, or activity without having the service animal on the premises.

Assessment Factors for Miniature Horses
The District shall consider the following factors:

- The type, size, and weight of the miniature horse and whether the facility can accommodate these features;
- Whether the handler has sufficient control of the miniature horse;
- Whether the miniature horse is housebroken; and
- Whether the miniature horse's presence in a specific facility compromises legitimate safety requirements that are necessary for safe operation.

Control
The service animal must have a harness, leash, or other tether, unless either the handler is unable because of a disability to use a harness, leash, or other tether, or the use of a harness, leash, or other tether would interfere with the service animal's safe, effective performance of work or tasks, in which case the service animal must be otherwise under the handler's control (e.g., voice control, signals, or other effective means).

Care or Supervision
The District is not responsible for the care or supervision of the animal.

Inquiries by the District
The District may make two (2) inquiries to determine whether an animal qualifies as a service animal:

- Whether the animal is required because of a disability; and
- What work or task the animal has been trained to perform.

The District will not make either of these inquiries when it is readily apparent that an animal is trained to do work or perform tasks for an individual with a disability (e.g., the dog is observed guiding an individual who is blind or has low vision, pulling a person's wheelchair, or providing assistance with stability or balance to an individual with an observable mobility disability).

An individual may choose to produce a county service dog license or identification tag as proof that the animal is a service animal. Licensure or certification is not required in order to meet the definition of service animal under this procedure. There are no licensing or certification requirements for miniature horses.

No Surcharge
The District will not ask or require an individual with a disability to pay a surcharge, even if people accompanied by pets are required to pay fees, or to comply with other requirements generally not applicable to people without pets. If the District normally charges individuals for damage caused by pets, an individual with a disability may be charged for damage caused by his/her/their service animal.

Also, see BP 3440 Service Animals and BP/AP 5140 Disabled Student Programs and Services.

Approved: 11/14/11
Reviewed: 12/12/16
Revised: 12/9/19
Revised: 12/8/23

AP 3500 Campus Safety

References:

Education Code Section 212, 67380, and 87014;
Penal Code Section 245;20 U.S. Code Sections 1092 subdivision (f) and 1232g, Code of Federal Regulations Part 668.46; 34 Code of Federal Regulations Part 99.31 subdivisions (a)(13), (14);
Campus Security Act of 1990

A campus safety plan shall be developed and distributed to students annually at the start of the fall semester via email, student handbook, and the college website.

The Los Angeles County Sheriff's Department (LASD) prepares and annually updates a report of all occurrences reported to the LASD of any and all arrests for crimes that are committed on campus and that involve violence, hate violence, theft or destruction of property, illegal drugs, or alcohol intoxication, and of all occurrences of non-criminal acts of hate violence reported to campus authorities. A written report will be submitted to the Board of Trustees.

Written records of non-criminal acts of hate violence shall include at least a description of the act of hate violence, the victim characteristics, and offender characteristics, if known.

Education Code Section 67380 defines "hate violence" as: "any act of intimidation or physical harassment, physical force or physical violence, or the threat of physical force or physical violence, that is directed against any person or group of persons or the property of any person or group of persons because of the ethnicity, race, national origin, sex, sexual orientation, gender identity, gender expression, disability, or political or religious beliefs of that person or group." Education Code Section 67380 requires reporting of both occurrences reported to Antelope Valley College Police Department or safety authorities of and arrests for crimes that involve hate violence (Education Code Section 67380 subdivision (a)(1)(A)) and of "non-criminal acts of hate violence" (Education Code Section 67380 subdivision (a)(1)(B)).

Also see BP 3500 Campus Safety, BP/AP 3505 Emergency Response Plan, and BP/AP 7600 Campus Security Officers.

Approved: 11/7/05
Revised: 1/8/07
Revised: 7/9/12
Revised: 4/11/16
Revised: 12/9/19

AP 3501 Campus Security and Access

References:

Penal Code Section 469; 34 Code of Federal Regulations Part 668.46 subdivision (b)(3) Accreditation Standard III.B.1

During business hours, the District will be open to students, parents, employees, contractors, guests, and invitees. During non-business hours access to all District facilities is by key and/or access card, if issued, or by admittance via the Los Angeles County Sheriff's Department of Antelope Valley College. In the case of periods of extended closing, the District will admit only those with prior written approval to all facilities.

Keys or proximity cards are not issued to District hourly employees, volunteers, contractors, or students.

CAMPUS SHERIFF'S DEPARTMENT

1. **Campus Access**
   - During business hours, the District will be open to students, parents, employees, contractors, guests and invitees. During non-business hours access to all District facilities is by key and access card, if issued, or by admittance via Antelope Valley College Sheriff's Department. In the cases of periods of extended or emergency campus closures, the District will admit only those with prior written approval from the Superintendent/President to required facilities.

2. **Campus Access During Emergencies**
   - Emergencies may necessitate changes or alterations to any posted facilities schedules. At the direction of the Superintendent/President, Antelope Valley College Sheriff's Department may prohibit, or limit, campus access to all personnel as necessary to ensure the safety of all personnel and the Police of all facilities.

3. **Campus Sheriff Reporting**
   - The Campus Sheriff sits on the safety committee with risk management and provides monthly updates regarding safety issues associated with landscaping, locks, alarms, lighting, and communications.

ACCESS TO CAMPUS FACILITIES

1. **Employee Responsibility**
   - Antelope Valley Community College District (AVCCD) employees granted access authorization to district facilities are responsible for exercising the provided access authorization only for District activities and responsibilities. District keys or proximity cards assigned to an employee may not be loaned, transferred or used by any other individual. California law states: Under Penal Code Section 469, 'unauthorized making, duplicating or possession of Key or Proximity Access Card to public building. Any person who knowingly makes, duplicates, causes to be duplicated, or use, or has in his possession any key to a building or other area owned, operated, or controlled by the State of California, any state agency, board, or commission, a county, city, or any public school or community college district without authorization from the person in charge of such building or area or his designated representative and with knowledge of the lack of such authorization is guilty of a misdemeanor.'

2. **Lost Keys/Access Cards**
   - Lost keys and/or access cards must be reported immediately to the Antelope Valley College Sheriff's Office (722-6399). Campus Police will contact the Facilities Services Maintenance Supervisor to assess appropriate risk mitigation actions.

3. **Lost Key/Access Card Replacement Charge**
   - Loss of keys or proximity access cards can result in a serious breach of security potentially placing facilities, equipment, employees and students at risk. Required risk mitigation by management may require costly rekeying/ reprogramming of District facilities. Monetary charges may be assessed by the district on employees and departments. The Superintendent/President has authorization to assess necessary charges.

     Charges for lost key/access cards:
     - **Employee Charge:** $50 for first lost key/access card, $50 for second lost key/access card, maximum charge $100.
     - **Department Charge:** $50 up to $1,000 per lost key/access card. There is no maximum cost for loss of a Building or Grand Master key.

4. **District Facility Access Authorization Requirements**
   - The following personnel may be granted access authorization:
     - Permanent AVCCD employees
     - AVCCD Adjunct Faculty (Reauthorization required on regular basis as determined by District administration)

- The following personnel are not granted access authorization:
  - Temporary or substitute AVCCD employees
  - Students (including student workers)
  - Vendors, contractors or consultants
  - All non-AVCCD employees

Any exceptions require written justification and approval from the Superintendent/ President.

Note: For any personnel listed above who require key(s) and/or proximity access card to complete District assignments/responsibilities, the responsible AVCCD manager may check out the necessary Key(s)/Card(s) on a daily basis to the respective individual. The responsible manager will maintain a log for controlling keys/cards and is responsible for all actions taken by personnel when exercising access authorization.

5. District Facility Access Request Form

- District facility access authorization is obtained with the approval of a District Facility Access Request form. The form can be found on the District website.
- Facilities Services is responsible for maintaining the form and for maintaining all approved access request records.
- All completed district Facility Access Request forms are submitted electronically via the Facilities Services request system.

6. Returning Keys/Access Cards

- **Employment Separation From District**
  All district keys and access cards assigned to an employee must be returned to the Human Resources Office at the time of employee separation from the District.

  Human Resources are to request and obtain a current facility access request record for the employee from Facilities Services prior to the employee exit interview.

- **During Employment**
  Keys/access cards, no longer required by the employee, are to be returned to the Facilities Services Office.

  Broken, worn or malfunctioning access cards are to be returned to the Student Development Office for replacement.

7. **Authorized Area of Access**
   - Areas of access granted to any employee are authorized by employees responsible Dean/Director or responsible Administrator with concurrence from Facilities Services management. Written justification is required for all master keys, and 'Other' personnel access requests.

8. **Authorized Level of Access**
   - Level of campus access for access cards is as follows:
     - **Standard** – All District employees; Monday through Sunday, 24/7
     - **Non-Standard Hours Reporting Procedure**
       All District employees and non-district personnel with access authorization are required to check-in at the Campus Sheriff's Office when entering or present on the campus at a non-standard time. Non-standard time is Monday through Sunday, 11:31 p.m. to 4:59 a.m. All individuals who sign-in at the Campus Sheriff's Office must also sign-out at the Campus Sheriff's Office, regardless of the day or time leaving the campus. This procedure is intended to provide a safety measure for all personnel and enhance the security of the campus.

       Exception: District personnel working regularly scheduled shifts between 11:30 p.m. and 5:00 a.m. are not required to check-in or check-out with Campus Sheriff's Office.

Facility Access Request form is available online. Facility Access Request process is attached.

Also see AP 3501 Campus Security and Access as well as BP/AP 6520 Security for District Property.

Approved: 11/14/11
Revised: 7/8/13
Revised: 3/10/14
Revised: 5/9/16
Reviewed: 12/12/16
Revised: 12/9/19

AP 3504 Minors on Campus

References:

Welfare and Institutions Code Section 625

The District is committed to providing a physical environment which enhances teaching and learning while supporting the personal safety of all members of the District community. District policy states that bringing minors on campus while attending classes is not permitted, unless minors are enrolled in the Child Development Center or other instructional programs in the District. Minors referenced in this procedure are defined as any individual under the age of fourteen (14) years old or not emancipated from the care of parents or legal guardians. Minors are allowed on District sites occasionally if participating in a District-authorized event, or while accompanying an adult who is receiving college or District services.

District policy also states that employees may not bring minors to their worksite. Occasional exceptions to this policy may be made for good cause and with the approval of the employee's supervisor or instructional Dean. The employee shall provide adequate continuous supervision for such minor(s) and ensure that there is no disruption of services as a result of their being on site.

Parents and guardians are responsible for the safety of the minors in their care. No liability will be accepted by the District, or any of its agents or staff, for the consequences of minors being on campus. Minors may at no time be left unattended or unsupervised. It is not appropriate to request that staff supervise the minors of students or co-workers except when their job assignment relates to a formal program designed for minors.

Under no circumstances are minors to be admitted where dangerous substances or equipment are in use.

Classroom Settings

Minors are not allowed to participate in activity classes, laboratory sessions, or studio work, except as follows:

- Minors enrolled in the Child Development Center or other instructional programs in the District
- Minors participating in classes (at the request or approval of the instructor)

Settings Outside the Classroom

- Minors may occasionally accompany a student or employee to the District or college site for a brief visit. They must remain under the continuous supervision of the adult responsible for them and their presence should in no way obstruct or diffuse services or work duties in the area.

- An employee may request that minors or visitors leave the area should it be deemed necessary or appropriate.

- Visitors to all District facilities and events are subject to all relevant District policies and regulations.

Also see BP 3504 Minors on Campus.

Approved: 2/8/10
Reviewed: 5/14/18
Revised: 12/9/19

AP 3505 Emergency Response Plan

References:

Education Code Sections 32280 et seq. and 71095;
Government Code Sections 3100 and 8607 subdivision (a);
Homeland Security Act of 2002;
National Fire Protection Association 1600;
Homeland Security Presidential Directive-5;
Executive Order S-2-05;
California Code of Regulations Title 19, Sections 2400-2450;
34 Code of Federal Regulations Part 668.46 subdivisions (b)(13) and (g)

EMERGENCY RESPONSE AND EVACUATION PROCEDURES

General information about the emergency response and evacuation procedures for the District are publicized each year as part of the District's Clery Act compliance efforts and that information is available at www.avc.edu.

All members of the campus community are notified on an annual basis that they are required to notify the Antelope Valley College Police Department of any incident on campus that involves a significant emergency or dangerous situation that may involve an immediate or ongoing threat to the health and safety of students and employees on campus. The Antelope Valley College Police Department has the responsibility of responding to, and summoning the necessary resources, to mitigate, investigate, and document any situation that may cause a significant emergency or dangerous situation. In addition, Antelope Valley College Police Department personnel have a responsibility to respond to such incidents to determine if the situation does, in fact, pose a threat to the community. If so, federal law requires that the institution immediately notify the campus community or the appropriate segments of the community that may be affected by the situation.

Upon confirmation or verification by the District that a legitimate emergency or dangerous situation involving an immediate threat to the health or safety of students or employees is occurring on campus, the District will determine the content of the message and will use some or all of the systems described below to communicate the threat to the campus community or to the appropriate segment of the community, if the threat is limited to a particular building or segment of the population. The District will, without delay, take into account the safety of the community, determine the content of the notification and initiate the notification system, unless issuing a notification will, in the judgment of the first responders (including, but not limited to Antelope Valley College Police Department's personnel), compromise the efforts to assist a victim or to contain, respond to, or otherwise mitigate the emergency.

In the event of a serious incident that poses an immediate threat to members of the campus community, the District has various systems in place for communicating information quickly. Some or all of these methods of communication may be activated in the event of an immediate threat to the campus community. These methods of communication include network e-mails, emergency text messages that can be sent to a phone or Personal Digital Assistant (individuals can sign up for this service on the District website), phone calling trees, and District website. The District will post updates during a critical incident on the District website at www.avc.edu. Individuals can call the District's recorded information telephone line at (661) 722-6600 for updates.

RAVE has the ability to send text messages to the cell phones of faculty, staff and students who opt in to the system via our Web site or by use of their phones. (The opt in process requires that a subscriber simply enter his or her mobile phone number in the spaces provided in the RAVE area at the bottom of the Antelope Valley College website homepage at www.avc.edu. After entering this number, the person opting in clicks on the "Subscribe" button in the same area.) RAVE will be used in conjunction with broadcast phone messages, e-mails, Web postings and even news media alerts (when needed) to relay vital information to the campus.

The District's Public Information Officer will be responsible for the dissemination of emergency information to the larger community through cell phone alerts, website announcements, radio, and TV alerts.

TESTING EMERGENCY RESPONSE AND EVACUATION PROCEDURES

An evacuation drill is coordinated by the Antelope Valley College Police Department two times per year for all facilities on campus. Students learn the locations of the emergency exits in the buildings and are provided guidance about the direction they should travel when exiting each facility for a short-term building evacuation.

Evacuation drills are monitored by the Antelope Valley College Police Department and District administration to evaluate egress and behavioral patterns. Reports are prepared by participating departments which identify deficient equipment so that repairs can be made immediately. Recommendations for improvements are also submitted to the appropriate departments and offices for consideration.

The District conducts numerous announced and unannounced drills and exercises each year and conducts follow-through activities designed for assessment and evaluation of emergency plans and capabilities. The Antelope Valley College Police Department and District administration coordinate announced and unannounced evacuation drills two times per year, as described above, to test the emergency response and evacuation procedures, and to assess and evaluate the emergency evacuation plans and capabilities. For each test conducted, the Antelope Valley College Police Department will document a description of the exercise, the date, time, and whether it was announced or

unannounced. The District will publish a summary of its emergency response and evacuation procedures in conjunction with at least one drill or exercise each calendar year.

PURPOSE
The Emergency Procedures are the District's planned responses to all hazards on or affecting the campus or surrounding community. The Emergency Procedures will be activated by the District superintendent/president or his/her delegated representative. The Emergency Procedures detail actions and responsibilities for all employees of the District.

RESPONSIBILITY
Government Code Sections 3100-3101 state that all employees of the District are declared civil defense workers during emergencies, subject to such defense activities as may be assigned to them. Federal and state regulations further state that all employees of the District must be trained and qualified in specified Federal Emergency Management Agency (FEMA) courses depending on an employee's emergency response responsibilities.

EMERGENCY COMMAND POSTS (CIVILIAN AND LAW ENFORCEMENT)
The Emergency Command Posts will be activated during emergency situations. The Superintendent/President or his/her designated representative and the chief law enforcement officer on site will activate their respective Emergency Command Posts and maintain effective communications between the two Command Posts. The Emergency Command Post staffs will direct the District's response to the emergency situation, coordination with each other, coordination with outside agencies, and requests for outside support. The Emergency Command Post staffs will be aided in their duties by college and law enforcement staff personnel.

The Command Posts shall jointly:

- Declare a major emergency in the event of earthquake, explosion, flood, etc.
- Assess the overall disaster based on reports from area managers.
- Initiate the emergency notification chain (call back of employees) if necessary.
- Mobilize any additional staff to heavily damaged areas.
- Determine the — "All-Clear" when the disaster is over.

All press releases will be prepared by the Office of Public Information. In absence of this person, the key administrator will designate an individual responsible for this function.

PREPAREDNESS
The District's preparedness is based on pre-staged supplies, training and awareness, and emergency drills. All employees of the District will receive training in responding to and

managing emergency situations according to federal and state laws and regulations. The best response to emergency situations is preparedness.

EMERGENCY TELEPHONE LIST
Please see the Confidential Administrative Staff Directory (i.e. confidential telephone list) with administrative personnel (including Executive and Senior Administrative Assistants) home phone numbers, cell phone numbers, and office phone numbers. This list is in the possession of all Administrative Staff personnel and is not published in a public document.

EMERGENCY ASSEMBLY AREAS
Emergency Designated Assembly areas are shown on the Area Evacuation Map. Assembly areas will be subject to change during the construction period.

LEGAL RESPONSIBLITIES & DUTY ASSIGNMENTS

Legal responsibilities and duty assignments are listed in the Emergency Procedures.

EMERGENCY PROCEDURES

EMERGENCY NUMBERS

CAMPUS SECURITY (on-campus phones)	4444
CAMPUS SECURITY (on-campus pay phones)	*80
MEDICAL, FIRE, POLICE	911
POISON CONTROL	1 (800) 876-4766

NON-EMERGENCY NUMBERS

CAMPUS SECURITY	722-6399
FACILITIES & MAINTENANCE	722-6300, ext. 6480
AVC OPERATOR	0

ALARM SIGNAL

Evacuate building: Proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot. Remember that security personnel may order an event-specific change in evacuation route and destination in order to avoid a hazard.

DO NOT RETURN TO THE BUILDING UNTIL TOLD TO DO SO.

Fire

1. Know the location of fire extinguishers in your area and know how to use them.
2. Drop and roll if you and/or your clothes catch on fire.
3. Immediately call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399. Give your name and describe the location and size of the fire.
4. If necessary, or if directed to do so by campus security personnel, activate the building alarm.
5. On large fires that are not immediately controllable, or after using the fire extinguisher, close all doors to confine the fire and reduce oxygen—but do not lock them.
6. Proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot.
7. Do not return to the building until told to do so.

Medical & First Aid

1. In case a serious injury or illness occurs on campus, immediately call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399. Give the campus location of the injured or ill person, describe the nature of the medical problem and provide your name.

2. Quickly perform these six steps if your first aid training is current:

    a. Ask the injured or ill person “Are you okay?” and “What is wrong?”
    b. Call campus security or send someone to call campus security.
    c. Tell the person you are first aid trained and ask “May I help you?”
    d. Check airway, breathing, and circulation.
    e. Treat the injured or ill person to the level of care within your scope of training.
    f. Remain with the injured or ill person until help arrives.

NOTE: The public telephone directory contains specific first aid instructions.

3. If you have not been trained in first aid or if your first aid training is not current, call campus security and continue to aid the injured or ill person until help arrives by the following three steps:

    a. If possible, determine extent of injury or probable cause of illness without moving the person.

b. Protect from all disturbance, reassure the person, and do not move him or her unless absolutely necessary.
c. Look for emergency medical tags and bracelets, question witnesses, and give all information to campus security.

4. Campus security personnel will contact outside medical response services as necessary.

5. In case of a minor injury or illness, provide first aid care. Use the first aid materials that are available in the nearest department office.

Building Evacuation

1. Prior to any emergency, familiarize yourself with the evacuation route from your building and your building's evacuation assembly area by referring to the Area Evacuation Map.
2. Be aware of all marked exits from your area and building.
3. When you hear the evacuation alarm—leave the building immediately
4. Do not use elevators.
5. To activate the building alarm, pull the handle on one of the red fire alarm boxes.
6. When the building evacuation alarm is sounded or when you are ordered to leave by campus security personnel or college staff, walk quickly to the nearest marked exit and ask others to do the same.
7. Once outside, proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot.
8. Remain in your designated assembly area until your Instructor, supervisor, or sponsor determines that all of the people in the class, office, or other function have evacuated or if one or more people may not have left the building. The Instructor, supervisor, or sponsor will report this information up the chain of command so that rescue personnel can begin searching for the missing at their last known location.
9. To the best of your ability, and without re-entering the building, assist campus emergency response personnel or college staff in their attempt to determine that everyone has evacuated safely.
10. An emergency command post may be set up near the emergency site. Keep clear of the command post unless you have important information to report.
11. Do not return to the building until told to do so.

Hazardous Materials Incident/Exposure

1. Report any campus spillage or release of a dangerous chemical or substance immediately to campus security at ext. 4444 or 6399 or use a campus pay phone

and dial *80 or use a cell phone and dial (661) 722-6399. Report the incident to your supervisor.

2. When reporting, be as specific as you can about the nature of the involved material and the location and approximate size of the spill or release. Campus security personnel will contact the on campus hazardous material personnel via the Maintenance Department (extension 6480). The hazardous material personnel will evaluate the spill or release and either properly contain it or clean it up or contact any necessary specialized authorities and/or outside clean up personnel.
3. Vacate the affected area at once and seal it off to prevent further contamination of others.
4. If you have come into contact with the spilled material or vapor emanating from it, you must avoid further contact, remain in the vicinity so that you do not spread the contaminant and you are readily available in the area to be helped, and notify campus security personnel of your contact with the contaminant.
5. If a room or an entire building is involved and either the building evacuation alarm is sounded or you are ordered to leave by campus security personnel, or college staff, evacuate the room or building by quickly walking to the nearest exit. Leave the elevators for the disabled and assist them as necessary.
6. Proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot.
7. Do not return to the building until told to do so.

Violent or Criminal Behavior

Report all crimes and suspicious situations to campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399.

1. Assist in making the campus a safe place by being alert to suspicious situations and by reporting them as outlined below. Do not take any unnecessary chances.

2. If you are the victim or are involved in any on-campus violation of the law such as assault, robbery, theft, unwanted sexual behavior, etc.:

Call campus security as soon as possible and supply them with the following information:

a. Nature of the incident.
b. Campus location of incident.
c. Description of person(s) involved.
d. Description of property involved.
e. Your name.
f. Your current location.
g. Your contact telephone number.
h. Any injuries including how many and extent of injury (if known).

3. If you witness an on-campus violation of the law, immediately call campus security and give them the information outlined in number 2 above.

4. Report to your departmental office anyone loitering or soliciting on campus. These people may be asked to leave if they do not have permission or a proper reason for being on campus. Call campus security if they refuse to leave when asked.

5. Call campus security for an escort to and from class or your workstation if you are concerned about your safety.

6. If in a room or building and you hear gunfire, lock your door(s) from the inside if the door(s) can be locked, call campus security to describe what you heard and give them your building name and room number, turn off room lights (whether day or night), and then take shelter so that you are not visible through a window to anyone outside of the window. Remain sheltered in place until campus security notifies you to take other action.

Earthquake

1. When the earth begins shaking, remember to DROP, COVER, and HOLD ON.

2. During an earthquake, remain calm and quickly follow the steps outlined below.

3. If indoors during an earthquake:

    a. DROP to a position under a sturdy table or desk or, if there is no table or desk nearby, sit on the floor against an interior wall away from windows, bookcases, shelves, and heavy equipment.
    b. COVER your eyes by pressing your face against your arm.
    c. HOLD ON to a table, desk, or chair leg if one is near you to help brace yourself. Expect the table, desk, or chair to move.

4. If outdoors during an earthquake:

    a. Move quickly away from buildings, trees, utility poles and power lines, and other structures.
    b. DROP to the ground in a clear area.

5. After the shaking stops, evaluate the situation. If emergency help is necessary, call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399. Expect aftershocks and react to them by following the same procedures as you did for the initial earthquake.

6. Coordinate with your supervisor and begin turning off all potentially hazardous equipment such as gas and electric appliances.

7. Evacuate the building by quickly walking to the nearest exit and alert people as you go. Be aware of structural damage and help both the disabled and the injured. DO NOT USE ELEVATORS.

8. Proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot.

9. Additional information is available on the Emergency Broadcast System (EBS) which, for Los Angeles County, is comprised of the regular AM and FM radio frequencies including:

XTRA 610 AM KLKX 93.5 FM
KNX 1070 AM KKZQ 100.1 FM
KAVC 1340 AM KTPI 103.1 FM
KWJL (news/talk) 1380 AM, Lancaster KOSS (Oasis) 105.5 FM
KUTY (Spanish–LaMera Mera) 1470 AM, Palmdale KGMX 106.3 FM
KCEL (Spanish–Radio Lazer) 106.9 FM

Additionally, AVC maintains an emergency message extension where employees can obtain recorded information related to campus closures or other emergency situations. The number is (661) 722-6600. One other possible means the College may employ to post messages is the "Campus Announcements" section of myAVC on the College Web site: www.avc.edu.

10. Do not return to the building until told to do so.

Explosion, Aircraft Crash or Similar Incident
If a volatile incident such as an explosion or aircraft crash occurs on campus and adversely affects your room or building, take the following actions:

1. Guard yourself against secondary explosions by immediately taking cover under a table or a desk that will provide protection against breaking glass and falling debris. Close your eyes and cover your ears with your hands.
2. After the concussion of the explosion or crash has subsided, call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399. Give your name and describe the location and nature of the emergency.

3. Activate the building alarm if necessary or if directed to do so by campus security personnel or college staff.
4. Evacuate the immediate area of the explosion or crash and notify your supervisor.
5. Do not touch or move any potentially volatile or suspicious object.
6. Help others, including the injured and the disabled, to evacuate the area. Remember that you can write a note to alert deaf or hard of hearing people to evacuate the area.
7. Proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot.
8. An emergency command post may be set up near the emergency site. Keep clear of the command post unless you have important information to report.
9. Do not return to the room or building until told to do so.

Utility Failure

1. If a major utility failure occurs (such as an electrical outage) during regular working hours, immediately call the Maintenance Department at (661) 722-6300, ext. 6480.
2. If there is potential danger to the building occupants or if the utility failure occurs after hours or on a weekend or holiday, call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399.
3. If an evacuation is ordered by campus security personnel or college staff, walk quickly to the nearest marked exit and ask others to do the same.
4. Once outside, proceed to the designated parking lot for your building. Keep walkways clear for emergency vehicles. Refer to the Area Evacuation Map to determine your designated parking lot.
5. Without re-entering the building, assist campus security personnel or college staff in their attempt to determine that everyone has evacuated safely.
6. An emergency command post will be set-up near the emergency site. Keep clear of the command post unless you have important information to report.
7. Do not return to the building until told to do so.

ADDITIONAL INFORMATION & PROCEDURES FOR SPECIFIC FAILURES

Electrical/Light Failure: All major campus buildings have an emergency light system that will provide enough illumination in corridors and stairs for safe exiting. It may also be advisable for your department to have some flashlights available.

Elevator Failure: All campus elevators have emergency alarms. If you discover an elevator failure, call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399. Do not attempt to open elevator doors.

Plumbing Failure/Flooding: Cease using all electrical equipment, vacate the area, and call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399.

Serious Gas Leak: Cease all operations, immediately vacate the area, and call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399.

Ventilation: If smoke or the odor of burning materials comes from the ventilation system, call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80 or use a cell phone and dial (661) 722-6399.

Evacuation of Disabled

If there is an emergency that affects occupants of wheelchairs and other disabled persons, the following evacuation procedures should be adhered to:

1. All persons shall move toward the nearest marked exit. Remember the following:

    a. Do not use elevators.

    b. When a wheelchair occupant or other person with mobility impairment reaches an obstruction, such as a staircase, he/she should request help from others in the area. Yellow Evac-Chairs are located near the top of each stairwell and are to be used in assisting mobility-impaired persons down the stairs.

    c. If help is not immediately available, the wheelchair occupant or other person with mobility impairment should stay in the area in front of the elevator or on the exit stairwells. He/she should continue to call for help until rescued.

Rescue personnel, campus security personnel, or the emergency response team will first check elevator lobby areas and exit stairwells for trapped persons. Once they have evacuated any trapped persons, they will then check restrooms, classrooms, offices, and all common use areas. They will flashlights in addition to doing visual and verbal checks to alert deaf/hard of hearing persons.

2. Assist a hearing impaired person in an emergency as follows:

    a. FLASH LIGHTS ON and OFF, wave, or tap the shoulder of a deaf or hard of hearing person to alert him/her to an emergency.

    b. Face a deaf person directly and speak clearly and naturally. He/she may be trying to read your lips.

c. Have a pad and pencil available so that you can attempt to communicate in writing. Print clearly.

3. Assist a blind person in an emergency as follows:

   Assign a "buddy" to help the blind person evacuate according to the regular procedures.

Bomb Threat

1. Any person receiving a phone call that an explosive device has been placed on campus should ask the caller the following questions and write down the answers:

   a. When is the bomb going to explode?
   b. Where is the bomb located?
   c. What kind of bomb is it?
   d. What does it look like?
   e. Why did you place the bomb?
   f. What is your name? Many times, the caller wants recognition for himself/herself or his/her organization and will provide this and other useful information.
   g. Who do you represent?

2. Keep talking to the caller as long as possible while you write down the following:

   a. Time of call.
   b. Estimated age and gender of caller.
   c. Speech pattern or accent of caller.
   d. Emotional state of caller.
   e. Background noises of caller's location.

3. Immediately call campus security at ext. 4444 or 6399 from the nearest land line telephone or use a campus pay phone and dial *80 and supply them with the information outlined above. Do not use a cell phone or 2-way radio to make the call. Report to your supervisor as soon as it is practical to do so.

4. If the bomb threat or suspicious object is received by mail, do not further handle the letter, envelope, or package. Immediately proceed to the nearest land line telephone and call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80. Do not use a cell phone or 2-way radio to make the call. Report to your supervisor as soon as it is practical to do so.

5. If you see a suspicious object on campus that could contain or be an explosive device, do not handle the object. Immediately proceed to the nearest land line telephone and call campus security at ext. 4444 or 6399 or use a campus pay phone and dial *80. Do not use a cell phone or 2-way radio to make the call. Report to your supervisor as soon as it is practical to do so.

6. Campus security personnel will conduct a detailed bomb search. Employees in the area(s) affected may be requested to make a brief inspection of their area(s) for out of place or suspicious objects that could contain or be an explosive device. Do not touch the object and remember to turn off cell phones and 2-way radios BEFORE beginning the inspection.

7. Campus security will assess the situation and determine if evacuation procedures are warranted.

8. If an evacuation is ordered, walk quickly to the nearest marked exit and, once outside, proceed to the OUTERMOST AREA of the designated parking lot for your building. Refer to the Area Evacuation Map to determine your designated parking lot.

9. An emergency command post will be set up a minimum of 300 feet from the emergency site. Keep clear of the command post unless you have important information to report.

10. Do not return to the building until told to do so.

Legal Responsibilities & Duty Assignments

Legal Responsibilities of Public Employees During an Emergency

The Government Code of the State of California (Title 1, Division 4, Chapter 8, Section 3101) has defined the term “public employees” to include all persons employed by the state or any county, city, city and county, state agency or public district, excluding aliens legally employed. It also defines the term “disaster service worker” to include all public employees.

State of California, Government Code Title 1, Division 4, Chapter 8, Section 3100:

> It is hereby declared that the protection of the health and safety and preservation of the lives and property of the people of the state from the effects of natural, man-made, or war-caused emergencies which result in conditions of disaster or in extreme peril of life, property, and resources is of paramount state importance requiring the responsible efforts of public and private agencies and individual citizens. In furtherance of the exercise of the police power of the state in protection

of its citizens and resources, all public employees are hereby declared to be disaster service workers subject to such disaster service activities as may be assigned to them by superiors or by law.

CIVILIAN EMERGENCYCOMMAND POST

The Civilian Emergency Command Post, from which the superintendent /president will direct operations, will be dictated by safety considerations and the superintendent's/president's choice as any one of the following: Administration Building, Campus Public Safety Office, Library Plaza, or other location necessitated by the emergency situation.

LAW ENFORCEMENT EMERGENCYCOMMAND POST

The Law Enforcement Emergency Command Post, from which the director of security (or designee in the absence of the director of security) will direct law enforcement operations, will be dictated by safety considerations and the Superintendent/President's choice as any one of the following: Administration Building, Campus Public Safety Office, Library Plaza, or other location necessitated by the emergency situation.

ASSIGNMENT OF DUTIES

Every staff member has a responsibility for performing certain duties in times of emergency. Specific assignments are outlined and additional assignments may be given via the chain of command.

The Superintendent/President of the Antelope Valley Community College District is responsible for the control and welfare of its students. The Superintendent/President (or designee in the absence of the Superintendent/President) directs the college staff in the implementation of EMERGENCY PROCEDURES and the assignment of duties as outlined. The Superintendent/President is the overall commander of any and all operations on the campus during normal and emergency operations. After the people present on campus have evacuated to an appropriate evacuation assembly area, the Superintendent/President will instruct the assistant superintendents/vice presidents, Director of Security and the Public Information Officer to meet him/her at the location of the Civilian Command Post where he/she will be briefed by them on their findings from their personnel after which he/she will give them direction for further activities. He/she will brief the Board of Trustees as necessary and to the extent possible on the state of affairs as the situation permits.

The administrator on duty will direct the college staff in the implementation of Emergency Procedures and the assignment of duties as outlined until the superintendent/president or his or her designee assumes control of the emergency situation. The administrator on duty will be contacted immediately and apprised of the emergency situation by Campus Security and will, in turn, report this information directly to the Superintendent/President or his/her designee and to the the Public Information Officer.

The assistant superintendents/vice presidents will instruct the deans and directors to meet them at the location of the Civilian Emergency Command Post where the assistant superintendents/vice presidents will be briefed by their respective deans and directors of any students, staff members, and/or visitors whose presence was not accounted for at their evacuation assembly area and the names of students, staff members, and visitors whose presence was noted at other than their evacuation assembly area. The main objective will be to determine who may be trapped or injured so severely that they cannot reach an evacuation assembly area and require rescue. The assistant superintendents/vice presidents will give the deans and directors instructions for further activities.

Deans and directors will proceed to the evacuation assembly areas designated for their personnel and confer with them to determine who may need rescue and the last known location(s) of the missing. The deans and directors will assign their personnel further activities which may include providing assistance to the injured, relocating groups of people, or responding to the Civilian Emergency Command Post to assist as necessary.

Faculty members, managers, and supervisors will escort their students, personnel, and visitors to their designated evacuation assembly areas and determine who did not arrive as well as seek medical attention for the injured and note any additional people who may be present in their evacuation assembly area. They will report this information and the last known location of the missing to their deans and directors. They will also report to their deans and directors other information they deem important such as hazards noted in their areas during their egress.

Community Emergency Response Team (CERT) trained personnel will report to the Law Enforcement Emergency Command Post after completing any other duties outlined herein. They may then be directed to perform a variety of activities including, but not limited to, the following:

1. Conduct search and rescue operations.
2. Evacuate and escort any remaining personnel from affected building(s).
3. Survey buildings for damage and re-entry.
4. Perform first aid.
5. Establish long-term care priorities.

Facilities Department personnel will be responsible for the use of emergency equipment, the handling of emergency supplies, and the safe use of available utilities. They will:

1. Survey the campus and report damage through their chain of command.

2. Assist in rescue operations as directed (examples: rig and operate lifting equipment and cutting torches to liberate victims trapped by or beneath structural components).
3. Assist in disaster fire suppression activities if trained and directed to do so.
4. Assist in controlling main shut-off valves for gas, water, and electricity.
5. Disburse emergency equipment as needed.

Clerical staff will help provide for the safety of essential school records and documents, operate telephones, and act as messengers and couriers when directed.

Cafeteria staff will make food stock and water available to campus emergency service providers whenever feeding becomes necessary during a disaster.

REPORTING EMERGENCIES NOT PREVIOUSLY COVERED:

- The quickest and easiest way to obtain professional help for any type of emergency not specifically covered by these procedures is to phone Campus Security for assistance. Dial extension 4444 or 6399 from on-campus phones or *80 from on-campus pay phones or (661) 722-6399 from your cell phone.
- When calling, stay calm and carefully explain the problem and location to the Dispatcher.
- Quickly notify the dean or immediate supervisor of the emergency and begin to take the appropriate action warranted by the situation.

REMAIN CALM – HELP OTHERS REMAIN CALM.

Also see BP 3505 Emergency Response Plan and BP/AP 6520 Security for District Property.

Approved: 11/14/11
Revised: 4/11/16
Revised: 12/9/19

AP 3506 Campus and Site Closures and Re-Openings

Reference:

No specific references

The Manager of Maintenance & Operations (M&O) will confer with the Director of Risk Management, and a recommendation regarding closure or re-opening will be formulated. The Manager of M&O will communicate the recommendation to the Superintendent/President.

The Manager of M & O will contact the Superintendent/President immediately or by 10:00 PM the night prior to any day for which a foreseeable closure/re-opening decision needs to be made, and the recommendation and its rationale will be provided. The final decision will be made by the Superintendent/President.

Closed means closed with the ONLY exception being the emergency services personnel necessary to keep on site or to return on site for any given closure. These emergency services personnel consist of all personnel necessary to ensure safety for people and property and can vary from situation to situation. No faculty, students, staff, or administrators, including athletic teams or those involved in activities of any kind, will be exempt from the closure.

After a directive has been given by the Superintendent/President to re-open the campus, the Manager M & O will assign appropriate M&O personnel to restore the campus to safe/useable condition. Once restored, the Manager of M & O will contact the Superintendent/President who will initiate various methods of disseminating this information, including a communication tree which cascades down from supervisor (beginning at the Superintendent/President's level) to direct report(s) on each appropriate level.

All campus and site closure and re-opening directives will be communicated through the Office of Public Information through multiple outlets to ensure broadest possible coverage.

In the event the Superintendent/President is not available, a designee will be assigned.

Also see BP/AP 3500 Campus Safety, BP/AP 3501 Campus Security and Access, and BP/AP 3505 Emergency Response Plan.

Approved: 12/14/09
Revised: 2/11/19
Revised: 12/9/19

AP 3510 Workplace Violence

References:

Cal/OSHA; Labor Code Sections 6300 et seq.;
Title 8 Section 3203;
Code of Civil Procedure Section 527.8;
Penal Code Sections 273.6; 626.9, and 626.10

The Antelope Valley Community College District is committed to providing a safe work environment that is free of violence and the threat of violence.

Responding to Threats of Violence

The top priority in this process is effectively handling critical workplace incidents, especially those dealing with actual or potential violence.

Violence or the threat of violence against or by any employee of the District or any other person is unacceptable.

Should a non-employee on District property demonstrate or threaten violent behavior, he/she may be subject to criminal prosecution.

Should an employee, during working hours, demonstrate or threaten violent behavior he/she may be subject to disciplinary action.

The following actions are considered violent acts:

- Striking, punching, slapping, or assaulting another person.
- Fighting or challenging another person to fight.
- Grabbing, pinching or touching another person in an unwanted way whether sexually or otherwise.
- Engaging in dangerous, threatening, or unwanted horseplay.
- Possession, use, or threat of use, of a firearm, knife, explosive or other dangerous object, including but not limited to any facsimile firearm, knife or explosive, on District property, including parking lots, other exterior premises, District vehicles, or while engaged in activities for the District in other locations, unless such possession or use is a requirement of the job.

- Threatening harm or harming another person, or any other action or conduct that implies the threat of bodily harm.

- Bringing or possessing any dirk, dagger, ice pick, or knife having a fixed blade longer than 2½ inches upon the grounds, unless the person is authorized to possess such a weapon in the course of his/ her employment, has been authorized by a District employee to have the knife, or is a duly appointed peace officer who is engaged in the performance of his/ her duties.

Any employee who is the victim of any violent threatening or harassing conduct, any witness to such conduct, or anyone receiving a report of such conduct, whether the perpetrator is a District employee or a non-employee, shall immediately report the incident to his/her supervisor or other appropriate person.

Referrals to the Antelope Valley College Campus Sheriff's Department or emergency services can be made in the following ways:

Antelope Valley College Campus Sheriff's Office:	(661) 722-6399 (Outside Line)
Antelope Valley College Campus Sheriff's Office:	6399 (Non-Emergency On-Campus Line)
Antelope Valley College Campus Sheriff's Office:	4444 (Emergency On-Campus Line)
Campus Sheriff; Team Lead:	3510(661) 722-6300 Extension: 6889)
Off Campus Emergency:	Dial 911

No one, acting in good faith, who initiates a complaint or reports an incident under this policy will be subject to retaliation or harassment.

Any employee reported to be a perpetrator will be provided both due process and representation before disciplinary action is taken. In the event the District fears for the safety of the perpetrator or the safety of others at the scene of the violent act, the Antelope Valley Campus Sheriff's Office will call the appropriate law enforcement officials.

Also see BP 3510 Workplace Violence and BP/AP 3515 Reporting of Crimes.

Approved: 11/7/05
Revised: 4/15
Revised: 5/9/16
Revised: 12/9/19

AP 3515 Reporting of Crimes

References:

Education Code Sections 212, 67380, 67383, and 87014;
Penal Code Sections 245 and 422.55;
Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act of 1998;
20 United States Code Section 1232g;
34 Code of Federal Regulations Part 668.46;
34 Code of Federal Regulations Part 99.31 subdivisions (a)(13), (14);
Campus Security Act of 1990

Members of the Antelope Valley Community College District who are witnesses or victims of a crime should immediately report the crime to the Antelope Valley Community College Campus Sheriff's Office when and if that criminal act is committed within the jurisdiction of the College Campus Sheriff's Office. Members of the Antelope Valley Community College District who are witnesses or victims of a crime off campus and outside the jurisdiction of the Campus Sheriff's Office, should contact the Los Angeles County Sheriff's Department:

In Lancaster contact: (661) 948-8466
In Palmdale contact: (661) 267-4300

In the event an employee is assaulted, attacked, or menaced by a student, the employee shall notify his/ her supervisor as soon as practical after the incident. The supervisor of any employee who is attacked, assaulted, or menaced shall assist the employee to promptly report the attack or assault to the Antelope Valley Community College Campus Sheriff's Office. The supervisor himself/ herself shall make the report if the employee is unable or unwilling to do so. Reporting a complaint to local law enforcement will not relieve the District of its obligation to investigate all complaints of harassment.

The District will instruct members of the Antelope Valley Community College Campus Sheriff's Office to notify students and employees complaining of sexual violence of their right to file a sex discrimination complaint with the District in addition to filing a criminal complaint, and to report incidents of sexual violence to Human Resources if the complainant consents.

The District shall publish warnings to the campus community about crimes that are considered to represent a continuing threat to other students and employees in a manner that is timely and will aid in the prevention of similar crimes. The information shall be disseminated by the Public Information Officer (PIO) in a manner that aids the prevention of similar crimes.

The District shall publish warnings to the campus community about the following crimes:

- Criminal homicide – murder and non-negligent manslaughter;
- Criminal homicide – negligent manslaughter;
- Sex offenses – forcible and non-forcible sex offenses;
- Domestic violence, dating violence, and stalking;
- Robbery;
- Aggravated assault;
- Burglary;
- Motor vehicle theft;
- Arson;
- Arrests for liquor law violations, drug law violations, and illegal weapons possession;
- Persons who were not arrested for liquor law violations, drug law violations, and illegal weapons possession, but who were referred for campus disciplinary action for same;
- Crimes that manifest evidence that the victim was intentionally selected because of the victim's actual or perceived race, gender, religion, sexual orientation, ethnicity, or disability and involve larceny-theft, simple assault, intimidation;
- destruction/damage/vandalism of property, or any other crime involving bodily injury;
- Those reported to Antelope Valley Sheriff Department and
- Those that are considered to represent a continuing threat to other students and employees.

In the event that a situation arises, either on or off campus, that, in the judgment of the Antelope Valley College Deputy and the Superintendent/President or designee, constitutes an ongoing or continuing threat, a campus wide "timely warning" will be issued. The warning will be issued through the Public Information, Officer (PIO), e-mail system to students, faculty, and staff. The information shall be disseminated by the Public Information Officer (PIO) in a manner that aids the prevention of similar crimes.

Depending on the particular circumstances of the crime, especially in all situations that could pose an immediate threat to the community and individuals, the Public Information Officer (PIO) may also post a notice on the campus-wide electronic bulletin board on the Antelope Valley College Web Site, providing the community with more immediate notification. The electronic bulletin board is immediately accessible via computer by all faculty, staff, and students. Anyone with information warranting a timely warning should report the circumstances to the Antelope Valley College Campus Sheriff's Office, by phone extension 6399 or in person.

The District shall not be required to provide a timely warning with respect to crimes reported to a pastoral or professional counselor.

If there is an immediate threat to the health or safety of students or employees occurring on campus, the District shall follow its emergency notification procedures.

The District shall annually collect and distribute statistics concerns crimes on campus. All college staff with significant responsibility for student and campus activities shall report crimes about which they receive information.

The District shall publish an Annual Security Report every year by October 1 that contains statistics regarding crimes committed on campus and at affiliated locations for the previous three (3) years. The Annual Security Report shall also include policies pertaining to campus security, alcohol and drug use, crime prevention, the reporting of crimes, sexual assault, victims' assistance program, student discipline, campus resources and other matters. The District shall make the report available to all current students and employees. The District will also provide perspective students and employees with a copy of the Annual Security Report upon request. A copy of the Annual Security Report can be obtained by contacting the Public Information Officer (PIO) or is published in the campus newspapers monthly.

If an individual is a victim of a crime and does not want to pursue action within the District's System or the criminal justice system, the individual may still want to consider making a confidential report. The purpose of a confidential report is to comply with the individual's desire to keep the matter confidential, while taking steps to ensure the future safety of the individual and others. With such information, the District can keep an accurate record of the number of incidents involving students, determine where there is a pattern of crime with regard to a particular location, method, or assailant, and alert the campus community to potential danger. Reports filed in this manner are counted and disclosed in the annual crimes statistics for the institution.

The campus sheriff encourages anyone who is the victim or witness to any crime to promptly report the incident to the police. Because police reports are public records under state law, the campus sheriff's office cannot hold reports of crime in confidence. Confidential reports for purposes of inclusion in the annual disclosure of crime statistics can generally be made to other campus security authorities as identified below.

The District may disclose the final results of disciplinary proceeding to a victim of an alleged perpetrator of a crime of violence or a non-forcible sex offense, regardless of the outcome. The District may also disclose to anyone, the final results of a disciplinary proceeding in which it concludes that a student violated school policy with respect to a crime of violence or non-forcible sex offense. The offenses that apply to this permissible disclosure are

- Arson;
- Assault offenses;
- Burglary;
- Criminal homicide – manslaughter by negligence;
- Criminal homicide – murder and non-negligent manslaughter;
- Destruction, damage, or vandalism of property;
- Kidnapping or abduction;
- Robbery;
- Forcible sex offenses.

The disclosure may only include the final result of the disciplinary proceeding with respect to the alleged criminal offense. The District shall not disclose the name of any other student, including a victim or witness, unless the victim or witness has waived his or her right to confidentiality.

To Report a Crime:
Contact sheriff's department at 661-722-6300 ext 6399 and dial 4-4-4 (emergencies only). Any suspicious activity or person seen in the parking lots or loitering around vehicles or inside buildings should be reported to the police department. In addition, crimes may reported to the following areas:

Vice President of Student Services – 661-722-6300 ext 6303
Vice President of Human Resources – 661-722-6300 ext 6120
Student Life – 661-722-6300 ext 6354

Required Reports to Local Law Enforcement Agency
Any report of willful homicide, forcible rape, robbery, aggravated assault, sexual assault, or hate crime, committed on or off campus, that is received by a campus security authority and made by the victim for the purposes of notifying the institution or law enforcement must be immediately, or as soon as practicably possible, disclosed to the local law enforcement agency. The report shall not identify the victim, unless the victim consents to being identified after the victim has been informed of his/her right to have his/her personally identifying information withheld. If the victim does not consent to being identified, the alleged assailant shall not be identified in the information disclosed to the local law enforcement agency unless the institution determines that both of the following apply, in which case the institution shall disclose the identity of the alleged assailant to the local law enforcement agency and notify the victim of the disclosure:

- The alleged assailant represents a serious or ongoing threat to the safety of students, employees, or the institution; and

- The immediate assistance of the local law enforcement agency is necessary to contact or detain the assailant.

Also see BP 3515 Reporting of Crimes and AP 3516 Registered Sex Offender Information.

Approved: 11/7/05
Revised: 8/8/16
Revised: 12/12/16
Revised: 12/9/19

AP 3516 Registered Sex Offender Information

References:

Penal Code Sections 290, 290.01, and 290.95;
34 Code of Federal Regulations Part 668;
42 U.S. Code Section 14071j;
20 U.S. Code Section 1092 subdivision (f)(1)(I);
20 U.S. Code Section 1232g subdivision (b)(7)(A) (Campus Sex Crimes Prevention Act)

The District shall include in its Annual Security Report a statement advising the campus community where information pertaining to registered sex offenders may be obtained:

Sex offenders are required to register with the police in the jurisdiction in which they reside and at institutions of higher learning if they are students there or if they work there as employees, contractors, or volunteers. A sex offender who is an employee or volunteer in the District must disclose his/ her status as a registrant upon his/ her application or acceptance of the position if he/ ~~or~~ she 1) would be working directly and in an unaccompanied setting with minor children on more than an incidental and occasional basis or have supervision or disciplinary power over minor children, or 2) would be working directly and in an accompanied setting with minor children and his/ her work would require touching minor children on more than an incidental basis.

A sex offender who must register for committing a crime against a minor victim under the age of sixteen (16) is prohibited from serving as an employer, employee, contractor, or volunteer in any capacity in which the sex offender would be working directly and in an unaccompanied setting with minor children on more than an incidental and occasional basis or involving having supervision or disciplinary power over minor children.

Sex offenders who may be required to register should do so at: the Antelope Valley College Police Department prior to registering or attending any classes. Sex offenders who wish to register at the Antelope Valley Community College District to attend classes must first be registered with their local law enforcement agency in the area in which they reside as required by state law.

Information concerning registered sex offenders can be obtained from the Megan's law computer terminal at the Lancaster and Palmdale stations of the Los Angeles County Sheriff's department:

Lancaster Sheriff's Station: 501 West Lancaster Blvd., Lancaster, CA 93534
Palmdale Sheriff's Station: 1020 East Palmdale Blvd., Palmdale, CA 93550

The Antelope Valley College Police Department shall not release information regarding a sex offender, unless the person seeking the information has signed a statement, on a form provided by the Department of Justice, stating that he/ she is not a registered sex offender, that he/ she

understands the purpose of the release of information is to allow members of the campus community to protect themselves and their children from sex offenders, and that he/ she understands it is unlawful to use the information received to commit a crime against any registered sex offender or to engage in illegal discrimination or harassment of a registered sex offender. The department will maintain the signed statement in its records for a period of five (5) years.

The Antelope Valley College Police Department will release the following information regarding a registered sex offender: (1) full name; (2) known aliases; (3) gender; (4) race; (5) physical description; (6) photograph; (7) date of birth; (8) crimes resulting in registration; and (9) The date of last registration or reregistration.

Also see BP/AP 3540 Sexual and Other Assaults on Campus.

Approved: 11/7/05
Revised: 9/10/07
Revised: 4/11/16
Revised: 12/9/19

AP 3518 Child Abuse Reporting

References:

Penal Code Sections 261, 264.1, 273a, 273d, 285, 286, 288, 288a, 289, 647a, and 11164-11174.3;
Welfare and Institutions Code Sections 300, 318, and 601;
Family Code Sections 7802, 7807, 7808, 7820-78297, 7890, and 7892.

The Antelope Valley Community College District recognizes the responsibility of its staff to report to the appropriate agency when there is a reasonable suspicion that an abuse or neglect of a child may have occurred. Mandated reporters include faculty, educational administrators and classified staff. Volunteers are not mandated reporters, but are encouraged to report suspected abuse or neglect of a child.

Child abuse is defined as physical abuse, neglect, sexual abuse and/or emotional maltreatment. This procedure addresses the sexual assault, sexual exploitation, and/or sexual abuse of a child; the willful cruelty or unjustifiable punishment of a child; incidents of corporal punishment or injury against a child; abuse in out-of-home care; and the severe and/or general neglect of a child (definitions contained in Penal Code Section 11165).

“Reasonable suspicion” occurs when “it is objectively reasonable for a person to entertain such a suspicion, based upon facts that could cause a reasonable person in a like position drawing when appropriate on his/ her training and experience, to suspect child abuse” (Penal Code Section 11166 subdivision [a]).

A child protective agency is a police or sheriff’s department, a county probation department, or a county welfare department. School district police, Community College Police departments, or security departments are not child protective agencies (Penal Code Section 11165.9).

Any person not mandated by law to report suspected child abuse has immunity unless the report is proven to be false and the person reporting knows it is false, or the report is made with reckless disregard of the truth or falsity of the incident (Penal Code Section 11172 subdivision (a). Reporting is an individual responsibility. An employee making a report cannot be required to disclose his/ her identity to the employer (Penal Code Section 11166 subdivision (h). However, a person who fails to make a required report is guilty of a misdemeanor punishable by up to six (6) months in jail and/or up to a $1,000 fine (Penal Code Section 11172 subdivision (e)).

Mandated reporters must report immediately any reasonable suspicion of child abuse to a local child protective agency and follow up with a written report within thirty-six (36) hours. Students who will receive college credit for coursework are mandated reporters while volunteers are not. The written report may be mailed or submitted by facsimile or electronic transmission.

Child abuse reporting forms are available in the Antelope Valley Community College Campus Sheriff's Office in the T800.

No mandated reporter who reports a known or suspected instance of child abuse shall be civilly or criminally liable for any report required or authorized by the Penal Code. Any person other than a child care custodian reporting a known or suspected instance of child abuse shall not incur any liability as a result of making any report of child abuse, unless it can be proven that a false report was made and the person knew that the report was false. (Penal Code Section 11172 subdivision (a))

When an official of AVC releases a minor pupil to a peace officer for the purpose of removing the minor from the campus, the district official shall take immediate steps to notify the parent or guardian regarding the release of the minor to the officer, and regarding the place to which the minor is reportedly being taken (Education Code Section 87044), except when a minor has been taken into custody as a victim of suspected child abuse, as defined in Penal Code Section 11165 or pursuant to Welfare and Institutions Code Section 305. In those cases, the official shall provide the peace officer with the address and telephone number of the minor's parent or guardian.

Non-accidental physical injury is considered to be a health and safety emergency, and parental consent is not required for release of student information under the Family Education Rights and Privacy Act, or the California Student Records Act (Education Code Sections 76200 et seq.).

Information relevant to the incident of child abuse may be given to an investigator from a child protective agency who is investigating the known or suspected cause of child abuse (Penal Code Section 11167 subdivision (b)).

The Antelope Valley Community College District shall provide a mandated reporter with a statement informing the employee that he/she is a mandated reporter and inform the employee of his/her reporting obligations under Penal Code Section 11166 and of his/ her confidentiality rights under subdivision (d) of Penal Code Section 11167. The Antelope Valley Community College District shall provide a copy of Penal Code Sections 11165.7, 11166, and 11167 to the employee. Prior to commencing his/ her employment and as a prerequisite to that employment, employee shall sign and return the statement to the Antelope Valley Community College District. The signed statements shall be

retained by the Antelope Valley Community College District (Penal Code Section 11166.5).

The District will distribute this procedure to all employees.

Also see BP 3518 Child Abuse Reporting.

Approved: 11/7/05
Revised: 5/8/06
Revised: 1/8/07
Revised: 4/14/08
Revised: 4/11/16
Reviewed: 12/12/16
Revised: 12/9/19

AP 3520 Local Law Enforcement

References:

Education Code Sections 67381 and 67381.1;
34 Code of Federal Regulations Part 668.46

The District, on behalf of each campus or center, has a written agreement with local law enforcement agencies. The agreement clarifies operational responsibilities for investigations of: Part I violent crimes, defined by law as willful homicide, forcible rape, robbery, and aggravated assault; sexual assaults, including, but not limited to rape, forced sodomy, forced oral copulation, rape by a foreign object, sexual battery, or threat of any of these; and hate crimes as defined by law, occurring at each location.

The written agreement designates which law enforcement agency has operational responsibility for violent crimes, sexual assaults, and hate crimes, and delineates the specific geographical boundaries of each agency's operational responsibility, including maps as necessary.

The written agreements required by the board policy are public records and are made available for inspection by members of the public upon request to Office of the Superintendent/President. Written agreements shall be reviewed and updated, if necessary, every five (5) years.

The Antelope Valley College Campus Sheriff's Office maintains a close working relationship with all other the law enforcement authorities as needed. Meetings may be held between the leaders of these agencies on both a formal and informal basis. The Antelope Valley College Campus Sheriff's Office communicates regularly on the scene of incidents that occur in and around the campus area. When incidents arise that require joint investigative efforts, resources, crime related reports and exchanges of information, the Antelope Valley College Campus Sheriff's Office will work closely with all other law enforcement authorities. There is no written memorandum of understanding between the Antelope Valley College Campus Sheriff's Office and other law enforcement authorities.

In response to a call, the other law enforcement authorities will take the required action, dispatching an officer or asking the victim to file an incident report. All incident reports received by the other law enforcement authorities are forwarded to the Assistant Superintendent/Vice President Student Services for review and potential action. The Antelope Valley College Campus Sheriff's Office may investigate a report when it is deemed appropriate.

Crimes should be reported to the Antelope Valley College Campus Sheriff's Office to ensure inclusion in the annual crime statistics and to aid in providing timely warning notices to the community, when appropriate.

Community members, students, faculty, staff, and guests are encouraged to report all crimes and public safety related incidents to the Antelope Valley College Campus Sheriff's Office in a timely manner. To report a crime or an emergency on the Lancaster campus, Palmdale Center, Fox Field, and any other locations where courses are taught, call the Antelope Valley College Campus Sheriff's Office at (661) 722-6399. To report a non-emergency security or public safety related matter, call the Antelope Valley College Campus Sheriff's Office at (661) 722-6399.

The Antelope Valley College Campus Sheriff's Office have complete authority to apprehend and arrest anyone involved in illegal acts on-campus and areas immediately adjacent to the campus. If minor offenses involving District rules and regulations are committed by a student, the Antelope Valley College Campus Sheriff's Office may also refer the individual to the Assistant Superintendent/Vice President of Student Services. Major offenses such as rape, murder, aggravated assault, robbery, and auto theft are reported to the Antelope Valley College Campus Sheriff's Office to solve these serious felony crimes. Antelope Valley College Campus Sheriff's Office personnel work closely with local, state, and federal police agencies. The Antelope Valley College Campus Sheriff's Office is also a part of the local 911 Emergency System. Through coordination with local law enforcement agencies, any criminal activity engaged in by students at off-campus locations of student organizations, is monitored and recorded. This information is provided to the Assistant Superintendent/Vice President of Student Services for any action or follow-up that may be required.

Campus "Pastoral Counselors" and Campus "Professional Counselors," when acting as such, are not considered to be a campus security officers and are not required to report crimes for inclusion into the annual disclosure of crime statistics. As a matter of policy, they are encouraged; if and when they deem it appropriate, to inform persons being counseled of the procedures to report crimes on a voluntary basis for inclusion into the annual crime statistics.

A Pastoral Counselor is a person who is associated with a religious order or denomination, recognized by that religious order or denomination as someone who provides confidential counseling and who is functioning within the scope of that recognition as a pastoral counselor.

A Professional Counselor representative of the District whose official responsibilities include providing psychological counseling to members of the District's community and who is functioning within the scope of his or her license or certification.

Also see BP 3520 Local Law Enforcement.

Approved: 11/7/05
Revised: 4/11/16
Revised: 12/12/16
Revised: 4/13/20

AP 3530 Weapons on Campus

References:

Penal Code Section 626.9 and 626.10

The Antelope Valley Community College District shall be considered a "Gun Free Zone" in accordance with California Penal Code Section 626.9. The Antelope Valley Community College District shall also be known for a "Zero" tolerance with regards to any weapons violations as stated in California Penal Code Sections 626.9 and 626.10.

The Antelope Valley Community College District shall consider the following as "Zero" tolerance violations:

Firearms, knives, explosives or other dangerous objects, including but not limited to any facsimile firearm, knife or explosive, are prohibited on any District campus or at any District center, or in any facility of the District. The prohibition of firearms on any District campus, District center, or in in any District facility includes both loaded and unloaded firearms, and applies to persons holding a valid license to carry a concealed firearm.

Activities involving firearms or other weapons conducted under the direction of District officials or as authorized by an official law enforcement agency shall be reported to the Antelope Valley College Police Department before taking place.

Any person who believes that he/she may properly possess a firearm or other weapon on campus or in a District center or other facility of the District must promptly notify the Antelope Valley College's Sheriff's Department, and obtain written permission from Los Angeles Sheriff Department to possess a firearm or other weapon on campus.

Bringing or possessing any dirk, dagger, ice pick, or knife having a fixed blade longer than 2-1/2 inches upon the grounds, unless the person is authorized to possess such a weapon in the course of his/her employment, has been authorized by a District employee to have the knife, or is a duly appointed peace officer, who is engaged in the performance of his/~~or~~ her duties, is prohibited on any District campus or at any District Center, or in any facility of the District. Any student or employee, who Los Angeles Sheriff Department has authorized to have a knife, including kitchen knives, must exercise caution in using and storing the knife.

Also see BP 3530 Weapons on Campus.

Approved: 11/7/05
Revised: 10/12/09
Revised: 4/11/16

Reviewed: 12/12/16
Revised: 4/13/20

AP 3540 Sexual and Other Assaults on Campus

References:

Education Code Section 67385, 67385.7, and 67386;
20 U.S. Code Section 1092 subdivision (f);
34 Code of Federal Regulations Part 668.46 subdivision (b)(11)

Any sexual assault or physical abuse, including, but not limited to: rape, domestic violence, dating violence, sexual assault, or stalking as defined by California law, whether committed by an employee, student, or member of the public, occurring on District property, in connection with all academic, educational, extra-curricular, athletic, and other programs of the District, whether those programs take place in the District facilities or at another location or on an off-campus site or facility maintained by the District, or on grounds or facilities maintained by a student organization, is a violation of District policies and regulations, and is subject to all applicable punishment, including criminal procedures and employee or student discipline procedures. (See also AP 5500 Standards of Student Conduct)

"Sexual assault" includes but is not limited to: rape, forced sodomy, forced oral copulation, rape by a foreign object, sexual battery, or threat of sexual assault.

"Dating violence" means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim. The existence of a romantic or intimate relationship will be determined based on the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.

"Domestic violence" includes felony or misdemeanor crimes of violence committed by:

- a current or former spouse of the victim;
- a person with whom the victim shares a child in common;
- a person who is cohabitating with or has cohabitated with the victim as a spouse;
- a person similarly situated to a spouse of the victim under California law; or
- any other person against an adult or youth victim who is protected from that person's acts under California law.

"Stalking" means engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his/her safety or the safety of others, or to suffer substantial emotional distress.

It is the responsibility of each person involved in sexual activity to ensure that he/she has the affirmative consent of the other or others to engage in the sexual activity. Lack of protest or resistance does not mean consent, nor does silence mean consent. Affirmative

consent must be ongoing throughout a sexual activity and can be revoked at any time. The existence of a dating relationship between the persons involved, or the fact of past sexual relations between them, should never by itself be assumed to be an indicator of consent.

"Affirmative consent" means affirmative, conscious, and voluntary agreement to engage in sexual activity.

These written procedures and protocols are designed to ensure victims of domestic violence, dating violence, sexual assault, or stalking receive treatment and information. (For physical assaults/violence, see also AP 3500 Campus Safety, AP 3510 Workforce Violence, and AP 3515 Reporting of Crimes.)

All students, faculty members, or staff members who allege they are the victims of domestic violence, dating violence, sexual assault, or stalking on District property shall be provided with information regarding options and assistance available to them. Information shall be available from the campus Police Department, which shall maintain the identity and other information about alleged sexual assault victims as confidential unless and until the campus Police Department is authorized to release such information by court order.

Sheriff personnel shall provide all alleged victims of domestic violence, dating violence, sexual assault, or stalking with the following, upon request:

- A copy of the District's policy and procedure regarding domestic violence, dating violence, sexual assault, or stalking;

- A list of personnel on campus who should be notified of the assault (see list below), and procedures for such notification, if the alleged victim consents;

- Information about the importance of preserving evidence and the identification and location of witnesses;

- A description of available services, and the persons on campus available to provide those services if requested;

    - The Vice President of Student Services for referral to a counseling center and other on or off-campus resources, student disciplinary procedures, modification of class schedules, and tutoring, if necessary.

    - The Vice President of Human Resources for employee disciplinary procedures

- The Antelope Valley College Sheriff's Department for transportation to a hospital, if necessary, and all other law enforcement matters.

- The victim's option to:
  - notify proper law enforcement authorities, including on-campus and local police;
  - be assisted by campus authorities in notifying law enforcement authorities if the victim so chooses; and
  - decline to notify such authorities.
- Information about the participation of victim advocates and other supporting people;
- The rights of victims and the institution's responsibilities regarding orders of protection, no contact orders, or similar lawful orders issued by a court;
- Information about how the District will protect the confidentiality of victims; and
- Written notification of victims about options for, and available assistance in, changing academic, living, transportation, and working situations, if requested and if such accommodations are reasonably available, regardless of whether the victim chooses to report the crime to campus police or local law enforcement.

A description of each of the following procedures:
- Criminal prosecution
- Civil prosecution (i.e., lawsuit);
- District disciplinary procedures, both student and employee;
- Modification of class schedules;
- Tutoring, if necessary.

The persons on campus who should be notified of the assault include:

- The President/Superintendent
- The Vice President of Student Services
- Sexual Assault Response Services (SARS) (661) 723-7273

The District will investigate all complaints alleging sexual assault under the procedures for sexual harassment investigations described in AP 3435 Discrimination and

Harassment Complaints and Investigations, regardless of whether a complaint is filed with local law enforcement.

All alleged victims of domestic violence, dating violence, sexual assault, or stalking on District property shall be kept informed, through the Campus Sheriff's Department, or the Vice President of Student Services of any ongoing investigation. Information shall include the status of any student of employee disciplinary proceedings or appeal; alleged victims of domestic violence dating violence, sexual assault, or stalking are required to maintain any such information in confidence, unless the alleged assailant has waived rights to confidentiality.

The District shall maintain the identity of any alleged victim, witness, or third-party reporter of domestic violence, dating violence, sexual assault, or stalking on District property, as defined above, in confidence unless the alleged victim, witness, or third-party reporter specifically waives that right to confidentiality. All inquiries from reporters or other media representatives about alleged domestic violence, dating violence, sexual assaults, or stalking on District property shall be referred to the District's Public Information Office, which shall work with the campus Police Sheriff Department and the Vice President of Student Services Office to assure that all confidentiality rights are maintained.

A complainant or witness who participates in an investigation of sexual assault, domestic violence, dating violence, or stalking will not be subject to disciplinary sanctions for a violation of the District's student conduct policy at or near the time of the incident, unless the District determines that the violation was egregious, including but not limited to, an action that places the health or safety of any other person at risk or involves plagiarism, cheating, or academic honesty.

In the evaluation of complaints in any disciplinary process, it shall not be a valid excuse to allege lack of affirmative consent that the accused believed that the complainant consented to the sexual activity under either of the following circumstances:

- The accused's belief in affirmative consent arose from the intoxication or recklessness of the accused.

- The accused did not take reasonable steps, in the circumstances known to the accused at the time, to ascertain whether the complainant affirmatively consented.

In the evaluation of complaints in the disciplinary process, it shall not be a valid excuse that the accused believed that the complainant affirmatively consented to the sexual activity if the accused knew or reasonably should have known that the complainant was unable to consent to the sexual activity under any of the following circumstances:

- The complainant was asleep or unconscious.

- The complainant was incapacitated due to the influence of drugs, alcohol, or medication, so that the complainant could not understand the fact, nature, or extent of the sexual activity.

- The complainant was unable to communicate due to a mental or physical condition.

The District shall maintain the identity of any alleged victim, witness, or third-party reporter of domestic violence, dating violence, sexual assault, or stalking on District property, as defined above, in confidence unless the alleged victim, witness, or third-party reporter specifically waives that right to confidentiality. All inquiries from reporters or other media representatives about alleged domestic violence, dating violence, sexual assaults, or stalking on District property shall be referred to the District's Public Information Office, which shall work with the Human Resources Office to assure that all confidentiality rights are maintained.

Additionally, the Annual Security Report will include a statement regarding the District's programs to prevent sexual assault, domestic violence, dating violence, and stalking and procedures that should be followed after an incident of domestic violence, dating violence, sexual assault, or stalking has been reported, including a statement of the standard of evidence that will be used during any District proceeding arising from such a report.

The statement must include the following:

- A description of educational programs to promote the awareness of rape, acquaintance rape, and other forcible and non-forcible sex offenses, domestic violence, dating violence, or stalking;

- Procedures to follow if a domestic violence, dating violence, sex offense, or stalking occurs, including who should be contacted, the importance of preserving evidence to prove a criminal offense, and to whom the alleged offense should be reported;

- Information on a student's right to notify appropriate law enforcement authorities, including on-campus and local police, and a statement that campus personnel will assist the student in notifying these authorities, if the student so requests, and the right to decline to notify these authorities;

- Information about how the District will protect the confidentiality of victims;

- Information for students about existing on- and off-campus counseling, mental health, victim advocacy, legal assistance, or other services for victims;

- Written notification of victims about options for, and available assistance in, changing academic, living, transportation, and working situations, if requested and if such accommodations are reasonably available, regardless of whether the victim chooses to report the crime to campus police or local law enforcement

- Procedures for campus disciplinary action in cases of an alleged domestic violence, dating violence, sexual assault, or stalking including a clear statement that:

    - Such proceedings shall provide a prompt, fair, and impartial resolution;

    - Such proceedings shall be conducted by officials who receive annual training on the issues related to domestic violence, dating violence, sexual assault, and stalking and how to conduct an investigation and hearing process that protects the safety of victims and promotes accountability;

    - The accuser and the accused are entitled to the same opportunities to have others present during a disciplinary proceeding; and

    - Both the accuser and the accused must be informed of the outcome of any institutional disciplinary proceeding resulting from an alleged domestic violence, dating violence, sexual assault, or stalking, the procedures for the accused and victim to appeal the results of the disciplinary proceeding, of any changes to the results that occurs prior to the time that such results become final, and when such results become final. Compliance with this paragraph does not violate the Family Educational Rights and Privacy Act. For the purposes of this paragraph, the outcome of a disciplinary proceeding means the final determination with respect to the alleged sex offense and any sanction that is imposed against the accused.

- A description of the sanctions the campus may impose following a final determination by a campus disciplinary proceeding regarding rape, acquaintance rape, or other forcible or nonforcible sex offenses, domestic violence, dating violence, or stalking.

Education and Prevention Information

The Superintendent/President or designee shall:

- Provide, as part of the campus' established on-campus orientation program, education, prevention, and outreach information about domestic violence, dating violence, sexual assault, and stalking. The information shall be developed in collaboration

with campus-based and community-based victim advocacy organizations, and shall include the District's sexual assault policy and prevention strategies including empowerment programming for victim prevention, awareness raising campaigns, primary prevention, bystander intervention, and risk reduction.

(NOTE: Beginning January 1, 2020, Districts must annually review and update procedures and protocols adopted pursuant to Education Code Section 67385 in collaboration with sexual assault counselors and student, faculty, and staff representatives.

The outreach programming included as part of an incoming student's orientation must include at a minimum, all of the following:

- The warning signs of intimate partner and dating violence.
- Campus policies and resources relating to intimate partner and dating violence.
- Off-campus resources and centers relating to intimate partner and dating violence.
- A focus on prevention and bystander intervention training as it relates to intimate partner and dating violence.

- Post sexual violence prevention and education information on the campus internet website regarding domestic violence, dating violence, sexual assault, and stalking.

Also see BP 3540 Sexual and Other Assaults on Campus, BP/AP 3410 Nondiscrimination, BP/AP 3430 Prohibition of Harassment, and AP 3435 Discrimination and Harassment Complaints and Investigations.

Approved: 11/7/05
Revised: 1/8/07
Revised: 5/9/16
Revised: 4/13/20
Revised: 10/12/20

AP 3570 No Smoking and Tobacco-Free Environment

References:

Government Code Sections 7596, 7597, 7597.1, and 7598;
Labor Code Section 6404.5;
Health and Safety Code Section 104495;
Penal Code Sections 602 and 853.6;
Title 8 ~~5,~~ Section 5148

The Antelope Valley Community College District is a smoke and tobacco-free environment. Smoking, vaping, and the use of tobacco products is prohibited on all District property at all times. This administrative procedure applies to students, faculty, staff, administrators, visitors, and general members of the public.

This prohibition includes the use of all tobacco products, including but not limited to: cigarettes, cigars, little cigars, chewing tobacco, pipe tobacco, snuff, hookahs, and an electronic device that delivers nicotine or other vaporized liquids to a person inhaling from the device (e.g., e-cigarettes and vaporizers) may not be used on campus, or in a personal vehicle on campus, or in any college vehicle.

District property includes both indoor and outdoor areas of property that is owned, leased, or otherwise controlled by the District, including but not limited to: classrooms, offices, lobbies, lounges, waiting areas, stairwells, restrooms, walkways, sidewalks, lawns, athletic fields and viewing stands, parking lots, warehouses, storage yards, and District-owned or leased vehicles.

Signs stating “Smoke Free Campus” shall be posted on campus

Disciplinary measures to be taken against violators are listed here:

Enforcement of this procedure and the related policy will be the responsibility of Antelope Valley College Police Department personnel. All violators, including students, staff, faculty, and visitors, will be given a warning upon the first offense. A Field Investigation card will be completed with the violator’s contact information and filed for future reference. Students will be referred to the Vice President of Student Services’ office upon the second offense (please refer to AP 5520 for the discipline process). Upon the second offense for faculty and staff, refer to the appropriate collective bargaining agreement. Non-student, non-staff, non-faculty visitors will be directed to leave the campus and not return upon the second offense.

Also see BP 3570 No Smoking and Tobacco-Free Environment.

Approved: 11/7/05
Revised: 9/10/07
Revised: 2/8/10
Revised: 9/10/12
Revised: 4/11/16
Revised: 12/11/17
Revised: 4/13/20

AP 3600 Auxiliary Organizations

References:

Education Code Sections72670 et seq;
Government Code Sections 12580 et seq.;
Title 5 Sections 59250 et seq.

Definitions

Board of Directors – The term board of directors as used herein means the governing board of an auxiliary organization.

Board of Trustees – The term Board of Trustees as used herein means the Board of Trustees of the District.

Board of Governors – The term Board of Governors as used herein means the Board of Governors of the California Community Colleges.

Superintendent/President – The term Superintendent/President as used herein means the Superintendent of the District or designee.

District – The term District as used herein means the Antelope Valley Community College District.

Associated Student Body – The terms Associated Student Body, Associated Student Organization, Student Association, Student Organization, or ASB as used herein means an organization formed by any group of students from a college of the District in accordance with the provisions of Education Code Section 76060. All clubs and organizations recognized by an Associated Student Body or Organization shall be included in any auxiliary organization established by the Student Body or Organization.

Recognition and Establishment of Auxiliary Organizations

The Superintendent/President shall submit a recommendation to the Board of Trustees to establish an auxiliary organization when the organization will serve the District. The recommendation includes, but is not limited to, the following:

- The purpose(s) for which the auxiliary organization is to be established;
- Whether the proposed auxiliary organization will primarily serve the District or a particular division or department within the District;
- The functions which the auxiliary organization is intended to perform;

- The proposed bylaws and articles of incorporation for the auxiliary organization, including the size and composition of the board of directors; and
- The proposed written agreement between the auxiliary organization and the District, as required in Title 5 Section 59259.

The process of recognition shall be as follows:

- When the Superintendent/President receives a request to establish an auxiliary organization, the Superintendent/President shall submit a recommendation concerning the establishment of said organization to the Board of Trustees within three (3) months.
- The Board of Trustees shall hold a public hearing on each recommendation concerning the establishment of an auxiliary organization.
- At a subsequent scheduled meeting after the public hearing, the Board of Trustees shall announce its decision concerning the establishment of the organization, and, if approved, authorize the functions it may perform, identify the number and category or categories of the Board of D~~d~~irectors and approve contractual arrangements.

At such time as the District recognizes an auxiliary organization, it shall submit to the ~~state~~ California Community Colleges Chancellor's Office any written agreements with the auxiliary organization, as well as the articles of incorporation, bylaws, or other governing instruments.

Recognized Services, Programs, and Functions
Auxiliary organizations may be recognized and established by the Board of Trustees to perform the following services, programs, and functions which are an integral part of the community college educational programs. The following supportive services and specified programs have been determined to be appropriate:

- Student organization activities;
- Bookstores;
- Food and campus services;
- Facilities and equipment, including parking;
- Loans, scholarships, grants-in-aid;
- Workshops, conferences, institutes and federal and specially funded projects;
- Alumni activities;
- Supplementary health services;
- Gifts, bequests, devises, endowments and trusts; and
- Public relations programs.

No auxiliary organization shall be authorized by the Board of Trustees to engage in any other function unless the Board of Governors amends Title 5 Section 59259 by adding said function to the list of approved functions of auxiliary organizations. This section shall not be construed to prohibit an auxiliary organization from performing the duties essential to satisfy the non-profit corporation or tax laws of the State of California or the Federal tax laws.

Operations of commercial services on a campus shall be self-supporting when operated by an auxiliary organization.

Authority and Responsibility of Auxiliary Organizations
Participation in workshops, conferences, or institutes offered by auxiliary organizations shall not be included in reports to the state for the purpose of receiving apportionment funding.

All services, programs and activities that may be undertaken by an auxiliary organization shall be maintained for the general benefit of the educational program of the District. Upon Board of Trustees approval, an auxiliary organization may assume any of the services, programs and activities listed in these procedures in order:

- To provide the fiscal means and the management procedures that allow the District to carry on educationally related activities not normally funded by State apportionment;
- To eliminate the undue difficulty that would otherwise arise under the usual governmental budgetary, purchasing and other fiscal controls except as expressly prohibited by the Education Code or Title 5, or the District's procedures; or
- To provide fiscal procedures and management systems that allow effective coordination of the auxiliary activities with the District in accordance with sound business practices.

Composition of Boards of Directors
The board of directors of each auxiliary organization shall have the following composition:

- **Student Associations or Organizations:** The board of directors shall consist primarily of students. The Superintendent/President's designee may attend and participate in meetings of the board of directors in order to advise on policy and to provide for the control and regulation required by Education Code Section 76060.
- **Other Auxiliary Organizations:** Any District approved auxiliary organization that is established pursuant to Education Code Sections 72670 et seq. of the Education Code shall have a board of directors appointed in accordance with the organization's articles of incorporation or bylaws and consisting of voting membership from one or more of the following categories: administration, staff, members of the community, students.

The size of the board of directors of an auxiliary organization shall be at least large enough to accommodate the one or more categories from which board members are selected.

The board of directors shall have the advice and counsel of at least one attorney admitted to practice in California and at least one certified public accountant. Upon being notified of the certified public accountant selected by an auxiliary organization, the District shall forward the applicable auditing and reporting procedures to the selected certified public accountant.

Conduct of Boards of Directors

No member of the board of directors of an auxiliary organization shall be financially interested in any contract or other transaction entered into by the board of which he/she is a member. Any contract or transaction entered into in violation of this section is void.

No contract or other transaction entered into by the board of directors of an auxiliary organization is void under the provisions of Education Code Section 72677; nor shall any member of such board be disqualified or deemed guilty of misconduct in office under such provisions, if pursuant to Education Code Section 72678 both of the following conditions are met:

- The fact of such financial interest is disclosed or known to the board of directors and noted in the minutes, and the board thereafter authorizes, approves, or ratifies the contract or transaction in good faith by a vote sufficient for the purpose without counting the vote or votes of such financially interested member or members.
- The contract or transaction is just and reasonable as to the auxiliary organization at the time it is authorized or approved.

The provisions of Education Code Section 72678 above shall not be applicable if any of the following conditions are met:

- The contract or transaction is between an auxiliary organization and a member of the board of directors of that auxiliary organization.
- The contract or transaction is between an auxiliary organization and a partnership or unincorporated association of which any member of the governing board of that auxiliary organization is a partner or in which he/ she is the owner or holder, directly or indirectly, of a proprietorship interest.
- The contract or transaction is between an auxiliary organization and a corporation in which any member of the board of directors of that auxiliary organization is the owner or holder, directly or indirectly, of five percent (5%) or more of the outstanding common stock.

- A member of the board of directors of an auxiliary organization is interested in a contract or transaction within the meaning of Education Code Section 72677 and without first disclosing such interest to the governing board at a public meeting of the board, influences or attempts to influence another member or members of the board to enter into the contract or transaction.

It is unlawful for any person to utilize any information, not a matter of public record, which is received by the person by reason of his/her membership on the board of directors of an auxiliary organization, for personal pecuniary gain, regardless of whether he/she is or is not a member of the board at the time such gain is realized.

Bylaws
The bylaws of an auxiliary organization shall include, but not be limited to, specifying:

- The number of members of the board of directors, the categories from which members shall be selected and the method by which they shall be selected.

- The size of the board of directors.

- That at least one (1) public business meeting will be held each quarter.

- The timetable for the preparation and adoption of its program and annual budget and the submission of both for review to the Superintendent/President.

- That an attorney admitted to practice in this state and a licensed certified public accountant shall be selected to provide advice and counsel to the board of directors. Each shall have experience appropriate to the responsibility and shall have no financial interest in any contract or other transaction entered into by the board which he/she serves. Neither the attorney nor the certified public accountant needs to be a member of the board of directors.

- The procedures for approving expenditures.

- The procedures for accepting gifts, donations, bequests, trusts and specially funded grants and other income. All such gifts, donations, bequests, trusts and specially funded grants must be accepted through the Antelope Valley College Foundation.

Master Agreement between District and Auxiliary Organizations
In the recognition and establishment of an auxiliary organization, there shall be a written agreement between the District and the auxiliary organization which sets forth the purposes of the auxiliary organization as permitted under this procedure, and Title 5 Section 59259.

Should an auxiliary organization provide more than one (1) service, program or function, such service, program or function may be authorized in one (1) of more written contracts with the District. Such services, programs and functions thereby performed by an auxiliary organization may also be part of a joint powers agreement in accordance with Education Code Section 72671 and Government Code Sections 6500 et seq.

An auxiliary organization shall provide only those services, programs or functions authorized by a written agreement. No other service, program or function shall be permitted or performed unless a written agreement between the District and the auxiliary organization is amended to provide otherwise.

The agreement shall include, but is not limited to, the following provisions:

- The services, programs, or functions the auxiliary organization is to manage, operate or administer.

- A statement of the reasons for administration of the functions by the auxiliary organization instead of by the District under usual District procedures.

- The areas of authority and responsibility of the auxiliary organization and the District or College.

- The facilities and services to be made available by the District to permit the auxiliary organization to perform the services, programs, or functions specified in the written agreement.

- The charge or rental to be paid to the District by the auxiliary organization for the facilities used or services provided in connection with the performance of its function. The charge or rental specified shall be identified in sufficient time before it is incurred so that the organization may determine to what extent it is liable.

- Full reimbursement to the District for services performed by the District or by District employees in support of the auxiliary organization. No more than fifty percent (50%) of the reimbursement may be made in the form of non-monetary benefits that the auxiliary organization provides to the District, such as increased community awareness or other such benefits that are agreed upon by authorized District officials and the auxiliary organization. The District shall assign a good-faith reimbursement value to such non-monetary benefits. This does not preclude financial support for operational functions of the District in support of the college. Student body auxiliary organizations may be exempt from reimbursing all or any portion of the costs for such services. Methods of proration where services are

performed by District employees for the organization shall be as mutually determined.

- A mutually agreed upon method of determining in advance to what extent the organization shall be liable for indirect costs relating to specially funded programs (including federally sponsored programs.).

- The responsibility for maintenance and payment of operating expenses.

- Proposed expenditures for public relations or other purposes which would serve to augment District appropriations for operation of the District. With respect to these expenditures, the auxiliary organization may expend funds in such amount and for such purposes as are approved by the board of directors of the auxiliary organization. The board of directors shall file with the Superintendent/President a statement of such policy on accumulation and use of public relations funds. The statement shall include the policy and procedure on solicitation of funds, source of funds, amounts, and purpose for which the funds will be used, allowable expenditures, and procedures of control.

- The disposition to be made of net earnings derived from the operation of the auxiliary organization, including earnings derived from facilities owned or leased by the auxiliary organization, and provisions for reserves.

- The disposition to be made of net assets and liabilities on dissolution of the auxiliary organization or cessation of the operations under the agreement.

- The covenant of the auxiliary organization to maintain its organization and to operate in accordance with Education Code Sections 72670 through 72682 and with the regulations contained in Title 5 Sections 59250 et seq. as well as District board policy.

- The understanding that the auxiliary organization shall obtain the services and counsel of an attorney admitted to practice in the State of California whenever the need arises.

- The understanding that the auxiliary organization shall not enter into any contract or other business arrangement involving real property either by lease involving payments of more than $25,000 per annum and duration terms of more than one (1) year, or by purchase without prior notification and consultation with the Superintendent/President.

Personnel

Each auxiliary organization shall develop general regulations to govern its operations, including policies and regulations concerning the salaries, working conditions and benefits of its employees.

The aforesaid regulations shall not conflict with the implementing policies adopted by the Board of Trustees or with these procedures.

Except as otherwise provided in any board rules, the board of directors of each auxiliary organization shall, pursuant to Education Code Section 72672, provide salaries, working conditions and benefits for its full-time employees that are comparable to those provided District employees performing substantially similar services. For those full-time employees who perform services that are not substantially similar to the services performed by District employees, the salaries established shall be comparable to the salaries prevailing in other educational institutions in the area or commercial operations of like nature in the area.

Regular District employees may be employed by the auxiliary organization. District employees must resign or request a personal leave of absence from the District in order to accept employment with the auxiliary organization. District officers and employees who are required by the District's Conflict of Interest Code (AP 2712) to file disclosure of financial information are responsible to determine whether or not they are eligible to accept employment with the auxiliary organization immediately upon resignation from the District.

- **Educational Administrators or other Management Employees** may be granted a personal leave of absence for two (2) semesters, which may be extended to a maximum of ten (10) consecutive semesters.
- **Classified management employees** may be granted a personal leave of absence for up to one (1) year. This leave may not be extended beyond one (1) year without the employee first having returned to active duty.
- **Academic (faculty) employees** may be granted personal leave of absence for two (2) semesters. The leave may be extended for not more than six (6) consecutive semesters.
- **Classified employees** may be granted a personal leave of absence for up to one (1) year. This leave may not be extended beyond one (1) year without the employee first having returned to active duty.

The board of directors of each auxiliary organization may provide retirement benefits different from those provided comparable District employees and may withhold retirement benefits or permanent status benefits or both from temporary employees. For the purposes of this procedure, a temporary employee is:

- An employee employed for a specific research project, workshop, institute or other special project funded by any grant, contract or gift; or

- An employee whose contract of employment is for a fixed term not exceeding three (3) years.

The board of directors of each auxiliary organization may withhold permanent status benefits from executive employees. For the purposes of this Procedure, an executive employee is any management employee with responsibility for the development and execution of the auxiliary organization's policies and includes, but is not limited to, general managers, managers, directors and the like, as determined by the board of directors of each auxiliary organization.

Should retirement benefits be provided, they may but need not be provided by the Public Employees' Retirement System. Any newly created auxiliary organization is exempted from the requirement of providing retirement benefits for a period not to exceed three (3) years from the date on which the Board of Trustees recognizes the establishment of such auxiliary organization.

An auxiliary organization may contract with the District for the services of a District employee and reimburse the District for that portion of the employee's full-time assignment (and corresponding benefits) that is spent in providing said services.

Accounting and Reporting for Auxiliary Organizations
The fiscal year of the auxiliary organization shall coincide with that of the District.

Each auxiliary organization shall develop an accounting system that is in accordance with generally accepted accounting principles.

The auxiliary organization shall implement financial practices that will assure its fiscal viability. Such standards shall include professional management, adequate working capital, adequate reserve funds for current operations, capital replacements, contingencies and adequate provisions for new business requirements.

Each auxiliary organization serving the District shall submit its programs and budgets for review at a time and in a manner specified by the Superintendent/President.

Funds derived from indirect cost payments shall only be appropriated with the specific approval of the Superintendent/President. All uses of such funds shall be regularly reported to the Board of Trustees.

Should the Superintendent/President determine that any program or appropriation planned by an auxiliary organization is not consistent with District policy, the program or

appropriation shall not be implemented. Further, should a program or appropriation which has received approval, upon review, be determined by the Superintendent/President to be operating outside the acceptable policy of the Board of Governors or the District, then that program or appropriation shall be discontinued by direction of the Superintendent/ President until further review is accomplished and an appropriate adjustment is made.

The board of directors of an auxiliary organization shall approve all expenditure authorizations.

If the auxiliary organization receives or accrues in any fiscal year gross revenue of two million dollars ($2,000,000) or more, it shall also:

- Include in its bylaws an audit committee appointed by the board of directors. The audit committee may include persons who are not members of the board of directors, but the member or members of the audit committee shall not include any members of the staff, including the president or chief executive officer and the treasurer or chief financial officer. If the auxiliary committee has a finance committee, it must be separate from the audit committee. Members of the audit committee shall not receive any compensation from the corporation in excess of the compensation, if any, received by members of the board of directors for service on the board and shall not have a material financial interest in any entity doing business with the corporation. Subject to the supervision of the board of directors, the audit committee shall be responsible for recommending to the board of directors the retention and termination of the independent auditor and may negotiate the independent auditor's compensation, on behalf of the board of directors.

- The audited financial statements shall be available for inspection by the Attorney General and shall be made available to members of the public.

- The board of directors, or an authorized committee of the board, shall review and approve the compensation, including benefits, of the President or Chief Executive Officer and the Treasurer or Chief Financial Officer to assure that it is just and reasonable. This review and approval shall occur initially upon the hiring of the officer, whenever the term of employment, if any, of the officer is renewed or extended, and whenever the officer's compensation is modified. Separate review and approval shall not be required if a modification of compensation extends to substantially all employees.

Records and Annual Report of Auxiliary Organizations
Personnel and payroll records shall be maintained as permanent records by each auxiliary organization.

Adequate records of all other transactions of an auxiliary organization shall be maintained for a minimum of five (5) years. Transactions of the organization include, but are not limited to, purchases, disbursements, and investments.

An annual report shall be submitted to the board of directors of the auxiliary organization and to the Superintendent/President by September 15. The report shall include, but is not limited to:

- All financial statements required to be filed with the California Community Colleges Chancellor's Office
- A comparison of budgeted and actual expenditures
- A description of major accomplishments of the organization
- A description of improvements proposed for operation of the organization

Records maintained by an auxiliary organization shall be available to the public to inspect or copy at all times during the office hours of the auxiliary organization, pursuant to and with the exceptions provided in Education Code Sections 72690 et seq.

Annual Audit
Each auxiliary organization shall have an annual fiscal audit of any and all funds. The audit shall be performed by a certified public accountant in accordance with procedures prescribed by the Chancellor of the California Community Colleges. Copies of the annual audit report shall be submitted to the Board of Trustees and to the California Community Colleges Chancellor's Office within thirty (30) days after it is received by the auxiliary organization. Thereafter, it shall be a public record, except as otherwise provided by law. Such audits may be conducted as part of a fiscal audit of the District itself.

Auxiliary organizations shall annually publish an audited statement of their financial condition, which shall be disseminated as widely as feasible and be available to any person on request. A reasonable fee may be charged to cover the costs of providing a copy. An auxiliary organization shall comply with this requirement by:

- Publishing the audited financial statement in a campus newspaper; or
- Publishing a notice in a campus newspaper indicating the on-campus location where copies of the financial statement may be obtained or reviewed; or
- Publishing or noticing the audited statement in a campus bulletin or other appropriate medium if a campus newspaper is unavailable.

Insurance
Unless otherwise defined by the master agreement between the auxiliary organization and the District, an auxiliary organization shall secure and maintain insurance adequate to protect its operations from catastrophic losses and as required by law, including but not limited to, the following:

- Comprehensive liability;
- Property and extended coverage, when applicable;
- All risks, money, and securities;
- Fidelity and performance bonds covering its chief fiscal officer;
- Automotive liability when applicable; and
- Workers' Compensation

In any insurance policy secured by the auxiliary organization, the District shall be named as additional insured.

A copy of each policy or endorsement or insurance certificates setting forth the coverage and limits shall be provided to the District within thirty (30) days from the receipt of the document.

In obtaining the insurance coverage, the auxiliary organization may secure the insurance directly through its own broker or through the District.

Auxiliary Organizations: Use of Facilities
Facilities may be made available by the District to an auxiliary organization to perform the functions specified in these regulations or in an agreement, under the following circumstances:

- The auxiliary organization may occupy, operate and use such District facilities as are mutually identified as appropriate for the functions and/or activities that have been undertaken by the auxiliary organization.
- Unless otherwise defined by the master agreement between the auxiliary organization and the District, the auxiliary organization shall pay to the District a charge or rental for the District facilities to be used by it in connection with the performance of its function or functions.
- The charge or rental to be paid by the auxiliary organization shall not require involved methods of computation, and shall be identified by the District and the auxiliary organization in sufficient time before it is incurred so that the auxiliary organization may determine to what extent it shall be liable.
- The charge or rental to be incurred by an auxiliary organization for use of District facilities in excess of five (5) days shall be incorporated into the agreement between the parties.
- An auxiliary organization shall provide full reimbursement to the District for any services performed by District employees under the direction of the auxiliary organization. Methods of proration where services are performed by District employees for the auxiliary organization shall be simple and equitable.

List of Auxiliary Organizations in Good Standing
Each year, the Superintendent/President shall provide to the Board of Trustees a list of all auxiliary organizations in good standing. All auxiliary organizations which, after periodic review in the manner specified hereinafter in these regulations, are found to be in compliance with applicable laws, policies, and regulations shall be included in the list.

When the Superintendent/President has reason to believe that a particular organization should be removed from the list of auxiliary organizations in good standing, a conference shall be held to determine whether such grounds for removal do in fact exist. The board of directors of such organization shall be entitled to participate in this conference, and shall have a minimum of one (1) month notice to prepare response to the issues which have been raised.

Based upon such conference, the Superintendent/President shall decide whether the particular organization shall be removed from the list of auxiliary organizations in good standing.

An organization so removed shall not be permitted to do any of the following:

- Use the name of the District;
- Have as a director any official in the District acting in his/her official capacity;
- Operate a commercial service for the benefit of the District or any of its colleges; and
- If the auxiliary organization is dissolved or ceases operations upon removal from the list of organizations in good standing, its net assets and liabilities shall be distributed according to the terms of the written agreement between the organization and the District.

Limitation on Transfer of Funds to Auxiliary Organizations
No funds or resources, other than funds or resources derived from gifts or bequests, shall be transferred by the District to any of its auxiliary organizations for the purpose of either avoiding laws or regulations which constrain community college districts or providing the District with an unfair advantage with respect to the application of any state funding mechanism. Such state funding mechanisms include, but are not limited to, general apportionment funding, capital outlay funding, Extended Opportunity Programs and Services funding, and funding for programs and services for disabled students.

Compliance Review by Superintendent/President
All auxiliary organization procedures and practices shall be reviewed to determine compliance with Education Code Sections 72670 et seq., and the policies, rules and regulations of the Board of Governors, and of the District. The Superintendent/President shall designate the individual to conduct this review, which shall be conducted at the end

of the first complete fiscal year after its establishment and at least once every three (3) years thereafter.

When the Superintendent/President's designee determines, after inspection and review, that certain auxiliary organization procedures and practices are not in compliance with policies, rules and regulations of the Board of Governors and the District, a recommendation concerning the items of noncompliance shall be communicated in writing to the Superintendent/President and to the board of directors of the auxiliary organization. The board of directors shall reply in writing within one (1) month, either describing the actions, which will be taken, including timetable, to bring said procedures and practices into compliance; or describing the reasons why the board considers the procedures already to be in compliance.

If the Superintendent/President's designee considers the proposed corrective actions to be acceptable, the auxiliary organization shall be so informed. A second compliance review shall be held at the end of the time agreed to and the results communicated in writing to the Superintendent/President and to the board of directors.

When the auxiliary organization fails to provide an acceptable proposal for corrective actions or fails to implement successful corrective actions within the agreed upon time, the Superintendent/President shall inform the board of directors of such further action as he/she considers appropriate, which may include a recommendation to the Board of Trustees for termination of the contract.

Revision of Rules and Procedures and Reports to the California Community Colleges Chancellor's Office

Rules and procedures for the administration of auxiliary organizations may be revised as necessary by the Superintendent/President or designee. The b~~B~~oard of directors of each auxiliary organization in good standing shall be promptly notified in writing of such revisions and be informed of the date by which any changes in the organization's procedures must be accomplished.

Any such revisions shall be submitted to the California Community College Chancellor's Office for approval.

The District shall report, as may be required from time to time, on the operation of its auxiliary organizations.

Also see BP 3600 Auxiliary Organizations.

Approved: 11/7/05
Revised: 5/8/06

Revised: 4/14/08
Reviewed: 4/10/17
Revised: 12/9/19

AP 3710 Securing of Copyright for District Materials

References:

Education Code Sections 72207 and 81459;
17 U.S. Code Section 108;
17 United States Code Section 201

The Superintendent/President, through legal counsel, shall initiate the process for securing copyright for any materials the District is entitled to ownership and for which the District wishes to obtain copyright protection to safeguard its rights of using, selling, giving or exchanging and licensing of those materials. Through legal counsel, the Superintendent/President shall initiate action to protect the District's copyrights against infringement.

These procedures shall not infringe upon the rights established through collective bargaining as described in Article XIX of the Faculty Collective Bargaining Agreement titled "Intellectual Property Rights."

Copyright Issues in the Library (17 U.S. Code Section 108)

Interlibrary Loan

Lending

The library may make one copy of an article from a periodical or chapter of a book in order to fulfill a request for this material from another library through interlibrary loan.

- The copy must become the property of the requestor.
- The copy must have a notice of copyright.
- The copy must be for private educational purposes.

Interlibrary Loan/Reserve Photocopy Notice

Notice: This material may be protected by copyright law. (Title 17 U.S. Code)

Borrowing

Issues surrounding the borrowing of materials are complex. It is considered appropriate to follow the CONTU Guidelines on Photocopying and Interlibrary Loan Arrangements.

- The library may only receive in any calendar year five (5) copies of an article or articles from any one (1) particular journal or periodical published within the last

five (5) years prior to the date of the request. This is known as “The Rule of Five”. (17 U.S. Code Section 108 subdivision (g)(2))

- The Rule of Five does not apply to works prior to the last five (5) years.
- The requested copies must become the property of the requestor.
- The copies may be used only for “private study, scholarship or research.”
- The library shall keep records of all requests “until the end of the third (3rd) complete calendar year after the end of the calendar year in which the respective request shall have been made”. (CONTU Guidelines 4)
- The “Warning of Copyright” must be printed on the interlibrary loan request form and be prominently displayed at the place where interlibrary loan requests are taken.

"Warning of Copyright” Notice

Notice
Warning Concerning Copyright Restrictions

The copyright law of the United States (Title 17, United States Code) governs the making of photocopies or other reproductions of copyrighted material.

Under Certain Conditions specified in the law, libraries and archives are authorized to furnish a photocopy or other reproduction. One of these specified conditions is that the photocopy or reproduction is not to be “used for any purpose other than private study, scholarship, or research.” If a user makes a request for, or later uses, a photocopy or reproduction for purposes in excess of “fair use”, that user may be liable for copyright infringement.

This institution reserves the right to refuse to accept a copying order if, in its judgment, fulfillment of the order would involve violation of copyright law.

Photocopy Machines

Photocopy Machine Liability

General Exemptions. Clause (1) of subsection (f) specifically exempts a library or archives or its employees from liability for the unsupervised use of reproducing equipment located on its premises, provided that the reproducing equipment displays a notice that the making of a copy may be subject to the copyright law. Clause (2) of subsection (f) makes clear that this exemption of the library or archives does not extend to the person using such equipment or requesting such copy if the use exceeds fair use. Insofar as such person is concerned the copy or phonorecord made is not considered ``lawfully'' made for purposes of sections 109, 110 or other provisions of the title.

Photocopy Machine Notice

Notice: The copyright law of the United States (Title 17 U.S. Code) governs the making of photocopies or other reproductions of copyrighted material. The person using this equipment is liable for any infringement.

Other Library Copyright Issues (17 U.S. Code Section 108)

Replacement of Damaged Copy
Subsection (c) authorizes the reproduction of a published work duplicated in facsimile form solely for the purpose of replacement of a copy or phonorecord that is damaged, deteriorating, lost or stolen, if the library or archives has, after a reasonable effort, determined that an unused replacement cannot be obtained at a fair price. The scope and nature of a reasonable investigation to determine that an unused replacement cannot be obtained will vary according to the circumstances of a particular situation. It will always require recourse to commonly-known trade sources in the United States, and in the normal situation also to the publisher or other copyright owner (if such owner can be located at the address listed in the copyright registration), or an authorized reproducing service.

Out-of-Print Works
Subsection (e) authorizes the reproduction and distribution of a copy or phonorecord of an entire work under certain circumstances, if it has been established that a copy cannot be obtained at a fair price. The copy may be made by the library where the user makes his request or by another library pursuant to an interlibrary loan. The scope and nature of a reasonable investigation to determine that an unused copy cannot be obtained will vary according to the circumstances of a particular situation. It will always require recourse to commonly-known trade sources in the United States, and in the normal situation also to the publisher or other copyright owner (if the owner can be located at the address listed in the copyright registration), or an authorized reproducing service. It is further required that the copy become the property of the user, that the library or archives have no notice that the copy would be used for any purpose other than private study, scholarship, or research, and that the library or archives display prominently at the place where reproduction requests are accepted, and include on its order form, a warning of copyright in accordance with requirements that the Register of Copyrights shall prescribe by regulation.

Multiple Copies and Systematic Reproduction
Subsection (g) provides that the rights granted by this section extend only to the ``isolated and unrelated reproduction of a single copy or phonorecord of the same material on separate occasions.'' However, this section does not authorize the related or concerted reproduction of multiple copies or phonorecords of the same material, whether made on

one occasion or over a period of time, and whether intended for aggregate use by one individual or for separate use by the individual members of a group. With respect to material described in subsection (d)--articles or other contributions to periodicals or collections, and small parts of other copyrighted works--subsection (g)(2) provides that the exemptions of section 108 do not apply if the library or archive engages in ``systematic reproduction or distribution of single or multiple copies or phonorecords.'' This provision in S. 22 provoked a storm of controversy, centering around the extent to which the restrictions on ``systematic'' activities would prevent the continuation and development of interlibrary networks and other arrangements involving the exchange of photocopies. After thorough consideration, the Committee amended section 108(g)(2) to add the following proviso:

- Provided, that nothing in this clause prevents a library or archives from participating in interlibrary arrangements that do not have, as their purpose or effect, that the library or archives receiving such copies or phonorecords for distribution does so in such aggregate quantities as to substitute for a subscription to or purchase of such work.

Also see BP 3710 Securing of Copyright, BP/AP 3715 Intellectual Property, and AP 3750 Use of Copyrighted Material.

Approved: 11/7/05
Revised: 12/9/19

AP 3715 Intellectual Property

References:

17 U.S. Code Sections 101 et seq.;
35 U.S. Code Sections 101 et seq.; ~~and~~
37 Code of Federal Regulations Parts 1.1 et seq.

The following intellectual property procedure shall be interpreted consistent with other District policies, including, but not limited to, the District's policy on academic freedom (BP 4030) and federal and state statutes/regulations. This procedure shall also be interpreted consistent with all collective bargaining agreements, specifically Article XIX of the AVCFT Collective Bargaining Agreement: "Intellectual Property Rights."

Definitions

For the purposes of this procedure, the following definitions apply to the following words or phrases:

"Administrative Activity" means the execution of the District's management or administrative functions such as preparing budgets, policies, contracts, personnel management, printing course materials and catalogues, maintenance of computer data, long range planning, and keeping inventories of equipment. Teaching and academic endeavors are not administrative activities.

"Author" or "Creator" means an individual who alone or as part of a group of other creators, invent, author, discover, or otherwise create intellectual property.

"District Resources" means all tangible resources including buildings, equipment, facilities, computers, software, personnel, and funding.

"Course Materials" means materials prepared for use in teaching, fixed or unfixed, in any form, including, but not limited to, digital, print, audio, visual, or any combination thereof. Course materials include, but are not limited to, lectures, lecture notes, and materials, syllabi, study guides, bibliographies, visual aids, images, diagrams, multimedia presentations, web-ready content, and educational software.

"Course Syllabus" means a document that includes information about the outline, standards for student evaluation, and additional information which reflects the academic work of the faculty member.

"Digital Encoded Work" means a work (on a bit-sequence) that can be stored on computer-readable media, manipulated by computers, and transmitted through data networks.

"Employee" means an individual employed by the District, and shall include full-time and part-time faculty, classified staff, student employees, appointed personnel, persons with "no salary" appointments, and academic professionals, who develop intellectual property using District resources, unless there is an agreement providing otherwise.

"Intellectual Property" means works, products, processes, tangible research property, copyrightable subject matter, works of art, trade secrets, know how, inventions and other creations the ownership which are recognized and protected from unauthorized exploitation by law. Examples of intellectual property include scholarly, artistic, and instructional materials.

"Student" means an individual who was or is enrolled in a class or program at the District at the time the intellectual property was created.

"Student Employee" means a student who is paid by the District, and may include students participating in a work study program or who receive stipends while they are acting within the scope of their employment at the District at the time the intellectual property was created.

"Substantial Use of District Resources" means use of District resources beyond the normal professional, technology, and technical support generally provided by the District and extended to an individual or individuals for development of a product, project or program. The use of District resources must be important and instrumental to the creation of the intellectual property. The following do not constitute substantial use of the District's resources: (1) incidental use of District resources and/or (2) extensive use of District resources commonly available to District employees. A substantial use of the District's resources may be implicated in situations where the creator spends such time and energy in the creation of a work that results in a great reduction of the creator's teaching activity.

"Work" means an "original work of authorship fixed in a tangible medium" as used in the Copyright Act.

Ownership of Intellectual Property
The ownership rights to a creation at the District shall be determined generally as set forth below, unless ownership is modified by an agreement.

Employee Intellectual Property Rights
A District employee who is the creator of an academic work in his/her field of expertise owns the copyright in that work. Academic works include textbooks, lecture notes and other course materials, literary works, artistic works, musical works, architectural works and software produced with no more than nominal or incidental use of the District's

resources. Academic works described in this paragraph are owned by the employee even though such works may have been developed within the employee's scope of employment.

Intellectual property unrelated to an individual's employment responsibilities at the District, and that is developed on an individual's own time and without the District's support or use of District facilities is the exclusive property of the creator and the District has no interest in any such property and holds no claim to any profits resulting from such intellectual property.

District Intellectual Property Rights
The District owns all other intellectual property, including but not limited to patentable inventions, such as computer software, created by its employees under the following circumstances:

1) If intellectual property is created through the District's administrative activities by an employee working within his/her scope of employment; or
2) If intellectual property is created by an employee executing a duty or specific assignment designated by the District; or
3) If intellectual property is created through the substantial use of District resources; or
4) If intellectual property is commissioned by the District pursuant to a signed contract; or
5) If intellectual property is produced within one of the nine categories of works considered works for hire under copyright law pursuant to a written contract, or
6) If intellectual property is produced from research specifically supported by state or federal funds or third party sponsorship.

Where circumstances give rise to District intellectual property rights, as described above, the creator of the potential intellectual property will promptly disclose the intellectual property to the District. The District and the creator may enter into a written agreement whereby the creator executes documents assigning intellectual property rights to the District.

The Superintendent/President may waive the District's interests in its intellectual property by executing a written waiver.

Student Intellectual Property Rights
District students who created a work are owners of and have intellectual property rights in that work. District students own the intellectual property rights in the following works created while they are students at the District:

1) intellectual property created to meet course requirements using college or District resources, and

2) intellectual property created using resources available to the public. Intellectual property works created by students while acting as District employees shall be governed under provisions for employees.

Modification of Ownership Rights

The general provisions for ownership of intellectual property rights set forth in Section II may be modified by the parties as follows:

Sabbatical Works

Generally, intellectual property created by District employees during a sabbatical is defined as an academic work. However, where a work to be created as part of an approved sabbatical plan requires resources beyond those normally provided to other employees during a sabbatical (substantial use District resources), the parties may enter into an written agreement to define the District and employee's intellectual property rights in the sabbatical work.

Assignment of Rights

When the conditions outlined in the sections on employee intellectual property rights or student intellectual property are met, ownership will reside with the employee or student responsible for creating the intellectual property. In these circumstances, the creator may pursue intellectual property protection, marketing, and licensing activities without involving the District. If such a decision is made, the creator is entitled to all revenues received.

Any person may agree to assign some or all of his/her intellectual property rights to the District. In the event the creator offers to share or assign intellectual property rights in the creation to the District, the District may support and finance application for intellectual property protection (trademark, patent, or copyright) or it may enter into an agreement for other exploitation of the work, including management, development and commercialization of the property under terms and conditions as may be agreeable to the parties. After evaluating the creator's offer, the District may or may not decide to become involved in a joint investment agreement. A negative response from the District will be communicated in writing to the creator. An affirmative response from the District will be summarized as a offer to enter into a written contract. If the creator accepts the District's proposed contract, any revenues received from commercialization of the intellectual property will be distributed as defined in the contract.

Sponsorship Agreements

A sponsored work is a work first produced by or through the District in the performance of a written agreement between the District and a sponsor. Sponsored works generally include interim and final technical reports, software, and other works first created in the performance of a sponsored agreement. Sponsored works do not include journal articles, lectures, books or other

copyrighted works created through independent academic effort and based on the findings of the sponsored project, unless the sponsored agreement states otherwise. Ownership of copyrights to sponsored works shall be with the District unless the sponsored agreement states otherwise. Where a sponsorship agreement does not define ownership of the intellectual property, ownership shall be determined under applicable law. Any sponsorship agreement that provides for ownership of the work by one other than the District generally shall provide the District with a nonexclusive, world-wide license to use and reproduce the copyrighted work for education and research purposes.

Collaboration/Partnership Agreements
The District may participate in projects with persons/organizations that result in the creation of intellectual property. Ownership rights of such intellectual property will be defined by the collaboration/partnership agreement, or shall be determined under applicable law.

Special Commissions
Intellectual property rights to a work specially ordered or commissioned by the District from a faculty member, professional staff member, other District employee, or other individual or entity, and identified by the District, as a specially commissioned work at the time the work was commissioned, shall belong to the District. The District and the employee shall enter into a written agreement for creation of the specially commissioned work.

Use of Substantial District Resources
In the event the District provides substantial resources to an employee for creation of a work and the work was not created under an agreement (such as a sponsorship agreement, individual agreement, or special commission) the District and the creator shall own the intellectual property rights jointly in proportion to the respective contributions made.

Encoded Works/Software for Administrative Activities
The District may hire an individual or entity to develop software or other encoded works, to be used in the District's administrative activities. The District shall maintain ownership of the intellectual property rights in such encoded works. Similarly, the District shall have ownership of the intellectual property rights in encoded works created by an employee, even where the work was created out of the employee's own initiative, if the work in related to the employee's job responsibilities. For example, if an employee in the student records office creates a software program, on his/her own initiative, that will organize student records, such work is related to the employee's job duties and will belong to the District. Where an employee creates a program that does not relate to his/her job duties,

and that program was created on the employee's own time, the work belongs to the employee.

Collective Bargaining Agreement
In the event the provisions of these procedures and the provisions of any operative collective bargaining agreement conflict, the collective bargaining agreement shall take precedence.

Jointly Created Works
Ownership of jointly created works shall be determined by separately assessing which of the above categories applies to each creator, respectively. Rights between joint owners of a copyright shall be determined pursuant to copyright law.

Work Acquired by Assignment or Will
The District may acquire copyrights by assignment or will pursuant to the terms of a written agreement or testament. The terms of such agreements should be consistent with District policies and these procedures.

Materials Implicating Third Party Rights
District employees and students must comply with District policies and state and federal laws, including copyright and privacy laws, in creating works. District employees and students must obtain all required licenses, consents, and releases necessary to avoid infringing the rights of third parties. District employees and students with questions or concerns regarding third party rights should direct all inquiries to Superintendent/President.

Intellectual Property Coordinator
The Assistant Superintendent/Vice President, Academic Affairs shall be the District's Intellectual Property Coordinator. The coordinator shall administer this procedure and will implement the District's Intellectual Property Policy. The Intellectual Property Coordinator will also monitor the development and use of the District's intellectual property. Any questions relating to the applicability of the District Intellectual Property or this procedure may be directed and answered by the Intellectual Property Coordinator.

Preservation of Intellectual Property Right

Protection of Rights
The District shall undertake such efforts, as it deems necessary to preserve its rights in original works for which the District is the sole or joint owner of intellectual property rights. The District may apply for a patent, for trademark registration, for copyright

registration, or for other protection available by law on any new work in which it maintains intellectual property rights.

Payment of Costs
The District may pay some or all costs required for obtaining a patent, trademark, copyright, or other classification on original works for which it exclusively owns intellectual property rights. If the District has intellectual property rights in a jointly owned work, the District may enter into an agreement with the joint owners concerning payment of such costs.

Commercialization of Intellectual Property

Right of Commercialization
The District may commercialize its Intellectual Property using its resources or it may enter into agreements with others to commercialize the work as authorized by law.

Distribution of Proceeds
An employee who creates a work and retains an intellectual property interest in such work in which the District maintains intellectual property rights is entitled to share in royalties, licenses, and any other payments from commercialization of the work in accordance with applicable agreements and applicable laws. All expenses incurred by the District in protecting and promoting the work including costs incurred in seeking patent or copyright protection and reasonable costs of marketing the work, shall be deducted and reimbursed to the District before the creator is entitled to share in the proceeds.

Intellectual Property Account
The District shall deposit all net proceeds from commercialization of intellectual property in its own general intellectual property account. The Superintendent/President or designee may use the account to reimburse expenses related to creating or preserving the District's intellectual property rights or for any other purpose authorized by law and District policy including the development of intellectual property.

Notification
The Intellectual Property Coordinator shall provide a copy of these Intellectual Property Procedures to persons upon request. The District shall arrange training on a periodic basis for faculty, staff and/or other persons who are covered by this Intellectual Property Procedure.

The same procedures apply to certificated administrators, managers and students as apply to faculty. Intellectual property rights of faculty are defined and determined in accord with ARTICLE XIX, "Intellectual Property Rights," in the Faculty Collective Bargaining Agreement.

Also see BP 3715 Intellectual Property, BP/AP 3710 Securing of Copyright, and AP 3750 Use of Copyrighted Material.

Approved: 11/7/05
Revised: 2/11/19
Revised: 4/13/20

AP 3720 Computer, Network and Telecommunications Use

References:

17 U.S.C. Section 101 et seq.; Penal Code Section 502; Cal. Const., Art. 1 Section 1; Government Code Section 3543.1(b);Federal Rules of Civil Procedure, Rules 16, 26, 33, 34, 37, 45

The District Computer, Network and Telecommunications systems, and the data that resides upon them, are the sole property of Antelope Valley Community College District; except where explicitly addressed by collective bargaining agreements. The Computer, Network and Telecommunications systems are for District instructional and work related work-related purposes only.

This procedure applies to all District students, faculty, and staff, and to others granted use of District information resources. A user is defined as any individual or group who uses college technology or computing facilities resources.
This procedure refers to all District information resources whether individually controlled or shared, stand-alone or networked. It applies to all computer and telecommunication facilities owned, leased, operated, or contracted by the District. This includes, but is not limited to, personal computers, personal mobile devices, computing or telecommunications devices, workstations, mainframes, minicomputers, and associated peripherals, software, networks, telephone and telecommunications equipment, including cellular telephones, and information resources, regardless of whether used foradministration, research, teaching or other purposes.

AVC Information Technology Resource Guidelines
The District shall produce and maintain guidelines that clarify procedures or processes relating to the use of District information technologies. These guidelines shall be reviewed regularly for relevance and made available to the public.

Conditions of Use
Individual units within the District may define additional conditions of use for information resources under their control. These statements must be consistent with this overall procedure but may provide additional detail, guidelines and/or restrictions.

Account Provisioning and Deprovisioning
All employees and students are assigned an email account upon joining the college. Email is the official channel for all communications from the college. All employees and students are encouraged to check it regularly to stay current on all issues related to instruction and services. Upon departure from the college, all students, retirees, and emeriti may retain their email account. Employee access that does not meet the above criteria may be deprovisioned upon separation. Access to services within myAVC will be deprovisioned two-years after departure. Accounts for persons no longer actively affiliated with the District will be disabled after one year of inactivity. If you need access to records that are within myAVC, please contact the appropriate office directly.

Legal Process
This procedure exists within the framework of the District Board Policy and state and federal laws. A user of District information resources who is found to have violated any of these policies will be subject to disciplinary action up to and including but not limited to loss of information resources privileges; disciplinary suspension or termination from employment or expulsion; and/or civil or criminal legal action.

Copyrights and Licenses
Users must respect copyrights and licenses to software and other on-line information.

Copying
Software protected by copyright may not be copied except as expressly permitted by the owner of the copyright or otherwise permitted by copyright law. Protected software may not be copied into, from, or by any District facility or system, except pursuant to a valid license or as otherwise permitted by copyright law.

Number of Simultaneous Users
The number and distribution of copies must be handled in such a way that the number of simultaneous users does not exceed the number of original copies purchased by the District, unless otherwise stipulated in the purchase contract.

Copyrights
In addition to software, all other copyrighted information (text, images, icons, programs, audio, video, etc.) retrieved from computer or network resources must be used in conformance with applicable copyright and other law. Copied material must be properly attributed. Plagiarism of computer information is prohibited in the same way that plagiarism of any other protected work is prohibited

Integrity of Information Resources
Users must respect the integrity of computer-based information resources.

Modification or Removal of Equipment
Computer and telecommunications users must not attempt to modify or remove computer, network or telecommunications equipment, software, or peripherals that are allocated to other District users without proper authorization.

Unauthorized Use
Users must not interfere with others' access and use of the District computers. This includes but is not limited to: the sending of chain letters or excessive messages, either locally or off-campus; printing excess copies of documents, files, data, or programs, running inefficient programs that adversely impact performance of the network; unauthorized modification of system facilities, operating systems, or disk partitions; and damaging or vandalizing District computing facilities, equipment, software or computer files.

Unauthorized Programs
Users must not intentionally develop or use programs which disrupt other users or which access private or restricted portions of the system, or which damage the software or hardware components of the system. Users must ensure that they do not use programs or utilities that interfere with other users or that modify normally protected or restricted portions of the system or user accounts. The use of any unauthorized or destructive program will result in disciplinary action as provided in this procedure and may further lead to civil or criminal legal proceedings.

Unauthorized Access
Users must not seek to gain unauthorized access to information resources and must not assist any other persons to gain unauthorized access.

Abuse of Computing Privileges
Users of District information resources must not access computers, computer software, computer data or information, or networks without proper authorization, or intentionally enable others to do so, regardless of whether the computer, software, data, information, or network in question is owned by the District. For example, abuse of the networks to which the District belongs or the computers at other sites connected to those networks will be treated as an abuse of District computing privileges.

Reporting Problems

Any defects discovered in system accounting or system security must be reported promptly to the appropriate administrator so that steps can be taken to investigate and solve the problem.

Password Protection

A user who has been authorized for password-protected accounts may be subject to both civil and criminal liability if the user discloses their password or otherwise makes the account available to others.

Usage

Users must respect the rights of others. Attempts to circumvent these mechanisms in order to gain unauthorized access.

Unlawful Messages

Users may not use electronic communication facilities to send defamatory, fraudulent, harassing, obscene, threatening, malicious, or other messages that violate applicable federal, state or other law or District policy, or which constitute the unauthorized release of confidential information.

Electronic communication facilities may not be used to transmit commercial or personal advertisements, solicitations or promotions. District information resources may not be used for commercial purposes. Users are also reminded that the ".cc" and ".edu" domains on the Internet have rules restricting or prohibiting commercial use.

Rights of Individuals

Users must not release any individual's (student, faculty, and staff) personal information to anyone without proper authorization.

User identification

Users shall not send communications or messages anonymously or without accurately identifying the originating account or station.

Personal and Commercial Use

The District is a non-profit, tax-exempt organization and, as such, is subject to specific federal, state and local laws regarding sources of income, political activities, use of property and similar matters. Use of District resources for personal gain is expressly prohibited.

Political Use

District information resources must not be used for political activities where prohibited by federal, state or other applicable laws.

Personal Use

District information resources should not be used for personal activities not related to appropriate District functions, except in a purely incidental manner.

Nondiscrimination

All users have the right to be free from any conduct connected with the use of Antelope Valley Community College District network, telecommunications and computer resources which discriminates against any person in violation of Board Policy 3410. No user shall use the District network, telecommunications or computer resources to transmit any message, create any communication of any kind, or store information which violates any District procedure regarding discrimination or harassment, or which is defamatory or obscene, or which constitutes the unauthorized release of confidential information.

Disclosure

No Expectation of Privacy

The District reserves the right to monitor all use of the District network and computer resources to assure compliance with these policies. Users should be aware that they have no expectation of privacy in the use of the District network and computer resources. The District will exercise this right only for legitimate District purposes, including but not limited to ensuring compliance with this procedure and the integrity and security of the system.

Possibility of Disclosure

Users must be aware of the possibility of unintended disclosure of communications.

Retrieval

It is often possible for information entered on or transmitted via computer and communications systems to be retrieved, even if a user has deleted such information.

Public Records

The California Public Records Act (Government Code Sections 6250 *et seq.*) includes computer transmissions in the definition of "public record" and nonexempt communications made on the District network and computer must be disclosed if requested by a member of the public, in accordance with BP 3300 & AP3300.

Litigation

Computer transmissions and electronically stored information may be discoverable in litigation.

Dissemination and User Acknowledgment

All users shall be provided access to these procedures and be directed to familiarize themselves with them. Periodically users will be reminded of these procedures.

Users shall acknowledge that they have reviewed BP 3720 and the associated procedures and guidelines in the manner and frequency as specified in the IT Resource Guidelines. This acknowledgement is a condition of use of any District information technology resource.

11/7/05
Revised: 1/8/07
Revised: 9/10/07
Revised: 4/8/19

AP 3721 Virtual Private Network (VPN) / Remote Access Procedure

Reference:

An expansion of mobile employees, and the need for after hours and remote access by employees and partners necessitates procedures for such. Secure/encrypted access to college resources is essential for off campus, after hours, or vendor sponsored access. Permission to use the college's Virtual Private Network (VPN) is subject to the approval of the Executive Director, Technology, and is allowed only under the following circumstances:

Vendor Support of Network Services

Vendor support for select computing or network resources to facilitate. Urgent access, or to help reduce consultant travel expenses, or in accommodation for services rendered from a distance. Requests are to be submitted for review to help@avc.edu. Vendor VPN access will have a CMS or Administrative sponsor, will have a ninety (90) day expiration, and can be renewed by email request by the sponsor by email or support ticket.

Employee Remote Access

To ensure secure access of resources from outside the college network, employees will be granted VPN access for portable devices. Use of the VPN is expressly for access of college resources during in execution of the employee's duties. After hours use of VPN services for employees is still subject to Policy, Practices, and CBA conditions for overtime, and is subject to advanced approval of supervisors. Such accounts will have a one hundred eighty (180) day expiration date, and can be renewed by request of their supervisor by email or help desk ticket.

Access Requirements

Remote access to the district resources, in accordance with application maintenance agreements or a well-defined business need, must meet certain criteria. To defend the district network from malware and other potential threats, vendors, contractors, and employees will use industry accepted best practices to ensure systems are safe and secure. Workstations must be current with operating system and application security patches and have anti-virus software, before a connection with the AVC network will be established. Devices attempting to connect to the college network by VPN may be subject to assessment by a security tool(s) to ensure current antivirus and system updates are in place. If systems connecting lacks sufficient security updates, access will be disabled until remediated. The security tools(s) will only verify currency in antivirus and system software.

Remediation

If remote connection to the AVC network is denied because of insufficient security software, devices will need to be brought current (e.g., anti-virus or operating system patches) and attempt a reconnection to the district remote access device. Contact the help desk and account will be reactivated for purposes of examination. The software on the remote access device (VPN client) will ensure that the workstation the contractor, vendor or employee is connecting from has met AVC network security requirements. If all workstation prerequisites have been met, the software will establish the connection.

4/13/09

Revised: 4/8/19

AP 3725 Information and Communications Technology Accessibility & Acceptable Use

References:

Government Code Sections 7405, 11135, and 11546.7; Section 504, Rehabilitation Act of 1973 (29 U.S. Code Section 701);
Section 508, Rehabilitation Act of 1973 (Federal Electronic and Information Technology) (29 U.S. Code Section 794d);
36 Code of Federal Regulations Parts 1194.1 et seq.;
Web Content Accessibility Guidelines (WCAG) 2.1 AA

Definitions

The following definitions apply to this procedure:

Accessible: An individual with a disability is afforded the opportunity to acquire the same information, engage in the same interactions, and enjoy the same services as a person without a disability in an equally effective and equally integrated manner, with substantially equivalent ease of use.

Equally Effective: Alternative access for individuals with disabilities to instructional materials and information and communication technology that (1) is timely, (2) is accurate in translation, (3) is delivered in a manner and medium appropriate to the disability of the individual, and (4) affords the individual with a disability the opportunity to obtain the information as fully, equally and independently as a person without a disability with substantially equivalent ease of use. Note, such alternative(s) are not required to produce the identical result or level of achievement, but must afford individuals with disabilities equal opportunity to obtain the same result, to gain the same benefit, or to reach the same level of achievement in the most integrated setting appropriate to the person's needs.

Individual with a Disability: An individual who has one or more physical or mental impairments that substantially limit one or more major life activities.

Information and Communication Technology (ICT): Encompasses electronic and information technology covered by Section 508 of the Rehabilitation Act of 1973, as well

as telecommunications products, interconnected Voice over Internet Protocol (VoIP) products, and Customer Premises Equipment (CPE) covered by Section 255. Examples of ICT include computers, information kiosks and transaction machines, telecommunications equipment, multifunction office machines, software, Web sites, and electronic documents.

Digital Materials: Includes electronic instructional materials, such as, syllabi, textbooks, presentations and handouts delivered within CCC's learning management system, via email or via another electronic means for face-to-face classes as well as e- learning courses. It also includes electronic instructional activities such as instructional videos, online collaborative writing, Web conferencing, blogging, and any other instructional materials as technology evolves.

Timely: As it relates to equally effective alternative access to instructional materials and ICT, timely means that the individual with a disability receives access to the instructional materials or ICT at the same time as an individual without a disability.

ICT and Digital Material Accessibility Standard Statement

The District is committed to ensuring equal access to all materials and ICT for all, and particularly for individuals with disabilities in a timely manner. In accordance with Government Code Sections 7405, 11135, and 11546.7, and best practices, the District and all employees will comply with the accessibility requirements of Section 508 of the Federal Rehabilitation Act of 1973, and in compliance with WCAG 2.1 AA standards by:

- Developing, procuring and/or acquiring, to the extent feasible, instructional materials and ICT products that are accessible to individuals with disabilities;
- Procuring, using, and maintaining instructional materials and ICT that is consistent with this Standard;
- Requiring development and/or production of accessible materials in support of work product(s) for all instructional, professional development, and distributed materials; and
- Promoting awareness of this Standard to all relevant parties, particularly those in roles that are responsible for creating, selecting, procuring, or maintaining electronic content and applications.

Ensuring equal access of effective Instructional Materials and ICT, for our students and our community, is the responsibility of all District administrators, faculty, and staff. Under the federal statute, penalties could result in fines up to $150,000 per violation[1]. Failure to comply may result in progressive disciplinary action, up to and including termination.

Adopted: 10/12/20

Revised: 3/8/21

[1] https://www.ada.gov/civil_penalties_2014.htm

AP 3750 Use of Copyrighted Material for Educational Purposes

References:

U. S. Code Title 17, Copyright Act of 1976; Education Code Sections 32360, 67302

Employees and students shall not reproduce copyrighted materials without prior permission of the copyright owner, except as allowed by the "fair use" doctrine.

Fair Use

Reference:

Copyright Act, Section 107.

The "fair use" doctrine permits limited use of copyrighted materials in certain situations, including teaching and scholarship. In some instances, copyright may be required for works that fall within "fair use."

Note: The following is excerpted from the legislative history of the 1976 Copyright Act, which established congressionally endorsed guidelines related to classroom copying for educational use.

I. Single Copying for Teachers

A single copy may be made of any of the following by or for a teacher at his or her individual request for his or her scholarly research or use in teaching or preparation to teach a class:

A. A chapter from a book

B. An article from a periodical or newspaper

C. A short story, short essay or short poem, whether or not from a collective work

D. A chart, graph, diagram, drawing, cartoon or picture from a book, periodical, or newspaper

II. Multiple Copies for Classroom Use

Multiple copies (not to exceed in any event more than one copy per pupil in a course) may be made by or for the teacher giving the course for classroom use or discussion, provided that:

A. The copying meets the tests of brevity and spontaneity as defined below; and

B. Meets the cumulative effect test as defined below; and

C. Each copy includes a notice of copyright

Definitions:

Brevity:

i. Poetry: (a) A complete poem if less than 250 words and if printed on not more than two pages or (b) from a longer poem, an excerpt of not more than 250 words.

ii. Prose: (a) Either a complete article, story or essay of less than 2,500 words, or (b) an excerpt from any prose work of not more than 1,000 words or 10% of the work, whichever is less, but in any event a minimum of 500 words. (Each of the numerical limits stated in "i" and "ii" above may be expanded to permit the completion of an unfinished line of a poem or of an unfinished prose paragraph.)

iii. Illustration: One chart, graph, diagram, drawing, cartoon or picture per book or per periodical issue.

iv. "Special" works: Certain works in poetry, prose, or in "poetic prose" which often combine language with illustrations and which are intended sometimes for children and at other times for a more general audience fall short of 2,500 words in their entirety. Paragraph "i" above notwithstanding such "special works" may not be reproduced in their entirety; however, an excerpt comprising not more than two of the published pages of such special work and containing not more than 10% of the words found in the text thereof may be reproduced.

Spontaneity:

i. The copying is at the instance and inspiration of the individual teacher; and

ii. The inspiration and decision to use the work and the moment of its use for maximum teaching effectiveness are so close in time that it would be unreasonable to expect a timely reply to a request for permission.

Cumulative Effect:

i. The copying of the material is for only one course in the school in which the copies are made.

ii. Not more than one short poem, article, story, essay or two excerpts may be copied from the same author, nor more than three from the same collective work or periodical volume during one class term.

iii. There shall not be more than nine instances of such multiple copying for one course during one class term. (The limitations stated in "ii" and "iii" above shall not apply to current news periodicals and newspapers and current news sections of other periodicals.)

III. Prohibitions

Notwithstanding any of the above, the following shall be prohibited:

A. Copying shall not be used to create or to replace or substitute for anthologies, compilations, or collective works. Such replacement or substitution may occur whether copies of various works or excerpts there-from are accumulated or are reproduced and used separately.

B. There shall be no copying of or from works intended to be "consumable" in the course of study or teaching. These include workbooks, exercises, standardized tests and test booklets and answer sheets and like consumable material.

C. Copying shall not:

i. substitute for the purchase of books, publisher's reprints or periodicals

ii. be directed by higher authority

iii. be repeated with respect to the same item by the same teacher from term to term.

D. No charge shall be made to the student beyond the actual cost of the photocopying.

MATERIALS PLACED ON RESERVE

General Guidelines

Policies for placing materials on reserve in the library are based on “fair use” guidelines (17 USC 107). The amount of materials placed on reserve should be reasonable and not have adverse impact on the

market for such materials. Reserve materials should make up only a small portion of the instructional materials used in the class.

What can be put on reserve?

- An article from a journal (3-6 copies of the article if class size warrants)
- A chapter from a book (3-6 copies of the chapter if class size warrants)
- A short story, essay or poem (3-6 copies of the material if class size warrants)
- A chart, graph, diagram, drawing, cartoon or picture from a book, periodical or newspaper (3-6 copies of the material if class size warrants)
- Materials from the library collections including government publications
- Student papers
- Exams
- Lecture notes

What cannot be put on reserve?

- Interlibrary loan books
- Course packs
- Consumables (workbooks, exercises, standardized tests, test booklets, answer sheets, etc.)

How long can materials remain on reserve?

- Materials may only be placed on reserve for one semester.
- At the end of the semester, library materials will be re-shelved.
- Items owned by instructors will be returned to those instructors.

When is copyright permission needed?

- If the same material will be used by the same instructor for the same class for more than one semester
- If more than one article from a particular journal is needed for one particular course
- If more than one chapter of a book is needed for one particular course
- If an out of print book is to be used

Copyright Notice

- A notice of copyright must appear on all reserve materials.

Faculty Responsibility

- Materials on reserve are to be used for solely educational purposes.
- The faculty member placing the item on reserve must have legal possession of said item.
- The responsibility for legally possessing an item lies with the faculty member.

- A signed reserve request form is required wherein the faculty member acknowledges responsibility for compliance with copyright laws.
- If the faculty member wishes to place materials on reserve in excess of one semester, permission must be obtained from the copyright holder.

Compilations

Reference:

> Basic Books, Inc. v. Kinko's Graphics Corp. (S.D.N.Y. 1991) 758 F.Supp. 1522; and Princeton University Press v. Michigan Document Services, Inc. (6th Cir. 1996) F.3d 1381.

Permission from the copyright owner should be obtained when using excerpts of copyrighted work to create anthologies or "coursepacks," even if the excerpts fall under the definitions in the "fair use" doctrine.

HOW TO OBTAIN COPYRIGHT PERMISSION

Permission to use copyright-protected materials, when required, should be obtained prior to using those materials. It is best to obtain permission in writing (including e-mail) and to ensure that the Copyright Officer has a copy of each permission form or letter.

The time to obtain permission may vary and, where possible, it is recommended to start the permissions procedure at least six months prior to the time that you wish to use the materials. If you need a quicker permission, let the copyright owner know this and he/she may be able to get back to you more quickly. Often, Copyright Clearance Center is your quickest one-stop resource for obtaining copyright permission.

Fact Finding Questions

Once you have identified the materials you want to use and determined that copyright permission is required, you must locate the copyright holder. If the copyright holder is not listed on the work, locating the appropriate person or entity to grant permission may take some investigative and creative work.

The Copyright Office of the Library of Congress (www.loc.gov) may be of assistance in locating a copyright owner if the work is registered. Note, however, that copyright is automatically granted to all works upon their being written down and that registration with the Copyright Office is not required.

There are two primary options for obtaining permission to use the work. You may contact the copyright holder directly or you may contact Copyright Clearance Center. Check with your department manager to determine if your institution already has an established process for obtaining copyright permission through Copyright Clearance Center. If your department or campus does not have a centralized location or process for obtaining copyright permission, you may create an account with Copyright Clearance Center at www.copyright.com.

Information in your Permission Request
The copyright holder or its agent will require the following information in order to provide you with permission:

- Title of the material
- Creator/author of the material
- Publisher of the material
- Description of material
- ISBN or ISSN, if applicable

- Date of publication, if applicable
- Purpose for which you wish to reproduce the item (research, commercial, educational, etc.)
- How the material is to be reproduced (e.g., photocopied, digitized)
- Where the reproduced material will be used or will appear and for how long

Online Courses *(Note: This area will be drafted after the Distance Education Task Force makes its recommendations.)*

Reference:

The TEACH (Technology, Education and Copyright Harmonization) Act, USC 17, Copyright Act, Sections 110(2) and 112

The Teach Act provides instructors greater flexibility to use third party copyrighted works in online courses. An individual assessment will be required to determine whether a given use is protected under the Act. The following criteria are generally required:

The online instruction is mediated by an instructor.

The transmission of the material is limited to receipt by students enrolled in the course.

Technical safeguards are used to prevent retention of the transmission for longer than the class session.

The performance is either of a non-dramatic work or a "reasonable and limited portion" of any other work that is comparable to that displayed in a live classroom session.

The work is not a textbook, course pack, or other material typically purchased or acquired by students for their independent use and retention, including commercial works that are sold or licensed for the purposes of digital distance education.

The district does not know, or have reason to know, that the copy of the work was not lawfully made or acquired.

The district notifies students that the works may be subject to copyright protection and that they may not violate the legal rights of the copyright holder.

11/7/05

AP 3810 Claims for Damages

References:

Education Code Section 72502; Government Code Sections 900 et seq., 910 et seq and 935

Claims for money or damages as prescribed under Board Policy 3810 shall be submitted to the Office of the General Counsel.

All claims shall be made in writing and submitted on the District's approved claim form. Claims not submitted on the District's form will be returned to the claimant and may be resubmitted using the proper form. The claim shall be signed by the claimant or by his or her guardian, conservator, executor or administrator. No claim may be presented on behalf of a class of persons unless verified by every member of that class as required by this section. In addition, all claims shall contain the information required by California Government Code Section 910.

Claim forms can be obtained by contacting the Office of the General Counsel at (661) 722-6650 or email at legal@avc.edu.

Claim forms may be presented in person or deposited in the United States mail, in a sealed envelope, properly addressed, postage prepaid as follows:

Antelope Valley Community College District
Office of General Counsel
3041 West Avenue K
Lancaster, CA 93536

TIME LIMITATIONS

Claims for money or damages relating to a cause of action for death, injury to person, or personal property, must be presented to the District not later than six months after the accrual of the cause of action.

Claims for money or damages relating to a cause of action other than that stated above, must be presented to the District not later than one year from the accrual of the cause of action.

LATE CLAIMS

Claims which are filed outside the specified time limitation, must be accompanied by an application to file a late Claim. If a Claim is filed outside the time limitations noted above and is not accompanied by the application to present a late Claim, the General Counsel, shall, within 45 days, give written notice that the Claim was not filed timely and that it is being returned without further action.

The application to present a late Claim shall state the reason for the delay in presenting the Claim and shall be timely filed pursuant to the law. The Board of Trustees, while in Closed Session, shall grant or deny the application within 45 days after it is presented. By mutual agreement of the

claimant and the Board of Trustees, such 45-day period may be extended by written agreement made before the expiration of such period. If the Board of Trustees does not take action on the application within 45 days, it shall be deemed to have been denied on the 45th day unless such time period has been extended, in which case it shall be denied on the last day of the period specified in the extension agreement. If the application to present a late Claim is denied, the claimant shall be given notice in the form set forth in law.

RESPONSE TO CLAIM

Within forty-five days after the claim has been presented to the Office of the General Counsel, the Board of Trustees may take action to allow the claim in whole or in part, or the Board may take action to reject the claim. If the Board takes no action, the claim is rejected by operation of law on the 45th day after it was presented to the Office of the General Counsel.

The General Counsel shall serve notice to the claimant of the Board's action allowing or rejecting the claim. The claimant shall be notified that the claim is rejected, allowed in whole or in part, or rejected by operation of law. Said notice shall also inform the claimant of the six month time limit pertaining to filing court action pursuant to Government Code Section 913.

If the District decides to allow the claim or offer compromise in an attempt to settle the dispute, the District shall require the claimant to sign a release or waiver agreeing to payment as full and complete settlement of the claim.

In accordance with California Government Code Sections 935(b) and 945.6, all claims shall be presented as provided in this section and acted upon by the district prior to the filing of any suit on such claim, and no such suit may be maintained by a person who has not complied with the requirements of this administrative procedure.

Adopted: 11/7/05
Revised: 3/13/17
Revised: 3/14/22

AP 3820 Gifts

Reference:

Education Code Section 72122

Anyone who wishes to give a gift, develop a fundraising program, or solicit a gift on behalf of the college must first consult with the Antelope Valley College Foundation, to determine the appropriate procedures and necessary forms. Exceptions for gifting directly to the District must be approved by the Superintendent/President.

Also see BP 3820 Gifts.

Approved: 11/7/05
Revised: 3/13/17
Revised: 6/8/20

AP 3900 Speech: Time, Place, and Manner

References:

Education Code Sections 66301 and 76120

The students and employees of the District and members of the public shall be permitted to exercise their rights of free expression subject to the time, place and manner policies and procedures contained in BP 3900 Speech: Time, Place, and Manner and these procedures.

The college of the District designates the following areas, as reserved for expressive activities which do not violate District policy and which are lawful. The locations include: At the Palmdale Center, areas 135A and 135c. At the Lancaster Campus: Library Plaza, Gym Circle, Bookstore Hallway, Applied Arts Courtyard, Uhazy Hall Courtyard: These areas are chosen so as to provide visibility and allow communication to a large number of students, administrators, faculty, and others walking or traveling on campus but also so as not to disrupt educational and other activities of the District on behalf of students:

- The areas are designated public forums. The District reserves the right to revoke that designation as to one or more areas and apply a non-public forum designation or other designation.

- The District reserves the right to designate areas as non-public forums as necessary to prevent the substantial disruption of the orderly operation of the college. Areas of the college that are non-public forums specifically include campus offices, classrooms, warehouses, maintenance yards, or locker rooms, and any other area not by tradition or designation a forum for public communication. The use of these areas reserved and open for expressive activities is subject to the following:

    - No person using the areas shall touch, strike or physically impede the progress of passersby, except for incidental or accidental contact, or contact initiated by a passerby.

    - Persons using areas shall not use any means of amplification that creates a noise or diversion that disturbs or tends to disturb the orderly conduct of the campus or classes taking place at that time.

    - Persons using the areas reserved for expressive activities shall not disrupt the orderly operation of the college.

Non-student, community groups wishing to engage in speech or expressive activities on campus, in the areas designated as public forums, must provide notification to the District through the Office of Campus Events three (3) business days in advance of the activities and must describe the nature of the planned activities. No illegal activities will be permitted,

no activities which violate District or campus rules, including rules and laws on illegal harassment and discrimination, and none that will substantially interfere with or disrupt activities already scheduled for that day and time in the designated areas, as described below. In the event the area sought to be used for expressive activities has already been reserved for another activity so that there will be substantial interference or disruption based on noise, overcrowding, or other considerations unrelated to content, the District will offer alternative available areas or if none are available offer alternative dates. Students, outside organizations, and others are encouraged to make reservations in advance.

All persons using the areas that are designated public forums shall be allowed to distribute petitions, circulars, leaflets, newspapers, and other printed matter. Such distribution shall take place only within those areas. Those persons distributing printed material must, prior to their departure from the areas that day, make reasonable efforts to retrieve, remove or properly discard material that is discarded or dropped in or around the areas other than in an appropriate receptacle.

Hours of Access
The hours of operation of the District are7:30 a.m. to 6:00 p.m. Expressive activities are not permitted outside the District's hours of operation. Overnight use or sleeping on campus is not permitted, nor is use of the campus areas for sleeping, camping, or laying down of bedding. Nor is use of facilities for similar purposes permitted during hours of operation.

Posting
Bulletin boards shall be provided for use in posting materials at campus locations convenient for use by students, staff, and members of the public. All materials displayed on a bulletin board shall clearly indicate the author or agency responsible for its production and shall be dated with the date of posting by the Student Life and College Activities Office. Materials displayed shall be removed after the passage of thirty (30) days.

Also see BP 3900 Speech: Time, Place, and Manner; BP 4030 Academic Freedom; and BP/AP 6700 Civic Center and Other Facilities Use.

Approved: 2/6/06
Revised: 9/10/07
Revised: 5/14/12
Revised: 4/11/16
Reviewed: 3/13/17
Revised: 8/13/18
Revised: 4/13/20

AP 3722 Acceptable Use Agreement

Reference:

Antelope Valley College (AVC) provides access to its technology resources in support of the college's academic mission and community. These resources (the equipment and content) are the property of AVC, and should be used responsibly. These resources include: the physical and wireless communications network; all college equipment attached to that network, portable hardware, system software, telephone systems, and means of access.

All employees, students, or visitor, are subject to the provisions of this policy, and services shall abide by this policy, and all applicable local, state, and federal statutes. Use of any technology resources of Antelope Valley College explicitly affirms acceptance of the following conditions of use:

- The district's technology resources are provided for the support of its educational and service goals. The use of such resources for any other purposes is prohibited.
- Users may not use district resources for conducting a private business or for personal gain, or partisan political activities.
- Incidental personal use is permitted as long as: (a) it does not violate state or federal law or AVC policy, (b) consumes only a trivial amount of resources or time, (c) and, it does not interfere with productivity of the college, it's employees, students, or visitors.
- To ensure, and safeguard, the integrity of computing resources, account names and passwords must not be shared. Passwords will be subject to complexity requirements and users will be required to change their passwords periodically. These specifications will be reviewed and published annually by the Information Technology Committee.
- The unauthorized duplication, installation, or distribution of copyrighted software or content is expressly prohibited. Unauthorized software, installed on district technology, may be removed if deemed in volition of copyright or district policy.
- Users may not bypass, utilize any device or software, which circumvents authenticated protections to gain access to district systems or services.
- Intentionally sending or accessing pornography or patently obscene material other than for authorized research or instructional purposes is prohibited. The definition of "pornography" and "obscene" shall be as determined by law.
- Users should be mindful of the inherently open nature of information transferred electronically, and should not assume absolute privacy of authenticated access to such information. The district provides the highest degree of security possible when transferring and hosting data, but disclaims responsibility if these security measures are circumvented.
- The district is not responsible for loss of data, time delay, system performance, software performance, or any other damages arising from the use of district computing resources.
- Authorized district personnel may, while performing routine or investigative operations have access to data, including electronic mail, web browser information, and any other personal data stored on district computers.
- Except where explicitly addressed by labor agreements, all content stored on district technology is deemed to be the property of the district, including that generated by incidental use.

- Student workstations are subject to routine monitoring. Computer screens attached to student workstations, particularly those accessing the Internet, may be periodically viewed by district personnel to monitor compliance with district policy. The district shall not routinely or arbitrarily monitor incidental personal use of district resources by employees. Neither the district nor any employee shall disclose the contents of any observed personal data to any other person or entity except as required by law or Board Policy.
- The confidentiality of student and employee information is protected under federal and state law and/or regulations. Access to, or alteration of, such information is expressly limited to execution of day-to-day assigned duties.
- Employees and students should ensure that their workstation is logged off, locked, or shutdown, before stepping away from the computer.

Users found in violation of the district's technology use policies, are subject to disciplinary action, as described in the enforcement section below.
Selected Examples of Unacceptable Use:

- Revealing/Sharing user-id or passwords with others, or using someone else's account, or allowing use of your account by others.
- Attempting to defeat data protection schemes or altering network configurations to uncover security vulnerabilities.
- Attempting to authorize, delete, or alter files or systems without proper authorization as described in the Computer Use and Electronic Mail Guidelines.
- Not complying with requests from AVC personnel to discontinue activities that degrade or interrupt the integrity or stability of resources. Connecting unauthorized personal equipment to the campus physical network without authorization from ITS.
- Unauthorized network scanning or attempts to intercept network traffic.
- Malicious disruptions, e.g., introducing a computer virus or malware to the campus network, or harassing or threatening others.

To ensure the integrity and reliability of all resources, users are encouraged to report improper use and violations of this agreement to an AVC faculty member, supervisor or administrator as appropriate.
Enforcement[1]

- Disciplinary action will be taken in accordance with AVC applicable policies, collective bargaining agreements, state or federal statutes.
- Minor infractions of these guidelines, or those that appear accidental in nature, are typically handled internally by the appropriate supervisor or administrator, in consultation with the Executive Director, Technology. In some situations, it may be necessary to suspend account or computer access to prevent ongoing misuse.
- More serious infractions or repeated minor violations may result in the temporary or permanent loss of access.
- Offenses that are clearly in violation of local, state or federal laws will be reported to the Los Angeles County Sherriff's Department and result in the immediate loss of access to computing resources and maybe subject to disciplinary suspension or termination from employment or expulsion; and/or civil or criminal legal action.

[1] This section is taken directly from the AP 3720: Computer, Network, and Telecommunications Use.

10/11/10
Revised: 4/8/19

AP 4010 Academic Calendar

References:

Education Code Section 79020;
Title 5 Sections 55700 et seq. and Section 58142

The Calendar Committee will have co-chairs consisting of the Vice President of Student Services and either the AVCFT or AVCFCE representative in alternate years. See BP & AP 2510 Participation in Local Decision Making. All issues related to the calendar, including but not limited to:

- Starting and ending dates of the semester;
- Summer session and Intersession;
- Starting and ending class dates;
- Holidays;
- Flex Days;
- Orientation;
- Parts of Term;
- Days counted as instructional days shall be referred to the Calendar Committee, a campus-wide standing committee. Information about major changes shall be widely disseminated to the entire campus before this will occur.

The number of days that define a calendar is 175 days of instruction, excluding the following holidays:

- New Year's Day (January 1)
- Dr. Martin Luther King, Jr. Day (Third Monday in January)
- Lincoln's Day (February 12 or see Note Below)
- Washington's Day (Third Monday in February)
- Memorial Day (Last Monday in May)
- Independence Day (July 4)
- Labor Day (First Monday in September)
- Veteran's Day (November 11 or see Note below)
- Thanksgiving Day (Fourth Thursday in November)
- Christmas Day (December 25)

Cesar Chavez Day and Native American Day are local options if collectively bargained (Education Code Sections 79020 subdivision (k) and 79020 subdivision (l)).

The Board of Trustees may declare other days to be holidays and close the college and offices. These holidays have traditionally been New Year's Eve day, the day after Thanksgiving, and Christmas Eve day.

NOTE: *Refer to Education Code Section 79020 for language regulating the scheduling of Lincoln's Day, Veteran's Day, and holidays that fall on weekends.*

See BP 4010 Academic Calendar and AP 7342 Holidays.

Approved: 6/11/07
Reviewed: 10/9/17
Revised: 3/9/20

AP 4020 Program and Curriculum Development

References:

Title 5 Sections 51021, 55000 et seq., and 55100 et seq.;
Accreditation Standard II.A.;
U.S. Department of Education regulations on the Integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965, as amended;
34 Code of Federal

Procedures for course and program development, review, approval, and evaluation processes; designated responsibility and authority for development, review, and approval of courses; time lines for the process, required forms, and publication of curriculum changes; and the criteria and standards for all program and curriculum development can be found in the Academic Policies and Procedures Committee "Standards & Practice Handbook," available on the AVC website.

The District shall provide annual certification to the California Community Colleges Chancellor's Office pertaining to the approval of credit courses and credit programs as required under Title 5 Sections 55100 and 55130.

Credit Hour

One credit hour of community college work (one unit of credit) shall require a minimum of forty-eight (48) semester hours of total student work, which may include inside and/or outside-of-class hours. Cooperative work experience courses shall adhere to the formula for credit hour calculations identified in Title 5 Section 55256.5. Credit for clock hour designated programs shall be awarded consistent with 34 Code of Federal Regulations Part 600.2.

For purposes of federal financial aid eligibility, a "credit hour" shall be not less than:

- One hour of classroom or direct faculty instruction and a minimum of two (2) hours of out of class student work each week for approximately fifteen weeks for one semester or trimester hour of credit or the equivalent amount of work over a different amount of time; or
- At least an equivalent amount of work as required in the paragraph above, of this definition for other academic activities as established by the institution including laboratory work, internships, practica, studio work, and other academic work leading to the award of credit hours.

Also see BP 4020 Program, Curriculum, and Course Development; AP 4021 Program Discontinuance; AP 4022 Course Approval; and AP 4105 Distance Education.

Approved:	2/6/06
Revised:	5/14/12
Revised:	5/8/17
Revised:	11/9/20

AP 4021 Program Discontinuance

References:

Education Code Section 78016;
Title 5 Sections 51022 and 55130
Accreditation Standard ll.A.15

Educational Program Evaluation and Discontinuance Procedure

Antelope Valley College is committed to support programs that fulfill the goals of the Mission Statement and the Institutional Learning Outcomes for students as stated in the Educational Master Plan. Title 5 Section 55000 defines an educational program as "an organized sequence of courses leading to a defined objective, a degree, a certificate, a diploma, a license, or transfer to another institution of higher education." These educational programs are subject to approval by the California Community Colleges Chancellor's Office and are then entered on Inventory of Approved and Projected Programs. Primary consideration in the decision to consider program discontinuance will be given to the service the program provides to the college and community, not to budgetary considerations. Only programs with low or declining enrollment, decreasing demand for service, or clear obsolescence will be considered for discontinuance. A program discontinuance review will be initiated and carried out according to the following steps:

I. When a declining trend or obsolescence has been identified by the division/area dean and faculty of a specific program, the division/area dean shall provide a written notice to the Vice President of Academic Affairs and Academic Senate President.
   A. A declining trend will be identified using the following key performance indicators:
      1. Statistically significant decline in class enrollment throughout the program over four consecutive semesters.
      2. A consistently low enrollment of fifty percent (50%) below maximum seat load capacity over four consecutive semesters.
      3. Retention of less than fifty percent (50%) from the beginning term class roster for four terms (need not be consecutive semesters).
      4. Student success of less than fifty percent (50%) of students obtaining a grade of C or better and/or credit for the final course grade in all courses of the program over four terms (need not be consecutive semesters) in that program.
   B. Obsolescence of program will be identified due to significant changes in discipline practice, technology, general labor market trends, and/or contribution to the community at large.

II. A Taskforce will be convened that consists of no more than three faculty members from the discipline, the respective Division/Area Dean, a representative of the Counseling Department, a faculty representative of the Academic Senate who is not a member of the division in question, and a representative of the Faculty Union who is not a member of the division in question. The Director of Institutional Research and Planning will be a resource for the subcommittee.

The role of the Taskforce shall be to consider the following in keeping with good intentions and enrollment management requirements, in order to determine the disposition of the programs identified as having a declining trend:

- Needs of the community
- Workforce development
- Program Review (most recent)
- Core indicators from the California Community Colleges Chancellor's Office
- Integration/cross discipline in which the program is involved
- FTES generated by program
- Local labor market information through EDD/employer program advisory committees and surveys
- Initiate an independent, external needs assessment to determine market demand

III. The Taskforce, by consensus, may agree to one of the following to address the declining trend:

1) to declare the program obsolete and create a plan for discontinuance that respects the needs of students and fulfills contractual obligations to faculty and staff; or
2) to devise a process/plan to revitalize the program and a timetable to accomplish this goal agreed upon by the discipline faculty with the help of the other involved parties. Resources shall be allocated by the Administration in order to improve enrollment or retention. Some areas to be considered are: in-depth revision of the program's courses, hiring of full-time faculty, update of facilities, or other program enhancements to assure currency, vitality, and relevancy of the program. Other considerations might include seeking support from or collaboration with other campus areas that could help promote student success and retention.

IV. If there has not been a statistically significant increase in key performance indicators after three semesters from the date of implementation of the process to revitalize the program, the Administration will reconvene the Taskforce to determine the appropriate course of action from the following:

1) Give the Program an extension of two (2) semesters. At the end of the extension, the committee will reconvene and re-evaluate.
2) Accept the program in its current state if it serves a community, instructional, or training need.
3) Create a plan to improve recruitment and enrollment. This plan will then be implemented over the following three semesters.
4) Discontinue the program.

V. The final decision on either program discontinuance or program continuance is

sent by the taskforce to the appropriate Vice President and Academic Senate President. If the decision is to continue the program, evaluation will occur through the regular program review cycle.

VI. If the decision is to discontinue a program, the Academic Senate President will inform the Academic Policies & Procedures Committee so that they may formally ratify the decision of the Discontinuance Taskforce. The Academic Policies & Procedures Committee faculty co-chair will then inform the Academic Senate and Strategic Planning and Budget Council.

VII. The Strategic Planning and Budget Council will then notify the College President/Superintendent, who will take the decision of the taskforce to the Board of Trustees.

VIII. The Vice President of Academic Affairs will notify the California Community Colleges Chancellor's Office to have the program removed from the inventory.

Program Discontinuance Taskforce Timeline

Step 1 Problem identified

Step 2 Taskforce convenes

Step 3 Evaluation and recommendation

a) Discontinuance or b) Implementation of Taskforce Plan

Step 4 Re-evaluate and Recommendation

Step 5 Discontinuance or Extension and Re-Evaluation

Step 6 Discontinuance or Program remains and is evaluated through regular Program Review cycle

Career and Technical Education Program Discontinuance

The discontinuance process for Career and Technical Education (CTE) Programs remains the same as the process above, with the following exceptions:

1. Each CTE program will be reviewed in a two-year cycle to ensure that they meet legal standards
2. If a CTE program is not compliant with legal standards and does not become so within an academic year, the Superintendent President shall make the determination to discontinue the program or extend the date to meet compliance. The

Superintendent/President will inform the Academic Senate President and Vice President of Academic Affairs if a CTE program is discontinued due to legal non-compliance.

See BP/AP 4020 Program, Curriculum, and Course Development and AP 4022 Course Approval.

Approved: 5/8/06
Revised: 11/13/06
Revised: 12/11/17
Revised: 1/11/21

AP 4022 Course Approval

Reference:
Title 5 Section 55100

The Academic Policies and Procedures (AP&P) Committee "Standards & Practice Handbook," as well as all forms and guidelines, adhere to the requirements set forth in Title 5, 55100 regarding: procedures for course approval, submitting courses to the Board of Trustees for approval, and when required, approval by the California Community Colleges Chancellor's Office.

Course approval of individual ~~non~~ degree-applicable credit courses offered as part of an educational program to be approved by the California Community Colleges Chancellor's Office are submitted to the Board of Trustees according to the following procedure:

- Courses are proposed by discipline faculty following development criteria and reviewed by department chair, department dean and college articulation officer
- Courses are reviewed by outcomes subcommittee and technical review subcommittee for compliance with local and state standards
- Courses are evaluated, reviewed, and approved by the Academic Policies and Procedures Committee (AP & P)
- Courses are recommended to the Academic Senate for ratification on its consent and forwarded to the Board of Trustees for approval

Course approval of non-degree applicable credit courses that are not part of a permitted educational program may be approved following the above procedures and including:

- Mandatory training of curriculum committee members
- Limitation of "stand alone" semester units a student may use toward completions of a degree or certificate
- Limitation on the number of courses that may be linked to one another by prerequisites or co-requisites

All approved courses will be reported to the California Community College Chancellor's Office.

Approved: 3/10/08
Revised: 1/11/21

AP 4025 Philosophy and Criteria for Associate Degree and General Education

Reference:

Title 5 Section 55061;
Accreditation Standard II.A

General Education (GE) is designed to introduce students to the variety of means through which people comprehend the changing world. It reflects the conviction of the Antelope Valley Community College District (AVCCD) that those who receive their degrees must possess in common certain basic principles, concepts, and methodologies both unique to and shared by the various disciplines. College educated persons should be able to use this knowledge when evaluating and appreciating the physical environment, the culture, and the society in which they live. Most importantly, GE should lead to better self-understanding.

General Education Requirements for the AVCCD associate in arts and associate in science degrees consist of courses or a combination of courses which meet GE philosophy and criteria that will:

1. Provide an introduction to basic concepts, principles, and methodology of study common to a given discipline;
2. Lead to better self-understanding in relationship to the physical environment, culture, economy and society;
3. Provide an opportunity to examine values while proposing solutions for major social problems; and
4. Provide a breadth of knowledge and experiences that contribute to a well-rounded education.

To assure that the Associate Degree provides students with the breadth of coursework needed to meet the philosophy and criteria of general education, coursework in each of the following areas is required in order to obtain an Associate Degree.

A. Natural science courses present critical thinking and problem-solving methods. These courses also explore the relationship that exists between people and science.
B. Courses in the social sciences present the principles and knowledge of our personal, social, cultural, economic and political world to help students understand and manage the realities and complexities of modern life.
C. Courses in the humanities present the cultural activities and artistic expressions of human beings. These courses help students in developing aesthetic understanding and the ability to make value judgments;
D. Courses in languages and rationality present principles of written, oral and

computer languages and mathematics that lead toward logical thought, clear and precise expression, and critical evaluation of communications~~;~~ and analytical thinking:

E. Courses or a combination of courses in the performing and visual arts and physical education provide both theory and practice which leads to a greater understanding and appreciation of the aesthetic world;
F. Courses in ethnic studies and multicultural courses across disciplines provide opportunities to raise awareness to diversity in the world community and appreciate human differences.

Note: Courses that emphasize occupational competency do not meet GE objectives; and, no course may be counted as meeting both a GE requirement and a major requirement in any District degree.

(See Associate Degree Requirements in the college catalog)

In addition, the District will ensure that its educational programs are consistent with its institutional mission and in alignment with the needs of the community. Procedures to determine which courses implement this philosophy are developed by the college and are documented in AVC's curriculum handbook.

Also see BP 4025 Philosophy and Criteria for Associate Degree and General Education, AP 4021 Program Discontinuance; and BP/AP 4100 Graduation Requirements for Degrees and Certificates.

Approved: 2/6/06
Revised: 4/14/08
Revised: 5/8/17
Revised: 11/9/20

AP 4040 Library and Learning Support Services

Reference:

Education Code Section 78100; Civil Code Section 1798.90; ACCJC Accreditation Standard II B

The Library provides library and learning support services to faculty, staff, students, and members of the community. Library materials and electronic services and access are provided in support of the institution's instructional program.

Adopted: 2/6/06
Revised: 3/9/2015
Revised: 10/9/2017

AP 4041 Instructional Media Services

Reference:

Education Code Section 78100

The Instructional Media Center provides instructional support services to both faculty and students. Audio-visual materials and equipment services and access are provided as well as graphics support to faculty for instructional purposes.

2/6/06

AP 4042 Learning Support Services

Reference:

Education Code Section 78100

The Learning Center provides instructional support services to enrolled students for academic and vocational courses as well as assistance in the development of basic skills in reading, writing, and math.

Learning Center services areas include an Academic Skill Program, ESL Study Center, Math Laboratory, Reading Laboratory, Supplemental Instruction, Tutoring Program, Writing Center, and the Disabled Student Services High Tech Center.

2/6/06

AP 4050 Articulation

References:

Education Code Sections 66720-66744;
Title 5, Sections 51022 subdivision (b) and 55051;
Accreditation Standard II.A.10

The College Articulation Officer is responsible for articulating programs and courses with the CSU and UC system, as well as private colleges and universities, on an annual basis.

Articulation agreements for the CSU and UC system are updated and maintained on ASSIST, the statewide database for articulation agreements. Articulation agreements with private colleges and universities are updated and maintained locally by the College Articulation Officer.

College and university articulation agreements can be obtained from the Career and Transfer Resource Center in the Counseling Center.

Articulation agreements can be obtained from the Career and Transfer Resource Center and the Counseling Center.

High School articulation agreements are updated on a three-year cycle and copies of current agreements are maintained and available from Academic Affairs.

Approved: 2/6/06
Revised: 9/10/07
Revised: 10/9/17
Revised: 1/13/20

AP 4070 Course Auditing and Auditing Fees

Reference:

Education Code Section 76370

Individuals are allowed to audit courses, that is, to sit in without participating in class activities or being required to take exams upon approval of an instructor. The intent is to provide individuals with opportunities to explore areas of interest without being subject to the demands of class activities or evaluation and grading. Students and other individuals who audit will be invited to participate in class activities at the discretion of the instructor; however, the instructor is not required to evaluate in any way class activities and projects.

Auditors may not take quizzes and examinations and will not receive a grade.

Priority will be given to a student desiring to take the course for credit toward a degree or certificate. Students at Antelope Valley College and community members will be permitted to audit courses only if the admission of auditors will not result in credit students being denied access to a course.

Audit petition forms are available at the Office of Admissions and Records. The forms will not be accepted until after the first week of classes; instructor approval and payment of fees to the cashier is required prior to attending classes.

Payment of fees is not to exceed fifteen dollars ($15.00) per unit, unless student is enrolled in classes to receive credit for ten (10) or more semester units, and is auditing three (3) or fewer semester units.

A refund of audit fees must be requested through a Petition of Extenuating Circumstances submitted to the Dean of Student Services (Admissions & Records).

An individual auditing a course will not be permitted to change his/ ~~or~~ her audit status to a credit status.

An individual enrolled in a class for credit will not be permitted to change his/ ~~or~~ her credit status to an audit status.

Special Admit students may not audit courses.

Auditing may not be appropriate for all sections of a course or for all courses, even if class seats are available.

Individuals who are auditing a course and are not enrolled in any courses as credit students will not be entitled to any of the services or privileges provided to currently enrolled students.

Approved:	2/6/06
Revised:	5/8/17
Reviewed:	10/9/17
Revised:	1/13/20

AP 4100 Graduation Requirements for Degrees and Certificates

Reference:

Title 5, Sections 55060 et seq.

Associate Degree Requirements

(Title 5, Section 55806)

Graduation from Antelope Valley College with the associate in arts or associate in science degree requires that students demonstrate competency in reading, writing, and mathematics and complete a minimum of 60 semester units, including requirements 1 through 6 listed below.

1. General Education Requirements

A minimum of 21 units, including a minimum of 3 semester units in, in Areas A, B, C, D1, D2, E and F. Courses meeting general education and major requirements can be found in the Graduation/Associate Degree Requirements section of the college catalog.

Area A* - Natural Sciences (Select at least 3 semester units)

Courses in the Natural Sciences are those which examine the physical universe, its life forms and its natural phenomena. To satisfy the GE requirement in natural sciences, a course shall be designed to help the student develop an appreciation and understanding of the scientific method, and encourage the understanding of the relationships between science and other human activities.

Area B* -Social & Behavioral Sciences (Select at least 3 semester units)

Courses in the Social and Behavioral Sciences are those which focus on people as members of society. To satisfy the GE requirement in social and behavioral sciences, a course shall be designed to develop an awareness of the method of inquiry used by the social and behavioral sciences. It shall be designed to stimulate critical thinking about the ways people act and have acted in response to their societies and should promote appreciation of how societies and social subgroups operate.

Area C* - Humanities (Select at least 3 semester units)

Courses in the Humanities are those which study the cultural activities and artistic expression of human beings. To satisfy the GE requirement in the humanities, a course shall be designed to help the student develop an awareness of the ways in which people throughout the ages and in different cultures have responded to themselves and the world around them in artistic and cultural creation and help the student develop aesthetic understanding and an ability to make value judgments.

Area D -Language & Rationality [Select 3 semester units from (1) and select 3 units from (2)]

Courses in Language and Rationality are those which develop for the student the principles and applications of language toward logical thought, clear and precise expression and critical evaluation of communication in whatever symbol system the student uses.

1. Academic Composition

Courses fulfilling the written composition requirement shall be designed to include both expository and argumentative writing.

2. Communication and Analytical Thinking

Courses fulfilling the communication and analytical thinking requirement include oral communication, mathematics, logic, statistics, computer languages and programming, and related disciplines.

Area E -Additional Breadth (Select at least 3 semester units)

Courses in this area are designed to expand the acquisition and utilization of knowledge in GE and/or self understanding. Courses must be taken from a discipline not previously selected.

Area F -Diversity Studies (Select at least 3 semester units)

The primary focus of courses meeting the Diversity Studies requirement will deal, in depth, with non-dominant groups in the State of California and the United States. These groups of people are defined as African-American, Hispanic, Asian-Pacific Islander, Native American and Women. Courses meeting the Diversity Studies requirement will deal with more than one group. Courses will deal with one non-dominant group in comparison to the dominant group or other non-dominant group(s). Issues of racism and sexism will be explicitly covered.

2. Proficiency Requirements

Proficiency requirements exist for the areas of Reading, Writing and Math. Students must demonstrate competency in each of these areas in order to be eligible for the associate degree.

A. READING Eligibility for College Level Reading (AVC assessment) or completion of READ 099 with a minimum grade of "P" (Pass), or completion of an Associate Degree or higher from a regionally accredited institution of higher education other than AVC.

B. WRITING Completion of ENGL 101 with a minimum grade of "C."

C. MATHEMATICS Completion of MATH 102 or higher or CIS 121 with a minimum grade of "C-" or placement by AVC assessment into a math course higher than MATH 102.

3. Major or Area of Emphasis Requirements

Major or area of emphasis requirements may be satisfied by:

Completing at least 18 semester units of study in a specific major or area of emphasis as outlined in the specific degree requirements listed in the AVC catalog, with a grade of "C" or better in all required core course and the specific courses listed as program electives.

4. Electives

Sixty semester units are required for an associate degree. In addition to the general education and major requirements, the remaining number of units needed to complete an associate degree is considered electives. Any course that has already been counted toward (1) the general education requirements, or (2) the major or area of emphasis, cannot be used as an elective.

5. Grade Point Average Requirement

A cumulative grade point average of 2.0 ("C" average) is required.

6. Residence Requirement

Of the required 60 units, "at least 12 semester units must be completed in residence at the college granting the degree" as stated in Title 5, Section 54000 et seq.,

7. Requirements for Two or More Associate Degrees

To be eligible for multiple associate degrees, a student must have completed all of the graduation requirements for each degree.

Antelope Valley College awards the associate arts and associate science degree to students who pursue majors or designated areas of emphasis listed in the college catalog. In the course description section of this catalog, all courses that apply to the associate degree or certificates are designated as (AVC).

The completion of an associate in arts or an associate in science degree does not ensure that a student can transfer directly to a four-year college or university. Students interested in transferring should refer to the Transfer Requirements section in the college catalog.

Certificate of Achievement Requirements:

- For a certificate of achievement, a student must successfully complete a course of study or curriculum that consists of 18 or more semester units of degree-applicable credit coursework. The certificate of achievement shall be designed to demonstrate that the student has completed coursework and developed capabilities relating to career or general education.
- A student may also be awarded a certificate of achievement for a sequence of courses consisting of 12 or more semester units if approved by the CCC Chancellor.
- Shorter credit programs that lead to a certificate may be established by the District, but cannot be listed on the student's transcript.
- Content and assessment standards for certificates shall ensure that certificate programs are consistent with the mission of Antelope Valley College, meet a demonstrated need, are feasible, and adhere to guidelines on academic integrity.
- Certificates for which CCC Chancellor's approval is not sought may be given any name or designation deemed appropriate except for certificate of achievement, certificate of completion, or certificate of competency.

Application for Graduation

Antelope Valley College awards degrees three times, annually—in December following the fall semester, in June following the spring semester, and in August. An application for graduation must be filed in the Admissions and Records Office. After submitting the application, students will receive a formal evaluation of progress toward the degree. Students will receive information on participating in the annual graduation ceremony. While participation in the graduation ceremony is encouraged, it is not mandatory to attend to receive a degree. Early filing of the graduation application is highly recommended.

Credit Courses Not Transferable/Applicable to the Associate Degree and Certificate Programs

Effective Fall 1988, selected credit courses shall not apply to the associate degree and certificate programs.

Students who enroll in credit courses not applicable to the degree can use these credits for eligibility purposes, i.e., full-time status, intercollegiate athletic status and financial aid status. In the course description section of the college catalog, these courses are designated as: Credit course not applicable to the associate degree and certificate programs. Grades will not count in calculating the GPA when received in credit courses not applicable to the associate degree and certificate programs. All courses that do apply to the associate degree or certificates are designated as (AVC).

The list of credit courses not applicable to the associate degree and certificate programs are listed in the college catalog under "Credit Courses Not Transferrable/Not Applicable to the Associate Degree and Certificate Programs"

Note: Courses which emphasize occupational competency do not meet General Education (GE) objectives; and, no course may be counted as meeting both a GE requirement and a major requirement in any District degree.

College Work Applicable to the Associate Degree and Certificate Programs

College work acceptable toward the associate degree includes those courses that have been properly approved pursuant to Title 5, Section 55002(a), or, if completed at other than a California community college, would reasonably be expected to meet the standards of that section Title 5 of the California Code of Regulations is available at http://ccr.oal.ca.gov.

2/6/06
Revised: 3/10/08
Revised: 7/9/12
Revised: 12/11/17

AP 4101 Independent Study

Reference:

Title 5, Sections 55230 et seq.

Independent study

A college level course which is accepted for completion of an appropriate educational sequence leading toward an associate degree and which is recognized upon transfer by an institution of the University of California or the California State University system as meeting either elective or major requirements for a baccalaureate degree may be offered as independent study. Independent study of up to five units can be taken and must be approved by the instructor, dean and Vice President of Academic Affairs.

To request independent study, a student must contact the instructor to obtain an Independent Study Contract. After completing the contract and securing signatures from the Instructor and the Dean of the Division in which the course is offered, the contract is sent to the Vice President of Academic Affairs for final approval.

Academic standards applicable to courses of independent study shall be the same as those applied to other credit courses or noncredit courses in the college and all procedures for evaluation shall be in accordance with regulations set by the college. Access to the instructor must be at least equivalent to that commonly available to students in courses conducted by other instructional methods. (See “Independent Study Contract” and “Criteria for Offering Independent Study” below.)

ANTELOPE VALLEY COLLEGE
Office of Academic Affairs

INDEPENDENT STUDY CONTRACT

Student Name _____ Social Security Number _____

Course Number _____ Course Title _____ Units _____

Instructor _____ Semester/Year _____ /

1. Course prerequisites _____

2. Objectives _____

_____

3. Methodology _____

_____

4. Specific assignments and/or activities _____

_____

5. Methods of evaluation _____

_____

6. **Schedule of meetings with instructor:** Note: Access to the instructor must be at least equivalent to that commonly available to students in courses conducted by other instructional methods.

Date	Time	Date	Time

_____ _____
Student's Signature
(Certifying understanding of & agreement with the above)

_____ _____
Instructor's Signature
(Certifying understanding of & agreement with the above)

_____ _____
Division Dean's Signature

_____ _____
Vice President of Academic Affairs

CRITERIA FOR OFFERING INDEPENDENT STUDY COURSES

Ed. Code Title 5

Subchapter 4, Article 1.General Provisions and Requirements

55316 Criteria

Courses offered pursuant to this chapter shall:

(a) Be accepted by the college toward completion of an appropriate educational sequence leading to an associate degree, and

(b) Be recognized by an institution of the University of California or the California State University upon transfer to that institution.

55316.5 Additional Courses

Notwithstanding any other provisions of law, after June 1, 1994, the following additional types of courses may be offered pursuant to this Chapter, consistent with guidelines developed by the Chancellor.

(a) Nontransferable courses designed to meet the requirements of Sections 55805.5, 55806 and 55002(a) or (b);

(b) Noncredit courses conducted as distance education independent study

55320 Academic Standards

Academic standards applicable to courses of independent study shall be the same as those applied to other credit courses in the college.

55321 Student Progress

Procedures for evaluation of student progress shall be in accordance with regulations set by the college. A report by an instructor on appropriate records bearing the student's name for purposes of state apportionment shall certify that adequate and proper progress toward accomplishment of the course objectives is being maintained by the student.

55805.5 Types of Courses Appropriate to the Associate Degree

The criteria established by the governing board of community college district to implement its philosophy on the associate degree shall permit only courses that conform to the standards specified in section 55002(a) and that fall into the following categories to be offered for associate degree credit:

(a) All lower division courses accepted toward the baccalaureate degree by the CSU or UC of designed to be offered for transfer.

(b) Courses that apply to the major in non-baccalaureate occupational fields.

(c) English courses not more than one level below the first transfer level composition course, typically known as English 1A. Each student may count only one such course as credit toward the associate degree.

(d) All math courses above and including Elem. Algebra.

(e) Credit courses in English and Math taught in or on behalf of other departments and which, as determined by the local governing board require entrance skills at a level equivalent to those necessary for the courses specified in subsections (c) and (d) above.

Before this form is completed, the Independent Study must be approved by the Instructor, Dean of the Division and the Vice-President of Academic Affairs.

A copy of this contract must remain in the instructor's files along with all materials justifying the award of the grade and completion of units for audit purposes.

If this contract is cancelled, the instructor must complete a student drop form showing the date of contract cancellation.

2/6/06
Revised: 4/14/08

AP 4102 Career and Technical Education Programs

Reference:

U.S. Department of Education regulations on the Integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965, as amended; 34 C.F.R. Part 600.]
Title 5, Sections 55600 et seq
ACCJC Accreditation Standard II.A.14

The competence of students completing vocational and occupational programs shall be evaluated by the same criteria that are used for all courses.

Advisory committees for occupational/vocational programs shall be established by the program faculty and dean to assist in maintaining relevant curriculum, technology, equipment, and course content, and to serve as liaison with potential employers.

Members of advisory committees should include appropriate program faculty, employers and employees in the field for which the program is designed to train students; former and current students; and the Division Dean.

Consistent with federal regulations pertaining to federal financial aid eligibility, the Superintendent/President or designee will ensure that the District complies with the United States Department of Education's disclosure requirements for each of the District's gainful employment programs, by disclosing federally-mandated information about the programs to prospective students. The District shall make the required disclosures available to prospective students in promotional materials and on its website.

The Superintendent/President or designee shall establish procedures to ensure that the District meets these reporting requirements whenever the District intends to add a new gainful employment program.

4/9/07
Revised: 5/14/12
Revised: 5/8/17

AP 4103 Work Experience

Reference:

Title 5, Sections 55250 et seq.

Cooperative Work Experience Education District Plan

I. Adoption of the Plan

The Board of Trustees for Antelope Valley Community College District, acting under the authority of the California Education and Administration Codes and Regulations adopted by the Board of Governors of California Community Colleges pertaining to Cooperative Education in Community Colleges, do hereby adopt the following plan for Cooperative Education in the District.

In addition, the Trustees authorize and direct the District Superintendent to forward copies of this adopted plan over his/her signature to the Chancellor's Office for approval and entitlement for the District to receive appropriate state funds for aid in operation of the Cooperative Education

Plan. (T5: 55251)*

II. Types of Cooperative Work Experience

Cooperative Work Experience Education is a district-initiated and district-controlled program of education consisting of either General Work Experience Education or Occupational Work Experience Education. Both types of programs are offered by Antelope Valley College.

General Work Experience Education is supervised employment that is intended to assist students in acquiring desirable work habits, attitudes, and career awareness. The work experience need not be related to the students' educational goals.

Occupational Work Experience Education is supervised employment extending classroom-based occupational learning at an on-the-job learning station related to the students' educational major or occupational goal. Participation in Cooperative Work Experience may be under either a parallel plan or an alternate plan.

A *Parallel Plan* is designed to offer students the opportunity to attend college classes and earn college credit for concurrent learning on the job.

An Alternate Plan is designed to offer students opportunities alternately to attend college and work. (T5: 55252)

Cooperative Work Experience Education is designed to provide students a realistic learning experience through work. The ultimate goal is to teach students those skills and attitudes that will equip them to function and adapt as an employee in a variety of situations and jobs. (T5: 53250)

'References Title 5 and specific section

III. Responsibilities of the Cooperative Work Experience Partners

A successful Cooperative Work Experience Program involves the coordinated efforts of four partners: Antelope Valley College, the student, the instructor, and the supervisor/employer.

Antelope Valley College shall:

1. Assign necessary certificated personnel who are qualified to coordinate the program in accordance with federal, state, and local district requirements. The Director of Work Experience will monitor and direct the program in accordance with Code requirements and maintain an educationally sound ratio of students to instructor. (T5: 5525 1)

   Qualified adjunct faculty may be hired from other institutions to develop the learning contracts and make "in-person" consultation for a student that is out of the colleges' geographical region, state, or in another country. (T5: 55255)

2. Identify designated instructors and counselors to provide appropriate and continued guidance service to students in the program. (TS: 5525 1)
3. Provide sufficient clerical help to maintain records and provide services to meet the needs of the program. (T5: 55251)
4. Provide sufficient services for initiating and maintaining on-the-job learning stations, coordinating the program, and supervising students. The supervision of students shall be outlined in a learning agreement coordinated by the college district. (T5: 55255)
5. Screen work stations to ensure that all conditions pertaining to the health, safety, and welfare of the students are protected.
6. Ensure that students' on-the-job learning experiences are documented with written measurable learning objectives. (TS: 55251)
7. With the assistance of the supervisor/employer, evaluate students' on-the-job learning experience and award appropriate credit and letter grades. (T5: 55251)
8. Maintain records which will include at least the following:
   a. The type and units of work experience in which each student is enrolled, where employed, type of job held, and the basis for determining whether the student is qualified for Occupational or General Work Experience Education; signed and dated by academic personnel.
   b. A record of work permit issued, if applicable, signed by the designated issuing agent.
   c. The employer's or designated representative's statement of student hours worked and evaluation of performance on the agreed-upon learning objectives. Work hours may be verified either by weekly or monthly time sheets or by a summary statement at the end of the enrollment period.
   d. New or expanded on-the-job measurable learning objectives which serve as part of the basis for determining the student's grade signed by academic personnel, employer or designated representative, and student. (TS: 55256)
9. Maintain records which are signed and dated by academic personnel documenting:
   a. Consultation(s) in person with the employer or designated representative.
   b. Personal consultation(s) with the student.
   c. Evaluation of the student's achievement of the on-the-job learning objectives.
   d. The final grade. (T5: 55256)

The Instructor shall:

1. Provide appropriate advice and counsel to the student.

2. Assist the student and the supervisor/employer in developing the required new or expanded learning experience(s).
3. Assist the student in developing appropriate new or expanded, attainable, on-the-job measurable learning objectives.
4. Consult in person at least once each semester with the supervisor/employer at the student's work station to discuss student's educational growth on the job.
5. Consult in person at least once each semester with the student to discuss the student's educational growth on the job.
6. Assign a letter grade reflecting the supervisor's/employer's evaluation and the student's progress in meeting the planned on-the-job learning objectives. (T5: 55255)
7. Collect and submit all required documents with appropriate signatures.

The Student shall:

1. Pursue a planned program of Cooperative Work Experience, which, in the opinion of the instructor, includes new or expanded responsibilities or learning opportunities beyond those experienced during previous employment.
2. Have new or expanded on-the-job learning experiences that contribute to their occupational or educational goals.
3. Receive the approval of the appropriate instructor of the program before enrolling in the Cooperative Work Experience Education program. (T5: 55254)
4. Develop new or expanded, attainable, on-the-job measurable learning objectives in consultation with the instructor and the supervisor/employer. (T5: 55251)
5. Maintain the required number of units, attend classes regularly, and progress in both their related classes and work experience in a manner acceptable to the work experience instructor and supervisor/employer.
6. Inform the work experience instructor of any problems or changes that would affect their college program of study and/or work experience training.
7. Submit forms and complete other assignments required by the instructor or job site supervisor.
8. Abide by the rules and regulations as established by the employer, Antelope Valley College District Board of Trustees, and the State of California regarding the expected behavior and conduct of students attending Antelope Valley College.
9. It self-employed, identify a person who is approved by the instructor to serve as the designated employer representative. (T5: 55254)
10. Satisfy one of the following three criteria:
    a. Be an apprentice as defined by Labor Code Section 3077, who is enrolled in related or supplementary courses required of the apprenticeship programs.
    b. Be enrolled in the Parallel Plan.
        1) During regular semesters, students must enroll in a minimum of seven units including Cooperative Work Experience Education. Enrollment in an accredited secondary through four-year institution, or equivalent course work may meet this requirement.
        2) During summer sessions, students must enroll in one other class in addition to Cooperative Work Experience Education.

c. Be enrolled in the Alternate Plan. Concurrent enrollment will be limited to one other class. (T5: 55254)

11. Attend a mandatory orientation prior to contacting the instructor and enrolling in Work Experience.

The Supervisor/Employer shall:

1. Understand and accept the objectives of the Cooperative Work Experience Education program. (T5: 55257)
2. Work on a cooperative basis with the instructor in coordinating the work experience of students.
3. Assure the College that the workstation offers a reasonable probability of continuous employment for the student who is making progress during the work experience period. (T5: 55257)
4. Provide overall desirable working conditions that will not endanger the health, safety, and welfare of the student. .
5. Provide adequate equipment, materials, and other facilities to provide an appropriate learning opportunity. (T5: 55257)
6. Assist the student in the establishment of attainable, on-the-job learning objectives which represent new or expanded responsibilities. (T5: 55256)
7. Provide adequate supervision of the student to ensure that the on-the-job activities provide the maximum educational benefit. (T5: 55255)
8. Personally consult with the student to discuss his/her educational growth on the job. (T5: 55255)
9. Maintain and submit accurate records of the number of hours the student worked on the job. (T5: 55256)
10. Submit a written evaluation of the student. in cooperation with the instructor, to help determine the final grade. (TS: 55251)
11. As required by law, comply with all appropriate federal and state employment regulations. (T5: 55257)

IV. Credit Awarded

A total of sixteen semester units of credit may be granted by Antelope Valley College for Occupational Work Experience Education or a combination of Occupationa1 and General Work Experience (note the six-unit limit for General Work Experience). Credit for Cooperative Work Experience Education is subject to the following limitations:

1. General Work Experience Education

a. Parallel Plan - A maximum of three credit hours per semester may be earned up to a total of six semester credit hours.

b. Alternate Plan - A maximum of six credit hours per semester may be earned, with six semester credit hours being the total a student in General Work Experience may earn.

2. Occupational Work Experience Education

a. Parallel Plan - A maximum of four credit hours per semester may be earned up to a total of 16 semester credit hours.

b. Alternate Plan - A maximum of eight credit hours per semester may be earned up to a total of 16 semester credit hours. (T5: 55253)

One student contact hour is counted for each unit of Work Experience credit in which a student is enrolled during any census period. In no case shall duplicate student contact hours be counted for any classroom instruction and Cooperative Work Experience Education. The maximum contact hours counted for a student shall not exceed the maximum number of Cooperative Work Experience Education units for which the student may be granted credit as described in section T5: 55253.

The learning experience and the identified on-the-job learning objectives shall be sufficient to support the units to be awarded.

The following formula will be used to determine the number of units to be awarded:

1. Each 75 hours of paid work equals one semester unit of credit.
2. Each 60 hours of non-paid (volunteer) work equals one semester unit of credit. (T5: 55256.5)

2/6/06

AP 4104 Contract Education

Reference:

Title 5, Sections 55170, et seq.

As part of its economic and workforce development and community outreach efforts, the District's Corporate & Community Education office may provide customized training to business, industry, government agencies, and other public or private organizations. The process may involve creation of new courses, revision of existing course outlines for use in a particular training program, special assistance and assessment, and consultative or developmental services to define specific needs. The District's Corporate & Community Education office may contract with business, industry, government agencies, and other public or private organizations to deliver specified services.

The District and/or the Corporate & Community Education office shall recover, from all revenue sources, an amount equal to or greater than the actual costs (including administrative costs) incurred in providing contracted services. In certain cases, these services may be funded by the contractor (client) through public training funds. These contracted activities are generally closed to the public.

Contract Education instruction typically consists of Not-for-Credit classes. This refers to classes, including Community Services classes, that are offered without credit and which are not eligible for apportionment funding. Not-for-Credit classes are required to be financially self-supporting.

Credit and Non-Credit classes may also be offered through Contract Education. When Contract Education involves academic credit classes, faculty appointments will be consistent with minimum qualifications, and curriculum approval processes and registration procedures for all students will be followed.

A service agreement will be approved by the Board of Trustees, which will authorize specific charges, procedures, personnel, and timelines for the requested contract.

11/13/07

AP 4105 Distance Education

Reference:

34 Code of Federal Regulations Part 602.17 (U.S. Department of Education regulations on the Integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965, as amended);
Title 5, Section 55200 et seq.;
ACCJC Accreditation Standard II.A.1

Consistent with federal regulations pertaining to federal financial aid eligibility, the District must authenticate or verify that the student who registers in a distance education or correspondence education courses is the same student who participates in and completes the course or program and receives the academic credit. The District will provide to each student at the time of registration, a statement of the process in place to protect student privacy and estimated additional student charges associated with verification of student identity, if any.

The Superintendent/President or designee shall utilize one or more of these methods to authenticate or verify the student's identity:

- secure credentialing/login and password;
- proctored examinations; or
- new or other technologies and practices that are effective in verifying student identification.

The Superintendent/President or designee shall establish procedures for providing a statement of the process in place to protect student privacy and estimated additional student charges associated with verification of student identity, if any, to each student at the time of registration.

Definition: Distance education means instruction in which the instructor and student are separated by distance and interact through the assistance of communication technology.

Course Approval:

Each proposed or existing course offered by distance education shall be reviewed and approved separately. Separate approval is mandatory if any portion of the instruction in a course or a course section is designed to be provided through distance education.

The review and approval of new and existing distance education courses shall follow the curriculum approval procedures outlined in Administrative Procedures 4020, Program and Curriculum Development. Distance education courses shall be approved by the Academic Policies and Procedures Committee (AP&P) under the same conditions and criteria as all other courses. Each section of the course that is delivered through distance education will include regular effective contact between instructor and students as determined by discipline faculty.

All distance education courses approved under this procedure will continue to be in effect unless there are substantive changes of the course outline of record.

For courses in which instruction is provided through distance education for at least 51 percent of the hours of instruction, the district shall:

a) maintain records and report data through the Chancellor's Office Management Information System on the number of students and faculty participating in these courses;

b) provide to the local governing board, no later than August 31 of each year, a report on all distance

education activity.

2/6/06
Revised: 3/10/08
Revised: 5/14/12
Revised: 5/8/17

AP 4220 Standards of Scholarship – Delegation

References:

Education Code Section 70902 subdivisions (b)(3) & (d);
Title 5 Section 51002

Matters identified by Title 5 as standards of scholarship are grading practices, credit-noncredit options, credit by examination, standards for probation and dismissal, remedial course work, academic record symbols, grade changes, course repetition, and academic renewal, probation and dismissal, and alternative methods of awarding credit. Authority and responsibility ~~is~~ are delegated to the chief instructional or academic officer and the Academic Senate as described in the policies and procedures on participation in local decision-making. (see BP/AP 2510 Participation in Local Decision-Making)

The Board of Trustees will rely primarily on the advice of the Academic Senate for policies and procedures related to the following Academic and Professional Matters:

(1) Curriculum, including establishing prerequisites.
(2) Degree and certificate requirements.
(3) Grading policies.
(4) Education program development.
(5) Standards or policies regarding student preparation and success.
(8) Policies for faculty professional development activities.

Approved: 2/6/06
Reviewed: 10/9/2017
Revised: 1/13/20

AP 4222 Remedial Coursework

Reference:

Title 5, Section 55035
ACCJC Accreditation Sandard II.A.4

Remedial coursework consists of pre-collegiate basic skills courses and credit courses that are not transferable or applicable to the associate degree and certificate programs. A current list of these courses is available in the college catalog.

A student's need for remedial coursework shall be determined using appropriate assessment instruments, methods, or procedures.

No student shall receive more than 30 semester units for remedial coursework. A student who exhausts this unit limitation shall be referred to appropriate adult noncredit education services. Students will be notified before they exhaust this unit limitation and be directed to receive advisement.

A student who successfully completes remedial coursework or who demonstrates skill levels, which assure success in college-level courses, may proceed with college level coursework.

Students enrolled in one or more courses of English as a Second Language and students identified as having a learning disability are exempt from the limitations of this procedure.

Students who demonstrate significant, measurable progress toward development of skills appropriate to enrollment in college-level courses may be granted a wavier of the limitations of this procedure through the Petition for Extenuating Circumstances submitted to the Dean of Student Services (Counseling).

2/6/06
Revised: 4/14/08
Revised: 5/18/17

AP 4225 Course Repetition

Reference:

Title 5 Sections 55040, 55041, 55042, 55253, 56029; Education Code Section 76224

Non Repeatable Courses with Standard Grades

When a student repeats a course that is not designated as repeatable and receives a satisfactory grade, then the student may not repeat the course again unless:

1. There is a significant lapse of time of 60 months, or
2. AVC or another institution of higher education established a recency prerequisite for the course or program, or
3. Other circumstances as deemed appropriate by the Dean of Enrollment Services.

In all cases an Extenuating Circumstances petition must be submitted to the Dean of Enrollment Services for consideration, and documentation must be attached. Only one Extenuating Circumstances petition may be submitted for a course when a standard grade is earned.

In cases where the above-mentioned Extenuating Circumstances petition is approved:

The academic record shall remain legible, insuring a true and complete academic history, and the previous grade and credit will be disregarded in computing the student's grade point average (GPA).

Non-Repeatable Courses with Substandard Grades in Which Substandard Grades (less than "C," and including "NP," or "NC") Were Awarded:

A student receiving a substandard grade has two opportunities to repeat a course to alleviate the substandard grade provided the student's enrollment in the same course does not exceed three semesters. The first two substandard grades shall be excluded in counting the student's GPA.

Non-repeatable Exemption Classes:

1. Occupational Work Experience Classes – The grade received each time shall be included for purposes of calculating the student's GPA.
2. Special classes for students with disabilities may be repeated any number of times based on an individual determination that such repetition is required as a disability-related accommodation for that particular student. In these cases, the previous grade and credit shall be disregarded in computing the student's GPA each time the course is repeated.

No Repeat Limits When Conditions Are Met:

1. Military Withdrawal – Active or reserve duty in the United States military services who receives orders compelling withdrawal with verification of orders.
2. Extraordinary Conditions Withdrawal – Withdrawal without a "W" notation due to fire, flood, or other extraordinary condition or if the district is unable to keep the college open for at least 175 days due to fire, flood, epidemic, emergency created by war, or other major safety hazard.
3. Legally Mandated Training – In these cases, the grade received each time shall be included for purposes of calculating the student's GPA.

Nothing can conflict with Education Code Section 76224 pertaining to the finality of grades assigned by instructors, or with Title 5 or district procedures relating to retention and destruction of records.

Repeatable Courses

Certain specified courses may be repeated if they meet the following criteria and have been reviewed and approved by the AP&P Committee. "Each identified course is one in which the course content differs each time it is offered, and the student who repeats it is gaining an expanded educational experience." In addition, each repeatable course must prove one of the following justifications:

Skills or proficiencies are enhanced by supervised repetition and practice in class; or

Active participatory experience in individual study or group assignments is the basic means by which learning objectives are obtained; or

"Instances when such repetition is necessary for a student to meet legally mandated training requirements as a condition of continued paid or volunteer employment. Such courses may be repeated for credit any number of times, regardless of whether or not substandard work was previously recorded, and the grade received each time shall be included for purposes of calculating the student's grade point average."

These repeatable courses are approved by the Academic Policies & Procedures Committee and identified in the catalog and class schedule by the symbol (R) and a number which represents the total number of times the course can be repeated, e.g. (R3) means the course may be taken for a total of four times.

A student who received a substandard grade in a repeatable course would have to repeat the course one attempt beyond what is allowable to have the grade excluded from the calculation of the student' GPA.

Students who complete a course for the maximum number of times should request to audit the course for any additional participation in that course.

A student may request to repeat a repeatable course to have a substandard grade excluded (before the maximum allowable repeatability is completed) from the student's GPA by submitting a Petition for Extenuating Circumstances to the Dean of Student Services (Counseling) for consideration.

2/6/06
Revised: 6/11/07
Revised: 3/10/08
Revised: 5/11/09
Revised: 12/14/09
Revised: 7/9/12

AP 4226 Multiple and Overlapping Enrollments

Reference:

Title 5 Section 55007

A student may not enroll in two (2) or more sections of the same credit course during the same term unless the length of the course provides that the student is not enrolled in more than one (1) section at any given time.

A student may not enroll in two (2) or more courses where the meeting times for the courses overlap, unless:

- The student provides a valid justification, other than scheduling convenience, of the need for an overlapping schedule.
- The student makes up the overlapping hours at some other time during the same week under the supervision of the instructor of the course.
- The reason the student cannot enroll in non-overlapping course must be given.
- The overlap may not exceed ten (10) minutes
- Both faculty members must give their written agreement to the overlapping enrollment.
- Faculty members understand that they are under no obligation to agree but that, if they do agree, the student must make up the time missed under the supervision of the instructor during the same week the time was missed.
- The overlap must be reviewed by the Dean of Enrollment Services.
- Overlap enrollments will be processed in Admissions and Records if approved by the Dean of Enrollment Services.

Approved: 4/14/08
Revised: 5/12/08
Reviewed: 10/9/17
Revised: 1/13/20

AP 4227 Repeatable Courses

References:

Title 5 Sections 55040, 55041, ~~55042~~, and 55253

Under special circumstances, students may repeat courses in which a C or better grade was earned.

Students are allowed to repeat a course without petition when repetition is necessary to enable that student to meet a legally mandated training requirement as a condition of volunteer or continued paid employment. Students can repeat such courses any number of times, even if they received a grade of C or better; however, the grade received by the student each time will be included in calculations of the student's grade point average.

The district must identify and designate such repeatable courses in its catalog. The district must also determine and certify that each repeatable course is one in which either the course content differs each time the course is offered or the course is an activity courses subject to certain criteria. Foreign language courses, ESL courses, and non-degree applicable basic skills courses are not considered "activity courses" based on the above criteria.

Examples of activity courses that qualify as repeatable courses include physical education courses and courses in music, fine arts, theater, and dance. Absent substandard academic work courses may not be repeated for more than three semesters or five quarters including summers and intersessions.

Students with disabilities can repeat a special class for students with disabilities any number of times when an individualized determination verifies that such repetition is required as a disability-related accommodation for the student for one of the reasons specified in Title 5, Section 56029..

Students are allowed to repeat an occupational work experience course if a college only offers one course in occupational work experience in a given field and that course is not offered as a variable unit open-entry/open-exit course. Where only one occupational work experience course is offered subject to the above conditions, students may be permitted to repeat this course any number of times as long as they do not exceed the limits on the number of units of cooperative work experience set forth in Title 5 Section 55253(a).

The District shall develop and implement a mechanism to allow it to properly monitor course repetition.

5/11/09
Revised: 12/14/09

AP 4228 Course Repetition – Significant Lapse of Time

Reference:

Title 5 Section 55043

Students may be permitted or required to repeat courses in which a "C" or better grade was earned where there was a significant lapse of time of no less than 36 months since the grade was obtained and:

- The District has established a recency prerequisite for a course or program; or
- An institution of higher education to which a student wishes to transfer has established a recency requirement that the student cannot satisfy without repeating the course.

When a student needs to repeat an active participatory experience course in physical education, or visual or performing arts, or that is related in content due to a significant lapse of time, each repetition attempt will be counted toward the established repetition limits. However, if a student has already exhausted the number of permitted repetitions, then an additional repetition due to significant lapse of time may be permitted or required by the District.

When a course is repeated due to a significant lapse of time, the District may disregard the previous grade and credit when computing a student's grade point average.

5/11/09
Revised: 5/14/18

AP 4229 Course Repetition – Variable Units

Reference:
Title 5 Section 55044

Students may be permitted to enroll in variable unit open-entry/open-exit courses as many times as necessary to enable them to complete the entire curriculum of the course once.

Students may not repeat variable unit open-entry/open-exit courses unless:

- The course is required for legally mandated training; or
- The course is a special class for students with disabilities which needs to be repeated; or
- Repetition of the course is justified by extenuating circumstances; or
- The student wishes to repeat the course to alleviate substandard work.

A student may not enroll in a variable unit open-entry/open-exit active participatory course in physical education, visual arts, or performing arts, more than once.

When a course is repeated due to a significant lapse of time, the District may disregard the previous grade and credit when computing a student's grade point average.

2/8/10
Revised: 5/14/18

AP 4230 Grading and Academic Record Symbols

Reference:

Title 5, Section 55023 and 55024

Evaluative symbols:
A – Excellent (Grade Point = 4) B – Good (Grade Point = 3)
C – Satisfactory (Grade Point = 2)
D – Less than satisfactory) (Grade Point = 1)
F – Failing (Grade Point = 0)
P – Passing (At least satisfactory – Units awarded not counted in GPA))
NP – No Pass (Less than satisfactory), or failing – units not counted in GPA)
SP – Satisfactory Progress towards completion of the course (Used for noncredit courses only and is not supplanted by any other symbol)

Non-Evaluative symbols:

I – Incomplete

IP – In

progress

RD – Report delayed

W – Withdrawal

MW – Military Withdrawal EW - Excused Withdrawal

Final grades are issued at the end of each semester.

Grades are calculated on a 4.0 scale. (A=4 pts; B=3pts; C=2 pts; D= 1 pt; and F=0 pts)

Grades of P, NP, I, IP, RD, and W have no points attached and are not used in calculating grade point average.

Students' grades in each course will be recorded on their transcripts at the end of each semester.

I (Incomplete) – Used to indicate incomplete academic work for unforeseeable, emergency, and justifiable reasons at the end of the term.

An incomplete contract must be completed and the terms and conditions agreed upon by both the student and faculty. The condition for removal of the "I" and the grade to be assigned in lieu of its removal shall be stated by the instructor in the contract which will be held on file in the Admissions Office.

A student has 1 year to complete the obligations of the incomplete contract. This record shall remain on file until the "I" is made up or the time limit has passed. A final grade shall be assigned when the work stipulated has been completed and evaluated or when the time limit for completing the work has passed.

If the terms and conditions of the contract are not fulfilled the "I" will convert to a grade of "F."

A student may petition for an extension of time due to unusual circumstances before the time limit has passed. The "I" symbol shall not be used in calculating units to determine grade point average.

IP (In Progress) – Used to denote that the class extends beyond the normal end of an academic term. It shall indicate that work is "in progress," but that assignment of a substantive grade must await its completion. The "IP" symbol shall remain on the student's permanent record in order to satisfy enrollment documentation. The appropriate evaluative grade and unit credit shall be assigned and appear on the student's record for the term in which the course is completed. The "IP" shall not be used in calculating grade point average. If a student enrolled in an "open-entry, open-exit" course is assigned an "IP" and does not re-enroll in that course during the subsequent term, the appropriate faculty will assign an evaluation symbol (grade) to be recorded on the student's permanent record for the course.

RD (Report Delayed) – Used when there is a delay in reporting the grade of a student due to circumstances beyond the control of the student. It is a temporary notation to be replaced by a permanent symbol as soon as possible. "RD" shall not be used in calculating grade point average.

W (Withdrawal) - Used to denote withdrawal from a class or classes through the last day of the fourteenth week of instruction. The academic record of a student who remains in class beyond the fourteenth week will be graded for the course. For a "W" grade, no notation shall be made on the academic record of a student who withdraws during the first four weeks of a semester. The "W" shall not be used in calculating grade point average, but excessive "W's" shall be used as a factor in academic probation and dismissal procedures (See BP and AP 4250).

A student planning to withdraw from one or more classes may do so online or in person through the Office of Admissions & Records by submitting a withdrawal form. Failure to do so will result in the student's being awarded a final grade at the discretion of the instructor for each class in which the student is registered.

MW - (-Military Withdrawal): The "MW" symbol may be used to denote military withdrawal of an active or reserve member of United States Military in accordance with Title 5 Section 55024.

EW - Excused Withdrawal: The "EW" symbol may be used to denote withdrawal in accordance with Title 5 Section 55024. The "EW" occurs when a student is permitted to withdraw from a course(s) due to specific events beyond the control of the student affecting his or her ability to complete a course(s) and may include a job transfer outside the geographical region, an illness in the family where the student is the primary caregiver, when the student who is incarcerated in a California state prison or county jail is released from custody or involuntarily transferred before the end of the term, when the student is the subject of an immigration action, or other extenuating circumstances as described in 55024.

2/6/06
3/10/08
Revised: 10/9/17
Revised: 4/8/19

AP 4231 Grade Changes

Reference:

Education Code Section 76224, 76232; Title 5, Section 55025

Changing Grades

In any course of instruction in a California Community College District for which grades are awarded, the instructor of the course shall determine the grade to be awarded each student. The determination of the student's grade by the instructor shall be final in the absence of bad faith, fraud, incompetence, or mistake (Education Code 72224). The legal definitions are as follows:

BAD FAITH. The opposite of "good faith", generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake as to one's rights or duties, but by some interested or sinister motive.

FRAUD. An intentional perversion of truth for the purpose of inducing another in reliance upon it to part with some valuable thing belonging to him or to surrender a legal right; a false representation of a matter of fact, whether by words or by conduct, by false or misleading allegations, or by concealment of that which should have been disclosed, which deceives and is intended to deceive another so that he shall act upon it to his legal injury; any kind of artifice employed by one person to deceive another. A generic term, embracing all multifarious means which human ingenuity can devise, and which are resorted to by one individual to get advantage over another by false suggestions or by suppression of truth, and includes all surprise, trick, cunning, dissembling, and any unfair way by which another is cheated. "Bad faith" and "fraud" are synonymous, and also synonyms of dishonesty, infidelity, faithlessness, perfidy, unfairness, etc.

INCOMPETENCY. Lack of ability, legal qualification, or fitness to discharge the required duty.

MISTAKE. Some unintentional act, omission, or error arising from ignorance, surprise, imposition, or misplaced confidence.

The removal or change of an incorrect grade from a student's record shall only be done pursuant to Education Code 76232 or by an alternative method that ensures that each student shall be afforded an objective and reasonable review of the requested grade change. In all cases, the instructor who first awarded the grade will be given written notice of the change.

<u>Appeal to Instructor</u>

The student shall discuss the status of the grade with the instructor. When the student perceives a problem, it is essential that the student initiate discussion about the perceived problem with the instructor prior to the assignment of the final grade, if possible. At each time the instructor evaluates the student, the instructor must provide the opportunity for the student to know of the status of the grade. Both the student and instructor are encouraged to establish a mutually acceptable agreement. Either the student or instructor may seek information from the Dean of Admissions and Records.
If the instructor has already assigned a grade that the student believes is not valid, the student may initiate discussion about the assigned grade with the instructor in an effort to reach a mutually acceptable agreement.

Either the student or instructor may seek information from the Dean of Admissions and Records.

Students who wish to appeal a final grade must do so within one year from the date the final grade was issued.

Provisions shall be made to allow another faculty member to substitute for the instructor if the student has filed a discrimination or harassment complaint, if the instructor is not available, or where the district determines that it is possible that there may have been gross misconduct by the original instructor.

Appeal to the Dean

If the discussion with the instructor ends without a satisfactory resolution, and the student believes the assigned grade is still not valid, the student may appeal the grade status to the divisional dean.

A Student Request for Grade Change shall be completed by the student and submitted to the dean.

The dean shall discuss the situation with the student, instructor, and witnesses either separately or together.

Whenever possible, after receipt of the written request, the dean will provide written recommendation(s) within five working days.

Appeal to the Vice President

If the dean's recommendations are not agreeable to the student or the instructor, either one may appeal in writing the decision to the appropriate vice president

All written information shall be given by the dean to the appropriate vice president

The vice president may discuss the situation with the student, instructor, or witnesses either separately or together.

Consultation from staff and students may be requested by the vice president

Whenever possible after receipt of the written appeal, the vice president will provide written recommendations within five working days.

If the student is not satisfied with the recommendation from the appropriate vice president, the student may request a Grievance Hearing to dispute the final grade.

Refer to AP 5530 Student Rights and Grievances for the procedure to schedule Grievance Hearing.

Security of Grade Records

The District shall implement security measures for student records that assure no person may obtain access to student grade records without proper authorization. These measures shall be installed as part of any computerized grade data storage system.

The measures implemented by the District shall include, but not necessarily be limited to, password protection for all student grade databases, locking mechanisms for computer stations from which student grade databases can be viewed, and strict limits on the number of persons who are authorized to change student grades.

Persons authorized to change grades shall be designated by the Dean of Enrollment Services.

No more than five District employees may be authorized to change student grades. Only regular full-time employees of the District may be authorized to change grades. Student workers shall not have access to grade records, and student workers may not change grades at any time.

The Dean of Enrollment Services will periodically run a report to confirm that only authorized full- time employees of the District have changed grades.

Any person who discovers that grades have been changed by someone other than the persons authorized to do so shall notify the Dean of Enrollment Services immediately. The Dean of Enrollment Services shall immediately take steps to lock the grade storage system entirely while an investigation is conducted.

If any student's grade record is found to have been changed without proper authorization, the District will notify 1) the student; 2) the instructor who originally awarded the grade; 3) any educational institution to which the student has transferred; 4) the accreditation agency; and 5) appropriate local law enforcement authorities.

Whenever a grade is changed for any reason, corrected transcripts will be sent to any educational institution to which a student has transferred.

Any student or employee who is found to have gained access to grade recording systems without proper authorization, or who is found to have changed any grade without proper authority to do so, shall be subject to discipline in accordance with District policies and procedures.

Any person who is found to have gained access to grade recording systems without proper authorization, or who is found to have changed any grade without proper authority to do so, shall be reported to the appropriate law enforcement agency having jurisdiction over the college where the incident occurred.

Also see BP 3310 Records Retention and Destruction and BP/AP 5040 Student Records.

Revised:
2/6/06
1/8/07
6/11/07
3/10/08
5/12/08
7/14/08
8/10/15
10/9/17

AP 4232 Pass/No Pass

Reference:
Title 5 Section 55022

Courses may be offered in either or both of the following categories:

- Courses in which all students are evaluated on a "pass/no pass" basis include credit courses that are not transferable or applicable to the associate degree and certificate programs. A current list of these courses is available in the college catalog.

- Courses in which each student may elect on registration, or up to the end of the second (2nd) week of classes for Spring/Fall and up to the end of the first (1st) week of classes for Summer/ Intersession, to take the course on a "pass/no pass" basis.

Courses in which the option of P/NP is available are indicated with an asterisk (*) before the title of the course in the class schedule and college catalog.

A student electing to be evaluated on the "pass/no pass" basis will receive both course credit and unit credit upon satisfactory completion of the course.

In computing a student's grade-point average, grades of "pass/no pass" are omitted.

A “P” grade is granted for performance that is equivalent to the letter grade of "C" or better. A student who fails to perform satisfactorily will be assigned a “NP” grade.

The student is held responsible for all assignments and examinations required in the course. The standards of evaluation are identical for all students in the course.

A maximum of twelve (12) P/NP units may be applied toward the fulfillment of requirements for the AA/AS degree. A maximum of six (6) P/NP units may be applied toward the requirements for a certificate.

A maximum of six (6) units per semester may be taken for P/NP.

Students are cautioned that other colleges and universities may restrict the acceptance of courses taken on a P/NP basis, especially for the satisfaction of general education and major requirements.

The P/NP option is elected by the student per the deadline specified in the academic calendar in the schedule of classes by submitting a P/NP form to the Office of Admissions

& Records.

The request for P/NP may not be reversed.

Also see BP/AP 4230 Grading and Academic Record Symbols and BP/AP 4231 Grade Changes.

Approved: 2/6/06
Revised: 3/10/08
Revised: 3/9/20

AP 4235 Credit for Prior Learning

Reference:

Education Code Section 79500,
66025.71, 66700, 70901, 70902
Title 5, Sections 55050, 55051,
55052 and 55052.5

Students may demonstrate proficiency in a course eligible for Credit for Prior Learning and receive college credit through the approved alternative methods for awarding credit listed below:

- Achievement of a satisfactory score on an Advanced Placement (AP) examination administered by the College Entrance Examination Board
- Achievement of a satisfactory score on the College Level Examination Program (CLEP)
- Achievement of a satisfactory score on a high-level ~~by~~ International Baccalaureate (IB) examination
- Evaluation of Joint Service Transcripts (JST)
- Achievement of an examination administered by other agencies approved by the district
- Evaluation of industry-recognized credential documentation
- Evaluation of student-created portfolios
- Satisfactory completion of an institutional examination, known as Credit by Examination, administered by the college in lieu of completion of an active course listed in the current college catalog

Determination of Eligibility for Credit for Prior Learning

- The student must be college and in good standing in the district
- The course is listed in the college catalog
- Antelope Valley College faculty have designated the course as one that may be challenged by examination
- The student must have previously earned credit or noncredit from the district or be currently registered in the district
- Current students must have an education plan on file
- The student is not currently enrolled in the course to be challenged
- Previously transcripted courses are ineligible
- Credit by Examination: The student is registered in the district and not currently enrolled in nor received credit for a more advanced course in the same subject (may

be waived by department).

- Credits acquired by examination are not applicable to meeting of such unit load requirements as Selective

Credits acquired by examination are not applicable to meeting of such unit load requirements as Selective Service deferment, Veteran's, or Social Security benefits.

Credits acquired by examination shall not be counted in determining the twelve (12) semester hours of credit in residence required for an Associate's degree.

Prior Learning Assessment Grading Policy

- Grading shall be according to the regular grading system in accordance with AP 4230 Grading and Academic Record Symbols
- Students shall be offered a "Pass/No Pass" option, in accordance with AP 4232 Pass/No Pass Grading Option, if that option is ordinarily available for the course
- Students shall be given the opportunity to accept, decline, or appeal the grade assigned by the faculty, and in cases of Credit by Examination, pursuant to AP 4230 Grading and Academic Record Symbols and AP 4231 Grade Changes

Transcription of Credit for Prior Learning

- The student's academic record shall be clearly annotated to reflect that credit was earned by assessment of prior learning

Advanced Placement

- See AP 4236 Advanced Placement Credit

International Baccalaureate

Students requesting Credit for Prior Learning using International Baccalaureate shall receive credit for completing a satisfactory score on a district-approved high-level International Baccalaureate (IB) examination under the following circumstances:

- Official IB transcripts must be on file in the Transcript Office
- The student achieved a minimum acceptable score on the IB examination as recommended by the district's IB equivalency guide

College Level Examination Program

Students requesting Credit for Prior Learning using the College Level Examination Program shall receive credit for completing a satisfactory score on a district-approved College Level Examination Program (CLEP) under the following circumstances:

- Official CLEP transcripts must be on file in the Transcript Office
- The student achieved a minimum acceptable score on the CLEP examination as recommended by the district's CLEP Equivalency Guide

Credit for Military Service/Training

Students interested in Credit for Prior Learning using Joint Service Transcripts shall receive credit as recommended by the American Council on Education (ACE) Directory and approved by the appropriate discipline faculty of the college under the following circumstances:

- The student shall complete the Credit for Prior Learning assessment petition available in the Counseling Office
- Official transcripts must be on file in the Transcript Office. These may include Joint Services Transcript (JST), Sailor/Marine American Council on Education Registry Transcript (SMART), and other approved Department of Defense (DOD) documentation.
- Credit course equivalency shall be determined by the faculty of the appropriate discipline

Industry Recognized Credentials

Students interested in Credit for Prior Learning using industry-recognized credential(s) shall receive credit as recommended by the appropriate department chair or faculty designee:

- The student shall complete the Credit for Prior Learning assessment petition available in the Counseling Office
- Enrollment services shall grant credit for industry-recognized credential(s) that have already been evaluated and approved by the appropriate department chair or faculty designee
- If an industry-recognized credential(s) has not yet been evaluated and approved by the appropriate faculty:
    - The student meets with the department chair or faculty designee to receive further instructions for industry-recognized credential(s) assessment
    - The student submits all industry-recognized credential documents to the department chair or faculty designee for assessment of prior learning
    - If the department chair or faculty designee determine the industry certification adequately measures mastery of the course content as set forth in the Course Outline of Record, the appropriate faculty shall sign the petition with the recorded grade, attach the industry-recognized credential(s), and forward the completed petition and supporting documents to the Vice President of Academic Affairs Office to be kept on file and recorded on the student transcript

Student-Created Portfolio Assessment

Students interested in Credit for Prior Learning using a student-created portfolio shall receive credit as recommended by the appropriate department chair or faculty designee under the following circumstances:

- A department-approved portfolio assessment rubric for the course is on file
- The student shall complete the Credit for Prior Learning assessment petition

available in the Counseling Office

- The student meets with the department chair or faculty designee to receive further instructions for the student-created portfolio assessment
- The student submits all portfolio documents to the department chair or faculty designee for assessment of prior learning
- If the department chair or faculty designee determines the student-created portfolio adequately measures mastery of the course content as set forth in the Course Outline of Record, the appropriate faculty shall sign the petition with the appropriate grade and forward it to the Admissions & Records Office to be kept on file and recorded on the student transcript

Credit by Examination from Within the District

The department chair or faculty designee shall determine whether or not a student requesting Credit by Examination is sufficiently well prepared to warrant being given this opportunity.
This determination is based upon a review of previous coursework and/or experience.

Students wishing to take a course through Credit by Examination are encouraged to informally discuss the matter with the department chair or faculty designee and instructor prior to initiating the formal process. All steps must be completed in the order listed or the Petition for Credit by Examination shall not be processed. The Petition for Credit by Examination must be completed prior to the end of the current semester or session.

The district will award college course credit for successful completion of a district examination administered by the appropriate departmental faculty under the following circumstances:

- Achievement of a grade that qualifies for Credit by Examination through the Career and Technical Education (CTE) Transitions program
- Credit by satisfactory completion of an examination administered by the district in lieu of completion of a course listed in the Antelope Valley College Catalog

The District Credit by Examination Process
In order to permit students to demonstrate that they have met the objectives of a course through experience in the workplace, foreign language proficiency, or some other process outside the conventional academic setting, students may earn credit by receiving a passing grade on an examination administered by the appropriate instructional department/ program. The completion of Credit by Examination may require the demonstration of other skills or the completion of assignments in addition to an examination.

Upon completion of an education plan, students interested in Credit for Prior Learning using Credit by
Examination shall receive credit as recommended by the appropriate department chair or faculty designee under the following circumstances:

The Credit by Examination Procedures

- Student shall complete the Credit for Prior Learning assessment petition available in Counseling.
- Student meets with the department chair or faculty designee further instructions for Credit by Examination
- If the department chair or faculty designee determine the Credit by Examination assessment measures mastery of the course content as set forth in the Course Outline of Record, the appropriate faculty shall sign the petition with the recorded grade and forward to the Admissions & Records Office to be kept on file and recorded on the student transcript. Completed exam materials must remain on file with the department/program for three years

Office of Primary Responsibility: Vice President of Academic Affairs

Also see BP 4235 Credit for Prior Learning and AP 4236 Advanced Placement Credit.

2/6/06
Revised: 4/14/08
Revised: 5/14/18
Revised: 2/13/23

AP 4236 Advanced Placement Credit

Reference:
Education Code Section 79500

Any student who passes a College Board Advanced Placement (AP) examination with a minimum score of three in a subject matter will be awarded credit in a general education area with a subject matter similar to that of the AP examination.

Course by Course equivalency for AP examination is determined by the appropriate discipline faculty and approved through the Academic Policies and Procedures Committee (AP&P).

For any AP examination that the District does not offer a course similar in content, the District will award credit in the General Education area shown on the California Community College General Education AP List. If there is no General Education area that fits the AP Examination, the District may award elective credit.

The District shall post its Advanced Placement Credit procedure on its Web site in the Antelope Valley College Catalog.

Approved: 5/14/18
Revised: 11/9/20

AP 4240 Academic Renewal

Reference:
Title 5, Section 55046

Academic renewal regulations "forgive" substandard grades earned based on the fact that the grades are no longer reflective of a student's present ability and level of performance.

Students may petition to have their academic record reviewed for academic renewal of substandard academic performance under the following conditions:

- Students must have achieved a grade point average of: twelve (12) semester units with at least a 3.0; or
- Eighteen (18) semester units with at least a 2.5; or
- Twenty-four (24) semester units with at least a 2.0; and
- At least twenty-four (24) months must have elapsed from the time the course work to be removed was completed.

Subsequent coursework may include coursework completed at other colleges/universities upon submission of an official transcript.

Up to thirty (30) units of course work may be eliminated from consideration in the cumulative grade point average.

Coursework must be consecutive to qualify for academic renewal.

Only "D" and "F" grades may be eliminated from the computation of the GPA under the academic renewal policy.

Specific courses and/or categories of courses that are exempt from academic renewal must be described. Academic renewal actions are irreversible. When academic renewal procedures permit previously recorded substandard coursework to be disregarded in the computation of a student's grade point average, the student's permanent academic record should contain an accurate record of all coursework to ensure a complete academic history.

Academic renewal procedures may not conflict with the District's obligation to retain and destroy records or with the instructor's ability to determine a student's final grade.

A student must complete a Request for Academic Renewal in the Admissions & Records

Office for consideration.

The Admissions & Records Office is the designated authority for the academic renewal process. No course will be removed from a student's academic record in the process of academic renewal.

Should a student transfer to another college, most colleges and universities will not accept another institution's academic forgiveness policies and will interpret and use coursework and grades as applied to their own unique policies and procedures.

Approved: 2/6/06
Revised: 4/14/08
Revised: 1/12/09
Revised: 10/12/09
Revised: 1/13/20

AP 4250 Probation

Reference:

Title 5, Section, 55031, 55032, 55033, 55034

Notification of Probation. Each student will be notified of his/her academic difficulty and the availability of college support services to respond to the academic difficulty before the student is dismissed. Notification will consist, at a minimum, of the following: At the end of the semester in which the student's grade point average falls below 2.0 in all units attempted, a notice that the student is on probation shall be sent to the student informing him/her that he/she is on academic probation. "All units attempted" is defined as all units of credit for which the student is enrolled at the community college that they attend. At the end of the third semester on which the student is on academic or progress probation, a notice that the student is subject to dismissal will be sent to the student informing him/her that he/she is subject to dismissal.

Probationary Letter. The letter notifying the student of probation will cover, at a minimum, the significance of being on probation and description of the services available.

Probation I:

A student who has attempted 12 units of AVC credit shall be placed on academic probation when the earned GPA in all units attempted at AVC is less than 2.0. A student shall be placed on progress probation if he or she has enrolled in at least 12 semester units and the percentage of all units attempted in which entries of "W," "I," "NC," and "NP" were recorded, reaches or exceeds fifty percent (50%).

A hold will be placed on the student's account preventing enrollment in the subsequent term. Units will be limited to ten (10) for the subsequent major semester and to four (4) units for Intersession and Summer. Per the discretion of the Dean of Counseling and Matriculation, exceptions may be allowed resulting in the increase of units to twelve (12) for a major semester. Students will be required to attend a PRIDE I Workshop prior to the beginning of the subsequent semester, generally conducted in January, February, May through August. The hold will be removed after the student completes a PRIDE I Workshop. Students will be required to meet with a Personal Responsibility in Developing Excellence (PRIDE) counselor prior to week eight (8) of the semester and must complete an online webinar/tutorial (i.e. Student Lingo) or Learning Center workshop by the eighth (8^{th}) week of the subsequent semester.

Probation II:

Students who do not meet the academic standard of Good Standing (2.0 GPA and 51% completion rate) at the end of the second semester of the probation process are placed on Probation II. A hold will be placed on the student's account preventing enrollment in the subsequent term. Students will lose priority registration for all subsequent semesters until a Good Standing is earned or an appeal is approved by the Dean of Enrollment Services or designee.

The students will be required to attend a PRIDE II Workshop, meet with a PRIDE counselor prior to the eighth (8th) of the semester, and must complete an online webinar/tutorial (i.e. Student Lingo) or Learning Center workshop by the eighth (8th) week of the subsequent semester.

Revised: 1/8/07
Revised: 12/10/07
Revised: 5/14/18

AP 4255 Dismissal and Readmission

References:

Title 5 Sections 55033 and 55034

Standards for Dismissal:

A student who is on academic probation shall be subject to dismissal if the student has earned a cumulative grade point average of less than 2.0 in all units attempted in each of three (3) consecutive semesters. A student who has been placed on progress probation shall be subject to dismissal, if the percentage of units in which entries of "W," "I," "NC," and "NP" are recorded in at least 3 consecutive semesters reaches or exceeds fifty percent (50%).

Students will be dis-enrolled if one of the following occurs: Student does not file an appeal within the allotted time; Student's appeal is denied. A hold will be placed on student's account preventing enrollment in the subsequent term. Dismissal students are ineligible to attend AVC for a minimum of one major semester. In addition, students will lose priority registration for all subsequent semesters until Good Standing is earned.

Dismissal Letter: The letter notifying the student that he/she is subject to dismissal will cover, at a minimum, reference to this procedure, explanation of what dismissal means, procedure for reinstatement, and the procedure to appeal the dismissal.

Appeal of Dismissal. The student has the right to appeal a proposed dismissal action, if the student feels that facts exist that warrant an exception to the dismissal action. The student must file the written petition of appeal with the Dean of Counseling and Matriculation. Appeals will be accepted after the initial dismissal letter has been emailed via the internal AVC email system. It is the student's responsibility to indicate on the petition a clear statement of the grounds on which continued enrollment should be granted and to provide evidence supporting the reasons. Petitions will be reviewed by the Dean of Counseling and Matriculation or by the Dismissal Appeals Committee.

The student will be continued on probation (dismissal) until the Dean of Counseling and Matriculation or the Dismissal Appeals Committee decides on the student's appeal.

The decision of the Dean of Counseling and Matriculation or the Dismissal Appeals Committee will be communicated to the student in writing within 30 days of receipt of the student's appeal. The student may appeal the decision of the Dean of Counseling and Matriculation in writing to the Vice President of Student Services within 10 working days of the date of notification of the decision of the Dean of Counseling and Matriculation or the Dismissal Appeals Committee. The decision of the Vice President of Student Services is final.

If the dismissal appeal is granted, the student will be continued on probation (dismissal) for an additional semester. At the end of the additional semester, the student's academic record will again be evaluated to determine whether the student earned Good Standing, should be dismissed, or should be continued on probation (dismissal).

Standards for Evaluating Appeals. Dismissal appeals may be granted under the following circumstances:

- If the dismissal determination is based on the academic record for one semester in which the record does not reflect the student's usual level of performance due to accident, illness, or other circumstances beyond the control of the student. Verification should be submitted with the appeal.
- The student enrolls in a corrective program designed to assist him/her in improving academic skills, such as obtaining academic counseling, and/or limiting course load.
- When there is evidence of significant improvement in academic achievement.

Re-Admission After Dismissal. Students will be required to attend a PRIDE III (Dismissal) Workshop.

The following will be considered in determining the number of units the student may be allowed to enroll in upon return:

- Grade point deficiency
- Documented extenuating circumstances (considered during appeal).
- Marked improvement between the semesters on which disqualification was based.
- Formal or informal educational experiences since completion of semesters on which disqualification was based.
- Improved GPA as a result of grade changes, fulfillment of incomplete courses, or academic renewal.

2/6/06
Revised: 1/8/07
Revised: 02/01/18
Revised: 5/14/18

AP 4260 Prerequisites, Co-requisites, Advisories, and Limitations on Enrollment

Reference:

Title 5, Sections 55000 et seq.

Prerequisites, co-requisites, advisories, and limitations are necessary to ensure that students succeed in their coursework and have access to the courses they require. It is important to have prerequisites in place where they are a vital factor in maintaining academic standards. It is also necessary to ensure that prerequisites, co-requisites, advisories, and limitations do not constitute unjustifiable obstacles to student access and success. Therefore, to foster the appropriate balance between these two concerns, the Education Code requires that prerequisites, co-requisites, advisories, and limitations be established based solely on content review.

Antelope Valley College establishes pre-requisites, co-requisites, advisories, and limitations on enrollment in accord with the California Community Colleges Model District Policy developed by the Chancellor's Task Force. The following procedures assure compliance with the Model District Policy.

1. Information in the Catalog and Schedule of Courses.

   The college shall provide the following explanations both in the college catalog and in the schedule of courses:

   A. Definitions of prerequisites, co-requisites, and limitations on enrollment including the differences among them and the specific prerequisites, co-requisites, and limitations on enrollment that have been established.

   B. Procedures for a student to challenge prerequisites, co-requisites, and limitations on enrollment and circumstances under which a student is encouraged to make such a challenge. The information about challenges must include, at a minimum, the specific process including any deadlines, the various types of challenge that are established in law, and any additional types of challenge permitted by the college.

   C. Definitions of advisories on recommended preparation, the right of a student to choose to take a course without meeting the advisory, and circumstances under which a student is encouraged to exercise that right.

   D. Definitions of contract course, co-requisite, noncredit basic skills course, non-degree applicable basic skills courses, prerequisite and satisfactory grade.

2. Challenge Process

   A. Any student who does not meet a prerequisite or co-requisite or who is not permitted to enroll due to a limitation on enrollment but who provides satisfactory evidence may seek entry into the course as follows:

      1. If space is available in a course when a student files a challenge to the prerequisite or co-requisite, the District shall reserve a seat for the student and resolve the challenge within five (5) working days. If the challenge is upheld or the District fails to resolve the challenge within the five (5) working-day period, the student shall be allowed to enroll in the course.

      2. If no space is available in the course when a challenge is filed, the challenge shall be resolved prior to the beginning of registration for the next term and, if the challenge is upheld, the student shall be permitted to enroll if space is available when the students registers for that subsequent term.

B. Grounds for challenge shall include the following:

1. Those grounds for challenge specified in Title 5, Section 55201(f).
2. The student seeks to enroll and has not been allowed to enroll due to a limitation on enrollment established for a course that involves intercollegiate competition or public performance, or one or more of the courses for which enrollment has been limited to a cohort of students. The student shall be allowed to enroll in such a course if otherwise he or she would be delayed by a semester or more in attaining the degree or certificate specified in his or her educational plan.
3. The student seeks to enroll in a course that has a prerequisite established to protect health and safety, and the student demonstrates that he or she does not pose a threat to himself or herself or others.
4. The student has the obligation to provide documented satisfactory evidence that the challenge should be upheld. However, where facts essential to a determination of whether the student's challenge should be upheld are or ought to be in the college's own records, then the college has the obligation to produce that information.

C. Curriculum Review Process
The curriculum review process shall at a minimum be in accordance with all of the following:

1. Establish a curriculum committee and its membership in a manner that is mutually agreeable to the college administration and the academic senate.
2. Establish prerequisites, co-requisites, and advisories on recommended preparation only upon the recommendation of the academic senate except that the academic senate may delegate this task to the curriculum committee without forfeiting its rights or responsibilities under Section 53200-53204 and within the limits set forth in Title 5 Section 55003. Certain limitations on enrollment must be established in the same manner.
3. Establish prerequisites, co-requisites, and advisories on recommended preparation, and limitations on enrollment only if:
    a) The faculty in the discipline or, if the college has no faculty member in the discipline, the faculty in the department do all of the following:
        (1) Approve the course; and,
        (2) As a separate action, approve any prerequisite or co-requisite, only if:
            (a) The prerequisite or co-requisite is an appropriate and rational measure of a student's readiness to enter the course or program as demonstrated by a content review including, at a minimum, all of the following:
                (i) involvement of faculty with appropriate expertise;
                (ii) consideration of course objectives set by relevant department(s). The curriculum review process should be done in a manner that is in accordance with accreditation standards.
                (iii) be based on a detailed course syllabus and outline of record, tests, related instructional materials, course format, type and number of examinations, and grading criteria;
                (iv) specification of the body of knowledge and/or skills which are deemed necessary at entry and/or concurrent with enrollment;

(v) identification and review of the prerequisite or co-requisite which develops the body of knowledge and/or measures skills identified under iv.

(vi) matching of the knowledge and skills in the targeted course (identified under iv.) and those developed or measured by the prerequisite or co-requisite (i.e., the course or assessment identified under v.); and

(vii) maintain documentation that the above steps were taken.

(3) Approve any limitation on enrollment that is being established for an honors course or section, for a course that includes intercollegiate competition or public performance, or so that a cohort of students will be enrolled in two or more courses, and, in a separate action, specify which.

(4) Approve that the course meets the academic standards required for degree applicable courses, non-degree applicable courses, non-credit courses, or community service respectively.

(5) Review the course outline to determine if a student would be highly unlikely to receive a satisfactory grade unless the student had knowledge or skills not taught in the course. If the student would need knowledge or skills not taught in the course itself, then the course may be approved for degree applicable credit only if all requirements for establishing the appropriate prerequisite have been met excepting only approval by the curriculum committee.

(6) Review the course outline to determine whether receiving a satisfactory grade is dependent on skills in communication or computation. If receiving a satisfactory grade is sufficiently dependent on such skills, then the course may be approved for degree applicable credit only if all requirements have been met for establishing a prerequisite or co-requisite of not less than eligibility for enrollment to a degree-applicable course in English or mathematics, respectively.

b) A course which should have a prerequisite or co-requisite as provided in (5) or (6) but for which one or more of the requirements for establishing a prerequisite have not been met may only:

(1) Be reviewed and approved pursuant to the standards for non-degree applicable credit, non-credit, or community service; or

(2) Be revised and reviewed as required to meet the criteria for establishing the necessary prerequisites or co-requisites.

c) The curriculum committee also reviews the course and prerequisite in a manner that meets each of the requirements specified above.

4. Program Review. As a regular part of the program review process or at least every six years, except that the prerequisites and co-requisites for vocational courses or programs shall be reviewed every two years, the college shall review each prerequisite, co-requisite, or advisory to establish that each is still supported by the faculty in the discipline or department and by the curriculum committee and is still in compliance with all other provisions of this policy and with the law. Any prerequisite or co-requisite that is still supported shall be reviewed promptly thereafter to assure that it is in compliance with all other provisions of this policy and with the law.

5. Implementing Prerequisites, Co-requisites, and Limitations on Enrollment. Implementation of prerequisites, co-requisites, and limitations on enrollment must be done in a consistent manner and not left exclusively to the classroom instructor. Every attempt shall be made to enforce all conditions a student must meet to be enrolled in the course through the

registration process so that a student is not permitted to enroll unless he or she has met all the conditions or has met all except those for which he or she has a pending challenge or for which further information is needed before final determination is possible of whether the student has met the condition.

6. Instructor's Formal Agreement to Teach the Course as Described. Each college shall establish a procedure so that courses for which prerequisites or co-requisites are established will be taught in accordance with the course outline, particularly those aspects of the course outline that are the basis for justifying the establishment of the prerequisite or co-requisite. The process shall be established by consulting collegially with the local academic senate and, if appropriate, the local bargaining unit.

Review of Individual Courses:

If the student's enrollment in a course or program is to be contingent on his or her having met the proposed prerequisite(s) or co-requisite(s), then such a prerequisite or co-requisite must be established as follows. If enrollment is not blocked, then what is being established is not a prerequisite or co-requisite but, rather, an advisory on recommended preparation and must be identified as such in the schedule and catalog. Establishing advisories does not require all the following steps.

1. Advisories on Recommended Preparation. The college may recommend that a student meet a standard of readiness at entry only if recommended by the faculty in the discipline or department and by the curriculum committee as provided in above. This process is required whether the college used to describe such recommendations in its catalog or schedule as "prerequisites," or "recommended," or by any other term.
2. Limitations on Enrollment. The types of limitation on enrollment specified below may only be established through the curriculum review process by the discipline or department faculty and the curriculum committee specified above including the requirement to review them again at least every six years; for example, as part of program review. The following requirements must also be met in order to establish these particular limitations on enrollment.

   A. Performance Courses. The college may establish audition or try-out as a limitation on enrollment for courses that include public performance or intercollegiate competition such as but not limited to band, orchestra, theater, competitive speech, chorus, journalism, dance, and intercollegiate athletics provided that:

      1. For any certificate or associate degree requirement which can be met by taking this course, there is another course or courses which satisfy the same requirement; and
      2. The college includes in the course outline of record a list of each certificate or associate degree requirement that the course meets and of the other course or courses which meet the same requirement.

   Limitations on enrollment established as provided for performance courses shall be reviewed during program review or at least every six years to determine whether the audition or try-out process is having a disproportionate impact on any historically under-represented group and, if so, a plan shall be adopted to seek to remedy the disproportionate impact. If disproportionate impact has been found, the limitation on enrollment may not be printed in subsequent catalogs or schedules nor enforced in any subsequent term until such a plan has been endorsed by the department and the college administration and put into effect.

   Honors Courses. A limitation on enrollment for an honors course or an honors section of a course may be established if, in addition to the review by the faculty in the discipline or department and by the curriculum committee as provided above, there is another section or another course or courses at the college which satisfy the same requirements. If the limitation

is for an honors course and not only for an honors section, the college must also include in the course outline of record a list of each certificate or associate degree requirement that the course meets and of the other course or courses which meet the same associate degree or certificate requirement.

B. Blocks of Courses or Sections. Blocks of courses or blocks of sections of courses are two or more courses or sections for which enrollment is limited in order to create a cohort of students. Such a limitation on enrollment may be established if, in addition to review by the faculty in the discipline or department and by the curriculum committee as provided above, there is another section or another course or courses that satisfy the same requirement. If the cohort is created through limitations on enrollment in the courses rather than limitations on specific sections of courses, then the college must include in the course outline of record a list of each certificate or associate degree requirement that the course meets and of the other course or courses which satisfy the same associate degree or certificate requirement.

2/6/06
Revised: 3/10/08
Revised: 5/14/12

AP 4300 Field Trips and Excursions

Reference:

Title 5, Section 55450

The District may conduct field trips and excursions in connection with courses of instruction or college-related social, educational, cultural, athletic or musical activities to and from places in California, or any other state, the District of Columbia, or a foreign country for students.

The District shall engage instructors, supervisors, and other personnel as may be necessary for such excursions or field trips who desire to contribute their services over and above the normal period for which they are employed by the District.

The District shall, at the discretion of the Vice President of Business Services, transport students, instructors, supervisors or other personnel by use of District equipment, contract to provide transportation, or arrange transportation by the use of other equipment.

When District equipment is used, the District shall obtain liability insurance, and if travel is to and from a foreign country, the liability insurance shall be secured from a carrier licensed to transact insurance business in the foreign country.

The District may pay expenses of instructors, chaperons and other personnel participating in a field trip or excursion. Payment shall be by way of itemized reimbursement in a form prescribed by the Vice President or Business Services. The District shall not pay expenses of students participating in a field trip or excursion to any other state, the District of Columbia, or a foreign country with District funds, unless funded by the Associated Student Organization or student club or organization.

All persons making a field trip or excursion shall be deemed to have waived all claims against the District for injury, accident, illness, or death occurring during or by reason of the field trip or excursion. All adults taking such trips and all parents or guardians of minor students shall sign a statement waiving such claims.

2/6/06
Revised: 1/8/07

AP 4400 Community Services

Reference:

Education Code Section 78300 et seq; Title 5, Sections 55002, 55160(b)

Community Services offerings originate from community needs and interests and are developed in consultation with the Community Services Office.

Community Services offerings are:

- designed to provide instruction that contributes to the personal, physical, mental, ethical, economic, or civic development of the individuals or groups enrolled in them.
- open for the admission of adults and of those minors who, in the judgment of the governing board, may profit.

General fund moneys are not expended to establish and maintain community service offerings.

Students enrolled in community service offerings may be charged a fee not to exceed the cost of maintaining community service offerings, or offerings may be provided for remuneration by contract, or with contributions or donations of individuals or groups.

The AP&P Committee must approve Community Services offerings.

2/6/06
Revised: 3/10/08

AP 4500 News Media

Philosophy:

College news media are any news/feature publications issued under the name of the college, funded by the District, and produced by students as an integral part of instruction in Journalism. It may include, but is not limited to, student newspaper reporting, broadcast news journalism and internet news journalism. The term "editorial" refers to all content other than advertising.

College news media, as laboratory publications of the Journalism curriculum, shall provide vehicles to train students for careers in mass communication. College news media shall also serve the entire college community by reporting the news, including college events and activities, providing a forum for comment and criticism, and encouraging free expression as guaranteed in the First Amendment to the Constitution of the United States.

College news media are valuable aids in establishing and maintaining an atmosphere of free and responsible discussion. College news media shall exercise editorial freedom in order to maintain their integrity as vehicles for free inquiry and free expression in the college community. At the same time, the editorial freedom of the college news media shall entail corollary responsibilities.

Each college newspaper or other news medium is published as a learning experience, offered under the Journalism program. The editorial and advertising materials published in each news medium, including any opinions expressed, are the responsibility of the student staff. An editorial board should be formed for the news media involved. Under appropriate state and federal court decisions, these materials are free from prior restraint by virtue of the First Amendment to the United States Constitution. These procedures are adopted so as to encourage a responsible exercise of such freedom.

Journalism Grievance Procedures:

Definition of a Grievance. A grievance is a complaint that alleges facts which, if true, would demonstrate a violation of the grievant's right to free inquiry, free speech, or fair treatment; contains allegations that appear to be substantially credible; and is not frivolous.

Refer to AP 5530 Student Rights and Grievances for procedures on how to file a complaint.

2/6/06

AP 5011 Admission and Concurrent Enrollment of High School and Other Young Students

References:

Education Code Sections 48800, 48800.5, 76001, 76002, and 76004

Admission Criteria and Procedures for Younger Students Special Admission Packets
Special full-time and part-time students as defined in BP 5010 Admission and Concurrent Enrollment are required to complete a special admit enrollment packet consisting of an admission application, special admit authorization form, and information pertaining to the guidelines and requirements for special admit students.

Summer-school students as defined in BP 5010 Admission and Concurrent Enrollment are required to complete a special admit enrollment packet consisting of an admission application, special admit authorization form, and information pertaining to the guidelines and requirements for special admit students.

Special Part-time Student Admission
To be considered for admittance as a special part-time student, the student must meet the eligibility standards as established in Education Code Sections 48800 and 76001.

All part-time special admission students taking courses at Antelope Valley College shall have their enrollment fees waived. All special admission students admitted as fulltime students will be assessed enrollment fees. Full-time special admit students may be considered for a Promise Grant Fee Waiver. Admission is subject to seat availability. The student must submit:

- district application for admission;
- written and signed parental or guardian consent;
- written and signed approval of his/ ~~or~~ her principal (**Note:** a parent or guardian of a pupil who is not enrolled in a public or private school may petition directly without the signature of a principal.);
- documentation to demonstrate that the student is capable of profiting from instruction. The Dean of Counseling and Matriculation has the authority to make the final decision whether a student can benefit from instruction.

Special Full-time Student Admission
To be considered for admission as a special full-time student, the student must meet the eligibility standards as established in Education Code Section 48800.05.

Admission is subject to seat availability. The student must submit:

- district application for admission;
- written and signed parental or guardian consent;
- written and signed acknowledgment of his/ ~~or~~ her principal. (**Note:** a pupil who is not enrolled in a public or private school does not need to provide written acknowledgment from his/her school principal.);
- documentation to demonstrate that the student is capable of profiting from instruction;
- written approval of the governing board of the school district of attendance. The Dean of Counseling and Matriculation has the authority to make the final decision whether a student can benefit from instruction.

Special Summer Session Student Admission
To be considered for admission as a special summer session student, the student must meet the eligibility standards as established in Education Code Sections 48800 and 76001. Students will not be admitted unless they have availed themselves of all opportunities to enroll in equivalent courses at their school of attendance.

The student must submit:

- written and signed parental or guardian consent;
- written and signed approval of his/ ~~or~~ her principal that the student has availed himself/herself of all opportunities to enroll in an equivalent course at his/ ~~or~~ her school of attendance; and
- documentation to demonstrate that the student has adequate preparation in the disciplines to be studied.

All required documents shall be sent to the Dean of Enrollment Services~~)~~.

High School Student Admission
For students attending high school, the Admissions & Records Office will review the materials and determine if the student has the abilities and sufficient preparation to benefit from instruction at a community college. The decision of the Dean of Counseling and Matriculation shall be final. This determination may be made by applying one or more of the following criteria:

- a review of the materials submitted by the student;
- meeting with the student and his/ ~~or~~ her parent or guardian;
- consultation with College Counselors;
- consideration of the welfare and safety of the student and others; and/or
- consideration of local, state, and/or federal laws.

Special admit students who are fifteen (15) years of age and/or have completed the eighth (8^{th}) grade may be eligible to take PE courses.

Middle and Lower School Student Admission
For students attending middle and lower schools, the admission determination shall be made by Dean of Counseling and Matriculation. The school must provide transcripts and a letter signed by the principal indicating how in his/ ~~or~~ her opinion the student can benefit from instruction. The Dean of Counseling and Matriculation will determine if the student has the abilities and sufficient preparation to benefit from instruction at a community college, and that the student's safety and that of others will not be affected. The decision of the Dean of Counseling and Matriculation shall be final. Once a decision has been made, the student, his/ ~~or~~ her parent or guardian and the school principal shall be informed of the decision. This determination may be made by applying one or more of the following criteria:

- a review of the materials submitted by the student;
- meeting with the student and his/ ~~or~~ her parent or guardian;
- consultation with Dean of Counseling and Matriculation;
- consideration of the welfare and safety of the student and others;
- consideration of local, state, and/or federal laws;
- review of the content of the class in terms of sensitivity and possible effects on the minor;
- requirements for supervision of the minor; and/or
- times the class(es) meet and the effect on the safety of the minor.

Other Special Admission Regulations
Students will not be admitted unless they have availed themselves of all opportunities to enroll in equivalent courses at their schools of attendance. Courses in which high school and other young students are permitted to enroll will be open to the entire college population (with the exception of Dual Enrollment courses), and will be taught with the rigor appropriate to college-level courses in accordance with the approved course outline. Enrollment priority status for special admission students is conducted in accordance with AP 5500 Standards of Student Conduct. Special admission students begin registration during the open registration period.

Records of enrollment of these students for apportionment purposes will be maintained in the Admissions & Records Office. All claims for state apportionment for K-12 students must meet all of the following criteria; the class is open to the general public and is advertised in one or more of the following:

- The college catalog
- The regular schedule of classes
- An addenda to the catalog or schedule

If the decision to offer a class on a high school campus is made after publication of the district's regular schedule of classes, and the class is only advertised to the general public through electronic media, the class must be advertised for a minimum of thirty (30)

continuous days prior to the first meeting of the class.

With the exception of Dual Enrollment courses, if the class is offered on a high school campus, the class may not be held during the time the campus is closed to the general public, as defined by the school board.

If the class is a physical education class, no more than 10 percent (10%) of the enrollment of the class may consist of special part-time or full-time students.

ALL concurrent students will receive college credit for completed courses.

If a request for special part-time or full-time enrollment is denied for a pupil who has been identified as highly gifted, the Board of Trustees shall provide written findings and reasons for the denial within sixty (60) days. A recommendation regarding the request for admission, and the denial, shall be submitted to the Board of Trustees at a regularly scheduled meeting that falls at least thirty (30) days after the request for admission has been submitted.

College and Career Access Pathways (CCAP)
The governing board has adopted all the legal requirements of Education Code Section 76004 in order to participate in the College and Career Access Pathways (CCAP) partnership with the governing board of a school district for the purpose of offering or expanding dual enrollment opportunities for students who may not already be college bound or who are underrepresented in higher education, with the goal of developing seamless pathways from high school to community college for career technical education or preparation for transfer, improving high school graduation rates, or helping high school pupils achieve college and career readiness.

The District may enter into a CCAP partnership with a school district partner that is governed by a CCAP partnership agreement approved by the governing boards of both districts. As a condition of, and before adopting, a CCAP partnership agreement, the governing board of each district, at an open public meeting of that board, shall present the dual enrollment partnership agreement as an informational item. The governing board of each district, at a subsequent open public meeting of that board, shall take comments from the public and approve or disapprove the proposed agreement.

The CCAP partnership agreement shall be filed with the office of the Chancellor of the California Community Colleges and with the department before the start of the CCAP partnership, and shall:

- outline the terms of the CCAP partnership and shall include, but not necessarily be limited to, the total number of high school students to be served and the total number of full-time equivalent students projected to be claimed by the community college district for those students; the scope, nature, time, location, and listing of community college courses to be offered; and criteria to assess the ability of pupils to benefit from those courses.

- establish protocols for information sharing, in compliance with all applicable state and federal privacy laws, joint facilities use, and parental consent for high school pupils to enroll in community college courses.
- identify a point of contact for the participating community college district and school district partner.
- certify that any community college instructor teaching a course on a high school campus has not been convicted of any sex offense as defined in Education Code Section 87010 or any controlled substance offense as defined in Education Code Section 87011.
- certify that any community college instructor teaching a course at the partnering high school campus has not displaced or resulted in the termination of an existing high school teacher teaching the same course on that high school campus.
- certify that a qualified high school teacher teaching a course offered for college credit at a high school campus has not displaced or resulted in the termination of an existing community college faculty member teaching the same course at the partnering community college campus.
- include a certification by the participating community college district of all of the following:
    - A community college course offered for college credit at the partnering high school campus does not reduce access to the same course offered at the partnering community college campus;
    - A community college course that is oversubscribed or has a waiting list shall not be offered in the CCAP partnership; and
    - Participation in a CCAP partnership is consistent with the core mission of the community colleges pursuant to Education Code Section 66010.4, and that pupils participating in a CCAP partnership will not lead to enrollment displacement of otherwise eligible adults in the community college.
- certify that both the school district and community college district partners comply with local collective bargaining agreements and all state and federal reporting requirements regarding the qualifications of the teacher or faculty member teaching a CCAP partnership course offered for high school credit.
- specify both of the following:
    - Which participating district will be the employer of record for purposes of assignment monitoring and reporting to the county office of education; and
    - Which participating district will assume reporting responsibilities pursuant to applicable federal teacher quality mandates.
- certify that any remedial course taught by community college faculty at a partnering high school campus shall be offered only to high school students who do not meet their grade level standard in math, English, or both on an interim assessment in grade 10 or 11, as determined by the partnering school district, and shall involve a collaborative effort between high school and community college faculty to deliver an innovative remediation course as an intervention in the student's junior or senior year to ensure the student is prepared for college-level work upon graduation.

A community college district participating in a CCAP partnership shall not provide physical education course opportunities to high school pupils or any other course opportunities that do not assist in the attainment of at least one of the following goals:

- developing seamless pathways from high school to community college for career technical education or preparation for transfer;
- improving high school graduation rates; or
- helping high school pupils achieve college and career readiness.

The District will not enter into a CCAP partnership with a school district within the service area of another community college district, except where an agreement exists, or is established, between those community college districts authorizing that CCAP partnership.

A high school pupil enrolled in a course offered through a CCAP partnership shall not be assessed any fee that is prohibited by Education Code Section 49011.

The District may assign priority for enrollment and course registration to a pupil seeking to enroll in a community college course that is required for the pupil's CCAP partnership program that is equivalent to the priority assigned to a pupil attending a middle college high school as described in Education Code Section 11300 and consistent with middle college high school provisions in Education Code Section 76001.

The District may limit enrollment in a community college course solely to eligible high school students if the course is offered at a high school campus during the regular school day and the community college course is offered pursuant to a CCAP partnership agreement.

The District may allow a special part-time student participating in a CCAP partnership agreement established pursuant to this article to enroll in up to a maximum of 15 units per term if all of the following circumstances are satisfied:

- The units constitute no more than four community college courses per term;
- The units are part of an academic program that is part of a CCAP partnership agreement established pursuant to this article; and
- The units are part of an academic program that is designed to award students both a high school diploma and an associate degree or a certificate or credential.

The governing board of the District exempts special part-time students from the following fee requirements:

- Student representation fee (Education Code Section 76060.5)
- Nonresident tuition fee and corresponding permissible capital outlay fee and/or processing fee (Education Code Section 76140)
- Transcript fees (Education Code Section 76223)
- Course enrollment fees (Education Code Section 76300)
- Apprenticeship course fees (Education Code Section 76350)

- Child development center fees (Education Code Section 79121)

The District shall not receive a state allowance or apportionment for an instructional activity for which the partnering district has been, or shall be, paid an allowance or apportionment.

The attendance of a high school pupil at a community college as a special part-time or full-time student pursuant to this section is authorized attendance for which the community college shall be credited or reimbursed pursuant to Education Code Section 48802 or 76002, provided that no school district has received reimbursement for the same instructional activity.

For each CCAP partnership agreement entered into pursuant to this section, the district shall report annually to the office of the Chancellor of the California Community Colleges, the Legislature, the Director of Finance, and the Superintendent all of the following information:

- The total number of high school pupils by school site enrolled in each CCAP partnership, aggregated by gender and ethnicity, and reported in compliance with all applicable state and federal privacy laws.
- The total number of community college courses by course category and type and by school site enrolled in by CCAP partnership participants.
- The total number and percentage of successful course completions, by course category and type and by school site, of CCAP partnership participants.
- The total number of full-time equivalent students generated by CCAP partnership community college district participants.

Also see BP 5010 Admission and Concurrent Enrollment, AP 5010 Admissions, AP 5012 International Students, AP 5013 Students in the Military, BP/AP 5020 Nonresident Tuition, BP/AP 5052 Open Enrollment, BP/AP 5055 Enrollment Priorities, and BP/AP 4226 Multiple and Overlapping Enrollments.

Approved: 2/6/06
Revised: 5/6/06
Revised: 10/8/18
Revised: 12/9/19

AP 5012 International Students

References:

Education Code Sections 76141 and 76142;
Title 5 Section 54045;
Title 8 U.S. Code Sections 1101 et seq.

International Student Admission Requirements and Procedures

The International Student application process includes submission of appropriate visa information from the country of residence, including INS forms, application for admission, student information form, high school diploma, official high school transcripts with notarized English translation, original letter of reference on letterhead, birth certificate or valid passport with recent photograph, notarized affidavit of financial support, notarized affidavit of sponsor, notarized affidavit of sponsor for free room and board, copy of deed lease agreement or rental agreement of property, and a medical insurance policy in English.

Students who will be attending pursuant to an F-1 visa, must submit all of the same paperwork required for the International Student application process stated above in order to substantiate issuance by the District of form I-20.

International Students must have a TOEFL (Test of English as a Foreign Language) score (minimum 133 on computer-based test or 450 if paper test), if applicable. Other assessments may satisfy this requirement such as:

- IELTS (The International English Language Testing System) with a score of 5.0 or satisfactory SAT/ ACT
- Other assessments results must be equal to or greater than the TOEFL or iLELTS requirement.

Residence determination includes review of whether student holds a visa that requires the student to have a residence outside of the U.S., or entered the U.S. under a visa that permits entry solely for a temporary purpose.

International Students are eligible for exemptions from nonresident tuition as authorized by Education Code Section 76140 subdivision (a)(2) for financial need.

Nonresident tuition fees applicable to non-citizens who have not or cannot establish residence are determined by calculating an amount not to exceed the amount expended by the District for capital outlay in the preceding fiscal year divided by the total full-time equivalent students. This fee cannot exceed fifty (50) percent of the nonresident tuition charged other nonresidents.

Also see BP 5010 Admission and Concurrent Enrollment, AP 5010 Admissions, AP 5011

Admission and Concurrent Enrollment of High School and Other Young Students, AP 5013 Students in the Military, BP/AP 5015 Residence Determination, and BP/AP 5020 Nonresident Tuition.

Approved: 2/6/06
Revised: 4/8/19
Revised: 10/14/19

AP 5013 Students in the Military

References:

Education Code Sections 68074, 68075, 68075.5, and 68075.7;
Title 5 Sections 55023, 55024, 54041, 54042, 54050, and 58620**;**
Military and Veterans Code Section 824;
38 U.S. Code Section 3679

Residence Determinations for Military Personnel and Dependents

A student who is a member of the armed forces of the United States stationed in California, except a member of the armed forces assigned for educational purposes to a state-supported institution of higher education, is entitled to resident classification. Such student shall retain resident classification in the event that the member of the armed forces is thereafter transferred on military orders to a place outside of California or thereafter retires from active duty, so long as the student remains continuously enrolled in the District.

An undergraduate student who is a natural or adopted child, stepchild, or spouse who is a dependent of a member of the armed forces of the United States stationed in this state on active duty and is in attendance at, or has been admitted to, the District shall be entitled to resident classification. Such student shall retain resident classification if he/she is thereafter transferred on military orders to a place outside of California, so long as the student remains continuously enrolled in the District.

A veteran who was discharged or released from at least ninety (90) days of active service less than three (3) years before the date of enrollment in a course commencing on or after July 1, 2015, and his/her dependents, regardless of the veteran's state of residence is entitled to resident classification.

An individual who is the child or spouse of a person who, on or after September 11, 2001, died in the line of duty while serving on active duty as a member of the Armed Forces who resides in California is entitled to resident classification.

An individual who is entitled to transferred Post-9/11 GI Bill program benefits by virtue of their relationship to a member of the uniformed services who is serving on active duty is entitled to resident classification.

A parent who is a federal civil service employee and his or her natural or adopted dependent children are entitled to resident classification if the parent has moved to this state as a result of a military mission realignment action that involves the relocation of at least one hundred (100) employees. This classification shall continue until the student is entitled to be classified as a resident, so long as the student continuously attends an institution of public higher education.

A student claiming the residence classifications provided for in this procedure must provide a statement from the student's commanding officer or personnel officer providing evidence of the date of the assignment to California, and that the assignment to active duty in California is not for educational purposes. A student claiming the residence classifications provided for here for the dependent of military personnel shall provide a statement from the military person's commanding officer or personnel officer that the military person's duty station is in California on active duty as of the residence determination date, or has been transferred outside of California on active duty after the residence determination date, or that the military person has retired from active duty after the residence determination date. (Title 5, Sections 54041 and 54042)

Withdrawal Policies for Members of the Military

A student who is a member of an active or reserve United States military service and who receives orders compelling a withdrawal from courses shall be permitted to withdraw upon verification of such orders. A withdrawal symbol may be assigned which may be a "W" or a "MW." Military withdrawal shall not be counted in progress probation, dismissal calculations, or in calculating the permitted number of withdrawals. In no case may a military withdrawal result in a student being assigned an "FW" grade. In no case may a college require a student who is required to report for military duty to withdraw from a course by a specified date in order to receive a full refund of the tuition and fees the student paid to the college for the academic term in which the student was required to report for military service.

Approved: 2/6/06
Revised: 1/8/07
Revised: 12/10/07
Revised: 5/14/12
Revised: 1/8/18
Revised: 12/9/19

AP 5015 Residence Determination

References:

Education Code Sections 68000 et seq., 68130.5, 68074-68075.7, and 68086;
Title 5, Sections 54000 et seq;
38 U.S. Code Section 3679

Residence Classification.

Residency classifications shall be determined for each student at the time of each registration and whenever a student has not been in attendance for more than one (1) semester. Residence classifications are to be made in accordance with the following provisions:

- A residence determination date is that day immediately preceding the opening day of instruction for any session during which the student proposes to attend.

- Residence classification is the responsibility of the Admissions & Records Office.

Students must be notified of residence determination within fourteen (14) calendar days of submission of application.

A student seeking to enroll exclusively in career development and college preparation courses, and other courses for which no credit is given, shall not be subject to this residency classification requirement.

The District shall publish the residence determination date and summary of the rules and regulations governing residence determination and classification in the District catalog or addenda thereto.

Rules Determining Residence

- A student who has resided in the state for more than one (1) year immediately preceding the residence determination date is a resident.

- A student who has not resided in the state for more than one (1) year immediately preceding the residence determination date is a nonresident.

The residence of each student enrolled in or applying for enrollment in any class or classes maintained by this District shall be determined in accordance with the Education Code which states that every person has, in law, a residence. In determining the place of residence, the following rules are to be observed:

- Every person who is married or eighteen (18) years of age, or older, and under no legal disability to do so, may establish residence.

- A person may have only one (1) residence.

- A residence is the place where one remains when not called elsewhere for labor or other special or temporary purpose and to which one returns in seasons of repose.

- A residence cannot be lost until another is gained.

- The residence can be changed only by the union of act and intent.

- A man or a woman may establish his/ ~~or~~ her residence. A woman's residence shall not be derivative from that of her husband.

- The residence of the parent with whom an unmarried minor child maintains his/her place of abode is the residence of the unmarried minor child. When the minor lives with neither parent, the minor's residence is that of the parent with whom the last place of abode was maintained, provided the minor may establish his/her residence when both parents are deceased and a legal guardian has not been appointed.

- The residence of an unmarried minor who has a parent living cannot be changed by the minor's own act, by the appointment of a legal guardian, or by relinquishment of a parent's right of control.

Determination of Resident Status

A resident is a student who has been a bona fide resident of the state for one (1) year prior to the residence determination date. A bona fide resident is a person whose residence is in California as determined above except:

- A student who is a minor and remains in this state after the parent, who was previously domiciled in California and has established residence elsewhere, shall be entitled to retain resident classification until attaining the age of majority and has resided in the state the minimum time necessary to become a resident, so long as continuous attendance is maintained at an institution.

- A student who is a minor and who provides evidence of being entirely self-supporting and actually present in California for more than one (1) year immediately preceding the residence determination date with the intention of acquiring a residence therein, shall be entitled resident classification until he/ ~~or~~ she has resided in the state the minimum time necessary to become a resident.

- A student who has not been an adult for one (1) year immediately preceding the residence determination date for the semester for which the student proposes to attend an institution shall have the immediate pre-majority-derived California residence, if any, added to the post-majority residence to obtain the one (1) year of California residence.

- A student holding a valid credential authorizing service in the public schools of this state, who is employed by a school District in a full-time position requiring certification qualifications for the college year in which the student enrolls in an institution, shall be entitled to resident classification if each student meets any of the following requirements:

    - He/she holds a provisional credential and is enrolled in courses necessary to obtain another type of credential authorizing service in the public schools.

    - He/she holds a credential issued pursuant to Education Code Section 44250 and is enrolled in courses necessary to fulfill credential requirements.

    - He/she is enrolled in courses necessary to fulfill the requirements for a fifth (5^{th}) year of education prescribed by subdivision (b) of Education Code Section 44259.

    - A student holding a valid emergency permit authorizing service in the public schools of this state, who is employed by a school district in a full-time position requiring certification qualifications for the academic year in which the student enrolls at an institution in courses necessary to fulfill teacher credential requirements, is entitled to resident classification only for the purpose of determining the amount of tuition and fees for no more than one (1) year. Thereafter, the student's residency status will be determined under the other provisions of this procedure.

- A student who is a full-time employee of the California State University, the University of California or a community college, or of any state agency or a student who is a child or spouse of a full-time employee of the California State University, the University of California or a community college, or of any state agency may be entitled to resident classification, until the student has resided in the state the minimum time necessary to become a resident.

- A student who is a natural or adopted child, stepchild, or spouse who is a dependent of a member of the armed forces of the United States stationed in this state on active duty and is attendance at, or has been admitted to the District shall be entitled to resident classification. If the member of the armed forces of the United States later transfers on military orders to a place outside this state, or retires as an active

member of the armed forces of the United States, the student dependent shall not lose his/ ~~or~~ her resident classification so long as he/ ~~or~~ she remains continuously enrolled in the District.

- A student who is a member of the armed forces of the United States stationed in this state, except a member of the Armed Forces assigned for educational purposes to a state- supported institution of higher education, is entitled to resident classification only for the purpose of determining the amount of tuition and fees. If the student later transfers on military orders to a place outside this state, the student shall not lose his/her resident classification, so long as he/she remains continuously enrolled in the District.

- A veteran who was discharged or released from at least ninety (90) days of active service less than three (3) years before the date of enrollment in a course commencing on or after July 1, 2015, and his/her dependents, regardless of the veteran's state of residence is entitled to resident classification.

- An individual who is the child or spouse of a person who, on or after September 11, 2001, died in the line of duty while serving on active duty as a member of the Armed Forces who resides in California.

- An individual who is entitled to transferred Post-9/11 GI Bill program benefits by virtue of their relationship to a member of the uniformed services who is serving on active duty.

- A student who is a minor and resides with his/her parent in a district or territory not in a district shall be entitled to resident classification, provided that the parent has been domiciled in California for more than one (1) year prior to the residence determination date for the semester, quarter or term for which the student proposes to attend.

- A student who is a Native American is entitled to resident classification for attendance at a community college if the student is also attending a school administered by the Bureau of Indian Affairs located within the community college district.

- A student who is a federal civil service employee and his/ ~~or~~ her natural or adopted dependent children are entitled to resident classification if the parent has moved to this state as a result of a military mission realignment action that involves the relocation of at least one hundred (100) employees. This classification shall continue until the student is entitled to be classified as a resident, so long as the student continuously attends an institution of public higher education.

- A student who resides in California and is nineteen (19) years of age or under at the time of enrollment, who is currently a dependent or ward of the state through California's child welfare system, or was served by California's child welfare system and is no longer being served either due to emancipation or aging out of the system, may be entitled to resident classification until he/ ~~or~~ she has resided in the state the minimum time necessary to become a resident.

- A student who lives with a parent who earns a livelihood primarily by performing agricultural labor for hire in California and other states, and the parent has performed such labor in this state for at least two months per year in each of the two (2) preceding years, and the parent resides in this District and the parent of the student has claimed the student as a dependent on his/her state or federal personal income tax return if he/ ~~or~~ she has sufficient income to have personal income tax liability shall be entitled to resident classification.

- A student who demonstrates financial need, has a parent who has been deported or was permitted to depart voluntarily, moved abroad as a result of that deportation or voluntary departure, lived in California immediately before moving abroad, attended a public or private secondary school in the state for three (3) or more years, and upon enrollment, will be in his/ ~~or~~ her first academic year as a matriculated student in California public higher education, will be living in California, and will file an affidavit with the District stating that he/ ~~or~~ she intends to establish residency in California as soon as possible.

- A student who has a special immigrant visa that has been granted status under Section 1244 of Public Law 110-181 or under Public Law 109-163, or is a refugee admitted to the United States under Section 1157 of Title 8 of the United States Code, and who, upon entering the United States, settled in California, shall be exempt from paying the nonresident tuition fee required by Education Code Section 76140 for the length of time he/she lives in this state up to the minimum time necessary to become a resident.

Right To Appeal~~.~~

Students who have been classified as non-residents have the right to a review of their classification (Title 5~~,~~ Section 54010 subdivision (a)). Any student, following a final decision of residence classification by the Admissions & Records Office, may make written appeal to the Dean of Enrollment Services within thirty (30) calendar days of notification of final decision by the college regarding classification.

Appeal Procedure~~.~~

The appeal is to be submitted to Admissions & Records Office which must forward it to the Dean of Enrollment Services within five (5) working days of receipt. Copies of the original

application for admission, the residency questionnaire, and evidence or documentation provided by the student, with a cover statement indicating upon what basis the residence classification decision was made, must be forwarded with the appeal.

The Dean of Enrollment Services shall review all the records and have the right to request additional information from either the student or the Admissions Office.

Within thirty (30) calendar days of receipt, the Dean of Enrollment Services shall send a written determination to the student. The determination shall state specific facts on which the appeal decision was made.

Reclassification~~.~~

A student previously classified as a non-resident may be reclassified as of any residence determination date. A residence determination date is that day immediately preceding the opening day of instruction for any session during which the student proposes to attend.

Petitions are to be submitted to the Admissions and Records Office.

Petitions must be submitted prior to the semester for which reclassification is to be effective. Extenuating circumstances may be considered in cases where a student failed to petition for reclassification prior to the residency determination date. In no case, however, may a student receive a non-resident tuition refund after the date of the first census.

Written documentation may be required of the student in support of the reclassification request.

A questionnaire to determine financial independence must be submitted with the petition for reclassification. Determination of financial independence is not required for students who were classified as non-residents by the University of California, the California State University, or another community college district. (Education Code Section 68044).

A student shall be considered financially independent for purposes of residence reclassification if the applicant meets all of the following requirements:

- Has not and will not be claimed as an exemption for state and federal tax purposes by his/ ~~or~~ her parent in the calendar year prior to the year the reclassification application is made;

- Has not lived and will not live for more than six (6) weeks in the home of his/ ~~or~~ her parent during the calendar year the reclassification application is made.

A student who has established financial independence may be reclassified as a resident if the student has met the requirements of Title 5~~,~~ Sections 54020, 54022, and 54024.

Failure to satisfy all of the financial independence criteria listed above does not necessarily result in denial of residence status if the one (1) year requirement is met and demonstration of intent is sufficiently strong.

Financial dependence in the current or preceding calendar year shall weigh more heavily against finding California residence than financial dependence in the preceding second and third calendar years. Financial dependence in the current or preceding calendar year shall be overcome only if (1) the parent on whom the student is dependent is a California resident, or (2) there is no evidence of the student's continuing residence in another state.

The Dean of Enrollment Services will make a determination, based on the evidence and notify the student not later than fourteen (14) days of receipt of the petition for reclassification.

Students have the right to appeal according to the procedures above.

Non-Citizens~~.~~

The District will admit any non-citizen who is eighteen (18) years of age or a high school graduate.

If non-citizens are present in the United States illegally or with any type of temporary visa, they will be classified as non-residents and charged non-resident tuition unless they meet the exceptions contained below.

If, for at least one (1) year and one (1) day prior to the start of the semester in question, a non-citizen has possessed any immigration status that allows him/ ~~or~~ her to live permanently in the United States and he/she meets the California residency requirements, the student can be classified as a resident.

Any students who are U.S. citizens, permanent residents of the U.S., and aliens who are not nonimmigrants (including those who are undocumented), may be exempt from paying nonresident tuition if they meet one (1) the following requirements:

- Total attendance of, or attainment of credits earned while in California equivalent to three (3) or more years of full-time attendance or attainment of credits at any of the following: (a) California high schools; (b) California high schools established by the State Board of Education; (c) California adult schools established by either a county office of education, unified or high school district, or The Department of Corrections and Rehabilitation; (d) campuses of the California community colleges; or (e) a combination thereof; or

- Three (3) or more years of full-time high school coursework in California, and a total

of three (3) or more years of attendance in California elementary schools, or a combination of California elementary and secondary schools.

Additionally, the following requirements must be met:

- Graduation from a California high school or attainment of the equivalent thereof; or completed an associate degree from a California Community College; or completed the minimum requirements at a California Community College, or fulfill the minimum transfer requirements established for the University of California or the California State University for students transferring from a campus of the California Community Colleges;

- registration or enrollment in a course offered by any college in the District for any term commencing on or after January 1, 2002,

- completion of a questionnaire form prescribed by the Chancellor of the California Community Colleges and furnished by the district of enrollment, verifying eligibility for this nonresident tuition exemption; and

- in the case of a student without lawful immigration status the filing of an affidavit that the student has filed an application to legalize his/ or her immigration status, or will file an application as soon as he/ or she is eligible to do so.

Documents and information obtained in implementing this exemption are confidential.

The initial residency classification will be made at the time the student applies for admission. Students may file residency questionnaire forms through the third week of the semester to request a review of their residency status. Final residency determination is made by the Dean of Enrollment Services. Students may appeal the decision.

Also see BP 5010 Admissions and Concurrent Enrollment, AP 5010 Admissions, AP 5011 Admission and Concurrent Enrollment of High School and Other Young Students, AP 5012 International Students, BP 5013 Students in the Military, BP/AP 5020 Nonresident Tuition, and BP/AP 5052 Open Enrollment.

Approved: 2/6/06
Revised: 7/11/11
Revised: 12/11/17
Revised: 12/9/19

AP 5017 Responding to Inquiries of Immigration Status, Citizenship Status, and National Origin Information

References:

Education Code Sections 66093, 66093.3, and 68076;
Title 5 Section 41905

Unless required by federal or state law, the District shall not inquire specifically about a student's citizenship or immigration status or the citizenship or immigration status of a student's parents or guardians; nor shall personnel seek or require, to the exclusion of other permissible documentation or information, documentation or information that may indicate a student's immigration status, such as a green card, voter registration, a passport, or citizenship papers.

Where any law contemplates submission of immigration status or citizenship status information to satisfy the requirements of a special program, the District shall not use that documentation or information for decisions related to admissions or enrollment in courses or degree programs.

The District is not permitted to use immigration status, citizenship status, or national origin information in personal statements outside the application process, other than for legitimate educational interests, including the provision of a service or benefit relating to the student, such as health care, counseling, job placement or financial aid.

If the District learns of a student's immigration status through its application process (including the students' personal statement or answers to personal insight questions), the District shall create policies and procedures to protect such personal identifiable information and retain the information only to the extent it is necessary or required by law. The District shall avoid the disclosure of information that might indicate a student or family's citizenship or immigration status if the disclosure is not authorized by the Family Educational Rights and Privacy Act (FERPA) or state law.

Where permitted by law, the Dean of Enrollment Services of the District shall enumerate alternative means to establish residency, age, or other eligibility criteria for enrollment or programs, and those alternative means shall include among them documentation or information that are available to persons regardless of immigration status or citizenship status, and that do not reveal information related to citizenship or immigration status.

Examples of documents that can be used as proof of residency include but are not limited to:

- Registering a motor vehicle operated in California;

- Obtaining a California driver's license or California identification card;
- Filing a resident or nonresident California state income tax return;
- Listing a California address on a federal income tax return;
- Listing a permanent military address or home of record in California;
- A professional or vocational license obtained from a California state licensing agency (e.g., nursing, teaching credentials);
- Maintaining active resident memberships in California based professional organizations (e.g., police union, teachers' union); and
- Maintaining an active bank account at a California bank.

Where a District is permitted by law to request a minor student's parent's residency information in order to determine tuition or aid, the educational institution shall only require documentation or information that is available to persons regardless of immigration status (as noted above).

Where residency, age, and other eligibility criteria for purposes of enrollment or any program may be established by alternative documents or information permitted by law or this administrative procedure, the District's procedures and forms shall describe to the applicant, and accommodate, all alternatives specified in law and all alternatives authorized under this administrative procedure.

Specifically, where the District must determine a student's residency for purposes of in-state tuition, the District shall not inquire about a parent/guardian's citizenship or immigration status and shall enumerate alternative means of establishing a parent/guardian's residency. If the student is considered a minor dependent of a California resident, the college or university shall only require documents to determine whether the parent has resided in California for one year (e.g. vehicle registration, lease agreements, etc.)

Also see BP/AP 3410 Nondiscrimination, AP 3415 Immigration Enforcement Activities, BP/AP 5015 Residence Determination, and BP/AP 5040 Student Records, Directory Information, and Privacy.

Approved: 12/9/19

AP 5020 Nonresident Tuition

References:

Education Code Sections 68075.65, 68130.5 and 76140 et seq.;
Title 5 Section 54045.5

- *Exemptions, including:*
  - *Any students, other than non-immigrant aliens under 8 U.S. Code Section 1101(a)(15), who meet the following requirements:*
    - *either high school attendance in California for three (3) or more years OR attainment of credits earned in California from a California high school equivalent to three or more years of full-time high school coursework and a total of three or more years of attendance in California elementary schools, California secondary schools, or combination of those schools;*
    - *graduation from a California high school or attainment of the equivalent thereof;*
    - *registration or enrollment in a course offered for any term commencing on or after January 1, 2002;*
    - *completion of a questionnaire form prescribed by the State Chancellor's Office verifying eligibility for this nonresident tuition exemption; and*
    - *in the case of a student without lawful immigration status, the filing of an affidavit that the student has filed an application to legalize his/her immigration status or will file an application as soon as he/she is eligible to do so.*
  - *Any students who meet the following requirements:*
    - *demonstrates financial need;*
    - *has a parent who has been deported or was permitted to depart voluntarily;*
    - *moved abroad as a result of that deportation or voluntary departure;*
    - *lived in California immediately before moving abroad;*
    - *attended a public or private secondary school in the state for three or more years; and*
    - *Upon enrollment, will be in his/her first academic year as a matriculated student in California public higher education, will be living in California, and will file an affidavit with the District stating that he/she intends to establish residency in California as soon as possible.*
  - *Any nonimmigrant aliens granted "T" or "U" visa status under title 8 U.S. Code Section 1101(a)(15)(T)(i) or (ii), or section 1101(a)(15)U)(i) or (ii), respectively, who meet the following requirements:*
    - *high school attendance in California for three or more years;*

        - *graduation from a California high school or attainment of the equivalent thereof;*
        - *registration or enrollment in a course offered for any term or commencing on or after January 1, 2002; and*
        - *completion of a questionnaire form prescribed by the State Chancellor's Office verifying eligibility for this nonresident tuition exemption.*
    - *A special part-time student, other than a nonimmigrant alien under 8 U.S. Code Section 1101(15)(a), participating in a College and Career Access Pathways (CCAP) partnership program and enrolled in no more than 15 units per term.*

- *A requirement that the nonresident tuition fee be set not later than March 1 of each year.*
- *A requirement that the calculation reflect the current expense of education calculated according to the Budget and Accounting Manual.*
- *Exemptions, if any, due to reciprocity with bordering states.*
- *Processing fees, if any, for international students.*
- *A requirement that the calculation include the expense of education in the preceding fiscal year.*
- *A requirement that the calculation reflect fees in contiguous Districts.*
- *A requirement that the calculation provide for students enrolled in more or less than fifteen (15) units per term.*
- *A requirement that a notice listing persons exempt from paying nonresident tuition be posted on the District's website.*

The nonresident tuition fee may not be set later than March 1 of each year by the Chief Business Officer.

The calculation reflects the current expense of education calculated according to the Budget and Accounting Manual.

The calculation includes the expense of education in the preceding fiscal year. The calculation reflects fees in contiguous Districts.

The calculation provides for students enrolled in more or less than fifteen (15) units per term. A nonresident student shall be liable for the nonresident tuition for all units enrolled.

There shall be no exemption from payment of the nonresident tuition for students who are classified as nonresidents. Non-resident tuition students may see the Vice President, Student Services Officer and make arrangements for a tuition payment plan.

Nonresident students subject to payment of community college nonresident fee, who have

been admitted to a class or classes in error without payment of the fee, shall be excluded from such class or classes upon notification pending payment of the fee. For the purpose of this rule only, notification consists of oral or written contact from the Office of Admission and Records prior to the end of the fourth week of the semester, session, or period of enrollment.

Nonresident students, who have been admitted to a class or classes without payment of the fee because of falsification of information submitted by or for them shall be excluded from such class or classes upon notification. For the purpose of this rule only, notification consists of oral or written contact from the Vice President, Student Services Officer of the college of enrollment to the student and such notification may be given at any time. Students excluded because of falsification shall not be readmitted during the semester, academic quarter, or session from which they were excluded, nor shall they be admitted to any following semester, academic quarter or session until all previously incurred tuition obligations are paid.

The District shall vigorously to pursue collection of nonresident fees, payment of which was avoided by falsification. Following authorization by the Board of Trustees, the Chief Business Officer~~,~~ shall initiate action or request the County Counsel to initiate appropriate legal action in courts of law in order to collect fees.

Also see BP 5010 Admissions and Concurrent Enrollment, AP 5010 Admissions, AP 5011 Admission and Concurrent Enrollment of High School and Other Young Students, AP 5012 International Students, AP 5013 Students in the Military, BP/AP 5015 Residence Determination, BP 5020 Nonresident Tuition, and BP/AP 5030 Fees.

Approved: 2/6/06
Revised: 12/9/19

AP 5030 Fees

Reference:

Education Code Sections 70902 (b)(9), 76300, 66025.3; Title 5, Section 51012; Chancellor's Student Fee Handbook

Required fees include:

Antelope Valley College will collect an enrollment fee (E.C. 76300; 5CCR 58500-58509) from each student to help defray the cost of education and instructional materials each semester and session. The enrollment fee may change without notice, subject to mandates issued by the State of California.

Additionally, nonresident students will be charged the enrollment fee plus tuition each semester and session. The Board of Trustees will establish this fee and publish the amount in the College Catalog and/or Class Schedule. The tuition fee may be changed without notice.

Antelope Valley College is permitted by law to charge for any of the fees listed below if approved by the Board of Trustees. The cost for each of these fees will be listed in the College Catalog and/or Class Schedule and can be obtained from the appropriate on-campus office. All fees are subject to change without notice.

Non-District physical education facilities (E.C. 76395)

Noncredit courses (E.C. 76385)

Community services courses (E.C. 78300)

Auditing of courses (E.C. 76370)

Instructional materials (E.C. 73365, 81457, 81458; 5 CCR 59400-59408)

Athletic insurance (E.C. 70902(b)(9)

Cross-Enrollment with CSU or UC (E.C. 66753)

Health (E.C. 76355)

Parking (E.C. 76360)

Transportation (E.C. 76361, 82305.6)

Student representation (E.C. 76060.5; 5 CCR 54801-54805)

Student Center (E.C. 76375; 5 CCR 58510)

Copies of student records (E.C. 76223)

Dormitory (E.C. 81670)

Child care (E.C. 79121 et seq., 66060)

Nonresident capital outlay (E.C. 76141)

Nonresident application processing (E.C. 76142)

Credit by Examination (E.C. 76300; 5 CCR 55753)

Use of facilities financed by revenue bonds (E.C. 81901(b)(3))

Refund processing (5 CCR 58508)

Telephone registration (E.C. 70902(a))

Physical fitness test (E.C. 70902(b)(9))

Instructional Tape Lease/Deposit (E.C. 70902(b)(9))

Credit Card Use (E.C. 70902(b)(9))

International Student Medical Insurance (E.C. 70902(b)(9))

Antelope Valley College is **not permitted** by law to charge for any of the fees listed below:

Late application (CCCCO Student Fee Handbook)

Add/drop (CCCCO Student Fee Handbook)

Mandatory student activities (CCCCO Student Fee Handbook)

Student Identification Cards (CCCCO Student Fee Handbook)

Student Body Organization (CCCCO Student Fee Handbook)

Nonresident application (CCCCO Student Fee Handbook)

Field trip (5 CCR 55450, 55451)

For dependents of certain veterans (E.C. 66025.3)

For dependents of certain victims of the September 11, 2001, terrorist attacks. (CCCCO Student Fee Handbook)

For certain recipients of the Medal of Honor and certain children of the recipients of the Medal of Honor (E.C. 66025.3)

Required or funded services (CCCCO Student Fee Handbook)

Refundable deposits (CCCCO Student Fee Handbook)

Distance education (other than the statutorily authorized enrollment fee) (CCCCO Student Fee Handbook)

Mandatory mailings (CCCCO Student Fee Handbook)

Rental of practice rooms (CCCCO Student Fee Handbook)

Apprenticeship courses (E.C. 76350)

Technology fee (CCCCO Student Fee Handbook)

Late payment fee (5 CCR 58502, 59410)

Nursing/healing arts student liability insurance (5 CCR 55234)

Cleaning (CCCCO Student Fee Handbook)

Breakage (CCCCO Student Fee Handbook)

Test proctoring (CCCCO Student Fee Handbook)

Collection and Refund of Fees

Antelope Valley College will refund student fees for the following reasons:

- Fees to be collected when enacted by the Legislature following registration by the student
- Fees collected in error
- Fees refundable because of a reduction in the educational program of the District
- Fees refundable because of the student's reduction in units or withdrawal from an education program
- Fees refundable because of changes in law or regulation authorizing and establishing enrollment fees

Antelope Valley College shall determine a refund policy for the following fees and publish the dates in the Schedule of Classes:

Enrollment Fee refunds for full-term length classes dropped during the first two weeks of instruction only. The first week of instruction is the first week of the semester. For short-term classes, summer and intersession the refund period is shorter and the time line is available from the Admission and Records Office.

Nonresident tuition fee refunds will be made only when the student totally withdraws from the College. The request must be in writing accompanied by the registration receipt. Refunds of the basic tuition fee will be made according to the following schedule:

Regular Semesters

End of 1st week of instruction 90% of the tuition fee and enrollment fee

End of 2nd week of instruction 75% of the tuition fee and enrollment fee

End of 3rd week of instruction 50% of the tuition fee

End of 4th week of instruction 25% of the tuition fee

Summer and Intersessions

End of 1st week of instruction 90% of the tuition fee and enrollment fee

End of 2nd week of instruction 75% of the tuition fee and enrollment fee

End of 3rd week of instruction 50% of the tuition fee

Instructional materials fee refunds are on a prorated basis. Requests for refunds must be in writing accompanied by a drop slip signed by the instructor with the amount of the material fees to be refunded. This is based on the date and the amount of the materials used.

Parking fees will be refunded in full to those students who totally withdraw from the semester within the first two weeks of instruction, shorter for summer and intersession. Requests must be in writing and accompanied by the student's parking permit, the receipt and drop slip. The request must be received by the Cashiers Office no later that the end of the 2nd week of instruction.

Associated Student Representation Fee will be refunded in full for students who in full-term length classes dropped during the first two weeks of instruction only. The first week of instruction is the first week of the semester. For short-term classes, summer and intersession the refund period is shorter and the time line is available from the Admission and Records Office.

Associated Student Organization Sticker will be refunded in full to students who totally withdraw from the college within the first two weeks of instruction and request a refund in writing. Requests must be accompanied by the Student's ASO sticker, the receipt and drop slip.

All refunds will be mailed to the student's address on file with the Admission and Records Office.

Students receiving Title IV Federal Financial Aid may be required to repay a portion of the funds received based upon the withdrawal date from all classes. Students who owe a repayment to the Title IV programs are not eligible for funding at AVC or any other college or university. Contact the Financial Aid Office for additional information.

2/6/06
Revised: 5/8/06
Revised: 1/8/07
Revised: 9/10/07

AP 5031 Instructional Materials Fees

References:

Education Code Section 76365;
Title 5 Sections 59400 et seq.

Students may be required to provide instructional materials required for a credit or non- credit course. Such materials shall be of continuing value to a student outside of the classroom setting and shall not be solely or exclusively available from the District.

Required instructional materials shall not include materials used or designed primarily for administrative purposes, class management, course management, or supervision.

Where instructional materials are available to a student temporarily through a license or access fee, the student shall be provided options at the time of purchase to maintain full access to the instructional materials for varying periods of time ranging from the length of the class up to at least two (2) years. The terms of the license or access fee shall be provided to the student in a clear and understandable manner prior to purchase.

Instructors shall take reasonable steps to minimize the cost and ensure the necessity of instructional materials.

The District will publish these regulations in each college catalog.

Definitions

"**Tangible personal property**" includes electronic data that the student may access during the class and store for personal use after the class in a manner comparable to the use available during the class.

"**Required instructional and other materials**" means any materials which a student must procure or possess as a condition of registration, enrollment or entry into a class; or any such material that the instructor determines is necessary to achieve those required objectives of a course.

"**Solely or exclusively available from the District**" means that the instructional material is not available except through the District, or that the District requires that the instructional material be purchased or procured from it. A material shall not be considered to be solely or exclusively available from the District if it is provided to the student at the District's actual cost; and 1) The instructional material is otherwise generally available, but is provided solely or exclusively by the District for health and safety reasons; or 2) The instructional material is provided in lieu of other generally available but more expensive material which would

otherwise be required.

"**Required instructional materials which are of continuing value outside of the classroom setting**" are materials which can be taken from the classroom setting and which are not wholly consumed, used up, or rendered valueless as they are applied in achieving the required objectives of a course to be accomplished under the supervision of an instructor during the class.

Establishing Required Materials and Related Fees

Determination of Fees:
Division deans and discipline faculty will determine costs through a comparative approach that seeks to obtain material at the lowest cost possible without compromising quality. Whether a materials fee meets the criteria and are appropriate for a course will be determined by the Academic Policies and Procedures Committee. New or revised materials fees must be approved by the Academic Policies and Procedures Committee and the Board of Trustees.

Materials will be provided by faculty during course or lab sections.

Announcement of Fees
Course material fees shall be printed in the semester schedule. Courses with fees will be properly flagged on records used in the Admissions Office. A fee policy and regulations will be included in the College Catalog.

Collection of Fees
Course material fees will be collected at the time of registration and after courses have been selected by students. Registration in courses will be provisional until the cashier has received full payment. Checks returned by a student's bank for any reason will result in a suspension of enrollment until valid payment has been received.

Refund of Fees
Material fees will be refunded on a prorated basis. Requests for refunds must be in writing accompanied by a drop slip signed by the instructor with the prorated amount of material fee to be refunded. Fees collected for classes cancelled by the District will be refunded.

Allocation and Disbursement of Material Fees
Each term, material fees collected and deposited will be allocated to the respective line item budgets. Disbursement of the material fees will be based on purchasing guidelines.

Business Services is responsible for gathering related data and responding to the ~~State~~ California Community Colleges Chancellor's Office inquiries regarding these fees.

Also see BP/AP 5030 Fees.

Approved: 4/14/08
Revised: 4/8/19
Revised: 10/14/19

AP 5035 Withholding of Student Records

Reference:

Title 5, Section 59410

The Dean of Enrollment Services may withhold diplomas, and registration privileges from any student or former student who fails to pay a proper financial obligation to the District. The college is prohibited from withholding a transcript on the grounds that the student owes a debt to the District (Educational Debt Collection Practices Act).

The definition of proper financial obligation shall include but is not limited to student fees; obligations incurred using facilities, equipment or materials; library fine; unreturned library books; materials remaining improperly in the possession of the student; and/or any other unpaid obligation a student or former student owes to the District. A proper financial obligation does not include any unpaid obligation to a student organization.

Students are notified by mail that an outstanding balance is due and payable at the Cashier's Office. Students are provided the opportunity to explain if the financial obligation is in error through the Petition for Extenuating Circumstances process which is submitted to the Dean of Enrollment Services.

Adopted: 2/6/06
Revised: 1/11/21
Revised: 10/10/22

AP 5040 Student Records, Directory Information, and Privacy

References:

Education Code Sections 66093.3 and 76200 et seq.;
Title 5 Sections 54600 et seq. and 59410;
Civil Code Section 1788.90 et seq. and 1798.85;
20 U.S. Code Section 1232g subdivision (j) (U.S. Patriot Act);
ACCJC Accreditation Standard II.C.8

A cumulative record of enrollment, scholarship, and educational progress shall be kept for each student.

Collection and Retention of Student Information

The District shall treat all students equitably in the receipt of all school services, including, but not limited to, the gathering of student and family information for the institution's benefit programs.

Enrollment Services shall maintain in writing District policies and procedures for gathering and handling sensitive student information, and appropriate personnel shall receive training regarding those policies and procedures.

The District will provide students and families with annual notice, at the beginning of each school year, of institutional policies for student privacy and the abilities of parents or eligible students to inspect student information.

The District will provide students an opportunity to opt out of disclosure of directory information.

Directory Information is defined as the student's name, address, telephone number, date and place of birth, major field of study, participation record in college sponsored activities and sports, weight and height (if an athletic team member), dates of attendance, degrees and awards, and the educational institution of most recent attendance.

Notices must describe the following:

- The kind of information that the school has identified as directory information;
- The eligible student's ability to refuse to let the school designate the information as directory information, which could be disclosed to outside entities;
- The period of time in which the eligible student has to notify the school in writing that he/she/they does not want the information designated as directory information; and
- That opting out by the noted deadline is the students' only way to prevent the release of directory information.

Any sensitive information, such as a student's, parent's, or guardian's SSN, any AB 540 determinations, or citizenship status information collected by the District or disclosed by the student, should be maintained only for as long as necessary.

If the District possesses information that could indicate immigration status or citizenship status, the District shall not consider the acquired information in admissions decisions or access to educational courses or degree programs.

Students may elect not to provide immigration or citizenship status information to the institution, and this election shall not impede admissions or enrollment in educational programs.

The District shall not create a list of student names linked with immigration status.

AVC Sheriff's Office shall not inquire into an individual's immigration status for immigration enforcement purposes.

AVC Sheriff's Office shall not aid any effort to create a registry containing individuals' country of birth or based on any other protected characteristics of victims, witnesses, or suspects of crimes unless required by law for specified purposes.

Release of Student Records: No instructor, official, employee, or governing board member shall authorize access to student records to any person except under the following circumstances:

- Student records shall be released pursuant to a student's written consent. A student shall send a written request to Admissions and Records.

- "Directory information" may be released in accordance with the definitions in ~~Board Policy~~ BP 5040 Student Records, Directory Information, and Privacy.

- Student records shall be released pursuant to a judicial order or a lawfully issued subpoena. Subpoenas for student records are released only after a fourteen (14) day notification period has elapsed from the date of receipt. All Subpoenas are processed by campus General Counsel.

- Student records shall be released pursuant to a federal judicial order that has been issued regarding an investigation or prosecution of an offense concerning an investigation or prosecution of terrorism.

- Student records may be released to officials and employees of the District only when they have a legitimate educational interest to inspect the record. District officials and employees with legitimate educational interest may request student records through the Admission and Records Office.

Student records may be released to authorized representatives of the Comptroller General of the United States, the Secretary of Education, an administrative head of an education agency, state education officials, or their respective designees or the United States Office of Civil Rights, where that information is necessary to audit or evaluate a state or federally supported educational program or pursuant to federal or state law. Exceptions are that when the collection of personally identifiable information is specifically authorized by federal law, any data collected by those officials shall be protected in a manner that will not permit the personal identification of students or their parents by other than those officials, and any personally identifiable data shall be destroyed when no longer needed for that audit, evaluation, and enforcement of federal legal requirements. All requests should be directed to the Dean of Enrollment Services.

Student records may be released to officials of other public or private schools or school systems, including local, county, or state correctional facilities where education programs are provided, where the student seeks or intends to enroll or is directed to enroll. The release is subject to the conditions in Education Code Section 76225. All requests should be directed to the Dean of Enrollment Services.

Student records may be released to agencies or organizations in connection with a student's application for, or receipt of, financial aid, provided that information permitting the personal identification of those students may be disclosed only as may be necessary for those purposes as to financial aid, to determine the amount of the financial aid, or conditions that will be imposed regarding financial aid, or to enforce the terms or conditions of financial aid. All requests should be directed to the Director of Financial Aid.

Student records may be released to organizations conducting studies for, or on behalf of, accrediting organizations, educational agencies or institutions for the purpose of developing, validating, or administrating predictive tests, administering financial aid programs, and improving instruction, if those studies are conducted in such a manner as will not permit the personal identification of students or their parents by persons other than representatives of those organizations and the information will be destroyed when no longer needed for the purpose for which it is conducted. All requests should be directed to the Vice President of Student Services.

Student records may be released to appropriate persons in connection with an emergency if the knowledge of that information is necessary to protect the health or safety of a student or other persons, subject to applicable federal or state law. All requests should be directed to campus General Counsel.

The following information shall be released to the federal military for the purposes of federal military recruitment: student names, addresses, telephone listings, dates and places of birth, levels of education, major(s), degrees received, prior military experience, and/or the most recent previous educational institutions enrolled in by the students. All requests

should be directed to the Dean of Enrollment Services.

Access to Student Records for Immigration Enforcement Purposes
The District must obtain a student's written consent before disclosing educational records, unless the information is relevant for a legitimate educational interest or includes directory information only. Neither exception permits disclosing information for immigration enforcement purposes; no student information shall be disclosed for immigration enforcement purposes without a court order or judicial warrant. Without a court order or a judicial warrant, written consent must be signed and dated by the student, or (if the student is a minor) by the student's parent(s) or guardian(s), before disclosure of the information, and must specify the records that may be disclosed, the purpose of the disclosure, and the party or class of parties to whom the disclosure may be made.

If desired by the student, the District must provide a copy of the records to be released. The party to whom the information is disclosed may not re-disclose the information to any other party without the prior consent of the student or subsequent court order.

All interactions with immigration authorities seeking to review student records shall be referred to the campus General Counsel.

- Bridget Cook, General Counsel
  legal@avc.edu
  661.722.6650

District personnel shall provide a set of responses for District personnel to use in response to officers seeking access to records for immigration enforcement purposes.

In addition to notifying campus General Counsel, District personnel shall take the following action steps in response to an officer other than campus police requesting access to student records:

1. Ask for the officer's name, identification number, and agency affiliation;
2. Record or copy this information;
3. Ask for a copy of any warrants;
4. Inform the officer that you are not obstructing his/her/their efforts but that you need to contact a campus administrator or campus counsel for assistance.

AVC Sheriff's Office shall not provide personal information about an individual for immigration enforcement purposes, unless that information is publicly available, or required by a court order or judicial warrant. "Personal information" is defined as any information that identifies or describes an individual, and includes but is not limited to, a student's physical description, home or work address, telephone number, education, financial matters, medical or employment history, and statements made by, or attributed to, the individual. This restriction does not apply to information regarding the immigration or citizenship status of an individual.

Unless the District is served with a judicial subpoena or court order that by its terms prohibits disclosure to the student, the student must be notified of any judicial order or subpoena before the institution complies with the order in accordance with FERPA.

Charge for Transcripts or Verifications of Student Records.
A student/former student shall be entitled to two (2) free copies of the transcript of his/her/their record or two (2) free verifications of various student records. Additional copies shall be made available to the student, or to an addressee designated by him/her, at the rate of one dollar ($1.00) per copy. Students may request transcript online at the College's website. The District will not refuse to provide a transcript for a current or former student on the grounds that the student owes a debt; condition the provision of a transcript on the payment of a debt, other than a fee charged to provide the transcript; charge a higher fee for obtaining a transcript, or provide less favorable treatment of a transcript request because a student owes a debt; or use transcript issuance as a tool for debt collection.

Electronic Transcripts
Student may request transcripts electronically by visiting the Transcript Office website.

Use of Social Security Numbers
The district ***shall not*** do any of the following:

- Publicly post or publicly display an individual's social security number;
- Print an individual's social security number on a card required to access products or services;
- Require an individual to transmit his/her/their social security number over the internet using a connection that is not secured or encrypted;
- Require an individual to use his/her/their social security number to access an Internet Web site without also requiring a password or unique personal identification number or other authentication devise; or
- Print, in whole or in part, an individual's social security number that is visible on any materials that are mailed to the individual, except those materials used for:
    - Application or enrollment purposes;
    - To establish, amend, or terminate an account, contract, or policy; or
    - To confirm the accuracy of the social security number.

If the District has, prior to January 1, 2004, used an individual's social security number in a manner inconsistent with the above restrictions, it may continue using that individual's social security number in that same manner only if:

- The use of the social security number is continuous;
- The individual is provided an annual disclosure that informs the individual that he/she/they has the right to stop the use of his/her/their social security number in a

manner otherwise prohibited;

- The District agrees to stop the use of an individual's social security number in a manner otherwise prohibited upon a written request by that individual;
- No fee shall be charged for implementing this request; and the District shall not deny services to an individual for making such a request.

Also see BP/AP 3310 Records Retention and Destruction; AP 5040 Student Records, Directory Information, and Privacy; and AP 5045 Student Records – Challenging Content and Access Log.

Approved: 2/6/06
Revised: 4/14/08
Revised: 10/9/17
Revised: 5/10/21
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AP 5041 Official Communication to Students

References:

Students are responsible for reading all official communications from Antelope Valley College (AVC). Methods of communication are students' AVC email, United States Postal Service and printed publications, including (but not limited to), the AVC Catalog, Schedule of Classes, and Student Handbook.

Approved: 11/10/08
Revised: 11/12/19

AP 5045 Student Records—Challenging Content and Access Log

References:

Education Code Sections 76222~~,~~ and 76232;
Title 5 Section 54630

Challenging Content

Any student may file a written request with the Superintendent/President or designee to correct or remove information recorded in his/ ~~or~~ her student records that the student alleges to be: (1) inaccurate; (2) an unsubstantiated personal conclusion or inference; (3) a conclusion or inference outside of the observer's area of competence; or (4) not based on the personal observation of a named person with the time and place of the observation noted.

Within thirty (30) days of receipt of the request, the Superintendent/President or designee shall meet with the student and the employee who recorded the information in question, if any, if the employee is presently employed by the District. The Superintendent/President or designee shall then sustain or deny the allegations.

If the Superintendent/President or designee sustains any or all of the allegations, he/she shall order the correction or removal and destruction of the information. If the Superintendent/President or designee denies any or all of the allegations and refuses to order the correction or removal of the information, the student, within thirty (30) days of the refusal, may appeal the decision in writing to the Board detailing reasons why the information in question should be corrected, removed or destroyed.

Within thirty (30) days of receipt of an appeal, the Board of Trustees shall, in closed session with the student and the employee who recorded the information in question, determine whether to sustain or deny the allegations. If the Board of Trustees sustains any or all of the allegations, it shall order the Superintendent/President or his/ ~~or~~ her designee, to immediately correct or remove and destroy the information. The decision of the Board of Trustees shall be final.

Records of the proceeding shall remain confidential and shall be destroyed one (1) year following the decision of the Board of Trustees, unless the student institutes legal action relative to the disputed information within the prescribed period of one (1) year.

If the final decision is unfavorable to the student, the student shall have the right to submit a written statement of his/ ~~or~~ her objections to the information. This statement shall become a part of the student's record until the information objected to is corrected or removed.

Whenever there is included in any student record information concerning any disciplinary action, the student shall be allowed to include in such record a written statement or response concerning the disciplinary action.

Whenever there is included in any student record information concerning any disciplinary action in connection with any alleged sexual assault or physical abuse, or threat of sexual assault, or any conduct that threatens the health and safety of the alleged victim, the alleged victim of that sexual assault or physical abuse shall be informed within three (3) days of the results of the disciplinary action and the results of any appeal. The alleged victim shall keep the results of that disciplinary action and appeal confidential.

Access Log
A log or record shall be maintained for each student's record that lists all persons, agencies, or organizations requesting or receiving information from the record and their legitimate interests. Any written consent notice for access to records shall be kept permanently with the record file.

The listing need not include any of the following:

- Students seeking access to their own records;
- Parties to whom directory information is released;
- Parties for whom written consent has been executed by the student;
- Officials or employees having a legitimate educational interest.

The log or record shall be open to inspection only by the student and the Superintendent/President or designee, and to the Comptroller General of the United States, the Secretary of Education, an administrative head of an education agency, and state educational authorities as a means of auditing the operation of the system.

Access ***may*** also be permitted for the following:

Court Order
Information concerning a student shall be furnished in compliance with a court order. The student shall be notified of such compliance if lawfully possible within the requirements of the judicial order.

Subpoena
The service of a subpoena upon a District employee, for the purpose of producing a student record, may be complied with in lieu of a personal appearance by the employee by submitting a copy of the record to the court. The copy of the record may be a photostat, microfilm, microcard or other photographic copy. The student will be notified that a subpoena has been served.

Approved: 2/6/06
Revised: 11/12/19

AP 5050 Student Success and Support Program

References:

Education Code Sections 78210 et seq.;
Title 5~~,~~ Sections 55500 et seq.
Accreditation Standard II.C.2

The Student Success and Support Program brings the student and the District into agreement regarding the student's educational goal through the District's established programs, policies, and requirements. The agreement is implemented by means of the student educational plan.

Each student, in entering into an educational plan, will do all of the following:

- identify an education and career goal;
- identify a course of study;
- self guided placement;
- complete orientation;
- participate in the development of the student educational plan;
- complete a student educational plan no later than the term after which the student completes fifteen (15) semester units of degree applicable credit coursework;
- diligently attend class and complete assigned coursework; and
- complete courses and maintain progress toward an educational goal

Student Success and Support Program services include, but are not limited to, all of the following:

- Orientation on a timely basis, information concerning campus procedures, academic expectations, financial assistance, and any other appropriate matters
- Self guided placement ~~Assessment~~ and counseling upon enrollment, which shall include, but not be limited to, all of the following:
    - Self guided ~~Administration of assessment~~ instruments to determine student competency in computational and language skills
    - Assistance to students in the identification of aptitudes, interests, and educational objectives, including but not limited to, associate of arts degrees, transfer for baccalaureate degrees, and vocational certificates and licenses
    - Evaluation of student study and learning skills
    - Referral to specialized support services as needed, including, but not limited to, federal, state, and local financial assistance; health services; mental health services; campus employment placement services; extended opportunity programs and services; campus child care services; Veterans services; programs that teach English as a second language; and disabled student services

- Advisement concerning course selection
- Follow-up services~~,~~ and required advisement or counseling for students who are enrolled in remedial courses, who have not declared an educational objective as required, or who are on academic probation.
- Instructional support services.

Students can be exempted from participating in orientation, assessment, or counseling/advising based on the following criteria, provided they qualify and complete an exemption form and file it with the Counseling Office.

Orientation Exemptions

1. Students who have completed an associate's degree or higher from an accredited college or university.
2. Students who enroll in fewer than twelve (12) units and have one of the following educational goals:
   a. Advancement in current job/career (upgrade job skills).
   b. Maintain a certificate or license (e.g., nursing, real estate).
   c. Personal development (intellectual, cultural, recreational).
3. Students who are matriculated at another college or university and are attending AVC concurrently.

Counseling/Advisement Exemptions

1. Students who have completed an associate's degree or higher from an accredited college or university.
2. Students who enroll in less than twelve (12) units and have one of the following educational goals:
   a. Advancement in current job/career (upgrade job skills).
   b. Maintain a certificate or license (e.g., nursing, real estate).
   c. Personal development (intellectual, cultural, recreational).
3. Students who are matriculated at another college or university and are attending AVC concurrently.

The District shall not use any assessment instrument except one specifically authorized by the Board of Governors of the California Community Colleges.

Approved: 2/6/06
Revised: 4/14/08
Revised: 6/14/10
Revised: 1/12/15
Revised: 11/12/19

AP 5052 Open Enrollment

References:

Title 5~~,~~ Sections 51006, 58106, and 58108

All courses of the District shall be open to enrollment in accordance with BP 5052 Open Enrollment and a priority system consistent with AP 5055 Enrollment Priorities. Enrollment may be limited to students meeting properly validated prerequisites and co-requisites, or due to other non-evaluative, practical considerations as determined by the Dean of Student Services (Counseling).

No student is required to confer or consult with or required to receive permission to enroll in any class offered by the District, except as provided for in AP 5055 Enrollment Priorities and allied health programs.

Students are not required to participate in any pre-registration activities not uniformly required, and no registration procedures are used that result in restricting enrollment to a specialized clientele, except as provided for in AP 5055 Enrollment Priorities and allied health programs.

A student may challenge an enrollment limitation on any of the following grounds:

- The limitation is unlawfully discriminatory or is being applied in an unlawfully discriminatory manner;
- The District is not following its enrollment procedures;
- The basis for the limitation does not in fact exist.

A student may challenge an enrollment limitation through the Petition for Extenuating Circumstances to the Dean of Student Services (Counseling).

Also see BP/AP 4260 Prerequisites, Co-requisites, and Advisories; AP 5052 Open Enrollment; BP/AP 5055 Enrollment Priorities; and AP 5530 Student Rights and Grievances.

Approved: 2/6/06
Revised: 11/12/19

AP 5055 Enrollment Priorities

References:

Education Code Sections 66025.8, 66025.9, and 66025.92;
Title 5 Sections 58106 and 58108

Enrollment in courses and programs may be limited to students meeting properly established prerequisites and co-requisites. (See BP/AP 4260 Prerequisites, Co-requisites, Advisories, and Limitations on Enrollment)

Enrollment may be limited due to the following:

- health and safety considerations
- facility limitations
- faculty workload
- availability of qualified instructors
- funding limitations
- regional planning
- legal requirements
- contractual requirements

The District will provide priority registration for students who enroll in a community college for the purpose of degree or certificate attainment, transfer to a four-year college or university, or career advancement.

The District will grant registration priority for each term the registration priority system is administered to students who are:

- are first time students within the meaning of Title 5 Section 55530 subdivision (c) and have completed orientation, assessment, and developed student education plans; or
- are not first time students within the meaning of Title 5 Section 55530 subdivision (c) and have not lost registration priority pursuant to subdivision (h).
- who are continuing students not on academic or progress probation for two consecutive terms as defined in Title 5 Section 55031 and first time students who have completed orientation, assessment, and developed student education plans.

The District shall provide highest and equal priority to students eligible for registration priority who are:

- a member of the armed forces or a veteran pursuant to Education Code Section

66025.8
- a foster youth, ~~or~~ former foster youth, homeless youth, or former homeless youth pursuant to Education Code Section 66025.9
- determined to be eligible for accommodation through the Office for Students with Disabilities
- receiving services through the Extended Opportunity Programs
- receiving aid from California Work Opportunity and Responsibility to Kids Program
- A student who is receiving services through CalWORKs.
- A student who is a Tribal TANF recipient

These registration priorities apply to courses offered during all terms.

Registration priority specified above shall be lost at the first registration opportunity after a student:

- Is placed on academic or progress probation or any combination thereof as defined in BP/AP 4250 Probation for two (2) consecutive terms: or
- Has earned one hundred (100) or more degree-applicable semester equivalent units at the District.

Foster youth, former foster youth, or homeless youth who are granted registration priority shall not lose registration priority if placed on academic or progress probation or any combination thereof for two (2) consecutive terms or if more than one hundred (100) degree applicable semester equivalent units are earned at the District.

For purposes of this section, a unit is earned when a student receives a grade of A, B, C, D or P as defined in BP/AP 4230 Grading and Academic Record Symbols. The one hundred (100)-unit limit does not include units for non-degree applicable English as a Second Language, basic skills courses, or credit earned through credit by exam, advanced placement, or other similar programs as defined by the Vice President of Academic Affairs.

The District has established orientation, assessment, and education plans or any combination thereof as a condition for registration priority for continuing students. Local priorities are based on the following approaches:

- limiting enrollment to first come, first served, or other non-evaluative selection techniques;
- in the case of intercollegiate completion, honors courses, or public performance courses, allocating available seats to those students judged most qualified;
- limiting enrollment to any selection procedure expressly authorized by statute;

- limiting enrollment in one or more sections to students enrolled in one or more other courses, provided that a reasonable percentage of all sections of the course do not have such restrictions.

Additional registration priorities for students with priority lower than student groups covered already shall be provided to students that have completed orientation, assessment, and developed student education plan who are:

- STAR students and First Year Experience students
- Honors Students
- AVC Graduate Candidates
- Athletes, SOAR High School, ASO Officers, Student Trustee
- Paraprofessionals/AVC Employees
- Umoja, SYE
- High School Seniors that attend the Student Success Kick off (Summer/Fall semesters only)
- Continuing AVC Students
- New and Returning AVC Students

Registration priority specified above shall be lost at the first registration opportunity after a student:

- Is placed on academic or progress probation or any combination thereof as defined in BP/AP 4250 Probation for two
  (2) consecutive terms; or
- Has earned one hundred (100) or more degree-applicable semester equivalent units at the district.

Students will have a higher enrollment priority when orientation, assessment, and developed student education plans are confirmed at the time registration appointments are assigned. Students that do not have confirmed completion will have a lower enrollment priority.

All priority groups will have priority enrollment based on total units completed in descending order then alphabetically (rotating each term).

Except as otherwise provided by state law, no student shall be required to confer or consult with or be required to receive permission to enroll in any class from any person other than those employed by the college in the District.

Students will not be required to participate in any preregistration activity not uniformly required; nor shall the District allow anyone to place or enforce nonacademic requisites

that are not expressly authorized or in state law as barriers to enrollment in or the successful completion of a class.

With respect to accessibility to off–campus sites and facilities, no student is to be required to make any special effort not required of all students to register in any class or course section. Once enrolled in the class, all students must have equal access to the site.

The District shall notify students who are placed on academic or progress probation, of the potential for loss of enrollment priority. The District shall notify the student that a second consecutive term on academic or progress probation will result in the loss of priority registration as long as the student remains on probation. The District shall notify students who have earned seventy-five percent (75%) or more of the unit limit, that enrollment priority will be lost when the student reaches the unit limit.

Appeal procedure for loss of priority enrollment
Submit Loss of Priority Enrollment form to the Dean of (Enrollment Services) within two (2) weeks of enrollment priority assignment. One circumstance shall be verifiable on the appeal form:

- Verified extenuating circumstances of cases of accident, illnesses, or other circumstances beyond the control of the student.
- Student with a disability applied for, but did not receive, reasonable accommodation in a timely manner.
- Academic or progress probation or dismissal status recalculated to less than two (2) semesters of consecutive semesters on probation.
- One hundred (100) unit limit for degree-applicable semester equivalent units at the District recalculated to less than one hundred (100) degree-applicable semester equivalent units at the district.
- Other verifiable circumstances as deemed appropriate by the Dean of Student Services (Enrollment Services).

Loss of priority enrollment denial

Denied loss of priority enrollment requests by the Dean of (Enrollment Services) may be submitted for final review to the Vice President of Student Services when information not already presented in the appeal for priority enrollment exists.

Also see BP 5055 Enrollment Priorities and BP/AP 5052 Open Enrollment.

Approved: 2/6/06
Revised: 5/12/08
Revised: 1/11/21

AP 5060 Enrollment Unit Load

References:

Title 5, Sections 51006, 58106, and 58108

A student seeking to enroll in more than nineteen (19) units in fall and spring semesters or nine (9) units in intersession and summer session must complete a Petition for Extenuating Circumstances and submit to the Dean of Student Services (Counseling).

Also see BP 5060 Enrollment Unit Load.

Approved: 2/6/06
Revised: 1/8/07
Revised: 11/12/19

AP 5070 Attendance

References:

Title 5~~,~~ Sections 58000 et seq.

The responsibility of attendance accounting resides with the Office of Admissions & Records. The District follows the following requirements outlined in Title 5:

- Computation of units of full-time equivalent student (FTES) based on the type of course, the way the course is scheduled, and the length of the course.
- Selection of a single primary term length for credit courses.
- Reporting of FTES during the "first period" (between July 1 and December 31) and "second period" (between July 1 and April 15).
- Compliance with census procedures prescribed by the California Community Colleges Chancellor's Office for all credit courses, including work experience, independent study, and credit courses being reported on an actual attendance basis.
- Preparation of census day procedure tabulations.
- Preparation of actual student contact hours of attendance procedure tabulations.
- Preparation (as applicable) of actual apprentice hours of teaching procedure tabulations.
- Preparation of support documentation regarding all course enrollment, attendance and dis-enrollment information.
- Computation of FTES that includes only the attendance of students while they are engaged in educational activities required of students and while they are under the immediate supervision and control of an academic employee of the District authorized to render service in the capacity and during the period in which he/ ~~or~~ she served.
- Maintenance of the colleges in the District for at least 175 days during the fiscal year.

Also see AP 5075 Credit Course Adds and Drops.

Approved: 2/6/06
Revised: 11/12/19

AP 5071 Online Attendance

References:

Online students are subject to the same attendance policy as are on-ground students. Refer to the Attendance Policy in the current college catalog.

Student attendance in online courses is defined as “active participation’ in the course, as described in the instructor’s course syllabus. Active participation is typically defined as submitting an assignment (such as an exam, exercise, or project element), participating in the discussion forums, or by engagement in other academic events that indicate an online presence within a specified time frame.

Online courses at a minimum will have weekly mechanisms that will determine a student’s active participation. Instructors will identify specific activities that must be completed during the first week of the course. A student’s failure to complete the specific activities by the posted due date will be dropped as a NO SHOW unless the student has made prior arrangements with the instructor.

Student participation will be monitored throughout the course by the instructor. Students who fail to maintain active participation in the online course, as defined in the course syllabus, may be dropped from the course.

Also see AP 4105 Distance Education, AP 5070 Attendance, and AP 5075 Course Adds and Drops.

Approved: 6/13/11
Revised: 11/12/19

AP 5075 Course Adds and Drops

Reference:

Title 5, Sections 55024 and 58004

Adding Courses

Students may add classes through the registration period.

Priority Registration

During priority registration, students register on or after an assigned appointment time *without instructor approval*. Appointment times are assigned based on completion of Matriculation components.

Open Registration

Students may enroll in open classes *without instructor approval* through the end of open registration.

Full-term courses: Open registration ends the day before the course begins.

Short-term courses: Open registration ends as of the day before the course begins.

Once open registration ends, a course is considered closed regardless of seat availability.

Late Registration

Students may enroll in classes using an instructor assigned AAC (Add Authorization Code) after a class begins and no later than the last day to add.

Full-term and short-term courses: During late registration, students may add a course(s) using an instructor assigned AAC after a class begins and no later than the last day to add.

Registration after census

Registration after census is considered:

1. When documented extenuating circumstances are provided.
2. When instructor support (usually a memo with the faculty and division dean signature) is provided.
3. When the first day of course attendance is on or before the last day to add.
4. When the student submits a completed Extenuating Circumstances petition to the Dean of Enrollment Services.

When 1-4 exists, the Dean of Enrollment Services will review the completed Extenuating Circumstances petition and determine if an exception to the last day to register will be permitted.

Withdrawals

Withdrawals, or drops, are authorized through the last day of the fourteenth week of instruction or 75% of the term, whichever is less. Students who withdraw or drop classes during the first two weeks or 10% of full-term course, whichever is less, will receive no notation on their academic record.

Instructors shall clear their rolls of inactive students not later than the end of the last business day before the census day for all students.

“Inactive students” include:

- Students identified as no-shows,
- Students who officially withdraw,

- Students who are no longer participating in the courses and are therefore dropped by the instructor.

Students will not be permitted to withdraw and receive a "W" in a class more than three times.

When students receive a "W" in the same course on two occasions, the student will be sent an e-mail from Counseling and Matriculation by the Dean of Enrollment Services after review of an educational counseling plan regarding "Ws" and student success.

- Students may be permitted to enroll in a class after having received three authorized "Ws" as long as the students will receive a grade or a non-evaluative symbol other than a "W" if permitted to enroll a fourth time:
- The District policy permits additional withdrawals for which it does not receive apportionment and the Dean of Enrollment Services approves such withdrawal after a review of an Extenuating Circumstances petition.

2/6/06
Revised: 1/12/09
Revised: 2/8/10
Revised: 7/9/12
Revised: 1/14/13

AP 5110 Counseling

References:

Education Code Sections 72620 and 72621;
Title 5 Section 51018;
Accreditation Standard II.C.5

The counseling services available in the District's counseling program include at least the following:

- Academic counseling, in which the student is assisted in assessing, planning, and implementing his/her immediate and long-range academic goals;
- Career counseling, in which the student is assisted in assessing his/her aptitudes, abilities, and interests, and is advised concerning the current and future employment trends;
- Personal counseling, in which the student is assisted with personal, family, or other social concerns, when that assistance is related to the student's education;
- Coordination with the counseling aspects of other services to students which exist on campus, including but not limited to those services provided in programs for students with special needs, skills testing programs, financial assistance programs, and job placement services.

Confidentiality of Counseling Information:

Information of a personal nature disclosed by a student twelve (12) years of age or older in the process of receiving counseling from a counselor is confidential, and shall not become part of the student record without the written consent of the person who disclosed the confidential information. However, the information shall be disclosed when permitted by applicable law, including but not limited to disclosure as necessary to report child abuse or neglect; reporting to the Superintendent/President or other persons when the counselor has reason to believe that disclosure is necessary to avert a clear and present danger to the health, safety, or welfare of the student or other persons living in the college community; reporting information to the Superintendent/President or other persons as necessary when the student indicates that a crime involving the likelihood of personal injury or significant or substantial property losses will or has been committed; reporting information to one or more persons specified in a written waiver by the student.

All non-exempt students are required to seek assistance in Counseling to receive a Student Education Plan. (Exempt criteria can be found at AP 5050 Student Success and Support Program.)

Approved: 2/6/06
Revised: 2/11/17
Revised: 11/12/19

AP 5120 Transfer Center

References:

Education Code Sections 66720-66744;
Title 5 Section 51027

The District has a transfer center plan that complies with the requirements of Title 5. The plan identifies appropriate target student populations and is designed to increase the transfer applications of underrepresented students among transfer students.

Plan components include, but are not limited to:

- Services to be provided to students
- Facilities
- Staffing
- An advisory committee
- Evaluation and reporting
- Transfer path requirements for each articulated baccalaureate major

The Transfer Center Coordinator maintains and annually updates the Transfer Center Plan.

Approved: 2/6/06
Revised: 9/10/07
Revised: 11/12/19

AP 5130 Financial Aid

References:

Education Code Sections 66021.3, 66021.6, 66025.9, 69514, 76300, and 94912.5; Title 5 Sections 55031 and 58600 et seq.;
20 U.S. Code Sections 1070 et seq.;
34 Code of Federal Regulations Part 668 (U.S. Department of Education regulations on the Integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965, as amended);
Accreditation Standard III.D.15

Financial Aid programs offered at Antelope Valley College include:

- California College Promise Grant (formerly known as the BOG Fee Waiver)
- ~~CalWORKS~~
- Cal Grants
- Chafee Grant
- Federal Pell Grant
- Federal Direct Student Loan Program
- Federal Supplemental Educational Grant (FSEOG)
- Federal Work Study (FWS)
- Federal Family Education Loan Program (FFELP)
- Student Success Completion Grant

Please refer to the Financial Aid website that explain procedures including the following:

- Financial Aid Disbursements and Refunds
- Application procedures, including deadlines.
- Student eligibility
- Payment procedures
- Overpayment recovery
- Accounting requirements
- Satisfactory Progress

Misrepresentation

Misrepresentation is defined as any false, erroneous or misleading statement that the District, a representative of the District, or a service provider with which the District has contracted to provide educational programs, marketing, advertising, recruiting or admissions services, makes directly or indirectly to a student, prospective student, a member of the public, an accrediting agency, a state agency, or the United States Department of Education.

A misleading statement includes any statement that has the likelihood or tendency to

deceive or confuse. If a person to whom the misrepresentation was made could reasonably be expected to rely, or has reasonably relied, on the misrepresentation, the misrepresentation would be substantial.

This procedure does not apply to statements by students through social media outlets or by vendors that are not providing covered services, as reflected herein.

Loss of Eligibility for California College Promise Grant (formerly known as a BOG Fee Waiver)

A student shall become ineligible for a California College Promise Grant if the student is placed on academic or progress probation, or any combination thereof, for two consecutive primary terms. Loss of eligibility shall become effective at the first registration opportunity after such determination is made.

The District shall notify students of their placement on academic or progress probation no later than thirty days following the end of the term that resulted in the student's placement on probation. The notification must clearly state that two consecutive primary terms of probation will lead to a loss of the California College Promise Grant until the student is no longer on probation. The notification must also advise students about the available student support services to assist them in maintaining eligibility.

The District shall adopt, prominently display, and disseminate policies ensuring that students are advised about the student support services available to assist them in maintaining and reestablishing California College Promise Grant eligibility. Dissemination includes, but is not limited to, information provided in college catalogs and class schedules.

The District shall establish written procedures by which a student may appeal the loss of a California College Promise Grant due to extenuating circumstances, or when a student with a disability applied for, but did not receive, a reasonable accommodation in a timely manner. Extenuating circumstances are verified cases of accidents, illnesses, or other circumstances that might include documented changes in the student's economic situation or evidence that the student was unable to obtain essential student support services. Extenuating circumstances also includes special consideration of the specific factors associated with Veterans, CalWORKs, EOPS, and DSPS student status.

Foster Youth shall not be subject to loss of California College Promise Grant due to placement on academic or progress probation. This exemption for Foster Youth is effective until the date specified in Education Code Section 66025.9 subdivision (c).

Students Enrolled in a Baccalaureate Degree Program

Students enrolled in a baccalaureate degree program who wish to apply for a California College Promise Grant (CCPG) waiver must submit either a Free Application for Federal Student Aid (FAFSA) or a California Dream Act application in lieu of completing the Board of Governors Fee Waiver application.

Scholarship Displacement

The District shall not reduce the institutional gift aid offer of a student who is eligible to receive a federal Pell Grant award or financial assistance under the California Dream Act for an academic year as a result of private scholarship awards designated for the student unless

the student's gift aid exceeds the student's annual cost of attendance. The District shall not consider receipt or anticipated receipt of private scholarships when considering a student who is eligible to receive a federal Pell Grant award or financial assistance under the California Dream Act for qualification for institutional gift aid.

Approved: 2/6/06
Revised: 10/8/12
Revised: 12/9/19
Revised: 9/11/23

AP 5140 Disabled Student Services and Programs

References:

Title 5~~,~~ Sections 56000 et seq.

The District maintains a plan for the provision of programs and services to disabled students designed to assure that they have equality of access to District classes and programs.

Students will receive a response to accommodation requests involving academic adjustments which, at a minimum, provides for an individualized review of each such request, and permits interim decisions on such requests pending final resolution by the appropriate administrator or designee within three to ten (3-10) days.

Long Term Goals for the Office for Students with Disabilities (OSD) Program

The goals of the OSD Program will provide disabled students equal access to education by providing quality support services that directly relate to ~~a~~ students' limitations as a result of their disability; assist students with their understanding and acceptance of their limitations as a result of their disability; foster independence by helping students to articulate their needs to AVC instructors and staff; and contribute to the educational success of all students with disabilities on the AVC campus.

Short-term Measurable Objectives for the OSD Program

Students will gain an increased awareness and understanding of their disability, or disabilities and their functional limitations that result from their disability.

Students with disabilities will learn the specific support services/reasonable accommodations that have been recommended by OSD staff and that they are entitled to receive as a result of their disability. Students with disabilities will have increased awareness and understanding regarding the recommended reasonable accommodations/ supportive services that they are entitled to receive.

Office for Students with Disabilities (OSD), Program Eligibility:

A student with a disability is a person enrolled at a community college who has a verified impairment that limits one or more major life activities, which imposes an educational limitation. An educational limitation prevents the student from fully benefiting from classes, activities or services offered to non-disabled students, without specific additional support services or instruction. Services and accommodations provided by OSD must be directly related to the student's educational limitation.

Support Services, Technology Accessibility and Instruction

OSD staff will work with students on an individual basis to determine what reasonable accommodations, or support services are required as a result of a student's disability.

Verification from an appropriate professional may be required before any support services/reasonable accommodations can be recommended. Furthermore, all support services/reasonable accommodations must address the student's educational functional limitations as a result of their disability.

Educational Assistive Class KINF 100: This physical education course is designed for students who have physical limitations and who wish to participate in an individualized physical exercise program that will meet their individual needs. KINF 100 students will have the use of adaptive weight machines, aerobic bicycles, tread mills, and a heated pool with a lift.

Alternative Media: Conventional print converted into Braille, large print audio materials, and flash drives.

Alternative Seating: Accessible tables and chairs available in all classrooms.

Assistive Listening Device: Amplification device worn by hard of hearing persons so they can hear the instructor and classroom discussions.

Close Captioning: Captioning of videos, DVDs, and visual media.

Equipment Checkout: Equipment for checkout include calculators, spell checkers, audio recorders, and audio formatted textbooks.

High Tech Center: Training for students on adaptive computerized hardware and software. Assistive technology available includes closed circuit TVs (CCTV), PC based screen readers and print reading programs (i.e., Jaws, Kurzweil 1000 and 3000).

Sign Language (ASL) Interpreter Service: ASL interpreters utilized in classroom and AVC campus functions, upon reasonable request.

Peer note takers: Copy of a peer's classroom notes, on a voluntary basis.

Priority Registration: First group of students allowed to register.

Reader/Scribe: Student Aide who reads, or writes for a disabled person in a classroom, or during an exam.

Learning Ally: Audio textbooks or downloads.

Registration Assistance: Help for students during the registration process.

Real Time Captioning: Use of a transcriptionist to transcribe the classroom lecture, either in- person or remotely, for students who are deaf or hard of hearing.

Test Accommodations: Use of readers, scribes, and or extended time for exams.

Participation by students with disabilities in the Office of Students with Disabilities shall be entirely voluntary.

Receiving support services or instruction authorized under this subchapter shall not preclude a student from also participating in any other course, program or activity offered by the college.

- No qualified individual with a disability may be discriminated against by a department, agency, special purpose district, or other instrumentality of a state or local government (Title 2 of the Americans with Disabilities Act).

- No qualified handicapped student shall, on the basis of handicap, be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination under any postsecondary education program or activities (Section 504 Regulations, Section, 104.43[a]).

- An institution shall make such modifications to its academic requirements as are necessary to ensure that such requirements do not discriminate or have the effect of discriminating, on the basis of handicap, against a qualified handicapped applicant or students. Modifications may include changes in the length of time permitted for the completion of degree requirements, substitution or specific courses required for the completion of degree requirements, and adaptation of the manner in which specific courses are conducted (Section 504 Regulations, Section, 104.44[a]).

- The modifications postsecondary institutions are required to make may be referred to as “academic adjustment” or “reasonable accommodation.” Examples of academic accommodation include modification to degree requirements (e.g., time to complete the degree, course substitution/waiver, adaptation in the manner in which a course is conducted), modifications to course examinations (e.g., additional time, alternative testing measures), and the use of auxiliary aides (e.g., readers, calculators).

All records maintained by OSD personnel pertaining to students with disabilities shall be protected from disclosure and shall be subject to all other requirements for handling of student records as provided in Subchapter 2 of chapter 5 of this Division.

OSD Accommodation Process:
A Disability Services Specialist or director in the Office for Students with Disabilities program will work collegially with all students that have disabilities, the faculty, and staff to arrive at an appropriate accommodation that will meet the student’s individual and

specific needs.

The accommodation process shall be as follows:

1. The student will complete an Intake Application, which includes their disability verification documents. An appointment will be scheduled with a Disability Services Specialist to discuss and determine the accommodation(s).

2. The Academic Accommodation Plan (AAP) will be completed, which includes the student's Educational Limitations, Academic Adjustments, and Auxiliary Aids.

3. Services and/or Instruction Approved for this student, along with a signature portion.

4. The OSD Accommodation form will include the student's course adjustments and auxiliary aids, without the student's educational limitations. This is the form students will use to provide to their instructors to receive accommodations. The OSD Accommodation form is also the written contract for the student stating their specific accommodations.

When a mutually accepted accommodation cannot be reached between an OSD staff member and a student, the student will be sent an Accommodation Denial form explaining the denial, which will include contact information to appeal to the Vice President of Student Services, who will make the final determination.

For community members other than students, AVC activities, services, and programs can be accessed electronically at the AVC.EDU Human Resources webpage, under forms. Reasonable accommodation requests can also be accessed electronically at the AVC OSD webpage (AVC.EDU). This request form is to be utilized when a person with a disability feels that an accommodation will be necessary for them to participate in any of AVC's activities, services, and programs.

Advisory Committee.
AVC shall establish, an advisory committee, which shall meet not less than once per year.

The OSD Advisory Committee shall meet at least once a year, at a minimum, and include students with disabilities and representatives of the disability community and agencies or organizations serving persons with disabilities.

Approved: 2/6/06
Revised: 5/12/08
Revised: 10/8/12
Revised: 5/14/18

Revised: 11/9/20

AP 5150 Extended Opportunity Programs and Services

References:

Education Code Sections 69640-69656;
Title 5 Sections 56200 et seq.

AVC Extended Opportunity Programs and Services (EOPS) Program Plan

The EOPS Program Plan is to be completed in compliance with Title 5 Section 56270, Contract Plan:

> Districts wishing to participate in EOPS shall submit for approval by the Chancellor of the California Community Colleges a plan, which conforms to the provisions of this chapter for each college within the District that intends to conduct an EOPS program. A college plan approved by the Chancellor of the California Community Colleges shall constitute a contract between the District that operates the college and the Chancellor of the California Community Colleges. Changes to the program plan may be made only with the prior written approval of the Chancellor of the California Community Colleges.

The EOPS Program is defined in terms of "components", "activities", and "functions."

Staffing and Program Management:
EOPS services and programs at Antelope Valley College shall be provided by a certificated director, instructors, counselors, and other support staff employed by the governing board of the community college district. All staff funded by EOPS who are not supervised by the EOPS director shall be accountable to the EOPS director for the services rendered to EOPS students pursuant to the approved EOPS program plan.

Documentation and Data Collection System:
Antelope Valley College has documentation and data collection functions that provide data, which impacts internal management decision-making in the areas of program cost effectiveness, evaluation of program activities and services and their effectiveness, monitoring and or tracking the EOPS eligibility of students served. Example of functions would include: Output Data and Analysis Functions, Outcome Data and Analysis Functions, Impact Data and Analysis Functions, EOPS Services Data Functions, EOPS Student and/or Personnel Data Cards Functions, EOPS Needs Analysis and Need Statistics Functions.

EOPS Advisory Committee:
Antelope Valley College's EOPS program has an Advisory Committee appointed by the Superintendent/President upon recommendation of the EOPS Director. The committee shall meet not less than once per year. The advisory committee should include representation from college personnel, EOPS students, local or feeder high schools,

community and business sectors, and four-year colleges where possible.

A Full Time Director:
Antelope Valley College funds a full-time EOPS director to directly manage and/or coordinate the daily operation of the programs and services offered, and to supervise and/or coordinate the staff assigned to perform EOPS activities.

Eligibility Criteria:
To receive programs and services a student must:

a. Be a resident of California pursuant to the provisions of Part 41 commencing with Education Code Section 68000 ~~of the Education Code~~.
b. Be enrolled full-time when accepted into the EOPS program. The EOPS director may authorize up to ten percent (10%) of EOPS students accepted to be enrolled for nine (9) units.
c. Not have completed more than seventy (70) units of degree applicable credit coursework in any combination of postsecondary higher education institutions.
d. Qualify to receive a Board of Governors Grant pursuant to Title 5 Section 58620 (1) or (2).
e. Be educationally disadvantaged as determined by the EOPS director or designee. In making that determination, the EOPS director shall consider one or more of the following factors:
    1. Not qualified at the college of attendance for enrollment into the minimum level English or mathematics course that is applicable to the associate degree.
    2. Not have graduated from high school or obtained the General Education Diploma (G.E.D.).
    3. Graduated from high school with a grade point average below 2.50 on a 4.00 scale.
    4. Been previously enrolled in remedial education.
    5. Other factors set forth in the District's plan submitted to the Chancellor of the California Community Colleges pursuant to Title 5 Section 56270 of this part.

Recruitment and Outreach Services:
Antelope Valley College provides access services to identify EOPS eligible students and facilitate their enrollment in the college. Access services include but are not limited to:

a. Outreach and recruitment to enroll low-income, educationally disadvantaged, students who want to attend college
b. Orientation to familiarize EOPS eligible students with the function of college and EOPS programs and services; college catalog, application, and registration process, emphasizing academic and grading standards, college terminology, course add and drop procedures and related rules; financial aid application procedures, and transfer procedures to four-year institutions
c. Priority registration

Cognitive and Non-Cognitive Assessment, Advising, Orientation Services and Registration Assistance:
Antelope Valley College assesses EOPS eligible students using multiple measures self-guided methods that the college Superintendent/President certifies are reliable, valid, and appropriate for students being assessed. All self-guided results shall be explained and interpreted to EOPS students by counselors trained in the use and meaning of such assessments. Services provided but not limited to, include:

- Study skill assessment that determines how well the student is able to take lecture notes, outline written material, use library services, and use effective study techniques.
- Support service assessment that determines what services the student may need to attend regularly and participate in campus life (such as the need for financial aid, child care, part-time employment, or extracurricular pursuits).

Basic Skills Instruction, Seminars, and Tutorial Assistance:
Antelope Valley College provides basic skills instruction and tutoring services to EOPS eligible students who on the basis of assessments and counseling need such services to succeed in reaching their educational goals.

Counseling and Retention Services:
Antelope Valley College's EOPS program provides counseling and advisement to EOPS eligible students of at least three contact sessions per term for each student as follows:

- A contact session which combines interview interpretation of self-guided placement results to prepare a student educational plan and a mutual responsibility contract specifying what programs and services the student shall receive and what the student is expected to accomplish.
- An in-term contact session to ensure the student is succeeding adequately, that programs and services are being provided effectively, and to plan changes as may be needed to enhance student success.
- A term-end or program exit contact session to assess the success of students in reaching the objectives of that term, the success of the programs and services provided in meeting student needs, and to assist students to prepare for the next term of classes, or to make future plans if students are leaving the EOPS program or the college.

Transfer and Career Employment Services:
Antelope Valley College provides assistance to EOPS eligible students to transfer to four-year institutions and/or to find career employment in their field of training. Appropriate college and EOPS staff shall attempt to articulate coursework and support services needed by EOPS students with four- year institutional staff, particularly four-year institutional staff who are responsible for programs and services that are similar to EOPS.

Direct Aid:

Antelope Valley College's EOPS program may provide financial assistance in the form of EOPS grants and work-study to EOPS eligible students for the purpose of reducing potential student loan indebtedness, or to reduce unmet financial need, after Pell grants and other state, federal, or institutional financial aid has been awarded to the student.

Establishment of Objectives to Achieve the Goals in Implementing Extended Opportunity Programs and Services; Antelope Valley College's EOPS program plan contains:

a. The long-term goals of the EOPS program in supporting the goals of the college and the goals adopted for EOPS by the Board of Governors.
b. The objectives of the EOPS program to be attained in the fiscal year for which EOPS funds are allocated.
c. The activities to be undertaken to achieve the objectives, including how the college plans to meet the standards.
d. An operating budget which indicates the planned expenditures of EOPS funds, and of other district funds to be used to finance EOPS activities
e. The number of students to be served.
f. An evaluation of the results achieved in the prior year of funding.

Review and Evaluation of the Programs and Services and Submission of Related Reports:

Antelope Valley College's plan and requests for funding is submitted on or before the deadline and is reviewed and evaluated by the Chancellor of the California Community Colleges. The Chancellor of the California Community Colleges approves plans for funding in whole or in part. As for evaluation, Antelope Valley College participates annually in an evaluation of the effectiveness of the program, which is conducted by the Chancellor of the California Community Colleges. The annual evaluation may include on-site operational reviews, audits, and measurements of student success in achieving their educational objectives.

Approved: 2/6/06
Revised: 3/9/20

AP 5200 Student Health Services

Reference:

Education Code Section 76401

Antelope Valley College Student Health Services shall provide limited professional medical care for common health problems, provide treatment to uninsured students and provide support and referral to all students in order to assist them in achieving their educational goals and objectives.

The Health Services program may include, but is not limited to:

- Health education, consultation, referrals and psychological services and programs.
- Assessment, intervention and medical services, referral services, health appraisal, screening, first aid and urgent care, medications, health and psychological counseling and crisis intervention.
- Health and wellness physicals, including physicals for related academics. Immunizations.
- Health promotions and educational activities. Communicable disease control programs and services.
- Programs and services designed to prevent illness and injury.
- Advisory services and facilities modification advice for promotion of a healthy campus community.
- Advising college administration in the implementation of all state and federal laws pertaining to college health issues.

Also see BP/AP 5030 Fees, BP 5200 Student Health Services, BP 5205 Student Accident Insurance, and BP/AP 5210 Communicable Disease.

Approved: 2/6/06
Revised: 3/9/20

AP 5203 Lactation Accommodation

Reference:

Education Code Section 66271.9

The District shall provide reasonable accommodations (T700D Lancaster Campus; By arrangement at Palmdale Center Student Services) for a lactating student to express breast milk, breast-feed an infant child, or address other needs related to breast-feeding whenever a student is required to be present on campus. Reasonable accommodations include, but are not limited to, all of the following:

1. Access to a private and secure room, other than a restroom, to express breast milk or breast-feed an infant child. The room shall have a comfortable place to sit and have a table or shelf to place equipment described in paragraph (3).
2. Permission to bring onto a college campus a breast pump and any other equipment used to express breast milk.
3. Access to a power source for a breast pump or any other equipment used to express breast milk.

Lactating students shall be provided a reasonable amount of time to accommodate their need to express breast milk or breast-feed an infant child.

Students shall not incur an academic penalty as a result of their use of the reasonable accommodations, and shall be provided the opportunity to make up any work missed due to such use.

Also see BP/AP 5200 Student Health Services and AP 7348 Accommodations.

Approved: 11/9/20

AP 5210 Communicable Disease

Reference:

Education Code Section 76403

Antelope Valley College will cooperate with local health officers in measures necessary for the prevention and control of communicable diseases in students and comply with any immunization program required by State Department of Health Services regulations.

Also see BP/AP 5200 Student Health Services, BP 5205 Student Accident Insurance, and BP 5210 Communicable Disease.

Approved: 2/6/06
Revised: 3/9/20

AP 5220 Shower Facilities for Homeless Students

References:

Education Code Section 76011

The district maintains shower facilities for student use on campus that may be used by any homeless student who is enrolled, has paid enrollment fees, and is in good standing with the district and whose enrollment fees have been paid.

A homeless student is defined as a student who does not have a fixed, regular, and adequate nighttime residence. This includes, but is not limited to, students who: are sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason; are living in motels, hotels, trailer parks, or camping grounds due to lack of alternative accommodations; are living in emergency or transitional shelters; have a primary nighttime residence that is a public or private place not designated for or ordinarily used as a regular sleeping accommodation for human beings; or are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings.

Shower facilities for Women at Locker Room 145 and Locker Room 125 for Men and are open to use by homeless students as arranged by mutual agreement between the student and the Dean of Student Life and Services as long as it does not conflict with the intercollegiate athletic program.

New 5/8/17

AP 5300 Student Equity

References:

Education Code Sections 66030, 66250 et seq., and 72010 et seq.;
Title 5 Section 54220

The District has a student equity plan. The plan is filed as required to the California Community Colleges Chancellor's Office, following approval by the Board of Trustees.

The District's Student Equity Plan will have the following:

- Active involvement of each group on campus (administration, faculty, classified staff, confidential management supervisory staff, and students).
- Involvement by appropriate people from the community who can articulate the perspective and concerns of historically underrepresented groups.
- Include campus-based research as to the extent of student equity.
- Identify institutional barriers to equity.
- Establish goals for access, retention, degree and certificate completion, English as a Second Language (ESL) and basic skills completion, and transfer for each historically underrepresented group.
- Develop activities most likely to be effective to attain the goals, including coordination of existing student equity related programs.
- Determine sources of funds for the activities in the plan.
- Schedule and process for evaluation of progress towards the goals.
- Write an executive summary that describes the groups for whom goals have been set, the goals, and the initiatives that the District will undertake to achieve the goals, the resources budgeted for that purpose, and the District officer or employee who can be contacted for further information.

The Student Equity Plan shall be developed, maintained, and updated under the supervision of the Vice President of Student Services.

Approved: 2/6/06
Revised: 3/9/20

AP 5400 Associated Student

Reference:

Education Code Section 76060

Antelope Valley College shall have one Associated Student Organization (ASO), which shall be the official voice of the students in the District.

The ASO officers shall be elected by a majority of the students voting in an election. ASO shall keep an account of its meetings, expenditures, authorizations and policies established. A simple majority of the elected voting members of the ASO governing body shall constitute a quorum.

Also see BP/AP 2510 Participation in Local Decision-Making, BP 5400 Associated Student Organization, BP/AP 5410 Associated Student Organization Elections, and BP/AP 5420 Associated Student Organization Finance.

Approved: 2/6/06
Revised: 11/9/20

AP 5410 Associated Student Organization Elections

Reference:
Education Code Section 76061

The Associated Students Organization shall conduct annual elections to elect officers.

Any student elected as an officer in the Associated Students Organization shall meet the requirements stated in BP 5410 Associated Student Organization Elections.

The Associated Student Organization (ASO) and the ASO Advisor shall review and revise the Election Code prior to each election. If any changes occur, the ASO and the college administration must approve.

Also see BP/AP 2015 Student Trustee, BP/AP 2105 Election of Student Trustee, BP/AP 5400 Associated Student Organization, BP 5410 Associated Student Organization Elections, and BP/AP 5420 Associated Student Organization Finance.

Approved: 2/6/06
Revised: 3/9/20

AP 5420 Associated Student Organization and Student Clubs and Organization Finance

Reference:

Education Code Sections 76063-76065

The College administration shall be responsible for the supervision of the Associated Student Organization (ASO) and all student clubs and organizations funds to ensure that accounting, business practices, and deposit of all funds are in accordance with applicable laws, regulations, and accounting standards. ASO and each student club and organization shall be permitted to recommend policies and procedures regarding the governance of their funds to the Student Development and College Activities Office for approval.

The ASO and the student clubs and organizations funds are maintained in accordance with the following procedures:

- All financial records and procedures are subject to annual audit.
- Reports of the annual audit of the ASO and student clubs and organizations funds are submitted to the Dean of Student Services and Director of Business Services.
- Audit information, except that which contains personnel or other confidential information, shall be released to the ASO by the Vice President of Business Services.
- ASO funds and all student club and organizations funds shall be deposited with and disbursed by the District's Dean of Student Services through the Accounting Assistant in Student Development and College Activities Office.
- All ASO and student club and organization funds are subject to follow the districts general policies of purchasing and accounting procedures.
- The funds shall be deposited, loaned or invested in the following ways:
- Deposits in trust accounts of the centralized State Treasury system pursuant to Sections 16305 to 16305.7, inclusive, of the Government Code or in a bank or banks whose accounts are insured by the Federal Deposit Insurance Corporation.
- Investment certificates or withdrawable shares in state-chartered savings and loan associations and savings accounts of federal savings and loan associations, if the associations are doing business in this state and have their accounts insured by the Federal Savings and Loan Insurance Corporation and if any money so invested or deposited is invested or deposited in certificates, shares, or accounts fully covered by the insurance.
- Purchase of any of the securities authorized for investment by Section 16430 of the Government Code or investment by the Treasurer in those securities.
- Participation in funds that are exempt from federal income tax pursuant to Section 501(c)(3) of the Internal Revenue Code and that are open exclusively to nonprofit colleges, universities, and independent schools.
- Investment certificates or withdrawable shares in federal or state credit unions, if the credit unions are doing business in this state and have their accounts insured by the National Credit Union Administration and if any money so invested or deposited is invested or deposited in certificates, shares, or accounts fully covered by the insurance.

- Loans, with or without interest, to any student body organization established in another community college of the District for a period not to exceed three years.
- Investment of money in permanent improvements to any community college District property including, but not limited to, buildings, automobile parking facilities, gymnasiums, swimming pools, stadium and playing fields, where those facilities, or portions thereof, are used for conducting student extracurricular activities or student spectator sports, or when those improvements are for the benefit of the student body.

All funds shall be expended subject to such procedures as may be established by the Associated Student Organization subject to the approval of each of the following three persons. Approval from all three persons shall be obtained each time before any funds may be expended. No student body funds shall be used to support the operations of the District.

- 1. The President or designee;
- 2. The officer or employee of the District who is the designated advisor of the particular club and/or the designated advisor of the ASO; and
- 3. A representative of the ASO or the student club or organization whose funds are being expended.

2/6/06
Revised: 4/11/16

AP 5520 Student Discipline Procedures

References:

Education Code Section 66017, 66300, 72122, and 76030, et seq.; Penal Code Section 626.4

The purpose of this procedure is to provide a prompt and equitable means to address violations of the Standards of Student Conduct, which guarantees the student or students involved the due process rights guaranteed them by state and federal constitutional protection. This procedure will be used in a fair and equitable manner, and not for purposes of retaliation. It is not intended to substitute for criminal or civil proceedings that may be initiated by other agencies.

These administrative procedures are specifically not intended to infringe in any way on the rights of students to engage in free expression as protected by the state and federal constitutions, and by Education Code Section 76120, and will not be used to punish expression that is protected.

Definitions

District – The Antelope Valley Community College District.

Student – Any person currently enrolled as a student at any college or in any program offered by the District.

Instructor – Any academic employee of the District in whose class a student subject to discipline is enrolled, or counselor who is providing or has provided services to the student, or other academic employee who has responsibility for the student's educational program.

Short-Term Suspension – Exclusion of the student by the Superintendent/President for good cause from one or more classes for a period of up to ten consecutive days of instruction.

Long-Term Suspension – Exclusion of the student by the Superintendent/President for good cause from one or more classes for the remainder of the school term, or from all classes and activities of the college for one or more terms.

Written or Verbal Reprimand – An admonition to the student to cease and desist from conduct determined to violate the Standards of Student Conduct. Written reprimands may become part of a student's permanent record at the college. A record of the fact that a verbal reprimand has been given may become part of a student's record at the college for a period of up to one year.

Withdrawal of Consent to Remain on Campus – Withdrawal of consent by the vice president of student services or designee for any person to remain on campus in accordance with California Penal Code Section 626.4 where the vice president of student services has reasonable cause to believe that such person has willfully disrupted the orderly operation of the campus.

Day – Days during which the District is in session and regular classes are held, excluding Saturdays and Sundays.

Notification of Alleged Code of Conduct Violation

Upon receiving information that the Standards of Student Conduct may have been violated, written notification to the student or students will be sent outlining the allegations, and instructing them to schedule an appointment with the vice president of student services. With the exception of a minor, who must be accompanied by a parent or guardian, the student shall not have an advisor or legal representation at this meeting, unless approved/permitted by the vice president of student services.

The Board of Trustees provides the following sanctions for violation of the Standards of Student Conduct. One or more of the sanctions listed below may be imposed for any single or multiple violation(s). Any times specified in these procedures may be shortened or lengthened, if there is mutual concurrence by the parties.

Section I: List of Sanctions

- *Reprimand*

  A reprimand is a warning stating that the continued conduct of the type described in the reprimand may result in a subsequent formal action against a student by the District.

  - Verbal: Verbal notification to the student by a college staff member in a position of authority that continuance of the conduct may be cause for further disciplinary action. A record of the fact that a verbal reprimand has been given may become part of a student's record at the college for a period of up to one year.
  - Written: A written notification to a student by the vice president of student services to cease and desist from conduct determined to violate the Standards of Student Conduct. Written reprimands may become part of a student's permanent record at the college.

  The college is not required to provide an appeal process for students who receive a written or verbal reprimand.

- Temporary Suspension by Instructor (Education Code Section 76032):
  - An instructor may order a student removed from his/her class for the day of suspension and the next class meeting.
  - The instructor shall immediately report the suspension (verbally and subsequently in writing) to the appropriate dean and to the vice president of student services.
  - A conference will be initiated between the student, the instructor and division dean regarding the removal.
  - The student shall not be returned to the class during the period of the removal, without the concurrence of the instructor, the instructor's dean and the vice president of student services.

- No instructor shall be allowed to suspend a student without first apprising the student of the reason for suspension and permitting such student to present his/her version of the incident causing suspension.
- If the student is a minor, the instructor shall ask the parent or guardian of the student to attend a parent conference regarding the suspension as soon as possible. A college administrator shall attend the conference, if the instructor or parent or guardian so requests.
- Nothing herein will prevent the vice president of student services from recommending further disciplinary procedures in accordance with these procedures based on the facts that led to the removal, or the student's previous violations.

.3 *Disciplinary Probation*

Disciplinary probation is a formal action of the District against a student for misconduct, and the action may result in the student being removed from all college organization offices and being denied the privilege of participating in all college or student sponsored activities, including public performances. Disciplinary probation may be imposed on a student for a period not to exceed one year. The college is not required to provide an appeal process for students who are placed on disciplinary probation.

- *Restitution*

  Financial compensation for damage to or misappropriation of property. Restitution may take the form of appropriate service to repair or otherwise compensate for damages.

- *Campus Community Service*

  In-kind campus community service may be imposed for violations of the code of conduct.

- *Withdrawal of Consent to Remain on Campus*

  The vice president of student services or designee may notify any person for whom there is a reasonable belief that the person has willfully disrupted the orderly operation of the campus that consent to remain on campus has been withdrawn. If the person is on campus at the time, he or she must promptly leave or be escorted off campus. If consent is withdrawn by the vice president of student services (or designee), a written report must be promptly placed in the student's discipline file.

  Any person as to whom consent to remain on campus has been withdrawn who knowingly reenters the campus during the period in which consent has been withdrawn, except to come for a meeting or hearing, is subject to arrest (Penal Code Section 626.4).

Section II. Short-term Suspensions, Long-term Suspensions, and Expulsions

Before any disciplinary action to suspend or expel is taken against a student, the following procedures will apply:

.1 **Notice** – The vice president of student services will provide the student with written notice of the conduct warranting the discipline. The written notice will include the following:

- The specific section of the Standards of Student Conduct that the student is accused of violating.
- A short statement of the facts supporting the accusation.
- The right of the student to meet with the vice president of student services or designee to discuss the accusation, or to respond in writing.
- The nature of the discipline that is being considered.

.2 **Time limits** – The notice must be provided to the student within 10 days of the date on which the conduct took place; in the case of continuous, repeated or ongoing conduct, the notice must be provided within 10 days of the date on which conduct occurred which led to the decision to take disciplinary action.

.3 **Meeting** – If the student chooses to meet with the vice president of student services or designee, the meeting must occur no sooner than 10 days after the notice is provided. At the meeting, the student must again be told the facts leading to the accusation, and must be given an opportunity to respond verbally or in writing to the accusation.

.4 *Immediate Interim Suspension* (Education Code Section 66017):

The Superintendent/President or designee may order immediate suspension of a student where he/she concludes that immediate suspension is required to protect lives or property and to ensure the maintenance of order. In cases where an interim suspension has been ordered, the time limits contained in these procedures shall not apply, and all hearing rights, including the right to a formal hearing where a long-term suspension or expulsion is recommended, will be afforded to the student within ten (10) days.

.5 *Short-term Suspension*

a) Within 10 days after the meeting described above, the Superintendent/President shall, pursuant to a recommendation from the 10 days, decide whether to impose a short-term suspension, whether to impose some lesser disciplinary action, or whether to end the matter.

b) Written notice of the Superintendent/President's decision shall be provided to the student. The notice will include the length of time of the suspension, or the nature of the lesser disciplinary action.

c) The Superintendent/President's decision on a short-term suspension shall be final.

d) Suspension may include any or all classes of the college and from use of any District facilities. The Superintendent/President may suspend a student for good cause as follows:

- From one or more classes for the remainder of the school term.
- From all classes of the college for one or more terms.

  [During this period of suspension, a student shall not be permitted to enroll in classes at the college. (CA Ed. Code Section 76031)]
- From the use of District facilities and all available services.

In all cases of suspension, the student shall receive official notice from the vice president of student services.

If delivery is refused, the written notification will be considered as being received, and the suspension will go forward.

.6 Long-term Suspension

Within 10 days after the meeting described above, the Superintendent/ President shall, pursuant to a recommendation from the vice president student services, decide whether to impose a long-term suspension. Written notice of the Superintendent/President's decision shall be provided to the student. The notice will include the right of the student to request a formal hearing before a long-term suspension is imposed, and a copy of this policy describing the procedures for a hearing.

.7 *Expulsion*

- Within 10 days after the meeting described above, the Superintendent/President shall, pursuant to a recommendation from the vice president of student services, decide whether to recommend expulsion to the Board of Trustees. Written notice of the Superintendent/President's decision shall be provided to the student. The notice will include the right of the student to request a formal hearing before expulsion is imposed, and a copy of this policy describing the procedures for a hearing. Within 5 days after receipt of the Superintendent/President's decision regarding a long-term suspension or expulsion, the student may request a formal hearing. The request must be made in writing to the vice president of student services.
- After board action, the Superintendent/President shall notify the student by "Certified Mail – Return Receipt Requested," or by hand-delivery with a signed receipt. If delivery is refused, the written notification will be considered as being received, and the board action will go forward. The expulsion may be imposed for a specified or unspecified time, and shall include all programs, services, and activities of the college.
- For expulsions imposed for an unspecified time, the student may, after a reasonable time (not less than one year), request in writing that the college Superintendent/President removes the expulsion. If approved by

the college Superintendent/President, he/she shall make that recommendation to the Board of Trustees. The Superintendent/President shall notify the student of the board's decision.

Section III. College Hearing Panel Procedures

.1 Schedule of Hearing

a) The formal hearing shall be held within 10 days after a formal request for hearing is received.

b) The college hearing panel for any disciplinary action shall be composed of one administrator, one faculty member, and one student. A quorum of three members must be present for the hearing to take place.

c) The Superintendent/President, the president of the academic senate and the ASO president shall each, at the beginning of the academic year, establish a list of at least five persons who will serve on student disciplinary hearing panels. The Superintendent/President shall appoint the college hearing panel members from the names on these lists. However, no administrator, faculty member, or student who has any personal involvement in the matter to be decided, who is a necessary witness, or who could not otherwise act in a neutral manner shall serve on a hearing panel. All members of the hearing panel will be asked to sign a written statement attesting to their neutrality.

.2 College Hearing Panel Chair

The Superintendent/President shall appoint one member of the panel to serve as the chair. The decision of the college hearing panel chair shall be final on all matters relating to the conduct of the hearing, unless there is a vote by both other members of the panel to the contrary.

- **Conduct of the Hearing**

a) Students will be notified, in writing, of the date, time, and place of the hearing.

b) The members of the hearing panel shall be provided with a copy of the allegation(s) against the student and any written response provided by the student before the hearing begins.

c) The facts supporting the allegation(s) shall be presented by a college representative who shall be the vice president of student services or designee.

d) The college representative and the student may call witnesses and introduce oral and written testimony relevant to the issues of the matter. The student shall not have any other representation, except as provided in item (g).

e) Formal rules of evidence shall not apply. Any relevant evidence shall be admitted.

f) Unless the hearing panel determines to proceed otherwise, the college representative and the student shall each be permitted to make an opening statement. Thereafter, the college representative shall make their first

presentation, followed by the student. The college representative may present rebuttal evidence after the student completes his or her evidence. The burden shall be on the college representative to prove, by preponderance of evidence, that the facts alleged are true.

g) The student may represent himself/herself, and may also have the right to be represented by a person of his/her choice. The student shall not be represented by an attorney unless, in the judgment of the hearing panel, complex legal issues are involved. If the student wishes to be represented by an attorney, a request must be presented not less than five days prior to the date of the hearing. If the student is permitted to be represented by an attorney, the college representative may request legal assistance. The college hearing panel may also request legal assistance; any legal advisor provided to the panel may sit with it in an advisory capacity to provide legal counsel, but shall not be a member of the panel, nor vote with it.

h) Hearings shall be closed and confidential unless the student requests that it be open to the public. Any such request must be made no less than 5 days prior to the date of the hearing.

i) In a closed hearing, witnesses shall not be present at the hearing when not testifying, unless all parties and the panel agree to the contrary.

j) The hearing shall be recorded by the college, either by electronic recording or stenographic recording, and shall be the only recording made. No witness who refuses to be recorded may be permitted to give statements. In the event the recording is by electronic recording, the college hearing panel chair shall, at the beginning of the hearing, ask each person present to identify themselves by name, and thereafter shall ask witnesses to identify themselves by name. Electronic recording shall remain in the custody of the district, either at the college or the District office, at all times, unless released to a professional transcribing service. The student may request a copy (in writing) of the recording.

k) All testimony shall be taken under oath; the oath shall be administered by the college hearing panel chair. Written statements of witnesses under penalty of perjury shall not be used, unless the witness is unavailable to testify. A witness who refuses to be recorded is not available.

l) Within five days following the close of the hearing, the hearing panel shall prepare and send to the Superintendent/President a written decision. The decision shall include specific factual findings regarding the allegation(s), and shall include detailed conclusions regarding whether any specific section of the Standards of Student Conduct were violated. The decision shall also include a specific disciplinary action to be imposed, if any. The decision shall be based only on the record of the hearing, and not on matters outside of that record. The record consists of the original allegation(s), the written response, if any, of the student, and the oral and written evidence produced at the hearing.

- Superintendent/President*'s Decision*

  a) Long-Term Suspension

  Within five days following receipt of the college hearing panel's recommended decision, the Superintendent/President shall render a final written decision. The Superintendent/President may accept, modify, or reject the findings, decisions, and recommendations of the college hearing panel. If the Superintendent/ President modifies or rejects the college hearing panel's decision, the Superintendent/President shall review the record of the findings and conclusions, and shall prepare a new written decision, which contains specific factual findings and conclusions. The decision of the Superintendent/President shall be final.

  b) Expulsion

  Within five days following receipt of the college hearing committee's recommended decision, the Superintendent/President shall render a written recommended decision to the Board of Trustees. The Superintendent/President may accept, modify, or reject the findings, decisions, and recommendations of the college hearing panel. If the Superintendent/President modifies or rejects the college hearing panel's decision, the Superintendent/President shall review the record of the hearing, and shall prepare a new written decision, which contains specific factual findings and conclusions.

  The Superintendent/President's decision shall be forwarded to the Board of Trustees in cases in which the expulsion is upheld.

- Board of Trustees Decision

  a) The Board of Trustees shall consider any recommendation from the Superintendent/President for expulsion at the next regularly scheduled meeting of the board after receipt of the recommended decision.

  b) The board shall consider an expulsion recommendation in closed session, unless the student has requested that the matter be considered in a public meeting. Any such request must be made, in writing, no less than five day prior to the date of meeting. (Education Code Section 72122).

c) The student shall be notified in writing, by registered or certified mail or by personal service, at least three days prior to the meeting, of the date, time, and place of the board's meeting. If delivery is refused, the recommendation will be submitted to the board, regardless of whether the student is present.

d) The student may, within 48 hours after receipt of the notice, request that the hearing be held as a public hearing. Even if a student has requested that the board consider an expulsion recommendation in a public meeting, the board will hold any discussion that might be in conflict with the right of privacy of any student, other than the student requesting the public meeting, in closed session.

e) The board may accept, modify, or reject the findings, decisions, and recommendations of the Superintendent/President. If the board modifies or rejects the decisions, the board shall review the record of the hearing, and shall prepare a new written decision, which contains specific factual findings and conclusions. The decision of the board shall be final.

f) The final action of the board on the expulsion shall be taken at a public meeting, and the result of the action shall be a public record of the District. (CA Ed. Code Section 72122).

2/6/06
Revised: 9/10/07
Revised: 9/14/15

AP 5530 Student Rights and Grievances

Reference:

Title IX, Education Amendments of 1972; Education Code Section 76224(a); ACCJC Accreditation Eligibility Requirement 20; ACCJC Accreditation Standard IV.D

.1 **Purpose**:

The purpose of this procedure is to provide a prompt and equitable means of resolving student grievances. These procedures shall be available to any student who reasonably believes a college decision or action has adversely affected his or her status, rights or privileges as a student. The procedures shall include, but not be limited to, grievances regarding:

- Sex discrimination as prohibited by Title IX of the Higher Education Amendments of 1972
- Financial aid
- Course grades to the extent permitted by Education Code Section 76224(a), which provides: "When grades are given for any course of instruction taught in a community college District, the grade given to each student shall be the grade determined by the instructor of the course and the determination of the student's grade by the instructor, in the absence of mistake, fraud, bad faith, or incompetency, shall be final." "Mistake" may include, but is not limited to errors made by an instructor in calculating a student's grade and clerical errors. Prior to filing a grievance, students should refer to AP 4231 for the process to request a change of grade.
- The exercise of rights of free expression protected by state and federal constitutions and Education Code Section 76120.

This procedure does not apply to:

a) Sexual harassment, which is covered under separate Board Policies and Administrative Procedures (AP 3435).

b) Illegal discrimination, which is covered under separate Board Policies and Administrative Procedures (AP 3435).

c) Student disciplinary actions, which are covered under separate Board Policies and Administrative Procedures (AP 5520).

d) Police citations - complaints about citations issued by the Campus Sheriff's Department for violations such as parking and registration, may be appealed through the Campus Sheriff's Department, *however,* citations issued by off-campus LASD personnel must be appealed through the County Courthouse.

.2 **Definitions**:

a) Party. The student or any persons claimed to have been responsible for the student's alleged grievance, together with their representatives. "Party" shall not include the Grievance Hearing Committee or the college grievance officer.

b) Superintendent/President. The Superintendent/President or a designated representative of the Superintendent/President.

c) Student. A currently enrolled student, a person who has filed an application for admission to the college, or a former student. A grievance by an applicant shall be limited to a complaint regarding denial of admission. Former students shall be limited to grievances relating to course grades to the extent permitted by Education Code Section 76224(a).

d) Respondent. Any person claimed by a grievant to be responsible for the alleged grievance.

e) Day. Unless otherwise provided, day shall mean a day during which the college is in session and regular classes are held, excluding Saturdays and Sundays.

.3 Informal Resolution

a) Each student who has a grievance shall make a reasonable effort to resolve the matter on an informal basis prior to requesting a grievance hearing, and shall attempt to solve the problem with the person with whom the student has the grievance, that person's immediate supervisor, or the local college administration.

b) The Superintendent/President shall appoint an employee who shall assist students in seeking resolution by informal means. This person shall be called the Grievance Officer. The Grievance Officer and the student may also seek the assistance of the Associated Student Organization in attempting to resolve a grievance informally.

c) Informal meetings and discussion between persons directly involved in a grievance are essential at the outset of a dispute and should be encouraged at all stages. An equitable solution should be sought before persons directly involved in the case have stated official or public positions that might tend to polarize the dispute and render a solution more difficult. At no time shall any of the persons directly or indirectly involved in the case use the fact of such informal discussion, the fact that a grievance has been filed, or the character of the informal discussion for the purpose of strengthening the case for or against persons directly involved in the dispute or for any purpose other than the settlement of the grievance.

d) Any student who believes he or she has a grievance shall file a Statement of Grievance Form detailing (time(s), place(s), and nature of grievance which must be filed with the Grievance Officer within 10 days of the incident on which the grievance is based, or 10 days after the student learns of the basis for the grievance, whichever is later. The Statement of Grievance, whether or not the student has already initiated efforts at informal resolution, must be filed within the timelines, if the student wishes the grievance to become official. Within 10 days following receipt of the Statement of Grievance Form, the Grievance Officer shall advise the student of his or her rights and responsibilities under these procedures, and assist the student, if necessary, in the final preparation of the Statement of Grievance form.

e) If at the end of 10 days following the student's first meeting with the Grievance Officer, there is no informal resolution of the complaint which is satisfactory to the student, the student shall have the right to request a grievance hearing.

.4 Grievance Hearing Committee

a) The Superintendent/President or designee shall at the beginning of each academic year establish a standing panel of 18 members of the college community, including 6 students, 6 faculty members and 6 administrators, from which one or more Grievance Hearing Committees may be appointed. The panel will be established with the advice and assistance of the Associated Students Organization and the Academic Senate, who shall each submit 6 names to the Superintendent/President or designee for inclusion on the panel.

b) A Grievance Hearing Committee shall be constituted in accordance with the following:

- It shall include one student, one instructor (three if grievance is regarding a grade), and one college administrator selected from the panel described above.

- A quorum of three members must be present for the hearing to take place and at least two must be a faculty member in grade grievances.

- No person shall serve as a member of a Grievance Hearing Committee if that person has been personally involved in any matter giving rise to the grievance, has made any statement on the matters at issue, or could otherwise not act in a neutral manner.

- All members of the Grievance Hearing Committee will be asked to sign a written statement attesting to their neutrality.

- Any party to the grievance may challenge for cause any member of the hearing committee prior to the beginning of the hearing by addressing a challenge to the Superintendent/President or designee who shall determine whether cause for disqualification has been shown. If the Superintendent/President or designee feels that sufficient grounds for removal of a member of the committee has been presented, the Superintendent/President or designee shall remove the challenged member or members and substitute a member or members from the panel described above. This determination is subject to appeal as defined below. The grievance officer shall sit with the Grievance Hearing Committee but shall not serve as a member nor vote.

.5 Request for Grievance Hearing

a) Any request for a grievance hearing shall be filed within 10 days after filing the Statement of Grievance as described above.

b) Within 30 days following receipt of the Request for Grievance Hearing, the Superintendent/President or designee shall appoint a Grievance Hearing Committee as described above, and the Grievance Hearing Committee shall meet in private and without the parties present to select a chair and to determine on the basis of the Statement of Grievance whether it presents sufficient grounds for a hearing.

c) The determination of whether the Statement of Grievance presents sufficient grounds for a hearing shall be based on the following:

- The statement contains facts which, <u>if true,</u> would constitute a grievance under these procedures;

- The grievant is a student as defined in these procedures, which include applicants and former students;
- The grievant is personally and directly affected by the alleged grievance;
- The grievance was filed in a timely manner;
- The grievance is not clearly frivolous, clearly without foundation, or clearly filed for purposes of harassment.

d) If the grievance does not meet each of the requirements, the Grievance Hearing Committee chair shall notify the student in writing of the rejection of the Request for a Grievance Hearing, together with the specific reasons for the rejection and the procedures for appeal. This notice will be provided within 10 days of the date the decision is made by the Grievance Hearing Committee.

e) If the Request for Grievance Hearing satisfies each of the requirements, the grievance officer shall schedule a grievance hearing. The hearing will begin within 30 days following the decision to grant a Grievance Hearing. All parties to the grievance shall be given not less than 10 days notice of the date, time and place of the hearing.

.6 Hearing Procedure:

a) The decision of the Grievance Hearing Committee chair shall be final on all matters relating to the conduct of the hearing, unless there is a vote of a majority of the other members of the panel to the contrary.

b) The members of the Grievance Hearing Committee shall be provided with a copy of the grievance and any written response provided by the respondent before the hearing begins.

c) Each party to the grievance may call witnesses and introduce oral and written testimony relevant to the issues of the matter.

d) Formal rules of evidence shall not apply. Any relevant evidence shall be admitted.

e) Unless the Grievance Hearing Committee determines to proceed otherwise, each party to the grievance shall be permitted to make an opening statement. Thereafter, the grievant(s) shall make the first presentation, followed by the respondent or respondents. The grievant(s) may present rebuttal evidence after the respondent(s)' evidence. The burden shall be on the grievant(s) to prove by substantial evidence that the facts alleged are true and that a grievance has been established as specified above.

f) Each party to the grievance may represent himself or herself and may also have the right to be represented by a person of his or her choice. A party shall not be represented by an attorney unless, in the judgment of the Grievance Hearing Committee, complex legal issues are involved. If a party wishes to be represented by an attorney, a request must be presented not less than 10 days prior to the date of the hearing. If one party is permitted to be represented by an attorney, any other party shall have the right to be represented by an attorney. The hearing committee may also request legal assistance through the Superintendent/President; any legal advisor provided to the hearing committee may sit with it in an advisory capacity to provide legal counsel but shall not be a member of the panel nor vote with it.

g) Hearings shall be closed and confidential unless all parties request that it be open to the public. Any such request must be made no less than 10 days prior to the date of the hearing.

h) In a closed hearing, witnesses shall not be present at the hearing when not testifying, unless all parties and the committee agree to the contrary.

i) The hearing shall be recorded by the grievance officer either by electronic recording or stenographic recording, and shall be the only recording made. No witness who refuses to be recorded may be permitted to give testimony. In the event the recording is by electronic recording, the Grievance Hearing Committee chair shall, at the beginning of the hearing, ask each person present to identify themselves by name, and thereafter shall ask witnesses to identify themselves by name. The electronic recording shall remain in the custody of the District, either at the college or the District office, at all times, unless released to a professional transcribing service. Any party may request a copy of the electronic recording.

j) All testimony shall be taken under oath; the oath shall be administered by the Grievance Hearing Committee chair. Written statements of witnesses under penalty of perjury shall not be used unless the witness is unavailable to testify. A witness who refuses to be recorded shall be considered to be unavailable.

k) Within 10 days following the close of the hearing, the Grievance Hearing Committee shall prepare and send to the Superintendent/President a written decision. The decision shall include specific factual findings regarding the grievance, and shall include specific conclusions regarding whether a grievance has been established as defined above. The decision shall also include a specific recommendation regarding the relief to be afforded the grievant, if any. The decision shall be based only on the record of the hearing, and not on matter outside of that record. The record consists of the original grievance, any written response, and the oral and written evidence produced at the hearing.

.7 Superintendent/President's Decision

a) Within 10 days following receipt of the Grievance Hearing Committee's decision and recommendation(s), the Superintendent/President shall send to all parties his or her written decision, together with the Hearing Committee's decision and recommendations. The Superintendent/President may accept or reject the findings, decisions and recommendations of the Hearing Committee.

b) The factual findings of the Hearing Committee shall be accorded great weight; and if the Superintendent/President does not accept the decision or a finding or recommendation of the Grievance Hearing Committee, the Superintendent/President shall review the record of the hearing, and shall prepare a new written decision which contains specific factual findings and conclusions. The decision of the Superintendent/President shall be final, subject only to appeal as provided below.

.8 Appeal

Any appeal relating to a Grievance Hearing Committee decision that the Statement of Grievance does not present a grievance as defined in these procedures shall be made in writing to the Superintendent/President within 30 days of that decision. The Superintendent/President shall review the Statement of Grievance and Request for Grievance Hearing in accordance with the requirements for a grievance provided in these procedures,

but shall not consider any other matters. The Superintendent/ President's decision whether or not to grant a grievance hearing shall be final and not subject to further appeal.

.9 Time Limits

Any times specified in these procedures may be shortened or lengthened if there is mutual concurrence by all parties.

Revised:
2/06/06
3/10/08
8/10/15

AP 5570 Student Credit Card Solicitation

Reference:

Title 5, Section 54400; Civil Code Section 1747.02(m); Education Code Section 99030

Antelope Valley College shall establish procedures for the regulation of credit card solicitation that supports the educational goals of the College and that teaches responsible debt management. The College may regulate credit card solicitation in any of the following ways:

- Establish a limited number of sites at which student credit cards are marketed on campus.
- Require credit card marketers to register with the campus administration.
- Prohibit marketers of student credit cards from offering gifts to students for filling out credit card applications.
- Offer credit card and debt education and counseling sessions to students.
- Require credit card companies to pay all fees associated with marketing to students.

2/6/06

AP 5610 Voter Registration

References:

20 U.S.C. § 1094(a)(23)(A); 34 CFR §668.14(d)(1).)

Antelope Valley Community College District will make a good faith effort to make voter registration forms available through a variety of methods to each enrolled student in a degree or certificate program as well as to graduating students.

Voter registration information is made available to students through the college web site, during online registration, and at the Student Development and College Activities Office. The dean of Student Development and Services is designated as the contact person to be contacted by the Secretary of State for distribution of voter registration cards.

2/6/06
Revised: 7/14/08

AP 5700 Intercollegiate Athletics

Reference:

Education Code 66271.6, 66271.8, 67360 et seq. and 78223;
Title IX, Education Amendments of 1972,
ACCJC Accreditation Standard II.C.4
Community College Athletic Association (CCCAA) Constitution and CCCAA Bylaws

The District shall comply with rules and regulations adopted by voluntary associations, one of whose purposes is to govern intercollegiate athletics, to include the California Community College Athletic Association (CCCAA)), Bylaws and Sports Handbooks, and appropriate Conference Constitutions regarding student athlete participation.

Athletic Drug Testing

The District requires all student athletes to have a sport physical and complete a drug screening. The sports physical must be completed prior to participation in any athletic event. Drug screening may take place randomly, at any time, competition in intercollegiate sports is contemplated by the student athlete throughout the competitive season of sport. This screening is conducted through a medical facility determined by the District.

Name, Image, Likeness, and Athletic Reputation

Prospective Student Athlete: The District will not provide a prospective student athlete with compensation in relation to the athlete's name, image, likeness, or athletic reputation.

Student Athletes: The District will not prevent a student participating in intercollegiate athletics from either earning compensation because of the use of the student athlete's name, image, likeness, or athletic reputation, or from obtaining professional representation by duly licensed athletic agents or attorneys. However, a student athlete may not enter into a contract that provides compensation to the student athlete for their name, image, likeness, or athletic reputation if the contract conflicts with a provision of the student athlete's team contract.

A student who enters into a contract providing compensation for use of the student's name, image, likeness, or athletic reputation must disclose the contract to the Athletic Director/Dean. If the District determines that a conflict between the student athlete's contract and the student athlete's team contract, the Athletic Director/Dean disclose the conflict to the student or student's legal representative, if any, and identify the contractual provisions that conflict.

Any team contract entered into, modified, or renewed on or after September 1, 2021, will not prevent a student athlete from using their name, image, likeness, or athletic reputation for a commercial purpose when the athlete is not engaged in official team activities.

A student athlete's scholarship eligibility will not be impacted because of the student earning compensation for their name, image, likeness, or athletic reputation.

The District will not revoke a student-athlete's scholarship that provides the student-athlete with the cost of attendance as a result of the student athlete earning compensation or obtaining legal representation in accordance with state law.

2/6/06
Revised: 9/10/07
Revised: 2/8/21
Revised: 6/12/23

AP 5800 Prevention of Identity Theft in Student Financial Transactions

Reference:

15 U.S. Code Section 1681m(e) (Fair and Accurate Credit Transactions Act (FACT ACT or FACTA)

I. The Purpose of the Identity Theft Prevention Program

The purpose of this Identity Theft Prevention Program (ITPP) is to control reasonably foreseeable risks to students from identity theft, by providing for the identification, detection, and response to patterns, practices, or specific activities ("Red Flags") that could indicate identity theft.

II. Definitions

"Identity theft" is a fraud attempted or committed using identifying information of another person without authority.

A "creditor" includes government entities who defer payment for goods (for example, payment plans for bookstore accounts or parking tickets), issued loans or issued student debit cards. Government entities that defer payment for services provided are not considered creditors for purposes of this ITPP.

"Deferring payments" refers to postponing payments to a future date and/or installment payments on fines or costs.

A "covered account" includes one that involves multiple payments or transactions.

"Person" means any individual who is receiving goods, receives a loan, and/or is issued a debit card from the District and is making payments on a deferred basis for said goods, loan, and/or debit card.

Detection or discovery of a "Red Flag" implicates the need to take action under this ITPP to help prevent, detect, and correct identity theft.

III. Detecting "Red Flags" For Potential Identity Theft

A. Risk Factors for Identifying "Red Flags"

The District will consider the following factors in identifying relevant "Red Flags:"

1) the types of covered accounts the District offers or maintains;
2) the methods the District provides to open the District's covered accounts;
3) the methods the District provides to access the District's covered accounts; and
4) the District's previous experience(s) with identity theft.

B. Sources of "Red Flags"

The District will continue to incorporate relevant "Red Flags" into this ITPP from the following sources:

1) incidents of identity theft that the District has experienced;
2) methods of identity theft that the District identifies that reflects changes in identity theft risks; and
3) guidance from the District's supervisors who identify changes in identity theft risks.

C. Categories of "Red Flags"

The following Red Flags have been identified for the District's covered accounts:

Alerts, Notifications, or Warnings from a Consumer Reporting Agency:

1) A fraud or active duty alert is included with a consumer report the District receives as part of a background check.
2) A consumer reporting agency provides a notice of credit freeze in response to a request for a consumer report.
3) A consumer reporting agency provides a notice of address discrepancy. An address discrepancy occurs when an address provided by a student substantially differs from the one the credit reporting agency has on file. See Section (V)(9) for specific steps that must be taken to address this situation.
4) A consumer report indicates a pattern of activity that is inconsistent with the history and usual pattern of activity of an applicant, such as:
    (a) A recent and significant increase in the volume of inquiries;
    (b) An unusual number of recently established credit relationships;
    (c) A material change in the use of credit, especially with respect to recently established credit relationships; or
    (d) An account that was closed for cause or identified for abuse of account privileges by a creditor or financial institution.

Suspicious Documents:

5) Documents provided for identification appear to have been forged or altered.
6) The photograph or physical description on the identification is not consistent with the appearance of the applicant or customer presenting the identification.
7) Other information on the identification is not consistent with information provided by the person opening a new covered account or customer presenting the identification.

8) Other information on the identification is not consistent with readily accessible information that is on file with the District, such as a signature card or a recent check.
9) An application appears to have been altered or forged or gives the appearance of having been destroyed or reassembled.

Suspicious Personally Identifying Information:

10) Personal identifying information provided is inconsistent when compared against external information sources used by the District.

    For example:

    (a) The address does not match any address in the consumer report; or

    (b) The Social Security Number (SSN) has not been issued or is listed on the Social Security Administration's Death Master File.

11) Personal identifying information provided by a person is not consistent with other personal identifying information provided by the person. For example, there is a lack of correlation between the SSN range and date of birth.
12) Personal identifying information is associated with known fraudulent activity as indicated by internal or third-party sources use by the District. For example:

    (a) The address on an application is the same as the address provided on a fraudulent application;

    (b) The phone number on an application is the same as the phone number provided on a fraudulent application;

13) Personal identifying information provided is of a type commonly associated with fraudulent activity as indicated by internal or third-party sources used by the District. For example:

    (a) The address on an application is fictitious, a mail drop, or a prison; or

    (b) The phone number is invalid or is associated with a pager or answering service.

14) The SSN provided is the same as that submitted by other persons currently being served by the District.
15) The address or telephone number provided is the same or similar to the account number or telephone number submitted by an unusually large number of other persons being served by the District.
16) The person opening the covered account fails to provide all required personal identifying information on an application or in response to notification that the application is incomplete.
17) Personal identifying information provided is not consistent with personal identifying information that is on file with the District.
18) The person opening the covered account cannot provide authenticating information beyond that which generally would be available from a wallet or consumer report.

Unusual Use Of – Or Suspicious Activity Relating To – A Covered Account:

19) A new covered account is used in a manner that is commonly associated with known patterns of fraud patterns. For example, a person makes a first payment, but there are no subsequent payments made.
20) A covered account is used in a manner that is not consistent with established patterns of activity on the account. For example, there is:
    (a) Nonpayment when there is no history of late or missed payments; or
    (b) A material change in electronic fund transfer patterns in connection with a payment.
21) A covered account that has been inactive for a reasonably lengthy period of time is suddenly used or active.
22) Mail sent to the person holding the covered account is returned repeatedly as undeliverable although transactions continue to be conducted in connection with the person's covered account.
23) The District is notified that the person is not receiving paper account statements.
24) The District is notified of unauthorized transactions in connection with a person's covered account.

Notices from Customers/Persons, Victims of Identity Theft, Law Enforcement Authorities, or Other Businesses About Possible Identity Theft in Connection with Covered Accounts:

25) The District is notified by a person with a covered account, a victim of identity theft, a law enforcement authority, or any other person, that it has opened a fraudulent account for a person engaged in identity theft.

IV. Measures to Detect "Red Flags"

The District shall do the following to aid in the detection of "Red Flags:"

1) When a new covered account is open, the District shall obtain identifying information about, and information verifying the identity of, the student or other person seeking to open a covered account. Two forms of identification shall be obtained (at least one of which must be a photo identification).

   The following are examples of the types of valid identification that a person may provide to verify the identity of the person seeking to open the covered account: valid state-issued driver's license, valid state-issued identification card, current passport, a Social Security Card, current residential lease, or copy of a deed to the person's home or invoice/statement for property taxes.

2) Persons with covered accounts who request a change in their personal information on file, such as a change of address, will have the requested changes verified by the District.

   The person shall provide at least one written form of verification reflecting the requested changes to the personal information. For example, if an address

change is requested, then documentation evidencing the new address shall be obtained. If a phone number change is requested, then documentation evidencing the new phone number, such as a phone bill, shall be obtained.

V. Preventing and Mitigating Identity Theft

One or more of the following measures, as deemed appropriate under the particular circumstances, shall be implemented to respond to "Red Flags" that are detected:

1) Monitor the covered account for evidence of identity theft;
2) Contact the person who holds the covered account;
3) Change any passwords, security codes, or other security devices that permit access to a covered account;
4) Reopen the covered account with a new account number;
5) Not open a new covered account for the person;
6) Close an existing covered account;
7) Not attempt to collect on a covered account or not sell a covered account to a debt collector;
8) Notifying law enforcement;
9) Where a consumer reporting agency provides an address for a consumer that substantially differs from the address that the consumer provided, the District shall take the necessary steps to for a reasonable belief that the District knows the identity of the person for whom the District obtained a credit report, and reconcile the address of the consumer with the credit reporting agency, if the District establishes a continuing relationship with the consumer , and regularly, and in the course of business, provides information to the credit reporting agency; or
10) Determine that no response is warranted under the particular circumstances.

VI. Updating the ITPP

The District shall update this ITPP on an annual basis to reflect changes in risks to persons with covered accounts, and/or to reflect changes in risks to the safety and soundness of the District from identity theft, based on the following factors:

1) The experiences of the District with identity theft;
2) Changes in methods of identity theft;
3) Changes in methods to detect, prevent and mitigate identity theft;
4) Changes in the types of covered accounts that the District maintains;
5) Changes in the business arrangements of the District, including service provider arrangements.

VII. Methods for Administering the ITPP

A. Oversight of the ITPP

Oversight by the District's Director of Financial Aid shall include:

1) Assigning specific responsibility for the ITPP's implementation;
2) Reviewing reports prepared by the staff regarding compliance of the ITPP; and
3) Approving material changes to the ITPP as necessary to address changing identity theft risks.

B. Reports

1) ***In General*.** Staff responsible for the development, implementation, and administration of this ITPP shall report to the Board of Trustees on an annual basis.
2) ***Contents of Report*.** The report shall address material matters to the ITPP and evaluate the following issues: the effectiveness of the policies and procedures in addressing the risk of identity theft in connection with opening new covered accounts and with respect to existing covered accounts; service provider arrangements; significant incidents involving identity theft and management's response; and recommendations for material changes to the ITPP.
3) ***Oversight of Service Provider Arrangements*.** Whenever the District engages a service provider to perform an activity in connection with one or more covered accounts the District shall take steps to ensure that the activity of the service provider is conducted in accordance with reasonable policies and procedures designed to detect, prevent, and mitigate the risk of identity theft. To that end, the District shall require our service contractors, by contract, to have policies and procedures to detect relevant "Red Flags" that may arise in the performance of the service provider's activities, and either report the "Red Flags" to the District, or to take appropriate steps to prevent or mitigate identity theft.

Approved: 11/9/20

AP 6100 Delegation of Authority, Business and Fiscal Affairs

References:

Education Code Sections 70902 subdivision (d), 81644, 81655, and 81656;
Public Contract Code Sections 20651, 20658, and 20659

The Chief Business Officer is delegated authority from the Superintendent/President to supervise budget preparation and management; oversee fiscal management of the District; and contract for, purchase, sell, lease, or license real and personal property, in accordance with board policy and law. Responsibility for the development of internal policies and procedures consistent with the provision of this regulation remains with the Chief Business Officer. This delegated authority is subject to the condition that certain of these transactions be submitted to the Superintendent/President for review and approval from time to time as determined by the Superintendent/President.

When transactions do not exceed the dollar limits established in the Public Contract Code, the Education Code or other laws pertaining to the taking of competitive bids, the Chief Business Officer may contract for goods, services, equipment and rental of facilities so long as the transactions comply with law and any limitations or requirements set forth therein. Furthermore, the Chief Business Officer may amend the terms and conditions of any contractual arrangement so long as the total expenditure of funds and period of contract do not exceed the limitations set forth in applicable law or regulation.

Approved: 4/13/20

AP 6150 Designation of Authorized Signatures

References:

Education Code Sections 85232 and 85233

The Chief Business Officer and/or Executive Director of Fiscal and Financial Services is hereby designated as the District officer authorized to sign warrants on behalf of the District.

The Chief Business Officer and/or Executive Director of Fiscal and Financial Services will withhold approval of District warrants when:

- Disbursement of the funds will result in the total amounts expended in any major account classification to exceed the amount budgeted.

- Established procedures have not been followed to permit verification of authenticity of the expenditure.

Approved: 5/8/06
Revised: 12/9/19
Revised: 3/14/22

AP 6200 Budget Preparation

References:

Education Code Section 70902 subdivision (b)(5);
Title 5 Sections 58300 et seq;
Accreditation Standard III.D

The budget process will include consultation with appropriate groups and will link resource allocations to institutional planning.

The District will maintain a seventeen percent (17% reserve of the prior fiscal year actual unrestricted general fund expenditures in any current budget year to pay obligations, or sixty (60) days of cash on hand in the unrestricted fund, whichever is greater.

A budget calendar that includes presentation of the tentative and final budgets will be distributed with the annual budget call. The tentative budget shall be presented no later than July 1 [Title 5 Section 58305 subdivision (a)], and the final budget no later than September 15 [Title 5 Section 58305 subdivision (c)]. A public hearing on the budget shall be held on or before September 15 [Title 5 Section 58301].

Two (2) copies of the adopted budget to be submitted to the California Community College Chancellor's Office on or before September 30 [Title 5 Section 58305 subdivision (d)].

Submission of appropriate financial reports to include upcoming budgets will be submitted to the California Community College Chancellor's Office via the CCFS311 Report.

Also see BP 6200 Budget Preparation, BP/AP 6250 Budget Management, BP/AP 6300 Fiscal Management, AP 6305 Reserves, AP 6310 Accounting, and AP 6315 Warrants.

Approved: 5/8/06
Revised: 8/13/16
Revised: 4/8/19
Revised: 4/13/20
Revised: 2/13/23

AP 6250 Budget Management

References:

Title 5 Sections 58305, 58307, and 58308

The Antelope Valley Community College District uses the following standards of budget management:

- Total amounts budgeted as the proposed expenditure for each major classification of expenditures shall be the maximum expended for that classification for the school year, except as specifically authorized by the Board of Trustees.
- Transfers may be made from the reserve for contingencies to any expenditure classification by written resolution of the Board of Trustees, and must be approved by a two-thirds (2/3) vote of the members of the Board of Trustees.
- Transfers may be made between expenditure classifications by written resolution of the Board of Trustees, and may be approved by a majority of the members of the Board of Trustees.
- Excess funds must be added to the general reserve of the District, and are not available for appropriation except by resolution of the Board of Trustees setting forth the need according to major classification.

Also see BP/AP 6200 Budget Preparation, BP 6250 Budget Management, BP/AP 6300 Fiscal Management, AP 6305 Reserves, AP 6310 Accounting, and AP 6315 Warrants.

Adopted: 5/8/06
Revised: 11/9/15
Revised: 10/12/20
Reviewed: 2/13/23

AP 6300 Fiscal Management

References:

Education Code Section 84040 (c);
Title 5 Section 58311;
ACCJC Accreditation Standard III.D.9
2 Code of Federal Regulations Parts 200.302 subdivision (b)(6)-(7), 200.305, and 200.400 et seq.

The District uses the following minimum standards as principles for sound fiscal management in Title 5, to ensure that procedures comply with requirements. In addition, the District shall use commonly accepted auditing standards as criteria for fiscal management procedures.

- Provide for responsible stewardship of available resources.

- Provide for safeguarding and managing District assets to ensure ongoing effective operations; maintenance of adequate cash reserves; implementation and maintenance of effective internal controls; determination of sources of revenues prior to making short- term and long-term commitments; establishment of a plan for the repair and replacement of equipment and facilities.

- Provide for an organizational structure that incorporates a clear delineation of fiscal responsibilities and staff accountability.

- Provide that appropriate administrators keep the Board of Trustees current on the fiscal condition of the District as an integral part of policy and decision-making.

- Provide for development and communication of fiscal policies, objectives and constraints to the Board of Trustees, staff, and students.

- Provide for an adequate management information system that gives timely, accurate and reliable fiscal information for planning, decision making and budgetary control.

- Provide for appropriate fiscal policies and procedures and adequate controls to ensure that established fiscal objectives are met.

- Provide a process to evaluate significant changes in the fiscal environment and make necessary, timely, financial and educational adjustments.

- Provide both short term and long-term goals and objectives, and broad-based input coordinated with District educational planning.

- Provide an annual review of the California Community College Sound Fiscal

Management Self-assessment Checklist.

The California Community College's Budget and Accounting Manual shall be used by the District as the official accounting manual.

Also see BP/AP 6200 Budget Preparation, BP/AP 6250 Budget Management, BP 6300 Fiscal Management, AP 6305 Reserves, AP 6310 Accounting, and AP 6315 Warrants.

Adopted: 5/8/06
Revised: 11/9/15
Revised: 5/11/20
Revised: 2/13/23

AP 6305 Reserves

Reference:

Budget and Accounting Manual, Chapter 5; Appendix A

The District shall have as a high budget priority the appropriation in the final budget of an uncommitted reserve in the unrestricted general fund. The Board of Trustees recognizes the need for cash-flow management and the necessity of considering financial uncertainties in the development of the District budget. To this end, the following reserve accounts shall be included in the final budget:

General Reserves

The final budget shall include an unappropriated reserve to ensure that the District will be in a positive cash position at the end of the fiscal year. This reserve shall be (at a minimum) seventeen percent (17%) of prior fiscal year actual unrestricted general fund expenditures and shall not be available for appropriations during the fiscal year.

Reserve for Emergencies

The District budget shall also include an appropriation for reserve for economic uncertainties to cover:

1. unanticipated emergencies;
2. unanticipated declines in property tax revenues or other sources of funds;
3. additional program development activities not considered prior to budget adoption.

Reserve for Scheduled Maintenance

The District budget shall also include an appropriation of a 1% reserve of prior fiscal year actual unrestricted general fund expenditures for scheduled maintenance including salary and benefits due to limited and unreliable governmental financial support, increasing costs, and significant deferred maintenance backlog.

The Superintendent/President is authorized to utilize funds from the emergency fund for urgent situation upon verbal notification to the President of the Board of Trustees or, if he/she cannot be reached, any other member of the Board. Any such use of the reserve shall be reported to the Board of Trustees in the next regularly scheduled open session.

Approved: 5/11/20
Revised: 2/13/23
Revised: 9/11/23

AP 6307 Debt Issuance and Management

References:

Government Code Section 8855;
Title 4 Sections 6000 et seq.

No later than thirty (30) days prior to the sale of any debt issue, the District shall submit a report of the proposed issuance to the California Debt and Investment Advisory Commission through the Commission's online submittal system. The report of the proposed debt issuance shall include a certification by the District that it has adopted local debt policies concerning the use of debt and that the contemplated debt issuance is consistent with those local debt policies.

No later than twenty-on (21) days after the sale of the debt, the District shall submit a report of final sale to the California Debt and Investment Advisory Commission through the Commission's online submittal system. A copy of the final official statement for the issue shall accompany the report of final sale. If there is no official statement, the District shall provide each of the following documents, if they exist, along with the report of final sale:

- Other disclosure document.
- Indenture.
- Installment sales agreement.
- Loan agreement.
- Promissory note.
- Bond purchase contract.
- Resolution authorizing the issue.
- Bond specimen.

The District shall submit an annual report for any issue of debt for which it has submitted a report of final sale on or after January 21, 2017. The annual report shall cover a reporting period from July 1 to June 30, inclusive, and shall be submitted no later than seven months after the end of the reporting period. The annual report shall consist of the following information:

- Debt authorized during the reporting period, which shall include the following: (1) Debt authorized at the beginning of the reporting period; (2) Debt authorized and issued during the reporting period; (3) Debt authorized but not issued at the end of the reporting period; and (4) Debt authority that has lapsed during the reporting period.

- Debt outstanding during the reporting period, which shall include the following: (1) Principal balance at the beginning of the reporting period; (2) Principal paid during the reporting period; and (3) Principal outstanding at the end of the reporting period.

The use of proceeds of issued debt during the reporting period, which shall include the following: (1) Debt proceeds available at the beginning of the reporting period; (2) Proceeds spent during the reporting period and the purposes for which is was spent; and (3) Debt proceeds remaining at the end of the reporting period.

Approved: 7/10/17
Revised**:** 5/11/20

AP 6310 Accounting

Reference:

Budget and Accounting Manual, Chapters 3 and 4

The Budget and Accounting Manual (BAM) published by the California Community Colleges Chancellor's Office shall be used by the District as the official accounting manual.

Approved: 5/8/06
Reviewed: 8/13/18
Revised: 5/11/20

AP 6315 Warrants

References:
Education Code Sections 85230 et seq.

Payroll (A Warrants)
Employment schedules shall be prepared by the Office of Human Resources and approved by the Board of Trustees prior to any payment for services rendered.

Each administrator or other designated supervisory personnel shall sign time sheet reports verifying services rendered for himself/ herself and each person under his/her jurisdiction.

Time sheet reports shall be submitted to the Human Resources Office by the end of the pay period. Payroll records shall include the following information:

a. Employee's name
b. Anniversary date
c. Gross salary
d. Deductions
e. Net salary
f. Amount of sick leave used and accrued
g. Overtime record, including authorization

Payment for Materials and Equipment (B Warrants)
Prior to rendering payment for materials and equipment received, the Business Office shall require signed receiving slips from persons accepting goods. Receiving slips shall be checked for accuracy with purchase orders and invoices before payment is rendered.

Also see AP 6150 Designation of Authorized Signatures.

Approved: 5/8/06
Revised: 12/9/19

AP 6320 Investments

References:

Government Code Sections 53600 et seq.

The Chief Business Officer is responsible for investing the funds of the District that are not required for the immediate needs of the District. Funds so invested shall follow the investment policy approved by the Board of Trustees in accordance with the Government Code Sections cited above and the following:

- Funds that are not required for the immediate needs of the District shall be prudently invested in order to earn a return on such investment.

- The preservation of principal is of primary importance. Each transaction shall seek to ensure that capital losses are avoided, whether from securities or erosion of market value.

- The investment program should remain sufficiently flexible to enable the District to meet all operating requirements that may be reasonably anticipated in any fund. After preservation of principal, liquidity is the objective.

- In managing District investments, District officials should avoid any transactions that might impair public confidence.

- Investments should be made with precision and care, considering the probable safety of the capital as well as the probable income to be derived. (See Government Code Section 53600.6 regarding solvency and creditworthiness.)

District funds maintained by the County Treasurer that are not required for the immediate needs of the District may be invested as follows:

- **County Treasurer's Investment Pool.** Investment of District funds may be delegated to the County Treasurer. In accordance with county procedures, District funds may be pooled with other local agencies and invested by the County Treasurer in accordance with the investment guidelines specified by Government Code Section 53635 and investment policies adopted by the County Board of Supervisors.

- **State's Local Agency Investment Fund** (Government Code Sections 16429.116429.3). District funds not required for immediate needs of the District

may be remitted to the State Local Agency Investment Fund (LAIF) for the purpose of investment (Government Code Section 16429.1). District funds deposited with the LAIF shall be invested by the State Treasurer in securities prescribed by Government Code Section 16430, or the Surplus Money Investment Fund and as determined by the Local Investment Advisory Board (Government Code Section 16429.2).

- **Other Investments** - Other investments as permitted by Government Code Section 53600 et seq., and in particular Government Code Sections 53601, 53601.8, 53635, and 53635.8,* may be made by Chief Business Officer subject to prior approval of the Board of Trustees.

  *Government Code Sections 53601, 53601.8, 53605, and 53635.8 permit many very specific investments. Questions should be referred to financial advisors or legal counsel.

Approved: 5/8/06
Revised: 8/13/18
Revised: 12/9/19
Revised: 3/14/22

AP 6322 Employee Indemnity Bonds

Reference:

Title 5 Section 58318

Each employee of the District whose duty it is to handle District funds shall be bonded under a suitable bond indemnifying the District against loss.

At the discretion of the Chief Business Official, employees of the District whose duty it is to handle district property may be required to be bonded to indemnify the District against loss.

Approved: 5/11/20

AP 6325 Payroll

References:

Education Code Section 70902

Pay Periods and Frequency of Payment

The District processes payroll as authorized by bargaining unit agreements, hiring contracts, and the Board of Trustees.

Timesheet entry/approval dates and payroll issue dates are posted on the Payroll website.

Classified employees are paid on the 10th and 25th of each month. All other classifications of employees are paid once per month. This includes certificated full time, certificated overload, certificated adjunct, short term hourly employees, professional experts and student assistants.

Requests for Services

In order to allow for timely processing, any changes to W-4 forms, direct deposit requests, and payment of additional assignments, should be submitted to the Payroll office by the monthly timesheet deadline posted on the Payroll website.

Payroll Adjustments

Adjustments are handled on a case-by-case basis. In the event of an underpayment, a supplemental payroll may be processed. In the event of an overpayment, considerations and arrangements will be made for the repayment.

Garnishments

Garnishment orders from various agencies are processed in the Payroll office. The District is required to comply with the instructions on the garnishment order under state and federal laws. Prior to implementation of the garnishment, the District will mail a copy of the garnishment order to the impacted employee. To stop a garnishment order, payroll must receive an official release from the issuing agency. The garnishment order will be stopped per the date specified on the release from the issuing agency.

Approved: 12/11/20

AP 6330 Purchasing

References:

Education Code Sections 81656.
Public Contract Code Sections 20650 and 20651

The objective of the Purchasing Department is to obtain the maximum, cost-effective value in procuring goods and services, which supports the District's educational mission and goals. Purchasing activities shall be performed within the limitations prescribed by California law and in accordance with BP 6330 Purchasing. To accomplish this result, the decisions on purchases shall be based on:

- Specifications which stress good quality within limitations of the budget;
- The lowest cost within adherence to the specifications;
- Consideration for the quality of service and track record of the vendor/supplier; and
- Promptness of delivery.

Every transaction between a buyer or seller and the District shall be by purchase order or formal contract signed by the Superintendent/President, Chief Business Officer, or his/her designee. When deemed advisable to obtain the best pricing or when required by law, the District shall adhere to competitive, well-advertised, and well noticed purchasing processes to ensure that the District receives advantageous pricing for proper and necessary goods and services. The Chief Business Officer or designee shall establish administrative procedures for purchasing, and contract awards and management.

The District shall not conduct business (including purchasing from, or selling to) with any District employee or Board member. (See AP 2710 Conflict of Interest and AP 2712 Conflict of Interest Code)

The Chief Business Officer shall approve all purchase orders which are prepared within the line-staff organization of the College, or District operations including reasonable expenditures of District funds to;

1. purchase food and beverages as refreshments for attendees at District sponsored events which further the legitimate purposes of the District,
2. purchase commemorative awards and gifts in recognition of service to the District by non- employees when the purpose is to promote services to the District; and
3. purchase awards for students, excluding gift cards. Gift cards are considered to be the equivalent of cash and therefore are not allowed to be used as awards or payments for goods or services.

Please contact the purchasing department for specific procedures relating to the following:

- Required Approvals
- Purchase Requisition and Purchase Orders
- Pre-Payment
- Reimbursements
- Unauthorized Purchases
- Procurement Card Program
- District Credit Cards
- Department of Industrial Relations (DIR)
- Public Works
- Change Orders

Also see BP 6330 Purchasing, BP/AP 6340 Bids and Contracts, AP 6345 Bids and Contracts Under the UPCCAA, AP 6350 Contracts – Construction, AP 6355 Contracts – Job Order Contracts, AP 6360 Contracts – Electronic Systems and Materials, AP 6365 Contracts – Accessibility of Information Technology, AP 6370 Contracts – Personal Services, and BP/AP 6380 Vendors.

Approved: 5/8/06
Revised: 11/13/18
Revised: 12/9/19
Revised: 3/14/22

AP 6340 Bids and Contracts

References:

Education Code Sections 81641 et seq.;
Public Contract Code Sections 20103.7, 20112, 20650 et seq., and 22000 et seq.;
Labor Code Sections 1770 et seq.**;**
Government Code Section 53060**;**
Accreditation Standard III.D.16,**;**
2 Code of Federal Regulations Part 200.318

Contracts or purchase orders that exceed the Public Contract Code bid limits will not be issued without required competitive bids and notifications unless an emergency, as defined in Public Contract Code Section 20654 exists.

When bids are required according to Public Contract Code Section 20651, the Board shall award contracts to the lowest responsible bidder who meets the specifications published by the District and who shall give such security as the Board of Trustees requires, or the District shall reject all bids.

The Superintendent/President or his/her designees are empowered to execute and file a "Notice of Completion and Acceptance of Work" on behalf of the District. Such notices shall be approved in advance by the Board of Trustees.

When utilizing a "Piggyback" or Cooperative Contract per ~~PCC~~ Public Contract Code Section 20652, the District shall communicate via Consent Item to the Board of Trustees when the dollar amount is between $25,000 and the bid limit. The District shall communicate via Formal Action when the dollar amount is over the bid limit.

Limits

Bids or quotations shall be secured as may be necessary to obtain the lowest possible prices as follows:

- Purchase of goods or services up to the limits set by the Board of Governors as required by the Public Contract Code will require documented quotes as noted on the District's Purchasing Website (located from the Business Services link).
- Purchase of goods or services in excess of the limits set by the Board of Governors as required by the Public Contract~~s~~ Code will require formal advertised bids.

In securing bids or quotations, the District will avoid acquisition of unnecessary or duplicative items. Contracts involving expenditures that require competitive bidding require approval by the Board of Trustees prior to award.

Note: The bid minimums are subject to adjustment each year by the Board of Governors as required by Public Contracts Code Section 20651 subdivision (d); The current bid minimum can be found with the California Department of Education website.

Bid Specifications
Bid specifications shall include a definite, complete statement of what is required and, insofar as practical, shall include pertinent details of size, composition, construction, and/or texture of what is specified, and minimum standards of efficiency, durability, and/or utility required of what is specified.

Notice Calling for Formal Advertised Bids
The District shall publish at least once a week for two weeks in a newspaper of general circulation published within the District or if there is no such paper, then in some newspaper of general circulation, circulated in the county, and may post on the District's web site or through an electronic portal, a notice calling for bids or proposals, stating the work to be done or materials or supplies to be furnished and the time and place when bids will be opened. The District may accept a bid that was submitted either electronically or on paper.

Bid and contract forms shall be prepared and maintained by ~~the~~ Purchasing and Contract Services. All applicable statutory provisions and board policies shall be observed in preparation of the forms.

The Chief Business Official shall be responsible for insuring that the bid specifications are sufficiently broad to encourage and promote open competitive bidding.

All bid notices for work to be done shall contain an affirmative statement requiring compliance with Labor Code Sections 1775 and 1776 governing payment of prevailing wages and Labor Code Section 1777.5 governing employment of apprentices. All bid submissions shall contain all documents necessary to assure compliance with these California Labor Code Sections. Failure to provide such documentation shall cause any such bid to be deemed incomplete.

When required or determined to be appropriate, bids shall be accompanied by a certified or cashier's check, or bid bond, in the amount specified in the bid form, as a guarantee that the bidder will enter into contract and furnish the required contract bonds. When no longer required for the protection of the District, any certified or cashier's check received shall be returned to the respective bidder.

~~The~~ Purchasing and Contract Services shall make available to the prospective bidders bid forms with sets of specifications and drawings and shall provide a convenient place where bidders, subcontractors, and materiel personnel may examine the specifications and drawings.

~~The~~ Purchasing and Contract Services shall provide an electronic copy of the plans and specifications and other contract documents to a contractor plan room service at no charge

upon request from that contractor plan room.

When permitted, a deposit for sets of plans and specifications may be required and may be refunded when such documents are returned.

Awarding of Bids and Contracts
The awarding of bids and contracts shall be subject to the following conditions:

- Any and all bids and contract proposals may be rejected by the District.
- All bids shall be opened publicly and bidder shall be given the opportunity to make record of the bids received.
- Bid and contract award recommendations to the Board shall show a tabulation of the bids received in reasonable detail.
- Selection and Award to Lowest Responsible Bidder:
    - Bid and contract awards shall be made to the lowest responsible bidder substantially meeting the requirements of the specifications.
- Selection and Award Based on Best Value:
    - For the purposes of bid evaluation and selection when the District determines that it can expect long-term savings through the use of life-cycle cost methodology, the use of more sustainable goods and materials, and reduced administrative costs, the District may provide for the selection of the lowest responsible bidder on the basis of best value.
    - "Best value" means the most advantageous balance of price, quality, service, performance, and other elements, as defined by the Board, achieved through methods in accordance with this section and determined by objective performance criteria that may include price, features, long-term functionality, life-cycle costs, overall sustainability, and required services.
    - The District will consider all of the following in a best value selection and award:
        - Price and service level proposals that reduce the District's overall operating costs, including end-of-life expenditures and impact.
        - Equipment, services, supplies, and materials standards that support the District's strategic acquisition and management program direction.
        - A procedure for protest and resolution in the request for proposal.
    - The District may also consider any of the following in a best value selection and award:
        - The total cost to of its purchase, use, and consumption of equipment, supplies, and materials.
        - The operational cost or benefit incurred by the District.

- The added value to the District, as defined in the request for proposal, of vendor-added services.
- The quality and effectiveness of equipment, supplies, materials, and services.
- The reliability of delivery and installation schedules.
- The terms and conditions of product warranties and vendor guarantees.
- The financial stability of the vendor.
- The vendor's quality assurance program.
- The vendor's experience with the provisions of equipment, supplies, materials, and services within the institutional marketplace.
- The consistency of the vendor's proposed equipment, supplies, materials, and services with the District's overall supplies and materials procurement program.
- The economic benefits to the local community, including, but not limited to, job creation and retention.
- The environmental benefits to the local community.

- The District will award a contract to the lowest responsible bidder, whose proposal offers the best value to the District based solely on the criterial set forth in the request for proposal. The District shall document its determination in writing.
- The District shall issue a written notice of intent to award supporting its contract award and stating in detail the basis of the award. The notice of the intent to award and the contract file must be sufficient to satisfy an external audit.
- The District shall publicly announce its award, identifying the bidder to which the award is made, the price proposal of the contractor awarded the contract, and the overall combined rating on the request for proposal evaluation factors. The announcement shall also include the ranking of the contractor awarded the contract in relation to all other responsive bidders and their respective price proposals and summary of the rationale for the contract award.
- The District shall ensure that all businesses have a fair and equitable opportunity to compete for, and participate in, district contracts and shall also ensure that discrimination on the basis of sex, race, color, religion, ancestry, national origin, ethnic group identification, age, mental disability, physical disability, medical condition, genetic information, marital status, or sexual orientation, does not occur in the award and performance of contracts.

Purchase without Advertising for Bids

The Chief Business Official is authorized to make purchases from firms holding public agency

contracts without calling for bids where it appears advantageous to do so.

The Chief Business Official may, without advertising for bids within the same district, purchase or lease from other public agencies materials or services by authorization of contract or purchase order.

The Chief Business Official may make purchases through the State of California Cooperative Purchasing Program operated by the Department of General Services.

The Chief Business Official is authorized to make purchases with a value between $5,000 and $250,000 from a certified small business, microbusiness, or disabled veteran business enterprise.

Duration of Continuing Contracts for Services and Supplies
Continuing contracts for work or services furnished to the District are not to exceed five years. Contracts for materials and supplies are not to exceed three years.

Emergency Repair Contracts without Bid
When emergency repairs or alterations are necessary to continue existing classes or to avoid danger of life or property, the Superintendent/President or designee may make a contract in behalf of the District for labor, materials and supplies without advertising for or inviting bids, subject to ratification by the Board.

Unlawful to Split Bids
It shall be unlawful to split or separate into smaller work orders or projects any project for the purpose of evading the provisions of the Public Contract Code requiring work to be done by contract after competitive bidding.

Record Retention
The District will retain records sufficient to detail the history of procurement. These records include: rationale for the method of procurement, selection of contract type, contractor selection and rejection, and the basis for the contract price.

- Industrial Relations or any successor agency that is responsible for the oversight of employee wage and work hour laws.

Information on the following items may be found ~~at~~ on the District's Purchasing Webpage under the Business Services link~~:~~.

- Bid Specifications
- Notice Calling for Formal Advertised Bids Awarding of Bids and Contracts Awards Purchase without Advertising for Bids
- Continuing contracts for work or services furnished to the District are not to exceed five (5) years. Contracts for materials and supplies are not to exceed three (3) years.

Also see BP/AP 6330 Purchasing, AP 6345 Bids and Contracts Under the UPCCAA, AP 6350 Contracts – Construction, AP 6355 Contracts – Job Order Contracts, AP 6360 Contracts – Electronic Systems and Materials, AP 6365 Contracts – Accessibility of Information Technology, AP 6370 Contracts – Personal Services, and AP 6380 Vendors.

Approved: 5/8/06
Revised: 1/8/07
Revised: 9/10/07
Revised: 11/13/18
Revised: 5/11/20

AP 6350 Contracts – Construction

References:

Education Code Section 81800;
Public Contract Code Sections 20650 et seq. and 22000 et seq.

The Executive Director of Facilities Services, or designee shall be responsible for the planning and programming of new construction, alterations and repairs of existing plants, and leasing of facilities that require state approval. This includes the planning and programming of college-initiated new construction, additions to existing plants, and major alterations and repairs of buildings and grounds.

The Executive Director of Facilities Services, or shall be responsible for preparation of drawings and specifications for new buildings, leased facilities, additions, major alterations and improvements of buildings and grounds together with estimates of costs.

The preliminary drawings, which shall cover all proposed facilities together with construction cost estimates, shall be submitted to the Board of Trustees for approval and authorization to proceed with the working drawings and specifications. Upon completion, the working drawings, specifications and revised cost estimates, if any, will be submitted for approval to the California Community Colleges Chancellor's Office and the State Department of General Services as required by statute in the name of the Board of Trustees.

The final working drawings and specifications, approved by the State Department of General Services and the California Community Colleges Chancellor's Office, together with revised estimates, if any, shall then be submitted to the Board of Trustees for adoption.

The letting of contracts for construction shall comply with procedures of the District regarding contracts that exceed the statutory minimums for competitive bidding. (See AP 6340 Bids and Contracts)

Also see BP/AP 6330 Purchasing, BP/AP 6340 Bids and Contracts, AP 6345 Bids and Contracts (UPCCAA Option), AP 6355 Contracts – Job Order Contracts, AP 6360 Contracts – Electronic Systems and Materials, AP 6365 Contracts – Accessibility of Information Technology, AP 6370 Contracts – Personal Services, and AP 6380 Vendors.

Approved: 5/8/06
Revised: 3/9/20

AP 6360 Contracts – Electronic Systems and Materials

References:

Education Code Sections 81641 et seq.~~,~~ and 81651;
Public Contract Code Sections 20651 et seq.

The District may contract with any vendor who has submitted one of the three lowest responsible competitive proposals or competitive bids for the purchase or maintenance of electronic data-processing systems and equipment, electronic telecommunication equipment, supporting software, and related material, goods, and services.

Except as otherwise stated here, bids shall be solicited and contracts shall be awarded in accordance with AP 6340 Bids and Contracts.

Criteria to determine what constitutes a responsive bid shall be established by the Chief Business Officer or designee.

Supplemental instructional software packages may be purchased without taking estimates or advertising for bids.

Sale and leaseback of data-processing equipment or another major item of equipment is permissible if the purchaser agrees to lease the item back to the District for use by the District following the sale. The Board of Trustees shall first adopt a resolution finding that the sale or leaseback is the most economical means for providing electronic data-processing equipment or other major items of equipment to the District.

Also see BP/AP 6330 Purchasing, BP/AP 6340 Bids and Contracts, AP 6345 Bids and Contracts (UPCCAA Option), AP 6350 Contracts – Construction, AP 6355 Contracts Job Order Contracts, AP 6365 Contracts – Accessibility of Information Technology, AP 6370 Contracts – Personal Services, and AP 6380 Vendors.

Approved: 5/8/06
Revised: 10/12/20

AP 6365 Accessibility of Information Technology

Reference

Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. Section 794d); 36 CFR 1194.1 et seq.; Government Code Section 11135; Title 5 Section 59300 et seq.

Whenever the district enters into a contract for the purchase, development, procurement, maintenance or use of any electronic or information technology, the vendor shall certify that it complies with the requirements of Section 508 of the Rehabilitation Act of 1973 and its related regulations. This requirement shall apply to software applications, operating systems, web-based intranet and internet information and applications, telecommunications products, video or multimedia products, self contained closed products such as copiers, and desktop and portable computers.

Each contract with such a vendor shall contain the following provision:

"The vendor hereby warrants that the products or services to be provided under this agreement comply with the accessibility requirements of section 508 of the Rehabilitation Act of 1973, as amended, and its implementing regulations. Vendor agrees to respond promptly to and resolve any complaints regarding accessibility of its products or services that are brought to its attention. Vendor further agrees to indemnify and hold harmless the Antelope Valley Community College District from and against any claim arising out of its failure to comply with these requirements. Failure to comply with these requirements shall constitute a breach and be grounds for termination of this agreement."

5/8/06

AP 6370 Contracts – Personal Services

References:

Education Code Section 88003.1;
Government Code Section 53060;
Labor Code Section 3353;
Public Contract Code Section 10335.5, 20651
Assembly Bill 5 (AB5) and related legal authority

The District may enter into personal services contracts to achieve cost savings when each of the following conditions are met:

- It can be clearly demonstrated that the proposed contract will result in actual overall cost savings to the District;
- The contractor's wages are at the industry's level and do not undercut District pay rates;
- The contract does not cause the displacement of District employees;
- The savings are large enough to ensure that employees will not be eliminated by private sector and District cost fluctuations that could normally be expected during the contracting period;
- The amount of savings clearly justifies the size and duration of the contracting agreement;
- The contract is awarded through a publicized, competitive bidding process when contract total exceeds formal bid limits;
- The contract includes specific provisions pertaining to the qualifications of the staff that will perform the work under the contract, as well as assurance that the contractor's hiring practices meet applicable nondiscrimination standards;
- The potential for future economic risk to the District from potential contractor rate increases is minimal;
- The contract is with a firm; and
- The potential economic advantage of contracting is not outweighed by the public's interest in having a particular function performed directly by the District.

Personal service contracts are also permissible when any one of the following conditions is met:

- the contract is for new functions mandated or authorized by Legislature to be performed by independent contractors;
- the services are not available within the District or cannot be satisfactorily performed by District employees;
- the services are incidental to a purchase or lease contract;
- the policy, administrative, or legal goals and purposes of the District cannot be accomplished through the regular or ordinary hiring process;

- the work meets the criteria for emergency appointment equipment, materials, facilities, or support services could not feasibly be provided by the District; or
- the services are of an urgent, temporary, or occasional nature.

Professional Experts
Contracts for the services of persons who qualify as professional experts may be let without competitive bidding. Professional experts are persons specially qualified to provide services and advise in financial, economic, accounting, engineering, legal or administrative matters. They must be specially trained, experienced, and competent to perform the services required. Compensation for special services and advice from professional experts may be paid from available funds in the amounts deemed proper for the services rendered.

Independent Contractors
To be an independent contractor, substantial conformance with the following conditions must exist:

- The contractor is free from the control and direction of the District in connection with the performance of the work, both under the contract for the performance of the work and in fact;
- The contractor performs work that is outside the usual course of the District's business; and
- The contractor is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed.
- Contractors can't be terminated as long as they produce a result that meets the contract specifications, unless specified otherwise in the contract document. Contractors may not be a current employee of the Antelope Valley Community College District.

Contractors are responsible for the satisfactory completion of a job or they may be legally obligated to compensate the hiring firm for failure to complete.

Consultants
Consulting services contracts refer to all services that:
- are of an advisory nature,
- provide a recommended course of action or personal expertise,
- have an end product which is basically a transmittal of information either written or verbal, and,
- are obtained by awarding a procurement-type contract, a grant, or any other payment of funds for services of the above type.

The product may include anything from answers to specific questions to design of a system or plan, and includes workshops, seminars, retreats, and conferences for which paid expertise is retained by contract.

Also see BP/AP 6330 Purchasing, BP/AP 6340 Bids and Contracts, AP 6345 Bids and Contracts Under the UPCCAA, AP 6350 Contracts – Construction, AP 6355 Contracts – Job Order Contracts, AP 6360 Contracts – Electronic Systems and Materials, AP 6365 Contracts – Accessibility of Information Technology, and BP/AP 6380 Vendors.

AP 6380 Vendors

References:

Education Code Section 81656;
Public Contract Code Section 20650;
Federal Register 2 Code of Federal Regulations Part 200.318

Authority

The Chief Business Official or his/her designee is responsible for administering this procedure and is the authority to amend this procedure.

Definition

A. A vendor is defined as any outside entity wanting to do business with the District. Vendors may provide good and/or services. Vendors must be identified and prequalified as deemed for all District procurements and contracts.

B. This procedure describes the rules and processes for establishing new vendors for the District.

Responsibilities

A. The pre-qualification of vendors for any procurement purpose will be the responsibility of the Purchasing Office.

B. The Purchasing Department is responsible for the set-up of new vendors and the maintenance of all approved vendors in the District Vendor Master List. Accounts Payable is also responsible for reporting vendor taxable income in compliance with IRS Form 1099 (1099).

C. The Master Bidder's List is the responsibility of the Purchasing Office. Any Vendor may request to be placed on the bidder's list for future inclusion in the district bid process. The bidder's list will be organized by commodity and vendors will be included in bid processes as placed within the bidder's list. Vendors may request to be placed on the bidder's list by sending a letter to the Purchasing Office listing all commodities that are provided.

D. Initiators of Purchase Requisitions and Requests for Contracts are responsible for providing the full vendor information (address, phone and fax numbers)

Unauthorized Purchases

Any purchases made by unauthorized College personnel may become the financial responsibility of the unauthorized purchaser. Only the Superintendent/President, ~~Executive~~

Chief Business Official, or their designee(s) may authorize district funds for any purchase. It is the responsibility of the vendor to ensure that they are dealing with the appropriate personnel prior to fulfilling orders for the District.

Unauthorized Shipments Received
Any shipment received from a vendor without benefit of a purchase order or authorization of the Purchasing office representative will be accepted by the District as a gift. The District is not financially responsible for merchandise sent without prior approval of the Purchasing Office.

Changes to Authorized Orders/Contracts
All changes to authorized orders and contract must go through the Purchasing Office. All vendors must contact the originating procurement officer to state changes. An official change order will be created for any authorized change. Unauthorized personnel may not make changes to any authorized purchase order or contract. Changes made by unauthorized personnel may become the financial responsibility of the unauthorized user or the vendor. College

Purchasing Protocol
In accordance with the purchasing policy (BP 6330 Purchasing) and related procedure (AP 6330 Purchasing), the College will conduct procurement services with an open, competitive atmosphere that is beneficial to the buyer and the seller. The Purchasing Office buys on the basis of quality of product and service, competitive price and delivery. The District also considers goods of the local community and minority spending.

Supplier Diversity
The District will attempt maximum utilization of its diverse supplier community and will encourage the use of minority and women-owned businesses according to College goals. The District will seek active participation through advertisement, invitations to bid and requests for proposals for purchasing activities, and by providing information to minority and women-owned business about the plans, specifications, and requirements of contracts and projects at the College.

Vendor Performance & Savings
As good purchasing practice, vendors are periodically evaluated on the basis of actual delivery performance compared to promise delivery dates, ability to meet emergency requirements, unauthorized partial deliveries, number of items rejected due to poor quality, and adherence to purchase order terms and conditions. The ability to provide competitive prices consistent with quality and service requirements is of great importance to vendor selection.

Vendor Contract and Sales Calls
All sales calls on any College campus or College site will be coordinated through the Purchasing Office (with the exception of Auxiliary Services vendors). Textbook vendors and

publishers are required to coordinate with Auxiliary Services prior to contacting faculty, staff or students. Any vendor soliciting the District offices prior to contacting the Purchasing Office may be asked to leave. All contacts must go through the Purchasing Office prior to any other type of sales call. The District Office is also instructed to go through the Purchasing Office prior to having any vendor on-campus for a sales visit. Vendors must make appointments with the Purchasing Office prior to coming to campus. Cold calls cannot be accommodated.

Food Truck Vendors

All food service requests must be coordinated with Auxiliary Services prior to the event. In no instance will a food service provider be authorized to provide service if they have a health code rating below an "A". Upon request from a staff member or student representative, the Auxiliary Services Manager will review the request for hosting a food truck on campus with the Supervisor of Campus Events and Operations to ensure that all of the necessary documents are verified. The District allows food truck vendors on campus as long as the following conditions are met.

1. The requesting College department will contact Campus Events to schedule the food truck.

2. The College department contacts the Primary Food Service Provider for a quotation or consultation for the upcoming event.

3. If the department determines that the Primary Food Service Provider will not be utilized for the upcoming event, the department will then need a written right of refusal from the Primary Food Service Provider.

4. The department will then contact the food truck operator and complete the Food Truck Request form.

5. A Facility Use Request Application must be submitted at least two weeks prior to the event to be considered. The Auxiliary Services Manager will determine if the food truck can be utilized for the specified event in conjunction with the Campus Events and Operations Supervisor and Food Service Operator.

6. The Food Truck operator:

    a. Hold a current Business License for the City of Lancaster. A copy of the permit must be submitted to the Auxiliary Services Office.

    b. Hold a Mobile Food Facility Permit to operate a mobile food dispensing vehicle in the state of California. A copy of the permit must be submitted to the Auxiliary Services Office.

    c. Hold a current Health Permit. A copy of the permit must be submitted to the Auxiliary Services Office.

d. Hold a current Food Safety Certification. A copy of the permit must be submitted to the Auxiliary Services Office.

e. Hold a current Food Handler Permit(s). A copy of the permit(s) must be submitted to the Auxiliary Services Office.

f. Provide proof of insurance – Minimum coverage limits for policies of insurance the Contractor is required to maintain during the event are as follows. This must go to Campus Events.

   i. Workers Compensation – In accordance with Laws
   ii. Employer's Liability Insurance – One Million Dollars ($1,000,000.00)
   iii. Commercial General Liability and Property Insurance
      a) Per Occurrence: One Million Dollars ($1,000,000.00)
      b) Aggregate: Two Million Dollars ($2,000,000.00)
   iv. Automobile Liability Insurance – One Million Dollars ($1,000,000.00)

g. Provide a copy of most recent inspection.

Antelope Valley College Business Services/Contract department is requiring specific wording in the description box on the face page of the certificate, or on the additional insured page. Wording is below:

Antelope Valley Community College District, its Board of Trustees, Agents, Employees, and Volunteers are additionally insured on all policies except Workers Compensation Insurance.

The address for the Certificate Holder is 3041 West Avenue K, Lancaster, CA 93536.

7. Food Trucks on campus must be completely self-contained and require no use of electric, water or other utilities or facilities belonging to Antelope Valley College.
8. Vendors must be located on Antelope Valley College property, not on public streets, in a location approved by Facilities and Security.
9. Pepsi and their entire family of beverages are the exclusive pourer on all College property. Organizations or their contracted catering provider may not serve any competitors' brand.
10. Groups working with external caterers or local take-out restaurants are responsible for ensuring that all food preparation safety standards are followed. Groups are also responsible for all cleanup and trash/recycling removal. Any charges for excess clean-up or facility damage (stains, broken equipment, etc.) are the financial responsibility of the organization sponsoring the event.
11. Any food truck that is providing services to the campus through a negotiated contract and paid directly by the District, the Vendor Cost for the day will be waived. If the food truck sells directly to community members, a Vendor Cost of one hundred twenty-five dollars ($125.00) per day will be assessed to the food truck operators.

Also see BP/AP 6330 Purchasing, BP/AP 6340 Bids and Contracts, AP 6345 Bids and Contracts (UPCCAA Option), AP 6350 Contracts – Construction, AP 6355 Contracts – Job Order Contracts, AP 6360 Contracts – Electronic Systems and Materials, AP 6365 Contracts – Accessibility of Information Technology, AP 6370 Contracts – Personal Services, and BP 6380 Vendors.

Approved: 12/10/18
Revised: 2/11/19
Revised: 3/9/20

AP 6400 Audits

References:

Education Code Sections 84040 subdivision (b), 84040.5, and 81644;
Title 5 Section 59012;
Accreditation Standard III D.7

On or before April 1 of the fiscal year, the Board of Trustees shall approve the selection of an auditor who shall be a certified public accountant licensed by the California State Board of Accountancy.

The length of an auditing firm's contract shall be determined by the District but shall be for no longer than five (5) years. The audit shall include all funds under the control or jurisdiction of the District. The audit shall identify all expenditures by source of funds and shall contain:

- A statement that the audit was conducted pursuant to standards and procedures developed in accordance with Education Code Section 84040.5, and
- A summary of audit exceptions and management recommendations.

Audit reports for the preceding fiscal year must be submitted to the California Community Colleges Chancellor's Office by December 31.

Approved: 5/8/06
Revised: 11/9/15
Revised: 1/8/18
Revised: 10/12/20

AP 6450 Wireless or Cellular Equipment Use

References:

Vehicle Code Sections 12810.3, 23123, and 23124;
26 U.S. Code Sections 274 subdivision (d)(4) and 280F subdivision (d)(4)

The Superintendent/President shall determine if it is in the best interests of the District to provide a cellular or wireless equipment at District expense.

Cellular equipment provided by the District for compensatory reasons are classified by the Internal Revenue Service as a fringe benefit, the value of which must be included in an employee's gross income.

The value of cellular equipment provided by the District primarily for non-compensatory business purposes is excludable from an employee's income. Employees will generally not be required to keep notes of business and personal use of District-issued cellular equipment when issued for non-compensatory business reasons.

These rules do not apply to wireless or cellular equipment owned by employees. Any reimbursements to employees for use of their own wireless or cellular equipment may be excluded from wages if the employee accounts for the expense pursuant to the Internal Revenue Service accountable plan.

Employees should be aware if their personal cellular equipment is used for college business, the device and its contents (email, browser activity, text messaging, documents produced, call history, etc.) may be subject to discovery in the event of legal action.

Motor vehicle drivers may not use wireless or cellular equipment while operating their vehicles without a hands-free listening device. Drivers may use a wireless or cellular equipment to contact a law enforcement agency or public safety entity for emergency purposes. Drivers of motor trucks or truck-tractors, farm vehicles, tow trucks, a listed or described implement of husbandry, or a commercial vehicle, used in commercial agricultural operations may use a digital two-way radio service that utilizes a wireless or cellular equipment.

There is no expectation of privacy in the use of a District-issued cellular equipment.

Approved: 10/12/20

AP 6500 Property Management

References:

Education Code Sections 70902 and 81300 et seq.

The Chief Business Officer or designee shall be responsible for supervising acquisitions of real property, including appraisals and valuations of real property and improvements; securing title insurance policies; dedications or conveyance of easements; vacation of streets and alleys, street lighting and other special assessments; and the condemnation of real property.

Approved: 5/8/06
Revised: 8/13/18
Revised: 12/9/19
Reviewed: 3/14/22

AP 6520 Security for District Property

Reference:
Accreditation Standard III.B.1

WAREHOUSING AND INVENTORY

Warehousing
The District shall maintain a system of warehousing which includes provisions for receiving, shipping, storing, and distribution of supplies and equipment.

A standard supply catalogue of supplies and equipment utilized by the District shall be maintained and made available to District personnel.

All items purchased by the District shall be delivered to the warehouse. No deliveries shall be made to individual locations or offices, without permission from the Chief Business Official.

INVENTORY

General Provisions
The Office of Business Services is responsible for the inventory of all District movable equipment.

Definition of Movability
Inventory items must be movable. Attachment to buildings by screws or bolts does not violate movability.

Heavy shop machines may have an elaborate foundation and still be considered "movable."

WAREHOUSE

Inventory
A perpetual inventory shall be maintained on all items stored in the District warehouse. Precautionary measures will be taken to safeguard inventories against casualty losses.

Inventory records will be maintained in such a manner as to facilitate purchase of supplies and equipment, and to provide for an equitable adjustment of claims attributed to casualty loss.

Keys
Keys shall be issued by the Facilities Office. Duplicates of all keys shall be kept on file in the Facilities Office. Master keys shall be issued by the Chief Facilities Officer.

Also see BP/AP 3501 Campus Security and Access, BP/AP 6540 Insurance, BP 6520 Security for District Property, and BP/AP 6535 Use of District Equipment.

Approved: 5/8/06
Revised: 8/13/18
Revised: 12/9/19

AP 6530 District Vehicles

Reference:

Title 13, California Code of Regulations, Division 1, Chapter 1

All District vehicles and drivers must comply with the California Vehicle Code and Title 13 (Motor Carrier Safety).

All drivers of district-owned or leased vehicles both on and off campus, must have a current license appropriate for the vehicle to be driven.

Any vehicle that carries ten or more persons including the driver is defined in the Vehicle Code as a bus. All operators of buses must have a current Class II license, a current medical certificate and a current First Aid Certificate.

All District facilities maintaining vehicles defined as buses must keep records of driver's hours, vehicle maintenance, and vehicle inspection records. All of these records must be made available to the California Highway Patrol. The CHP is required to inspect the records at least once every 13 months.

All District vehicles with equipment for transporting the disabled must comply with all applicable laws and regulations regarding such vehicles.

The district shall not operate or lease a 15-passenger van unless the driver holds both a valid class B driver's license, and an endorsement for operating a passenger transportation vehicle issued by the Department of Motor Vehicles. [This portion is operative as of January 1, 2005].

Vehicles made available to the District personnel are for use in the conduct and operation of District business.

The Vice President of Business Services is responsible for controlling access to and use of all District vehicles.

The name and California driver's license number of any employee to be authorized to drive district vehicles must be submitted to the Director of Maintenance and Operations prior to final granting of authorization.

Refer to “Facilities and Campus Development District Transportation Procedure” which can be obtained from the Office of the Vice President of Business Services.

5/8/06

AP 6535 Use of District Equipment

References:

Education Code Section 70902;
Accreditation Standards III.B.3 and III.C.4

Each member of the District staff shall be responsible for equipment under his/her control. Loss of equipment and unauthorized removal of equipment should be reported immediately to the appropriate administrator. Capital assets are the responsibility of the Chief Business Official, with the exception of delegated controls.

Computing, networking, and multimedia equipment purchased for the District is the property of the District without regard to funding source; except where superseded by external regulation. Business practices regarding hardware standards, assignment, and reassignment of computing and multimedia equipment is delegated to the Chief Technology Official.

Equipment that is lost or stolen may be replaced upon submission of a request through the appropriate administrative office. The request must include an explanation about the loss or theft of the equipment and a justification that replacement is essential to the activity served. Equipment shall only be removed from campus with authorization from the Chief Business Official or delegated authority.

Requests from District personnel to borrow equipment from another location within the District must be approved by the supervisor or administrator having immediate jurisdiction over such equipment.

It is not legally permissible to allow employees to use District-owned equipment for private projects which are unrelated to District activities or the instructional program.

Whenever a District employee desires to use District equipment for school-related activities at times other than during regular working hours, permission shall be requested from the Chief Business Official or delegated authority.

Also see BP/AP 6520 Security for District Property and BP/AP 6540 Insurance.

Approved: 5/8/06
Revised: 9/10/07
Revised 9/8/14
Revised: 3/9/20

AP 6540 Insurance

References:

Education Code Sections 70902, 72502
72506 and 81601 et seq.

The Antelope Valley Community College District is a part of SWACC, a statewide association of community colleges, for the following coverage:

- Liability insurance for damages for death, injury to person, or damage or loss of property.
- Liability insurance for the personal liability of the members of the Board of Trustees and of the officers and employees of the District for damages for death, injury to a person, or damage or loss of property caused by the negligent act or omission of the member, officer or employee when acting within the scope of his/ her office or employment.
- Fire insurance
- Real property damage
- Personal property loss or damage
- Insurance for district vehicles
- Insurance against “other perils” [Education Code Section 81601]

The Antelope Valley Community College District is a part of PIPS, a joint powers agreement, for:

- Workers compensation insurance

The Antelope Valley Community College District has established a Retirement Board of Authority (RBOA), for:

- Actuarial evaluation of the future annual costs of health and welfare benefits

Also see BP 2735 Board Member Travel, BP/AP 3810 Claims Against the District, BP/AP 4300 Field Trips and Excursions, BP/AP 5700 Intercollegiate Athletics, BP 6540 Insurance, BP/AP 6800 Occupational Safety, BP/AP 7400 Employee Travel, and AP 7343 Industrial Accident and Illness Leave.

Approved 5/8/06
Revised 8/13/18
Revised 3/9/20

AP 6550 Disposal of Property

References:

Education Code Sections 70902 subdivision (b)(6), 81383, 81384, and 81450 et seq.

The Ddistrict may sell for cash any Ddistrict personal property if the property is not required for Ddistrict purposes, or if it should be disposed of for the purpose of replacement, or if it is unsatisfactory or not suitable for use.

Property cannot be sold until notice has been given. The sale of District property to Board members and District employees are prohibited. Notice must be posted in at least three (3) public places in the district for not less than two (2) weeks; notice can also be by publication for at least once a week for a period of not less than two (2) weeks in a newspaper published in the district and having a general circulation. If there is no such newspaper, then notice can be published in a newspaper having a general circulation in the district; or if there is no such newspaper, then in a newspaper having a general circulation in the county in which the District or any part thereof is situated. The Chief Business Official shall sell the property to the highest responsible bidder, or shall reject all bids.

Personal property authorized for sale as surplus may also be disposed of by means of a public auction conducted by employees of the District, or by other public agencies, or by contract with a private auction firm. The personal property shall be sold or transferred to the highest responsible bidder upon completion of the auction and after payment has been received by the District.

The District can also exchange for value, sell for cash, or donate any personal property belonging to the District without complying with the preceding procedures if all of the following criteria are met:

a) The District determines that the property is not required for District purposes, that it should be disposed of for the purpose of replacement, or that it is unsatisfactory or not suitable for school use.
b) The property is exchanged with, or sold or donated to, a school district, community college district, or other public entity that has had an opportunity to examine the property proposed to be exchanged, sold, or donated.
c) The receipt of the property by a school district or community college district will not be inconsistent with any applicable district wide or school site technology plan of the recipient district.

In addition, the District can sell or lease real property belonging to the community college district if both of the following conditions are met:

a) The property is sold or leased to another local governmental agency, or to a nonprofit corporation that is organized for the purpose of assisting one or more local governmental agencies in obtaining financing for a qualified community college facility; and
b) The financial proceeds are expended solely for capital outlay purposes relating to a qualified community college facility

If the Board of Trustees, by a unanimous vote of those members present, finds that the property, whether one or more items, does not exceed in value the sum of five thousand dollars ($5,000), the property may be sold by Chief Business Official at private sale without advertising,.

Any item or items of property having previously been offered for sale as provided in Education Code Section 81450, but for which no qualified bid was received, may be sold by Chief Business Official at private sale without advertising.

In addition, the Board of Trustees may sell or lease real property belonging to the District under the following conditions:

If a district has received only one sealed proposal from a responsible bidder that conforms with the standard rate or rates for the lease of its real property established by a majority vote of the Board, the Board of Trustees may by majority vote delegate to an officer or employee the power to enter into leases, for and in behalf of the District, of any real property of the District.

Generally, the funds derived from the sale or from a lease with an option to purchase shall be used for capital outlay or deferred maintenance. However, the proceeds of property sold or leased that was first offered for park or recreational purposes where applicable and then offered for sale or lease with an option to purchase at fair market value may be deposited in the general fund of the district if, prior to the sale or lease, the Board of Trustees has determined that the District has no anticipated need for additional sites or building construction for the five-year period following the sale or lease.

Approved: 5/8/06
Revised: 12/10/17
Revised: 4/14/08
Revised: 4/11/16
Revised: 3/9/20

AP 6600 Capital Construction

References:

Education Code Sections 81005~~,~~ and 81820;
Title 5~~,~~ Sections 57150 et seq.

Capital Outlay Program

The Superintendent/President will annually report to the Board of Trustees and to the California Community Colleges Chancellor's Office a five-year capital outlay program. The program will consist of the plans of the District concerning its future academic and student service programs, and the effects of such programs on construction needs.

Specifically, the five-year capital outlay program will include the following:

- Statement of educational plans
- Statement of energy plans
- Statement of disabled persons' barrier removal plan
- Location of program delivery
- Location of other owned lands
- District-wide priority lists
- District-wide capacity/load ratios
- District-wide supporting detail

Contracts

Construction contracts will be let in accordance with ~~Administrative Procedure~~ AP 6350 Contracts – Construction and will comply with applicable laws relating to public works.

Conversion of Buildings

State funds earmarked for capital outlay financing may be used to acquire an existing government-owned or privately-owned building and to pay the necessary costs of converting such a building to community college use if all of the following criteria apply:

- The building was constructed as, and continues to qualify as, a school building, as provided by Education Code Sections 81130 et seq., or the building is determined to have, or is rehabilitated to an extent that it is determined to have, a pupil safety performance standard that is equivalent to that of a building constructed pursuant to Education Code Sections 81130 et seq. The determination of the pupil safety performance standard must meet all of the requirements of Education Code Section 81149 subdivision (a)(1) & (2).
- The total cost of purchasing and converting the existing building to community college use is not greater that the estimated cost of constructing an equivalent building.

- The land associated with the building will be owned by or controlled through a long-term lease of at least fifty (50) years by, the District.
- The District has complied with facility site review procedures and guideline recommendations of the California Postsecondary Education Commission pursuant to Education Code Section 66904.
- The funding for the purchase and conversion of an existing building does not supersede funding for facilities that have previously been prioritized by the Board of Governors and are awaiting state funding.

Also see BP/AP 6340 Bids and Contracts, AP 6345 Bids and Contracts - CUPCCAA, and AP 6350 Contracts – Construction.

Approved: 5/8/06
Revised: 9/10/07
Revised 4/14/08
Revised: 3/9/20

AP 6620 Naming Recognition

References:

AVC Foundation Policies and Procedures, Section VI and Exhibit 1, August 4, 2016

GUIDELINES FOR NAMING RECOGNITION

Decisions to name buildings or facilities after an individual shall be made under circumstances free from emotion and transitory pressures; therefore, if the request is to honor a deceased person, that request will be submitted only after a suitable period of mourning. No request will be considered within a year of the death.

A suitable plaque shall be placed, at the District's expense, within the building or at the facility, including rooms, landscaped areas, trees or similar areas, in honor of the person for whom it is being dedicated.

PROCEDURE

Any individual or group affiliated with Antelope Valley College may submit a written request for the naming of buildings, their interior areas and for exterior areas on the campus to the Superintendent/President, who will work in concert with the Antelope Valley College Foundation on their review and approval. A request must include:

1. Contact information for the individual or group submitting the request.

2. Specific naming recognition requested, including clear identification of the property to be named.

3. Written acknowledgement and permission of the person, business, or organization to receive the recognition.

4. Rationale for the recognition based on criteria set forth in this policy. Evidence for a broad base of support, including a biography of the individual when appropriate, shall be included in the rationale.

Upon receiving a complete written request, the Superintendent/President informs the Board of Trustees of the impending naming opportunity. The Superintendent/President or designee will facilitate collegial review by a campus committee comprised of at least two (2) representatives of the faculty, classified staff, students, management staff, and Foundation. The Superintendent/President will chair this committee. The committee will review the request and submit its recommendation for the Board of Trustee action on the request.

The Superintendent/President will then publish the request and supporting recommendation to the Board of Trustees for action.

The Board of Trustees will act upon the request.

The Superintendent/President will notify the appropriate persons of the action taken by the Board of Trustees and, if approved, will assign personnel to implement the naming recognition accordingly.

NAMING INVOLVING A DONOR GIFT
When a donor gift, which must be facilitated through the AVC Foundation, is involved:

1. Facilities and properties may be named for individuals or organizations responsible for a "substantial gift" benefiting Antelope Valley College.

2. A gift must be substantial and will not be defined by arbitrary standards or exclusively by a specific dollar amount.

3. In reviewing a request of approval of naming, consideration shall be given to:
   a. The significance of the proposed gift as it relates to the realization and/or success of the project/program or to the enhancement of the project/programs' usefulness to the District;
   b. The urgency of need for the project/program or for support funds for the project/program;
   c. The eminence, reputation and integrity of the individual or entity whose name is proposed; and
   d. The relationship of the individual or entity to the District.

4. Its interpretation is meant to be flexible so that each situation may be judged on its own merits and may take into account significant contributions of personal services as well as monetary or in-kind gifts.

5. It is expected that each naming opportunity will recognize the donor according to the level of gift and size of facility.

6. A naming conferred in recognition of a pledge is contingent upon the gift agreement that makes every effort to ensure fulfillment of the pledge. Naming may be removed if the pledge is not fulfilled as dictated in the AVC Foundation's policies and procedures.

7. Proposed naming opportunities involving a gift must first be presented to the Board of Trustees for preliminary approval, approved by the AVC Foundation Board of Directors as recipients of the gift, and then continue through the process led by the Superintendent/President for final approval by the Board of Trustees.

NAMING WITH NO DONOR GIFT

When no donor gift is involved:

1. The naming should honor a person who has achieved unique distinction in higher education and other significant areas of public service, or who has served Antelope Valley College in an administrative or academic capacity and has earned a national or international reputation as a scholar or during administrative service has made extraordinary contributions to the District, which warrants special recognition.

In special circumstances, the Board of Trustees may waive any or all of the above criteria.

Approved: 4/9/07
Revised: 1/14/13
Revised: 3/9/20

AP 6700 Civic Center and Other Facilities Use

Reference:

Education Code Sections 82537, 82542; Public Resources Code § 42648.3

General Provisions

District facilities identified as Civic Centers or as designated public forums are available for community use when such use does not conflict with District programs and operations. Facility use shall be limited to places and times identified by the ***Facilities Management Team***, but shall be sufficiently frequent, and available on specific dates and times, so as to allow meaningful use by outside groups. Except as provided in these procedures, or as authorized by law, no organizations shall be denied the use of District facilities because of the content of the speech to be undertaken during the use.

The Facilities Management Team is responsible for the coordination and implementation of these procedures. The Facilities Management Team shall determine all applicable fees to be charged.

Outside the designated public forum areas, the following shall apply: All user groups shall be required to provide the District with a hold harmless and indemnification agreement acknowledging that they will be financially responsible for any losses, damages, or injuries incurred by any person as a result of their use of the facilities. All user groups shall also be required to provide a certificate of insurance with limits acceptable to the District and/or other proof of financial responsibility acceptable to the District. The forms for use can be found: https://www.avc.edu/administration/facilities/fsforms

Civic Centers

Eligible persons or groups may use District buildings or grounds designated as the Civic Center for public, literary, scientific, recreational, or educational meetings, or for discussion of matters of general or the public interest, subject to this procedure.

The groups identified in Education Code Section 82542(a) will be permitted, “when an alternative location is not available,” as described in the statute, to use District facilities upon payment only of the following:

- the cost of opening and closing the facilities, if no District employees would otherwise be available to perform that function as a part of their normal duties;
- the cost of a District employee’s presence during the organization’s use of the facilities if it is determined that the supervision is needed, and if that employee would not otherwise be present as part of his/her/their normal duties;

- the cost of custodial services, if the services are necessary and would not have otherwise been performed as part of the custodian's normal duties; and
- the cost of utilities directly attributable to the organization's use of the facilities.

Except as provided herein, other groups shall be charged an amount not to exceed the direct costs of District facilities. Direct costs shall include costs of supplies, utilities, custodial services, services of any other District employees, and salaries paid District employees necessitated by the organization's use of District facilities. Additionally, except for classroom-based programs that operate after school hours and organizations retained by the college or District to provide instruction or instructional activities to students during school hours, direct costs shall also include the costs for maintenance, repair, restoration, and refurbishment of college facilities and grounds used by the group.

The District shall maintain a fee schedule adopted by the Board that includes the hourly fee for each specific school facility and grounds.

The following shall be charged fair rental value for the use of District facilities:

- Any church or religious organization for the conduct of religious services, which may be conducted for temporary periods where the church or organization has no suitable meeting place for the conduct of such services.
- Entertainment or meetings where admission fees are charged or contributions are solicited and the net receipts of the admission fees or contributions are not expended for the welfare of the students of the District or for charitable purposes.

The American Red Cross or other public agencies may use District facilities, grounds, and equipment for mass care and welfare shelters during disasters or other emergencies affecting the public health and welfare, and the District will cooperate with these agencies in furnishing and maintaining services deemed by the Board of Trustees to be necessary to meet the needs of the community.

Rules for Facilities Use

Requests for use of the District's Civic Center must be made at least 21 days in advance of the first date of use being requested. Requests shall be made to the ***Facilities Management Team*** on forms provided by the District. Authorization to use the Civic Center shall be based on a reservation system and the priorities for student and other use detailed at the end of this Section.

Permission to use District facilities shall not be granted for a period to exceed one fiscal year. No person or organization may be granted a monopoly on any facility.

Overnight camping on District facilities, including in the designated public forum areas, is prohibited. No person or organization may use any District facility for living

accommodation purposes such as sleeping activities, or making preparations to sleep (including the laying down of bedding for the purpose of sleeping), or storing personal belongings, or making any fire, or using any tents or other structure for sleeping, or doing any digging or earth breaking, or carrying on cooking activities.

All charges for the use of District facilities are payable prior to the event.

Any persons applying for use of District property on behalf of any groups shall be a member of the groups and, unless he/she/they is an officer of the group, must present written authorization to represent the group. Each person signing an application shall, as a condition of use, agree to be held financially responsible in the case of loss or damage to District property.

The District may require security personnel as a condition of use whenever it is deemed to be in the District's best interests.

No person applying for use of District property shall be issued a key to District facilities.

Future facility requests may be denied on grounds including, but not limited to, abuse or misuse of District property and failure to pay promptly for any damage to District property.

No alcoholic beverages, intoxicants, controlled substances, or tobacco *in any form* shall be brought onto the property of the District. Persons under the influence of alcohol, intoxicants, or controlled substances shall be denied participation in any activity.

No structures, electrical modifications, or mechanical apparatus may be erected or installed on District property.

All decorative materials, including but not limited to draperies, hangings, curtains, and drops shall be made or treated with flame-retardant processes approved by the State Fire Marshall.

Priority for the Use of District Facilities

Priority for the use of District Civic Center facilities will be as follows:

1. Student clubs and organizations
2. Fundraising entertainment or meetings where admission fees charged or contributions solicited are expended for the welfare of the students of the District
3. Parent-teachers' associations
4. School-community advisory councils

Adopted: 5/8/06
Revised: 12/11/17
Revised: 9/12/22

AP 6740 Citizens' Bond Oversight Committee

References:

Education Code Sections 15278, 15280, and 15282

The Citizen's Bond Oversight Committee is established according to the following:

Purposes

- To inform the public about the expenditure of bond revenues;
- To review and report on the proper expenditure of taxpayers' money for school construction; and
- To advise the public as to the District's compliance with the Proposition 39 requirements as contained in the California Constitution.

Activities

- Receive and review copies of the annual, independent performance audit;
- Receive and review copies of the annual, independent financial audit;
- Inspect school facilities and grounds to ensure that bond revenues are expended properly;
- Receive and review copies of any deferred maintenance proposals or plans developed by the District; and
- Review efforts by the District to maximize bond revenues by implementing cost-saving measures.

Members

The committee shall consist of at least seven members to serve for a term of two (2) years and for no more than three consecutive terms. Members shall serve without compensation.

The committee shall be comprised of at least:

- One member active in a business organization representing the business community located within the District;
- One member active in a senior citizen's organization;
- One member active in a bona fide taxpayer's organization;
- One member of a student both currently enrolled in the District and active in a campus group. The student may serve up to six (6) months after his/her graduation;
- One member active in the support and organization of a district

No employee, official, vendor, contractor, or consultant of the District shall be appointed to the committee.

Assistance
The District shall provide the committee with any necessary technical or administrative assistance, as well as other resources, to publicize its conclusions.

Public Meetings
Meetings shall be open to the public and notice provided in accordance with the provisions of open meetings laws.

Reports
At least once a year the committee shall issue a report on the result of its activities. Minutes from its proceedings, all documents received, and reports issued as a matter of public record and shall be made available on an internet website maintained by the District.

Also refer to the Citizen's Oversight Committee By-Laws which can be obtained from the Executive Director of Business Services.

Approved: 5/8/06
Revised: 8/13/18
Revised: 10/12/20

AP 6750 Parking

References:

Education Code Section 72330 and 76360;
Vehicle Code Sections 21113 and 40220

These procedures are intended to promote safe and orderly movement of traffic within District property for the safe and orderly parking of vehicles and bicycles.

All applicable provisions of the California Vehicle Code are expressly applicable both on and off paved roadways.

Parking of motor vehicles and bicycles is limited to specially designated areas. Fee permits are required. Vehicles or bicycles parked in violation of the provisions of this code are subject to fines, towing, or impoundment.

All persons who enter on the college are charged with knowledge of the provisions of this procedure and are subject to the penalties for violations of such provisions.

In accordance with California Vehicle Code Section 21113, the District will enforce these procedures by issuing citations.

Also, refer to https://www.avc.edu/administration/police.

Approved: 5/8/06
Revised: 6/8/20
Reviewed: 3/14/22

AP 6800 Occupational Safety

Reference:

Cal/OSHA; Labor Code Sections 6300 et seq; Title 8, Section 3203; Code of Civil Procedure Section 527.8; Penal Code Section 273.6; 626.9

A Safety Committee will be established to review and make recommendations concerning health and safety conditions on district property.

It shall be the obligation of each employee to work in a safe manner and not create hazards.

It shall be the employee's responsibility to report to his/her supervisor any observed unsafe physical conditions in the buildings or on the district premises. The report should be done verbally as soon as an accident occurs or unsafe condition is recognized.

Definitions

Prevention activities increase awareness and minimize the potential for crisis in the workplace. Training is essential for all staff to learn how to recognize early warning signs, so that appropriate intervention can be provided for identified areas of conflict in the workplace.

Crisis or conflict constitutes any inappropriate or unreasonable disruption that interferes with the normal functioning of your work.

Acts of violence include any physical action, whether intentional or reckless, that harms or threatens the safety of self, another individual or property.

A threat of violence includes any behavior that by its very nature could be interpreted by a reasonable person as intent to cause physical harm to self, another individual or property.

Workplace includes off-campus locations as well as college-sponsored activities where faculty, staff or student employees are engaged in college business or locations where incidents occur as a result of the person's relationship to the college community.

Emergencies

Any employee shall immediately report any situation that threatens life or property and demands an immediate response of police, fire or medical personnel by first dialing 911 and then notifying law enforcement.

Equipment and Sanitation

Should the duties of an employee require the use of equipment to ensure the safety of the employee, the District shall furnish such equipment. Complaints related to health, safety, sanitation and working conditions shall be forwarded to the employee's immediate supervisor for review and recommendation.

Crisis and Conflict Intervention

Any employee experiencing an unsafe work condition should immediately contact his/her supervisor or the Campus Police Department. The supervisor shall immediately notify the Campus Police Department about any acts or threats of violence. The employee will be provided consultation regarding resources available to resolve the unsafe work condition.

It is the responsibility of all employees to immediately report threats, acts of violence or any other behavior which deliberately hurts or harms another person at the college to their immediate supervisor and the Campus Police Department. Such reports will be promptly and thoroughly investigated.

Employee Crisis Assistance Team

An Employee Crisis Assistance Team is established to provide regular training and advice to individuals and departments. Training activities may include, but not be limited to, skill development in conflict resolution, communication, anger management and early identification of unsafe working conditions in the workplace.

Team advising activities may include individual consultations, peer mediation, conflict resolution services and referral to outside sources.

Immediately upon notification of an act of violence or threat of violence involving an employee, the team member notified will initiate Employee Crisis Assistance Team procedures as stated below.

In the event of an act or threat of violence, the team will investigate the incident and forward the results of the completed investigation to the Campus Police Department for consideration. Law enforcement will take appropriate action if the incident involves injuries or criminal activity.

The team will coordinate available resources to provide intervention, consultation or referral, which may include arranging for counselors to work with victims and observers of the incident.

Restraining Orders/Court Orders

An employee shall notify law enforcement of any restraining orders/court orders when named as a plaintiff, and provide a copy of the order to the Campus Police Department. In the event the supervisor is informed by an employee of a restraining order, the supervisor will contact the Campus Police Department to ensure they are aware of it, and that they have a copy of the restraining order on file.

Civil Defense and Disaster Preparedness Plans

Responsibility

The responsibility for developing and maintaining operable civil defense and emergency procedures rests with the Director of Campus Security.

The governing board shall adopt a written policy for use in formulating civil defense and disaster preparedness plans. A copy of such plans shall be filed with the County Superintendent of Schools following Board approval.

Distribution

A copy of civil defense and disaster preparedness plans shall be posted in each classroom and other instructional areas on campus. Additional copies shall be maintained in the office of Director of Campus Security.

5/8/06

Revised: 6/13/2016

AP 6850 Hazardous Materials

Reference:

Title 8, Section 340 et seq.

The District must post at least one CAL/OSHA Notice of Employee Protections and Obligations entitled “Safety and Health Protection on the Job” in each establishment in a conspicuous place where notices to employees are customarily posted. “Establishment”, in this context, means a single physical location where business is conducted or where services are performed.

Where employers are engaged in activities that are physically dispersed such as construction or transportation, the Notice required shall be posted at each location to which employees report each day.

Where employees do not usually work at, or report to, a single location the Notice or Notices shall be posted at the location or locations from which the employees operate to carry out their activities.

Each employer shall take steps to insure that such Notices are not altered, defaced or covered by other material

The Notice shall inform employees that employers who use any substance listed as a hazardous substance in Section 339 of Title 8 of the California Administrative Code must provide employees with information on the contents of material safety data sheets (MSDS) or equivalent information about the substance which trains employees to use the substance safely.

The Notice must also state that the employer is required to make available on a timely and reasonable basis a MSDS on each hazardous substance in the workplace upon request of an employee, collective bargaining representative, or an employee's physician.

The Notice must also state that employees have the right to see and copy their medical records and records of exposure to potentially toxic materials or harmful physical agents.

The Notice shall inform the employees that the employer shall provide an opportunity for employees or their representatives to observe of employee exposure to hazards conducted pursuant to Cal/OSHA regulations.

The Notice shall state that the employer must allow access by employees or their representatives to accurate records of employee exposures to potentially toxic materials, and notify employees of any exposures in concentration or levels exceeding the exposure limits allowed by Cal/OSHA standards.

5/8/06

AP 6975 Export Control

References:

U.S. Export Administration Act implemented by export Administration Regulations (EAR) U.S. Arms Export Control Act implemented by International Traffic in Arms Regulations (ITAR) U.S. Office of Foreign Asset Control Regulations (OFAC).

I. Overview of Export Controls

Export controls are a complex set of federal laws and regulations that regulate the release of certain commodities, technologies, and software to foreign nationals in the United States and abroad. The export control regulations are intended to protect U.S. foreign policy interests, protect national security, prevent terrorism and the proliferation of weapons of mass destruction, and preserve U.S. economic competitiveness. In general, anything leaving the U.S., such as research data, other intellectual property, documents or tangible items, whether shipped, carried and transported in any way is an "export." The releasing or otherwise transferring certain technical data and/or technology to a foreign person in the U.S. is a "deemed export" subject to the export control regulations. The particulars of each activity must be analyzed to determine the applicability of export control regulations and whether any exceptions apply.

II. Export Controls Laws and Regulations

Export Controls exist under three primary federal laws and associated regulations that are implemented by the U.S. Department of Commerce, the U.S. Department of State and the U.S. Department of Treasury as follows.

The Export Administration Act of 1979, as amended, authorizes the Department of Commerce, in consultation with other appropriate agencies, to regulate the export or re-export of certain U.S. origin goods, software, and technology. The Export Administration Regulations ("EAR") are administered by the United States Department of Commerce Bureau of Industry and Security (15 C.F. Regulations Parts 730-740).[1] EAR focusses on items that can have both regular civilian uses and can have military applications, often described as "dual-use" and are identified on the Commerce Control list.[2] Items subject to the EAR include purely civilian items, items with both civil and military terrorism or potential weapon of mass destruction-related applications, and items that are exclusively used for military applications but that do not warrant control under the International Traffic in Arms Regulations.

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[1] https://www.bis.doc.gov/index.php/regulations/export-administration-regulations-ear
[2] https://www.bis.doc.gov/index.php/regulations/commerce-control-list-ccl

The Arms Export Control Act ("AECA") is implemented by the Department of States International Traffic in Arms Regulations ("ITAR") (22 C.F. Regulations Parts § 120-130).[3] All persons or entities that engage in the manufacture, export, or brokering of defense articles and services must be registered with the U.S. government. The ITAR sets out the requirements for licenses or other authorizations for specific exports of defense articles and services. This regulation is the most restrictive and has stringent requirements for who can perform this type of research or have access to the defense articles and services. An overview of U.S. Export Control systems is provided by the Department of States at: https://www.state.gov/strategictrade/overview/.

The U.S. Department of Treasury implements the Office of Foreign Asset Control Regulations ("OFAC") (31 C.F. Regulations Parts §§ 501-598). OFAC regulations mostly affect foreign collaborations, international shipments and lectures or research abroad.[4] The OFAC administers and enforces economic sanctions programs primarily against countries and groups of individuals, such as terrorists and narcotics traffickers. The sanctions can be either comprehensive or selective, using the blocking of assets and trade restrictions to accomplish foreign policy and national security goals. Additional information on the OFAC is available at the U.S. Department of Treasury Resource Center at: https://www.treasury.gov/resource-center/faqs/Sanctions/Pages/ques_index.aspx

III. Activities that Generally Require Export Control Review

It is up to each individual to determine if their work may involve information or activities requiring Export Control review. The following are examples, but not an exhaustive list, of activities requiring Export Control review: export of goods (equipment, hardware, materials); export of technology (technical information and data including technology sent via email); export of software/code (including software sent via email); travel to other countries; visits by foreign nationals to District; disclosure of controlled information and materials to foreign nationals in the U.S., collaboration with foreign nationals or foreign companies.

IV. Fundamental Research Exclusion

The Fundamental Research Exclusion ("FRE") provides that technology or software that arises during, or results from, fundamental research and is intended to be published is excluded from the export control regulations. The FRE generally permits U.S. higher educational institutions to allow foreign members of their communities

[3] https://www.pmddtc.state.gov/?id=ddtc_kb_article_page&sys_id=24d528fddbfc930044f9ff621f961987
[4] https://www.treasury.gov/about/organizational-structure/offices/Pages/Office-of-Foreign-Assets-Control.aspx

(e.g., students, faculty and visitors) to participate in research involving export-controlled information on campuses in the U.S. without obtaining a license. However, the FRE does not permit the transfer of export controlled materials or items abroad, even to research collaborators. The FRE does not apply to research with restriction on publication of the results of the project.[5] Fundamental Research is defined under EAR to mean:

Fundamental research means research in science, engineering, or mathematics, the results of which ordinarily are published and shared broadly within the research community, and for which the researchers have not accepted restrictions for proprietary or national security reasons. (15 C.F.Regulations Part § 734.8 subdivision (c)).

Fundamental Research is defined in ITAR to mean:

> (8) Through fundamental research in science and engineering at accredited institutions of higher learning in the U.S. where the resulting information is ordinarily published and shared broadly in the scientific community. Fundamental research is defined to mean basic and applied research in science and engineering where the resulting information is ordinarily published and shared broadly within the scientific community, as distinguished from research the results of which are restricted for proprietary reasons or specific U.S. Government access and dissemination controls. University research will not be considered fundamental research if: (i) The University or its researchers accept other restrictions on publication of scientific and technical information resulting from the project or activity, or (ii) The research is funded by the U.S. Government and specific access and dissemination controls protecting information resulting from the research are applicable. (22 C.F.Regulations Part § 120.11 subdivision (a)(8)).

V. District Export Compliance Officer

The District's Export Compliance Officer (ECO) in the office of the Executive Director of Business Services in conjunction with Purchasing and Contracts is available to assist members of the District to assess their export control obligations and facilitates the procurement of export licenses when required.

A. The District's ECO implements District practices and procedures involving:

1. Identification, review and determination of any export control requirements, including control plans and licensing exceptions that may apply;

[5] See 22 C.F. ~~R.~~ Regulations Part § 120.11 subdivision (a)(8); 15 C.F. ~~R.~~ Regulations Part § 734.8 subdivision (c); and 10 C.F. ~~R.~~ Regulations Part § 810.3.

2. Identification of license exceptions or exclusions;

3. Submit export license application when an export license is required;

4. Conduct screening for restricted individuals and entities;

5. Document and communicate export control decisions;

6. Monitor export controlled projects for regulatory compliance;

7. Establishment of Technology Control Plans when required;

8. Establish procedures for individuals to report potential non-compliance;

9. Review and investigate reports of non-compliance;

10. Develop and implement export controls training program for the District;

11. Develop procedures for obtaining approval of foreign travel, for hosting foreign guests and for international collaborations;

12. Develop and implement international shipping and purchasing practices for export controls compliance.

B. Compliance Assistance for District Employees

District employees are responsible for identifying whether their activities may involve export control issues and for contacting the ECO for assistance in compliance with applicable laws and regulations. Compliance with export control regulations requires the cooperation and shared responsibility of many offices and persons across the District. The ECO shall be the District's point of contact in charge of the District's export control training and compliance efforts.

C. Record-Keeping

U.S. export control regulations (e.g., EAR, OFAC, ITAR) contain specific recordkeeping requirements that must be satisfied. The District must keep copies of all export documentation as required by the controlling regulations, and consistent with District document retention policies. In the event of a conflict between the retention periods in the applicable U.S. export regulations and the District document retention policy, the periods specified in the federal regulations shall take precedence.

D. Potential Violations

The District will respond promptly to all reports of non-compliance and will take appropriate action to correct and prevent future violations. The District's ECO shall investigate all reports of suspected violations and coordinate with legal counsel and other District leadership as necessary.

E. Disclosure to Federal Agencies

Federal regulations may require reporting of any violations to the cognizant agency responsible for the export control regulation and to federal sponsors. Voluntary and timely self- disclosures may mitigate the seriousness of a penalty. The ECO shall coordinate with the District's leadership and legal counsel concerning advance notification to the relevant governmental entity.

Approved: 5/13/19
Revised: 3/9/20

AP 6345 Bids and Contracts Under the CUPCCAA

References:

Education Code Sections 81641 et seq.;
Labor Code Sections 1770 et seq.;
Public Contract Code Sections 20110 et seq., 20650 et seq., 22000 et seq. (Uniform Public Construction Cost Accounting Act (Act))

Informal and Formal Bidding Procedures under the California Uniform Public Construction Cost Accounting Act, adopted by resolution by the Board of Trustees
Public Projects are defined in Public Contract Code Section 22002 subdivision (c) as construction, reconstruction, erection, alteration, renovation, improvement, demolition, repair work, or painting or repainting of or involving any publicly owned, leased or operated facility. Public projects estimated to cost up to $200,001 shall be let to contract by procedures described below.

It is unlawful to split or separate into smaller work orders or projects any project for the purpose of evading the provisions of this procedure requiring work to be done by contract after competitive bidding.

All bid notices for work to be done shall contain an affirmative statement requiring compliance with Labor Code Sections 1775 and 1776 governing payment of prevailing wages and Labor Code Section 1777.5 governing employment of apprentices. All bid submissions must contain all documents necessary to assure compliance with these Labor Code sections. Failure to provide such documentation shall cause any such bid to be deemed incomplete.

Public Projects funded by the Kindergarten-University Public Education Bond Acts of 2002 and 2004 and any future State Bond funds require that the District initiate and enforce a labor compliance program pursuant to Labor Code Section 1771.5.

Procedures Not Covered by this AP
When this procedure does not establish a process for bidding Public Projects, the procedures described in AP 6430 Bids and Contracts shall govern.

Contractors List
Lists of contractors shall be developed and maintained.

1 The California Uniform Construction Cost Accounting Commission (Commission) may recommend that the State Controller amend these amounts. Public Contract Code Section 22032 authorizes public projects of $60,000 or less to be performed by District employees by force account, by negotiated contract, or by purchase order. Public projects up to $200,000 may be let to contract by informal procedures. Public projects in excess of $200,000, with limited exceptions, shall be let to contract by formal bidding procedure. Public Contract Code Section 22032.

Award to Low Bidder; No Bids
All contracts must be awarded to the lowest responsible bidders. If two or more bids are the same and lowest, the District may accept the one it chooses. When no bids are received, the District may perform Public Projects with District employees or through a negotiated contract without further complying with this procedure.

Notice Inviting Informal Bids
When a Public Project anticipated to cost less than $200,000 is to be performed, the District shall prepare a notice of the opportunity to bid. The notice must describe the project in general terms, state the time and place for the submission of bids and describe how to obtain more detailed information about the Project. The District shall mail the notice to all contractors for the category of work to be bid, as shown on the Contractors List. The District may also mail the notice to all construction trade journals. Other contractors and/or construction trade journals may also be notified at the discretion of the department soliciting bids. Mailing shall be completed at least ten days before bids are due.

Award of Informally-Bid Contracts
The Superintendent/President or designee for the District, is authorized to award informal contracts (defined as contracts for less than $200,000), except those contracts described below.

Bids Exceed Informal Bidding Limit
If all informal bids received exceed $200,000, and the District determines that the cost estimate was reasonable, the District may award the contract at up to $212,500 to the lowest responsible bidder. The contract must be approved by Resolution receiving a four-fifths (4/5) vote of the Board of Trustees.

Bid Documents for Formal Bids
The Superintendent/President or designee will see that plans, specifications and working details for all Public Projects estimated to cost more than $200,000 are adopted.

Notice Inviting Formal Bids
When a Public Project, which is anticipated to cost in excess of $200,000 is to be performed, the District shall publish a notice inviting formal bids in a newspaper of general circulation. The notice shall be published at least fourteen (14) calendar days before the date of bid opening. The notice shall also be sent electronically, if available, by facsimile or electronic mail and mailed to all construction trade journals. The notice to construction trade journals shall be sent at least fifteen (15) calendar days before the date of bid opening. Other contractors and/or construction trade journals may also be notified, at the discretion of the department soliciting bids. Mailing shall be completed at least 30 days before the date of bid opening.

When Contractors List Has Not Been Prepared: Proprietary Product or Service

Notwithstanding the above:

- If the District has not prepared a list of contractors for the particular category of work to be performed, the notice inviting bids shall be sent to each of the construction trade journals.
- If the product or service is proprietary in nature, such that it can be legally obtained only from a certain contractor(s) pursuant to Public Contract Code Section 3400, the notice inviting informal bids may be sent exclusively to such contractors.

Contracts for Maintenance Work
Contracts for Maintenance Work may be bid pursuant to the Informal Bidding Procedures described above. Maintenance Work is routine, recurring work done for the preservation or protection of a public facility; minor repainting; landscape maintenance including mowing, watering, trimming, pruning, planting or replacement of plants, and servicing of irrigation systems; work performed to keep, operate, or maintain publicly owned water, power, or waste disposal systems.

Rejection of Bids; Re-solicitation; Use of District Employees
If the District intends to reject all bids, it must mail the apparent low bidder a written notice of the District's intent to reject the bid at least two business days prior to the hearing at which the bids will be considered.

After rejecting all bids, the District may:

- abandon the project;
- re-advertise the project; or
- perform the work with District employees, after passing a resolution by a four-fifths (4/5) majority of the Board of Trustees declaring that the project can be performed more economically by District employees.

Emergency Procedures
When an emergency necessitates repair or replacement, contracts shall be awarded pursuant to the procedures described in AP 6340 Bids and Contracts**.**

Also see BP/AP 6330 Purchasing, BP/AP 6340 Bids and Contracts, AP 6350 Contracts – Construction, AP 6355 Contracts – Job Order Contracts, AP 6360 Contracts – Electronic Systems and Materials, AP 6365 Contracts – Accessibility of Information Technology, AP 6370 Contracts – Personal Services, and AP 6380 Vendors.

Approved: 10/12/20

AP 7100 Commitment to Diversity

References:
Education Code Sections 87100 et seq.;
Title 5 Sections 53000 et seq.

The Antelope Valley Community College District demonstrates its commitment to diversity by complying with all federal, state, and local laws and regulations regarding equal employment and nondiscrimination in employment. The District maintains an Equal Employment Opportunity Plan and Student Equity Plan that addresses issues related to the student's access to educational opportunities and their academic environment.

The District is committed to ensuring equity and diversity among our staff and students' campus wide. The College maintains a commitment to these principles through the recruitment and retention of employees and students, which reflects the diversity of the communities that we serve. By fostering equal participation in critical recruitment and retention activities, we remain driven to establishing and maintaining specific activities and programs designed to promote a mindset of equity, diversity, inclusion, accessibility, and anti-racism that welcomes and respects differences.

Also see BP/AP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, and AP 3435 Discrimination and Harassment Complaints and Investigations.

Approved: 11/09/20
Revised: 12/8/2023

AP 7110 Delegation of Authority, Human Resources

References:

Education Code Section 70902 subdivision (d)
Accreditation Standard III.A.11

All applicants for employment with the Antelope Valley Community College District are recommended by the Superintendent/President and subject to confirmation by the Board of Trustees.

~~It~~ shall be the policy of The District to shall employ the best-qualified applicants for existing vacancies. It shall be contrary to District and State policy for the President or his/her designee to refuse to recommend for employment any person for reasons of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, marital status, sex, age, or sexual orientation of the applicant.

It shall be the responsibility of the College Superintendent/President to ascertain that applicants nominated for employment possess all qualifications established by law and board policy for the position for which application is submitted.

The Superintendent/President is authorized to appoint regular, part-time, or substitute personnel on a temporary basis in case of an emergency and to authorize employment of short-term, classified, and confidential/management supervisory personnel on a regular basis. Such appointments are subject to ratification for employment at the next Board of Trustees meeting.

The Vice President of Human Resources is delegated responsibility from the Superintendent/President to authorize employment, develop job responsibilities, and perform other personnel actions provided that all federal and state law and regulations, board policies and administrative procedures are followed.

Approved: 5/8/06
Revised: 2/12/07
Revised: 4/11/16
Revised: 12/9/19

AP 7120 Recruitment and Hiring

Reference:

Education Code Sections 87100 et seq.; 87400; 88003; ACCJC; Accreditation Standard III.A.1

EDUCATIONAL ADMINISTRATOR HIRING PROCEDURES

I. Establishment of an Educational Administrator Vacancy

A. The Board of Trustees shall authorize the District Superintendent/President to fill the educational administrator vacancy. Typically, educational administrators are those who exercise direct responsibility for supervising the operation of or formulating policy regarding the instructional or student services programs of the District.

B. The District Superintendent/President shall direct the Vice President of Human Resources/EEO Officer to proceed with the filling of a vacant educational administrator position.

II. Development and Responsibilities of the Search Committee

A. Upon the authorization to proceed with recruitment for an open position, a Search Committee will be established. This Committee shall be comprised of at least two administrators appointed by the District Superintendent/President, or designee, and at least one representative of each of the following: faculty, confidential/management/supervisory (CMS), classified employees, and students, who shall be appointed by their respective organizations. The District Superintendent/President may appoint additional members as appropriate. The Vice President of Human Resources/EEO Officer shall assign an Equal Employment Opportunity (EEO) representative from outside of the hiring area/division, who will serve as a voting member unless the committee determines the representative shall be an advisory member.

B. A Vice President or designee shall serve as Chair. The chairperson is responsible for establishing operating procedures, including agreed-upon ground rules, and moving the selection process forward in a timely manner.

C. The EEO representative will review the job announcement and consult with the President or Vice President for any adverse impact.

D. The Search Committee Chair and the EEO Officer will meet with the Search Committee members for the purpose of defining the role of the committee as that of a recommending body reviewing applications/materials and conducting interviews. In addition:

1. The EEO Officer or EEO representative will provide an overview of the EEO guidelines and each committee member will receive a copy of the EEO guidelines. (See AP 3420 titled Equal Employment Opportunity)

2. Each member will also be required to sign a Confidentiality Agreement. All proceedings of the Search Committee shall be kept confidential. Any breach of confidentiality will result in the removal of the committee member. There are limited circumstances under which disclosure of confidential information is authorized (to a District-hired investigator, under subpoena, etc.). No discussions regarding the selection process shall take place outside the Search Committee meetings. Any unauthorized disclosure of confidential information by a Search Committee member may result in suspension from serving on selection committees in the future.

E. The Search Committee will adopt a timeline for future meetings to include the review of applications and interviews.

F. The membership of the Selection Committee will not change during the process, except in the event of an emergency, or as necessary as determined by the Vice President of Human Resources/EEO Officer and the Chair of the Search Committee, if applicable. Committee members must attend all scheduled meetings. Missing a scheduled meeting will result in removal from the Search Committee. Replacement of committee members is allowable at the initial formation stage only.

III. Job Specifications and Qualifications

A. The Human Resources Office in conjunction with the Vice President/Chair and EEO Representative will prepare a preliminary position announcement for review by the Search Committee.

B. The Chair, in consultation with the search committee, prepares a list of any supplementary materials that candidates may be asked to submit with the application for the position.

C. The position announcement shall clearly state job specifications setting forth the knowledge, skills, and abilities necessary for job performance; desirable leadership characteristics and qualifications; and shall include sensitivity to and understanding of the diverse academic, socioeconomic, cultural, disability, and ethnic backgrounds of community college students. Job qualifications beyond the State minimum qualifications which the District wishes to utilize shall be reviewed by the Vice President of Human Resources/EEO Officer before the position announcement is advertised to ensure conformity with the requirements of Title 5 and other state and federal nondiscrimination laws.

D. The position announcement shall specify a deadline for review of applications for first consideration. The position shall remain open until filled.

E. A tentative timeline for the search will be prepared at this time.

IV. Advertising the Position

A. The advertising/recruitment phase of the administrative position shall be long enough to allow for a comprehensive nationwide search, typically 45 days. The District shall actively recruit from both within and outside the District work force to attract qualified applicants and shall include outreach designed to ensure that all persons, including persons from protected groups, are provided the opportunity to seek employment with the District.

B. The Search Committee Chair recommends to Human Resources the agencies, professional organizations, Internet list servers, individuals, etc., to receive the position announcement, in addition to those normally contacted by Human Resources.

C. The advertising/recruitment phase will be in conformance with the District's EEO Plan and other state and federal regulations.

V. Role of Human Resources Office

The Vice President of Human Resources/EEO Officer is responsible for monitoring the entire selection process. At any time the EEO Officer may interrupt the process to ensure equitable treatment of all candidates. The Human Resources Office will support the Committee Chair and all members of the search committee in the following:

A. Prepare a preliminary position announcement in conjunction with the Vice President/Chair and EEO Representative for review by the Search Committee.

B. Advertise the position by printing job announcements, posting the announcement on the AVC Web site, and placing ads in publications typically used by the Human Resources Office, as well as those agencies, professional organizations, Internet list servers, individuals, etc. recommended by the Search Committee.

C. Serve as the contact point for applicants interested in the position, and will receive all applications and required materials for development of the applicant pool.

D. Prepare the applications for review by the Search Committee, including verifying the completeness of all required materials prior to candidates being invited to campus for an interview.

E. Review adequacy of the applicant pool and pre-screen for minimum qualifications. The Vice President of Human Resources/EEO Officer, or designee, has the responsibility to take appropriate action to ensure that the applicant pool for all positions is broadly inclusive and affords all groups equal opportunity to obtain information about District openings. Appropriate action may include extending the application period, expansion of the interview pool, halting the process and re-advertising the position, or providing written rationale as to why the hiring process should continue. All applicants for positions of Educational Administrator must meet the requirements of the California Code of Regulations, sections 53406, 53420 and other applicable sections. All degrees submitted by applicants to satisfy the minimum qualifications for Educational Administrator positions must be conferred at the time of application; degrees which are in progress or ABD (all but dissertation/thesis) will not be accepted.

F. Maintain EEO information on each recruitment.

G. Provide all complete application packages meeting minimum qualifications to the Search Committee for consideration.

H. Prior to the screening of applicant materials by the Search Committee, the Human Resources Office will prepare screening forms using the criteria and rating/scoring matrix developed by the Search Committee.

I. Coordinate the oral interview process. Once the committee has met to determine which candidates are to be invited for oral interviews, the Human Resources Office will contact and schedule interview candidates according to the dates and times determined by the Search Committee. Once the candidates have confirmed their appointments, a list of times will be provided to the Committee Chair.

J. Arrange interviews with the Superintendent/President to follow the Search Committee interview of each candidate.

K. Prior to the scheduled interviews, the Human Resources Office will provide a packet of materials for each hiring committee member, including the interview schedule, position announcement, hiring procedure, and a set of interview questions and rating sheet for each interview candidate.

   In addition, the Committee Chair will receive a set of application materials submitted by each interview candidate and a final rating matrix for determining finalists.

L. All written materials regarding the selection and interview process, including forms provided by the Human Resources Office and separate notes taken by individual selection committee members, must be turned in to the Human Resources Office at the completion of the selection process to become part of the recruitment file.

VI. Developing Evaluation Criteria and Questions

A. The Search Committee will develop the job-related criteria and the method of evaluating the applications to ensure a thorough assessment of each candidate.

B. The Search Committee will develop interview questions including any scenarios or presentation required for the personal interviews based on the criteria listed in the position announcement. The questions shall include a diversity question to assess the candidate's sensitivity to, and understanding of, the diverse academic, socioeconomic, cultural, disability and ethnic backgrounds of the district's students.

VII. Preliminary Screening of Applicants

A. The Vice President of Human Resources/EEO Officer will review the applications to ensure there is an adequate pool of candidates.

B. If the pool of candidates is adequate, committee members will screen applications using the screening criteria previously established. After the screening has occurred, the Search Committee will meet to reach consensus on the best-qualified candidates to be invited for an interview.

C. The Vice President of Human Resources or designee will conduct reference checks on each candidate selected for an initial interview.

a. The President's Executive Council will evaluate the information obtained from each reference prior to inviting the best qualified candidates to the initial interview.

D. If the applicant pool is deemed not to be adequate, the Committee Chair will meet with the Vice President of Human Resources/EEO Officer to determine how to proceed.

VIII. Interviewing the Applicants Selected in the Preliminary Screening

A. The Search Committee will conduct interviews using the questions they previously developed.

B. Each Search Committee member will evaluate candidate responses and rate candidates regarding strengths and weaknesses.

C. For each interview candidate, each Search Committee member shall complete the forms provided by the Human Resources Office. All written materials regarding the selection and interview process, including forms provided by the Human Resources Office and separate notes taken by individual selection committee members, must be turned in to the Human Resources Office at the completion of the selection process to become part of the recruitment file.

D. Following the Search Committee interview, each candidate will also be interviewed by the Superintendent/President.

E. The Superintendent/President will meet with the Search Committee to offer his/her perspective and to discuss final candidate(s).

F. The Search Committee will submit the names of the final candidate(s) unranked to the District Superintendent/President.

G. The Superintendent/President will determine the final candidate(s).

H. If no final candidate(s) can be determined, the hiring process will return to the most appropriate stage. This may include review of the job specifications and qualifications to determine if changes should be made to the position announcement.

I. Once the finalist(s) has (have) been identified, reference checks will be conducted by the Chair of the committee and submitted to the Human Resources Office in a written, legible manner.

J. In the case of Vice President and Superintendent/President positions, identified finalists will proceed to the second level interview stage.

IX. Second Level Interviews for Vice President and Superintendent/President Positions

In the case of Vice President and Superintendent/President positions, identified finalists proceed to the second level interview stage. The purpose of the second-level interview is two-fold: to give the campus community a chance to meet and evaluate the candidate, and to give the candidate a chance to decide whether this would be a good place for him or her to work.

A. All finalists should follow the same schedule, so that all will be reviewed under the same conditions. This means that any internal candidates should follow the same schedule as the external candidates.

B. Identified finalists we be invited to campus to meet with various individuals and groups including:

1. Superintendent/President (typically from 8:00 a.m. to 9:00 a.m.)
2. Academic Senate and Union representatives (typically from 10:00 a.m. to 11:00 a.m. as one group)
3. Deans (vice president finalists typically meet with Administrative Council members from 11:00 to 12 noon)
4. Board of Trustees (vice president and superintendent/president finalists meet Board members at lunch in the President's Conference room)

C. In addition to meetings with various individuals and groups, the candidates should present an "open forum" at which each finalist will be given an opportunity to discuss their preparation for the position, their education and leadership philosophy, their views on significant issues related to the position, and respond to questions from the forum attendees. The forums will be open to the public.

X. Final Selection

A. Additional reference checking will be completed at this time.

B. The District Superintendent/President will make a final recommendation to the Board of Trustees.

C. The Board will approve the recommended candidate in open session.

D. If no acceptable candidate is identified, the hiring process will return to the most appropriate stage.

PROCEDURES AND PRACTICES FOR HIRING OF FULL-TIME CONFIDENTIAL/MANAGEMENT/SUPERVISOR STAFF

DEFINITION OF TERMS

For the purposes of this document, the following terms will have the designated meanings:

Confidential refers to any employee who is required to develop or present management positions with respect to employer-employee relations or whose duties normally require access to confidential information that is used to contribute significantly to the development of management positions. (Govt. Code 3540.1)

Management/Supervisory refers to those positions or classes of positions specified as supervisory, administrative, or executive and excluded from the overtime provisions. (Education Code 88029 and Government Code 3540.1)

Immediate Supervisor refers to the supervisor/manager or administrative officer with direct responsibility for the position under consideration.

Required Qualifications, Desirable Qualifications, and Equivalencies, as used in later sections of the document, refer to the definitions established in Part 1 of the document.

ORGANIZATION

This policy is presented in two sections.

Part I addresses the establishment of Required Qualifications, Desirable Qualifications, and the Evaluation of Equivalencies for Minimum Qualifications.

Part II addresses the hiring procedure. It contains a flow-chart which establishes the order of activities and a narrative which details the procedures.

Unless expressly articulated in narrative form, all hiring activities will be conducted using all of the appropriate procedures in both parts.

PART I Required Qualifications, Desirable Qualifications, Evaluation of Equivalencies

1. Required Qualifications

    a. The Minimum Qualifications recommended by the manager/supervisor and approved and adopted by the Board of Trustees of the District will be used as the basis for minimum qualifications for all non-instructional positions.

    b. All applicants will be provided the opportunity to have equivalent qualifications, as stated on the job description and job announcement, reviewed and considered for the meeting of minimum qualifications.

    c. Required Qualifications for all positions will include "sensitivity to and understanding of the diverse academic, socioeconomic, cultural, disability, and ethnic background of community college students." [re: AB 1725, Sect. 87360, p. 50]

    d. The staff of the Human Resources Office will determine the candidates who meet minimum qualifications as set forth in the job announcement based on information provided on the official position announcement. Educational qualifications beyond high school will be verified by copies of official transcripts or degrees provided by the applicant. All degrees and units used to satisfy minimum qualifications shall be from accredited institutions. "Accredited institution" shall mean a postsecondary institution accredited by an accreditation agency recognized by either the U.S. Department of Education or the Council for Higher Education Accreditation.

    e. The files of all candidates who meet minimum qualifications will be reviewed by the screening committee. The screening committee will not review the file of any candidate who does not meet minimum qualifications.

2. Desirable Qualifications

    a. Job announcements may include a set of "desirable qualifications," separate from the minimum qualifications. These desirable qualifications should describe meaningful characteristics that support the functional responsibilities of the position.

    b. The combination of the minimum qualifications and the job-related desirable qualifications will be used as the basis for decision making throughout the screening, interviewing, and

recommendation of applicants. Among the desirable characteristics to be considered in the decision making process will be the District's commitment to "hire and retain employees whose backgrounds and abilities add to the cultural diversity of the institution."

3. Establishing Required and Desirable Qualifications

   a. The required and desirable qualifications will be identified by the manager/supervisor in consultation with the divisional administrator and the divisional Vice President. The initial drafting of the required and desirable qualifications will be done by the manager/supervisor and/or administrator.

   b. The Equal Employment Opportunity Officer will monitor the minimum and desirable qualifications for adverse impact. If the EEO Officer believes the qualifications appear to be too restrictive, he/she will meet with the divisional administrator and the immediate supervisor to review the qualifications. If discriminatory intent or effect is identified, the EEO Officer shall implement solutions and/or confer with the divisional Vice President to determine necessary remedies.

4. Criteria for Determining Educational Equivalency

   a. In general, formal academic training equivalent to the training stipulated in the minimum qualification will be considered acceptable. Completion of all academic requirements by the effective date of employment shall be required. Examples of such equivalencies might include (but not be restricted to):

      (1) Minimum degree requirement from an accredited institution with a different name but supported by course work equivalent to the field required.

      (2) Completion of course work and academic requirements required for the minimum degree from an accredited institution without the award of the degree (e.g., a candidate who has completed degree requirements but has not received the degree due to the academic calendar).

      Evidence in support of equivalent academic training shall include transcripts from appropriately accredited institutions.

   b. When minimum qualifications require a bachelor's degree in a designated major, a bachelor's major shall be accepted if it meets one of the following sets of criteria.

      (1) A major designated on the transcript which is determined to be equivalent to the designated major (e.g., Management for Business Administration). If the major is clearly designated on the transcript, no equivalency review is necessary.)

      (2) Twenty-four semester units of credit (or equivalent quarter units) in the designated major field with 18 of those units at the upper division level. For disciplines in which equivalent courses are offered in different departments, the equivalent courses in different disciplines may be counted toward the 24 units.

      Evidence in support of equivalent academic training shall include transcripts from appropriately accredited institutions.

   c. For disciplines in which the degree is not generally expected or available (e.g. vocational areas), the equivalent of an associate's degree shall be considered the successful completion of two years of course work at a two- or four-year institution (the equivalent of 60 semester hours) including the completion of courses usual to a general education component.

      Evidence in support of equivalent academic training shall include transcripts from appropriately accredited institutions.

d. In determining the equivalence for a year of specified professional service, Human Resources will consider whether the equivalent experience required the performance of duties typical of the specified professional service.

e. After a position has gone through a complete announcement, recruitment, and application cycle using the established minimum qualifications criteria, and it is determined that the pool of applicants is inadequate, the following procedure may be used. The administrator and immediate supervisor in the division may determine that a combination of non-academic and academic training and experience will be accepted as equivalent to the minimum qualifications for a position. In such cases, the administrator and the immediate supervisor in the division will specify the following equivalent criteria before the position is announced, and a complete description of the criteria will be included with the position announcement. The determination of equivalent qualifications shall be subject to the review and approval of the EEO Officer.

   (1) Possession of an associate's degree. An appropriate major discipline(s) will be specified, if the faculty and the immediate supervisor determine the specification of a discipline to be a necessary equivalency.

   (2) The specific experience required or management function as a full-time employee, etc.

   (3) The level of the experience (e.g., a management level equivalent to supervisor of record, etc.)

   (4) The length and/or amount of experience (e.g., four years of full-time experience, four seasons as director/supervisor, etc.)

   All specified experience must be verifiable, through references. The reference checks will be reviewed by Human Resources. The procedures outlined in "Establishing Required and Desirable Qualifications" will be used in the establishment of equivalency criteria. This provision may be used again if the new search does not produce an adequate pool.

f. Clear and verifiable eminence in a field will be considered equivalent to minimum qualifications. Documentation must be provided that establishes that the candidate if recognized as eminent outside or his/her geographical region and that the candidate's eminence is based on experiences and activities in his/her field clearly beyond those that are usual.

PART II Hiring Procedure

The following narrative supplements the flow charts in the Appendix.

1. Announcement of Positions

   a. The Announcement of a Position will be drafted by the administrator of the division and the immediate supervisor who established the minimum and desirable qualifications for that position (see "Establishing Required and Desirable Qualifications") in consultation with the Vice President of Human Resources, or his/her designee, and the Vice-President with domain over the position.

   b. Position announcements will include the following sections:

      Basic Function A brief description of the position and the relationship of the position to the divisional and college functions and activities.

      Education and Experience A statement including the established minimum qualifications, the appropriate valid credential(s), the provision for equivalencies, and reference to "sensitivity to and understanding of the diverse academic, socioeconomic, cultural,

disability, and ethnic background of community college students." (see "Required Qualifications")

Desirable Qualifications A list of the qualifications that have been established as desirable. (See "Desirable Qualifications")

Since the minimum and desirable qualifications will be used to establish the criteria for screening applications, interviewing candidates, and recommending candidates, the descriptions of these qualifications should provide applicants with a basis for submitting supporting materials that address these criteria.

Representative Duties A list of typical duties including the following:

(1) A brief description of the primary responsibilities.

(2) A description of any ancillary responsibilities.

(3) Reference to scheduling considerations (e.g., assignment to evening duties, etc.).

(4) Leadership responsibilities (e.g., responsibility for leading a specific aspect of a departmental program).

(5) Service responsibilities related to the assignment (e.g., advisory committees, standing committees, etc.).

(7) A description of any other duties unique to the position.

(8) Closing date and address for submission of application materials.

Knowledge A list of the knowledge required to perform the position.

Ability A list of the abilities required to perform the position.

Work Direction, Lead and Supervisory Responsibilities to provide work direction, lead, and/or supervisory responsibilities to other employees, if applicable, and the levels of employee over whom such authority is exercised.

Contacts District personnel and outside contacts required by the position.

Physical Effort Physical effort required by the position.

Working Conditions

Salary and Benefits A statement of the entry salary range and a brief narrative description of fringe benefits in effect at the time of the announcement.

Application Procedure Applicants will be given instructions regarding the completion of the application process and will be informed that incomplete applications will not be considered. The application procedure will include the following:

(1) An official district application form. No separate form will be provided for equivalency considerations, however, applicants will be encouraged to provide a narrative description of their equivalent experience along with transcripts and other documentation to support their request for equivalency.

(2) Official transcripts for all college course work (if required in the announcement). Unofficial transcripts may be used to establish an application file.

(3) A resume.

(4) When appropriate, verification of appropriate credentials (i.e. certificates of completion for vocational programs, etc.).

(5) When appropriate, verification of "professional experience" as articulated in the minimum and desirable qualifications.

The following materials may be required at the discretion of the administrator of the division and the immediate supervisor involved in the drafting of the announcement:

(6) Recent letters of recommendation or a placement file containing such letters.

(7) A letter of intent or application.

When appropriate, additional support materials may be requested as optional. Such materials may include work samples (e.g., video tapes, portfolios, written materials, etc.) and other materials directly related to the criteria established in the minimum and desirable qualifications.

Selection Procedure A brief description of the selection process including:

(1) The review process to select candidates for interviews.

(2) The candidate will be interviewed by a committee. Final approval is granted by the Board of Trustees, upon the recommendation of the hiring supervisor and the President.

(3) A description of any other selection activities that are anticipated at the time of the announcement (e.g. a questionnaire, etc.)

Statement of Equal Employment Opportunity policies including reference to "encouraging applications from minorities and women."

c. The Equal Employment Opportunity Officer will review the draft of the job announcement for the potential for adverse impact pursuant to provisions in "b" of "Establishing Required and Desirable Qualifications."

d. The final draft of the position announcement will be reviewed by the administrator of the division, the immediate supervisor, and Human Resources.

e. Upon the approval of the final draft of the announcement, the immediate supervisor for the position will set a tentative time table for the hiring process (e.g., Screening Committee orientation/training, application review, etc.) in consultation with the divisional administrator, the Equal Employment Opportunity Officer, and the Vice-President with domain over the position.

2. Screening Committee

Formation of the Committee

a. The immediate supervisor for the position will consult with the administrator of the division to formulate a preliminary list of Screening Committee members. If no full-time confidential/management/supervisory staff currently work in the department or perform similar duties, the immediate supervisor will consult with at least two full-time confidential/management/supervisory staff in reasonably related fields. Classified staff may also be included on the Committee.

Once a preliminary list has been formulated, the immediate supervisor will ascertain the willingness of the people on that list to serve. If changes must be made to the preliminary list, the immediate supervisor will consult with the divisional administrator who participated in forming the preliminary list.

b. The preliminary membership list will be forwarded to the Equal Employment Opportunity Officer and the Vice-President with domain over the position for review. If either of these

officers have concerns about the membership list related to the responsibilities of their respective offices, that officer will recommend changes to the immediate supervisor of the division. It will be the responsibility of the immediate supervisor and/or the Vice-President with domain over the position to communicate the resolution of any concerns to the individual(s) in question.

Membership

a. Every Screening Committee will include members selected by the immediate supervisor of the division and the Vice-President with domain over the position.

b. Every Screening Committee will include one member designated as the Equal Employment Opportunity Representative. It shall be the responsibility of this member to monitor the committee proceedings for possible adverse impact and to act as an advocate for the institution's EEO/Staff Diversity goals. It shall be the responsibility of the EEO Officer to appoint the EEO Representative. Persons appointed as EEO Representatives will be employees who have received special training in Equal Employment Opportunity and personnel practices. The responsibilities of the EEO Representative are intended to supplement, not replace or abridge, the responsibilities of the Equal Employment Opportunity Officer.

c. Whenever possible, the screening committee shall include members of protected groups (ref.: Title V, 53024)

d. The chair of the Committee will be the immediate supervisor for the position being hired (or his/her designee).

e. If unusual circumstances prevent the formation of a Screening Committee as described herein, the immediate supervisor for the position and/or the Vice President with domain over the position will consult with the Equal Employment Opportunity Officer to determine a reasonable representation.

Responsibilities of the Screening Committee

The following activities are sequential:

a. The Committee will receive training on Equal Employment Opportunity, as well as training in relevant personnel practices before participating in the establishment of criteria or the reviewing of any applications.

b. The Committee will identify the hiring criteria based on the minimum and desirable qualifications included on the position announcement. The Committee will draft questions to be used in the interviews of all candidates. If desirable, the Committee will articulate any supplementary interview activities to be presented by all candidates (e.g., questionnaires, etc.). The questions and supplementary interview activities will be reviewed by the Equal Employment Opportunity Officer.

c. The entire Committee will meet to review and the divisional representatives (staff and immediate supervisor) will determine the acceptability of qualifications based on the minimum qualifications established in the announcement of the position and the guidelines described in "Criteria for Determining Equivalency." No assessment of the applicant's qualifications beyond the equivalency to minimum qualifications will be made at this stage of the process.

d. The Committee members may review the application materials of all candidates who meet minimum qualifications. Committee members will assess each applicant using the criteria established at step "b".

e. The Committee will meet to determine which applicants shall be invited for an interview based on the established criteria. The number of candidates to be interviewed will be determined by the Committee based on the pool of applicants, the apparent strengths and weaknesses among the candidates, and the need to insure that a diverse and representative group of applicants are interviewed.

f. If the Screening Committee, in consultation with the Vice President of Human Resources, determines that there is not an adequate pool of candidates who meet the minimum and desirable qualifications as specified in the job announcement, the Committee may request that the position be re-advertised, using the same hiring criteria, application review, and interview procedures. Persons in the original pool of applicants will be notified of the re-advertisement and informed of their status for subsequent considerations. If the Committee determines that there is a need to revise the job announcement, the Screening process will end and the procedures for drafting a position announcement will be initiated.

g. The list of candidates to be interviewed will be reviewed by the Equal Employment Opportunity Officer. The EEO Officer will determine whether the pool of candidates selected for interviews includes a reasonable representation of applicants who, if hired, would help the District meet its diversity goals. If the Equal Employment Opportunity Officer determines that (1) there are applicants who would help the District meet its diversity Employment Opportunity goals and (2) those applicants do meet minimum qualifications as specified in the job announcement, and (3) those applicants were not selected for an interview, the Equal Employment Opportunity Officer will meet with the screening committee to determine which of those applicants will be invited for an interview.

h. The Committee will interview all candidates using the list of questions and supplementary activities established at step "f". Appropriate job related "follow-up" questions may be included in the interview so long as (1) they are based directly on the candidate's response to a question, (2) do not seek information outside of the scope of the established hiring criteria, and (3) are not in violation of Equal Employment Opportunity guidelines.

j. Following the interviews, the Committee will attempt to arrive at a consensus of the recommendation(s) to make to the hiring supervisor or administrator. If consensus is not possible, the Chair may request a vote or a prioritization by each Committee member. Each Committee member will have equal voting privileges.

   If, after the interviews, in consultation with the Equal Employment Opportunity Officer, the Committee determines it cannot recommend any candidate, the Committee may initiate a re-advertisement of the position or the revision of the position announcement as described in item "f" above.

k. After interviewing the recommended candidates, the hiring supervisor or administrator will select a candidate and forward his/her recommendation to the President and Board of Trustees for final approval.

CLASSIFIED HIRING PROCEDURES

When a classified position is vacant, the manager completes the "Personnel Requisition Form" and submits it to the Human Resources Office for processing. Human Resources will notify the President of the Classified Union. When the "Personnel Requisition Form" is processed, the Human Resources Office will officially announce the position vacancy.

The process will be monitored at 4 stages for Equal Employment Opportunity compliance, which are as follows:

1. Evaluation of Pool

2. Minimum Qualifications
3. Screening and Interview
4. Hiring

ANNOUNCEMENT OF POSITIONS

All announcements will include the following information:

(1) Title
(2) Part-time/Full-time
(3) Permanent/Temporary (District/Categorical)
(4) Benefits, negotiated by collective bargaining
(5) Description
(6) Representative duties
(7) Minimum Qualifications (Education and Experience)
(8) Desirables
(9) Testing, if applicable
(10) Salary range
(11) Working hours, if outside normal hours of 8 – 4:30 p.m.
(12) Working Conditions
(13) Deadline Date
(14) Position Start Date
(15) Equal Employment Opportunity Statement
(16) ADA Statement

Testing. The managing supervisor will advise the Human Resources Office what, if any, skills testing are desirable for the position. All tests will be non-discriminatory and in compliance with the spirit of Equal Employment Opportunity (EEO) policies. Tests also need to relate to the responsibilities of the position being hired.

The hiring process will be subject to a check-off list attached to this document (Appendix I). The EEO Officer will review applicant rating criteria, interview questions, supplemental questions, skills and performance tests and any other application materials.

Posting Guidelines (for both full time and part time positions):

(1) Prior to public announcement, the position will be posted in-house for five working days for any transfer requests.

(2) All positions not filled by transfer will be open for a minimum of ten working days.

Advertising. Announcements are posted in house for five working days. If not filled by in-house transfer, the announcement will be sent to local school district offices; advertised in one or more area newspapers; and sent to businesses, organizations and other colleges, as appropriate.

No applications will be accepted after 4:30 p.m. on the filing date.

The Human Resources Office will maintain EEO information, score tests (if applicable), prepare file documents, and screen applications to determine candidates that meet minimum qualifications as

specified in the job description. If there are any questions regarding the minimum qualifications, the Vice President of Human Resources/designee will review the applications.

Hiring Committee (Recommended 5, minimum of 4 persons):

(1) The hiring committee chair (Managing Supervisor) and one or two classified representative(s) in the area of hiring to be on the committee.

(2) The classified union president will select a representative of the classified union.

(3) The EEO Officer/designee will appoint a classified employee as the EEO representative, who will serve as an additional voting member of the hiring committee.

(4) The Human Resources Office reviews composition of the hiring committee for equal employment compliance.

(5) The hiring supervisor/manager and the EEO Officer/designee will meet with the entire Hiring Committee for the purpose of:

a. Defining the role of the hiring committee as that of a recommending body reviewing applications/materials and conducting interviews. Also providing the committee with hiring and selection instructions.

b. Providing an overview of EEO guidelines.

c. Establishes that all proceedings of the hiring committee shall be kept confidential. The entire hiring process requires confidentiality on the part of all hiring committee members. The rights and reputations of the candidates need to be protected. Ratings and comments made by the committee members must not be shared with non-committee members. All committee members will receive a copy of the EEO guidelines and be required to sign a confidentiality agreement.

d. All committee members must attend all meetings, if a committee member does not attend all meetings, they will no longer be on the committee and there will be no replacements allowed. When interviews are being conducted, the committee members will be required to be present for all interviews.

e. The hiring supervisor/manager and hiring committee are responsible for organizing and setting schedules and making arrangements for committee meetings for screening and selection. They are also responsible for reviewing the EEO guidelines to ensure compliance.

The Hiring Committee will:

(a) Determine job-related screening criteria to be used by the committee in selecting candidates to be interviewed and develop the instrument used for ranking applicants;

(b) Prepare interview questions, each set of questions shall include a diversity question and be read to each candidate;

(c) Screen and rate all qualified applicants independently and select the best qualified applicants to interview;

(d) Determine interview date, time and location.

The Human Resources Office will:

(a) Review the candidates selected for interviews, matching qualifications with screening criteria;

(b) Review those not selected for interviews against the screening criteria;

(c) Review Equal Employment Opportunity goals and diversity;

(d) Schedule interviews

Preparation of Interview Packet:

The Office of Human Resources, prior to the interview, will provide a packet of materials for each hiring committee member, which will include:

(1) Interview schedule

(2) Applications and any attachments

(3) Job announcement

(4) Hiring Procedures

(5) Copy of Interview Questions and Rating Sheet

(6) A final rating sheet will be given to the EEO representative or hiring committee chair

Interview Process:

(1) The hiring committee will meet prior to the interviews to review procedures.

- The same questions should be asked to each candidate, by the same committee member, and in the same sequence. Questions will be provided so candidates can read along with committee member. The chair or EEO representative will make sure the candidate(s) leave the questions in the interview room

(2) The chair or designee will welcome the candidate and introduce the hiring committee members.

(3) Committee members make appropriate notes and ratings for each candidate.

(4) The hiring committee shall forward to human resources the acceptable candidates (preferably two), ranked in order of preference.

Appointment

Appointments to classified service shall be accomplished by the Board upon the recommendation of the President.

The President may authorize employment of short-term, classified, and confidential/management/supervisory personnel on a regular basis. Such appointments are subject to ratification for employment at the next Board meeting.

PROCEDURES AND PRACTICES FOR HIRING OF FULL-TIME AND ADJUNCT (PART-TIME) FACULTY

ORGANIZATION

I. Procedure for hiring full-time faculty

II. Procedure for hiring adjunct (part-time) and temporary (full-time) faculty

III. Procedure for employing faculty interns

IV. Role of Human Resources and the Application Process

V. Glossary of Terms

I. The procedure for hiring full-time faculty is presented in four sequential sections:

A. Development of Job Announcement

B. Development and Role of Hiring Committee

C. Screening Process

D. Interview Process

A. DEVELOPMENT OF JOB ANNOUNCEMENT

1. The faculty of the division/discipline, the educational administrator of the area/division, and the faculty EEO representative will draft the job announcement in consultation with the Faculty Union. (The faculty EEO representative may be from within or outside of the division. If a faculty member is not readily available, the educational administrator may assume the role of the EEO representative.) The District's Equal Employment Opportunity Officer will review the job announcement and consult with the area/division for any adverse impact.

2. The job announcement must contain the following sections:

   Introduction: A brief description of the position, relationship to division, the discipline offerings, and any special responsibilities.

   Required Minimum Qualifications: 1) the most current minimum qualifications as listed in the publication "Minimum Qualifications for Faculty and Administrators in California Community Colleges"; 2) the Academic Senate's approved Equivalency (See Appendix A); 3) any appropriate valid credential(s); 3) and a specific reference to "sensitivity to and understanding of the diverse academic, socioeconomic, cultural, disability, and ethnic background of community college students" (Assembly Bill 1725; Education Code 87360). If a candidate is claiming equivalency, an AVC Supplemental Equivalency Request Form must be provided and used.

   Desirable Qualifications: A list of additional qualifications suggested by the division/discipline faculty, in consultation with the Faculty Union. The Equal Employment Opportunity Officer will monitor the job- related, desirable qualifications for adverse impact. If they appear to be too restrictive, he/she will meet with the division faculty and educational administrator to review qualifications.

   Duties of Position: A list of typical duties, including the following:

   (1) A brief description of the primary responsibilities

   (2) A description of any co-curricular responsibilities (e.g. coaching, directing, etc.)

   (3) Reference to scheduling consideration (e.g. assignment to evening duties or off-campus)

   (4) Leadership responsibilities (e.g. responsibility for leading a specific aspect of an academic program)

   (5) Service responsibilities related to the academic and/or co-curricular assignment (e.g. advisory committees, standing committees, curriculum development, etc.)

   (6) A description of any other duties unique to the position

   (7) Closing date, list of required application materials, and address for submission

   Salary and Benefits: A statement of the entry salary range and a brief description of fringe benefits in effect at the time of the job announcement.

   Required application materials: An official, district application (signed and completed), a letter of intent, official transcripts (unofficial transcripts may be used to establish an

application file), a curriculum vita or resume, and, when appropriate, verification of credentials and/or licensor, or professional experience. It is the determination of the faculty whether to request current letters (dated within the last year) of professional reference for all positions in that division.

B. DEVELOPMENT AND ROLE OF HIRING COMMITTEE

1. The majority of the hiring committee members must be faculty members and must include a diverse membership that will bring a variety of perspectives to the assessment of applicant qualifications (Title 5: 53024 (f)).
2. The membership of the committee must include discipline faculty members. (If discipline faculty are not available, faculty from a related discipline or, if related discipline faculty are not available, adjunct discipline faculty may be selected.)
3. The membership of the committee will also consist of the educational administrator of the division/area (who will serve as the committee chair and EEO representative if a faculty member is not readily available to do so) and an appointed Academic Senate representative. The Vice President with domain over the position will begin his/her participation at the point of interviews.
4. In the formation of the committee, the educational administrator for the position will consult with the discipline faculty of the division to formulate a preliminary list of committee members. The educational administrator for the position, will request from the President of the Academic Senate the name of the individual (from outside the division) appointed to serve as the faculty representative of the Senate. (This faculty member cannot serve as the faculty EEO representative.)
5. Once the preliminary committee is formed, the educational administrator will circulate the list to the division faculty for comment. If changes must be made to the preliminary committee, the educational administrator will consult with the faculty who participated in forming the preliminary committee.
6. The preliminary committee list is forwarded to the District's Equal Employment Opportunity Officer. If there are identified concerns about the membership list, he/she will recommend changes to the educational administrator of the division. The discipline faculty must agree to any changes made to the committee membership. The educational administrator will communicate the resolution of any concerns to the individual(s) in question.

C. SCREENING PROCESS

The following activities are sequential:

1. At the first meeting, the EEO representative of the committee will train the hiring committee on Equal Employment Opportunity, as well as on relevant personnel practices. The training should include the District's EEO Plan as it relates to the current position. The committee will identify the hiring criteria based on the job-related, desirable qualifications included on the job announcement, as well as on consideration of the District's EEO Plan.
2. The committee will draft questions to be used in the interviews for all candidates. If desired, the job-related, supplemental interview activities or written material (e.g. teaching demonstration, sample lessons, syllabus, student handouts, etc.) for all candidates will be developed. The District's Equal Employment Opportunity Officer will review questions and supplemental interview activities or written material.

3. The discipline faculty on the hiring committee and the educational administrator will review the application packets to determine if minimum qualifications have been met. For those candidate(s) claiming equivalency to the minimum qualifications, the faculty and educational administrator must agree that a candidate meets the equivalency criteria. If they determine that the candidate(s) does meet the equivalency criteria, the candidate's packet is forwarded to the Equivalency Committee (see Appendix A). NO CANDIDATE IN THE HIRING POOL CAN BE INVITED FOR AN INTERVIEW UNTIL THE EQUIVALENCY COMMITTEE HAS REVIEWED THE EQUIVALENCY EVIDENCE PROVIDED BY A CANDIDATE.
4. The hiring committee will review only those application packets of candidates who meet minimum qualifications, as well as those that have been determined to meet the minimum qualifications through equivalency.
5. The committee will determine which candidates shall be invited for interview based on the established hiring criteria.
6. The list of candidates will be reviewed by the District's Equal Employment Opportunity Officer, who will then determine whether the pool includes reasonable representation in order to help meet the District's EEO Plan. If the EEO Officer determines that representative, qualified individuals have been excluded from the interview process and their inclusion would help the district meet the District's EEO Plan, he/she will meet with the hiring committee to determine if any of those candidates will be invited for interview.

D. INTERVIEW PROCESS

1. The hiring committee will interview all candidates using the agreed upon and approved list of questions and supplemental activities/written materials. Appropriate, job-related "follow up" questions may be included in the interview as long as (1) they are based directly on the candidate's response to a question, (2) do not seek information outside of the scope of the established hiring criteria, and (3) are not in violation of EEO guidelines.
2. The president may separately interview all candidates.
3. Following the interviews, the committee will attempt to arrive at consensus regarding the recommendation of one or more candidates to make to the President. If consensus cannot be reached, the Chair can request a vote or obtain a priority list of recommended candidates. All members have an equal vote.
4. If, after interviews, in consultation with the district's EEO Officer, the hiring committee determines it cannot recommend a candidate(s) to the President, the committee may revise the job announcement, in consultation with the Faculty Union, and begin a re-advertisement of the position.
5. Once the committee has reached a recommendation of one or more candidates, it will, along with the President, attempt to arrive at consensus to make a recommendation to the Board of Trustees.
6. The President will forward the Committee's recommendation (or recommendations if the committee is filling more than one position) to the Board of Trustees for final approval. The President may report a dissenting point of view to the Board of Trustees if he/she does not agree with the Committee's recommendation(s). The President will present to the Academic Senate President and committee, in writing, the reason for his/her dissenting point of view before taking recommendation to the Board of Trustees.

However, the President may not make an alternative recommendation to the Board. The expectation is that faculty recommendations regarding the hiring of faculty will normally be accepted is reinforced; only in exceptional circumstances and for compelling reasons communicated in writing to the hiring committee and to the President of the Academic Senate of the college will the Board not accept the committee's recommendation. The committee will then be reconvened and apprised of the Board's decision.

II. Procedure for hiring adjunct (part-time) and temporary (full-time) faculty

a. Announcement of Positions The Announcement of a Position will be drafted by at least one full time division/discipline faculty member, the faculty EEO representative, the educational administrator (in consultation with the Faculty Union), the Vice President of Human Resources and Employee Relations (or his/her designee), and the Vice-President with domain over the position. If a faculty member is not readily available, the educational administrator may assume the role of the EEO representative. If necessary, revisions will be made to the Desirable Qualifications (see "Development of Job Announcement")

b. See Section I.A.2: Full-Time Faculty Development of Job Announcement

c. Hiring Committee Membership Each hiring committee will include the educational administrator and at least one full time discipline faculty member who currently teaches the subject matter covered by the job announcement. (If a discipline faculty member is not available, a faculty member from a related discipline may be included.) The discipline faculty member on the hiring committee will also serve as the Academic Senate representative.

d. Formation of the Hiring Committee The educational administrator for the position will consult with the discipline faculty who currently teach the subject matter covered by the job announcement (or performs other duties related to the position) to determine which faculty member will serve on the Committee. If no full-time discipline faculty currently teach in the subject matter or perform similar duties, the educational administrator will consult with at least two full-time faculty of the division in reasonably related disciplines.

e. See Section I C.3: Full-Time Faculty Screening Process

f. Each committee member will have an opportunity to review the application packets prior to interviews being scheduled.

g. If desired, supplemental interview activities or written material (e.g. teaching demonstration, sample lessons, syllabus, student handouts, etc) may also be included for adjunct hires.

h. Following the interviews, the hiring committee will determine which candidates will be placed in the pool of potential adjunct faculty. Once a candidate has been placed in a pool, the educational administrator may assign the adjunct faculty member(s) to teach/serve in the specified academic discipline as the divisional need requires and the law permits. The adjunct faculty member will remain in the pool unless the District Part-Time Faculty Evaluation Procedure results in a recommendation to the Vice President of Human Resources and Employee Relations, or his/her designee, that the adjunct faculty member be dropped from the pool of faculty eligible for assignment, or has remained in hiring pool without an assignment for three years.

The appropriate Vice President will notify the Office of Human Resources and Employee Relations if an adjunct faculty

member has received an unsatisfactory evaluation or has remained in the hiring pool without an assignment for three years.

Upon that notification, the Office of Human Resources and Employee Relations will remove that adjunct faculty member from the appropriate hiring pool(s).

Emergency Hiring

a. Vacancies occurring less than seven weeks before the start of a term shall be considered emergency hires when there are no instructors available in the established pool. Any vacancy occurring seven weeks or more before the start of the term will be subject to the regular provisions of this hiring procedure.

b. As soon as a need is established, the educational administrator will notify the Vice President of Human Resources and Employee Relations of the need to make an emergency hire. The Vice President of Human Resources and Employee Relations, or his/her designee, will provide the educational administrator with the most recent job announcement for the position. The educational administrator, in consultation with the Faculty Union, will make any necessary revisions to the announcement. The Vice President of Human Resources and Employee Relations, or his/her designee, and the educational administrator will determine appropriate methods of recruitment for the position and establish a timetable for the hiring procedure.

c. The educational administrator will review the applications of candidates for emergency hire and interview the candidates who meet minimum qualifications. When possible, a full-time faculty member will be involved in the selection procedure as stipulated in the hiring procedure for adjunct faculty. If a candidate is claiming equivalency to the required minimum qualifications, the administrator must forward the application packet to the Equivalency Committee (per Equivalency Procedure: Appendix A). If the Equivalency Committee concurs with the educational administrator that the objective evidence supports the equivalency, then the educational administrator may select a candidate to interview. Once all interviews are completed, the educational administrator may select an individual to fill the emergency need. (If a full-time faculty member was involved in the selection procedure, he/she will assist in the selection of the individual to be hired.)

Adjunct faculty hired under this emergency procedure will not automatically become a part of the regular pool of adjunct instructors. During the term for which the emergency hiring occurred, the adjunct position will be advertised and candidates will be added to the pool according to the normal procedure outlined above. Candidates hired under the emergency procedure may be added to the regular pool after a satisfactory evaluation procedure that included participation by at least one full-time faculty member who currently teaches the subject matter. If no full-time faculty member currently teaches the subject matter, a full-time faculty member in a reasonably related discipline will participate in the evaluation.

III. Procedure for employing faculty interns (see Appendix B)

The Faculty Internship Program at Antelope Valley College offers us the opportunity to increase the recruitment of new instructors and also enhance efforts to build a diverse and representative faculty. The program introduces a faculty intern to the community college campus environment through a partnership with a tenured faculty member who acts as a mentor, providing a positive learning experience for the development of a faculty intern. During an academic year, the program offers faculty interns the full range of faculty activities and experiences necessary to acquire the tools to become a successful community college instructor, counselor, librarian, or other faculty assignment.

California Code of Regulations (Subchapter 5) states that the governing board of any community college district may establish a faculty internship program pursuant to the provisions of the Subchapter and Section 87487 of the Education Code. In accordance, governing boards may employ, as faculty interns within the program, graduate students enrolled in the California State University, the University of California, or any other accredited institution of higher education or in vocational and technical fields where a master's degree is not generally expected or available, persons who are within one year of meeting the regular faculty minimum qualifications. Persons who meet the regular faculty minimum qualifications but who lack teaching, counseling, library, or other community college faculty experience may also be included in the internship program. The purpose is to enhance community college efforts toward building a diverse and representative faculty. In order to accomplish this, the internship program shall place special emphasis on locating and attracting qualified graduate students who are members of underrepresented groups.

IV. Role of Human Resources and the Application Process

Human Resources will manage the flow of paperwork to ensure that the hiring procedure is followed. In terms of the role of the Human Resources Office as it relates to determining equivalency, it will be to collect, date stamp, and forward applications and other pertinent information to the hiring committee. The Human Resource Office will assist the hiring committee chair in providing the Equivalency Committee with the application and evidence provided by candidates identified by discipline faculty and dean for meeting claims of equivalency.

V. Glossary of Terms

For the purposes of this document, the following terms will have the designated meaning:

1. Adverse or Disparate Impact—refers to a statistical measure that is applied to the effect of a selection procedure, and demonstrates a disproportionate negative impact on a historically underrepresented group per Title 5, Section 53024 (b).
2. Educational Administrator— refers to an administrator who is employed in an academic position designed by the governing board of the district as having direct responsibility for supervising the operation of or formulating policy regarding the instructional or student services program of the college or district. Educational administrators include, but not limited to, chancellors, presidents, and other supervisory or management employee designated by the governing board as educational administrators per Education Code: 87002 (b).
3. Equal Employment Opportunity—refers to practices that assure all qualified individuals have a full and fair opportunity to compete for hiring and promotion and to enjoy the benefits of employment with the district per Title 5, 53024.
4. Protected Group—refers to any group defined in terms of ethnic group identification, race, color, national origin, religion, age, gender, disability, ancestry, or sexual orientation per Title 5, section 53024 (c).
5. Faculty—refers to all non-administrative academic staff, both classroom and non-classroom.
6. Faculty Academic Senate Representative—refers to a faculty member from outside the area/division (except on an adjunct hiring committee) appointed to the committee by the Academic Senate President and trained in the hiring process. This faculty member brings breadth to the committee and helps ensure that the procedures/practices are being followed. (This faculty member cannot serve as the faculty EEO representative.)

7. EEO Representative— refers to a faculty member from within or outside the division/discipline. If a faculty member is not readily available, the educational administrator of the area/division may assume the role of EEO representative.

8. Required Minimum Qualifications— refers to those qualifications listed in Title 5, Sections 53400-53430 and outlined in the "Minimum Qualifications for Faculty and Administrators in California Community Colleges" publication. Assembly Bill (AB) 1725 and Education Code 87360 require that the following statement accompany each announced position: sensitivity to and understanding of the diverse academic, socioeconomic, cultural, disability, and ethnic background of community college students.

9. Desirable Qualifications— refers to meaningful characteristics that support the functional responsibilities of the position but are separate from the required minimum qualifications. Desirable qualifications must be job related; they must NOT CREATE A BARRIER FOR EMPLOYMENT.

10. Equivalency—refers to the Academic Senate's approved equivalency for the required minimum qualifications developed by discipline faculty. The approved discipline equivalency shall be reviewed and affirmed by the Academic Senate every three years. If not reviewed and affirmed, the equivalency is no longer valid; at which time, the established minimum qualifications must be used. The approved equivalency cannot be less than the minimum qualifications, but can be more rigorous. By law, a "single course equivalency" cannot be approved.

11. Discrimination—refers to the unlawful treatment of people differently or disparately, when it is in the form that is constitutionally or statutorily forbidden.

12. Qualified—refers to persons who can carry out the duties of a particular position from the date of employment.

13. Consensus—refers to when the committee has reached general agreement.

6/11/07

Revised: 10/8/07
Revised: 4/14/08
Revised: 5/12/08
Revised: 12/12/11
Revised: 3/09/15

Classified Hiring Procedures Checklist

- ☐ Hiring Supervisor submits a Personnel Requisition Form to Human Resources
- ☐ Human Resources notifies Classified Union President
- ☐ Announcement is sent out to in-house for transfers, for a minimum of 5 working days, if in-house transfer, see in-house transfer checklist
- ☐ If there are no in-house transfers, announcement out to public, which includes the 16 items of information listed in procedures.
- ☐ If applicable, perform skills testing
- ☐ If no testing is required, human resources will prepare all documentation for hiring committee review
- ☐ Select hiring committee members per hiring guidelines and forward names to Human Resources
- ☐ Human Resources reviews composition of hiring committee for EEO compliance
- ☐ EEO representative is appointed by EEO officer/designee for committee
- ☐ EEO Officer/designee meets with hiring committee to review EEO guidelines, hiring guidelines and confidentiality
- ☐ Hiring supervisor and hiring committee organize and schedule required meetings and establish hiring criteria and notify human resources
- ☐ The hiring committee will review applications and select candidates for interview and notify human resources
- ☐ Human resources will review the candidates and verify that the candidates meet EEO compliance and screening criteria; then will schedule the interviews
- ☐ Human resources prepares interview packet for committee members
- ☐ Committee interviews candidates and selects a minimum of two candidates and fills out the top portion of "Recommendation for Employment" form and forwards to human resources
- ☐ Rating sheet and all other materials are turned into Human Resources by the EEO representative

- Committee chair performs reference checks on both candidates. Selected candidate is placed on bottom half of “Recommendation for employment” form
- Human resources notifies the candidate, College President and places candidates name on the Board personnel schedule for final approval
- Human resources notifies candidates not selected for the position
- EEO officer/designee prepares a report on selection process

AP 7125 Verification of Eligibility for Employment

Reference:

U.S. Code Section 1324a

The District will only hire or recruit United States citizens or people legally authorized to be employed in the United States.

Reliable documentation of eligibility is required for employment from all persons hired. "Reliable documentation" as set out in federal law includes one or more of the following:

- A United States passport or a resident alien card or alien registration card, or similar identification document containing a photograph of the prospective employee, that indicates the person is authorized to work in the United States

  OR

- A U.S. driver's license or ID card or similar ID document containing a photograph of the prospective employee.

  AND

- A social security card or other documentation issued by the United States government showing authorization to work in the United States.

The District will complete for each new employee the verification form or forms required by the United States government. The District will retain such forms for at least three (3) years for persons it does not hire. For persons it does hire, the District will retain such forms for at least three (3) years or until one (1) year after the persons leaves the District's employment, whichever is later.

The District will protect the privacy of the information it collects pursuant to this procedure.

Also see BP/AP 7120 Recruitment and Hiring.

Approved: 5/8/06
Reviewed: 10/9/17
Revised: 1/13/20

AP 7126 Applicant Background Checks

References:

Civil Code Sections 47, 1785.16, 1785.20, and 1786.16 et seq.;
U.S. Code Sections 1681 et seq. (Fair Credit Reporting Act);
Health and Safety Code Section 1596.871

Applicants for positions may be subject to background or reference checks.

Where a background investigation is performed by a third party, the Vice President of Human Resources or designee shall make a clear and conspicuous disclosure to the applicant on a separate form before the report is procured. The applicant shall be provided an option to receive or not receive the report. If the applicant is not hired, or the District takes other action that adversely effects any applicant based in whole or in part upon the third-party report, the Vice President of Human Resources or designee shall provide oral, written, or electronic notice of:

- the adverse action to the applicant;
- the name, address, and telephone number of the third-party agency that furnished the report;
- the applicant's right to obtain a free copy of the report; and
- the applicant's right to dispute the accuracy or completeness of any of the information in the report.

Child Development Center

The California Health and Safety Code requires a background check of all employees and volunteers (under certain conditions) of child care centers. If the California Department of Social Services finds that the individual has been convicted of a crime other than a minor traffic violation, the individual cannot work or be present in any community care facility unless they receive a criminal record exemption from the Community Care Licensing Division, Caregiver Background Check Bureau (CBCB). In addition, all applicants are required to undergo the Child Abuse Central Index name check. When an individual receives a criminal record clearance, he/she may work or volunteer in a licensed facility.

Also see AP 7337 Fingerprinting.

Approved: 4/14/08
Revised: 1/13/20

AP 7130 Compensation

Reference:

Education Code Sections 87801; 88160; Government Code Section 53200; U.S. Department of Education regulations on the Integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965, as amended.

Classified Compensation

Full Time Employees

The District shall maintain a single salary schedule for all regularly employed classified employees. The salary schedule for classified personnel on a full-time basis is based on a standard eight hour per day, forty hour workweek.

Part Time

Employees assigned to work less than the number of hours prescribed for full-time employees will be paid at the rate their employment bears to full-time service. This provision does not apply to short-term hourly or student employees.

Pay for Holidays (EC 88029)

If a person serving in an exempt position is required to work on a holiday, he/she shall be compensated, in addition to his/her regular pay for the holiday, at a rate not less than his/her normal rate of pay.

Pay Periods

Regular Employees

Time of payment for classified employees shall be established by the Board providing that such payment is made at least once during each calendar month.

Regular classified employees of the District shall be paid on the 10th and 25th of each calendar month. Nothing contained in the foregoing provisions shall be construed as prohibiting the Board from making payment of earned salary prior to the aforementioned pay period.

Substitute Employees

Substitute employees of the District shall be paid on or about the tenth working day of the month following the month in which the services were performed.

Overtime

Overtime pay will be included in the salary warrant that is issued on the 10th of the month following that in which such overtime pay was earned.

Error in Compensation (EC 88166)

Whenever it is determined that an error has been made in the calculation of a classified employee's salary, the Board shall, within five workdays following the discovery of the error, provide the employee with a statement of the correction and supplemental payment drawn against any available funds of the District.

Salary Deductions

Deductions Required by Law

Deductions from the employee's wage, mandated by law, shall be made for the following reasons:

- State and Federal Income Tax
- Public Employees Retirement (PERS)
- Old Age, Survivors and Disability Insurance (OASDI)
- Medicare

Dues (GC 3543.1) (E.C. 87833, 88167)

Refer to Section 7.12 of the Antelope Valley College Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement for information regarding dues and other payroll deductions.

Salary Advances

This District does not allow salary advances.

Authorization

The Board shall, not later than the date prescribed by law for approval of the budget, fix salaries for the ensuing school year for all persons employed by the District in classified positions. The Board may, at that time, include an increase in annual salaries, all or part of which is conditioned upon actual receipt by the District of anticipated revenue from all sources. If the revenue actually received is less than anticipated, the Board may, at any time during the school year, reduce the annual salaries by an amount not to exceed the amount which was granted due to the anticipated revenue from all sources. The Board may, at any time during the school year, increase the salaries of persons employed by the District in non-academic positions for the remainder of the year.

Differential Compensation (EC 88180)

Refer to Sections 12.7, 12.7.1, and 12.7.2 of the Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement for information regarding differential compensation.

Paid Holidays (EC 88203)

General Provisions Refer to Article VIII of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Restrictions Refer to Article VIII of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Substitute Holiday

Any classified employee required to work a workweek other than Monday through Friday, and as a result thereof loses a holiday, shall be compensated in the amount to which the employee would have been entitled had the holiday fallen within his/her normal work schedule, or provided a substitute holiday.

Paid Vacations

Refer to Article VIII of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Salary Schedules

Provisions of Salary Schedule

The basic or minimum salary for those who meet the minimum requirements for training and experience is indicated on the schedule for each position listed, together with other salaries.

A full year of classified service is required to progress from one step to another.

All salaries on the schedule are full-time salaries intended for full-time service except as noted in the schedule (Refer to Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement/Exhibit A). Salaries for part-time service shall be pro-rated in relation to full-time service.

No classified employee in the service of the District shall be reduced in salary as the result of the adoption of a new schedule.

Placement

All new probationary employees shall be placed on Step 1 and shall remain at this initial step until the anniversary date is attained.

Additional salary increments shall occur on the annual anniversary of the first increment until the maximum is reached.

Anniversary Date

The anniversary date for classified employees shall be established at the time of appointment as a regular member of the classified service. If that date upon which an employee first performs any and all duties required falls between the first and the fifteenth of a month, the anniversary date shall be designated as the first of the month in which service is so rendered; if the date of first service is between the sixteenth day and the last day of a month, the anniversary date shall be designated as the first day of the following or subsequent month in which service is so rendered.

Adopted Schedule

The salary schedule will be adopted by the Board of Trustees annually and shall be published, with a copy provided to the bargaining unit and any employee who requests one.

Unemployment Compensation

Eligibility

Every regularly employed classified employee of the district, except those listed below, shall be protected by unemployment insurance pursuant to Sections 605 and 802 of the Unemployment Insurance Code.

Exempt Employees

Students employed part-time and enrolled in college classes offered by the District, apprentices, temporary professional experts, emergency, limited term, or provisional employees or volunteers are excluded from unemployment insurance.

It shall be the responsibility of the Human Resources Office thereof to inform classified employees of their rights in the event of unemployment.

Academic Personnel Compensation and Related Benefits

Salary Schedule

See current *Antelope Valley College Federation of Teachers Collective Bargaining Agreement.*

General Provisions S

Salaries of individual academic personnel will be established in accordance with the schedules and the provisions under which they are administered.

For academic personnel new to the district, credit for appropriate previous teaching experience will normally be allowed up to a maximum of five years. For disciplines in which a master's degree is not generally expected or available, partial credit toward the five-year maximum may be allowed for appropriate work experience in related professions and industries upon the recommendation of the President.

Refer to Article IX in the current *Antelope Valley College Federation of Teachers Collective Bargaining Agreement*.

Request for Approval of Units for Advancement

Refer to Article IX in the current *Antelope Valley College Federation of Teachers Collective Bargaining Agreement*.

Pay Periods

Refer to Article X in the current *Antelope Valley College Federation of Teachers Collective Bargaining Agreement*.

Related Benefits

Related benefits shall be those established by the collective bargaining process and as approved by the governing board on an annual basis.

Salary Advances

This District does not allow salary advances.

Prohibit of Incentive Compensation

Senior managers and executive level employees who are only involved in the development of policy and do not engage in individual student contact or the other covered activities will not generally be subject to the incentive compensation ban.

Although athletic coaches may be covered employees, subject to certain limitations, and, based upon the District's determination on a case-by-case basis [after consulting with exclusive representatives, if any], coaching staff and other athletic personnel may be exempt from the prohibition of incentive compensation.

The Superintendent/President or designee shall identify any covered employees of the District and determine whether the District's compensation arrangements comport with the prohibition on incentive compensation, and to the extent that they do not, make necessary modifications to comply. Similarly, the Superintendent/President or designee shall identify any covered service providers, evaluate whether the contract pricing structure is consistent with the prohibition on incentive compensation, and if not, determine what modifications the District can make to any applicable contract.

Antelope Valley College
Tablet Stipend

Your position with the College, or Board of Trustees, has been identified by the Office of the President as requiring access to a personal tablet device in order to fulfill your day-to-day responsibilities to the Board of Trustees, and/or the College. To facilitate fulfillment of this requirement, and alleviate institutional responsibility due to loss or damage, a one-time stipend of $1,275 will be awarded to cover the expense of acquisition. Upon request, this stipend will be provided every 4 (four) years in order to ensure that the technology is updated in a timely manner. The following standard components are recommended and will officially be supported by Information Technology Services:

- One (1) Apple iPad with 16 GB Memory, a Retina Display, and wireless capacity, and AppleCare extended warranty protection.
- One (1) Protective Cover (Targus Versavu Carrying Case is recommended)
- One (1) Protective Screen Film (Zagg InvisibleSHEILD is recommended)
- GoodReader for iPad – for document management/viewing from cloud storage (available through the Apple App Store)

Your acceptance of this stipend, and signature below, signals acceptance of the following terms:

- Stipend is a one-time funding for purchase.
- Stipend is taxable income and will be reflected within your annual tax documentation.
- Equipment purchased is recognized as is your personal property and the college has no responsibility for maintenance or repair in the event of damage.
- Equipment is required for fulfillment of duties of your office and it is your responsibility to insure its availability and good condition to execute those duties.
- Information Technology Services will provide basic training and support for the device's use, as an established standard for Tablet Computing for the college. That support will be limited to basic support of: Apple's IOS on the device; AVC/Gmail electronic mail configuration; access to AVC Wireless; web access to BoardDocs; Skype & FaceTime for video conferencing; access to GoogleDrive; and use of GoodReader. (*All other support needs should be directed to the manufacture and their support services.)*

IDENTIFIED POSITIONS
FOR ACCESS TO A
PERSONAL TABLET DEVICE

Five (5) Board Members
Superintendent/President
Executive Assistant to the Superintendent/President
Administrative Assistant – President's Office
Vice President Human Resources
Vice President Student Services
Vice President Academic Affairs
Executive Director of Facilities, Planning & Campus Development
Executive Director of Information Technology Services
Executive Director of Public & Governmental Relations
Antelope Valley College Confidential/Management/Supervisory Employee
President Antelope Valley College Federation of Teachers
Antelope Valley Federation of Classified Employees
Executive Director of Business Services
Academic Senate President
Executive Director of Advancement & Foundation

4/14/08
Revised: 9/10/12
Revised: 4/15/13
Revised: 4/11/16

AP 7145 Personnel Files

Reference:

Education Code Section 87031, Labor Code Section 1198.5

Refer to Antelope Valley College Faculty collective bargaining agreement Article X, 1.0 Personnel Records.

Refer to Antelope Valley College Classified collective bargaining agreement Article VII, 1.0 Personnel Records.

5/8/06

AP 7150 Evaluation

Reference:

Accreditation Standard III.A.1.b

EVALUATION OF FACULTY AND NON-CMS CLASSIFIED EMPLOYEES

Refer to Antelope Valley College Faculty collective bargaining agreement Article VIII, Tenure and Evaluation.

Refer to Antelope Valley College Classified collective bargaining agreement Article IX, Evaluation and Discipline of Unit Members

EVALUATION OF VICE PRESIDENTS, DEANS and EXECUTIVE DIRECTORS

Scope

This evaluation procedure applies to the following leadership staff members: Vice Presidents, Deans, and Executive Directors.

Philosophy

The administrative evaluation process, by identifying an individual's areas of special competence as well as ways to improve and grow, is aimed at the betterment of personal performance, thereby enhancing the effectiveness of the College's administrative services and the quality of the educational experience provided to students. The goal of evaluation is to acknowledge and encourage high performance levels, motivating individuals to become more effective.

A formal evaluation provides administrators the opportunity to reflect on their accomplishments, redefine goals, formulate new approaches and strategies, identify barriers and needs, and reassess their professional development plans. It also provides the opportunity for administrators and their supervisors to engage in a constructive dialogue with a view towards clarifying goals and expectations, acknowledging excellence, and communicating on issues affecting the good of the College. Finally, evaluation provides a means for those affected by an administrator's actions and services to participate in assessing their effectiveness.

Evaluation Criteria

The administrator's performance will be measured in accordance with the criteria outlined below.

The effective administrator should demonstrate the following qualities, skills, and competencies:

1. Leadership

   The administrator’s leadership skills are measured by the extent to which he or she:

   a. Practices democratic leadership, delegating responsibilities and encouraging participation in decision-making.

   b. Supports the rights of others to be heard and provides the means for all to share in setting and accomplishing goals.

   c. Makes timely and effective decisions.

   d. Displays receptivity to changes and new ideas.

   e. Sets reasonable and substantive goals and objectives and works effectively toward them.

   f. Displays sound judgment and perspective, focusing on basic issues rather than trivia.

g. Plans effectively and imaginatively.

h. Takes the lead in identifying, selecting, and training new employees.

2. Communication, Coordination, and Collegiality

In dealing with other individuals, the administrator:

a. Is committed to and maintains effective communication with everyone.

b. Is consistent in the application and interpretation of policy

c. Recognizes the accomplishments of others and is willing to put others first.

d. Is committed to collegiality and shared governance.

e. Recognizes problems and is willing to solve them effectively and impartially.

f. Is sensitive to diversity, working effectively with different types of people and tolerating a variety of viewpoints and perspectives.

g. Maintains an atmosphere of candor, trust, and respect.

h. Open, approachable, fair, and consistent when dealing with others.

i. Displays awareness of relevant regulations and statewide issues.

j. Keeps abreast of developments within his/her area of responsibility and coordinates as necessary with statewide agencies.

k. Serves on committees and participates in special projects such as program review and accreditation.

l. Effectively represents his/her unit in interactions with all campus constituencies.

m. Represents the college within the community.

3. Organization and Management

The administrator's organizational and Management skills are revealed in the extent to which he/she:

a. Maintains an efficient and effective office structure.

b. Displays attention to detail

c. Develops an effective budget and establishes procedures to allocate funds and monitor expenditures.

d. Shows skill in planning, organizing, and implementation.

4. Professional Qualities

The effective administrator has the following qualities:

a. Current and extensive knowledge of his/her discipline or area of expertise.

b. Broad intellectual and cultural interests and understanding.

c. Commitment to a quality educational experience.

d. Proponent of professional growth for self and staff.

e. Concern for the institution as a whole rather than just his/her unit.

f. Initiative, resourcefulness, and creativity.

Evaluation Schedule and Procedures

1. Newly-hired administrators will be evaluated annually during their first three years of service. Thereafter, evaluations will be required every three years. The evaluations will be conducted during the period of September to February, with the completed evaluation submitted to the President by February 15.
2. Each administrator will use a questionnaire to assess his/her performance. The questionnaire will address all of the major subdivisions of the Criteria (*Leadership; Communication; Coordination; and Collegiality; Organization and Management; Professional Qualities)* and will provide opportunity for and encourage written comment. Every effort will be made to protect the anonymity of those who respond to the questionnaire.

   The questionnaire will provide an opportunity for those affected by the services or actions of the administrator to assess his/her performance. The individuals to be invited to complete the evaluation instruments will be determined by the person being evaluated and the supervisor. However, any individual with direct knowledge of the administrator's performance who has not been included among those selected to respond to the questionnaire may request inclusion from the supervisor.
3. The supervisor of the individual being evaluated will distribute the questionnaires, collect and collate the results. After the supervisor has reviewed the questionnaires, they will be forwarded to the evaluee for summary and analysis.
4. After receipt of the completed questionnaires, the administrator will review the questionnaire data and provide a written summary of findings along with appraisal to address identified areas of concern.
5. The administrator will review progress toward achieving the prior year's goals and objectives as developed in conjunction with the supervisor. In addition, goals and objectives will be reviewed and updated annually as part of the Evaluation Conference held with the supervisor.
6. The supervisor will complete the Administrative Employee Evaluation prior to meeting with the administrator. The evaluation should address the quality of the administrator's performance and his/her personal and professional effectiveness including, if applicable, recommendations for improvement. The administrator and supervisor will meet to discuss the evaluation and both will sign it to indicate it has been reviewed. . The employee's signature on the evaluation indicates only that he/she has read the evaluation. The evaluee may append written comments to the supervisor's evaluation.
7. An Evaluation conference will be held each year.
8. The completed and signed evaluation, along with supporting materials, will be forwarded to the President. The President has the option of conducting an additional evaluation meeting if desired.
9. After the evaluation process is completed, all materials will be forwarded to the Office of Human Resources & Employee Relations for placement in the employees personnel file.

EVALUATION OF CONFIDENTIAL, MANAGEMENT, AND SUPERVISORY (CMS) EMPLOYEES

Scope

This evaluation procedure applies to those employees designated as Confidential, Management, and Supervisory (CMS).

Philosophy

The CMS evaluation process, by identifying an individual's areas of special competence as well as ways to improve and grow, is aimed at the advancement of personal performance, thereby enhancing the effectiveness of the College's services and the quality of the educational experience provided to students. The goal of evaluation is to acknowledge and encourage high performance levels, motivating individuals to become more effective.

A formal evaluation provides CMS employees the opportunity to reflect on their accomplishments, redefine goals, formulate new approaches and strategies, identify barriers and training or other needs, and reassess their professional development plans. It also provides the opportunity for CMS employees and their supervisors to engage in a constructive dialogue with a view towards clarifying goals and expectations, acknowledging excellence, and communicating on issues affecting the good of the College.

Evaluation Criteria

The performance of CMS employees will be measured in accordance with the criteria outlined below.

Annual appraisals are to be completed between April 1 and May 31 of each year for the first three years of employment. Beginning with the fourth year of employment evaluations may be done biennially. Final markings and comments on the appraisal should be in ink or typewritten. Additional pages may be used if more space is needed for narrative comments. The evaluation is to be given to the employee and discussed in a private meeting with the employee. Any changes made to the evaluation should be initialed by the employee and supervisor. All attachments must be signed by the employee and evaluator.

CMS employees are to be evaluated in conjunction with the *Essential Functions* of their respective job description. The supervisor should refer to the *Essential Functions* of the employee's job description prior to beginning the evaluation process.

Derogatory Information

Information or material of a derogatory or critical nature which has been received from others may not be used unless the specific issue has been verified to the satisfaction of the supervisor, in consultation with the Vice President of Human Resources, and relates directly to the CMS employee's employment.

Signature and Response to Evaluation

The CMS employee's signature on the report indicates only that he/she has read the report. The CMS employee may, within ten (10) working days, respond in writing to an evaluation with which the CMS employee is not in agreement. This response shall be attached to the evaluation in question. The Human Resources Office will distribute a copy of the response to the supervisor.

Evaluation Schedule for Probationary CMS Employees

Probationary CMS employees shall be rated by their immediate supervisor at the end of the 3rd month, 6th month, 9th month and prior to the end of the 12th month of employment. The above schedule does not prevent dismissal of such CMS employee at any time during the one year probationary period.

Evaluation Categories

Evaluation of the competence of CMS employees shall include, but not be limited to:

(1) Knowledge of Work

(2) Quality of Work Productivity

(3) Dependability

(4) Communication Skills

(5) Initiative

(6) Interpersonal Relations

(7) Professionalism

(8) Safety Practices

The Supervisor should include information on staff member's overall performance highlighting:

(1) areas of strengths

(2) areas for further development

(3) areas for improvements

(4) areas where unique or extraordinary factors contribute to the evaluation

Each rating other than *Standard* (below or above) requires an explanation in the *Comments* box beside the category. Each rating below *Standard* must be based on issues discussed with the employee prior to the evaluation, supported by a statement of facts in the *Comments* box, and accompanied by a separate *Development Plan.* Subsequently, one or more conferences shall be held with the employee to assist him/her in correcting deficiencies previously noted. A record of such conference(s) shall be prepared by the evaluator for the file on the employee and a copy submitted to him/her.

5/8/06
Revised: 9/13/10
Revised: 5/11/15
Revised: 8/8/16

AP 7160 Professional Development

References:

Education Code Sections 87150 et seq.;
Accreditation Standard III.A.14

The District plans for and provides all personnel with appropriate opportunities for continued professional development, consistent with the District's mission. The District will evaluate these programs and use the results of the evaluation as the basis for improvement.

The Superintendent/President shall annually submit to the Chancellor of the California Community Colleges an affidavit that contains all of the following:

- A statement that Antelope Valley College has an advisory committee, composed of administrators, faculty, and staff representatives, which has assisted in the assessment of the faculty and staff development needs and in the design of the plan to meet those needs;
- The Antelope Valley Community College District has completed a campus human development resources plan for the current and subsequent fiscal years; and
- A report of the actual expenditures for faculty and staff development for the preceding year.

Staff Development Guidelines and Procedures

Funds are available for staff development projects for all staff (classified-faculty-administrators). All proposals must be related to current assignment(s) at AVC. A maximum amount (established annually by the Staff Development Committee) is available per person between July 1 and June 30 as long as funds are available. More than one (1) proposal may be submitted if the maximum has not been reached. Project proposal forms are available on-line and in the Human Resources Office.

Guidelines and criteria for receiving Staff Development funds are published annually by the Staff Development Committee. Once approved by the Committee, the proposal is submitted to the Board of Trustees for final approval. Individuals will be notified when this process is completed (usually the following day after the regular Board meeting.).

Please Note: *The Staff Development Committee expects that the information/knowledge gained from a staff development project will be shared with the campus community. On the Proposal Form for staff development funding, employees*

must indicate which constituency group(s) may benefit and the method for disseminating the information/knowledge.

Reimbursement
Within thirty (30) days of completion of a project, employees must submit a Request for Reimbursement form, handwritten forms will be returned, with original receipts to Human Resources. When more than one (1) person attends the same conference, it is expected that each person will submit a separate individualized report. Staff development pays only for actual receipted expenses (no receipts are required for food or gasoline). The committee will assume that reimbursement will not be requested if a reimbursement form is not received within thirty (30) days after completion of the project. If an employee is unable to complete the project, he/she must notify Human Resources as soon as possible so that another applicant can use the allocated funds. An employee may not cancel an approved project and substitute it with another.

Travel, Lodging, Food
Specific applicable allowances for expenses are available in the Business Office or on-line.

IMPORTANT: *Do not forget to submit a trip request form prior to any off-campus activity. Indicate "Staff Development Funds" in the method of funding box.*

Classes
If the project request includes enrollment in a class, the class must fit the staff development criteria. Tuition, books, supplies, and travel expenses are reimbursable. Reimbursement for classes taken is contingent upon receiving a grade of "C" or better in the class. Therefore, an employee must submit a grade report with the request for reimbursement. Staff Development cannot pay for classes and their associated expenses that will advance faculty/staff on their respective salary schedules.

General Information
Handwritten paperwork will not be accepted and a copy of the relevant conference materials must be attached. If the proposal includes activities, that are not prescheduled, such as visiting museums, etc., an itinerary showing each activity and how the activity will meet the project must be included. All acronyms or abbreviations must be spelled out during their first use on the request form. If substitutes are needed for class coverage, the hourly rate should be included as part of the proposal. Staff Development does not pay for overtime or compensatory time. The Staff Development committee has the final decision on all proposals. Submit proposals or any questions to designated Human Resource personnel.

Prepayment

If an employee requires prepayment of travel/registration/hotel fees, he/she must submit the appropriate requisitions along with the Staff Development form. Fully approved requests must be received by the Business Office no less than thirty (30) days prior to the date of the non-refund period of the registration workshop/conference. Prepayment will be made to the organization hosting the workshop/conference by check or purchase order no later than five (5) working days after Board approval.

An employee who cancels after the non-refund date is responsible to reimburse the District for any funds expended. A request for hotel prepayment must be received no less than thirty (30) days prior to the date of stay. Employees must use a personal credit card to hold reservations if the hotel requires it. The District will make available a check, payable to the hotel only, three (3) working days prior to departure. If an employee must cancel after the non-refundable date that was established by the conference organizers, he/she is responsible for all cancellation fees up to full payment.

Refer to Antelope Valley College Classified collective bargaining agreement Article IX, Professional Development.

Approved: 5/8/06
Revised: 3/09/15
Revised: 5/9/16
Revised: 1/13/20

AP 7210 Academic Employees

Reference:

Education Code Sections 87400 et seq; 87600 et seq; 87482.8; Title 5, Section 51025

Refer to Antelope Valley College Faculty collective bargaining agreement for information on:

- *Rights and Duties* (Article VII),
- *Tenure and Evaluation* (Article VIII) and
- *Faculty Assignment* (Article X)

5/8/06

AP 7211 Faculty Service Areas, Minimum Qualifications, and Equivalencies

Reference:

Education Code Sections 87001, 87003, 87743.2; Title 5, Section 53400 et seq.

Faculty Service Areas

Refer to Antelope Valley College Faculty collective bargaining agreement Article XV.

Minimum Qualifications and Equivalencies

Faculty shall meet minimum qualifications established by the Board of Governors, or shall possess qualifications that are at least equivalent to the minimum qualifications set out in the regulations of the Board of Governors.

Equivalency Procedure

Introduction

Education Code Section §87359 states that the equivalency process "shall include reasonable procedures to ensure that the governing board relies primarily upon the advice and judgment of the Academic Senate to determine that each individual employed under the authority granted by the regulations possess qualifications that are at least equivalent to the applicable minimum qualifications." While neither the Education Code nor Title 5 regulations provide additional guidelines for what constitutes at least equivalent, each district, through its academic senate, must establish standards and criteria for equivalency, ensuring that they are not less than the minimum qualifications specified on the Disciplines List. Once the local equivalency process has reached a recommendation regarding an individual applicant, Education Code §87359(a) requires that the governing board include action on the equivalency as part of its subsequent hiring process.

District equivalency policies most often recognize three ways of demonstrating equivalency: 1) course work, 2) work experience, 3) eminence in the field (a sub-set of experience), or a combination thereof. But whatever the means used for determining equivalency, "equivalency should never mean less than the qualifications specified on the Disciplines List," nor are districts free to ignore this provision within the law.

The State Academic Senate has consistently supported the following basic principals for granting equivalency:

- Equivalent to the minimum qualifications means equal to the minimum qualifications, not nearly equal.
- The applicant must provide evidence of attaining coursework or experience equal to the general education component of a regular associate or bachelor's degree.
- The applicant must provide evidence of attaining the skills and knowledge provided by specialized course work required for a master's degree (for disciplines on the Master's List) or requisite experience or coursework (for disciplines on the Non-Master's List).

Furthermore, this evidence must be as clear and reliable as the college transcripts being submitted by the other candidates, proving that he/she has qualifications that are at least equivalent to what is required by the minimum qualifications.

The approved discipline equivalency shall be reviewed and affirmed by AVC's Academic Senate every three years. If not reviewed and affirmed, the equivalency is no longer valid; therefore, the established minimum qualifications must be used. In addition, every three years, the Equivalency Committee, a standing committee of the Academic Senate, will review the equivalency procedure and make recommendations to the Academic Senate and governing board regarding any necessary changes.

Equivalencies—just like, minimum qualifications—are in a discipline, and they are the same whether the position under consideration is full-time, part-time, or a full year or semester replacement.

Equivalency Committee:

- A Standing Committee of the Academic Senate whose purpose is to verify that there is documented, objective evidence to support the claim that the qualifications of a candidate are equivalent to the minimum qualifications required for a discipline. All decisions of the committee are made through consensus. Membership is as follows:
    - Vice President of Academic Affairs (or designee)
    - Three Faculty – *3 year terms (staggered)

Of the three faculty members serving, one will be selected to act as committee chair. When a committee faculty member is unable to attend a meeting to make a determination on an equivalency, the Academic Senate President will serve as proxy.

Equivalency Process:

1. The discipline faculty will review the official Course Outlines of Record for the discipline when writing the equivalency to minimum qualifications. (There is no single course equivalency.)
2. The discipline faculty will send the proposed equivalency to the Equivalency Committee for review. Once the Equivalency Committee and discipline faculty agree to the final proposed equivalency, it will be forwarded to the Academic Senate for approval.
3. Once approved, the equivalency is sent to Human Resources to be placed on job announcements. All records of equivalency determinations will be dated and kept in the Office of Human Resources and Employee Relations.
4. The evidence provided by a candidate claiming equivalency (whether full-time or part-time) is reviewed by the full-time, discipline faculty member(s) on the hiring committee, along with the immediate educational administrator of the division/area. If the faculty and administrator agree that a candidate's evidence meets the equivalency criteria, the candidate's application packet will be forwarded to the Equivalency Committee by the hiring committee chair. No candidate can be invited for an interview until the Equivalency Committee has reviewed the equivalency evidence provided by a candidate.
5. The discipline faculty who reviewed the evidence with the administrator will be present when the Equivalency Committee reviews the candidate's application and equivalency evidence. (When discipline faculty are unable to participate in the determination of a candidate's claim of meeting equivalency, a related discipline faculty member or a discipline faculty member from a neighboring college will be invited to review the application and evidence.)
6. The Equivalency Committee either concurs or does not concur with the discipline faculty. If the Equivalency Committee determines that the documented, objective evidence

supports the equivalency, then the hiring committee can review the application and consider inviting the candidate for an interview.

7. If the Equivalency Committee does not concur with the discipline faculty, the decision of the Equivalency Committee is final. The candidate's material will not be seen by the hiring committee.

Criteria for Determining Equivalency

The Equivalency Committee recommends the approval of employment based on equivalent qualifications as follows:

(where a master's degree is generally required)

In general, formal academic training equivalent to the training stipulated in the minimum qualifications will be considered acceptable.

- Minimum degree requirement with a different name from an accredited institution and supported by course work equivalent to the field required.
- Completion of course work and academic requirements required for the minimum degree from an accredited institution without the award of the degree (e.g., a doctoral student advanced to candidacy in a program that did not award a master's or a candidate who has completed degree requirements but has not received the degree due to the academic calendar).

(when minimum qualifications permit a bachelor's degree in the designated discipline plus a master's in a related discipline)

- A specific major on the transcript that is determined to be equivalent to the designated discipline (e.g. Speech and Drama for Theatre).
- Twenty-four semester units of credit (or equivalent quarter units) in the designated major field with 18 of those units at the upper division level. For disciplines in which equivalent courses are offered in different departments, they may be counted toward the 24 units.

(where the master's degree is not generally expected or available (as designated in the Disciplines List adopted by the Board of Governors)

- The equivalent of an associate's degree is the successful completion of two years of coursework at a two-or-four year institution (the equivalent of 60 semester units) including the completion of courses usual to a general education component.
- Professional experience must be the performance of duties typical of the specified professional service.
- Bachelor's degree in an appropriate major-discipline.
- Length, depth, and/or amount of professional experience.

Evidence of Equivalency

Evidence shall be:

1. A transcript showing that the applicant successfully completed appropriate courses at a regionally accredited college or equivalent foreign institution whose accredited status is recognized by the district (AVC accepts the California Commission on Teacher Credentialing which states that individuals who have completed college or university course work at an institution in a country other than the United States must obtain a complete evaluation of foreign transcripts, degrees and other relevant documents prior to

employment with an educational institution). Foreign Transcripts Evaluations accepted by AVC and recommended by California Commission on Teacher Credentialing include agencies such as: Academic & Professional International Evaluations, Academic Credentials Evaluation Institute, and American Education Research Corporation.

2. Publications that show the applicant's command of the major/discipline in question, and his/her General Education background (i.e. course work for an associate degree required).
3. Other work products that show the applicant's command of the major/discipline or occupation in question, and
4. Work experience verification.

(See Candidates Supplemental Equivalency Request Form.)

Role of Human Resources and Employee Relations

The role of the Human Resources Office related to determining equivalencies will be to collect, date stamp, and forward applications and other pertinent information to the hiring committee. The Human Resources Office will assist the hiring committee chair in providing the Equivalency Committee with the application and evidence for candidates identified by discipline faculty and dean for meeting claims of equivalency.

Appeal Process

If a candidate's equivalency is denied either as a result of the discipline faculty and administrator's decision or the Equivalency Committee's evaluation, the candidate may request that a review be done by the Vice President of Human Resources and Employee Relations. This review will be done in consultation with the Equivalency Committee and the discipline faculty and administrator who originally reviewed the application and evidence. Consensus from this review will be the final decision.

6/11/07

SUPPLEMENTAL EQUIVALENCY REQUEST

Antelope Valley College

_____ _____

Applicant's Name (Please Print) Division/Department

Please review carefully the approved equivalency for this discipline that is stated on job announcement.

1. Degree (discipline) for which you claim equivalency:_____.

2. Indicate the educational preparation on which you base this claim for the discipline (major):_____.

3. Indicate what relevant courses you have taken or other objective evidence that verifies you have the equivalent of the General Education portion for a college degree:_____.

4. Describe in detail work experience that you believe establishes equivalency to the minimum qualifications. If you are using work products or other objective items that cannot be submitted, provide detailed information from an objective sources about the nature of this work product or experience.

Note: If you are using courses to establish equivalency, you must submit both an official transcript and copies of the appropriate pages from the college catalog.

If you are using publications or other objective work products, you must submit documentation; if not possible please explain why.

AP 7216 Academic Employees: Grievance Procedure for Contract Decisions

Reference:

Education Code Section 87610.1

Refer to Antelope Valley College Faculty collective bargaining agreement Article VIII, *Tenure and Evaluation.*

Refer to Antelope Valley College Faculty collective bargaining agreement Article XIV, *Grievance Policy*.

5/8/06

AP 7230 Classified Employees

Reference:

Education Code Section 88003; 88004; 88009; 88013

Classified Employment

Refer to the District's Classified Hiring Procedures (See AP 7120)

Assignment and Responsibility

General Provisions

The Board shall fix and prescribe duties to be performed by all persons in the classified service and other non-academic positions (EC 88009).

Classification of Positions (EC 88001)

Refer to AP 7236 and Section 5.2 of the *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement* for definitions of classified, probationary, regular, substitute, short-term and student employees.

Transfer, promotion, demotion

Refer to the *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement* for information on transfer, promotion, and demotion of classified employees.

- Transfer (Article XV)
- Promotion (Article XIV)
- Demotion

(ArticleXVII)

Reclassification

Refer to Article XIII of the *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement* for information on reclassification.

Shift Differentials

Refer to Article XI of the *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement*.

Work Load

Regular Workweek (EC 88026)

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Workweek: Five Consecutive Days (EC 88030)

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Workweek: Four Consecutive Days (EC 88031)

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Part Time

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Saturday or Sunday Work Schedule

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Overtime (EC 88027)

Authority to Determine

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Rate of Payment

Refer to Article VIII of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Definition of Overtime (EC 88027)

Refer to Article XI of current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

4/14/08

Revised: 10/8/18

AP 7231 Seniority

Reference:

Education Code Section 87743 et seq.; 88017(b); 88117; 88127

Seniority Determination

Seniority, or order of employment for any class, shall be determined by the day the classified employee first renders probationary service.

In the event two or more employees render probationary service on the same day, order of employment shall be determined by lot drawn by the Office of Human Resources.

Probationary employees shall be notified in writing of the proposed drawing. An employee may attend or designate a representative to attend the drawing in lieu of personal attendance.

Seniority, or order of employment, once determined (full-time or part-time), shall be entered on the employee's record. Each new probationary employee shall be notified, in writing, by the Office of Human Resources as to his/her order of employment for that school year.

Refer to Antelope Valley College Classified collective bargaining agreement Article XII, Workweek 12.8.4.

5/8/06

AP 7232 Classification Review

Reference:

Education Code Section 88001; 88009

Every position in the classified service in the District shall be assigned a classification.

These classifications will determine the salary levels that shall be applied to these positions.

Review of class specifications shall be undertaken by mutual agreement between the district and classified union to revise and update the duties and/or responsibilities of positions in the classified service.

Refer to Antelope Valley College Classified collective bargaining agreement, Article V.

5/8/06

AP 7233 Claims for Work out of Classification

Reference:

Education Code Section 88010

Classified employees shall not be required to perform duties that are not fixed and prescribed for the position by the Board unless the duties reasonably relate to those fixed for the position, for any period of time that exceeds five working days within a 15-calendar-day period except as authorized in these procedures.

An employee may be required to perform duties inconsistent with those assigned to the position for a period of more than five working days if his or her salary is adjusted upward for the entire period he or she is required to work out of classification and in amounts that will reasonably reflect the duties required to be performed outside his or her normal assigned duties.

Refer to Antelope Valley College Classified collective bargaining agreement, Article V.

5/8/06

AP 7234 Overtime

Reference:

Education Code Section 88027; 88028; 88029; 88030

Refer to Antelope Valley College Classified collective bargaining agreement, Article XII.

5/8/06

AP 7236 Substitute and Short Term Employees

Reference:

Education Code Section 88003

Classification of Positions (EC 88001)

Substitute (EC 88003)

"Substitute employee," means any person employed to replace any classified employee who is temporarily absent from duty. In addition, if the district is then engaged in a procedure to hire a permanent employee to fill a vacancy in any classified position, the governing board may fill the vacancy through the employment, for not more than 60 calendar days, of one or more substitute employees.

Substitute employees are not considered part of the classified service and hence not eligible for permanency.

Short Term (EC 88003)

~~A~~ "short-term" employee," means any person who is employed to perform a service for the District, upon the completion of which, the service required, or similar services, will not be extended or needed on a continuing basis.

Short-term employees shall be paid on a separate salary schedule. Short-term employees do not accrue vacation leave or leave of absence for illness or receive pay for holidays. They are not eligible for retirement or health insurance benefits.

If a short-term employee is injured on the job, he/she is covered under workers compensation. Also, if a short-term employee is laid off by the District, in some cases the employee may be eligible for unemployment.

Dismissal

Dismissal of Substitute, Short-Term, and Restrictive Employees

Classified employees listed as substitute, short-term and restricted are at-will employees and may be dismissed at the discretion of the President.

Such employees are not entitled to due process, in the form of progressive discipline, or a hearing afforded permanent employees.

Procedures For Hiring "Short-Term" And "Substitute" Temporary Employees (Non-Academic, Non-Continuing Assignments)

OVERVIEW

This procedure details the process used for departments to specify the service required to be performed by "short-term" employees prior to employment of such individuals. The employment of "short-term" employees is intended to address the needs of the District for appropriate time periods while maintaining the integrity of the bargaining unit. It is not intended to provide a method of unreasonably increasing relative use of such employees.

The District shall maintain a hiring pool of applicants for "short-term" and "substitute" temporary positions. "Short-term" employees will be hired out of the District pool. All "short-term" and "substitute" employees must meet the minimum qualifications of the temporary assignment.

FORMS USED

Short-Term and Substitute Temporary Employment Request – Non-academic, Non-continuing Assignment

Human Resources Personnel Action Form (PAF)

CODES, REGULATIONS, AND DISTRICT POLICIES RELATED TO THIS PROCEDURE

Education Code 88003

Section 88003 of the Education Code requires that, before employing a "short-term employee," the Governing Board, at a regularly scheduled Board meeting, shall specify the service to be performed by the employee pursuant to the definition of "classification" in subdivision (a) of Section 88001, and shall certify the ending date of the service. The ending date may be extended by the Governing Board, but shall not extend beyond 75 percent of a school year.

"Substitute employee" means any person who is employed to replace any classified employee who is temporarily absent from duty. In addition, if the district is then engaged in a procedure to hire a permanent employee to fill a vacancy in any classified position, the governing board may fill the vacancy through the employment, for not more than 60 calendar days, of one or more substitute employees. No "substitute" employee can be employed for more than 75 percent of a school year.

Seventy-five percent of a college year means 195 working days, including holidays, sick leave, vacation and other leaves of absences, irrespective of number of hours worked per day.

STEP	TASK PERFORMED BY	DESCRIPTION
1	Supervisor/Manager	The initial number of days that a "short-term" employee can work in one assignment cannot exceed 100 days. If the number of days previously approved for a temporary assignment does not meet the department work requirements, the supervisor/manager must submit a "Request for Extension of Short-Term and Substitute Temporary Non-academic Assignment" form (Step 6). When hiring a "substitute" employee for a unit position where the unit member is off of work due to medical or other temporary leave, the substitute will be employed for a period no longer than the time the unit member is on leave. When hiring a "substitute" employee to fill a unit position vacated by a former unit member, the maximum number of days in which a substitute can be used is 60 days, regardless of the number of substitutes assigned to the vacancy during that period If a prospective "short-term" employee is to be hired, subject to approval by the Board, the supervisor must complete and provide the "Short-Term and Substitute Temporary Employment Request" form to the Human Resources Office to determine if the hire is consistent with the law. Education Code Section 88003. The "Short-Term and Substitute Temporary Employment Request" form shall include a brief description of services required, recommended title, recommended

		pay range, budget code, hours per week, and beginning and ending dates of temporary assignment. The form must be approved by the appropriate Vice President and the Vice President of Business Services. Submit the approved form to the Human Resources Office no later than the 15th of each month
2	Human Resources	The Human Resources Office will review the "Short-Term/Substitute Temporary Employment Request" form to determine if the proposed assignment is consistent with Education Code Section 88003. Once the determination has been made that the proposed assignment is consistent with the law, the Human Resources Office will verify that the recommended employee was drawn from a District "short-term/substitute" pool; that the individual meets the minimum qualifications of the temporary assignment; and that the rate of pay is appropriate for the assignment. If the proposed assignment and/or the recommended employee do not meet the requirements, the Human Resources Office will consult with the originating supervisor. After verification, the form will be forwarded to the Superintendent/President for approval/disapproval.
3	Superintendent/ President	Superintendent/President will approve/disapprove temporary assignment as submitted. The form will be returned to the Human Resources Office for further processing.
4	Human Resources	The Human Resources Office will place the approved temporary assignment and recommended employee on the Personnel Schedule for ratification by the Governing Board. The Human Resources Office will process the Personnel Action Form and other necessary employment paperwork for the recommended temporary employee to begin working.
5	Governing Board	Governing Board will ratify temporary assignment/ recommended employee as submitted.
6	Supervisor/Manager	If before the ending date previously approved by the Board, the department work requirements exceeds the initial 100 days allowable for a "short-term" employee, the supervisor/manager must submit a "Request for Extension of Short-Term (Non-Academic) Assignment" form, approved by the appropriate vice president, to the Human Resources Office.
7	Payroll Department	Monthly reports will be generated and distributed to the supervisors, indicating the number of hours and days

		worked and the remaining balances for each "short-term" employee.
8	Human Resources/Payroll	Human Resources /Payroll will terminate "short-term" and "substitute" employees as of the ending date of their temporary assignment.
9	Supervisor/Manager	If a "short-term" or "substitute" employee terminates prior to their scheduled assignment end date, supervisor/ manager must complete a Personnel Action Form and submit it to the Human Resources Office for processing.

4/14/08
Revised: 9/14/09

AP 7240 Confidential Employees

Reference:

Government Code Section 3540.1 Subdivision (c)

Confidential employees shall receive the same salary and health benefits as non-confidential employees who work under the same job titles or, in the case of classified employees, who work in the same classifications.

The terms and conditions of employment for confidential employees shall be provided for as necessary by additional procedures developed by the Vice President of Human Resources.

Also see AP 7230 Classified Employees

5/8/06

Revised: 8/13/18

AP 7250 Educational Administrators Reassignment Rights

Reference:

Education Code Sections 72411 et seq; 87002(b); 87457-87460
Government Code Section 3540.1(g) and (m)

Any administrator who has not previously acquired tenured status as a faculty member within the District shall have the right to become a first year probationary faculty member if the following apply:

A. The administrator has completed at least two years of satisfactory service in the District, including any time as a faculty member (Ed Code 87458).

B. The termination of the administrative assignment is for any reason other than dismissal for cause (Ed Code 87732).

C. If the Governing Board initiates the reassignment of an administrator, the Board shall give the employee upon request a written statement of the reasons for transfer (Ed Code 87457). For an administrator whose contract term is longer than one year, the notice shall be given at least six months prior to the expired contract unless the contract or appointment provides otherwise. For administrators whose contract term is one year, notice shall be given on or before March 15 (Ed Code 72411(b).

D. If the administrator initiates the reassignment request, the request shall be made in writing and include assignment preferences. Reassignment actions should be submitted at least 90 days in advance of the effective date of reassignment to permit time for the staffing and program adjustments that may be necessary.

E. The Governing Board shall determine that the administrator meets California Community College Board of Governors' minimum qualifications for employment as a faculty member based upon input by the Academic Senate. The division to which the administrator would be assigned may provide the Academic Senate with its views regarding the effect of the reassignment on the division's programs and staffing, including the availability of sufficient assignments in the discipline or service to accommodate an additional full-time faculty member. Based on the qualifications and preference of the administrator and the availability of teaching or service areas, the Academic Senate may recommend the discipline to which the administrator should be assigned. The report of the Academic Senate will be considered before the Governing Board makes a final decision, and a written record of both the Governing Board's and Academic Senate's views will be available (Ed Code 87358). An administrator reassigned as a faculty member shall become a first-year probationary faculty member once his/her administrative assignment expires. Every effort will be made to complete the process outlined above within 60 days.

F. The administrator, before reassignment is final, must meet the Faculty Service Area (FSA) Procedure for competency. (Refer to Antelope Valley College Federation of Teachers collective bargaining agreement, Article XV.)

G. In placing the reassigned administrator on the faculty salary schedule, he/she will be given the same consideration as any probationary faculty member.

5/8/06
Revised 9/10/12

AP 7270 Student Workers

Refer to the Job Placement Center for information on the process for hiring student workers, limits on hours that a student may work or other considerations related to CalWORKs, federal work-study and other student worker positions.

5/8/06

AP 7330 Communicable Disease

Reference:

Education Code Section 87408; 87408.6; 88021

For successful applicants for all employee positions:

- A medical certificate is required showing that the applicant is free from any communicable disease, including, but not limited to, active tuberculosis, unfitting the applicant to instruct or associate with students.
- The medical certificate shall be submitted by a physician as authorized by code.
- The medical examination is conducted not more than six months before the submission of the certificate and is at the expense of the applicant.
- A contract of employment may be offered to an applicant subject to the submission of the required medical certificate.
- The medical certificate becomes a part of the personnel record of the employee and is open to the employee or his or her designee.
- Results of the examination showing the employee was examined and found free from active tuberculosis shall become a part of the personnel record of the employee and filed with the Office of Human Resources.
- Failure to comply with the compulsory requirement of the tuberculosis examination may result in the employee being placed on an unpaid leave status until results of the examination have been received.

5/8/06
Revised: 1/8/18

AP 7336 Certification of Freedom from Tuberculosis

Reference:
Education Code Section 87408.6

Except as provided herein, no person shall be initially employed by the District in an academic or classified position unless the person has within the last 60 days submitted to a tuberculosis risk assessment developed by the State Department of Public Health and the California Tuberculosis Controllers Association and, if risk factors are present, an examination to determine that he/she is free of active tuberculosis, by a physician and surgeon licensed under the California Business and Professions Code. This examination shall consist of an X-ray of the lungs, or an approved intra-dermal tuberculin test, that, if positive, shall be followed by an X-ray of the lungs. This examination is a condition of initial employment and the expense shall be borne by the applicant.

The X-ray film may be taken by a competent and qualified X-ray technician if the X-ray film is subsequently interpreted by a physician and surgeon licensed under the Business and Professions Code.

The Vice President of Human Resources or designee may exempt, for a period not to exceed 60 days following termination of the pregnancy, a pregnant employee from the requirement that a positive intra-dermal tuberculin test be followed by an X-ray of the lungs.

Thereafter, employees who are skin test negative, or were not tested because of a lack of risk factors, are required to undergo the foregoing tuberculosis risk assessment. If risk factors exist, examination at least once each four years as designated in Board Policy upon recommendation of the local health officer for so long as the employee remains skin test negative. Once an employee has a documented positive skin test that has been followed by an X-ray, the foregoing tuberculosis risk assessments and examinations shall no longer be required and referral shall be made within 30 days of completion of the examination to the local health officer to determine the need for follow up care.

If risk factors were present at the tuberculosis risk assessment and an examination occurs, after the examination, an employee shall cause to be on file with the District a certificate from the examining physician and surgeon showing the employee was examined and found free from active tuberculosis.

This procedure shall not apply to any employee of the District who files an affidavit stating that he/she adheres to the faith or teachings of any well-recognized religious sect, denomination, or organization and in accordance with its creed, tenets, or principles depends for healing upon prayer in the practice of religion and that to the best of his/her knowledge and belief he/she is free from active tuberculosis. If at any time there should be probable cause to believe that the applicant is afflicted with active tuberculosis, he/she

may be excluded from service until the Vice President of Human Resources or designee is satisfied that he/she is not so afflicted.

A person who transfers his/her employment from another school or community college District shall be deemed to meet the requirements of this procedure if the person can produce a certificate that shows that he/she within the past four years had a tuberculosis risk assessment that showed no risk factors were present or was examined and was found to be free of communicable tuberculosis, or if it is verified by the college previously employing him/her that it has a certificate on file that contains that showing.

A person who transfers his/her employment from a private or parochial elementary school, secondary school, or nursery school to the District shall be deemed to meet the requirements of this procedure if the person can produce a certificate as provided for in Health and Safety Code Section 121525 that shows that he/she within the last four years had a tuberculosis risk assessment that showed no risk factors were present or was examined and was found to be free of communicable tuberculosis, or if it is verified by the school previously employing him/her that it has the certificate on file.

New: 1/8/18

AP 7337 Fingerprinting

References:

Education Code Sections 87013 and 88024; Penal Code Section s 11102.2 and 11077.1

The Vice President of Human Resources and Employee Relations will designate one or more employees to receive, store, disseminate and destroy criminal records furnished by the California Department of Justice and to serve as the contact for the California Department of Justice for related issues. Any such employee must be confirmed by the California Department of Justice as required by law and pursuant to California Department of Justice procedures. The Vice President of Human Resources and Employee Relations will notify the California Department of Justice by March 1 of each year beginning on March 1, 2012, of the individuals designated.

The Vice President of Human Resources and Employee Relations will ensure that criminal history record information is destroyed once the District's business need for the information is fulfilled.

The Board shall, within ten working days of the date of employment, require each person applying for any regular (non-temporary) position to be fingerprinted. In addition, anyone applying for student or hourly (temporary) employment in the Child Care Center, Bookstore, Cafeteria, and other departments where minors are present or cash is handled or there is access to sensitive information on students or employees, shall be fingerprinted prior to employment. These records and a personal description of the employee shall be transmitted to the Department of Justice.

Fingerprints of persons applying to work in the Police Department and other departments as shall be designated by the Board, shall also be transmitted to the Federal Bureau of Investigation, along with those of any applicants who do not possess a valid California identification. The fee for transmittal of the fingerprints to the Department of Justice and Federal Bureau of Investigation shall be born by the District; rolling fees, if any, shall be the responsibility of the applicant.

5/12/08
Revised: 10/10/11

AP 7341 Sabbaticals

Reference:

Education Code Sections 87767 et seq.

The District may grant a leave of absence for study and travel (sabbatical) under to any academic employee who has rendered service to the District for at least six consecutive years preceding the granting of the leave, but not more than one such leave of absence shall be granted in each six-year period.

The standards of service that shall entitle the employee to the leave of absence are contained in the Antelope Valley College Faculty collective bargaining agreement, Article V.

No absence from the service of the district under a leave of absence, other than another sabbatical leave, shall be deemed a break in the continuity of service required by this section, and the period of the absence shall not be included as service in computing the six consecutive years of service required by this section.

Service under a national recognized fellowship or foundation approved by the Board of Governors, for a period of not more than one year, for research, teaching or lecturing shall not be deemed a break in continuity of service, and the period of the absence shall be included in computing the six consecutive years of service required by this section.

Every employee, as a condition to being granted a leave of absence pursuant to this procedure, shall agree in writing to render a period of service to the District following his or her return from the leave of absence that is equal to twice the period of the leave.

5/8/06

AP 7343 Industrial Accidents and Illness Leave

Reference:

Education Code Sections 87787, 88192.

Academic Employees

Academic employees shall be entitled to not less than 60 days leave on account of an industrial accident or illness in any one fiscal year for the same accident.

Allowable leave shall not be accumulated from year to year.

Industrial accident or illness leave shall commence on the first day of absence.

When an academic employee is absent from his or her duties on account of an industrial accident or illness, the employee shall be paid the portion of the salary due him or her for any month in which the absence occurs as, when added to his or her temporary disability indemnity under the Labor Code, will result in a payment to the employee of not more than his or her full salary. “Full salary," shall be computed so that it shall not be less than the employee's "average weekly earnings" as that phrase is used in Section 4453 of the Labor Code. For purposes of this section, however, the maximum and minimum average weekly earnings set forth in Section 4453 of the Labor Code shall otherwise not be deemed applicable.

Industrial accident or illness leave shall be reduced by one day for each day of authorized absence regardless of a temporary disability indemnity award.

When an industrial accident or illness leave overlaps into the next fiscal year, the employee shall be entitled to only the amount of unused leave due him or her for the same illness or injury.

Upon termination of the industrial accident or illness leave, the employee shall be entitled to the benefits provided in Education Code Sections 87780, 87781 and 87786, and, for the purposes of each of these sections, his or her absence shall be deemed to have commenced on the date of termination of the industrial accident or illness leave. However, if the employee continues to receive temporary disability indemnity, he or she may elect to take as much of his or her accumulated sick leave which, when added to his or her temporary disability indemnity, will result in a payment to the employee of not more than his or her full salary.

During any paid leave of absence, the employee may endorse to the District the temporary disability indemnity checks received on account of his or her industrial accident or illness. The District shall issue the employee appropriate salary warrants for payment of the employee's salary and shall deduct normal retirement, other authorized contributions, and the temporary disability indemnity, if any, actually paid to and retained by the employee for periods covered by the salary warrants.

Refer to the Antelope Valley College Faculty collective bargaining agreement, Article V.

Classified Employees

Classified employees shall be entitled to not less than 60 days leave on account of an industrial accident or illness, in any one fiscal year for the same accident.

Allowable leave shall not be accumulative from year to year.

Industrial accident or illness leave of absence will commence on the first day of absence.

Payment for wages lost on any day shall not, when added to an award granted the employee under the workers' compensation laws of this state, exceed the normal wage for the day.

Industrial accident leave will be reduced by one day for each day of authorized absence regardless of a compensation award made under workers' compensation.

When an industrial accident or illness occurs at a time when the full 60 days will overlap into the next fiscal year, the employee shall be entitled to only that amount remaining at the end of the fiscal year in which the injury or illness occurred, for the same illness or injury.

The industrial accident or illness leave of absence is to be used in lieu of entitlement acquired under Education Code Section 88191. When entitlement to industrial accident or illness leave has been exhausted, entitlement to other sick leave will then be used; but if an employee is receiving workers' compensation, the person shall be entitled to use only so much of the person's accumulated or available sick leave, accumulated compensating time, vacation or other available leave which, when added to the workers' compensation award, provide for a full day's wage or salary.

Periods of leave of absence, paid or unpaid, shall not be considered to be a break in service of the employee.

During all paid leaves of absence, whether industrial accident leave as provided in this procedure, sick leave, vacation, compensated time off or other available leave provided by law or the action of the district, the employee shall endorse to the District wage loss benefit checks received under the workers' compensation laws of this state. The District, in turn, shall issue the employee appropriate warrants for payment of wages or salary and shall deduct normal retirement and other authorized contributions. Reduction of entitlement to leave shall be made only in accordance with this procedure.

When all available leaves of absence, paid or unpaid, have been exhausted and if the employee is not medically able to assume the duties of the person's position, the person, if not placed in another position, shall be placed on a reemployment list for a period of 39 months. When available, during the 39-month period, the person shall be employed in a vacant position in the class of the person's previous assignment over all other available candidates except for a reemployment list established because of lack of work or lack of funds, in which case the person shall be listed in accordance with appropriate seniority regulations.

Refer to Antelope Valley College Classified collective bargaining agreement, Article XI.

An employee who has been placed on a reemployment list, as provided above, who has been medically released for return to duty and who fails to accept an appropriate assignment, shall be dismissed.

5/8/06
Revised: 6/13/11
Revised: 8/8/16
Revised 10/9/17

AP 7345 Catastrophic Leave

Reference:

Education Code Section 87045

Refer to Antelope Valley College Faculty collective bargaining agreement Article V, *Catastrophic Leave*.

Refer to Antelope Valley College Classified collective bargaining agreement Article XI, *Catastrophic Leave.*

5/8/06

AP 7346 Employees Called to Military Duty

Reference:

Military and Veteran's Code section 389 et seq; Education Code Sections 87018, 87700, 87832 and 88116; 38 U.S.C. Section 4301 et seq.

The following applies to any district employee, academic or classified, who enters the active military service of the United States of America or of the State of California, including active service in any uniformed auxiliary of any branch of the military service, during any period of national emergency declared by the President of the United States or during any war in which the United States of America is engaged.

Leave

Upon presentation of a copy of orders for active duty in the Armed Forces, the National Guard, or the Naval Militia, the district shall grant a military leave of absence for the period of active duty specified in the orders, but not to exceed five years for a permanent, probationary, or exempt employee, or for the remainder of a limited-term employee's appointment or a temporary employee's appointment.

Salary

Any district employee called to active duty who has been in the service of the district for at least one year will continue to receive his or her salary for the first thirty (30) calendar days of ordered military service. Employees who are members of the National Guard will continue to receive salary for the first thirty (30) calendar days of active service regardless of length of service with the district.

In addition, the district may provide for not more than 180 calendar days as part of the employee's compensation all of the following:

1. The difference between the amount of his or her military pay and allowances and the amount the employee would have received as an employee, including any merit raises that would otherwise have been granted during the time the individual was on active military duty.
2. All benefits that he or she would have received had he or she not been called to active military duty unless the benefits are prohibited or limited by vendor contracts.

Employees returning from military leave shall have their salary adjusted to reflect salary increases that are not based on merit.

Health Benefits

An employee on military leave for less than 31 days shall continue to receive health insurance benefits.

Employees on leave for longer than thirty (30) days may elect to continue health care coverage for themselves and their eligible dependents for a maximum period of eighteen (18) months.

Returning veteran employees whose coverage was terminated because of military leave will not be subject to any exclusion or waiting period prior to reinstatement of health coverage.

Vacation and Sick Leave

Employees on military leave accrue any benefits the district provides to other employees, e.g. if employees on other approved leaves are permitted to accrue vacation or sick leave, employees on military leave will do so as well.

Employees on military leave shall accrue any benefits afforded by any collective bargaining agreement negotiated during their absence.

Any employee on temporary military leave for training who has worked for the district for at least one year shall continue to accrue vacation, sick leave and holiday privileges up to a maximum period of 180 days.

Reinstatement

An employee on active duty military leave shall be entitled to return to the position held by him or her at the time of his or her entrance into the service within six months after the employee honorably leaves the service or is placed on inactive duty.

In the case of a contract academic employee, absence on military leave shall not count as part of the service required for the acquisition of tenure, but the absence shall not be construed as a break in the continuity of service. If the employee was employed by the district for more than one year, but had not yet become a regular academic employee of the district, he or she is entitled to return to the position for the period of time his or her contract of employment had to run at the time he or she entered military service.

In the case of an academic employee, absence on military leave shall not be construed as a break in the continuity of service.

In the case of a classified employee, absence on military leave shall not be construed as a break in the continuity of service.

8/13/07

AP 7348 Accommodations

References:

29 U.S. Code Section 207(r);
42 U.S, Code Section 12101 et seq.;
42 U.S. Code Sections 2000e et seq.;
29 Code of Federal Regulations Parts 1605.1 et seq.
Government Code Sections 12926, 12940, and 12945;
Labor Code Sections 230 and 1030 et seq.
Title 2 Sections 11040 et seq., 11050, et seq., and 11060 et seq.

Absent undue hardship or direct threats to the health and safety of employee(s), the District provides employment-related reasonable accommodations to:

- qualified individuals with disabilities, both applicants and employees, to enable them to perform essential job functions;
- employees with conditions related to pregnancy, childbirth, or a related medical condition, if she so requests, and with the advice of her health care provider;
- employee victims of domestic violence, sexual assault, or stalking to promote the safety of the employee victim while at work; and
- employees who request reasonable accommodation to address a conflict between religious belief or observance and any employment requirement.

For Disabilities:
The District has an affirmative duty to provide reasonable accommodations to applicants or employees with disabilities unless the timely, good faith interactive process reveals that there is no reasonable accommodation that will allow the applicant or employee to perform essential job functions without causing the agency undue hardship or without presenting a direct threat to the health and safety of himself/herself or others.

For Pregnancy and Related Medical Conditions:
The District must provide an interactive process to assess reasonable accommodations, in addition to leave rights, to employees disabled by pregnancy and related medical conditions.

For Victims of Domestic Violence, Sexual Assault, or Stalking:
Effective January 1, 2014, the District also has an affirmative duty to provide reasonable accommodations to employee-victims of domestic violence, sexual assault, or stalking, that would protect the safety of the employee-victim while at work. As is the case with disability-related accommodations, the law requires a timely, good faith interactive
process. The goal is to identify safety-related accommodations that do not cause undue hardship and that do not compromise the safety and health of all employees. Like the interactive process for disabilities, the agency has the duty to restart the interactive process if the employee requests new accommodation(s) due to changed circumstances.

For Religious Belief or Observance:
The District is required to prove that it has explored any available reasonable alternative means of accommodating the religious belief or observance. Though an interactive process is not legally mandated for religious accommodation, an interactive process meeting is suggested as good practice and is an effective way for an employer to prove that it explored any available reasonable alternative means of accommodating the religious belief or observance.

Lactation Accommodation

An overtime-eligible employee who wishes to breastfeed and/or express breast milk for her infant child during her scheduled work hours will receive additional unpaid time beyond the 15-minute compensated rest period. Employees desiring to take a lactation break must notify a supervisor prior to taking such a break. Breaks may be reasonably delayed if they would seriously disrupt operations. Once a lactation break has been approved, the break should not be interrupted except for emergency or exigent circumstances.

The District will make reasonable efforts to accommodate employees by providing an appropriate location to express milk in private. The District will attempt to find a location in close proximity to the employee's work area, and the location will be other than a restroom. Employees occupying such private areas shall either secure the door or otherwise make it clear to others through signage that the area is occupied and should not be disturbed. All other employees should avoid interrupting an employee during an authorized break under this section, except to announce an emergency or other urgent circumstance.

Any employee storing expressed milk in any authorized refrigerated area within the work area shall clearly label it as such. No expressed milk shall be stored at the work area beyond the employee's workday.

AVCCD is required to engage in a "timely, good faith, interactive process" with an employee or applicant in response to requests for reasonable accommodation which may involve one or more of the following:

- *Potential Accommodations for Religious Creed, Religious Dress Practice, or Religious Grooming Practice*
- *Disability Accommodation*
- *Supporting Documentation or Certification*
- *Reasonable Medical Documentation of Disability*
- *Interactive Communication or Interactive Process*
- *Potential Accommodations for Applicants or Employees with Disabilities*
- *Potential Accommodations for Employees Affected by Pregnancy and Related Medical Conditions*
- *Determination Regarding Accommodation*
- *Certification of Victim Status*

Interactive Process:

An effective interactive process provides the means by which an employer and employee determine if a reasonable accommodation is feasible based on the following:

- Analysis of the essential job functions
- Identification of the limitations of the position
- Identification of possible accommodations
- Consideration of preferences of the employee or applicant

An accommodation may be requested by the employee, an applicant or a healthcare provider, a family member or another representative.

A decision regarding the allowance of a proposed accommodation should be made whenever possible within 20 calendar days of the interactive meeting.

Following each interactive meeting, the employer should document the accommodations considered in a letter to the file or a letter to the employee. Documentation should include:

- Attendees present during the interactive meeting.
- That the employee was notified of their option to have a representative present.
- That the employer was flexible in terms of scheduling the meetings.
- Whether the meeting was tape recorded
- A list of accommodations suggested during the meeting
- Responses to the proposed accommodations
- Whether the meeting resulted in any agreement

If an accommodation cannot be agreed upon, the denial must be supported by specific, legitimate reasons.

A periodic review of the status of the accommodation should take place to review the effectiveness of the accommodations, and to review the need to either continue or terminate the accommodation.

New 5/8/17

AP 7360 Discipline and Dismissal - Academic Employees

Reference:

Education Code Section 87669; 87732

Causes for Discipline and Dismissal

A regular employee or academic employee may be dismissed or penalized for one or more of the following causes:

- Immoral or unprofessional conduct.
- Dishonesty.
- Unsatisfactory performance.
- Evident unfitness for service.
- Physical or mental condition that makes him or her unfit to instruct or associate with students.
- Persistent violation of, or refusal to obey, the school laws of the state or reasonable regulations prescribed for the government of the community colleges by the Board of governors or by the governing board of the district
- Conviction of a felony or of any crime involving moral turpitude.
- Conduct specified in Section 1028 of the Government Code. (i.e., knowing membership in the Communist Party or of any organization which advocates the overthrow of the government of the United States by force or violence.)

5/8/06

AP 7365 Discipline and Dismissal - Classified Employees

Reference:

Education Code Section 88013; Government Code Sections 3300 et seq.

Progressive Employee Discipline

Unit members who have violated a rule or regulation prescribed by the Board in Board Policy 7365 shall be subject to appropriate disciplinary action. Disciplinary action shall conform to established principles of progressive discipline as listed below. (Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement)*

Informal Conference

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement*

Written Reprimand

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement*

Conferences, Directives, and Further Reprimands

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement*

Documentation Review/Recommendation

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement*

Suspension

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Demotion

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Dismissal

Cause (EC 88013)

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Notice of Disciplinary Action (EC 88016)

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement*

Dismissal Procedures for Permanent Employees (EC 88013)

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Effective Date - Classified Employee Dismissal

The effective date of the dismissal of a classified employee shall be the date on which the Board of Trustees makes a decision unless otherwise specified in the decision. (Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement)*

Dismissal Procedures for Probationary Employees

Refer to Article IX of the current *Antelope Valley College Federation of Classified Employees Collective Bargaining Agreement.*

Judicial Review - Classified Employee Dismissal

Judicial Review may be had by filing a petition for writ of mandate in accordance with the provisions of the Code of Civil Procedure. Any such petition shall be filed within 30 days after the effective date of the decision or the last day on which reconsideration can be ordered. The right to petition shall not be affected by the failure to seek reconsideration before the Board of Trustees.

The complete record of the proceedings, if one has been made, or such parts thereof as are designated by the petitioner, shall be prepared by the District and shall be delivered to petitioner, within 30 days after a request therefore by him/her, upon the payment of the fee specified in Section 69950 of the Government Code as now or hereinafter amended for the transcript, the cost of preparation of other portions of the record and for certification thereof. The complete record includes the pleadings, all notices, and orders issued by the District or Board of Trustees, the final decision, a transcript of all proceedings, if made, the exhibits admitted or rejected, the written evidence and any other papers in the case.

Reconsideration - Classified Employee Dismissal

The Board of Trustees itself may order a reconsideration of all or part of the case on its own motion or on petition of the affected party, if at the time of final decision the Board has specified that reconsideration is available to the parties.

The power to order a reconsideration shall expire thirty days after the effective date of the decision. If no action is taken on a petition within the time allowed for ordering reconsideration, the petition shall be deemed denied.

The case may be reconsidered by the Board of Trustees on all the pertinent parts of the record and such additional evidence and argument as may be permitted.

4/14/08
Revised: 10/12/09

AP 7370 Employee Political Activity

References:

Education Code Sections 7050 - 7058 et seq.

No restriction shall be placed on the political activities of any employee of the District except as provided in BP 7370 Political Activity and these procedures.

No District funds, services, supplies, or equipment may be used to urge the support or defeat of any ballot measure or candidate, including but not limited to any candidate for election to the Board of Trustees.

District resources may be used to provide information to the public about the possible effects of a bond issue or other ballot measure if both the following conditions are met:

- The informational activities are otherwise authorized by the Constitution or laws of the State of California; and

- The information provided constitutes a fair and impartial presentation of relevant facts to aid the electorate in reaching an informed judgment regarding the bond issue or ballot measure.

Any administrator or board member may appear before a citizens' group that requests the appearance to discuss the reasons why the Board of Trustees called an election to submit to the voters a proposition for the issuance of bonds, and to respond to inquiries from the citizens' group.

An officer or employee of the District may solicit or receive political funds or contributions to promote the support or defeat of a ballot measure that would affect the rate of pay, hours of work, retirement, civil service, or other working conditions of officers or employees of the District. Such activities are prohibited during working hours, and entry into buildings and grounds of the District during working hours is prohibited. Such activities are permitted during nonworking time. "Nonworking time" means time outside an employees' working hours, whether before, or after the workday or during the employees' lunch period or other breaks during the day.

Also, see BP 2716 Board Political Activity and BP 7370 Political Activity.

Approved: 5/8/06
Revised: 6/8/20

AP 7371 Personal Use of Public Resources

Reference:

Government Code Section 8314, Penal Code Section 424

No employee or consultant shall use or permit others to use public resources, except that which is incidental and minimal, for personal purposes or any other purpose not authorized by law.

8/13/07

AP 7380 Retiree Health Benefits: Academic, Classified, Confidential/Management/Supervisory and Administrators

Reference:

Education Code Section 7000 et seq.

Retiree health benefits for represented (i.e. classified and faculty) employees are governed by the respective collective bargaining agreements:

Refer to Antelope Valley College Faculty collective bargaining agreement, Article VI.

Refer to Antelope Valley College Classified collective bargaining agreement, Article VIII.

Retiree health benefits for non-represented (i.e. confidential/management/ supervisory and educational administrator) employees are governed by a Memorandum of Understanding, dated August 15, 2007, as follows:

Plans and Eligibility

Medical Plans--The District will offer the following medical plans, including the Employee Assistance Program, to all permanent full-time and part-time employees, and retirees, effective October 1, 2007:

a. Blue Cross 1A
b. Blue Cross 2C
c. Blue Cross 3C
d. Blue Cross 6A
e. Kaiser #1
f. Kaiser #8
g. High Deductible PPO #2

Domestic partners are eligible for benefits under the medical plans, subject to Central Valley Trust's "Domestic Partner Guidelines."

Additional benefits offered beyond the medical plans include Delta Dental, Medical Eye Services, Term Life Insurance and Income Protection. Retirees are included in all additional benefits except for the income protection plan.

Contributions

The annual District cap is $13,385.10.

The employee contribution for all full-time permanent employees and retirees shall be the same amount for the same plans (e.g., plan 1A will cost the same for both, as will plan 2C etc.).

The District's contribution for permanent employees working less than full-time shall be based on a percentage of employment. Such employees may waive enrollment in any plans in which they are not required to be enrolled and use the District's contribution to cover up to the full cost of the plans in which they are enrolled.

For the 2007-08 benefits year, the employee contribution for full-time permanent employees and retirees shall be

a. Blue Cross 1A: $972
b. Blue Cross 2C: $408
c. Blue Cross 3C: $ 72
d. Blue Cross 6A: no employee contribution
e. Kaiser #1: no employee contribution
f. Kaiser #8: no employee contribution
g. High Deductible PPO#2: no employee contribution

For the 2007-08 benefits year, the District will cover any costs not covered by the District cap plus the employee or retiree contribution.

4/14/08

AP 7385 Salary Deductions

Reference:

Education Code Section 87040; 87833; 87834; 88167; Government Code Section 3540 et seq.

Deductions Required by Law

Deductions from the employee's wage, mandated by law, shall be made for the following reasons:

- State and Federal Income Tax
- Public Employees Retirement (PERS & STRS)
- Old Age, Survivors and Disability Insurance (OASDI)
- Court ordered deductions

Dues (GC 3543.1) (E.C. 87833, 88167)

Upon recognition or certification of an exclusive representative, only the employee organization recognized as the exclusive representative unit shall have the right to have membership dues deducted.

Any revocation of an employee's written authorization permitting dues deductions shall be in writing and becomes effective commencing with the next pay period.

The Board may levy a fee not to exceed the actual cost to the District for such dues deductions.

Voluntary Deductions

The Board may deduct, without charge, from the employee's wage, an amount requested by said employee for the following: tax sheltered annuities or other benefits not provided by the District.

The written authorization by the employee shall contain the amount and time during the pay period when deductions shall be made. Such authorization shall remain in effect until expressly revoked in writing by the employee.

5/8/06

AP 7400 Travel

Reference:

Education Code Section 87032, Government Code Section 11139.8

Authority of President

The President or his/her designated representative shall have the authority to approve transportation by District employees when rendering services to the District by providing District-owned vehicles or authorizing mileage allowance in accordance with Board policy.

District-Owned Vehicles

The use of District-owned vehicles by employees shall be limited to transacting official District business. The use of such vehicles for personal convenience is prohibited.

When not in use for District purposes, all District-owned vehicles shall be parked on College premises in a location designated for that purpose.

Reimbursement for Mileage and Expenses

The President/Superintendent may authorize mileage expense to be paid to College personnel on authorized school business with the understanding that whenever commercial transportation is available and convenient that the lower rate will prevail for reimbursement.

Reimbursement for such mileage and expense shall be at the rates established by the Board of Trustees and outlined in Administrative Procedures for any College personnel.

Reimbursement for Mileage - Personal Car

An employee may choose to drive a personal car instead of a District car when a school car is not available for an authorized College trip, or if the employee prefers to drive his/her personal car.

Refer to Antelope Valley College Faculty collective bargaining agreement, Article IX. Refer to Antelope Valley College Classified collective bargaining agreement, Article XI.

Note: Government Code Section 11139.8 prohibits a state agency from requiring its employees, officers, or members to travel to, or approving a request of state-funded or sponsored travel to, any state that, after June 26, 2015, has eliminated protections against discrimination on the basis of sexual orientation, gender identity, or gender expression. This also applies to any state that has enacted a law that authorizes or requires discrimination against same-sex couples or their family or on the basis of sexual orientation, gender identity, or gender expression, subject to certain exceptions. The California Community College Chancellor's Office has indicated it will not approve requests from community college districts to travel to a restricted state. The California Community Colleges Chancellor's Office has also opined that Government Code Section 11139.8 does not apply to local community college districts. However, California law has recognized local community college districts as state agencies for certain purposes, among those is the community college funding mechanism.

Therefore, travel to prohibited locations as determined by the California State Attorney's General Office will be limited to the exceptions identified in Government Code Section 11139.8 Please see: https://oag.ca.gov/ab1887.

subd. (c):
1. Enforcement of California law, including auditing and revenue collection.
2. Litigation.
3. To meet contractual obligations incurred before January 1, 2017.
4. To comply with requests by the federal government to appear before committees.
5. To participate in meetings or training required by a grant or required to maintain grant funding.

6. To complete job-required training necessary to maintain licensure or similar standards required for holding a position, in the event that comparable training cannot be obtained in California or a different state not subject to the travel prohibition.
7. For the protection of public health, welfare, or safety, as determined by the affected agency, department, board, authority, or commission, or by the affected legislative office.

All travel requests are to be sent to the Business Office prior to travel. The Business Office will routinely check the California State Attorney's General's website and will notify the department if the travel is to a prohibited location.

5/8/06
Revised: 5/14/18

AP 7500 Volunteers

References: Education Code Sections 72401, 87010, 87011, *and 88249* ***Government Code Section 3119.5***

Purpose and Scope

The purpose of this procedure is to outline the District policy on volunteers. Each volunteer is subject to the screening process set forth in this policy, with the following exceptions:

- volunteers serving in single day college events.
- individuals serving as volunteers in Associated Student Organization officer positions at the colleges. ASO officers are not entitled to defense and indemnity by the District.

The Vice President of Human Resources or designee may authorize suspension of the screening process when he/she believes that this process is not necessary for the volunteers serving in the particular event.

General

The District may enter into agreements with outside organizations to provide volunteers to the District to work at college locations. Such agreements will contain appropriate defense and indemnification language to protect the district from liability in connection with the volunteer services.

Volunteers serve the District in an "at will" capacity. The District may terminate a volunteer's services for any reason or no reason at all.

Pursuant to Government Code section 3119.5, no person aged 60 years or older may be excluded from volunteer service if the person is physically, mentally and professionally capable of performing the services involved. A person shall be deemed "professionally capable" if he/she can demonstrate reasonable proficiency or relevant certification and performs his/her professional duties in accordance with laws, regulations or the technical standards that govern his/her area of volunteer responsibility.

Volunteers may not be used in lieu of classified employees. The District may not refuse to employ a person in a vacant classified position and use volunteers instead, nor may it abolish any classified positions and use volunteers instead.

Screening

The District shall use a written application form that requires, at a minimum, the volunteer's name, address and phone number.

A volunteer's service record shall be maintained by the district.

Subject to the limitations of this policy, employees assigned to other positions within the District may serve as volunteers during off-hours.

Fingerprints of each volunteer may be required. Volunteers with on-going assignments and volunteers who interact with minors shall be required to provide a complete set of fingerprints for the purpose of running a criminal background check.

No person may serve as a volunteer in the District if:

- He/she has been convicted of or if he or she has charges pending which pertains to any sex offense (as defined in Education Code section 87010), or controlled substance offense (as defined in Education Code section 87011).
- He/she has been convicted of a crime and the Vice President of Human Resources or designee determines that: the nature of the crime is too serious to serve as a volunteer; the crime was too recent; and/or the crime is inconsistent with obligations in performing assigned duties as a volunteer. In making this determination the Vice President of Human Resources may consult with other Vice Presidents as necessary.
- He/she has a health condition that would preclude him/her from satisfactorily performing essential duties of the position.
- He/she makes a false statement or omits a statement as to any material fact on the application form.

Incidental Expenses

Persons serving without pay as volunteers may receive reimbursement for incidental expenses.

Benefits

Volunteers are employees of the District only for the purpose of worker's compensation benefits for injuries sustained while engaged in the performance of any service under the direction and control of the district. With the exception of worker's compensation (Education Code Section 72401), volunteers shall serve without any type of compensation or any other benefits granted to district employees. Volunteers shall not be entitled to defense and indemnity from the district.

5/8/06
Revised: 3/11/13
Revised: 6/13/16
Revised: 1/8/18

AP 7600 Campus Security

References:

Education Code Section 72330;
Government Code Sections 3300 et seq.

The Superintendent/President is delegated the responsibility to establish security services within the District ~~B~~board ~~P~~olicy (see BP 7600 Campus Security).

The District has an approved Service Agreement with the County of Los Angeles Sheriff Department for general law enforcement and security services within the corporate limit of the District.

Every member of the Sheriff Department will go through the hiring process and meet the requirements of Education Code Section 72330.2
The agreement shall address, but not be limited to, the following:

- Operational responsibilities for investigations of the following violent crimes; willful homicide, forcible rape, robbery, aggravated assault
- Geographical boundaries of the operational responsibilities
- Mutual aid procedures

Also see BP 7600 Campus Security.

Approved: 5/8/06
Revised: 3/14/22

AP 7700 Whistleblower Protection

References:

Education Code Sections 87160-87164;
Government Code Section 53296;
Labor Code Section 1102.5;
Private Attorney General Act of 2004 (Labor Code Section 2698);
29 U.S. Code Section 218C (Affordable Care Act)

Individuals are encouraged to report suspected incidents of unlawful activities by District employees in the performance of their duties. Reports will be investigated promptly and appropriate remedies applied. Employees who, in good faith, reported such activities and/or assist the district in the investigation will be protected from retaliation.

This procedure sets out the processes for responding to and investigating reports of unlawful activities, as defined in BP 7700 titled Whistleblower Protection, and addressing complaints of retaliation for making such reports.

Filing a Report of Suspected Unlawful Activities

Any person may report allegations of suspected unlawful activities. Knowledge or suspicion of such unlawful activities may originate from academic personnel, staff, or administrators carrying out their assigned duties, internal or external auditors, law enforcement, regulatory agencies, customers, vendors, students, or other third parties.

Anonymous reports will be investigated to the extent possible. However, employees are strongly encouraged not to report anonymously because doing so impedes the District's ability to thoroughly investigate the claim and take appropriate remedial measures. As set forth fully below, retaliation against individuals who report suspected unlawful activities will not be tolerated.

Normally, a report by a District employee of allegations of a suspected unlawful activity should be made to the reporting employee's immediate supervisor or other appropriate administrator or supervisor within the operating unit. However, if the report involves or implicates the direct supervisor or others in the operating unit, the report may be made to any another District official whom the reporting employee believes to have either responsibility over the affected area or the authority to review the alleged unlawful activity on behalf of the District. When the alleged unlawful activity involves the Superintendent/President the report should be made to the president of the board of trustees. When the alleged unlawful activity involves the board of trustees or one of its members, the report should be made to the Superintendent/President who will confer with the president of the board of trustees and/or legal counsel on how to proceed.

Allegations of suspected unlawful activities should be made in writing so as to assure a

clear understanding of the issues raised, but may be made orally. Such reports should be factual and contain as much specific information as possible. The receiving supervisor or administrator should elicit as much information as possible. If the report is made orally, the receiving supervisor or administrator shall reduce it to writing and make every attempt to get the reporter to confirm by his/her signature that it is accurate and complete.

Once the receiving supervisor or administrator has received and/or prepared a written report of the alleged unlawful activity, he/she/they must immediately forward to the president of the college where the alleged activity has occurred. However, if this process would require submitting the report to an employee implicated in the report, the receiving supervisor or administrator should follow the reporting options outlined, above. The highest-level administrator or trustee who receives the written report pursuant to this paragraph is responsible for ensuring that a prompt and complete investigation is made by an individual with the competence and objectivity to conduct the investigation, and that the assistance of counsel and/or an outside investigator is secured if deemed necessary.

In the course of investigating allegations of unlawful conduct, all individuals who are contacted and/or interviewed shall be advised of the District's no-retaliation policy. Each individual shall be: a) warned that retaliation against the reporter(s) and/or others participating in the investigation will subject the employee to discipline up to and including termination; and b) advised that if he/she/they or she experiences retaliation for cooperating in the investigation, then it must be reported immediately.

In the event that an investigation into alleged unlawful activity determines that the allegations are accurate, prompt and appropriate corrective action shall be taken.

Protection from Retaliation

When a person makes a good-faith report of suspected unlawful activities to an appropriate authority, the report is known as a protected disclosure. District employees and applicants for employment who make a protected disclosure are protected from retaliation. A district employee or applicant whose family member makes a protected disclosure is also protected from retaliation.

Any employee who believes he/she/they has been (1) subjected to or affected by retaliatory conduct for reporting suspected unlawful activity, or (2) for refusing to engage in activity that would result in a violation of law, should report such conduct to the appropriate supervisory personnel (if such supervisory personnel is not the source of or otherwise involved in the retaliatory conduct). Any supervisory employee who receives such a report, or who otherwise is aware of retaliatory conduct, is required to advise their college president. If the allegations of retaliation, or the underlying allegations of unlawful conduct involve the President, the supervisor shall report to the highest level administrator and/or trustee who is not implicated in the reports of unlawful activity and retaliation.

All allegations of retaliation shall be investigated promptly and with discretion, and all information obtained will be handled on a "need to know" basis. At the conclusion of an

investigation, as appropriate, remedial and/or disciplinary action will be taken where the allegations are verified and/or otherwise substantiated.

Whistleblower Contact Information
Employees who have information regarding possible violations of state or federal statutes, rules, or regulations, or violations of fiduciary responsibility by a corporation or limited liability company to its shareholders, investors, or employees should contact the California Community Colleges Chancellor's Office or the District's Board of Trustees. Employees can contact the State Personnel Board with complaints of retaliation resulting from whistleblower activities. The State Personnel Board hotline is (916) 653-1403.

Other Remedies and Appropriate Agencies
In addition to the internal complaint process set forth above, any employee who has information concerning allegedly unlawful conduct may contact the appropriate government agency

Approved: 4/11/16
Revised: 8/8/16
Revised: 12/8/23

BP 3100 Organizational Structure

Reference:

Education Code Section 72400

The Superintendent/President shall establish organizational charts that delineate the lines of responsibility and fix the general duties of employees within the District.

Also see AP 3100 Organizational Structure.

Adopted: 11/7/05
Reviewed: 11/14/16
Revised: 1/13/20

BP 3200 Accreditation

Reference:

Accreditation Eligibility Requirement 21, and Accreditation Standards IV.B.1.i I.C.12 and 13; Title 5 Section 51016

The Superintendent/President shall ensure the District complies with the accreditation process and standards of the Accrediting Commission of Community and Junior Colleges and of other District programs that seek special accreditation.

The Superintendent/President shall keep the Board of Trustees informed of approved accrediting organizations and the status of accreditations.

The Superintendent/President shall ensure that the Board of Trustees is involved in any accreditation process in which Board participation is required.

The Superintendent/President shall provide the Board of Trustees with a summary of any accreditation report and any actions taken or to be taken in response to recommendations in an accreditation report.

Also see AP 3200 Accreditation.

Adopted: 11/7/05
Revised: 8/13/12
Reviewed: 11/14/16
Revised: 10/14/19

BP 3225 Institutional Effectiveness

References:

Education Code Sections 78210 et seq., and 84754.6;
Accreditation Standard I.B.5 - 9

The Board of Trustees is committed to developing goals that measure the ongoing condition of the District's operational environment. The Board of Trustees regularly assesses the District's institutional effectiveness, and alignment with the Vision for Success Goals of the California Community College Board of Governors.

Also see AP 3225 Institutional Effectiveness.

Adopted: 5/9/16
Reviewed: 11/14/16
Revised: 10/14/19

BP 3250 Institutional Planning

References:

Title 5, Sections 51008, 51010, 51027, 53003, 54220, 55080, 55190, 55250, 55510, and 56270 et seq.
Accreditation Standards I.B.9, III.B.4, III.C.2, III.D.2, and IV.B.3

The Superintendent/President shall ensure that the District has and implements a broad-based comprehensive, systematic and integrated system of planning that involves appropriate segments of the college community and is supported by institutional effectiveness research.

The planning system shall include plans required by law, including, but not limited to:

- **Long Range Educational** or **Academic Master Plan**, which shall be updated periodically as deemed necessary by the Board of Trustees - Refer to Institutional Planning Process in AP 3250 Institutional Planning.
- **Facilities Plan** - Refer to Facilities Master Plan in AP 6600 Capital Construction
- **Equal Employment Opportunity (EEO) Plan** (Faculty and staff diversity plan) - Refer to EEO Plan in AP 3420, Equal Employment Opportunity
- **Student Equity and Achievement Plan** - Refer to Student Equity Plan in BP/AP 5300 Student Equity
- **Student Success and Support Program Plan** - Refer to BP/AP 5050 Student Success and Support Program
- **Transfer Center** - Refer to Transfer Center Plan in BP/AP 5120 Transfer Center
- **Cooperative Work Experience** - Refer to Work Experience Plan in AP 4103 Work Experience
- **EOPS** - Refer to EOPS Plan in BP 5150 Extended Opportunity Programs & Services

The Superintendent/President shall submit those plans for which Board approval is required by Title 5 to the Board of Trustees.

The Superintendent/President shall inform the Board of Trustees about the status of planning and the various plans.

The Superintendent/President shall ensure the Board of Trustees has an opportunity to assist in developing the general institutional mission and goals for the comprehensive plans.

Also see AP 3250 Institutional Planning.

Adopted: 11/7/05
Revised: 12/10/07
Revised: 10/14/19

BP 3280 Grants

Reference:

Education Code Section 70902

The Board of Trustees will be informed about all grant applications made and grants received by the District.

The Superintendent/President shall establish procedures to assure timely application and processing of grant applications and funds, and ensure that the grants that are applied for directly support the purposes of the District. Those procedures shall include, but not be limited to, coordination with the Executive Council.

Also see AP 3280 Grants.

Adopted: 11/7/05
Revised: 11/14/16
Revised: 5/11/20

BP 3300 Public Records

References:

Government Code Sections 6250 et seq.

The Superintendent/President shall establish procedures for records management, including access by the public that comply with the requirements of the California Public Records Act.

Also see AP 3300 Public Records and BP/AP 3310 Records Retention and Destruction.

Adopted: 11/7/05
Reviewed: 11/14/16
Reviewed: 12/12/16
Revised: 1/13/19

BP 3310 Records Retention and Destruction

References:

Title 5 Sections 59020 et seq
Federal Rules of Civil Procedure, Rules 16, 26, 33, 34, 37, and 45

The Superintendent/President shall establish administrative procedures to assure the retention and destruction of all District records, including electronically stored information (ESI) as defined by the Federal Rules of Civil Procedure, in compliance with Title 5. Such records shall include, but not be limited to student records, employment records, and financial records.

Also see BP/AP 3300 Public Records and AP 3310 Records Retention and Destruction.

Adopted: 11/7/05
Revised: 9/10/07
Reviewed: 12/12/16
Revised: 1/13/20

BP 3410 Nondiscrimination

References:

Education Code Sections 66250 et seq., 72010 et seq. and 87100 et seq.;
Title 5 Sections 53000 et seq.; and 59300 et seq.;
Penal Code Section 422.55;
Government Code 12926.1 and 12940 et seq
Title 2 Sections 10500 et seq.;
Labor Code Section 1197.5;
ACCJC Accreditation Eligibility Requirement 20 and Accreditation Standard Catalog Requirements

The District is committed to equal opportunity in educational programs, employment, and all access to institutional programs and activities.

The District, and each individual who represents the District, shall provide access to its services, classes, and programs without regard to national origin, immigration status, religion, age, gender, gender identity, gender expression, race, ethnicity, color, medical condition, genetic information, ancestry, sexual orientation, marital status, physical or mental disability, pregnancy, or military and veteran status, or because he/she/they is perceived to have one or more of the foregoing characteristics, or based on association with a person or group with one or more of these actual or perceived characteristics.

The Superintendent/President shall establish administrative procedures that ensure all members of the college community can present complaints regarding alleged violations of this policy and have their complaints heard in accordance with the Title 5 regulations and those of other agencies that administer state and federal laws regarding nondiscrimination.

No District funds shall ever be used for membership, or for any participation involving financial payment or contribution on behalf of the District or any individual employed by or associated with it, to any private organization whose membership practices are discriminatory on the basis of national origin, immigration status, religion, age, gender, gender identity, gender expression, race, ethnicity, color, medical condition, genetic information, ancestry, sexual orientation, marital status, physical or mental disability, pregnancy, or military and veteran status, or because he/she/they is perceived to have one or more of the foregoing characteristics, or because of his/her/their association with a person or group with one or more of these actual or perceived characteristics.

Also see AP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3430 Prohibition of Harassment, AP 3435 Discrimination and Harassment Complaints and Investigations, and BP/AP 5140 Disabled Student Programs and Services.

Adopted: 11/7/05
Revised: 5/8/06
Revised: 1/8/07
Revised: 2/9/09

Revised: 8/13/12
Revised: 10/10/16
Revised: 8/13/18
Revised: 5/11/20
Revised: 7/10/23

BP 3420 Equal Employment Opportunity

References:

Education Code Sections 87100 et seq.
Title 5 Sections 53000 et seq.
Accreditation Standard III.A. 12

The Board of Trustees supports the intent set forth by the California Legislature to assure that effort is made to build a community in which opportunity is equalized, and community colleges foster a climate of acceptance, with the inclusion of faculty and staff from a wide variety of backgrounds. It agrees that diversity in the academic environment fosters cultural awareness, mutual understanding and respect, harmony, and suitable role models for all students. The Board of Trustees therefore commits itself to promote the total realization of equal employment through a continuing equal employment opportunity program.

The Superintendent/President shall develop, for review and adoption by the Board of Trustees, a plan for equal employment opportunity that complies with the Education Code and Title 5 requirements as from time to time modified or clarified by judicial interpretation.

Also see AP 3420 Equal Employment Opportunity, BP/AP 3410 Nondiscrimination, and BP/AP 7100 Commitment to Diversity.

Adopted: 11/7/05
Revised: 6/13/16
Revised: 5/11/20

BP 3430 Prohibition of Harassment

References:

Education Code Sections 212.5 44100, 66252, and 66281.5;
Government Code Sections 12923, 12940, and 12950.1;
Civil Code Section 51.9;
Title 2 Sections 10500 et seq.;
Title VII of the Civil Rights Act of 1964, 42 U.S. Code Annotated Section 2000e

All forms of harassment are contrary to basic standards of conduct between individuals. State and federal law and this policy prohibit harassment, and the District will not tolerate harassment. The District is committed to providing an academic and work environment that respects the dignity of individuals and groups. The District shall be free of unlawful harassment including that which is based on any of the following statuses: race, religious creed, color, national origin, ethnicity, ancestry, immigration status, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation or military and veteran status, or because he/she/they is perceived to have one or more of the foregoing characteristics.

The District seeks to foster an environment in which all employees, students, unpaid interns, and volunteers feel free to report incidents of harassment without fear of retaliation or reprisal. Therefore, the District also strictly prohibits retaliation against any individual for filing a complaint of harassment or for participating in a harassment investigation. Such conduct is illegal and constitutes a violation of this policy. The District will investigate all allegations of retaliation swiftly and thoroughly. If the District determines that someone has retaliated, it will take all reasonable steps within its power to stop such conduct. Individuals who engage in retaliatory conduct are subject to disciplinary action, up to and including termination or expulsion.

Any student, employee, unpaid intern, or volunteer who believes that he/she/they has been harassed or retaliated against in violation of this policy should immediately report such incidents by following the procedures described in AP 3435 Discrimination and Harassment Complaints and Investigations. The District requires supervisors to report all incidents of harassment and retaliation that come to their attention.

This policy applies to all aspects of the academic environment, including but not limited to classroom conditions, grades, academic standing, employment opportunities, scholarships, recommendations, disciplinary actions, and participation in any community college activity. In addition, this policy applies to all terms and conditions of employment, including but not

limited to hiring, placement, promotion, disciplinary action, layoff, recall, transfer, leave of absence, training opportunities, and compensation.

To this end the Superintendent/President shall ensure that the institution undertakes education and training activities to counter harassment and to prevent, minimize and/or eliminate any hostile environment that impairs access to equal education opportunity or impacts the terms and conditions of employment.

The Superintendent/President shall establish procedures that define harassment on campus. The Superintendent/President shall further establish procedures for employees, students, unpaid interns, volunteers and other members of the campus community that provide for the investigation and resolution of complaints regarding harassment and discrimination, and procedures to resolve complaints of harassment and discrimination. State and federal law and this policy prohibit retaliatory acts by the District, its employees, students, and agents.

The District will publish and publicize this policy and related written procedures (including the procedure for making complaints) to administrators, faculty, staff, students, unpaid interns, and volunteers particularly when they are new to the institution. The District will make this policy and related written procedures (including the procedure for making complaints) available in all administrative offices, and will post them on the District's website.

Employees who violate the policy and procedures may be subject to disciplinary action up to and including termination. Students who violate this policy and related procedures may be subject to disciplinary measures up to and including expulsion. Unpaid interns who violate this policy and related procedures may be subject to disciplinary measures up to and including termination from the internship or other unpaid work experience program.

Also see BP 3430 Prohibition of Harassment, BP/AP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3433 Prohibition of Sexual Harassment Under Title IX, AP 3434 Responding to Harassment Based on Sex Under Title IX, and AP 3435 Discrimination and Harassment Complaints and Investigations.

Adopted: 11/7/05
Revised: 8/13/12
Revised: 10/9/17
Revised: 5/13/19
Revised: 1/13/20
Revised: 7/10/23

BP 3433 Prohibition of Sexual Harassment under Title IX

References:

Title IX of the Education Amendments Act of 1972;
34 Code of Federal Regulations Part 106

All forms of sexual harassment are contrary to basic standards of conduct between individuals. State and federal law and this policy prohibit sexual harassment and the District will not tolerate sexual harassment. The District is committed to providing an academic and work environment that respects the dignity of individuals and groups. The District shall be free of sexual harassment and all forms of sexual intimidation and exploitation including acts of sexual violence.

The District seeks to foster an environment in which all employees, students, applicants for employment, and applicants for admission feel free to report incidents of sexual harassment in violation of this policy and Title IX, without fear of retaliation or reprisal. Therefore, the District also strictly prohibits retaliation against any individual for filing a complaint of sexual harassment in violation of this policy and Title IX or for participating, or refusing to participate, in a sexual harassment investigation. The District will investigate all allegations of Title IX retaliation swiftly and thoroughly. If the District determines that someone has retaliated, it will take reasonable steps within its power to stop such conduct. Individuals who engage in Title IX retaliatory conduct are subject to disciplinary action, up to and including termination or expulsion.

Any employee, student, applicant for employment, or applicant for admission who believes he/she/they has been harassed or retaliated against in violation of this policy should immediately report such incidents by following the procedures described in AP 3434 Responding to Harassment Based on Sex under Title IX. The District requires supervisors to report all incidents of harassment and retaliation that come to their attention.

This policy applies to all aspects of the academic environment, including but not limited to classroom conditions, grades, academic standing, employment opportunities, scholarships, recommendations, disciplinary actions, and participation in any community college activity. In addition, this policy applies to all terms and conditions of employment, including but not limited to hiring, placement, promotion, disciplinary action, layoff, recall, transfer, leave of absence, training opportunities, and compensation.

To this end, the Superintendent/President shall ensure that the institution undertakes education and training activities to counter sexual harassment and to prevent, minimize, or eliminate any hostile environment that impairs access to equal education opportunity or impacts the terms and conditions of employment.

The Superintendent/President shall establish procedures that define sexual harassment on campus. The Superintendent/President shall further establish procedures for employees, students, and other members of the campus community that provide for the investigation

and resolution of complaints regarding sexual harassment in violation of this policy, and procedures to resolve complaints of sexual harassment in violation of this policy. State and federal law and this policy prohibit retaliatory acts against all participants by the District, its employees, students, and agents.

The District will publish and publicize this policy and related written procedures (including the procedure for making complaints) to administrators, faculty, staff, students, applicants for employment, and applicants for admission, particularly when they are new to the institution. The District will make this policy and related written procedures (including the procedures for making complaints) available in all administrative offices and will post them on the District's website.

Employees who violate the policy and procedures may be subject to disciplinary action up to and including termination. Students who violate this policy and related procedures may be subject to disciplinary measures up to and including expulsion. Volunteers or unpaid interns who violate this policy and related procedures may be subject to disciplinary measure up to and including termination from the volunteer assignment, internship, or other unpaid work experience program.

For non-Title IX matters, also see BP 3410 Nondiscrimination, BP/AP 3420 Equal Employment Opportunity, BP/AP 3430 Prohibition of Harassment, AP 3435 Discrimination and Harassment Complaints and Investigations.

Adopted: 7/10/23

BP 3440 Service Animals

References:

The Americans with Disabilities Act of 1990 -- 42 United States Code Sections 12101 et seq.;
28 Code of Federal Regulations Part 35;
28 Code of Federal Regulations Part 36;
34 Code of Federal Regulations Part 104.44 subdivision (b)

In order to prevent discrimination on the basis of disability, the District will allow an individual with a disability to use a service animal or miniature horse or emotional support animal in District facilities and on District campuses in compliance with state and federal law.

Also, see AP 3440 Service Animals.

Adopted: 12/12/11
Reviewed: 12/12/16
Revised: 1/13/20
Reviewed: 1/8/24

BP 3500 Campus Safety

Reference:

Education Code Section 67380 subdivision (a)(4)

The Board of Trustees is committed to a safe and secure District work and learning environment. To that end, the Superintendent/President shall establish a campus safety plan and ensure that it is posted or otherwise made available to students. The campus safety plan shall include availability and location of security personnel, methods for summoning assistance of security personnel, any special safeguards that have been established, any actions taken in the preceding eighteen (18) months to increase safety, and any changes in safety precautions to be made during the next twenty-four (24) months.

Also see AP 3500 Campus Safety, BP/AP 3505 Emergency Response Plan, and BP/AP 7600 College Police.

Adopted: 11/7/05
Reviewed: 12/12/16
Revised: 1/13/20

BP 3501 Campus Security and Access

References:

34 Code of Federal Regulations Part 668.46 subdivision (b)(3)
Accreditation Standard III.B.1

The Superintendent/President shall establish procedures for security and access to District facilities.

Also see AP 3501 Campus Security and Access.

Adopted: 12/12/11
Revised: 6/13/16
Reviewed: 12/12/16
Revised: 1/13/20

BP 3504 Minors on Campus

References:

Welfare and Institutions Code Section 625

Students, faculty, and staff are not permitted to bring minors on campus or other District facilities, except as follows:

- Minors enrolled in the Child Development Center or other instructional programs in the District.
- Minors attending public events.
- Minors accompanying an adult accessing student services, library facilities, or other services district wide.
- Minors participating in classes (at the request or with the approval of the instructor).

Occasional exceptions to this policy may be made for employees with good cause and with the approval of the employee's supervisor or instructional Dean. The employee shall provide adequate supervision for such minor(s) and ensure that there is no disruption of services as a result of their being on site.

Visitors to any District facilities are subject to all relevant District policies and regulations.

Parents and guardians must be aware that the ultimate responsibility for the safety of the minors in their care rests with them. No liability will be accepted by the District nor any of its agents or staff for the consequences of minors being on campus.

Minors are defined as any individual under the age of 14 and must be accompanied by an adult at all times.

Also see AP 3504 Minors on Campus.

Adopted: 3/8/10
Reviewed: 5/14/18
Revised: 1/13/20

BP 3505 Emergency Response Plan

References:

Education Code Sections 32280 et seq. and 71095;
Government Code Sections 3100 and 8607 subdivision (a);
Homeland Security Act of 2002; National Fire Protection Association 1600; Homeland Security Presidential Directive-5;
Executive Order S-2-05;
19 California Code of Regulations Sections 2400-2450;
34 Code of Federal Regulations Part 668.46 subdivision (g)

The District shall have emergency response and evacuation procedures for notifying the campus community in the event of a significant emergency or dangerous situation involving an immediate threat to the health or safety of students or employees occurring on the campus.

The Superintendent/President shall establish procedures that ensure that the District implements a plan to be activated in the event of an emergency or the occurrence of a natural disaster or hazardous condition. This plan must comply with the National Incident Management System (NIMS), the Standardized Emergency Management System (SEMS) and should incorporate the functions and principles of the Incident Command System (ICS), the Master Mutual Aid Agreement (MMAA) and any other relevant programs. The plan must incorporate NIMS and SEMS to facilitate the coordination between and among agencies in the event of an emergency or natural disaster.

Compliance with NIMS and SEMS mandates include but are not limited to:

- Establishing disaster preparedness procedures or a plan; and
- Completion of training sessions by college personnel in compliance with NIMS and SEMS guidelines

    - Training requirements vary based on job titles or assigned roles within the emergency plan

College personnel must be informed that as public employees, they are also disaster service workers during national, state, and local emergencies. The District must ensure that its employees are in compliance with the disaster service worker oath requirements.

The Superintendent/President should ensure that a team is created to carry out compliance with NIMS and SEMS mandates. The responses to emergencies or natural disasters are organized by SEMS into five (5) categories: field response, local government, operational areas, regions, and state.

The plan should contain information regarding activation and chain of command responsibilities. Compliance with NIMS mandates requires planning and incorporation for all phases of emergency management including mitigation and prevention, preparedness, response and recovery. The District must ensure that its plan is updated regularly. Colleges must comply with NIMS and SEMS to receive federal or state funding.

Also see AP 3505 Emergency Response Plan and BP/AP 6520 Security for District Property.

Adopted: 12/12/11
Reviewed: 5/8/17
Revised: 1/13/20

BP 3510 Workplace Violence

References:

Cal/OSHA: Labor Code Sections 6300 et seq;
8 California Code of Regulations Section 3203;
"Workplace Violence Safety Act of 1994" (Code of Civil Procedure Section 527.8 and Penal Code Section 273.6

The Board of Trustees is committed to providing a District work and learning environment that is free of violence and the threat of violence. The Board's priority is the effective handling of critical workplace violence incidents, including those dealing with actual or potential violence.

The Superintendent/President shall establish administrative procedures that assure that employees are informed regarding what actions will be considered violent acts, and requiring any employee who is the victim of any violent conduct in the workplace, or is a witness to violent conduct to report the incident, and that employees are informed that there will be no retaliation for such reporting.

Also see AP 3510 Workplace Violence.

Adopted: 11/7/05
Revised: 6/13/16
Revised: 1/13/20

BP 3515 Reporting of Crimes

Reference:

Education Code Section 67380

The Superintended/President shall assure that, as required by law, reports are prepared for all occurrences reported to the Antelope Valley College Sheriff's Department of any arrests for crimes committed on or off campus that involve violence, hate violence, theft or destruction of property, illegal drugs, or alcohol intoxication. The Superintendent/ President shall further assure that required reports of non-criminal acts of hate violence are prepared. Such reports shall be made available as required by law.

Also see AP 3515 Reporting of Crimes and AP 3516 Registered Sex Offender Information.

Adopted: 11/7/05
Revised: 6/13/16
Reviewed: 12/12/16
Revised: 1/13/20

BP 3518 Child Abuse Reporting

References:

Penal Code Sections 261, 264.1, 273a, 273d, 285, 286, 288, 288a, 289, 647a, and 11164-11174.3;
Welfare and Institutions Code Sections 300, 318, and 601;
Family Code Sections 7802, 7807, 7808, 7820-7829, 7890, and 7892.

The Superintendent/President shall establish procedures related to the responsibility of employees, within the scope of employment or in their professional capacity, to report suspected abuse and neglect of children.

Also see AP 3518 Child Abuse Reporting.

Adopted: 11/7/05
Revised: 5/12/08
Reviewed: 12/12/16
Revised: 1/13/20

BP 3520 Local Law Enforcement

References:

Education Code Sections 67381 and 67381.1;
34 Code of Federal Regulations Section 668.46 subdivision (b)(4)

The District, on behalf of each campus or center, shall enter into a written agreement with local law enforcement agencies. The agreement shall clarify operational responsibilities for investigations of Part I violent crimes, defined by law as willful homicide, forcible rape, robbery, and aggravated assault; sexual assaults, including, but not limited to rape, forced sodomy, forced oral copulation, rape by a foreign object, sexual battery, or threat of any of these; and hate crimes as defined by law, occurring at each location.

The written agreement designates which law enforcement agency has operational responsibility for violent crimes, sexual assaults, and hate crimes, and delineates the specific geographical boundaries of each agency's operational responsibility, including maps as necessary.

The written agreements required by this policy shall be public records and shall be made available for inspection by members of the public upon request to Office of Superintendent/President. Written agreements shall be reviewed and updated, if necessary, every five (5) years.

The Antelope Valley Community College District encourages accurate and prompt reporting of all crimes to the Antelope Valley College Campus Sheriff's Office and/or the appropriate police agencies. The Superintendent/President shall establish procedures that encourage pastoral counselors and professional counselors, if and when they deem it appropriate, to inform the persons they are counseling of any procedures to report crimes on a voluntary, confidential basis for inclusion in the annual disclosure of crime statistics.

Antelope Valley has a contract with the Los Angeles County Sheriff's Department for services and referred to as the Antelope Valley College Campus Sheriff's Office.

Also see AP 3520 Local Law Enforcement.

Adopted: 11/7/05
Revised: 5/9/16
Reviewed: 12/12/16
Revised: 5/11/20

BP 3530 Weapons on Campus

References:

Penal Code Sections 626.9 and 626.10

In reference to California Penal Code Section 626.9, the Antelope Valley Community College District is hereby known as a "Gun Free Zone". Firearms, other weapons or facsimiles, shall be prohibited on any college or District center or in any facility of the District except for activities conducted under the direction of District officials or as authorized by an official law enforcement agency.

Also see AP 3530 Weapons on Campus.

Adopted: 11/7/05
Revised: 11/9/09
Reviewed: 12/12/16
Revised: 5/11/20

BP 3540 Sexual and Other Assaults on Campus

References:

Education Code Sections 67382, 67385, and 67386;
20 U.S. Code Section 1092 subdivision (f);
34 Code of Federal Regulations Part 668.46 subdivision (b)(11)

Any sexual assault or physical abuse, including, but not limited to, rape, as defined by California law, whether committed by an employee, student, or member of the public that occurs on District property is a violation of District policies and procedures, and is subject to all applicable punishment, including criminal procedures and employee or student discipline procedures. Students, faculty, and staff who may be victims of sexual and other assaults shall be treated with dignity and provided comprehensive assistance.

The Superintendent/President shall establish administrative procedures that ensure that students, faculty, and staff who are victims of sexual and other assaults receive appropriate information and treatment, and that educational information about preventing sexual violence is provided and publicized as required by law.

The procedures shall meet the criteria contained in Education Code Sections 67385, 67385.7, 67386, and 34 Code of Federal Regulations Part 668.46. The Antelope Valley Community College District shall adopt a “Zero” tolerance policy in regard to sexual assaults while upon District property.

Also see AP 3540 Sexual and Other Assaults on Campus, BP/AP 3410 Nondiscrimination, and BP/AP 3430 Prohibition of Harassment.

Adopted: 11/7/05
Revised: 5/8/06
Revised: 1/8/07
Revised: 6/13/16
Revised: 5/11/20

BP 3550 Drug-Free Environment and Drug Prevention Program

References:

Education Code Section 67384;
Drug Free Schools and Communities Act, 20 U.S. Code Section 1011i;
34 Code of Federal Regulations Parts 86.1 et seq.;
Drug Free Workplace Act of 1988, 41 U.S. Code Section 8103

The Antelope Valley Community College District shall be known as a “Drug Free” District, and adopt a “Zero” tolerance policy with regards to any Schedule I and Schedule II substance deemed unlawful by local, state, and federal laws.

The District shall be free from all drugs and from the unlawful possession, use or distribution of illicit drugs and alcohol by students and employees.

The unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in all facilities under the control and use of the District.

Any student or employee who violates this policy will be subject to disciplinary action (consistent with local, state, or federal law), which may include referral to an appropriate rehabilitation program, suspension, demotion, expulsion, or dismissal.

The following are summaries of the major health risks of and common symptoms associated with alcohol and other drug use and abuse. This is not a complete listing but an overview. Each individual will experience the effects of alcohol and other drugs in a slightly different way given his/her tolerance, body size, family history, gender, and other physical and psychological factors. Abuse of alcohol and other drugs can lead to chemical dependency and can be harmful during pregnancy.

Alcohol

Health Risks: Alcohol in moderate amounts causes dizziness, dulling of the senses, impairment of coordination, reflexes, memory and judgment. Increased amounts of alcohol produce staggering, slurred speech, double vision, mood changes and, possibly, unconsciousness. Larger amounts result in death. Alcohol causes damage to the liver, heart and pancreas. It also may lead to malnutrition, stomach irritation, lowered resistance to disease and irreversible brain or nervous system damage.

Symptoms: Glazed eyes, obvious odor, pale and dry skin, broken blood vessels in facial area, 33 slowed motor coordination and enlarged stomach.

Marijuana

Health Risks: Marijuana use leads to a substantial increase in heart rate. It impairs or reduces short-term memory and comprehension, and motivation and cognition are altered. With extended use it can produce paranoia and psychosis. Smoking marijuana damages the lungs and pulmonary system. Marijuana contains more cancer causing agents than tobacco. It also lowers male sex hormones, suppresses ovulation, and causes changes in the menstrual cycle and possibly causes birth defects.

Symptoms: Someone who uses marijuana may laugh inappropriately and have bloodshot eyes, dry mouth and throat, and a tell-tale odor of the drug, a poor sense of timing and increased appetite.

Cocaine and Crack

Health Risks: Cocaine and its derivative crack produce dilated pupils and elevated blood pressure, heart rate, respiratory rate and body temperature. They may also cause insomnia, loss of appetite, tactile hallucinations, paranoia, seizure and death.

Symptoms: Someone using cocaine may experience muscle twitching, panic reactions, anxiety, numbness in hands and feet, loss of weight, a period of hyperactivity followed by a depression, a running or bleeding nose and sustained depression.

Barbiturates

Health Risks: In small doses, barbiturates produce calmness, relaxed muscles and lowered anxiety. Larger doses cause slurred speech, staggering gait and altered perception. Very large doses taken in combination with other central nervous system depressants (e.g., alcohol) cause respiratory depression, coma and sometimes death.

Symptoms: A person who uses barbiturates may have poor muscle control, appear drowsy or drunk, become confused, irritable, inattentive or have slowed reactions.

Amphetamines

Health Risks: Amphetamine use causes increased heart and respiratory rates, elevated blood pressure, and dilated pupils. Larger doses cause rapid or irregular heartbeat, tremors and physical collapse. An amphetamine injection creates a sudden increase in blood pressure that can result in stroke, high fever and heart failure.

Symptoms: An individual using amphetamines might begin to lose weight, have periods of excessive sweating, and appear restless, anxious, moody and unable to focus. Extended use may produce psychosis, including hallucinations, delusions and paranoia.

Hallucinogens (including PCP, LSD, Mescaline, Peyote, Psilocybin)

Health Risks: PCP, or angel dust, interrupts the part of the brain that controls the intellect and impulsive behavior. PCP blocks pain receptors. Violent episodes, including self-inflected injuries, are not uncommon. Chronic users report memory loss and speech difficulty. Very large doses produce convulsions, coma, heart and lung failure, or ruptured blood vessels in the brain. LSD, mescaline, peyote, etc. cause dilated pupils, elevated body temperature, increased heart rate and blood pressure, and tremors.

Symptoms: Someone using PCP might appear moody, aggressive or violent. Such an individual may become paranoid and experience hallucinations and have time and body movements slowed. LSD users may experience loss of appetite, sleeplessness, confusion, anxiety and panic. Flashbacks may also occur.

Narcotics (including Heroin, Codeine, Morphine, Opium, Percodan)

Health Risks: Because these narcotics are generally injected, the use of contaminated needles may result in AIDS and hepatitis. Symptoms of overdose include shallow breathing, clammy skin and convulsions. An overdose may result in a coma or even death.

Symptoms: Some signs of narcotic use are euphoria, drowsiness, constricted pupils and nausea. Other symptoms include itchy skin, needle or "track" marks on the arms and legs, nodding, loss of sex drive and appetite. When withdrawing from the drug, sweating, cramps and nausea occur.

The Superintendent/President shall assure that the District distributes annually to each student and employee the information required by the Drug-Free Schools and Communities Act Amendments of 1989 and complies with other requirements of the Act.

The District shall provide educational and preventive information about opioid overdose and the use and location of opioid overdose reversal medication to students at all campuses. The Superintendent/President shall establish administrative procedures to assure that each campus health center applies to distribute dosages of a federally approved opioid overdose reversal medication and participates in the Naloxone Distribution Project through the State Department of Health Care Services.

See Administrative Procedure #3550 Also see AP 3550 Drug-Free Environment and Drug Prevention Program, BP/AP 3560 Alcoholic Beverages, and AP 6950 Drug and Alcohol Testing (U.S. Department of Transportation).

Adopted: 11/7/05
Revised: 1/11/10
Revised: 5/9/16
Revised: 1/13/20
Revised: 3/10/25

BP 3560 Alcoholic Beverages

References:

Business and Professions Code Section 25608;
34 Code of Federal Regulations Part 668.46 subdivision (b)

The Superintendent/President is authorized to enact procedures as appropriate and permitted by law regarding serving alcoholic beverages on campus or at fund-raising events held to benefit non-profit corporations. Alcoholic beverages shall not be served on campus except in accordance with these procedures.

Also see AP 3560 Alcoholic Beverages, BP/AP 3550 Drug-Free Environment and Drug Prevention Program, and AP 6950 Drug and Alcohol Testing (U.S. Department of Transportation).

Adopted: 11/7/05
Revised: 4/9/07
Revised: 11/14/11
Reviewed: 12/12/1
Revised: 5/11/20
Reviewed: 3/10/25

BP 3570 No Smoking and Tobacco-Free Environment

References:

Education Code Sections 70902 and 76033 subdivision (e);
Government Code Sections 7596, 7597, 7597.1, and 7598;
Labor Code Section 6404.5;
Penal Code Sections 602 and 853.6;
Title 8 Section 5148

The District shall provide a safe learning and working environment for both students and employees. It is recognized that smoke from cigarettes, pipes, and/or cigars, vapor from e-cigarettes, and smokeless tobacco products are hazardous to health; therefore, the District prohibits smoking and the use of tobacco on all District property and all locations where District services are provided.

To enforce smoking and tobacco control regulations and procedures, the Superintendent/ President is authorized to:

- Set enforcement standards for all District sites and campuses;
- Promote smoking and tobacco cessation treatment options.
- Direct that the District post signs stating its prohibition of smoking and tobacco use policy on District-owned and operated property.
- Inform employees and students of the tobacco use policy and enforcement measures.

Also, see AP 3570 No Smoking and Tobacco-Free Environment.

Adopted: 5/11/20

BP 3600 Auxiliary Organizations

References:

Education Code Sections 72670 et seq.;
Title 5 Sections 59250 et seq.

The Board of Trustees may recognize and approve auxiliary organizations established for the purpose of providing to the District any and all supportive services, specialized programs and functions identified in Title 5.

The Superintendent/President shall establish the administrative procedures necessary to fully comply with California law relating to auxiliary organizations, and to submit this policy and those procedures to the Chancellor for the California Community Colleges as required by law. At a minimum, the procedures shall address the subjects required by Title 5.

Recognition and establishment of auxiliary organizations shall include a public hearing on the recommendation to recognize or establish an auxiliary organization; Board approval of the auxiliary organization; and approval of a written agreement between the District and the auxiliary organization describing the services, programs or functions to be performed. All such written agreements shall comply fully with the requirements of Title 5 Section 59257 subdivision (j).

Any auxiliary organization recognized by the Board of Trustees shall conduct its business in accordance with the administrative procedures adopted by the Superintendent/President pursuant to this policy. Notwithstanding anything contained in the administrative procedures, any auxiliary organization recognized by the Board of Trustees shall comply with Education Code provisions regarding:

- the composition of a board of directors and the way in which it conducts its meetings;
- conducting an annual audit;
- employing its work force;
- expending and appropriating its funds, and
- keeping its records.

No funds or resources, other than funds or resources derived from gifts or bequests, shall be transferred by the District to any of its auxiliary organizations for the purpose of either avoiding laws or regulations that constrain community college districts or providing the District with an unfair advantage with respect to any state funding mechanism. Such state funding mechanisms include, but are not limited to, general apportionment funding, capital outlay funding, Extended Opportunity Programs and Services funding, and funding for programs and services for disabled students.

Also see AP 3600 Auxiliary Organizations.

Adopted: 11/7/05
Reviewed: 5/14/18
Revised: 1/13/20

BP 3710 Securing of Copyright for District Materials

References:

Education Code Sections 72207 and 81459
17 U.S. Code Section 201

The Superintendent/President is directed to develop appropriate administrative procedures to implement the provisions of the Education Code that authorize the securing of copyright protection for works, including but not limited to registering copyrights and policing infringements, on behalf of the District. The procedures developed by the Superintendent/President shall assure that the District may use, sell, give, or exchange published materials and may license materials prepared by the District in connection with its curricular and special services.

In the development of the procedures, the Superintendent/President shall solicit the input of the proper representatives of the college community in accordance with the board policy and administrative procedure regarding participation in local decision-making (BP/AP 2510).

These procedures shall not infringe upon the rights established through collective bargaining as described in Article XIX of the Faculty Collective Bargaining Agreement titled “Intellectual Property Rights.”

Also see AP 3710 Securing of Copyright, BP/AP 3715 Intellectual Property, AP 3750 Use of Copyrighted Material, and the most current version of the Faculty Collective Bargaining Agreement.

Adopted: 11/7/05
Reviewed: 5/14/18
Revised: 1/13/20

BP 3715 Intellectual Property

References:

17 U.S. Code Sections 101 et seq.;
35 U.S. Code Sections 101 et seq.;
37 Code of Federal Regulations Parts 1.1 et seq.

The rights, interests, protection, and transfer of intellectual property created by District employees are defined and determined through the collective bargaining process for faculty and classified staff. For other certificated, administrators, or students, the Superintendent/President shall develop procedures that define the rights, interests, protection, and transfer of intellectual property created by District employees not covered by collective bargaining agreements and students.

Also see AP 3715 Intellectual Property, BP/AP 3710 Securing of Copyright, AP 3750 Use of Copyrighted Material, and the most current versions of employee collective bargaining agreements.

Adopted: 11/7/05
Revised: 2/11/19
Revised: 5/11/20

BP 3720 Computer Use

Reference:

Education Code Section 70902; 17 U.S.C. Section 101 et seq.; Penal Code Section 502, Cal. Const., Art. 1 Section 1; Government Code Section 3543.1(b)

It shall be the policy of Antelope Valley College (AVC) to keep employees, students and community members apprised of their rights and responsibilities as users of the information technology services provided by the college. These rights and responsibilities will be incorporated into guidelines and disseminated to all users.

The Board recognizes that computers and networks can provide access to resources on and off campus, as well as the ability to communicate with other users worldwide. Such open access requires that individual users act responsibly. Computer and information technology services users must respect the rights of other users, respect software copyrights and licenses, respect the integrity of the systems and related physical resources, refrain from seeking to gain unauthorized access, and observe all relevant laws, regulations, contractual obligations and District and college policies.

See Administrative Procedures #3720, 3721, and 3722

Adopted: 11/7/05
Revised: 1/8/07
Revised: 5/11/09

BP 3810 Claims Against the District

References:

Education Code Section 72502; Government Code Sections 900 et seq.; 910 and 935

Any claims against the District for money or damages, which are not governed by any other statutes or regulations expressly relating thereto, shall be presented and acted upon in accordance with Title I, Division 3.6, Part 3, Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of the California Government Code.

Claims must be presented according to this policy and related procedures as a prerequisite to filing suit against the District.

Claims that are subject to the requirements of this policy include, but are not limited to, the following:

- Claims by public entities: claims by the state or by a state department or agency or by another public entity.
- Claims for fees, wages and allowances: claims for fees, salaries or wages, mileage, or other expenses and allowances.

The designated place for service of claims, lawsuits or other types of legal process upon the District:

- The Office of the General Counsel, 3041 West Avenue K, Lancaster, CA 93536; (661) 722-6650.

See Administrative Procedure 3810.

Adopted: 11/7/05
Reviewed: 3/13/17
Revised: 3/14/22

BP 3820 Gifts

Reference:
Education Code Section 72205

The Internal Revenue Code 170(c)(1) includes within its list of qualified donees for charitable deduction purposes "a state, a possession of the United States, or any of the political subdivisions thereof." Therefore, the Antelope Valley Community College District qualifies as a donee because it is a subdivision of the state. Consequently, a gift can be donated directly to the District rather than the Antelope Valley College Foundation.

The Board of Trustees requires that gifts, donations, and bequests be made to the Antelope Valley College Foundation and that the Foundation's policies and procedures be followed, except gifts that the Superintendent/President determines should be accepted directly by the District. The Board of Trustees shall consider all gifts, donations, and bequests made to the District. The Board of Trustees reserves the right to refuse to accept any gift which does not contribute toward the goals of the District, or the ownership of which would have the potential to deplete resources of the District.

The District and the Antelope Valley College Foundation shall assume no responsibility for appraising the value of gifts made to the District.

All fundraising activities shall be coordinated by the Antelope Valley College Foundation and approved by the Superintendent/President.

Solicitation of gifts, funds, or property shall not be made by anyone in the name of or for any benefit for Antelope Valley College without communication with and approval of the Foundation.

In the case of fundraising activities sponsored by the Associate Students Organization or by other student groups, prior approval of the Dean of Student Services is required as well as notification to the Foundation.

Acceptance of a gift shall not be considered endorsement by the District of a product, enterprise or entity.

In no event shall the District accept a donation from any donor who engages in practices or policies which discriminate against any person on the basis of nationality, religion, age, gender, gender identity, gender expression, race or ethnicity, medical condition, genetic information, ancestry, sexual orientation, marital status, military or veteran status, or physical or mental disability; or when the stated purposes of the donation are to facilitate such discrimination in providing educational opportunity.

Also see AP 3820 Gifts.

Adopted:	11/7/05
Revised:	8/13/12
Revised:	5/9/16
Reviewed:	3/13/17
Revised:	7/13/20

BP 3900 Speech: Time, Place and Manner

References:

Education Code Sections 66301 and 76120

Students, employees, and members of the public shall be free to exercise their rights of free expression, subject to the requirements of this policy.

The college of the has areas that are designated public forums available for the exercise of expression by students, employees, and members of the public.

The Superintendent/President shall enact such administrative procedures, as are necessary to reasonably regulate the time, place and manner of the exercise of free expression in the designated public forums.

The administrative procedures promulgated by the Superintendent/President shall not prohibit the right of students to exercise free expression, including but not limited to the use of bulletin boards; the distribution of printed materials or petitions and, the wearing of buttons, badges, or other insignia.

Speech shall be prohibited that is defamatory, obscene, libelous or slanderous according to current legal standards, or which incites others as to create a clear and present danger of the commission of unlawful acts on District property or the violation of District policies or procedures, or the substantial disruption of the orderly operation of the District, (Educational Code Section 76120)

Nothing in this policy shall prohibit the regulation of hate violence directed at students in a manner that denies their full participation in the educational process (Education Code Section 66301 subdivision (e)), so long as the regulation conforms to the requirements of the First Amendment to the United States Constitution, and of Section 2 of Article 1 of the California Constitution. Students may be disciplined for harassment, threats, or intimidation unless such speech is constitutionally protected. (Education Code Section 66301 subdivision (d))

Also see AP 3900 Speech: Time, Place, and Manner; BP 4030 Academic Freedom; and BP/AP 6700 Civic Center and Other Facilities Use.

Adopted: 2/6/06
Revised: 9/10/07
Revised: 5/14/12
Revised: 3/13/17
Reviewed: 4/8/19
Revised: 5/11/20

BP 5010 Admissions and Concurrent Enrollment

References:

Education Code Sections 76000, 76001, 76002, and 76038; Labor Code Section 3077; 34 Codes of Federal Regulations Part 668.16 subdivision (p) (U.S. Department of Education regulations on the integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965, as amended);Accreditation Standard II.C.6

The District shall admit students who meet one of the following requirements and who are capable of profiting from the instruction offered:

- Any person over the age of eighteen (18) and possessing a high school diploma or its equivalent.

- Other persons who are over the age of eighteen (18) years and who, in the judgment of the Superintendent/President or his/her designee are capable of profiting from the instruction offered. Such persons shall be admitted as provisional students, and thereafter shall be required to comply with the District's rules and regulations regarding scholastic achievement and other standards to be met by provisional or probationary students as a condition to being readmitted in any succeeding semester.

- All sixteen (16) or seventeen (17)-year-old students who have not completed high school may be admitted by examination. Students successfully completing such examination will be awarded a "Certificate of Proficiency" by the State Board of Education that authorizes the student to enroll at Antelope Valley College with regular student status.

- Persons who are apprentices as defined in Labor Code Section 3077.

- Any student who is identified as highly gifted, whose age or class level is equal to grades middle or high school, is eligible to attend as a special part-time student for advanced scholastic or vocational courses.

- Any student who is identified as highly gifted, whose age or class level is equal to grades middle or high school, is eligible to attend as a special full-time student for advanced scholastic or vocational courses.

- Any student who is identified as highly gifted, who is enrolled in middle or high school, may attend summer session for advanced scholastic or vocational courses.

The District may deny or place conditions on a student's enrollment upon a finding by the Board of Trustees or designee that the applicant has been expelled within the preceding five (5) years or is undergoing expulsion procedures in another California community college district, or other academic institution and/or that the applicant continues to present a danger to the physical safety of the students and employees of the District.

The District shall in its discretion, or as otherwise federally mandated, evaluate the validity of a student's high school completion. The Superintendent/President shall establish procedures for evaluating the validity of a student's high school completion.

Evaluating the validity of a student's high school:

- Students shall be required to show proof of high school completion when such validity is deemed necessary by an employee of the District.

Admission – Any student whose age or class level is equal to grades middle or high school is eligible to attend as a special part-time student for advanced scholastic or vocational courses.

Any student whose age or class level is equal to grades middle or high school is eligible to attend as a special full-time student.

Any student enrolled in middle or high school may attend summer session.

The Superintendent/President shall establish procedures regarding ability to benefit and admission of high school and younger students.

Denial of Requests for Admission

- If the Board of Trustees denies a request for special full-time or part-time enrollment by a pupil who is identified as highly gifted, the B~~b~~oard of Trustees will record its findings and the reason for denying the request in writing within sixty (60) days.

- The written recommendation and denial shall be issued at the next regularly scheduled board meeting that occurs at least thirty (30) days after the pupil submits the request to the District.

The Superintendent/President shall establish procedures regarding evaluation of requests for special full-time or part-time enrollment by a pupil who is identified as highly gifted.

Claims for State Apportionment for Concurrent Enrollment
Claims for state apportionment submitted by the District based on enrollment of high school pupils shall satisfy the criteria established by statute and any applicable regulations of the

Board of Governors.

The Superintendent/President shall establish procedures regarding compliance with statutory and regulatory criteria for concurrent enrollment.

Also see AP 5010 Admissions, AP 5011 Admission and Concurrent Enrollment of High School and Other Young Students, AP 5012 International Students, AP 5013 Students in the Military, BP/AP 5020 Nonresident Tuition, BP/AP 5052 Open Enrollment, BP/AP 5055 Enrollment Priorities, and BP/AP 4226 Multiple and Overlapping Enrollments.

Adopted: 2/6/06
Revised: 9/14
Revised: 12/8/14
Revised: 10/14/19

BP 5015 Residence Determination

References:

Education Code Sections 68040, 68086, and 76140;
Title 5 Sections 54000~~,~~ et seq.

Except for students seeking to enroll exclusively in career development and college preparation courses, and other courses for which no credit is given, students shall be classified at the time of each application for admission or registration as a resident or nonresident student.

A resident is any person who has been a bona fide resident of California for at least one (1) year on the residence determination date. The residence determination date shall be the day immediately preceding the first (1st) day of a semester or summer session for which the student applies to attend.

Residence classification shall be made for each student at the time their application for admission is accepted or registration occurs and whenever a student has not been in attendance for more than one (1) semester. A student previously classified as a nonresident may be reclassified as of any residence determination date.

The Superintendent/President shall enact procedures to assure that residence determinations are made in accordance with Education Code and Title 5 regulations.

Also, see BP 5010 Admissions and Concurrent Enrollment, AP 5010 Admissions, AP 5011 Admission and Concurrent Enrollment of High School and Other Young Students, AP 5012 International Students, AP 5013 Students in the Military, AP 5015 Residence Determination, BP/AP 5020 Nonresident Tuition, and BP/AP 5052 Open Enrollment.

Adopted: 2/6/06
Revised: 1/13/20

BP 5020 Nonresident Tuition

References:

Education Code Sections 68050, 68051, 68130, 68130.5, 76140, and 76141;
Title 5 Section 54045.5

Nonresident students shall be charged nonresident tuition for all units enrolled, unless specifically required otherwise by law.

Not later than March 1 of each year, the Superintendent/President ~~or designee~~ shall bring to the Board of Trustees for approval an action to establish nonresident tuition for the following fiscal year. The fee shall be calculated in accordance with guidelines contained in applicable state regulations and/or the California Community College Attendance Accounting Manual.

The Superintendent/President shall establish procedures regarding collection, waiver, and refunds of nonresident tuition.

The Superintendent/President is authorized to implement a fee of *$13* to be charged only to persons who are both citizens and residents of foreign countries. The Board of Trustees finds and declares that this fee does not exceed the amount expended by the district for capital outlay in the preceding year divided by the total FTES in the preceding fiscal year.

Students who would otherwise be charged this fee shall be exempt if they demonstrate that they are a victim of persecution or discrimination in the country of which they are a citizen and resident, or if they demonstrate economic hardship.

Students shall be deemed victims of persecution or discrimination if they present evidence that they are citizens and residents of a foreign country and that they have been admitted to the United States under federal regulations permitting such persons to remain in the United States. Students shall be deemed to have demonstrated economic hardship if they present evidence that they are citizens and residents of a foreign country and that they are receiving Temporary Assistance for Needy Families Program, Supplemental Income/State Supplementary benefits, or general assistance.

Students who would otherwise be charged this fee shall be exempt if they demonstrate that they have a parent who has been deported or was permitted to depart voluntarily, they moved abroad from California as a result of that deportation or voluntary departure, and they attended a public or private secondary school in the state for three or more years. Upon enrollment, students who qualify for this exemption must be in their first academic year as a matriculated student in California public higher education, live in California, and file an affidavit with the District stating that they intend to establish residency in California

as soon as possible.

Also see BP 5010 Admissions and Concurrent Enrollment, AP 5010 Admissions, AP 5011 Admission and Concurrent Enrollment of High School and Other Young Students, AP 5012 International Students, AP 5013 Students in the Military, BP/AP 5015 Residence Determination, AP 5020 Nonresident Tuition, and BP/AP 5030 Fees.

Adopted: 2/6/06
Revised: 9/10/07
Revised: 1/13/20

BP 5030 Fees

Reference:

Education Code Sections 76300, et seq.

The Board authorizes the following fees. The Superintendent /President or designee shall establish procedures for the collection, deposit, waiver, refund, and accounting for fees as required by law. The procedures shall also assure those who are exempt from or for whom the fee is waived are properly enrolled and accounted for. Fee amounts shall be published in the college catalogs.

Enrollment fee:

Education Code Section 76300

Each student shall be charged a fee for enrolling in credit courses as required by law.

Auditing fees:

Education Code 76370

Persons auditing a course shall be charged a fee of not more than $15.00 per unit per semester. Students enrolled in classes to receive credit for 10 or more semester credit units shall not be charged this fee to audit three or fewer units per semester.

Health fee:

Education Code Section 76355

The Superintendent/President or designee shall present to the board for approval a fee to be charged to each full time and part time student for student health services.

Parking fee:

Education Code 76360

The Superintendent/President or designee shall present for board approval fees for parking for students and/or employees. A discount may be received if the parking fee is purchased with the ASO sticker each semester.

Instructional materials:

Education Code Section 76365; Title 5, Sections 59400, et seq.

Students may be required to provide required instructional and other materials for a credit or non-credit course, provided such materials are of continuing value to the student outside the classroom and provided that such materials are not solely or exclusively available from the District.

Physical education facilities:

Education Code 76395

Where the District incurs additional expenses because a physical education course is required to use non-district facilities, students enrolled in the course shall be charged a fee for participating in the course. Such fee shall not exceed the student's calculated share of the additional expenses incurred by the district.

Student Representation Fee:

Education Code 76060.5

Students will be charged a $1 fee per semester to be used to provide support for student governmental affairs representation. A student may refuse to pay the fee for religious, political, financial or moral reasons and shall submit such refusal in writing to the Student Development and College Activities Office.

Transcript Fees:

Education Code 76223

The District shall charge a reasonable amount for furnishing copies of any student record to a student or former student. The Superintendent/President is authorized to establish the fee, which shall not exceed the actual cost of furnishing copies of any student record. No charge shall be made for furnishing up to two transcripts of students' records, or for two verifications of various records. There shall be no charge for searching for or retrieving any student record.

International Students Application Processing Fee:

Education Code Section 76142

The District shall charge students who are both citizens and residents of a foreign country a fee to process his or her application for admission. The Superintendent/President may establish this processing fee and regulations for determining economic hardship. The fee shall not exceed the lesser of 1) the actual cost of processing an application and other documentation required by the U.S. government; or 2) one hundred dollars ($100), which shall be deducted from the tuition fee at the time of enrollment.

See Administrative Procedures #5030 and 5031

Adopted: 2/6/06

BP 5035 Withholding of Student Records

Reference:
Title 5, Section 59410

Students or former students who have been provided with written notice that they have failed to pay a proper financial obligation shall have diplomas and registration privileges withheld. However, AVC will not withhold a college transcript on the grounds that the student owes a debt to the college as per the Educational Debt Collections Practice Act (Effective January 1, 2020).

See Administrative Procedure 5035.

Adopted: 2/6/06
Revised: 2/8/21
Revised: 11/14/2022

BP 5040 Student Records, Directory Information, and Privacy

Reference:

Education Code Sections 76200, et seq.; Title 5, Sections 54600, et seq.
20 U.S. Code Section 1232g(j);
ACCJC Accreditation Standard II.C.8

The Superintendent/Presidentshall assure that student records are maintained in compliance with applicable federal and state laws relating to the privacy of student records.

The Superintendent/President may direct the implementation of appropriate safeguards to assure that student records cannot be accessed or modified by any person not authorized to do so.

Any currently enrolled or former student of the District has a right of access to any and all student records relating to him or her maintained by the district.

No District representative shall release the contents of a student record to any member of the public without the prior written consent of the student, other than directory information as defined in this policy and information sought pursuant to a court order or lawfully issued subpoena, or as otherwise authorized by applicable federal and state laws.

Students shall be notified of their rights with respect to student records, including the definition of directory information contained here, and that they may limit the information.

Directory information shall include:

- Student participation in officially recognized activities and sports including weight, height and high school of graduation of athletic team members.
- Degrees and awards received by students, including honors, scholarship awards, athletic awards and Dean's List recognition.

See Administrative Procedures #5040 and 5045

Adopted: 2/6/06
Revised: 5/12/08
Revised: 10/9/17

BP 5050 Student Success and Support Program

References:

Education Code Sections 78210~~,~~ et seq.;
Title 5~~,~~ Sections 55500 et seq.;
Accreditation Standard II.C.2

The District shall provide Student Success and Support Program services to students for the purpose of furthering equality of educational opportunity and academic success. The purpose of the Student Success and Support Program services are to bring the student and the District into agreement regarding the student's educational goal through the District's established programs, policies and requirements.

The Superintendent/President shall establish procedures to assure implementation of Student Success and Support Program services that comply with the Title 5 regulations.

Also see AP 5050 Student Success and Support Program.

Adopted: 2/6/06
Revised: 5/12/08
Revised: 7/12/10
Revised: 9/14
Revised: 12/9/19

BP 5052 Open Enrollment

Reference:

Title 5 Section 51006

All courses, course sections, and classes of the District shall be open for enrollment to any person who has been admitted to the college. Enrollment may be subject to any priority system that has been established. Enrollment may also be limited to students meeting properly validated prerequisites and co-requisites, or due to other practical considerations such as exemptions set out in statute or regulation.

The Superintendent/President shall assure that this policy is published in the catalog(s) and schedule(s) of classes.

Also see AP 5052 Open Enrollment and BP/AP 5055 Enrollment Priorities.

Adopted: 2/6/06
Revised: 12/9/19

BP 5055 Enrollment Priorities

Reference:

Title 5, Sections 51006, 58106, 58108

All courses of the District shall be open to enrollment, subject to a priority system that may be established. Enrollment also may be limited to students meeting properly validated prerequisites and co-requisites, or due to other, practical considerations.

The Superintendent/President shall establish procedures defining enrollment priorities, limitations, and processes for student challenge, which shall comply with Title 5 regulations.

See Administrative Procedure #5055

Adopted: 2/6/06

BP 5060 Enrollment Unit Load

References:

Title 5~~,~~ Sections 51006, 58106, and 58108

The ~~college~~ District considers twelve (12) or more units full-time status and anything less than twelve (12) units part-time status.

The District considers six (6) or more units to be full-time status and anything less than six (6) units part-time status during the intersession and summer terms.

A student must obtain written approval of the Dean of Counseling and Matriculation to enroll in more than nineteen (19) units per semester.

Financial Aid considers twelve (12) or more units full-time status and anything less than twelve (12) units part-time status for all enrollment periods regardless of length.

Also see AP 5060 Enrollment Unit Load.

Adopted: 2/6/06
Revised: 4/12/10
Revised: 12/9/19

BP 5110 Counseling

Reference:

Education Code Section 72620; Title 5, Section 51018
ACCJC Accreditation Standard II.C.5

Counseling services are an essential part of the educational mission of the District. The Superintendent/President shall assure the provision of counseling services including academic, career, and personal counseling that is related to the student's education.

Pre-enrollment counseling (initial education plan) shall be required to satisfy matriculation components as outlined in AP 5050.

Counseling shall be required for all first time students enrolled for more than six units, students enrolled provisionally, and students on academic or progress probation.

See Administrative Procedure #5110

Adopted: 2/6/06
Revised: 4/12/10
Revised 12/11/17

BP 5120 Transfer Center

Reference:

Title 5, Section 51027; Education Code section 66720-66744

The District incorporates as part of its mission the transfer of its students to baccalaureate level institutions. The District further recognizes that students who have historically been underrepresented in transfer to baccalaureate level institutions are a special responsibility.

The Superintendent/President shall assure that a transfer center plan is implemented that identifies appropriate target student populations, is designed to increase the transfer applications of underrepresented students and complies with law and regulations.

See Administrative Procedure #5120

Adopted: 2/6/06
Revised: 9/10/07

BP 5130 Financial Aid

References:

Education Code Sections 66021.6 and 76300;
20 U.S. Code Sections 1070 et seq.;
34 Code of Federal Regulations Part 668 (U.S. Department of Education regulations on the Integrity of Federal Student Financial Aid Programs under Title IV of the Higher Education Act of 1965 as amended);
Accreditation Standard III.D.15

A program of financial aid to students will be provided, which may include but is not limited to, scholarships, grants, loans, and work and employment programs.

All financial aid programs will adhere to guidelines, procedures, and standards issued by the funding agency, and will incorporate federal, state, and other applicable regulatory requirements.

The Superintendent/President shall establish, publicize, and apply satisfactory academic progress standards for participants in Title IV student aid programs.

Misrepresentation

Consistent with the applicable federal regulations for federal financial aid, the District shall not engage in "substantial misrepresentation" of 1) the nature of its educational program, 2) the nature of its financial charges, or 3) the employability of its graduates.

The Superintendent/President shall establish procedures for regularly reviewing the District's website and other informational materials for accuracy and completeness and for training District employees and vendors providing educational programs, marketing, advertising, recruiting, or admissions services concerning the District's educational programs, financial charges, and employment of graduates to assure compliance with this policy.

The Superintendent/President shall establish procedures wherein the District shall periodically monitor employees' and vendors' communications with prospective students and members of the public and take corrective action where needed.

This policy does not create a private cause of action against the District or any of its representatives or service providers. The District and its governing board do not waive any defenses or governmental immunities by enacting this policy.

Scholarship Displacement

The District shall not engage in scholarship displacement. The Superintendent/President shall establish procedures that provide that the District shall not reduce the institutional gift aid offer of a student who is eligible to receive a federal Pell Grant award or financial assistance under the California Dream Act for an academic year as a result of private

scholarship awards designated for the student unless the student's gift aid exceeds the student's annual cost of attendance.

Also see AP 5130 Financial Aid.

Adopted: 2/6/06
Revised: 11/12/12
Revised: 1/13/20
Revised: 10/6/23

BP 5140 Disabled Students Programs and Services

References:

Education Code Section 67310 and 84850;
Title 5 Sections 56000 et seq.

Students with disabilities shall be reasonably accommodated pursuant to federal and state requirements in all applicable programs in the District.

The Office for Students with Disabilities (OSD) program shall be the primary provider for support programs and services that facilitate equal educational opportunities for disabled students who can profit from instruction as required by federal and state laws.

OSD services shall be available to students with verified disabilities. The services to be provided include, but are not limited to, reasonable accommodations, academic adjustments, technology accessibility, auxiliary aids accessible facilities, equipment, instructional programs, rehabilitation counseling and academic counseling.

No student with disabilities is required to participate in the OSD program.

The District shall respond in a timely manner to accommodation requests involving academic adjustments. The Superintendent/President shall establish a procedure to implement this policy which, at a minimum, provides for an individualized review of each such request, and permits interim decisions on such requests pending final resolution by the appropriate administrator or designee.

The Superintendent/President shall assure that the OSD program conforms to all requirements established by the relevant law and regulations.

Also see BP/AP 3410 Nondiscrimination, BP/AP 3440 Service Animals, and AP 5140 Disabled Student Programs and Services.

Adopted: 2/6/06
Revised: 11/12/12
Reviewed: 3/17/17
Revised: 12/11/20

BP 5150 Extended Opportunity Programs and Services

References:

Education Code Sections 69640–69656;
Title 5 Sections 56200 et seq.

Support services and programs that are in addition to the traditional student services programs shall be provided in order to assist students who have language, social, and economic disadvantages to succeed academically in the District.

The Extended Opportunity Programs and Services (EOPS) program is established to provide services that may include, but are not limited to, outreach, recruitment, orientation, assessment, tutorial services, counseling and advising, and financial aid.

The Superintendent/President shall assure that the EOPS program conforms to all requirements established by the relevant law and regulations.

Also see AP 5150 Extended Opportunity Programs and Services (EOPS).

Adopted: 2/6/06
Revised: 4/13//20

BP 5200 Student Health Services

Reference:

Education Code Section 76401

Student health services shall be provided in order to contribute to the education aims of students by promoting physical and emotional well-being through health-oriented programs and services.

The Board of Trustees may implement a Student Health Fee to support the Student Health Services Program.

see BP/AP 5030 Fees and AP 5200 Student Health Services.

Adopted: 2/6/06
Revised: 4/13/20

BP 5205 Student Accident Insurance

Reference:
Education Code Section 72506

The District shall assure that students are covered by accident insurance in those instances required by law or contract.

The District may make available to students additional personal health insurance which students can purchase. The District does not endorse or recommend any company or policy.

Adopted: 2/6/06
Revised: 4/13/20

BP 5210 Communicable Disease

Reference:

Education Code Section 76403

The Superintendent/President shall establish procedures necessary to assure cooperation with local public health officials in creating measures necessary for the prevention and control of communicable diseases in students.

Also see AP 5210 Communicable Disease.

Adopted: 2/6/06
Revised: 4/13/20

BP 5220 Shower Facilities for Homeless Students

References:

Education Code Section 76011

The Superintendent/President or designee shall establish procedures necessary to make on-campus shower facilities available to any homeless student who is enrolled in coursework, has paid enrollment fees, and is in good standing with the district and whose enrollment fees have been paid.

New 5/8/17

BP 5300 Student Equity

References:

Education Code Sections 66030, 66250 et seq., and 72010 et seq.;
Title 5 Section 54220

The Board of Trustees is committed to assuring student equity in educational programs and college services. The Superintendent/President shall establish and implement a student equity plan that meets the Title 5 standards for such a plan.

Also see AP 5300 Student Equity.

Adopted: 2/6/06
Revised: 4/13/20

BP 5400 Associated Student Organization

Reference:
Education Code Section 76060

The students of the District are authorized to organize a student body association. The Board of Trustees hereby recognizes that association as the Associated Student Organization (ASO) of the District.

The Associated Students Organization is recognized as the official voice for the students in District decision-making processes. It may conduct other activities as approved by the Superintendent/President.

The ASO and student clubs shall conduct themselves in accordance with state laws and regulations, board policy and administrative procedures established by the Board of Trustees and the Superintendent/President. Student organization and club~~s~~ activities shall not conflict with the authority or responsibility of the Board of Trustees or its officers or employees.

The ASO and student clubs shall be granted the use of District premises subject to administrative procedures or regulations as may be established by the Superintendent/President. Such use shall not be construed as transferring ownership or control of the premises (Educationa~~l~~ Code Section 76060).

Also see BP/AP 2510 Participation in Local Decision- Making, AP 5400 Associated Student Organization and Student Clubs, BP/AP 5410 Associated Student Organization Elections, and BP/AP 5420 Associated Student Organization Finance.

Adopted: 2/6/06
Revised: 12/11/20

BP 5410 Associated Student Organization Elections

Reference:
Education Code Section 76061

The Associated Student Organization shall conduct annual elections to elect officers. The elections shall be conducted in accordance with procedures established by the Superintendent/President.

Any student elected, as an officer in the Associated Student Organization and student club, shall meet both of the following requirements:

- The student shall be enrolled in the District at the time of election and throughout his/ ~~or~~ her term of office, with a minimum of five (5) semester units.

- The student shall meet and maintain the minimum standard of scholarship (see BP 4220 Standards of Scholarship and related administrative procedures).

Also see BP/AP 2015 Student Trustee, BP/AP 2105 Election of Student Trustee, BP/AP 5400 Associated Student Organization and Student Clubs, AP 5410 Associated Student Organization Elections, and BP/AP 5420 Associated Student Organization Finance.

Adopted: 2/6/06
Revised: 4/13/20

BP 5420 Associated Students Finance

Reference:

Education Code Sections 76063–76065

The Associated Student Organization and student club funds shall be deposited with and disbursed by the District through the Dean of Student Services or designee.

The funds shall be deposited, loaned or invested in one or more of the ways authorized by law.

All funds shall be expended according to procedures established by the Associated Students Organization and/or student club, subject to the approval of each of the following three persons, which shall be obtained each time before any funds may be expended:

- the Superintendent /President or designee;
- the employee who is the designated advisor of the Associated Student Organization or designee and the particular student club, if using club funds; and
- a representative of the student club and/or Associated Students Organization.

The funds of the Associated Student Organization and student clubs shall be subject to an annual audit.

See Administrative Procedure #5420

Adopted: 2/6/06

BP 5500 Standards of Conduct

Reference:

Education Code Sections 66300, 66301; Accreditation Standard II.C.8. and 10A

Section 1 – General Provisions

.1 The Board of Trustees of the Antelope Valley Community College District expects students to conduct themselves in a manner consistent with the educational purposes of the college. Student conduct must reflect the standards of behavior as defined in pursuant sections (Education Code Section 76030 - 76037). Student conduct should reflect consideration for the rights of others and students are expected to cooperate with all members of the college community.

.2 Students shall also respect federal and state laws, board regulations, college regulations, and applicable provisions of civil law.

.3 College personnel are responsible for communicating appropriate student conduct and for reporting violations thereof. The vice president of student services or designee has the right to administer suitable and proper corrective measures for misconduct.

.4 Nothing in this article shall be construed to limit the authority of the board of trustees to adopt additional rules and regulations as long as they are not inconsistent with the requirements of this article. These additional rules may, among other things, prescribe specific rules and regulations governing student behavior, along with applicable penalties for violations of the adopted rules and regulations, and may clarify appropriate due process procedures, including procedure by which students shall be informed of these rules and regulations. (CA Ed. Code 76037).

.5 A student may be removed, suspended, or expelled only for conduct associated with college activities or college attendance. Students may be disciplined for harassment, threats, or intimidation, unless constitutionally protected. Violation of any law, ordinance, regulation or rule pertaining to the parking of vehicles shall not be cause for suspension or expulsion of a student from the college. (CA Ed. Code 76034, 66301 (d).

.6 A student may be suspended by the board of trustees, the college president, or vice president of student services for *good cause,* or when the presence of the student causes a continuing danger to the physical safety of the student or others. The board of trustees may exclude students of filthy or vicious habits, or students suffering from contagious or infectious diseases, or any student whose physical or mental disability is such as to cause his or her attendance to be inimical to the welfare of other students. (CA Ed. Code Sections 76020 and 76030).

.7 "Good Cause" may be established by using appropriate investigation standards, such as:

a) Interview of witnesses.

b) Review of a Campus Security Report(s), if applicable.

c) Review of written statements, if applicable.

d) Review of pertinent documents, if applicable.

e) Review of any other evidence, if applicable.

Section 2 – Guidelines for Student Conduct

Good cause includes, but is not limited to, the following offenses:

.1 Academic Violations

a) Violation of the Academic Honesty Policy: Dishonesty, including but not limited to, cheating, or plagiarism. Plagiarism – from the Latin word for "kidnap" – involves using another's work without giving proper credit, whether done accidentally or on purpose. This includes not only words and ideas, but also graphs, artwork, music, maps, statistics, diagrams, scientific data, software, films, videos and the like. Plagiarism is plagiarism whether the material is from published or unpublished sources. It does not matter whether ideas are stolen, bought, downloaded from the Internet, or written for the student by someone else – it is still plagiarism. Even if only bits and pieces of other sources are used, or outside sources reworded, they must still be cited. To avoid problems, students should cite any source(s) and check with the instructor before submitting an assignment or project. ***Students are always responsible for any plagiarism in their work.***

An instructor who determines that a student has cheated or plagiarized has the right to give an "F" grade, or numerical equivalent, for the assignment or examination.

Antelope Valley College reserves the right to utilize electronic means to investigate possible academic violations. Enrollment in any class implies student agreement and consent that all assignments are subject to submission for textual similarity review to an electronic database. *(Board Approved 6/21/04)*

b) Violation of class assignments, examination rules, e.g., communicating or transferring information to another student, using any materials such as books, notes, etc., other than those expressly allowed for the exam, looking at another student's exam, etc.

c) Unauthorized preparation, giving, selling, transfer, distribution, or publication, for any commercial purpose, of any contemporaneous recording of an academic presentation in a classroom or equivalent site of instruction, including but not limited to, handwritten or typewritten class notes, except as permitted by any college policy or administrative procedure.

.2 General College Violations

a) Forgery, alteration, or misuse of college documents, records, identification, or knowingly furnishing false information to the college. Abuse of and/or tampering with the registration process.

b) Obstruction or disruption of teaching, research, administration, disciplinary procedures, or other college activities, including, but not limited to, its community service functions, or of other authorized activities on college premises.

c) Engaging in expression which is obscene, libelous or slanderous, or which so incites students as to create a clear and present danger of the commission of unlawful acts on college premises, or the violation of lawful college administrative procedures, or the substantial disruption or the orderly operation of the college.

d) Unauthorized entry into or use of college supplies, equipment, and or facilities.

e) Violation of college policies or of campus regulations including, but not limited to, campus regulations concerning student organizations, the use of college facilities, or the time, place, and manner of public expression, library procedures, college bills, debts, and parking.

(f) Theft of, or damage to, property of the college, or of a member of the college community, or campus visitor, or knowingly receiving stolen college or private property on campus.

(g) Use of personal portable sound amplification equipment and other electronic devices (radios, cell telephones, pagers, and tape players, etc.) in a manner that disturbs the privacy of other individuals and/or the programs of the college.

.3 Computer Usage Violations

Theft or abuse of computer resources, including, but not limited to:

a) Unauthorized access to a file, database, or computer to use, read, or change the contents, or for any other purpose.

b) Unauthorized transfer of a file.

c) Unauthorized use of another person's identification and password.

d) Use of computing facilities to interfere with the work of another student, faculty member, or college official.

e) Use of computing facilities to send obscene or abusive messages, or to defame or intentionally harm other persons.

f) Use of computing facilities to interfere with normal operation of the college computing system.

g) Use of computing facilities for student's personal financial gain or for solicitation of any kind.

h) Violation of applicable AVC "Computer Use Guidelines."

.4 Behavior Violations

a) Disorderly, lewd, indecent or obscene conduct, or habitual profanity or vulgarity on college-owned or controlled property, or at college-sponsored or supervised functions.

b) Assault, battery, or verbal abuse or conduct that threatens or endangers the health or safety of a student, college personnel, or campus visitor.

c) Hazing or any act that injures, degrades, or disgraces or tends to injure, degrade, or disgrace any student, college personnel, or campus visitor.

d) Gambling on District property.

e) Failure to identify oneself when on college property or at a college-sponsored or supervised event, upon the request of a college official acting in the performance of their duties.

f) Actions, which result in injury or death of a student, college personnel, or campus visitor, or damage to property owned by the district.

g) Failure to comply with directions of college officials acting in the performance of their duties, open and persistent defiance of the authority of college personnel, or persistent, serious misconduct where other means of correction have failed to bring about proper conduct.

h) Unauthorized entry on the campus or into the facility to which access has been denied after suspension or dismissal, during the suspension period. (CA Penal Code 626.2).

i) Committing or attempting to commit extortion.

j) Engaging in harassing or discriminatory behavior based on disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation or any other status protected by law.

k) Engaging in intimidating conduct or bullying against another student through words or actions, including direct physical contact; verbal assaults, such as teasing or name-calling; social isolation or manipulation; and cyberbullying.

l) Sexual assault or sexual exploitation regardless of the victim's affiliation with the district.

.5 Substance Violations

a) Unlawful possession, use, sale, offer to sell, or furnishing, or being under the influence of, any controlled substance listed in Chapter 2 (commencing with Section 11053) of Division 10 of the California Health and Safety Code, an alcoholic beverage, or an intoxicant of any kind; or unlawful possession of, or offering, arranging, or negotiating the sale of any drug paraphernalia, as defined in California Health and Safety Code Section 11014.5, on college property, or at any college sponsored event.

b) Willful or persistent smoking, including the use of electronic cigarettes (vapers) in any area where smoking has been prohibited by law or by regulation of the governing board.

.6 Weapons Violations

a) Possession or use of any dangerous or deadly weapon or instrument on any college-owned or controlled property or at any college-sponsored or supervised function. For purposes of these guidelines, a "dangerous or deadly weapon or instrument" includes, but is not limited to any: firearm, shotgun, rifle pistol, air rifle, BB gun, folding pocket knife with a blade longer than two and one-half inches, dirk, dagger, locking blade knife, switch blade knife; brass knuckles, blackjack, billy club, nun-chuck sticks, sling shot, tazer, stun gun, shocker, razor blade, acid, metal pipe, sharpened wood or metal trap, or any other weapon, instrument or object designed or modified to inflict physical harm on another person or animal. In the interest of protecting students, college personnel, or campus visitors, the college retains discretion to determine what constitutes a dangerous or deadly weapon or instrument. Certain exceptions can be made for classes or college-sponsored events. Prior written authorization from the vice president of student services, or designee, must be obtained before these items can be brought on-campus or to a college-sponsored event.

b) Possession or use of replica or imitation weapons on any college-owned or controlled property or at any college-sponsored or supervised function.

c) Possession or use of firecrackers, fireworks, pyrotechnics, or any other explosive device on any college-owned or controlled property or at any college-sponsored or supervised function.

Students who engage in any of the above are subject to the measures outlined in Administrative Procedure 5520.

See Administrative Procedure #5520

Adopted: 2/6/06
Revised: 9/10/07
Revised: 9/12/16

BP 5570 Student Credit Card Solicitations

Reference:

Title 5 Section 54400; Civil Code Section 1747.02(m); Education Code Section 99030.

The Superintendent/President shall establish procedures that regulate the solicitation of student credit cards on campus.

See Administrative Procedure #5570

Adopted: 2/6/06

BP 5700 Intercollegiate Athletics

Reference:

Education Code Sections 66271.6, 66271.8, 67360 et seq., and 78223; 20 U.S. Code Sections 1681 et seq.; ACCJC Accreditation Standard II.C.4; California Community College Athletic Association (CCCAA) Constitution and CCCAA Bylaws

The District shall maintain an organized program for students in intercollegiate athletics. The District will offer opportunities for participation in athletics equally to male, female, and transgender students consistent with state and federal law, and California Community College Athletic Association standards.

The Superintendent/President shall assure that the athletics program complies with state law, the California Community Colleges Athletic Association Constitution Bylaws, and Sports Championship Handbooks, and appropriate Conference Constitution regarding student athlete participation.

See Administrative Procedure 5700 Intercollegiate Athletics.

Adopted: 2/6/06
Revised: 9/10/07
Revised: 3/8/21
Revised: 7/10/23

BP 5800 Prevention of Identity Theft in Student Financial Transactions

Reference:

U.S. Code Section 1681m subdivision (e), Fair and Accurate Credit Transactions Act, (FACT Act or FACTA)

The District is required to provide for the identification, detection, and response to patterns, practices, or specific activities ("Red Flags") that could indicate identity theft of students when the District serves as a creditor in relation to its students. When applicable, the Superintendent/President is directed to develop procedures to implement an Identity Theft Prevention Program (ITPP) to control reasonably foreseeable risks to students from identity theft.

Also see AP 5800 Prevention of Identity Theft in Student Financial Transactions.

Adopted: 11/14/11
Revised: 12/11/20

BP 6100 Delegation of Authority, Business and Fiscal Affairs

References:

Education Code Sections 70902 subdivision (d), 81655, and 81656

The Board of Trustees delegates to the Superintendent/President the authority to supervise the general business procedures of the District to assure the proper administration of property and contracts; the budget, audit and accounting of funds; the acquisition of supplies, equipment and property; and the protection of assets and persons. All transactions shall comply with applicable laws and regulations, and with the California Community Colleges Budget and Accounting Manual.

No contract shall constitute an enforceable obligation against the District until it has been approved or ratified by the Board of Trustees. (See BP 6340 Bids and Contracts).

The Superintendent/President shall make appropriate periodic reports to the Board of Trustees and shall keep the Board of Trustees fully advised regarding the financial status of the District.

Also see AP 6100 Delegation of Authority, Business and Fiscal Affairs.

Adopted: 5/8/06
Revised: 5/11/20

BP 6150 Designation of Authorized Signatures

References:

Education Code Sections 85232 and 85233

Authority to sign orders and other transactions on behalf of the Board of Trustees is delegated to the Superintendent/President and other officers appointed by the Superintendent/President.

See AP 6150 Designation of Authorized Signatures.

Adopted: 5/8/06
Revised: 1/13/20
Reviewed: 3/14/22

BP 6200 Budget Preparation

References:

Education Code Section 70902 subdivision (b)(5); Title 5 Sections 58300 et seq.
Accreditation Standard III.D

Each year, the Superintendent/President shall present to the Board of Trustees a budget, developed with the Chief Business Officer, and prepared in accordance with Title 5 and the California Community Colleges Budget and Accounting Manual. The schedule for presentation and review of budget proposals shall comply with state law and regulations, and provide adequate time for Board study.

Budget development shall meet the following criteria:

- The annual budget shall support the District's master and educational plans.
- Assumptions upon which the budget is based are presented to the Board of Trustees for review.
- A schedule is provided to the Board of Trustees each year that includes dates for presentation of the tentative budget, required public hearing(s), Board study session(s), and approval of the final budget. At the public hearings, interested persons may appear and address the Board of Trustees regarding the proposed budget or any item in the proposed budget.
- The Board of Trustees adopted minimum requirement is 17% of the prior fiscal year actual unrestricted general fund expenditures for the unrestricted reserve.
- Changes in the assumptions upon which the budget is based shall be reported to the Board of Trustees in a timely manner.
- Budget projections address long-term goals and commitments.

Also see AP 6200 Budget Preparation, BP/AP 3250 Budget Management, BP/AP 6300 Fiscal Management, AP 6305 Reserves, AP 6310 Accounting, and AP 6315 Warrants.

Adopted: 5/8/06
Revised: 12/14/15
Revised: 5/11/20
Revised: 2/13/23

BP 6250 Budget Management

References:

Title 5 Sections 58307 and 58308

The budget shall be managed in accordance with Title 5 and the California Community Colleges Budget and Accounting Manual. Budget revisions shall be made only in accordance with these policies and as provided by law.

The District is committed to addressing its long-term liabilities. Revenues accruing to the District in excess of amounts budgeted shall be added to a pension stabilization trust fund, so long as it can be supported in the multi-year budget projections and within the Board approved of 17% reserve level. The intent of the pension stabilization fund is to ensure that the District can meet its current and future employer-funded pension obligations. Additionally, half of all new one-time funding will be directed to the pension stabilization fund until that fund is self-supporting. Any additional revenues above expenditures shall be added to the District's reserves for contingency. These funds are available for appropriation only upon a resolution of the Board of Trustees that sets forth the need according to major budget classifications in accordance with applicable law.

Board approval is required for changes between major expenditure classifications. Transfers from the reserve for contingencies to any expenditure classification must be approved by a two-thirds (2/3) vote of the members of the Board of Trustees. Transfers between expenditure classifications must be approved by a majority vote of the members of the Board of Trustees.

Also see BP/AP 6200 Budget Preparation, AP 6250 Budget Management, BP/AP 6300 Fiscal Management, AP 6305 Reserves, AP 6310 Accounting, and AP 6315 Warrants.

Adopted: 5/8/06
Revised: 12/14/15
Revised: 5/13/19
Revised: 11/9/20
Revised: 3/13/23

BP 6300 Fiscal Management

References:

Education Code Section 84040 (c);
Title 5 Section 58311;
ACCJC Accreditation Standard III.D
2 Code of Federal Regulations Parts 200.302 subdivision (b)(6)-(7), 200.305, and 200.400 et seq.

The Superintendent/President shall establish procedures to assure that the District's fiscal management is in accordance with the principles contained in Title 5 Section 58311, including:

- Adequate internal controls exist.
- Fiscal objectives, procedures, and constraints are communicated to the Board of Trustees and employees.
- Adjustments to the budget are made in a timely manner, when necessary.
- The management information system provides timely, accurate, and reliable fiscal information.
- Responsibility and accountability for fiscal management are clearly delineated.

The Superintendent/President shall also establish procedures that satisfy the U.S. Education Department General Administrative Regulations (EDGAR) Second Edition for any federal funds received by the District.

The books and records of the District shall be maintained pursuant to the California Community Colleges Budget and Accounting Manual.

As required by law, the Board of Trustees shall be presented with a quarterly report showing the financial and budgetary conditions of the District.

As required by the California Community Colleges Budget and Accounting Manual, expenditures shall be recognized in the accounting period in which the liability is incurred, and shall be limited to the amount budgeted for each major classification of accounts and to the total amount of the budget for each fund.

Also see BP/AP 6200 Budget Preparation, BP/AP 6250 Budget Management, AP 6300 Fiscal Management, AP 6305 Reserves, AP 6310 Accounting, and AP 6315 Warrants.

Adopted: 5/8/06
Revised: 12/14/15
Revised: 6/8/20
Revised: 3/13/23

BP 6307 Debt Issuance and Management

Reference:
Government Code Section 8855

The Superintendent/ President shall establish procedures to ensure District is professionally managing its debt and fulfills its annual debt issuance reporting requirements to the California Debt and Investment Advisory Commission.

Procedures shall include:

- The purpose for which the debt proceeds may be used.
- The types of debt that may be issued.
- The relationship of the debt to, and integration with, the District's capital improvement program or budget, if applicable.
- Policy goals related to the District's planning goals and objectives.
- The internal control procedures that the District has implemented, or will implement, to ensure that the proceeds of the proposed debt issuance will be directed to the intended use.

Adopted: 8/14/17
Revised: 4/13/20

BP 6320 Investments

References:

Government Code Sections 53600 et seq.

The Superintendent/President is responsible for ensuring that the funds of the District are invested that are not required for the immediate needs of the District. Investments shall be in accordance with law, including California Government Code Sections 53600~~,~~ et seq.

Investments shall be made based on the following criteria:

- The preservation of principal shall be of primary importance.
- The investment program must remain sufficiently flexible to permit the District to meet all operating requirements.
- Transactions should be avoided that might impair public confidence.

Also, see AP 6320 Investments.

Reviewed: 1/10/22
Adopted: 5/8/06
Reviewed: 8/13/18
Revised: 1/13/20
Reviewed: 3/14/22

BP 6330 Purchasing

References:

Education Code Section 81656;
Public Contract Code Sections 20650 and 20651

The Superintendent/President is delegated the authority to purchase supplies, materials, apparatus, equipment and services as necessary to the efficient operation of the District. No such purchase shall exceed the amounts specified by Public Contract Code Section 20651 as amended from time to time.

All such transactions shall be reviewed by the Board of Trustees every sixty (60) days.

All purchase orders shall be approved or ratified by the Board of Trustees and recorded in the official Board minutes. Purchases which meet one or more of the following criteria may be submitted for ratification.

a. Items which, in the judgment of the Chief Business Official, are required for immediate use in the instructional program or for the immediate repair of buildings or equipment.
b. Items on a standard list for which bids/quotations have been secured and approved by the Board of Trustees.
c. Equipment items which have prior approval of the Board of Trustees.
d. Expenditures from the Revolving Cash Fund.
e. Purchase orders of $25,000 or less.

Also see AP 6330 Purchasing.

Adopted: 5/8/06
Revised: 11/13/06
Revised: 8/13/18
Revised: 3/14/22

BP 6340 Bids and Contracts

References:

Education Code Sections 81641, et seq.; Public Contracts Code Sections 20650, et seq.;
Government Code Section 53060;
Accreditation Standard III.D.16;
2 Code of Federal Regulations Part 200.318

The Board of Trustees delegates to the Superintendent/President the authority to enter into contracts on behalf of the District and to establish administrative procedures for contract awards and management, subject to the following:

- Contracts are not enforceable obligations until they are ratified by the Board of Trustees.

- Contracts for work to be done, services to be performed or for goods, equipment, or supplies to be furnished or sold to the District that exceed the amounts specified in Public Contracts Code Section 20651 shall require prior approval by the Board of Trustees.

- When bids are required according to Public Contracts Code Section 20651, the Board of Trustees shall award each such contract to the lowest responsible bidder who meets the specifications published by the District and who shall give such security as the Board of Trustees requires, or reject all bids.

- When the District determines that, according to Public Contract Code Section 20651.7, it can expect long-term savings through the use of life-cycle cost methodology, the use of more sustainable goods and materials, and reduced administrative costs, the District may select and award the contract based on best value in accordance with AP 6340 Bids and Contracts. The bidder shall give such security as the Board requires and may reject all bids.

If the Superintendent/President concludes that the best interests of the District will be served by pre-qualification of bidders in accordance with Public Contracts Code Section 20651.5, pre-qualification may be conducted in accordance with procedures that provide for a uniform system of rating on the basis of a questionnaire and financial statements.

If the best interests of the District will be served by a contract, lease, requisition or purchase order though any other public corporation or agency in accordance with Public Contracts Code Section 20652, the Superintendent/President is authorized to proceed with a contract.

Also see AP 6340 Bids and Contracts.

Adopted: 5/8/06
Revised: 6/8/20

BP 6380 Vendors

References:

Education Code Section 81656;
Public Contracts Code Section 20650;
Federal Register 2 OMB CFR Section 200.318

Authority

The Superintendent/ President shall establish administrative procedures that affirm the District's commitment to increase the opportunities for and participation of small and disadvantaged businesses, including veteran, women-owned and minority-owned businesses, in its procurement of goods and services.

Additionally, all foods sold or catered on District property potentially expose Antelope Valley College to a variety of general liability issues. Because of concerns that some staff members, students, or other members of the public could potentially become ill due to unsafe food handling, the following guidelines should be followed:

1. Under no circumstance can food prepared in a private residence be sold on campus.

2. Non-campus sources of food services (restaurants and caterers) must be in possession of all currently required health and food handler permits and must provide a one million dollar ($1,000,000) certificate of insurance naming the Antelope Valley Community College District as additional insured.

3. Food provided for sale by District organizations (e.g. clubs, athletic teams, etc.) requires either, 1) a Health Permit Waiver for the event, which must be obtained through the County of Los Angeles Health Care Agency; or 2) the sign-off by the District's contract food service provider.

Adopted: 12/10/18
Revised: 4/13/20

BP 6400 Audits

References:

Education Code Section 84040 subdivision (b);
Title 5 Section 59012;
Accreditation Standard III.D.7

There shall be an annual outside audit of all funds, books, and accounts of the District in accordance with the regulations of Title 5. The Superintendent/President shall assure that an annual outside audit is completed. The Superintendent/President shall recommend a certified public accountancy firm to the Board of Trustees with which to contract for the annual audit.

Adopted: 5/8/06
Revised: 12/14/15
Revised: 1/8/18
Revised: 11/9/20

BP 6450 Wireless or Cellular Telephone Use

References:

Vehicle Code Sections 12810.3, 23123, and 23124;
26 U.S. Code Sections 274 subdivision (d)(4) and 280F subdivision (d)(4)

The Superintendent/President shall determine if it is in the best interests of the District to provide a cellular or wireless equipment at District expense.

Cellular equipment provided by the District for compensatory reasons are classified by the Internal Revenue Service as a fringe benefit, the value of which must be included in an employee's gross income.

The value of cellular equipment provided by the District primarily for non-compensatory business purposes is excludable from an employee's income. Record keeping of business and personal use of District-issued cellular telephones shall not generally be required when the telephones are issued for non-compensatory business reasons.

Motor vehicle drivers may not use wireless or cellular equipment while operating their vehicles without a hands-free listening device and shall comply with all requirements of California law regarding the use of wireless or cellular equipment in vehicles.

There shall be no expectation of privacy in the use of a District-issued cellular equipment.

Adopted: 11/9/20

BP 6500 Property Management

References:

Education Code Sections 81300~~,~~ et seq.

The Superintendent/President is delegated the authority to act as the Board's negotiator regarding all property management matters that are necessary for the benefit of the District. No transaction regarding the lease, sale, use or exchange of real property by the District shall be enforceable until acted on by the Board of Trustees itself.

The Superintendent/President shall establish such procedures as may be necessary to assure compliance with all applicable laws relating to the sale, lease, use, or exchange of real property by the District.

Also see AP 6500 Property Management and BP/AP 6700 Civic Center and Other Facilities Use.

Adopted: 5/8/06
Reviewed: 8/13/18
Revised: 1/13/20
Reviewed: 3/14/22

BP 6520 Security for District Property

References:

Education Code Sections 81600 et seq.;
Accreditation Standard III.B.1

The Superintendent/President shall establish procedures necessary to manage, control, and protect the assets of the District, including but not limited to ensuring sufficient security to protect property, equipment, and information from theft, loss, or significant damage.

Also see BP/AP 3501 Campus Security and Access, BP/AP 6540 Insurance, and AP 6520 Security for District Property.

Adopted: 5/8/06
Reviewed: 8/13/18
Revised: 1/13/20

BP 6540 Insurance

References:

Education Code Sections 70902 72502 72506 and 81601 et seq.

The Superintendent/President shall be responsible to secure insurance for the District as required by law, which shall include but is not limited to the liabilities described in Education Code Section 72506 as follows:

- Liability for damages for death, injury to persons, or damage or loss of property;
- Personal liability of the members of the Board of Trustees and the officers and employees of the District for damages for death, injury to a person, or damage or loss of property caused by the negligent act or omission of the member, officer or employee when acting within the scope of his or her office or employment. The Superintendent/President may authorize coverage for persons who perform volunteer services for the District.
- Worker's compensation insurance.

Insurance shall also include fire insurance and insurance against other perils.

The District may join in a joint powers agreement pursuant to Education Code Section 81603 for the purposes described in this policy.

Also see BP/AP 2735 Board Member Travel, BP/AP 3810 Claims Against the District, BP/AP 4300 Field Trips and Excursions, BP/AP 5700 Intercollegiate Athletics, AP 6540 Insurance, BP/AP 6800 Occupational Safety, BP/AP 7400 Employee Travel, and AP 7343 Industrial Accident and Illness Leave.

Adopted: 5/8/06
Reviewed: 8/13/18
Revised: 4/13/20

BP 6550 Disposal of Property

References:

Education Code Sections 70902 subdivision (b)(6), 81360 et seq., and 81450 et seq.

The Superintendent/President is delegated authority by the Board of Trustees to declare as surplus such personal property of the District as is no longer useful for District purposes, and shall establish procedures to dispose of such property in accordance with applicable law. All sales of surplus personal property shall be reported to the Board of Trustees on a periodic basis. This policy shall not be construed as authorizing any representative of the District to dispose of surplus real property at any time.

Also see AP 6550 Disposal of Property.

Adopted: 11/14/11
Revised: 8/13/12
Revised: 4/13/20

BP 6600 Capital Construction

References:

Education Code Sections 81005 and 81820;
Title 5 Sections 57150 et seq.

The Superintendent/President is responsible for planning and administrative management of the District's capital outlay and construction program.

District construction projects shall be supervised by the Superintendent/President. The Executive Director of Facilities Services shall monitor the progress of all construction work including inspection of workmanship, completion of work to meet specifications, and the suitability of proposed changes to the scope and original design of the work. The Executive Director of Facilities Services shall assure compliance with laws related to use of state funds to acquire and convert existing buildings.

The Board of Trustees shall approve and submit to the Board of Governors a five-year capital construction plan as required by law. The Superintendent/President shall annually update the plan and present it to the Board of Trustees for approval. The plan shall address, but is not limited to, the criteria contained in law.

Also see AP 6600 Capital Construction.

Adopted: 5/8/06
Revised: 9/10/07
Revised: 4/13/20

BP 6620 Naming Recognition

References:

AVC Foundation Policies & Procedures, Section VI and Exhibit 1, August 4, 2016

PURPOSE

The purpose of this policy is to encourage private support through offering recognition opportunities to name campus facilities and properties and establish the conditions under which recognition may be given to an individual, business, organization or other party as a means of recognizing their contributions for Antelope Valley Community College District through the Antelope Valley College Foundation.

POLICY

The Board of Trustees of the Antelope Valley Community College District holds authority for naming all Antelope Valley College facilities and properties; i.e. all buildings, portions of buildings, college streets or roads, athletic fields, courts and facilities, and other areas of major assembly or activity, plazas, malls and other large areas of campus circulation, and all other visible facilities and properties. Each proposal for naming shall be considered on its own merits and approved by the Board of Trustees.

This policy provides the general guidelines for bringing naming recommendations to the Board of Trustees.

CRITERIA FOR NAMING RECOGNITION

Naming of District property may be considered for any of the following reasons:

1. To honor a living person who has made a unique, extraordinary or significant personal contribution to the college.
2. To honor a deceased person who has made a unique, extraordinary or significant personal contribution. Such proposals shall be submitted no earlier than one year following the death of the individual to be memorialized.
3. To honor a group, business or organization that has made a unique, extraordinary, or significant contribution to the college.
4. To recognize a person, group or business that has donated significant resources, specifically for naming, through the AVC Foundation. The suggested value of donated resources commensurate with naming recognition for campus facilities is attached to this policy as an addendum that may be updated from time to time by the Foundation and approved by the Board of Trustees. Donations do not themselves guarantee naming rights, but suggest that such recognition shall be appropriately considered (AVC Foundation Policies and Procedures – Section VI.
5. To reflect natural and geographical features.
6. To reflect a traditional theme of the college or the District.

Recommendations for naming recognition must clearly define and demonstrate the applicable standard for recognition.

DURATION OF NAMING RECOGNITION
Naming of district property may be granted by the Board of Trustees as either permanent or for a defined period of time. The recommendation to the trustees shall include the recommended duration of the recognition.

TRANSFERABILITY OF NAMING RECOGNITION:
Naming of a designated piece of district property shall not survive the named property's existence. Should the named property be removed or redesigned for another use the naming recognition shall not automatically be assigned to its replacement or any other property without the express authorization of the Board of Trustees. A recommendation for the transfer of the naming rights may be presented to the Board of Trustees for consideration at any time with the originally defined recognition period.

SCOPE OF NAMING RECOGNITION
Naming recognition shall be at a minimum in the form of a standardized plaque prominently placed upon or near the district property to which it applies. To be considered, the recommendation for naming recognition should also clearly define any other requested references including but not limited to printed publications, campus maps, signs and Websites.

In special circumstances, the Board of Trustees may waive any or all of the above criteria.

Also see AP 6620 Naming Recognition.

Adopted: 4/9/07
Revised: 8/29/11
Revised: 1/14/13
Revised: 6/12/17
Revised: 4/13/20

BP 6700 Civic Center and Other Facilities Use

References:

Education Code Sections 82537; 82542;
Title 5 Sections 59601 et seq.

There is a Civic Center at the Antelope Valley Community College District. The Civic Center locations include: gymnasium, baseball field, softball field, stadium, tennis courts, track, Student Center, T-900 classrooms, and Board Room (SSV 151). Use of the Civic Center shall be granted as provided by law. The Superintendent/President shall establish procedures regarding the use of college property, including but not limited to facilities, equipment and supplies, by community groups and other outside contractors.

These administrative procedures shall reflect the requirements of applicable law, including Education Code Section 82537, regarding Civic Centers. The regulations shall include reasonable rules regarding the time, place and manner of use of District facilities. They shall assure that persons or organizations using college property are charged such fees as are authorized by law. Public use of District property shall not interfere with scheduled instructional programs or other activities.

No group or organization may use District property for purposes that discriminate on the basis of race, color, religion, ancestry, national origin, disability, sex (i.e., gender), or sexual orientation, or the perception that a person has one or more of the foregoing characteristics.

Use of the District's Civic Centers will be only for the purposes described by the California Legislature in Education Code Section 82537(a). These purposes include use by associations "formed for recreational, educational, political, economic, artistic, or moral activities of the public school districts" in order to "engage in supervised recreational activities" or "meet and discuss, from time to time, as they may desire, any subjects and questions which in their judgment appertain to the educational, political, economic, artistic, and moral interests of the citizens of the communities in which they reside." (Education Code Section 82537(a)) In granting permission to use the Civic Centers, the District will not discriminate on the basis of viewpoint with regard to organizations engaging in expressive activities on the topics and subject matters articulated above.

See Administrative Procedures #6700

Adopted: 5/8/06
Revised: 10/10/22

BP 6740 Citizens' Bond Oversight Committee

References:

Education Code Sections 15278, 15280, and 15282;
California Constitution Article XIIIA Section 1(b), Article XVI Section 18 (b)

If a bond measure has been authorized pursuant to the conditions of Proposition 39 as defined in the California Constitution, the Board of Trustees shall establish a Citizens' Bond Oversight Committee in accordance with the applicable law and necessary regulations.

Also see AP 6740 Citizens' Bond Oversight Committee.

Adopted: 5/8/06
Reviewed: 8/13/18
Revised: 11/9/20

BP 6750 Parking

Reference:

Education Code Section 76360;
Vehicle Code Section 21113 and 40220

The Superintendent/President shall establish such administrative procedures regarding vehicles and parking on campus as are necessary for the orderly operation of the instructional program. No person shall drive any vehicle or leave any vehicle unattended on the campus except in accordance with such procedures.

Parking fees may be established in accordance with these board policies. (See Board Policy 5030.)

See Administrative Procedures #6750

Adopted: 5/8/06
Revised: 3/14/22

BP 6800 Safety

Reference:

Education Code Sections 72023.5, 72103

The Superintendent/President shall establish administrative procedures to ensure the safety of employees and students on District sites. The District shall provide safe working conditions for all employees. Determination of safe working conditions shall be made by the District and shall be in compliance with all applicable health, safety, fire and sanitation requirements imposed by OSHA, State, Federal, City and/or County laws or regulations.

The District shall not discriminate against any employee as a result of reporting an accident or any unsafe condition.

Tobacco smoking, chewing tobacco and electronic cigarettes shall be prohibited any place on campus to include in personal vehicles.

Smoking and chewing of tobacco, and electronic cigarettes shall be prohibited when riding or driving a college owned vehicle.

See Administrative Procedure #6800

Adopted: 5/8/06
Revised: 1/8/07
Revised: 1/8/18

BP 6900 Bookstores

References:

Education Code Section 81676
Civil Code Section 1798.90

College bookstore[s] shall be established and operated by the District or a qualified vendor. College bookstore[s] shall comply with the requirements of the Reader Privacy Act.

Contracts for outside vendors to operate bookstores shall be awarded by competitive bid, submitted to the Board for approval, and awarded in the best interests of the students. Student organizations shall be encouraged to submit bids and given preference if they meet all other bid criteria.

Adopted: 5/8/06
Revised: 1/8/07
Revised: 8/13/12
Revised: 4/13/20
Revised: 7/11/22

BP 6910 Housing

References:

Education Code Sections 94100 et seq.

The Superintendent/President is delegated the authority to enter into agreements with nonprofit entities to finance the cost of constructing student, faculty, and staff housing near the campuses of the District.

Adopted: 11/9/20

BP 6975 Export Control

References:

U.S. Export Administration Act implemented by export Administration Regulations (EAR);
U.S. Arms Export Control Act implemented by International Traffic in Arms Regulations (ITAR);
U.S. Office of Foreign Asset Control Regulations (OFAC).

The Antelope Valley Community College District shall comply with United States export control laws and regulations. Export controls are a complex set of federal regulations that apply to the release of certain information, commodities, technologies, and software to foreign nationals in the United States and abroad.

Although the District maintains an open academic environment in support of its teaching and research mission, the District is committed to complying with all United States export control laws in both research and non-research activities. While the majority of activities at the District are not subject to export control restrictions or licensing requirements, it is the responsibility of each member of District to be aware of the requirements and determine how export controls might apply to their activities.

This policy applies to all District staff, faculty, academic appointees, students (including student employees), and non-employee participants in District programs and activities. Export control violations can impact both the District and the individuals who violate the law and can result in severe criminal and/or civil penalties for non-compliance.

Also see AP 6975 Export Control.

Adopted: 5/13/19
Revised: 4/13/20

BP 7100 Commitment to Diversity

References:

Education Code Sections 87100 et seq.;
Title 5 Sections 53000 et seq.

The Antelope Valley Community College District is committed to employing qualified administrators, faculty, and staff members who are dedicated to student success and committed to an inclusive, anti-racist campus culture. The Board of Trustees recognizes that diversity in the academic environment fosters cultural awareness, promotes mutual understanding and respect and provides suitable role models for all students and employees. The Board of Trustees is strongly committed to hiring and staff development processes that support the goals of equal opportunity and diversity, equity, inclusion, and accessibility, provide equal consideration for all qualified candidates, and create an anti-racist academic and employment environment.

Also see AP 7100 Commitment to Diversity and BP/AP 3420 Equal Employment Opportunity.

Adopted: 5/8/06
Revised: 12/11/20
Revised: 1/8/24

BP 7110 Delegation of Authority, Human Resources

Reference:

Education Code Section 70902 subdivision (d)

The Board of Trustees delegates authority to the Superintendent/President to recommend and authorize employment, fix job responsibilities, and perform other personnel actions provided that all federal and state laws and regulations and board policies and administrative procedures have been followed, subject to confirmation by the Board of Trustees.

In accord with the provisions of BP 2510 Participation in Local Decision-Making related to participation in local decision-making by the Academic Senate, the District and the Academic Senate have mutually agreed to the following process for making recommendations for hiring faculty. The Superintendent/President shall forward the selection committee's recommendation (or recommendations if the committee is filling more than one position) to the Board of Trustees for final approval. The Superintendent/President may report a dissenting point of view to the Board of Trustees if he/she does not agree with the committee's recommendation(s). However, the Superintendent/President may not make an alternative recommendation to the Board of Trustees. The expectation that faculty recommendations regarding the hiring of faculty will normally be accepted is reinforced; and only in exceptional circumstances, and for compelling reasons communicated to the selection committee and to the president of the academic senate of the college, will the Board of Trustees not accept the committee's recommendation. The committee will then be reconvened and will be apprised of the Board's decision.

Also see BP/AP 3410 Nondiscrimination, BP/AP 7100 Commitment to Diversity, and BP/AP 7120 Recruitment and Hiring.

Adopted: 5/8/06
Revised: 5/9/16
Revised: 1/13/20

BP 7120 Recruitment and Hiring

Reference:

Education Code Section 70901.2, 70902(b) (7) & 87100 et seq., and 87458; Title 5, Section 53000, et seq.; Accreditation Standard III.1.A

The Superintendent/President shall establish procedures for the recruitment and selection of employees including, but not limited to, the following criteria.

An Equal Employment Opportunity plan shall be implemented according to Title 5 and Board Policy 3420 titled Equal Employment Opportunity.

Academic employees shall possess the minimum qualifications prescribed for their positions by the Board of Governors.

The criteria and procedures for hiring academic employees shall be established and implemented in accordance with board policies and procedures regarding the Academic Senate's role in local decision-making.

The criteria and procedures for hiring classified employees shall be established after first affording the Antelope Valley College Federation of Classified Employees an opportunity to participate in the decisions under the Board's policies regarding local decision making.

See Administrative Procedure #7120

Adopted: 5/8/06
Revised: 12/12/16

BP 7130 Compensation

Reference:

Education Code Sections 70902(b) (4); 72411; 87801; 88160; Government Code Section 53200

Salary schedules, compensation and benefits, including health and welfare benefits, for all classes of employees and each administrator employed pursuant to a contract under Education code section 72411 shall be established by the Board.

Prohibition of Incentive Compensation
The District shall not provide any commission, bonus, or other incentive payment based, directly or indirectly, on the success in securing enrollments or financial aid, to any person or entity engaged in any student recruiting or admission activities or admission activities or in making decisions regarding the award of student financial assistance. Employees covered by this ban shall be referred to as "covered employees" for purposes of this policy.

Adopted: 5/8/06
Revised: 5/9/16

BP 7140 Collective Bargaining

References:

Government Code Sections 3540 et seq.

If eligible employees of the District select an employee organization as their exclusive representative, and if after recognition by the District or after a properly conducted election, an exclusive representative is certified as the representative of an appropriate unit of employees under the provisions of the Educational Employment Relations Act, Government Code Sections 3540 et seq., the District will meet and negotiate in good faith on matters within the scope of bargaining as defined by law.

Academic personnel (faculty) are subject to terms and conditions as outlined in the current academic collective bargaining agreement.

Classified Service personnel are subject to terms and conditions as outlined in the current classified collective bargaining agreement.

Also see BP/AP 2610 Presentation of Initial Collective Bargaining Proposals.

Adopted: 5/8/06
Revised: 7/13/20

BP 7160 Professional Development

Reference:

Accreditation Standard III.A.14

It is the intent of the District to maximize professional development opportunities for its employees.

Also see BP 2740 Board Education and AP 7160 Professional Development.

Adopted: 5/9/16
Revised: 2/10/20

BP 7210 Academic Employees

Reference:

Education Code Sections 87400 et seq; 87419.1; 87600 et seq.; 87482.8; Title 5, Section 51025

Academic employees are all persons employed by the District in academic positions. Academic positions include every type of service, other than paraprofessional service, for which minimum qualifications have been established by the Board of Governors for the California Community Colleges.

Faculty members are those employees who are employed by the District in academic positions that are not designated as supervisory or management. Faculty employees include, but are not limited to, instructors, librarians, counselors, and professionals in health services, DSPS, and EOPS. (Refer to Article II, *Recognition* in the Antelope Valley College Faculty collective bargaining agreement)

Decisions regarding tenure of faculty shall be made in accordance with the evaluation procedures established for the evaluation of probationary faculty and in accordance with the requirements of the Education Code. The Board reserves the right to determine whether a faculty member shall be granted tenure. (Refer to Article VIII, *Tenure & Evaluation* in the Antelope Valley College Faculty collective bargaining agreement)

The District may employ temporary faculty from time to time as required by the interests of the District. Temporary faculty may be employed full time or part time. The Board delegates authority to the Superintendent/President to determine the extent of the District's needs for temporary faculty.

Notwithstanding this policy, the District shall comply with its goals under the Education Code regarding the ratio of full-time to part-time faculty to be employed by it and for making progress toward the standard of 75% of total faculty work load hours taught by full-time faculty.

See Administrative Procedure #7210

Adopted: 5/8/06

BP 7230 Classified Employees

Reference:

Education Code Sections 88003; 88004; 88009; 88013

Classified employees are those who are employed in positions that are not academic positions. The employees and positions shall be known as the classified service.

The classified service does not include:

- Substitute employees who are employed to replace any classified employee who is absent for duty up to sixty days.
- Short-term employees who are employed and paid for less than 75 percent of the fiscal year.
- Part-time apprentices and professional experts employed on a temporary basis for a specific project, regardless of length of employment.
- Full time students employed part time, and part-time students employed part time in any college work-study program or in a work experience education program conducted by the District.

The Superintendent/President may authorize employment of classified and confidential/management/supervisory employees, subject to ratification of the Board at the next regularly scheduled Board of Trustees meeting. The Board shall fix and prescribe the duties of the members of the classified service. (See Board Policy 7110.)

Before a short-term employee is employed, the Superintendent/President shall specify the service required to be performed and certify the ending date of the service, subject to ratification of the Board at the next regularly scheduled Board of Trustees meeting. The Board may later act to shorten or extend the ending date, but shall not extend it beyond 75 percent of an academic year.

The Superintendent/President shall establish procedures to assure that the requirements of state law and regulations regarding the classified service are met.

The probationary period for classified employees shall be one year.

See Administrative Procedures # 7230

Adopted: 5/8/06
Revised: 2/12/07

BP 7240 Confidential Employees

Reference:

Government Code Section 3540.1(c)

Confidential employees are those who are required to develop or represent management positions with respect to employer-employee relations or whose duties normally require access to confidential information that is used to contribute significantly to the development of management positions. The fact that an employee has access to confidential or sensitive information shall not in and of itself make the employee a confidential employee.

A determination whether a position is a confidential one shall be made by the Board in accordance with applicable law and with the regulations of the California Public Employment Relations Board.

Confidential employees are not eligible for inclusion in a bargaining unit represented by an exclusive representative and the terms and conditions of their employment are not controlled by any collective bargaining agreement.

The terms and conditions of employment for confidential employees shall be provided for by procedures developed by the Superintendent/President. Such terms and conditions of employment shall include, but not be limited to, procedures for evaluation and rules regarding leaves, transfers and reassignments.

See Administrative Procedure #7240

Adopted: 5/8/06

BP 7250 Educational Administrators

Reference:

Education Code Sections 72411 et seq., 87002(b), 87457-87460;
Government Code Section 3540.1(g) and (m)

An administrator is a person employed by the Board in a supervisory or management position as defined in Government Code Sections 3540, *et seq.*

Educational administrators are those who exercise direct responsibility for supervising the operation of or formulating policy regarding the instructional or student services programs of the District.

An educational administrator who has not previously acquired tenure as a faculty member in the District shall have the right to become a first year probationary faculty member once his or her administrative assignment expires or is terminated, if the following criteria are met:

- The administrator meets the criteria established by the District for minimum qualifications for a faculty position, in accordance with procedures developing jointly by the Superintendent/President and the Academic Senate and approved by the Board. The Board shall rely primarily on the advice and judgment of the Academic Senate to determine that an administrator possesses minimum qualifications for employment as a faculty member.
- The requirements of Education Code Section 87458(c) and (d), or any successor statute, are met with respect to prior satisfactory service and reason for termination of the administrative assignment.
- The District has a vacancy for which the administrator meets minimum qualifications.

Educational administrators shall be compensated in the manner provided for by the appointment or contract of employment. Compensation shall be set by the Board upon recommendation by the Superintendent/President. Educational Administrators shall further be entitled to health and welfare benefits made available by action of the Board upon recommendation by the Superintendent/President.

Educational administrators shall be entitled to vacation leave, sick leave, and other leaves as provided by law, these policies, and administrative procedures adopted by the Superintendent/President.

Every educational administrator shall be employed by an appointment or contract of up to four years in duration.

The Board may, with the consent of the administrator concerned, terminate, effective on the next succeeding first day of July, the terms of employment and any contract of employment with the administrator, and reemploy the administrator on any terms and conditions as may be mutually agreed upon by the Board and the administrator, for a new term to commence on the effective date of the termination of the existing term of employment.

If the Board determines that the administrator is not to be reemployed when his or her appointment or contract expires, notice to an administrator shall be in accordance with the terms of the existing contract. If the contract is silent, notice shall be in accordance with Education Code Section 72411.

An Educational Administrator's duties and responsibilities are determined by the job announcements for the position.

Educational Administrators are entitled to *Administrative Reassignment Rights* as specified in AP 7250.

See Administrative Procedure #7250

Adopted: 5/8/06
Revised: 3/12/18
Revised: 5/14/18

BP 7260 Classified Supervisors and Managers

Reference:

Government Code Section 3540.1(g) and (m); Education Code Section 72411

Classified supervisor and managers are administrators who are not employed as educational administrators.

Classified supervisors, regardless of job description, have authority to hire, transfer, suspend, recall, promote, discharge, assign, reward, or discipline other employees, or have the responsibility to assign work to and direct them, adjust their grievances, or effectively recommend such action.

Classified managers regardless of job description, have significant responsibilities for formulating District policies or administering District programs other than the educational programs of the District.

Classified supervisors and managers may be employed in the same manner as the other members of the classified service. If a classified supervisor or manager is employed as a regular member of the classified service, employment shall be consistent with other provisions of these policies regarding employment of classified employees.

Adopted: 5/8/06

BP 7270 Student Workers

Reference:

Education Code 69960(f), 88003

Full-time students employed part-time, and part-time students employed part time in any college work-study program, or in a work experience education program conducted by a community college district and which is financed by state or federal funds, shall not be a part of the classified service.

The number of hours of employment the student is allowed to work shall be determined by each institution in accordance with its standards and practices, taking into consideration the extent of the student's financial need and the potential harm of the combination of work and study hours on a student's satisfactory academic progress. The employer shall provide the institution with an accurate accounting of hours worked and wages earned.

See Administrative Procedure #7270

Adopted: 5/8/06

BP 7310 Nepotism

Reference:

Government Code Section 12940 et seq., 1090 et seq.

The District does not prohibit the employment of relatives [*or domestic partners as defined by Family Code Section 297 et seq.*] in the same department or division, with the exception that they shall not be assigned to a regular position within the same department, division or site that has an immediate family member who is in a position to recommend or influence personnel decisions.

Personnel decisions include appointment, retention, evaluation, tenure, work assignment, promotion, discipline, demotion, or salary of the relative [*or domestic partner as defined by Family Code Section 297 et seq.*].

Immediate family means spouse, parents, grandparents, siblings, children, grandchildren, step-children, and in-laws or any other relative living in the employee's home.

The District will make reasonable efforts to assign job duties to minimize the potential for creating an adverse impact on supervision, safety, security, or morale, or creating other potential conflicts of interest.

Notwithstanding the above, the District retains the right where such placement has the potential for creating an adverse impact on supervision, safety, security, or morale, or involves other potential conflicts of interest, to refuse to place spouses in the same department, division or facility. The District retains the right to reassign or transfer any person to eliminate the potential for creating an adverse impact on supervision, safety, security, or morale, or involves other potential conflicts of interest.

Relatives in the same department hired prior to the effective date of this policy may remain in their current positions, but not supervised by a relative.

Adopted" 5/8/06
Revised: 7/11/11
Revised: 12/12/16
Revised: 1/8/18

BP 7330 Communicable Disease

Reference:

Education Code Sections 87408; 87408.6; 88021

All newly hired employees shall have on file a medical certificate indicating freedom from communicable diseases, including tuberculosis. No academic employee shall commence service until such medical certificate has been provided to the District.

All newly hired employees must show that within the past 60 days they have submitted to a tuberculosis risk assessment and, if risk factors are present, been examined to determine that they are free from active tuberculosis. If risk factors were present at the tuberculosis risk assessment, and an examination occurs, after the examination the employee shall provide the District with a certificate from the employee's examining physician showing that the employee was examined and found to be free from active tuberculosis.

All employees shall be required to undergo a tuberculosis risk assessment within [four years of initial employment, and every four years thereafter, to determine if they are free from tuberculosis.

If the Board determines by resolution that student health would not be jeopardized thereby, the requirements relative to the examination shall not apply to any employee who files an affidavit stating that he/she adheres to the faith or teachings of any well recognized religious sect and in accordance with its creed depends for healing upon prayer in the practice of religion and to the best of his/her knowledge is free from active tuberculosis.

If at any time there should be probable cause to believe that the affiant is afflicted with active tuberculosis, he or she may be excluded from service until the governing board of the employing district is satisfied that he or she is not so afflicted.

Cafeteria employees shall be required to submit to an annual tuberculosis examination.

At the discretion of the Board, such examinations shall not apply to classified personnel on a temporary basis (less than one year) whose functions do not require frequent or prolonged contact with students.

See Administrative Procedures #7330

Adopted: 5/8/06
Revised: 2/12/18

BP 7335 Health Examinations

Reference:

42 U.S.C. Section 12112(d); 29 C.F.R., Part 1630; Government Code Section 12940; Ed. Code 87408 & 88021

The Superintendent/President shall establish administrative procedures related to medical examinations of candidates for appropriate positions prior to assuming the duties of the position. Such pre-employment medical examinations may be required after a conditional job offer has been made, and shall be required of any candidate for a position for which a pre-employment medical examination has been deemed appropriate. No candidate shall be required to participate in such an examination solely on the basis of the candidate's age or disability.

Procedures may require any employee to undergo a physical or mental examination where such a fitness for duty exam is job related and consistent with business necessity. Such medical examinations shall be at the District's expense and shall be conducted by a physician chosen by the District.

Adopted: 5/8/06
Revised: 5/12/08
Revised 10/15
Revised 7/11/16

BP 7340 Leaves

Reference:

> ***Education Code Sections 87763 et seq., 88190 et seq., 88198 et seq. and cites below, Labor Code Sections 245 et seq.***

The Superintendent/President shall establish procedures for employee leaves as authorized by law and by any collective bargaining agreements entered into by the District. Such leaves shall include, but are not limited to:

- illness or injury leaves for all classes of permanent employees; (Education Code Sections 87781 and 88192);
- paid sick leave; (Labor Code Section 246);
- vacation leave for members of the classified service, administrators, supervisors and managers, as well as, confidential employees and faculty on 12 month contracts;
- leave for service as an elected official of a community college District public employee organization, or of any statewide or national employee organization with which the local organization is affiliated or leave for a reasonable number of unelected classified employees for the purpose of enabling an employee to attend important organizational activities authorized by the public employee organization; *EC 87768.5; 88210*
- leave of absence to serve as an elected member of the legislature; *EC 87701*
- pregnancy/child birth leave; *EC 87766; 88193; Gov Code 12945*
- leave to bond with a new child; (Education Code Sections 87780.1, 87784.5, 88196.1 and 88207.5);
- use of illness leave for personal necessity*; EC 87784; 88207*
- industrial accident and illness leave; (Education Code Sections 87787 and 88192);
- bereavement leave; (Education Code Sections 87788 and 88194);
- jury service or appearance as a witness in court; *(Education Code Sections87036; 87037);*
- military service; (Education Code Section 87700:;
- sabbatical leaves for permanent faculty, academic employees, administrators and managers;
- catastrophic leave; *EC 87045*

Vacation leave for members of the classified service and 12 month faculty shall be limited in accord with collective bargaining agreements.

Vacation leave for confidential/management/supervisory group and educational administrators shall not accumulate beyond the number of days of leave accumulated over a two-year period.

Employees shall be permitted to take vacation in a timely manner to avoid accumulation of excess vacation.

In addition to these policies and collective bargaining agreements, the Board retains the power to grant leaves with or without pay for other purposes or for other periods of time.

The district will require medical certification to support a claim for leave for an employee's own serious health condition or to care for a seriously ill child, spouse, or parent. For the employee's own medical leave, the certification must include a statement that the employee is unable to perform at least one of the functions of his or her position. For leave to care for a seriously ill child, spouse, or parent, the certification must include an estimate of the amount of time that the employee is needed to provide care.

The district may require a second medical opinion and periodic re-certifications at its own expense. If the first and second opinions differ, the district may require the binding opinion of a third health care provider, approved jointly by the district and the employee and paid for by the district.

Refer to Article V of the faculty collective bargaining agreement and Article XI of the classified collective bargaining agreement for specific leave guidelines.

Adopted: 5/8/06
Revised: 5/9/16
Reviewed: 10/9/17

BP 7350 Resignations

Reference:

Education Code Sections 87730; 88201

The Board shall accept the resignation of any employee and shall fix the time when the resignation takes effect, which shall not be later than the close of the academic year during which the resignation has been received by the Board.

The Board hereby delegates to the Superintendent/President the authority to accept resignations on its behalf at any time. Resignations shall be deemed accepted by the Board when accepted in writing by the Superintendent/President. When accepted by the Superintendent/President, the resignation is final and may not be rescinded without approval by the Superintendent/President and the Board. All such resignations shall be forwarded to the Board for ratification.

Adopted: 5/8/06

BP 7360 Discipline and Dismissals - Academic Employees

Reference:

Education Code Sections 87666 et seq., 87732

No regular academic employee shall be dismissed except for one or more of the causes listed in Education Code Section 87732. The Board shall determine whether a contract or regular employee is to be dismissed or penalized. If the employee is to be penalized, the governing board shall determine the nature of those penalties. A contract or regular employee may be dismissed or penalized if one or more of the grounds set forth in Section 87732 are present and the following are satisfied:

- The employee has been evaluated in accordance with standards and procedures established in accordance with the provisions of Education Code Sections 87660 et seq., and any procedure for evaluation contained in a collective bargaining agreement;

- The Board has received all statements of evaluation which considers the events for which dismissal or penalties may be imposed;

- The Board has received a recommendation from the Superintendent/President.

- The Board has considered the statements of evaluation and the recommendations in a lawful meeting.

If the Board decides it intends to dismiss [or penalize] a contract or regular employee, it shall take the actions required by the Education Code, and the Superintendent/President or designee shall thereafter assure that the employee is afforded the full post-termination due process required by Education Code Sections 87666-87681.

The procedures that define the conditions and processes for dismissal, discipline, and due process shall be available to employees.

See Administrative Procedure # 7360

Adopted: 5/8/06
Revised: 4/10/17

BP 7365 Discipline and Dismissals - Classified Employees

Reference:

Education Code Section 88013; Government Code Sections 3300 et seq.

The Superintendent/President shall enact procedures for the disciplinary proceedings applicable to permanent classified employees of the District. Such procedures shall conform to the requirements of the Education Code.

The Board's determination of the sufficiency of the cause for disciplinary action of a classified employee shall be conclusive.

No disciplinary action shall be taken for any cause that arose prior to the employee becoming permanent, or for any cause that arise more than two years preceding the date of the filing of any charge against the employee, unless the cause was concealed or not disclosed by the employee when it could be reasonably assumed that the employee should have disclosed the facts to the District.

A permanent member of the classified service shall be subject to disciplinary action, including, but not limited to, oral reprimand, written reprimand, reduction in pay, demotion, suspension, or discharge, for any of the grounds set forth in Article IX of the classified bargaining agreement.

The effective date of the dismissal of a classified employee shall be the date on which the Board of Trustees makes a decision unless otherwise specified in the decision.

Probationary employees may be dismissed at the direction of the Board at any time during the probationary period. Upon request, the probationer shall be provided with a reason for dismissal or non-retention. Probationary employees are not entitled to a hearing afforded permanent employees.

See Administrative Procedure #7365

Adopted: 5/8/06
Revised: 11/9/09

BP 7370 Employee Political Activity

References:

Education Code Sections 7054 and 7056;
Government Code Section 8314

Employees shall not use District funds, services, supplies, or equipment to urge the passage or defeat of any ballot measure or candidate, including, but not limited to, any candidate for election to the Board of Trustees. This policy prohibits political activity during an employee's working hours, but shall not be construed to prohibit an employee from urging the support or defeat of a ballot measure or candidate during nonworking time.

Refer to Antelope Valley College Faculty collective bargaining agreement, Article VII.

Also see BP 2716 Board Political Activity and AP 7370 Employee Political Activity.

Approved: 5/8/06
Revised: 7/13/20

BP 7380 Retiree Health Benefits

Reference:

Education Code Sections 7000 et seq.

The District shall permit enrollment in the medical and/or dental benefits plans currently available to District employees by any employee who retires under PERS or STRS and his or her spouse, and by any surviving spouse who either retired under any public retirement system or was a member of STRS. Enrollment pursuant to this policy shall be at the retiree's own expense, unless the retiree qualifies for District-paid benefits under his/her collective bargaining agreement. An employee who retires from the District may enroll in the medical and/or dental plans only once pursuant to this policy. A retired employee who voluntarily terminates coverage under this policy may be excluded from obtaining coverage again. This policy does not create a vested retirement right in medical and dental care benefits.

The Superintendent/President shall establish procedures as may be deemed necessary to administer this policy in accordance with Education Code Sections 7000 et. seq._and the collective bargaining agreements.

See Administrative Procedures #7380

Adopted: 5/8/06

BP 7385 Salary Deductions

Reference:
Education Code Sections 87040; 87833; 87834; 88167

An employee may request reduction of his or her salary in any amount for any or all of the following purposes:

- participation in a deferred compensation program;
- paying premiums on any policy or certificate of group life insurance or disability insurance or legal expense insurance, or any of them;
- paying rates, dues, fees, or other periodic charges on any hospital service contract.

The request provided for above shall be revocable by the employee. Revocation of such authorization shall be in writing and shall be effective beginning with the next pay period.

The District shall perform all *legally required* salary deductions as specified in AP 7385.

See Administrative Procedure #7385

Adopted: 5/8/06

BP 7400 Travel

Reference:
Education Code Section 87032; Government Code Section 11139.8

The Superintendent/President is authorized to attend conferences, meetings and other activities that are appropriate to the functions of the District.

The Superintendent/President shall establish procedures regarding the attendance of other employees at conferences, meetings, or activities. The procedures shall include authorized expenses, advance of funds, and reimbursement.

All *district-sponsored* travel outside the United States must be approved in advance by the Board.

Government Code Section 11139.8 prohibits a state agency from requiring its employees, officers, or members to travel to, or approving a request of state-funded or sponsored travel to, any state that, after June 26, 2015, has eliminated protections against discrimination on the basis of sexual orientation, gender identity, or gender expression. This also applies to any state that has enacted a law that authorizes or requires discrimination against same-sex couples or their family or on the basis of sexual orientation, gender identity, or gender expression, subject to certain exceptions. The California Community College Chancellor's Office has indicated it will not approve requests from community college districts to travel to a restricted state. The California Community Colleges Chancellor's Office has also opined that Government Code Section 11139.8 does not apply to local community college districts. However, California law has recognized local community college districts as state agencies for certain purposes, among those is the community college funding mechanism.

Therefore, travel to prohibited locations as determined by the California State Attorney's General Office will be limited to the exceptions identified in Government Code Section 11139.8. Please see: https://oag.ca.gov/ab1887.

Board of Trustees - Advance Travel Authorization

Members of the Board of Trustees are authorized to attend meetings of professional organizations and to receive reimbursement of necessary and actual expenses related thereto.

See Administrative Procedures # 7400

Adopted: 5/8/06
Revised: 5/14/18

BP 7510 Domestic Partners

Reference:

Family Code Sections 297, 298, 298.5, 297.5, 299, 299.2, and 299.3.

Domestic partners registered with Los Angeles County shall have, insofar as permitted by California law, all of the same rights, protections, and benefits, as well as the same obligations, responsibilities, and duties of married persons (spouses) under state law. Former domestic partners shall have all of the rights and obligations of former spouses. Surviving domestic partners shall have the same rights, protections, and benefits as are granted to a surviving spouse of a decedent.

Therefore, all references to "spouses" in District's policies or procedures shall be read to include registered domestic partners as permitted by California law.

Adopted: 5/8/06

BP 7600 Campus Security

References:

Education Code Section 72330 et seq;
Government Code Sections 3300 et seq.

The Board of Trustees has approved a Service Agreement with the County of Los Angeles Sheriff Department for general law enforcement and security services within the corporatelimit of the District.

Services performed by the Sheriff's Department, the discipline of officers, and other matters incident to the performance of such services and the control of personnel so employed shall remain with the County.

Adopted: 4/11/22

BP 7700 Whistleblower Protection

References:

Education Code Sections 87160-87164;
Labor Code Section 1102.5;
Government Code Section 53296;
Private Attorney General Act of 2004 (Labor Code Section 2698);
Affordable Care Act (29 U.S. Code Section 218C)

The Superintendent/President shall establish procedures regarding the reporting and investigation of suspected unlawful activities by district employees, and the protection from retaliation of those who make such reports in good faith and/or assist in the investigation of such reports. For the purposes of this policy and any implementing procedures, "unlawful activity" refers to any activity—intentional or negligent—that violates state or federal law, local ordinances, or District policy.

The procedures shall provide that individuals are encouraged to report suspected incidents of unlawful activities without fear of retaliation, that such reports are investigated thoroughly and promptly, remedies are applied for any unlawful practices and protections are provided to those employees who, in good faith, report these activities and/or assist the District in its investigation.

Furthermore, District employees shall not:

- retaliate against an employee or applicant for employment who has made a protected disclosure, assisted in an investigation, or refused to obey an illegal order;
- retaliate against an employee or applicant for employment because the employee or applicant is a family member of a person who has made a protected disclosure, assisted in an investigation, or refused to obey an illegal order; or
- directly or indirectly use or attempt to use the official authority or influence of his/her/their position for the purpose of interfering with the right of an applicant or an employee to make a protected disclosure to the District.

The District will not tolerate retaliation, and will take whatever action may be needed to prevent and correct activities that violate this policy, including discipline of those who violate it up to and including termination.

Adopted: 5/9/16
Revised: 7/11/16
Revised: 1/8/24